United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE 114th CONGRESS, FIRST SESSION

Vol. 161 WASHINGTON, TUESDAY, DECEMBER 8, 2015 *No. 177*

House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. JOLLY).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
December 8, 2015.

I hereby appoint the Honorable DAVID W. JOLLY to act as Speaker pro tempore on this day.

PAUL D. RYAN,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 6, 2015, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

SUPPORTING THE MENTAL HEALTH NEEDS OF OUR SOLDIERS AND VETERANS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, late last month President Barack Obama signed into law the National Defense Authorization Act of 2015, otherwise known as the NDAA.

Included in the legislation was language directing the United States Department of Defense to study a mental health assessment for all incoming military recruits. This assessment would then be used as a baseline throughout the service careers of our servicemen and -women.

This was included in the Medical Evaluation Parity for Servicemembers, or MEPS, Act, which I introduced earlier this year. Now, I believe this assessment is essential in addressing the suicide epidemic which has affected our military members and veterans over the past several years.

Mr. Speaker, when it comes to suicide within the ranks of our American heroes, commissioned studies have been implemented by the Department of Defense in the past.

We have found that, for over 60 percent of those individuals who attempt or commit suicide while serving in the military, it was not their first attempt. Their first attempt was before they joined the military. This is about preexisting conditions that have failed to have been recognized.

Mr. Speaker, if you are like me and you assume that it is what people see on the battlefield—I have been to Afghanistan. I have been to Iraq in the past. It is the horrors of war that drive people, largely, to suicide.

But these studies, Mr. Speaker, have found that the large majority of those individuals who attempt or commit suicide while in the military never saw deployment. They were not in combat situations. Again, it speaks to pre-existing conditions that have not been adequately identified and addressed. This is a matter that really has been thoroughly examined in recent years.

So while I am happy that it is in the National Defense Authorization Act, I urge the Pentagon to act quickly to take steps to better assess the mental health of our servicemen and -women at the time of enlistment with this commonsense, baseline evaluation.

These heroes deserve all the information that we can provide in order to make their lives a bit easier.

CONGRATULATING THE PORTLAND, OREGON, TIMBERS ON THEIR MAJOR LEAGUE SOCCER CUP VICTORY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BLUMENAUER) for 5 minutes.

Mr. BLUMENAUER. Mr. Speaker, I come to the floor this morning barely able to talk. But not having much of a voice is common in Portland, Oregon, these days, as fans shouted themselves hoarse after the Portland Timbers' stunning victory over the Columbus Crew on Sunday, winning the Major League Soccer Cup.

There is no doubt that my hometown of Portland, Oregon, is Soccer City, USA. Fans continue to prove the point with a huge celebration today.

I want to congratulate the Timbers for an amazing season and for being such a huge part, indeed, of Portland, and all of Oregon.

This season had it all: injuries and bumps along the way that made Sunday's result seem highly unlikely. But under the leadership and direction of Coach Caleb Porter, the Timbers stayed focused and made course corrections that led them to a national championship, finishing with a flourish.

This team has so many heroes that it is impossible, in the time I have, to give them their due recognition. But I want to give special mention to new U.S. citizen Darlington Nagbee; Diego Chara; Rodney Wallace; Jake Gleason; and the old, salty dog, Jack Jewsbury, all of whom have been with the Timbers since our inaugural season.

I also want to highlight the Maestro, Diego Valeri; defenders Liam Ridgewell and Nat Borchers, he of the beard; as well as goalkeeper Adam Kwarasay for their heroic efforts this season.

Merritt Paulson and his management team deserve recognition for their passion for the support and their love for our city.

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Of course, you can't mention the Portland Timbers without talking about, as the song goes, the greatest football supporters the world has ever seen, the Timbers Army. Your dedication to team, town, and country is an inspiration and very much in evidence in Columbus this weekend.

Mr. Speaker, let me conclude by reminding all of America and several places in Canada that, in case you didn't get the hint with Timber Joey and his chain saw, there is no pity in the Rose City.

DONALD TRUMP MUST END HIS PRESIDENTIAL CANDIDACY

The SPEAKER pro tempore (Mr. THOMPSON of Pennsylvania). The Chair recognizes the gentleman from Florida (Mr. JOLLY) for 5 minutes.

Mr. JOLLY. Mr. Speaker, I rise today to call on Donald Trump to withdraw his candidacy for the White House. We face a security test in this Nation, a national security test. It is a real and audible threat.

I have been most critical of the President's foreign policy. It is an area that, respectfully, I have the greatest disagreement with this administration. I have begged him in correspondence, and I have used the word ''beg'' to do more to defeat the threat of terror.

I believe his Oval Office address Sunday night, frankly, was forgettable. He spent 5 minutes suggesting he was going to do nothing different to defeat ISIS. He spent 5 minutes lecturing Congress, and he spent 5 minutes lecturing the American people.

You see, we do face a security test that I believe the President's policies have underestimated. But we also face a test of our commitment to religious freedom, one of the basic freedoms upon which our Nation was founded. We are either going to defend that religious freedom or we are not.

It should be heartbreaking to every American that we have a frontrunner in the Presidential race that suggests there will be a religious test for anybody who wishes to come to our shores. It is an affront to the very principles upon which our Nation was founded.

We broke from a monarch that suggested all freedom and liberty was vested in the Crown and then the Crown would distribute freedom and liberty to the people. We founded a Nation based on what Jefferson called the natural rights of man, that we were, indeed, endowed by our Creator with very fundamental rights.

Mr. Speaker, I am a born-again Christian. I believe in the saving grace of the Jesus Christ that I call my God. The beautiful thing about this country is I can stand here on the House floor, among my peers and in front of the Nation, and declare that faith without fear of any reprisal.

But if Donald Trump has his way, we may not have the liberty to do that anymore. It is a freedom that has been fought for, from the Founders of our country, and generation upon generation of men and women who have worn the uniform of the Armed Forces and defended it, for the security of our Nation, and for the freedom of people.

We are a Nation worried about our security, rightfully so. It is why we are calling on the President to do so much more to defeat this terror. It is why we are begging the President for a stronger national security test.

We must always insist on a security test, but we must never require a religious test.

It is time that my side of the aisle has one less candidate in the race for the White House. It is time for Donald Trump to withdraw from the race.

CONFIDENTIAL INFORMANTS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Tennessee (Mr. COHEN) for 5 minutes.

Mr. COHEN. Mr. Speaker, first of all, I would like to congratulate the gentleman from Florida (Mr. JOLLY) on his statement. I thought that showed some courage. It reflects the values of a lot of people here in this House and in the United States of America. It needed to be said.

Mr. Speaker, some of us on both sides of the aisle have been working hard to reform our marijuana laws to allow more State flexibility in how marijuana is regulated and treated commercially and medically.

What binds us together across a broad ideological spectrum is our strong belief that we must be able to distinguish between marijuana and seriously dangerous and lethal drugs: meth, heroin, crack, cocaine, and prescription drugs as well.

People don't rob corner groceries and liquor stores to get money to supply their habit of marijuana. They do that for meth, crack, cocaine, heroin. It is a different, different drug.

The movement that is occurring here in this Congress and around our country is ongoing and growing rapidly, thanks to open minds, common sense, and some people having the courage to stand up for things they know are true because they, themselves, their friends, their family, and others have smoked marijuana, and they have seen that it is not a great problem.

Sunday night, I and millions of Americans watched a disturbing ''60 Minutes'' piece on the issue of confidential informants. Lesley Stahl was the host. It focused on how local law enforcement appears to be increasingly using young people as informants without regard to their rights or their safety.

It is being done without distinguishing between marijuana and the dangerous drugs that affect our society and our safety: heroin, meth, crack, cocaine, opiates.

Here is how it works. A young person is cited for violating drug laws, usually possessing a small amount of marijuana and perhaps having sold some to a friend, which happens regularly in high school and college—not that high school kids should be doing it, but it is a fact, and so are college kids. The police tell them that, unless they agree to wear a wire and implicate a number of their friends, often close friends, they could be sentenced to a long prison term, the maximum permitted by law.

They are cornered, frightened. Any person in that situation would take that deal. Most of them do it under supreme duress, and they do it without the presence of a lawyer or the knowledge that they have a right to a lawyer.

Most of them seem to do it without even telling their parents because the police tell them: Don't tell anybody. This is just between you and me. You need to do this or you are going to prison for a long time.

In the case of Rachel Hoffman and Andrew Sadek, it cost them their lives. Rachel had dealt a small amount of marijuana. They got her into dealing with people that dealt heavy drugs and guns and got her to try to make a big purchase. They didn't do a very good job of covering her. Rachel was murdered.

Mr. Sadek was murdered, also, as a confidential informant, without police protecting him.

The underpinnings for this counterproductive and dangerous behavior by some of our police are the very drug laws that many of us are trying to reform. This is wrong. I hope my colleagues will work with me to help stop it.

President Eisenhower warned us about the military industrial complex and its effect on our country and our budgets.

We need to be warned about the law enforcement-marijuana industrial complex, which is driven by monies that they get from busts and perverts justice and ruins people's lives and takes away their college scholarships, their opportunity to have housing, on occasion, and their opportunities to get jobs and, indeed, their liberty.

□ 1015

In the meantime, it is time for the Department of Justice to take a close look at how this behavior not only threatens to ruin young lives but, in some cases, to end those lives.

As the Department of Justice, in the aftermath of all too many instances of police overreach and overreaction, works with local communities to educate law enforcement on more just and humane practices, the issue of forcing young people to be confidential informants should be added to its list.

Mr. Speaker, we will be working on legislation. I hope we have people to join us. This is just part of the scourge that has come across this Nation, ruining people's lives because of the misunderstanding of marijuana starting in the 1930s with Harry Anslinger and continuing in the 1970s with Richard

Nixon, who used it as a political tool. It needs to stop.

PHARMACY BENEFIT MANAGERS

The SPEAKER pro tempore (Mr. JOLLY). The Chair recognizes the gentleman from Georgia (Mr. COLLINS) for 5 minutes.

Mr. COLLINS of Georgia. Mr. Speaker, I come here today, as I have on many other occasions, to discuss an issue that is close to my heart, but it is also close to every small community and every large community across the country, and that is the plight of our community pharmacists. Community pharmacists are struggling to survive each and every day in light of the anticompetitive behavior of pharmacy benefit managers, PBMs.

Let me state up front: I have no problem with a company doing business. I have no problem with them playing in the bounds of what is fair and what is legal, and PBMs have a role in the marketplace. However, what we found out just in the last few weeks in the Judiciary Committee in a hearing is there is still a lack of regulation, enforcement, and transparency, and it is threatening the very existence of our community pharmacists in which the PBMs are acting not as competitors but, many times, as bullies.

To make matters even worse—and this is what was amazing to me—community pharmacists cannot even speak out about the appalling practices of the PBMs that they are forced to do business with because, when they do, the repercussions are swift and severe. It has been amazing to me to talk all across the country to community pharmacists who simply want to talk about what is going on in their business model in which they are put at a distinct disadvantage, and yet there are many of them saying: I can't say anything publicly because I know I will be reprimanded or my contract will be changed or my contract will be withdrawn, and I will be out of business.

Mr. Speaker, that is just wrong. No matter what is said, we have seen firsthand that in relation to State laws that have been in response to this issue, the States have enacted transparency reform with generic drug prices and reimbursement systems called the MAC transparency laws.

In fact, to date, 24 States have enacted such laws. The goals of these laws is to increase transparency and provide structure around the generic drug pricing and reimbursement system. But when community pharmacists speak out in support of these reasonable reforms, the PBM community has retaliated through business lawsuits against the State and even discussing it in the contracts with community pharmacists saying: Well, it would be better if we get these laws repealed.

There is just a problem here. When you have the ability to force your competitors to be audited by you and to be controlled by you to where there is no transparency, where there are issues of community pharmacists simply barely able to survive, the PBMs are not representing the best interests of consumers; the PBMs are representing themselves. If they were truly acting in the best interest of consumers, as they claim, they would not oppose virtually every single transparency reform effort on the State and the Federal level. In fact, it is really interesting. They come to Congress and say one thing to Members, and then they turn around and behave however they wish in the pharmacy marketplace without fear of enforcement or oversight.

As I said from this floor a few weeks ago, I will continue this fight because they can't audit me. They can audit my community pharmacists, and my community pharmacists are scared because they know their very livelihood is being put out by those who would come with shiny objects and savings that many times never materialize, but at the same time funneling money to their own businesses.

Mr. Speaker, it is time to change, and it is time to change it now. We must preserve pharmacy access for patients, especially those in rural areas like north Georgia, and we must put an end to the bullying that seems to be going on.

What is amazing is a PBM can make a mistake and say that a pharmacy was not part of the new network, and when called on that, saying that we are part of that new network, they say: Well, we will send out a retraction when we get around to it. Pharmacists lose business based on these kinds of letters, and, yet the PBMs say: Oh, well, we will get around to it when we can.

That is why I am proposing H.R. 244, because community pharmacists routinely incur losses of approximately $100 or more on prescriptions because PBMs reimburse pharmacies well below their cost to acquire and dispense generic prescription drugs, and they have skyrocketed in price. The PBMs may wait weeks or months to update the reimbursement benchmarks they use to compensate pharmacies while drug prices increase virtually overnight. This situation jeopardizes pharmacists' ability to continue to serve patients because it leaves community pharmacists with unsustainable losses.

Mr. Speaker, I would urge you and other colleagues to cosponsor H.R. 244. This reasonable legislation would require PBMs to update their maximum allowable cost benchmark every 7 days to better reflect market costs and allow pharmacists to know the source by which PBMs set reimbursements for their community pharmacist.

Many times we come to the floor fighting for businesses both large and small. But this is a time in which we are coming and I am coming to the floor fighting for community pharmacists who many times are the main source of health care in a community. They are the ones that are trusted. They are the ones that are needed. And it is time for this body to stand up for them, against the anticompetitive tactics of PBMs and the bullying behavior that has got to stop.

OUR CONSTITUTIONAL RIGHTS

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Texas (Ms. JACKSON LEE) for 5 minutes.

Ms. JACKSON LEE. Mr. Speaker, in a conversation that I had recently, speaking about the other body, it was mentioned that that body is the deliberative body. There are opportunities for collaboration between Members, Democrat and Republican. But I am in the people's House, and I believe that Members also have the duty and commitment to collaborate and to be deliberative and thoughtful.

This morning, I would like to offer just a number of points about our wonderful Constitution.

I first want to begin by saying this is Restore the Vote Tuesday, and I am wearing a pin that highlights the importance of voting and the responsibilities of our civic constituency. My colleague from Alabama (Ms. SEWELL) is on the floor, and I join her in recognizing how special this right is and to know that many of us—I attempted to register sharecroppers in South Carolina, North Carolina, and Georgia in my college days, people who were still frightened about voting. I saw what the 1965 Voting Rights Act did, and we need to restore it.

We have an election coming up in Houston on Saturday, and I want to say to my constituents that we will do all that we can to prevent any prohibitive barriers from voting, from your voting.

That is a right, Mr. Speaker, just as it is the right to have the right to freedom of expression, freedom of speech, and freedom of religion.

Mr. Speaker, one of our Presidential candidates took to the airwaves in the last 24 hours to pronounce or announce or demagogue, saying that no Muslims should be allowed in this country. Mr. Speaker, I believe that we, as Members of Congress, should be empathetic and sympathetic to the concern of the American people. Maybe some are frightened. I do not make light of that.

I have been on the Homeland Security Committee since 9/11, and I now serve as the ranking member of the Crime, Terrorism, Homeland Security, and Investigations Subcommittee. I take these obligations very seriously. For any of us who have been to Ground Zero even at that time and since that time, it is seared in our minds.

I know the people in San Bernardino, those of us reflecting on Paris, but now our own brothers and sisters realize that government must act in a way for Americans to feel safe and secure. But I would say that having met and stood with the Muslim community in my district on Sunday, late in the afternoon,

we stood in front of the Mickey Leland Federal building with Christians alike. Arm in arm we prayed. But I just stood back and listened to one Muslim representative after another come and proclaim their patriotism and denouncing the violence and distortion of their faith.

A young imam who had just moved from New Jersey just moved me. He began to articulate the elements of the Koran: benevolence and love. As a 25-year-old, he stood up to denounce this violence. That is the kind of American partnership that we need.

When we concluded that meeting, we had a press conference and vigil. We said that we would form a task force. I encourage Members throughout this body to have task forces on this very issue: How can we help?

Then as the President spoke—I want to thank him, for maybe people were not listening—the President was very clear that he is going to take the hunt and hunt down terrorist plotters to any country where they are. The President also indicated he will continue to provide training and equipment to Iraqi and Syrian forces and work with friends and allies to stop ISIL's operations; and with American leadership, the international community has begun to establish a process and timeline to pursue cease-fires and a political resolution to the Syrian war. Our President is focused. The Congress needs to be focused.

Yes, we need to be able to put forward legislative ideas, not contentious. No terrorist should have the ability to get a gun. Therefore, we should pass this bill that indicates that any terrorist on the terrorist watch list should not be able to buy a gun in the United States of America. I have legislation in the Judiciary Committee that we are preparing to come to the floor: no-fly for foreign terrorists, stopping them in their tracks, from wherever they come from, from getting on any plane coming to the United States of America. That is not hostility. That is saying to the American people we care. As they say in the community: We have got your back.

Then we must go back to the alert system, Mr. Speaker. We did it after 9/11. We understand the Secretary is offering that thought, the red alert. It is interesting that I thought about that, to give the American people some sense.

But let me finish, Mr. Speaker, by simply saying that I love this country. What a wonderful set of principles in the Constitution. And I want to say to the American people that, with our God, with our faith vested in a higher power, and the knowledge of democracy, we are going to withstand, survive, fight, and have a better nation. I know that that is the better way, not demagoguery and condemnation of a faith. I would never do that.

MASS SHOOTINGS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. QUIGLEY) for 5 minutes.

Mr. QUIGLEY. Mr. Speaker, last week's shooting in San Bernardino, California, happened to be the second shooting of the day and the 355th of the year, equating to more mass shootings than days in the year. The social media pages of some of the most influential leaders in Congress expressed sympathy, thoughts, and prayers to the victims and their families. But what many failed to express was a commitment to act on this issue to make mass shootings and horrendous gun violence a far less common instance in America.

While no grand solution exists to end all gun violence, we know from the experience of other countries that a combination of small but practical policy solutions can severely reduce it. But Congress continues to choose inaction.

Last week, immediately following the devastating news coming out of Paris and San Bernardino, a majority of Members blocked the House from even debating bipartisan legislation to close the outrageous loophole that allows suspects on the FBI's terrorist watch list to buy guns. It may be hard for some to believe, but in the U.S., individuals on the Federal terrorist watch list are shockingly still not prohibited from purchasing firearms.

Quite simply, Mr. Speaker, this means you can be on the terrorist watch list, considered by the Federal Government to be a potential risk to the national security of the United States and be prohibited from boarding a plane, but still have the ability to walk into any Walmart around the country and purchase a semiautomatic weapon.

Current Federal law prohibits nine categories of dangerous people from purchasing or owning firearms; suspected terrorists on FBI watch lists, however, are not one of them. I don't have to explain to Members of the House the growing terrorist threat that this country is facing from lone-wolf extremists which are often unpredictable and incredibly difficult to thwart. Even just one unsophisticated lone-wolf extremist with a gun can do a remarkable amount of damage.

This isn't some sort of theoretical threat either. A GAO investigation found that individuals on terrorist watch lists successfully purchased guns 1,321 times between February 2004 and December 2010. And that was before the rise of ISIS and their persistent social media campaign to recruit homegrown terrorists.

Mr. Speaker, I have worked with Congresswoman LOWEY in the Appropriations Committee on a commonsense amendment to allow the Attorney General to deny firearms sales to individuals known or suspected to be involved in terrorism. Unfortunately, our attempts to pass this amendment in committee have been rebuffed every time. But this week, we have an opportunity to change that. This week, we can show our enemies, intent on destroying Americans and our way of life, that Congress cares more about protecting the safety of its citizens than it does about the gun lobby by finally closing this terror gap in our gun laws.

The American people, gun owning and not, overwhelmingly support responsible, commonsense gun reforms. If this isn't the definition of responsible and commonsense reform, I don't know what is. There is also widespread support specifically among gun owners for closing the gap. In 2013, a survey found that 80 percent of non-NRA gun owners support prohibiting people on the terrorist watch list from obtaining guns. Mr. Speaker, 71 percent of NRA gun owners support prohibiting people on this watch list from obtaining guns.

It is naive to think that al Qaeda and ISIS are not paying attention to what is happening here in Congress. Fixing this loophole is simple, responsible, and the right thing to do for public safety. Let's not pass on this critical opportunity to close a dangerous loophole that threatens our national security.

□ 1030

HOMEOWNERSHIP

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from California (Ms. LORETTA SANCHEZ) for 5 minutes.

Ms. LORETTA SANCHEZ of California. Mr. Speaker, I rise today to highlight an issue that is incredibly important. It is probably the number one issue going on in my district today. And that is the whole issue of housing: housing, and the opportunity to own your own home, to provide a safe haven for your family, to build wealth.

You see, owning your own home for almost everybody in our country is the first rung of the ladder of wealth creation. Yet today, that dream—and it is a dream for many of our citizens, particularly those in the Latino and minority communities—is just that, a dream. Latinos, like all Americans, are committed to building a better and stronger future for their families and for their communities. It starts by becoming a homeowner, to own a piece of America, to have a real stake in America.

That is one of the reasons homeownership is so important. It is important because it creates wealth—as I said, the first rung on the ladder for people to have an investment. It creates social stability. It creates a haven for the family, for family get-togethers. A home is really one of the most important assets for a family to have. Owning a home has far-reaching consequences in our economy for communities.

This fall, I had the opportunity to be a keynote speaker at a bipartisan leadership forum on achieving the American Dream, hosted by First American

Financial Corporation, who is headquartered in my district. I was joined by many of my colleagues, including Representative LINDA SÁNCHEZ, Representative EMANUEL CLEAVER, former Governor Luis Fortuno, industry leaders, and community activists.

The decision to become a homeowner is one of the most important decisions, and it commits a person. It commits a family. It commits us towards getting to the middle class. For people in the bottom 40 percent of annual income level, wealth creation is almost exclusively in homeownership.

According to the National Association of Home Builders, ''the primary residence represents the largest asset category'' in our country, accounting for 30 percent of our Nation's total assets. The importance of homeownership is even greater for the middle class: 62 percent of the median homeowner's assets and 42 percent of their total wealth lies in their home.

Not to mention that access to home equity, being able to pull out some of that equity you have built up, provides families with financial stability when there are financial stresses going on in the family. It is an emergency fund in some cases, and it helps to start a business, it helps to fund college for our children. Homeownership is a key to creating stable, economically successful households and to provide security for existing and future generations.

Households with wealth are able to weather financial shocks and increase upward economic mobility for themselves and for future generations. In fact, analysis provided by First American's Chief Economist, Mark Fleming, highlighted homeownership trends based on household formation rates among Latino and African American Communities. The research identified the importance of homeownership-based wealth formation as the key, the key to wealth creation for middle- and low-income Americans. Providing Americans with equal opportunity to pursue that homeownership is a challenge, and it is very challenging in the Latino, African American, and other minority communities.

This last recession of 5 or 6 years—this really terrible, difficult recession for so many people—saw in the Latino community two-thirds, 66 percent, of the wealth across our Nation within the Latino community went away.

I hope that my colleagues will help us in building back to homeownership for all of our communities in America.

60TH ANNIVERSARY OF MONTGOMERY BUS BOYCOTT

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Alabama (Ms. SEWELL) for 5 minutes.

Ms. SEWELL of Alabama. Mr. Speaker, today I rise in recognition and acknowledgement of Restoration Tuesday and to recognize the 60th anniversary of the Montgomery Bus Boycott. There has been, Mr. Speaker, a renewed and relentless assault on our sacred right to vote in the aftermath of the Supreme Court's ruling in Shelby County v. Holder.

Since elections are held on Tuesdays, my colleagues in the Democratic House caucus and I have declared that every Tuesday that the House is in session shall be declared as Restoration Tuesday. So I stand before you and this august body today in hopes of giving a voice to those who have been excluded from our political process. My hope is that all the Members, Members from both sides of the aisle, will join me and over 140 Members of this august body in supporting the Voting Rights Advancement Act.

This Voting Rights Advancement Act not only restores the Voting Rights Act of 1965, but it advances it. It gives more protection to more people in more States and is, indeed, what our Founding Fathers would have wanted when they declared that our electoral process would be fair.

I think that the events of last week—we celebrated the 60th anniversary of the Montgomery Bus Boycott in my district, in Montgomery, Alabama, last week. The Montgomery Bus Boycott—the 381 days when people refused to sit and use the buses in Montgomery, breaking desegregation of the bus systems in Montgomery—it stands forever as a powerful testimony of the will of disenfranchised people to work collectively to achieve extraordinary social change.

Sixty years ago, Mr. Speaker, Rosa Parks refused to give up her seat on a segregated bus, and her bold stand against racial discrimination sparked a city-wide boycott. I was in Montgomery to commemorate that occasion, along with several Members of this House. I want to thank Congressman BUTTERFIELD and Congresswoman CORRINE BROWN for joining me last week in that celebration, along with Congressman JOHN LEWIS, who forever stands as a beacon, a reminder of what it takes to show strength in the face of discrimination.

Mr. Speaker, I say to all of my colleagues, what will we do to progress this wonderful legacy of social change and democracy? So many average, ordinary Americans have stood up for that proposition in the face of tremendous adversity.

So it is my hope that on this Restoration Tuesday, we will remember their legacy, the legacy of Americans who stand up for social change, and we will do what we know is right to restore the Voting Rights Act of 1965. We can do that today, Mr. Speaker, by joining with all of the 140 or so Members of Congress who have already signed on to the Voting Rights Advancement Act; by remembering that on Tuesdays across this country, people go to vote, and they should do so without barriers, knowing that their polling stations will not be changed, knowing that if they are disabled, they will still be able to get into the ballot box in order to vote. It is so important that we all recognize that modern day barriers still exists to voting, Mr. Speaker.

Mere words are not enough to restore the vote to millions of Americans who have wrongly been shut out of the Democratic process. The voice of those excluded cannot be unheard. The Voting Rights Advancement Act that I introduced alongside Representatives JUDY CHU and LINDA SÁNCHEZ contains a modern-day formula that will determine jurisdictions which should have Federal protections, Federal pre-clearance requirements.

I stand here before you to call on Congress to pass this bill to restore the Voting Rights Act of 1965. We cannot return to the days where only some votes matter. Indeed, Mr. Speaker, all voices, all votes matter. Our vote is our voice, and our voices must be heard.

DENY GUN SALES TO SUSPECTED TERRORISTS

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from New York (Mrs. LOWEY) for 5 minutes.

Mrs. LOWEY. Mr. Speaker, Federal law prohibits nine categories of dangerous individuals from purchasing a firearm. This includes convicted felons, domestic abusers, and the seriously mentally ill. Yet, while we prevent those on the terrorist watch list from boarding planes, they are welcome in gun stores.

The Government Accountability Office found that between 2004 and 2014, individuals on terrorist watch lists tried to purchase guns or explosives 2,233 times. Of those attempts, 2,043, an astounding 91 percent, were approved.

Terrorists are knowingly exploiting this gap. In fact, in 2011, Adam Gadahn, an American-born member of al Qaeda, issued a video urging violent followers to exploit weaknesses in U.S. gun laws.

Adam Gadahn was not alone. In 2009, Daniel Patrick Boyd was arrested and charged with conspiring to murder U.S. military personnel at the Marine Corps base in Quantico, Virginia. Boyd, who was under investigation by the FBI Joint Terrorism Task Force, had amassed an arsenal of assault rifles and had even traveled to the Middle East to meet with militants to plan future attacks.

It is impossible to hear these facts and not think of the recent horrific attacks in Paris. France has extremely strict gun laws, so it is likely that the terrorists in question turned to black market sources for the weapons they used. But here in the United States, suspects on the terrorist watch list can legally purchase firearms. It simply doesn't make any sense at all.

That is why I am a proud cosponsor of H.R. 1076, the Denying Firearms and Explosives to Dangerous Terrorists Act. This bill, along with an amendment that I have introduced in the Appropriations Committee, would give

the U.S. Attorney General the authority to block suspects on the terrorist watch list from purchasing firearms.

Given the repeated mass shootings in the United States and the ongoing threat of terrorism, it is hard to believe that four times, Republicans on the Appropriations Committee have said no to closing this dangerous loophole.

In 2011, I introduced my amendment. It was rejected. In 2013, I tried again. It was rejected. Again, in 2014, rejected. Even this year, in 2015, with the tremendous threats we face as a Nation, my amendment was rejected for the fourth time.

Even NRA members agree we should pass this commonsense measure. A 2012 poll found that 76 percent of gun owners, including 71 percent of NRA members, support prohibiting people on terrorist watch lists from purchasing guns. Yet, the NRA's stranglehold on the majority in Congress has prevented my amendment from passing and the bipartisan stand-alone bill from even being considered.

The time has long since come for us to cross the aisle and work together to make our country safer. Let's close this glaring loophole immediately and arm our law enforcement with the ability to deny gun sales to suspected terrorists.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 45 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

God of mercy, we give You thanks for giving us another day.

Send Your spirit down upon the Members of the people's House. Grant them wisdom, insight, and vision, that the work they do will be for the betterment of our Nation during a time of struggle for so many Americans.

Fear of violence on all fronts, tensions between people of different races or religion or cultures—so many things weigh upon the citizens of this country and the representatives who serve them.

Empower the Members of this House to rise above the din of anger and confusion, fear and contention, to face the issues of these times with equanimity and good judgment. Help them to trust one another and work with those with whom they have been at odds in times past.

May we all strive to become our better selves and encourage that growth in one another.

May all that is done this day be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentlewoman from Indiana (Mrs. WALORSKI) come forward and lead the House in the Pledge of Allegiance.

Mrs. WALORSKI led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RESIGNATION AS MEMBER OF COMMITTEE ON THE BUDGET

The SPEAKER laid before the House the following resignation as a member of the Committee on the Budget:

CONGRESS OF THE UNITED STATES,
HOUSE OF REPRESENTATIVES,
Washington, DC, December 4, 2015.

Hon. PAUL D. RYAN,
Office of the Speaker,
Washington, DC.

MR. SPEAKER, In light of my recent appointment as Chairman of the Human Resource Subcommittee on Ways and Means, I hereby resign my position on the House Budget Committee.

Best Regards,
CONGRESSMAN VERN BUCHANAN.

The SPEAKER. Without objection, the resignation is accepted.

There was no objection.

ELECTING A MEMBER TO A CERTAIN STANDING COMMITTEE OF THE HOUSE OF REPRESENTATIVES

Ms. FOXX. Mr. Speaker, by direction of the House Republican Conference, I send to the desk a privileged resolution and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 555

Resolved, That the following named member be, and is hereby, elected to the following standing committee of the House of Representatives:

COMMITTEE ON THE BUDGET: Mr. Renacci.

The SPEAKER. Is there objection to the request of the gentlewoman from North Carolina?

There was no objection.

The resolution was agreed to.

A motion to reconsider was laid on the table.

ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

CONGRATULATING THE ALLEGHANY HIGH SCHOOL LADY TROJAN VARSITY VOLLEYBALL TEAM

(Ms. FOXX asked and was given permission to address the House for 1 minute.)

Ms. FOXX. Mr. Speaker, today I rise to recognize the Alleghany High School volleyball team, which recently won the North Carolina 1A State championship. It is the first NCHSAA State championship in the program's history.

Coach Debbie Weaver led the Lady Trojans on their winning campaign. The nine seniors on the team, including MVP Jade Shepherd, have been playing together since fifth grade, and it showed in their performance. They won three out of four games to defeat the defending State champion Princeton Bulldogs.

Mr. Speaker, I had the opportunity to meet these young ladies at the annual Christmas parade in Sparta. It is clear that everyone in Alleghany County is proud of the teamwork, dedication, and perseverance they exhibited on the way to this great achievement.

I commend these young athletes and congratulate them on a job well done.

ATTACK ON PEARL HARBOR

(Mr. MCDERMOTT asked and was given permission to address the House for 1 minute.)

Mr. MCDERMOTT. Mr. Speaker, one of the darkest days in American history was December 8, 1941. Over 2,400 lives were lost in the attack on Pearl Harbor the previous day. Half our Navy was destroyed, and our allies in Europe were on the verge of collapse. It was a terrifying and uncertain time to be in the world.

The world feels particularly dark these days, too. Things feel more uncertain. And for a country that enjoys the privilege of security, we might be forgiven for this growing anxiety. Fear makes it easy to be nervous and cynical.

We allowed our baser instincts to get the better of us in this country, as we did in 1941. We translated the contagion of xenophobia into national policy with the internment of German and Japanese from my area in internment camps.

We are hearing the same contemptible rhetoric today. It is dishonorable, it is false, and to believe it is to reject the fundamental truth that the American people are ultimately made of finer stuff than fear, blame, and prejudice.

We will get through these troubles, Mr. Speaker. Nothing is above our strength or our endurance as a nation so long as we have the grace and courage to remind ourselves on our darkest

days of our essential values and responsibilities as a free and open people.

RECOGNIZING MILLER'S VETS

(Mrs. WALORSKI asked and was given permission to address the House for 1 minute.)

Mrs. WALORSKI. Mr. Speaker, I rise today to recognize Miller's Vets, an organization in my district committed to supporting homeless veterans, and express my appreciation for the service and sacrifice our veterans have made on behalf of our country.

Miller's Vets was founded by Robert Miller, Sr., a former St. Joseph County Superior Court judge and a retired lieutenant commander in the U.S. Naval Reserve, who began the organization to instill confidence and create opportunities for local veterans.

Veterans in the program participate in various services, including color guard, flag raising, and parade marches. Miller's Vets also created a military honors funeral program comprised of 14 local veterans who have been trained to perform honor guard duty at funerals. This program partners with local funeral homes to provide full military service funerals to certain veterans without family or adequate finances to pay for their expenses.

Simply put, Mr. Speaker, Miller's Vets restores the honor that these men and women deserve. I am grateful to Miller's Vets for their dedication to providing dignity and hope to our bravest and finest.

Mr. Speaker, please join me in honoring Miller's Vets for their tireless dedication to helping and honoring our local veterans.

CLOSING THE TERRORIST GUN LOOPHOLE

(Mr. VEASEY asked and was given permission to address the House for 1 minute.)

Mr. VEASEY. Mr. Speaker, I rise today to express my deep concern for the safety of our country and urge colleagues to act today on sensible gun safety legislation. Time after time, House Republicans have denied any discussion of voting on a measure that will close a dangerous loophole that currently allows suspects on the FBI's terrorist watch list to buy guns. Last week alone, House Republicans voted not one time, not two, but three times to block debate on the Denying Firearms and Explosives to Terrorists Act.

According to a report by the Government Accountability Office, since 2004, more than 2,000 suspects on the FBI's terrorist watch list have successfully purchased weapons in the United States. More than 90 percent of all suspected terrorists who attempted to buy a gun walked away with the weapon of their choice.

Mr. Speaker, this bill is just common sense: if you are too dangerous to fly, then you are too dangerous to buy a gun. We must do all that we can to prevent senseless acts of violence in our communities and bring this legislation to a vote today.

RECOGNIZING ONE OF MINNESOTA'S FINEST FAMILIES

(Mr. EMMER of Minnesota asked and was given permission to address the House for 1 minute.)

Mr. EMMER of Minnesota. Mr. Speaker, I rise today to recognize the 74th anniversary of Pearl Harbor and to honor all Minnesotans and all Americans who served in World War II. I would like to recognize the service of one Minnesota family in particular.

In 1885, Carl Nolte moved to Martin County, Minnesota, with his wife, Louise. They had 12 children and numerous grandchildren. An impressive 36 members of the Nolte family joined the Armed Forces and served in World War II. Fortunately, all 36 family members survived the war. However, two were wounded during their service.

It is often said that those who served in World War II belong to the Greatest Generation. I believe that the heroism and the dedication that this family demonstrated proves this to be true.

Mr. Speaker, I would like to thank this Minnesota family for their service to our Nation, and I would also like to wish one of them a very happy birthday. This week Loren Wessel of Truman, Minnesota, turns 96 years old. Happy birthday, Loren.

DENYING FIREARMS AND EXPLOSIVES TO DANGEROUS TERRORISTS ACT

(Mr. KILDEE asked and was given permission to address the House for 1 minute.)

Mr. KILDEE. Mr. Speaker, last week, House Republicans voted three times to block debate on Republican Congressman PETER KING's Denying Firearms and Explosives to Dangerous Terrorists Act, which would close the outrageous loophole that allows suspects who are on the FBI's terrorist watch list to purchase weapons.

Mr. Speaker, 2,000 suspects on the FBI's watch list tried to buy weapons in the U.S. in the last 11 years, and 91 percent of them walked away with a weapon.

Democrats remain committed to blocking dangerous people from having guns. Eighty percent of gun owners support this. It is a bipartisan effort. PETER KING from the Republican Conference wrote this legislation, yet Republicans and the leadership blocked a chance for us to have a simple yes-or-no vote on what most Americans think would be logical, commonsense ways to keep us safe.

Seriously? Terrorist watch list? Buy a gun of your choice whenever you want? We are better than that. This Congress needs to act. I urge my colleagues to join me in stopping this nonsense.

HONORING THE LIFE AND LEGACY OF CHANCELLOR EUGENE McKAY OF ARKANSAS STATE UNIVERSITY

(Mr. HILL asked and was given permission to address the House for 1 minute.)

Mr. HILL. Mr. Speaker, I rise to honor the life and legacy of one of Arkansas' great educators, Chancellor Eugene McKay of Arkansas State University at Beebe. He will be retiring in January after 50 years of service to our State's educational system, particularly in helping assure a ready, skilled workforce.

Chancellor McKay has displayed an unrelenting commitment to education in Arkansas that has been a beacon for quality higher education at Arkansas State University.

First as a professor and then as the chancellor, Dr. McKay was responsible for the university's recognition of having the highest student success rate in Arkansas among both 2- and 4-year institutions.

He has been honored for this work as an educator by the Beebe Chamber of Commerce, that also presented him their lifetime achievement award.

Chancellor McKay made an indelible impact on the lives of Arkansans, faculty, alumni, students, and all of our communities. We will miss him. I extend him my warmest regards and best wishes for his retirement.

JAMES ZADROGA 9/11 HEALTH AND COMPENSATION ACT RENEWAL

(Mrs. CAROLYN B. MALONEY of New York asked and was given permission to address the House for 1 minute.)

Mrs. CAROLYN B. MALONEY of New York. Mr. Speaker, you have told us over and over again that the James Zadroga 9/11 Health and Compensation Act will be passed in this year.

Well, the clock is running out. The time is here to live up to our pledge that ''we will never forget.'' We lost 3,000 innocent people on 9/11, but thousands more lost their health care and are sick and dying. They are coming to this Congress praying for their health care.

It is a national disgrace that we have not responded to our responders. Yet everyone agrees. Leaders on both sides of the aisle have pledged to do this before the end of the year. Yet, even when we all agree, we still seem to do nothing. As Jon Stewart so succinctly put it: Congress has become the last responders.

It is time for the last responders to respond to the first responders and give them the health care and support they so justly deserve.

CONGRATULATING CATHOLIC HIGH SCHOOL AND COACH DALE WEINER

(Mr. GRAVES of Louisiana asked and was given permission to address the House for 1 minute.)

Mr. GRAVES of Louisiana. Madam Speaker, on Friday evening this past Friday, the 5A Division 1 playoffs occurred in high school football in Louisiana, and my high school alma mater of Catholic High in Baton Rouge played against our distinguished majority whip's Catholic high school, the Archbishop Rummel High School.

This was a great game, Madam Speaker, where it went on to the fourth quarter where things were tied up with only a few seconds left with both sides praying, I am sure. We had a little bit of intervention here. And while there is a chance, Madam Speaker, that this poster was fabricated, I assure you that the win that Catholic High had over Archbishop Rummel was very, very real, and the values that each of these schools instill upon their students is also very real.

I want to congratulate Coach Dale Weiner, Catholic High School Bears out of Baton Rouge, and Coach Weiner's over 300 wins in high school football.

□ 1215

RENEW THE ASSAULT WEAPONS BAN

(Mr. CICILLINE asked and was given permission to address the House for 1 minute.)

Mr. CICILLINE. Madam Speaker, just hours before last week's shooting, I stood in this very same spot and called on Congress to renew the assault weapons ban, which expired in 2004.

Shortly after the shooting in San Bernadino, we learned that one of the weapons used was an AR–15, capable of unloading 800 rounds per minute or 13 rounds per second. Just a week earlier, a gunman in Colorado Springs used an AK–47-style weapon.

We need to get these weapons of war out of the hands of terrorists and criminals. It is easy to say criminals and terrorists will always find a way to get a gun, but certainly we don't need to make it easier for these individuals to get guns capable of killing dozens of innocent people within seconds.

There are simple steps we can take today to address this issue without denying a person's Second Amendment rights. We can start by making sure someone convicted of a violent crime can't buy a gun by exploiting a loophole and prevent someone on the terrorist watch list from buying a gun. If you are too dangerous to get on a plane, you are too dangerous to walk into a gun store and buy an assault weapon or any other gun.

We need to start somewhere to address this epidemic if we have any hope of reducing gun violence in this country. Getting assault weapons out of the hands of criminals and potential terrorists is a good place to start.

COMPUTER SCIENCE EDUCATION WEEK

(Mrs. BROOKS of Indiana asked and was given permission to address the House for 1 minute.)

Mrs. BROOKS of Indiana. Mr. Speaker, I rise today in recognition of national Computer Science Education Week. Established in 2009 to coincide with the birthday of one of the first women in the field of computer science, Grace Murray Hopper, Computer Science Education Week provides a unique opportunity to connect students with opportunities in the computing fields. The Bureau of Labor Statistics predicts that in the year 2020, there will be roughly 10 million jobs in STEM fields. Of those, half are expected to be in computing and information technology.

Despite these opportunities, there is a substantial shortage of individuals with skills needed to fill computing jobs. The more we can expose and engage our students in computer science programs, the better prepared they will be for the jobs in the 21st century.

This week, Representative SUZAN DELBENE of Washington, my co-chair on the Congressional Women's High Tech Caucus, and I introduced House Resolution 554 to encourage schools, parents, and our colleagues to support computer science education, participate in an Hour of Code event this week, and join this national movement in computer science education.

GUN VIOLENCE AND THE TERRORIST WATCH LIST

(Ms. HAHN asked and was given permission to address the House for 1 minute.)

Ms. HAHN. Mr. Speaker, mass shootings have become daily occurrences in this country. There were 355 mass shootings in the first 336 days of this year.

Americans are understandably shaken. As Members of Congress, it is our responsibility to enact policies to protect and defend them.

It is unbelievable that an individual on the terrorist watch list can walk into any gun shop and buy the firearm of their choice. That is completely legal right now, and law enforcement has no ability to stop it.

We all know that our weak gun laws in this country have failed for decades to protect innocent lives. We have a long way to go in reversing the deadly damage done by the lobbying efforts of the NRA, but this is a good place to start.

Closing this glaring loophole is common sense. It is not a cure-all for all gun violence in this Nation, but it is a step in the right direction.

I am calling on Speaker PAUL RYAN to bring H.R. 1076, the Denying Firearms and Explosives to Dangerous Terrorists Act of 2015, up for a vote immediately.

The American people are calling us to do something, and we can start now.

VENEZUELA ELECTIONS

(Ms. ROS-LEHTINEN asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. ROS-LEHTINEN. Mr. Speaker, I rise today to congratulate the people of Venezuela on their democratic victory this weekend.

Voters at the polls sent a clear message to the corrupt Maduro regime: We reject your policies and support a return to true democracy, as well as an end to an economic system that has bankrupted an otherwise wealthy nation.

Despite lopsided electoral conditions, state-imposed censorship, and intimidation tactics, the democratic opposition overcame many obstacles to gain control of the National Assembly. But there is still much work that remains to be done. All political prisoners must be freed, including pro-democracy leader Leopoldo Lopez.

There are still a few contestant seats without a winner announced that are very important to the final outcome of the election.

I urge a speedy and transparent declaration of the winners and a full adjudication process for any disputed contests that can occur in certain races.

Congratulations to the people of Venezuela for a great victory.

CLOSE THE TERRORIST GUN LOOPHOLE

(Mr. GALLEGO asked and was given permission to address the House for 1 minute.)

Mr. GALLEGO. Mr. Speaker, we shouldn't allow terrorists who want to kill innocent Americans to have easy access to guns. It is just that simple, and that is just common sense.

Yet, any individual on the no-fly list considered too dangerous to get on a plane can walk into any gun store in America and walk out with a weapon of their choice.

We are facing an epidemic of gun violence in this country, yet House Republican leadership is unwilling to even close the most dangerous loophole like this one that exists today.

Speaker RYAN has said that ''keeping America safe should not be a partisan issue.'' I strongly agree. We should set politics aside and do what is right for the American people by passing commonsense gun laws and stopping senseless acts of violence in our communities.

The cost of inaction in Congress is borne by thousands of mourning families here in America.

It is time for Congress to step up and take meaningful action by closing the terrorist gun loophole and keeping dangerous people from buying guns.

GOLDEN SPOON

(Mr. BILIRAKIS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BILIRAKIS. Mr. Speaker, I rise today to recognize two outstanding

local businesses in my district recently recognized in Florida Trend magazine.

Local spots all over Florida help boost our economy and strengthen our communities.

Two weeks ago, we celebrated Small Business Saturday and encouraged people to support small, local businesses. It is important we continue to shop small and keep our local communities growing.

Two local establishments in my district recently received Florida Trend's Golden Spoon Awards and rank among the State's best restaurants. I would like to congratulate Dulcet Restaurant and Lounge in New Port Richey and Pearl in the Grove in Dade City.

These awards are very well deserved. I am grateful to have such outstanding businesses in my home district, and I will continue my efforts to help small businesses thrive.

PLANNED PARENTHOOD RESOLUTION

(Ms. SLAUGHTER asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. SLAUGHTER. Mr. Speaker, I rise today as co-chair of the House Pro-Choice Caucus in strong support of the caucus' resolution condemning violence toward women.

This month, our Nation has seen unspeakable violence, including in a Planned Parenthood health center in Colorado and the awful things that happened in San Bernardino, California. I condemn this violence in the strongest possible way.

We get so used to it, don't we? Eighty-nine Americans are shot to death every day, over 300 mass killings already this year in this country, and we get up on the floor of the House and we go through our piety and we ask for a moment of silence. That is all we can give. We are not going to give any more relief to the people of the United States from gun culture, but take a moment of silence. Those of us who sit in this Chamber who can do something about it steadfastly refuse to do so.

For heaven's sake, many countries in this world don't have 89 killings in a month, much less every day.

No American should feel intimidated or threatened because of choosing to access health care. Violence is unconscionable and we have to stop it.

RECOGNIZING EDITH LANIER

(Mr. CARTER of Georgia asked and was given permission to address the House for 1 minute.)

Mr. CARTER of Georgia. Mr. Speaker, I rise today to recognize Edith Lanier.

Christmas came early this weekend for four disabled veterans. It came in the form of new wheelchairs. These were not just any wheelchairs. These were four custom sport wheelchairs. These more-than-deserving veterans were given these wheelchairs by Ms. Edith Lanier.

Ms. Lanier was born in 1925. She tells stories about picking cotton, about milking cows, and pumping water from the well. She attended North Georgia College before moving to Savannah to build a business that she passed along to her daughter after 32 years of service.

Over the last two decades, she has also dedicated her time to philanthropy. She is an asset to the community and closes her prayers with: May we be ever mindful of the needs of others.

It comes as no surprise that the four custom sport wheelchairs were donated by Ms. Lanier.

Oh, by the way, did I mention that this young lady this week will be celebrating her 90th birthday? I commend Ms. Lanier for continued acts of selflessness, her devotion to the needy, and her continued hope for the greatness of this country.

Happy birthday, Ms. Lanier.

PASS LEGISLATION THAT PROHIBITS PEOPLE ON THE TERRORIST WATCH LIST FROM GETTING A WEAPON

(Ms. SCHAKOWSKY asked and was given permission to address the House for 1 minute.)

Ms. SCHAKOWSKY. Mr. Speaker, since 9/11, 750,000 refugees have been resettled and welcomed into the United States of America. Not one of them has ever appeared on a terrorist watch list or been accused of terrorism. Yet, Republicans say that for homeland security, we should keep these refugees from Syria out of our country.

About 40,000 people in the United States of America are on the terrorist watch list right now and they are not allowed to get on an airplane. But they are allowed to go into any gun store and buy any weapon that they would like, a weapon that looks like this, for example. This is a picture of a Smith & Wesson .223-caliber assault rifle. This is the kind of weapon that the suspects fired in San Bernardino. Sixty-five to 75 rifle rounds were sent, and people are dead.

That was the 355th mass shooting in our country just this year. We need to pass legislation that prohibits people on the terrorist watch list from getting a weapon, and we should do it now. Prayers and thoughts are not enough.

CONGRESS WILL ALWAYS PUT THE SAFETY AND SECURITY OF THE AMERICAN PEOPLE FIRST

(Mr. YODER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. YODER. Mr. Speaker, I rise today to address the very real and dangerous threat posed by the Islamic State in Iraq and Syria.

For too long, our Nation has stayed on the sidelines, claiming ISIS was a junior varsity threat or that it had been contained. The unfortunate reality is that America and her allies are under attack by radical Islamic terrorists. Changing the subject or downplaying this threat gives aid and comfort to our enemy, which is bound and determined to strike innocent people around the world in their comfort zones.

As we have seen in Paris or in San Bernardino, these terrorists are emboldened by the President's failed foreign policy. Weakness invites aggression, and only through strength will we have peace.

This is a time for unity of purpose and strong leadership. We need our Commander in Chief to chart a course towards complete destruction of ISIS. Congress should quickly debate and authorize the resources necessary and military force to complete the mission.

Mr. Speaker, we stand ready and willing to work with the President, but Congress will always put the safety and security of the American people first.

VISA WAIVER PROGRAM

(Mr. MOULTON asked and was given permission to address the House for 1 minute.)

Mr. MOULTON. Mr. Speaker, I rise today in support of H.R. 158, a bill that would improve the Visa Waiver Program and ensure better information sharing among intelligence and law enforcement agencies.

This is separate from the Republican proposal introduced last week that would have effectively halted refugee resettlement. Refugees already undergo the most stringent screening process of any individual entering the United States, with an extensive series of background checks.

Refugees are victims, not perpetrators of terrorism. Categorically refusing to take them only feeds the narrative of ISIS.

In contrast, H.R. 158 strengthens the screening of travelers who qualify for the Visa Waiver Program by increasing intelligence and law enforcement cooperation and by making it harder for extremists to falsify their identities and enter our borders.

Rather than betraying our timeless American values by scapegoating refugees, which only plays into ISIS' hands, we should focus on addressing real vulnerabilities to our homeland security.

I urge my colleagues to vote for H.R. 158.

□ 1230

SUPPORTING THE DENYING FIREARMS AND EXPLOSIVES TO DANGEROUS TERRORISTS ACT

(Mrs. CAPPS asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. CAPPS. Mr. Speaker, just last week, another community joined the

growing list of those forever scarred by gun violence just as my community of Isla Vista was. It is far past time for Congress to recognize that it has the power to act, and we must.

At a minimum, we should pass H.R. 1076, the Denying Firearms and Explosives to Dangerous Terrorists Act. This bipartisan bill would close the loophole that allows terror suspects on the FBI's terror watch list to legally purchase a gun. In fact, in the last 11 years, more than 90 percent of all terror suspects who attempted to purchase a gun walked away with the weapon they wanted.

It is wrong to think we can do nothing to stop the violence. It is factually wrong. It is morally wrong. This bill is an important step in keeping the American people safe. We should all support it. It is the least we can do.

TERRORIST WATCH LIST AND GUN PURCHASES

(Mrs. DAVIS of California asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. DAVIS of California. Mr. Speaker, the horrific attack in San Bernardino shows us just how much damage can be done when terrorists have access to firearms; and while we discuss sensible policies that may have prevented this tragedy, I hope we can all agree—certainly, at the very least—that people our government suspects of having terrorist ties should not be allowed to walk into a store, pass a background check, and walk out with a gun.

So many Americans have been understandably amazed to hear that people on the FBI's terrorist watch list can legally purchase firearms and that it has happened over 2,000 times in the last 10 years.

I know that some have concerns about the accuracy of the watch list or worry that this bill may somehow prevent some law enforcement officers from obtaining guns. We should ensure that the watch list is as accurate as possible, and we can even start that today. But if we are concerned for our law enforcement officers, the least we can do is protect them from the threat of terrorists who are armed with guns.

Fixing this loophole is immediate. It is a step we can take to make our country safer. It is a commonsense reform that deserves a vote.

VIOLENCE

(Mr. FARR asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. FARR. Mr. Speaker, I rise today to talk about violence. Republicans may try, but you cannot separate our debate today on women's health clinic violence from our country's gun violence problem.

Since 1993, 11 individuals have lost their lives while seeking or providing health care at women's health care facilities, and 10 of the 11 were victims of gun violence. Since January of this year, the House has voted 10 times to restrict women's health services. That is one vote for every person who died from gun violence at a women's health care clinic; yet there have been zero votes on gun control.

Stop this war on women's health and reproductive care, and start a sane regulatory process on guns.

TERRORIST GUN LOOPHOLE

(Ms. ADAMS asked and was given permission to address the House for 1 minute.)

Ms. ADAMS. Mr. Speaker, it has been said before and it needs to be said again: It is time to get serious about gun violence in America.

Every day, 88 people die because of gun violence. It happens in schools, at work, in our movie theaters, and even in our churches. Making matters worse, in the wake of recent attacks in Paris and here on our own soil, we still have an age-old loophole that allows terrorists to legally get their hands on guns. More than 2,000 suspects on the FBI's terrorist watch list have purchased guns over the last decade.

My colleagues, we have an obligation to protect our communities by keeping guns out of the wrong hands. There are many changes that need to be made, but let's start by closing the gun-buying loophole for terrorists. We have a bipartisan solution in Representative PETER KING's and Representative MIKE THOMPSON's bill to close the loophole.

How many lives must we lose? Let's take a step in the right direction, and let's make sure terrorists can't slip through the cracks and purchase guns. Let's pass Representative KING's and Representative THOMPSON's bill.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Mr. GRAVES of Louisiana). Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on motions to suspend the rules on which a recorded vote or the yeas and nays are ordered, or on which the vote incurs objection under clause 6 of rule XX.

Record votes on postponed questions will be taken later.

MOTION TO ADJOURN

Mr. THOMPSON of California. Mr. Speaker, since the House won't take up legislation to prevent the senseless deaths of 30 people killed today by someone using a gun, I move that the House be adjourned.

The SPEAKER pro tempore. The gentleman has not been recognized for debate.

Does the gentleman wish to offer a motion?

Mr. THOMPSON of California. Mr. Speaker, I move that the House do now adjourn.

The SPEAKER pro tempore. The question is on the motion to adjourn offered by the gentleman from California (Mr. THOMPSON).

The question was taken; and the Speaker announced that the noes appeared to have it.

Mr. THOMPSON of California. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 0, nays 399, not voting 34, as follows:

[Roll No. 674]

NAYS—399

Abraham
Adams
Aderholt
Allen
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□ 1310

Messrs. JEFFRIES, YARMUTH, JOLLY, COSTELLO of Pennsylvania, BILIRAKIS, Ms. CLARKE of New York, and Mr. WHITFIELD changed their votes from ''yea'' to ''nay.''

So the motion to adjourn was rejected.

The result of the vote was announced as above recorded.

Stated against:

Mr. GIBBS. Mr. Speaker, on rollcall No. 674, I was at an off-campus event and delayed in traffic. Had I been present, I would have voted ''no.''

Mr. LARSON of Connecticut. Mr. Speaker, I was not present for rollcall vote 674. If I had been present for this vote, I would have voted: ''nay'' on rollcall vote No. 674.

Mr. SCHIFF. Mr. Speaker, on rollcall No. 674, had I been present, I would have voted ''no.''

FEDERAL LAW ENFORCEMENT TRAINING CENTERS REFORM AND IMPROVEMENT ACT OF 2015

Mr. CARTER of Georgia. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 3842) to improve homeland security, including domestic preparedness and response to terrorism, by reforming Federal Law Enforcement Training Centers to provide training to first responders, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 3842

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Federal Law Enforcement Training Centers Reform and Improvement Act of 2015''.

SEC. 2. FEDERAL LAW ENFORCEMENT TRAINING CENTERS.

(a) ESTABLISHMENT.—Section 884 of the Homeland Security Act of 2002 (6 U.S.C. 464) is amended to read as follows:

''SEC. 884. FEDERAL LAW ENFORCEMENT TRAINING CENTERS.

''(a) ESTABLISHMENT.—The Secretary shall maintain in the Department the Federal Law Enforcement Training Centers (FLETC), headed by a Director, who shall report to the Secretary.

''(b) POSITION.—The Director shall occupy a career-reserved position within the Senior Executive Service.

''(c) FUNCTIONS OF THE DIRECTOR.—The Director shall—

''(1) develop training goals and establish strategic and tactical organizational program plan and priorities;

''(2) provide direction and management for FLETC's training facilities, programs, and support activities while ensuring that organizational program goals and priorities are executed in an effective and efficient manner;

''(3) develop homeland security and law enforcement training curricula, including curricula related to domestic preparedness and response to threats or acts of terrorism, for Federal, State, local, tribal, territorial, and international law enforcement and security agencies and private sector security agencies;

''(4) monitor progress toward strategic and tactical FLETC plans regarding training curricula, including curricula related to domestic preparedness and response to threats or acts of terrorism, and facilities;

''(5) ensure the timely dissemination of homeland security information as necessary to Federal, State, local, tribal, territorial, and international law enforcement and security agencies and the private sector to achieve the training goals for such entities, in accordance with paragraph (1);

''(6) carry out acquisition responsibilities in a manner that—

''(A) fully complies with—

''(i) Federal law;

''(ii) the Federal Acquisition Regulation, including requirements regarding agency obligations to contract only with responsible prospective contractors; and

''(iii) Department acquisition management directives; and

''(B) ensures that a fair proportion of Federal contract and subcontract dollars are awarded to small businesses, maximizes opportunities for small business participation, and ensures, to the extent practicable, that small businesses which achieve qualified vendor status for security-related technologies have an opportunity to compete for contracts for such technologies;

''(7) coordinate and share information with the heads of relevant components and offices on digital learning and training resources, as appropriate;

''(8) advise the Secretary on matters relating to executive level policy and program administration of Federal, State, local, tribal, territorial, and international law enforcement and security training activities and private sector security agency training activities, including training activities related to domestic preparedness and response to threats or acts of terrorism;

''(9) collaborate with the Secretary and relevant officials at other Federal departments and agencies, as appropriate, to improve international instructional development, training, and technical assistance provided by the Federal Government to foreign law enforcement; and

''(10) carry out such other functions as the Secretary determines are appropriate.

''(d) TRAINING RESPONSIBILITIES.—

''(1) IN GENERAL.—The Director is authorized to provide training to employees of Federal agencies who are engaged, directly or indirectly, in homeland security operations or Federal law enforcement activities, including such operations or activities related to domestic preparedness and response to threats or acts of terrorism. In carrying out such training, the Director shall—

''(A) evaluate best practices of law enforcement training methods and curriculum content to maintain state-of-the-art expertise in adult learning methodology;

''(B) provide expertise and technical assistance, including on domestic preparedness and response to threats or acts of terrorism, to Federal, State, local, tribal, territorial, and international law enforcement and security agencies and private sector security agencies; and

''(C) maintain a performance evaluation process for students.

''(2) RELATIONSHIP WITH LAW ENFORCEMENT AGENCIES.—The Director shall consult with relevant law enforcement and security agencies in the development and delivery of FLETC's training programs.

''(3) TRAINING DELIVERY LOCATIONS.—The training required under paragraph (1) may be conducted at FLETC facilities, at appropriate off-site locations, or by distributed learning.

''(4) STRATEGIC PARTNERSHIPS.—

''(A) IN GENERAL.—The Director may—

''(i) execute strategic partnerships with State and local law enforcement to provide such law enforcement with specific training, including maritime law enforcement training; and

''(ii) coordinate with the Under Secretary responsible for overseeing critical infrastructure protection, cybersecurity, and other related programs of the Department and with private sector stakeholders, including critical infrastructure owners and operators, to provide training pertinent to improving coordination, security, and resiliency of critical infrastructure.

''(B) PROVISION OF INFORMATION.—The Director shall provide to the Committee on Homeland Security of the House of Representatives and the Committee on Homeland Security and Governmental Affairs of the Senate, upon request, information on activities undertaken in the previous year pursuant to subparagraph (A).

''(5) FLETC DETAILS TO DHS.—The Director may detail employees of FLETC to positions

throughout the Department in furtherance of improving the effectiveness and quality of training provided by the Department and, as appropriate, the development of critical departmental programs and initiatives.

''(6) DETAIL OF INSTRUCTORS TO FLETC.—Partner organizations that wish to participate in FLETC training programs shall assign non-reimbursable detailed instructors to FLETC for designated time periods to support all training programs at FLETC, as appropriate. The Director shall determine the number of detailed instructors that is proportional to the number of training hours requested by each partner organization scheduled by FLETC for each fiscal year. If a partner organization is unable to provide a proportional number of detailed instructors, such partner organization shall reimburse FLETC for the salary equivalent for such detailed instructors, as appropriate.

''(7) PARTNER ORGANIZATION EXPENSES REQUIREMENTS.—

''(A) IN GENERAL.—Partner organizations shall be responsible for the following expenses:

''(i) Salaries, travel expenses, lodging expenses, and miscellaneous per diem allowances of their personnel attending training courses at FLETC.

''(ii) Salaries and travel expenses of instructors and support personnel involved in conducting advanced training at FLETC for partner organization personnel and the cost of expendable supplies and special equipment for such training, unless such supplies and equipment are common to FLETC-conducted training and have been included in FLETC's budget for the applicable fiscal year.

''(B) EXCESS BASIC AND ADVANCED FEDERAL TRAINING.—All hours of advanced training and hours of basic training provided in excess of the training for which appropriations were made available shall be paid by the partner organizations and provided to FLETC on a reimbursable basis in accordance with section 4104 of title 5, United States Code.

''(8) PROVISION OF NON-FEDERAL TRAINING.—

''(A) IN GENERAL.—The Director is authorized to charge and retain fees that would pay for its actual costs of the training for the following:

''(i) State, local, tribal, and territorial law enforcement personnel.

''(ii) Foreign law enforcement officials, including provision of such training at the International Law Enforcement Academies wherever established.

''(iii) Private sector security officers, participants in the Federal Flight Deck Officer program under section 44921 of title 49, United States Code, and other appropriate private sector individuals.

''(B) WAIVER.—The Director may waive the requirement for reimbursement of any cost under this section and shall maintain records regarding the reasons for any requirements so waived.

''(9) REIMBURSEMENT.—The Director is authorized to reimburse travel or other expenses for non-Federal personnel who attend activities related to training sponsored by FLETC, at travel and per diem rates established by the General Services Administration.

''(10) STUDENT SUPPORT.—In furtherance of its training mission, the Director is authorized to provide the following support to students:

''(A) Athletic and related activities.

''(B) Short-term medical services.

''(C) Chaplain services.

''(11) AUTHORITY TO HIRE FEDERAL ANNUITANTS.—

''(A) IN GENERAL.—Notwithstanding any other provision of law, the Director is authorized to appoint and maintain, as necessary, Federal annuitants who have expert knowledge and experience to meet the training responsibilities under this subsection.

''(B) NO REDUCTION IN RETIREMENT PAY.—A Federal annuitant employed pursuant to this paragraph shall not be subject to any reduction in pay for annuity allocable to the period of actual employment under the provisions of section 8344 or 8468 of title 5, United States Code, or similar provision of any other retirement system for employees.

''(C) RE-EMPLOYED ANNUITANTS.—A Federal annuitant employed pursuant to this paragraph shall not be considered an employee for purposes of subchapter III of chapter 83 or chapter 84 of title 5, United States Code, or such other retirement system (referred to in subparagraph (B)) as may apply.

''(D) COUNTING.—Federal annuitants shall be counted on a full time equivalent basis.

''(E) LIMITATION.—No appointment under this paragraph may be made which would result in the displacement of any employee.

''(12) TRAVEL FOR INTERMITTENT EMPLOYEES.—The Director is authorized to reimburse intermittent Federal employees traveling from outside a commuting distance (to be predetermined by the Director) for travel expenses and to compensate such employees for time spent traveling from their homes to work sites.

''(e) ON-FLETC HOUSING.—Notwithstanding any other provision of law, individuals attending training at any FLETC facility shall, to the extent practicable and in accordance with FLETC policy, reside in on-FLETC or FLETC-provided housing.

''(f) ADDITIONAL FISCAL AUTHORITIES.—In order to further the goals and objectives of FLETC, the Director is authorized to—

''(1) expend funds for public awareness and to enhance community support of law enforcement training, including the advertisement of available law enforcement training programs;

''(2) accept and use gifts of property, both real and personal, and to accept gifts of services, for purposes that promote the functions of the Director pursuant to subsection (c) and the training responsibilities of the Director under subsection (d);

''(3) accept reimbursement from other Federal agencies for the construction or renovation of training and support facilities and the use of equipment and technology on government owned-property;

''(4) obligate funds in anticipation of reimbursements from agencies receiving training at FLETC, except that total obligations at the end of a fiscal year may not exceed total budgetary resources available at the end of such fiscal year;

''(5) in accordance with the purchasing authority provided under section 505 of the Department of Homeland Security Appropriations Act, 2004 (Public Law 108–90; 6 U.S.C. 453a)—

''(A) purchase employee and student uniforms; and

''(B) purchase and lease passenger motor vehicles, including vehicles for police-type use;

''(6) provide room and board for student interns; and

''(7) expend funds each fiscal year to honor and memorialize FLETC graduates who have died in the line of duty.

''(g) DEFINITIONS.—In this section:

''(1) BASIC TRAINING.—The term 'basic training' means the entry-level training required to instill in new Federal law enforcement personnel fundamental knowledge of criminal laws, law enforcement and investigative techniques, laws and rules of evidence, rules of criminal procedure, constitutional rights, search and seizure, and related issues.

''(2) DETAILED INSTRUCTORS.—The term 'detailed instructors' means personnel who are assigned to the Federal Law Enforcement Training Centers for a period of time to serve as instructors for the purpose of conducting basic and advanced training.

''(3) DIRECTOR.—The term 'Director' means the Director of the Federal Law Enforcement Training Centers.

''(4) DISTRIBUTED LEARNING.—The term 'distributed learning' means education in which students take academic courses by accessing information and communicating with the instructor, from various locations, on an individual basis, over a computer network or via other technologies.

''(5) EMPLOYEE.—The term 'employee' has the meaning given such term in section 2105 of title 5, United States Code.

''(6) FEDERAL AGENCY.—The term 'Federal agency' means—

''(A) an Executive Department as defined in section 101 of title 5, United States Code;

''(B) an independent establishment as defined in section 104 of title 5, United States Code;

''(C) a Government corporation as defined in section 9101 of title 31, United States Code;

''(D) the Government Printing Office;

''(E) the United States Capitol Police;

''(F) the United States Supreme Court Police; and

''(G) Government agencies with law enforcement related duties.

''(7) LAW ENFORCEMENT PERSONNEL.—The term 'law enforcement personnel' means an individual, including criminal investigators (commonly known as 'agents') and uniformed police (commonly known as 'officers'), who has statutory authority to search, seize, make arrests, or to carry firearms.

''(8) LOCAL.—The term 'local' means—

''(A) of or pertaining to any county, parish, municipality, city, town, township, rural community, unincorporated town or village, local public authority, educational institution, special district, intrastate district, council of governments (regardless of whether the council of governments is incorporated as a nonprofit corporation under State law), regional or interstate government entity, any agency or instrumentality of a local government, or any other political subdivision of a State; and

''(B) an Indian tribe or authorized tribal organization, or in Alaska a Native village or Alaska Regional Native Corporation.

''(9) PARTNER ORGANIZATION.—The term 'partner organization' means any Federal agency participating in FLETC's training programs under a formal memorandum of understanding.

''(10) STATE.—The term 'State' means any State of the United States, the District of Columbia, the Commonwealth of Puerto Rico, the Virgin Islands, Guam, American Samoa, the Commonwealth of the Northern Mariana Islands, and any possession of the United States.

''(11) STUDENT INTERN.—The term 'student intern' means any eligible baccalaureate or graduate degree student participating in FLETC's College Intern Program.

''(h) PROHIBITION ON NEW FUNDING.—No funds are authorized to carry out this section. This section shall be carried out using amounts otherwise appropriated or made available for such purpose.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1(b) of the Homeland Security Act of 2002 is amended by amending the item relating to section 884 to read as follows:

''Sec. 884. Federal Law Enforcement Training Centers.''.

The SPEAKER pro tempore (Mr. KELLY of Mississippi). Pursuant to the rule, the gentleman from Georgia (Mr. CARTER) and the gentlewoman from California (Mrs. TORRES) each will control 20 minutes.

The Chair recognizes the gentleman from Georgia.

GENERAL LEAVE

Mr. CARTER of Georgia. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days within which to revise and extend their remarks and include any extraneous material on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Georgia?

There was no objection.

Mr. CARTER of Georgia. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in strong support of H.R. 3842, the Federal Law Enforcement Training Centers Reform and Improvement Act of 2015. This important bipartisan legislation reforms and improves the Federal Law Enforcement Training Centers, FLETC, in the Department of Homeland Security.

Established in 1970, FLETC aimed at providing basic and advanced training to Federal law enforcement personnel.

FLETC now serves as an interagency law enforcement training organization for Federal, State, local, rural, tribal, territorial, and international law enforcement personnel with over 90 partner organizations.

Since 2003 and FLETC's transfer from the Treasury Department, no legislation has been introduced to reauthorize FLETC within the Department of Homeland Security.

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H.R. 3842 amends section 884 of the Homeland Security Act of 2002 to improve domestic preparedness, prevention, and response to terrorism by establishing FLETC to provide consolidated and shared training to law enforcement agencies and partner organizations.

H.R. 3842 strengthens the role of the Director of FLETC and improves training practices by codifying important authorities, including, but not limited to, listing functions and training responsibilities to be carried out by the Director, FLETC, and partner organizations.

With daily threats nationwide, this legislation supports FLETC's mission of providing world-class, expert training that can quickly adapt to emerging threats and training needs.

I wish to thank my colleague, Mrs. TORRES, for her hard work and collaboration on this bill. I also appreciate Chairmen GOODLATTE and SHUSTER for their cooperation.

I urge all Members to join me in supporting this legislation.

Mr. Speaker, I reserve the balance of my time.

COMMITTEE ON TRANSPORTATION AND INFRASTRUCTURE, HOUSE OF REPRESENTATIVES,
Washington, DC, December 8, 2015.

Hon. MICHAEL T. MCCAUL,
Chairman, Committee on Homeland Security, Washington, DC.

DEAR CHAIRMAN MCCAUL: I write concerning H.R. 3842, the ''Federal Law Enforcement Training Centers Reform and Improvement Act of 2015''. This legislation includes matters that I believe fall within the Rule X jurisdiction of the Committee on Transportation and Infrastructure.

In order to expedite Floor consideration of H.R. 3842, the Committee on Transportation and Infrastructure agrees to forgo action on this bill. However, this is conditional on our mutual understanding that forgoing consideration of the bill would not prejudice the Committee with respect to the appointment of conferees or to any future jurisdictional claim over the subject matters contained in the bill or similar legislation that fall within the Committee's Rule X jurisdiction.

I request that you please place a copy of this letter and your response acknowledging our jurisdictional interest into the Congressional Record.

Sincerely,

BILL SHUSTER,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON HOMELAND SECURITY,
Washington, DC, December 8, 2015.

Hon. BILL SHUSTER,
Chairman, Transportation and Infrastructure Committee, Washington, DC.

DEAR CHAIRMAN SHUSTER, Thank you for your interest in H.R. 3842, the ''Federal Law Enforcement Training Centers Reform and Improvement Act of 2015.'' I appreciate your cooperation in allowing the bill to move expeditiously under suspension of the House Rules on December 8, 2015. Because your assertion of jurisdictional interest was raised after the report for H.R. 3842 was filed, the Parliamentarians were not able render an official decision as to any jurisdictional claim the Transportation and Infrastructure Committee may have had.

I agree that the absence of a decision on this bill will not prejudice any claim the Transportation and Infrastructure Committee may have had, or may have with respect to similar measures in the future.

A copy of this letter will be entered into the Congressional Record.

Sincerely,

MICHAEL T. MCCAUL,
Chairman.

Mrs. TORRES. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 3842, the Federal Law Enforcement Training Centers Reform and Improvement Act of 2015.

Mr. Speaker, H.R. 3842 amends the Homeland Security Act of 2002 to provide specific authorities for the Director of the Federal Law Enforcement Training Centers, or FLETC. I am proud to join Mr. CARTER in introducing this very important legislation.

FLETC, established in 1975 and transitioned from the Treasury Department to the Department of Homeland Security in 2002, provides Federal and other law enforcement agencies with high-quality, cost-effective training. Training is carried out by a group of experienced instructors who use modern facilities and standardized course content at locations in Georgia, Maryland, New Mexico, and South Carolina.

FLETC also has a unique relationship with the Maritime Law Enforcement Training Center at the Port of Los Angeles, where together they have developed comprehensive maritime security training for State and local agencies. Together, this partnership between FLETC and the Port of Los Angeles helps ensure our local law enforcement get the training they need to protect America's critical ports and waterways, particularly important at a port that accounts for more than 40 percent of the goods that enter the United States.

H.R. 3842 was reported favorably from the Homeland Security Committee with bipartisan approval last month.

Mr. Speaker, I am pleased to note that, during the committee's November 4 markup of H.R. 3842, members unanimously adopted three Democratic amendments to the bill.

The first amendment underscores FLETC's responsibility to conduct acquisition activities in accordance with existing law and regulation, which include both a requirement that FLETC's Director evaluate contractors' integrity and business ethics in performance of previous contracts and vests FLETC's Director with the responsibility of ensuring that a fair proportion of contracting dollars are awarded to small businesses.

The second amendment authorizes strategic partnerships between FLETC and local law enforcement agencies, including the existing partnership between FLETC and the Maritime Law Enforcement Training Center operated by the Port of Los Angeles.

This amendment also authorizes FLETC to work with the DHS National Protection and Programs Directorate to make training available to security professionals in the private sector, particularly those involved with protecting critical infrastructure.

The final amendment authorizes FLETC's Director to detail employees to various components in the Department to assist in the development of critical Departmental programs and initiatives.

The urgency to pass this bill has only grown in the last week. Last Wednesday a shooting just outside of my district, in an area I represented as a State senator, in California, San Bernardino County, affirmed that our local law enforcement are our first line of defense in the fight against terror. We must ensure that they have the most up-to-date training as possible.

I know firsthand how important this kind of coordination is between all levels of enforcement. As a 911 dispatcher for nearly 20 years, I can't tell you how important it is to ensure that our first responders have the tools and resources they need to keep us safe.

Earlier this year I held a roundtable meeting with local law enforcement, the FBI, Homeland Security, and other Federal officials to discuss emergency coordination and emerging threats to our communities. As a part of this discussion, our local police stressed the

need for additional resources and better information sharing and training to combat these threats.

During last week's attack, we saw San Bernardino law enforcement respond effectively to protect our community, but there is so much more we can do. If our Nation is to address the threat of future attacks, we must ensure that law enforcement personnel throughout the Nation not only have the tools they need to do so, but also the training, to effectively address the diverse terrorism landscape.

With this in mind, Mr. Speaker, I would commend this bill to the House for consideration.

Mr. Speaker, I reserve the balance of my time.

Mr. CARTER of Georgia. Mr. Speaker, I reserve the balance of my time.

Mrs. TORRES. Mr. Speaker, I yield 5 minutes to the gentleman from Michigan (Mr. KILDEE).

Mr. KILDEE. I thank the gentlewoman for yielding.

Mr. Speaker, this legislation is a Homeland Security bill. We have a number of these bills coming to the floor today. But it is hard to ignore the fact that there is a glaring weakness in what is being brought here to the floor when it comes to protecting the American people.

Right now at this very moment an individual who is on the FBI terrorist watch list could walk into any gun store and purchase the weapon of their choice. The American people understand this makes absolutely no sense.

In the last 11 years, 2,000 people who are on the terrorist watch list have gone in to purchase weapons and 91 percent of them have walked away with the weapon of their choice. Inexplicably, a piece of legislation authorized by Republican Congressman PETER KING is ready for this House to act. It would close this ridiculous loophole.

When I have talked to people back home about this, they expect that this is already law. They almost have to have it pointed out to them that, no, this is actually not the case. A person on the terrorist watch list can go to a gun store and purchase a weapon.

If we are serious about protecting the safety of the American people, it would seem that the commonsense thing to do would be to take up Representative KING's legislation and close this dangerous loophole.

So we are coming to the floor with important bills. I don't deny that. Right now we have in our hands the ability to act to take guns out of the hands of people who are on the terrorist watch list. If you can't be trusted to fly, you certainly shouldn't be trusted to walk in and just get a weapon of your choice.

Because of this body's failure to bring up this important legislation, I as a Member of Congress can't sit idly by.

MOTION TO ADJOURN

Mr. KILDEE. Mr. Speaker, I move that the House do now adjourn.

The SPEAKER pro tempore. The question is on the motion to adjourn offered by the gentleman from Michigan (Mr. KILDEE).

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. KILDEE. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 0, nays 405, answered ''present'' 2, not voting 26, as follows:

[Roll No. 675]

NAYS—405

Abraham
Adams
Aderholt
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Farenthold
Farr
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffith
Grijalva
Grothman
Guinta
Guthrie
Gutiérrez
Hahn
Hanna
Hardy
Harper
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Jolly
Jones
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lee
Levin
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Massie
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Meng
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perry
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Russell
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (IA)
Young (IN)
Zeldin
Zinke

ANSWERED ''PRESENT''—2

Johnson, E. B.
Young (AK)

NOT VOTING—26

Aguilar
Bishop (MI)
Bridenstine
Capuano
Comstock
Davis, Rodney
Donovan
Fattah
Franks (AZ)
Harris
Hartzler
Hastings
Johnson, Sam
Kelly (IL)
King (IA)
Lewis
Loudermilk
Love
Mooney (WV)
Perlmutter
Roskam
Ruppersberger
Rush
Takai
Takano
Wittman

□ 1351

Messrs. WALKER and HUNTER changed their vote from ''yea'' to ''nay.''

Mr. YOUNG of Alaska changed his vote from ''yea'' to ''present.''

So the motion to adjourn was rejected.

The result of the vote was announced as above recorded.

Stated against:

Mr. LOUDERMILK. Mr. Speaker, on rollcall No. 675, I was unavoidably detained. Had I been present, I would have voted "no."

FEDERAL LAW ENFORCEMENT TRAINING CENTERS REFORM AND IMPROVEMENT ACT OF 2015

The SPEAKER pro tempore. The gentleman from Georgia is recognized.

Mr. CARTER of Georgia. Mr. Speaker, I have no more speakers. If the gentlewoman from California has no more speakers, I am prepared to close.

Mrs. TORRES. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, H.R. 3842 is bipartisan at its core. It was introduced by my colleague on the committee, Representative BUDDY CARTER, and me and would ensure that the authorities for the Federal Law Enforcement Training Centers are updated and that the centers' ability to train people who play critical roles in the Nation's homeland security is enhanced.

Mr. Speaker, I urge passage of this bipartisan legislation.

Mr. Speaker, I yield back the balance of my time.

Mr. CARTER of Georgia. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I once again urge my colleagues to support H.R. 3842.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Georgia (Mr. CARTER) that the House suspend the rules and pass the bill, H.R. 3842, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. CARTER of Georgia. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

MOTION TO ADJOURN

Mr. SWALWELL of California. Mr. Speaker, I move that the House do now adjourn.

The SPEAKER pro tempore. The question is on the motion to adjourn offered by the gentleman from California (Mr. SWALWELL).

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. SWALWELL of California. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 3, nays 399, answered ''present'' 2, not voting 29, as follows:

[Roll No. 676]

YEAS—3

Cleaver	DeFazio	Lipinski

NAYS—399

Abraham	Aderholt	Amash
Adams	Allen	Amodei
Ashford	Ellmers (NC)	LaHood
Babin	Emmer (MN)	LaMalfa
Barletta	Engel	Lamborn
Barr	Eshoo	Lance
Barton	Esty	Langevin
Bass	Farenthold	Larsen (WA)
Beatty	Farr	Larson (CT)
Becerra	Fattah	Latta
Benishek	Fincher	Lawrence
Bera	Fitzpatrick	Lee
Beyer	Fleischmann	Levin
Bilirakis	Fleming	Lieu, Ted
Bishop (GA)	Flores	LoBiondo
Bishop (UT)	Forbes	Loebsack
Black	Fortenberry	Lofgren
Blackburn	Foster	Long
Blum	Foxx	Loudermilk
Blumenauer	Frankel (FL)	Love
Bonamici	Frelinghuysen	Lowenthal
Bost	Fudge	Lowey
Boustany	Gabbard	Lucas
Boyle, Brendan F.	Gallego	Luetkemeyer
Brady (PA)	Garamendi	Lujan Grisham (NM)
Brady (TX)	Garrett	Luján, Ben Ray (NM)
Brat	Gibbs	MacArthur
Brooks (AL)	Gibson	Maloney, Carolyn
Brooks (IN)	Gohmert	Maloney, Sean
Brown (FL)	Goodlatte	Marino
Brownley (CA)	Gosar	Massie
Buchanan	Gowdy	Matsui
Buck	Granger	McCarthy
Bucshon	Graves (GA)	McCaul
Burgess	Graves (LA)	McClintock
Bustos	Graves (MO)	McCollum
Butterfield	Grayson	McDermott
Byrne	Green, Al	McGovern
Calvert	Green, Gene	McHenry
Capps	Griffith	McKinley
Capuano	Grijalva	McMorris Rodgers
Carney	Grothman	McNerney
Carson (IN)	Guinta	McSally
Carter (GA)	Guthrie	Meadows
Carter (TX)	Gutiérrez	Meehan
Cartwright	Hahn	Meeks
Castor (FL)	Hanna	Meng
Castro (TX)	Hardy	Messer
Chabot	Harper	Mica
Chaffetz	Harris	Miller (FL)
Chu, Judy	Hartzler	Miller (MI)
Cicilline	Hastings	Moolenaar
Clark (MA)	Heck (NV)	Moore
Clarke (NY)	Heck (WA)	Moulton
Clawson (FL)	Hensarling	Mullin
Clay	Herrera Beutler	Mulvaney
Clyburn	Hice, Jody B.	Murphy (FL)
Coffman	Higgins	Murphy (PA)
Cohen	Hill	Nadler
Cole	Himes	Napolitano
Collins (GA)	Hinojosa	Neal
Collins (NY)	Holding	Neugebauer
Comstock	Honda	Newhouse
Conaway	Hoyer	Noem
Connolly	Hudson	Nolan
Conyers	Huelskamp	Norcross
Cook	Huffman	Nugent
Cooper	Huizenga (MI)	Nunes
Costello (PA)	Hultgren	O'Rourke
Courtney	Hurd (TX)	Olson
Cramer	Hurt (VA)	Palazzo
Crawford	Israel	Pallone
Crenshaw	Issa	Palmer
Crowley	Jackson Lee	Pascrell
Cuellar	Jeffries	Paulsen
Culberson	Jenkins (KS)	Payne
Cummings	Jenkins (WV)	Pearce
Curbelo (FL)	Johnson (GA)	Pelosi
Davis (CA)	Johnson (OH)	Perry
Davis, Rodney	Jolly	Peters
DeGette	Jones	Peterson
Delaney	Jordan	Pingree
DeLauro	Joyce	Pittenger
DelBene	Kaptur	Pitts
Denham	Katko	Pocan
Dent	Keating	Poe (TX)
DeSantis	Kelly (IL)	Poliquin
DeSaulnier	Kelly (MS)	Polis
DesJarlais	Kelly (PA)	Pompeo
Deutch	Kennedy	Posey
Dingell	Kildee	Price (NC)
Doggett	Kilmer	Price, Tom
Dold	Kind	Quigley
Doyle, Michael F.	King (IA)	Rangel
Duckworth	King (NY)	Ratcliffe
Duffy	Kinzinger (IL)	Reed
Duncan (SC)	Kirkpatrick	Reichert
Duncan (TN)	Kline	Renacci
Ellison	Knight	Rice (NY)
	Kuster	Rice (SC)
	Labrador	Richmond
		Rigell
		Roby
		Roe (TN)
		Rogers (AL)
		Rogers (KY)
		Rohrabacher
		Rokita
		Rooney (FL)
		Ros-Lehtinen
		Roskam
		Ross
		Rothfus
		Rouzer
		Roybal-Allard
		Royce
		Ruiz
		Ruppersberger
		Russell
		Ryan (OH)
		Salmon
		Sánchez, Linda T.
		Sanchez, Loretta
		Sanford
		Sarbanes
		Scalise
		Schakowsky
		Schiff
		Schweikert
		Scott (VA)
		Scott, Austin
		Sensenbrenner
		Serrano
		Sessions
		Sewell (AL)
		Sherman
		Shimkus
		Shuster
		Simpson
		Sinema
		Slaughter
		Smith (MO)
		Smith (NE)
		Smith (TX)
		Smith (WA)
		Speier
		Stefanik
		Stewart
		Stivers
		Stutzman
		Swalwell (CA)
		Takano
		Thompson (CA)
		Thompson (MS)
		Thompson (PA)
		Thornberry
		Tiberi
		Titus
		Tonko
		Torres
		Trott
		Tsongas
		Turner
		Upton
		Valadao
		Van Hollen
		Vargas
		Veasey
		Vela
		Velázquez
		Visclosky
		Wagner
		Walberg
		Walden
		Walker
		Walorski
		Walters, Mimi
		Walz
		Wasserman Schultz
		Waters, Maxine
		Watson Coleman
		Weber (TX)
		Webster (FL)
		Welch
		Wenstrup
		Westerman
		Westmoreland
		Whitfield
		Williams
		Wilson (FL)
		Wilson (SC)
		Wittman
		Womack
		Woodall
		Yarmuth
		Yoder
		Yoho
		Young (IA)
		Zeldin

ANSWERED ''PRESENT''—2

Johnson, E. B.	Young (AK)

NOT VOTING—29

Aguilar	Graham	Rush
Bishop (MI)	Hunter	Schrader
Bridenstine	Johnson, Sam	Scott, David
Cárdenas	Lewis	Sires
Costa	Lummis	Smith (NJ)
Davis, Danny	Lynch	Takai
Diaz-Balart	Marchant	Tipton
Donovan	Mooney (WV)	Young (IN)
Edwards	Perlmutter	Zinke
Franks (AZ)	Ribble	

□ 1421

So the motion to adjourn was rejected.

The result of the vote was announced as above recorded.

HSA TECHNICAL CORRECTIONS ACT

Mr. PERRY. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 3859) to make technical corrections to the Homeland Security Act of 2002, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 3859

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''HSA Technical Corrections Act''.

SEC. 2. REFERENCES TO THE HOMELAND SECURITY ACT OF 2002.

Except as otherwise expressly provided, whenever in this Act an amendment or repeal is expressed in terms of an amendment to, or a repeal of, a section or other provision, the reference shall be considered to be made to a section or other provision of the Homeland Security Act of 2002 (Public Law 107–296; 6 U.S.C. 101 et seq.).

SEC. 3. TECHNICAL AMENDMENTS TO THE HOMELAND SECURITY ACT OF 2002.

(a) TABLE OF CONTENTS.—The table of contents in section 1(b) (6 U.S.C. 101 note) is amended as follows:

(1) By striking the items relating to each of the following:

(A) Section 401.
(B) Section 416.
(C) Section 430.
(D) Section 431.
(E) Section 445.
(F) Section 446.
(G) Section 455.
(H) Section 456.
(I) Section 459.
(J) Section 460.
(K) Section 461.
(L) Section 472.
(M) Section 473.
(N) Section 474.
(O) Section 475.
(P) Section 477.
(Q) Section 706.
(R) Section 857.
(S) Section 878.
(T) Section 881.
(U) Section 893.
(V) Section 1204.
(W) Title XIV.
(X) Section 1401.
(Y) Section 1402.
(Z) Section 1403.
(AA) Section 1404.
(BB) Section 1405.
(CC) Section 1406.
(DD) Section 1502.

(2) By striking the items relating to the second section 226 and sections 227 and 228 and inserting the following new items:

''Sec. 227. National Cybersecurity and Communications Integration Center.
''Sec. 228. Cyber incident response plan.
''Sec. 229. Clearances.''.

(3) By striking the item relating to title IV and the item relating to subtitle A of title IV and inserting the following new items:

''TITLE IV—BORDER, MARITIME, AND TRANSPORTATION SECURITY
''SUBTITLE A—BORDER, MARITIME, AND TRANSPORTATION SECURITY RESPONSIBILITIES AND FUNCTIONS''.

(4) By striking the item relating to section 402 and inserting the following new item:

''Sec. 402. Border, maritime, and transportation responsibilities.''.

(5) By striking the item relating to subtitle B of title IV and inserting the following new item:

''Subtitle B—United States Customs and Border Protection''.

(6) By striking the item relating to section 411 and inserting the following new item:

''Sec. 411. Establishment of United States Customs and Border Protection.''.

(7) By striking the item relating to section 441 and inserting the following new item:

''Sec. 441. Transfer of functions.''.

(8) By striking the item relating to section 442 and inserting the following new item:

''Sec. 442. United States Immigration and Customs Enforcement.''.

(9) By striking the item relating to section 451 and inserting the following new item:

''Sec. 451. Establishment of United States Citizenship and Immigration Services.''.

(10) By striking the item relating to section 2103 and inserting the following new item:

''Sec. 2103. Protection and sharing of information.''.

(b) TITLE I.—Title I (6 U.S.C. 111 et seq.) is amended as follows:

(1) In section 102(f)(10) (6 U.S.C. 112(f)(10)), by striking ''Directorate of Border and Transportation Security'' and inserting ''Commissioner of United States Customs and Border Protection''.

(2) In section 103(a)(1) (6 U.S.C. 113(a)(1))—

(A) by striking the enumerator, the paragraph heading, and the matter preceding subparagraph (A) and inserting the following:

''(1) IN GENERAL.—Except as provided under paragraph (2), there are the following officers, appointed by the President, by and with the advice and consent of the Senate:'';

(B) by moving the margins of subparagraphs (A) through (J) two ems to the right;

(C) in subparagraph (C), by striking ''An Under Secretary for Border and Transportation Security'' and inserting ''A Commissioner of United States Customs and Border Protection'';

(D) in subparagraph (E), by striking ''the Bureau of'' and inserting ''United States'';

(E) in subparagraph (G), by striking ''A Director of the Office of Counternarcotics Enforcement'' and inserting ''A Director of United States Immigration and Customs Enforcement'';

(F) by inserting after subparagraph (J) the following new subparagraphs:

''(K) An Administrator of the Transportation Security Administration.

''(L) A Commandant of the Coast Guard.''.

(c) TITLE II.—Title II (6 U.S.C. 121 et seq.) is amended as follows:

(1) In section 202 (6 U.S.C. 122)—

(A) in subsection (c), by striking ''Director of Central Intelligence'' and inserting ''Director of National Intelligence''; and

(B) in subsection (d)(2), by striking ''Director of Central Intelligence'' and inserting ''Director of National Intelligence''.

(2) In section 210E (6 U.S.C. 124l)—

(A) by striking subsection (e); and

(B) by redesignating subsection (f) as subsection (e).

(3) In section 223 (6 U.S.C. 143)—

(A) in paragraph (1)(B)—

(i) by striking ''in coordination with the Under Secretary for Emergency Preparedness and Response,''; and

(ii) by striking ''; and'' and inserting a semicolon; and

(B) in paragraph (2), by striking '', in coordination with the Under Secretary for Emergency Preparedness and Response,''.

(4) In section 225 (6 U.S.C. 145)—

(A) by striking subsection (c); and

(B) by redesignating subsection (d) as subsection (c).

(5) By redesignating sections 227 (6 U.S.C. 149) and 228 (6 U.S.C. 150) as sections 228 and 229, respectively.

(6) By redesignating the second section 226 (6 U.S.C. 148) (relating to ''National Cybersecurity and Communications Integration Center'') as section 227.

(7) In section 228 (6 U.S.C. 149), as redesignated by paragraph (6), by striking ''section 226'' and inserting ''section 227(a)(1)''.

(d) TITLE III.—Section 302 (6 U.S.C. 182) is amended by striking ''biological,,'' both places it appears and inserting ''biological,''.

(e) TITLE IV.—Title IV (6 U.S.C. 201 et seq.) is amended as follows:

(1) By striking the title heading and inserting the following:

''TITLE IV—BORDER, MARITIME, AND TRANSPORTATION SECURITY''.

(2) By striking the heading for subtitle A and inserting the following:

''Subtitle A—Border, Maritime, and Transportation Security Responsibilities and Functions''.

(3) By striking section 401 (6 U.S.C. 201).

(4) In section 402 (6 U.S.C. 202)—

(A) by striking the section heading and inserting the following: ''**BORDER, MARITIME, AND TRANSPORTATION RESPONSIBILITIES.**''; and

(B) in the matter preceding paragraph (1), by striking '', acting through the Under Secretary for Border and Transportation Security,''.

(5) By striking the heading for subtitle B and inserting the following:

''Subtitle B—United States Customs and Border Protection''.

(6) In section 411 (6 U.S.C. 211)—

(A) by striking the section heading and inserting the following: ''**ESTABLISHMENT OF UNITED STATES CUSTOMS AND BORDER PROTECTION.**'';

(B) in subsection (a)—

(i) by striking ''the United States Customs Service'' and inserting ''the United States Customs and Border Protection''; and

(ii) by striking ''the Under Secretary for Border and Transportation Security'' and inserting ''the Secretary''; and

(C) in subsection (b)—

(i) in the subsection heading, by striking ''OF CUSTOMS'';

(ii) in paragraph (1), by striking ''the Customs Service a Commissioner of Customs'' and inserting ''United States Customs and Border Protection a Commissioner''; and

(iii) by striking paragraph (3).

(7) In section 412(b)(1) (6 U.S.C. 212), by striking ''United States Customs Service'' and inserting ''United States Customs and Border Protection''.

(8) In section 413 (6 U.S.C. 213), by striking ''available to the United States Customs Service or''.

(9) In section 414 (6 U.S.C. 214), by striking ''the United States Customs Service'' and inserting ''United States Customs and Border Protection''.

(10) By striking section 416 (6 U.S.C. 216).

(11) In section 418 (6 U.S.C. 218)—

(A) by striking ''(a) CONTINUING REPORTS.—''; and

(B) by striking subsection (b).

(12) In section 423 (6 U.S.C. 233)—

(A) by striking subsection (b); and

(B) by redesignating subsection (c) as subsection (b).

(13) In section 424(a) (6 U.S.C. 234(a)), by striking ''Under Secretary for Border Transportation and Security'' and inserting ''Secretary''.

(14) In section 427 (6 U.S.C. 235), by striking subsection (c).

(15) In section 428 (6 U.S.C. 236)—

(A) in subsection (e), by striking paragraphs (7) and (8);

(B) by striking subsections (g) and (h); and

(C) by redesignating subsection (i) as subsection (g).

(16) By striking section 430 (6 U.S.C. 238).

(17) By striking section 431 (6 U.S.C. 239).

(18) In section 441 (6 U.S.C. 251)—

(A) in the section heading, by striking ''**TO UNDER SECRETARY FOR BORDER AND TRANSPORTATION SECURITY**''; and

(B) in the matter preceding paragraph (1), by striking ''the Under Secretary for Border and Transportation Security'' and inserting ''the Secretary''.

(19) In section 442 (6 U.S.C. 252)—

(A) in the section heading, by striking ''**ESTABLISHMENT OF BUREAU OF BORDER SECURITY**'' and inserting ''**UNITED STATES IMMIGRATION AND CUSTOMS ENFORCEMENT**'';

(B) by striking ''the Bureau of Border Security'' each place it appears and inserting ''United States Immigration and Customs Enforcement'';

(C) by striking ''Bureau of Border Security'' each place it appears and inserting ''United States Immigration and Customs Enforcement'';

(D) by striking ''the Bureau'' each place it appears and inserting ''United States Immigration and Customs Enforcement'';

(E) by striking ''Under Secretary for Border and Transportation Security'' each place it appears and inserting ''Secretary'';

(F) by striking ''the Bureau of Citizenship and Immigration Services'' both places it appears and inserting ''United States Citizenship and Immigration Services'';

(G) in subsection (a)—

(i) in the subsection heading, by striking ''OF BUREAU'';

(ii) in paragraph (1) by striking ''a bureau to be known as the 'Bureau of Border Security'' and inserting ''the Bureau of Border Security'';

(iii) in paragraph (2), in the paragraph heading, by striking ''ASSISTANT SECRETARY'' and inserting ''DIRECTOR''; and

(iv) by striking paragraph (5) and inserting the following:

''(5) MANAGERIAL ROTATION PROGRAM.—Not later than 1 year after the date on which the transfer of functions specified under section 441 takes effect, the Director of United States Immigration and Customs Enforcement shall design and implement a managerial rotation program under which employees of United States Immigration and Customs Enforcement holding positions involving supervisory or managerial responsibility and classified, in accordance with chapter 51 of title 5, United States Code, as a GS–14 or above, shall—

''(A) gain some experience in all the major functions performed by United States Immigration and Customs Enforcement; and

''(B) work in at least one local office of United States Immigration and Customs Enforcement.''; and

(H) by striking ''Assistant Secretary'' each place it appears and inserting ''Director''.

(20) In section 443 (6 U.S.C. 253)—

(A) by striking ''Under Secretary for Border and Transportation Security'' and inserting ''Secretary''; and

(B) by striking ''the Bureau of Border Security'' each place it appears and inserting ''United States Immigration and Customs Enforcement''.

(21) In section 444 (6 U.S.C. 254)—

(A) by striking ''Under Secretary for Border and Transportation Security'' and inserting ''Secretary'';

(B) by striking ''pursuant to policies and procedures applicable to employees of the Federal Bureau of Investigation,''; and

(C) by striking ''the Bureau of Border Security'' and inserting ''United States Customs and Border Protection''.

(22) By striking section 445.

(23) By striking section 446.

(24) In section 451—

(A) in the section heading, by striking ''**BUREAU OF**'' and inserting ''**UNITED STATES**'';

(B) by striking ''the Bureau of Citizenship and Immigration Services'' each place it appears and inserting ''United States Citizenship and Immigration Services'';

(C) by striking ''Bureau of Citizenship and Immigration Services'' each place it appears and inserting ''United States Citizenship and Immigration Services'';

(D) by striking ''the Bureau of Border Security'' each place it appears and inserting ''United States Immigration and Customs Enforcement'';

(E) in subsection (a)—

(i) in the subsection heading, by striking ''OF BUREAU'';

(ii) in paragraph (1)—

(I) by striking ''a bureau to be known as the 'Bureau of Citizenship and Immigration Services'' and inserting ''the Bureau of Citizenship and Immigration Services''; and

(II) by striking ''the 'Bureau of Citizenship and Immigration Services'' and inserting ''the United States Citizenship and Immigration Services'';

(iii) in paragraph (2)(C), by striking ''Assistant Secretary'' and inserting ''Director''; and

(iv) by striking paragraph (4) and inserting the following:

''(4) MANAGERIAL ROTATION PROGRAM.—Not later than 1 year after the effective date specified in section 455, the Director of United States Citizenship and Immigration Services shall design and implement a managerial rotation program under which employees of United States Citizenship and Immigration Services holding positions involving supervisory or managerial responsibility and classified, in accordance with chapter 51 of title 5, United States Code, as a GS–14 or above, shall—

''(A) gain some experience in all the major functions performed by United States Citizenship and Immigration Services; and

''(B) work in at least one field office and one service center of United States Citizenship and Immigration Services.''; and

(F) by striking subsection (g).

(25) In section 452 (6 U.S.C. 272)—

(A) by striking ''the Bureau of'' each place it appears and inserting ''United States''; and

(B) in subsection (f), in the subsection heading, by striking ''BUREAU OF'' and inserting ''UNITED STATES''.

(26) In section 453 (6 U.S.C. 273)—

(A) by striking ''the Bureau of'' each place it appears and inserting ''United States''; and

(B) in subsection (a)(2), by striking ''such bureau'' and inserting ''United States Citizenship and Immigration Services''.

(27) In section 454 (6 U.S.C. 274)—

(A) by striking ''the Bureau of'' each place it appears and inserting ''United States''; and

(B) by striking ''pursuant to policies and procedures applicable to employees of the Federal Bureau of Investigation,''.

(28) By striking section 455 (6 U.S.C. 271 note).

(29) By striking section 456 (6 U.S.C. 275).

(30) By striking section 459 (6 U.S.C. 276).

(31) By striking section 460 (6 U.S.C. 277).

(32) By striking section 461 (6 U.S.C. 278).

(33) In section 462(b)(2)(A) (6 U.S.C. 279(b)(2)(A))—

(A) by striking ''the Bureau of Citizenship and Immigration Services'' and inserting ''United States Citizenship and Immigration Services'';

(B) by striking ''Assistant Secretary'' and inserting ''Director''; and

(C) by striking ''the Bureau of Border Security'' and inserting ''United States Immigration and Customs Enforcement''.

(34) By striking section 472 (6 U.S.C. 292).

(35) By striking section 473 (6 U.S.C. 293).

(36) By striking section 474 (6 U.S.C. 294).

(37) By striking section 475 (6 U.S.C. 295).

(38) In section 476 (6 U.S.C. 296)—

(A) by striking ''the Bureau of Citizenship and Immigration Services'' each place it appears and inserting ''United States Citizenship and Immigration Services''; and

(B) by striking ''the Bureau of Border Security'' each place it appears and inserting ''United States Immigration and Customs Enforcement''.

(39) By striking section 477 (6 U.S.C. 297).

(40) By amending section 478 (6 U.S.C. 298) to read as follows:

''SEC. 478. IMMIGRATION FUNCTIONS.

''(a) IN GENERAL.—One year after the date of the enactment of this Act, and each year thereafter, the Secretary shall submit a report to the President, to the Committees on the Judiciary and Oversight and Government Reform of the House of Representatives, and to the Committees on the Judiciary and Homeland Security and Governmental Affairs of the Senate, on the impact the transfers made by this subtitle has had on immigration functions.

''(b) MATTER INCLUDED.—The report shall address the following with respect to the period covered by the report:

''(1) The aggregate number of all immigration applications and petitions received, and processed, by the Department.

''(2) Region-by-region statistics on the aggregate number of immigration applications and petitions filed by an alien (or filed on behalf of an alien) and denied, disaggregated by category of denial and application or petition type.

''(3) The quantity of backlogged immigration applications and petitions that have been processed, the aggregate number awaiting processing, and a detailed plan for eliminating the backlog.

''(4) The average processing period for immigration applications and petitions, disaggregated by application or petition type.

''(5) The number and types of immigration-related grievances filed with any official of the Department of Justice, and if those grievances were resolved.

''(6) Plans to address grievances and improve immigration services.

''(7) Whether immigration-related fees were used consistent with legal requirements regarding such use.

''(8) Whether immigration-related questions conveyed by customers to the Department (whether conveyed in person, by telephone, or by means of the Internet) were answered effectively and efficiently.''.

(f) TITLE V.—Title V (6 U.S.C. 311 et seq.) is amended as follows:

(1) In section 501(8) (6 U.S.C. 311(8)), by striking ''section 502(a)(6)'' and inserting ''section 504(a)(6)''.

(2) In section 504(a)(3)(B) (6 U.S.C. 314(a)(3)), by striking '', the National Disaster Medical System,''.

(g) TITLE VI.—Section 601 (6 U.S.C. 331) is amended by striking ''Director of Central Intelligence'' each place it appears and inserting ''Director of National Intelligence''.

(h) TITLE VII.—Title VII (6 U.S.C. 341 et seq.) is amended as follows:

(1) In section 701(b)(1) (6 U.S.C. 341(b)(1))—

(A) in subparagraph (A)—

(i) by striking ''the Bureau of Border Security and the Bureau of Citizenship and Immigration Services'' and inserting ''United States Citizenship and Immigration Services and United States Immigration and Customs Enforcement''; and

(ii) by striking ''such bureau'' and inserting ''United States Citizenship and Immigration Services''; and

(B) in subparagraph (B), by striking ''such bureaus'' and inserting ''United States Citizenship and Immigration Services and United States Immigration and Customs Enforcement''.

(2) By striking section 706 (6 U.S.C. 346).

(i) TITLE VIII.—Title VIII (6 U.S.C. 361 et seq.) is amended as follows:

(1) In section 833 (6 U.S.C. 393), by striking subsection (e).

(2) In section 843(b)(1)(B) (6 U.S.C. 413(b)(1)(B)), by striking ''as determined by'' and all that follows through ''; and'' and inserting ''as determined by the Secretary; and''.

(3) By amending section 844 (6 U.S.C. 414) to read as follows:

''SEC. 844. HOMELAND SECURITY ROTATION PROGRAM.

''(a) IN GENERAL.—Not later than 180 days after the date of enactment of this section, the Secretary shall establish the Homeland Security Rotation Program (in this section referred to as the ''Rotation Program'') for employees of the Department. The Rotation Program shall use applicable best practices, including those from the Chief Human Capital Officers Council.

''(b) GOALS.—The Rotation Program established by the Secretary shall—

''(1) be established in accordance with the Human Capital Strategic Plan of the Department;

''(2) provide middle and senior level employees in the Department the opportunity to broaden their knowledge through exposure to other components of the Department;

''(3) expand the knowledge base of the Department by providing for rotational assignments of employees to other components;

''(4) build professional relationships and contacts among the employees in the Department;

''(5) invigorate the workforce with exciting and professionally rewarding opportunities;

''(6) incorporate Department human capital strategic plans and activities, and address critical human capital deficiencies, recruitment and retention efforts, and succession planning within the Federal workforce of the Department; and

''(7) complement and incorporate (but not replace) rotational programs within the Department in effect on the date of enactment of this section.

''(c) ADMINISTRATION.—

''(1) IN GENERAL.—The Chief Human Capital Officer shall administer the Rotation Program.

''(2) RESPONSIBILITIES.—The Chief Human Capital Officer shall—

''(A) provide oversight of the establishment and implementation of the Rotation Program;

''(B) establish a framework that supports the goals of the Rotation Program and promotes cross-disciplinary rotational opportunities;

''(C) establish eligibility for employees to participate in the Rotation Program and select participants from employees who apply;

''(D) establish incentives for employees to participate in the Rotation Program, including promotions and employment preferences;

''(E) ensure that the Rotation Program provides professional education and training;

''(F) ensure that the Rotation Program develops qualified employees and future leaders with broadbased experience throughout the Department;

''(G) provide for greater interaction among employees in components of the Department; and

''(H) coordinate with rotational programs within the Department in effect on the date of enactment of this section.

''(d) ALLOWANCES, PRIVILEGES, AND BENEFITS.—All allowances, privileges, rights, seniority, and other benefits of employees participating in the Rotation Program shall be preserved.''.

(4) By striking section 857 (6 U.S.C. 427).

(5) By striking section 878 (6 U.S.C. 458).

(6) By striking section 881 (6 U.S.C. 461).

(7) In section 882(a)(1) (6 U.S.C. 462(a)(1)), by striking ''Office of the Secretary'' and inserting ''Federal Emergency Management Agency''.

(8) In section 888 (6 U.S.C. 468), by striking subsection (h).

(9) In section 892 (6 U.S.C. 482)—

(A) in subsection (b)(7), by striking ''Director of Central Intelligence'' and inserting ''Director of National Intelligence''; and

(B) in subsection (c)(3)(D), by striking ''Director of Central Intelligence'' and inserting ''Director of National Intelligence''.

(10) By striking section 893 (6 U.S.C. 483).

(j) TITLE IX.—Section 903(a) (6 U.S.C. 493(a)) is amended in the subsection heading by striking ''MEMBERS—'' and inserting ''MEMBERS.—''.

(k) TITLE X.—Section 1001(c)(1) (6 U.S.C. 511(c)(1)) is amended by striking ''Director of Central Intelligence'' and inserting ''Director of National Intelligence''.

(l) TITLE XII.—Title XII is amended by striking section 1204.

(m) TITLE XIV.—Strike title XIV (49 U.S.C. 40101 note et seq.).

(n) TITLE XV.—Title XV (6 U.S.C. 541 et seq.) is amended by striking section 1502.

(o) TITLE XVIII.—Title XVIII (6 U.S.C. 571 et seq.) is amended as follows:

(1) In section 1801(c)(12) (6 U.S.C. 571(c)(12)), by striking ''Assistant Secretary for Grants and Training'' and inserting ''Administrator of the Federal Emergency Management Agency''.

(2) In section 1804(b)(1) (6 U.S.C. 574(b)(1)), in the matter preceding subparagraph (A), by striking ''Assistant Secretary for Grants and Planning'' and inserting ''Administrator of the Federal Emergency Management Agency''.

(p) TITLE XIX.—Section 1902(b)(3) (6 U.S.C. 592(b)(3)) is amended—

(1) in the paragraph heading, by striking ''HAWAIIAN NATIVE-SERVING'' and inserting ''NATIVE HAWAIIAN-SERVING''; and

(2) by striking ''Hawaiian native-serving'' and inserting ''Native Hawaiian-serving''.

(q) TITLE XX.—Title XX (6 U.S.C. 601 et seq.) is amended as follows:

(1) In section 2006(b)(4)—

(A) in subparagraph (D), by inserting ''and'' after the semicolon;

(B) in subparagraph (E), by striking ''; and'' and inserting a period; and

(C) by striking subparagraph (F).

(2) In section 2021 (6 U.S.C. 611)—

(A) by striking subsection (c); and

(B) by redesignating subsection (d) as subsection (c).

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Pennsylvania (Mr. PERRY) and the gentlewoman from Texas (Ms. JACKSON LEE) each will control 20 minutes.

The Chair recognizes the gentleman from Pennsylvania.

GENERAL LEAVE

Mr. PERRY. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days within which to revise and extend their remarks and to include any extraneous material on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Pennsylvania?

There was no objection.

Mr. PERRY. Mr. Speaker, I yield myself such time as I may consume.

I rise today in strong support of H.R. 3859, the HSA Technical Corrections Act.

This important, commonsense legislation amends the Homeland Security Act of 2002, the HSA, by updating obsolete language and by striking outdated offices and reporting requirements.

In the aftermath of September 11, 2001, Congress passed the HSA, the organizing document of the Department of Homeland Security, or DHS, to enhance the ability of the Federal Government to prevent future acts of domestic terrorism.

The passage of this legislation marked one of the most dramatic reorganizations of the Federal Government in decades and introduced a number of new offices and reporting requirements. In the intervening years, agencies have changed; names, roles, and responsibilities have shifted; and a number of reporting requirements have expired. This legislation updates the HSA to ensure it more accurately reflects the mission of DHS, and thereby allows Congress to conduct more effective oversight of the Department.

I urge all Members to join me in supporting this bill.

Mr. Speaker, I reserve the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, I yield myself such time as I may consume.

I rise in support of H.R. 3859, the HSA Technical Corrections Act of 2015.

Let me, first of all, thank the chairperson and ranking member of the Oversight and Government Reform Committee on H.R. 3859 and thank the ranking member, Mr. THOMPSON, and the chairman of the full committee. The American people are looking for homeland security. They are looking for us to be secure.

Before I briefly discuss H.R. 3859, let me applaud the Carter-Torres bill, which was just passed, giving further authority to train law enforcement all over America. As we can see, law enforcement is a part of our first responders on homeland security.

H.R. 3859 is a technical corrections bill. It updates and revises the Homeland Security Act of 2002 by, among other things, eliminating onetime reporting requirements, removing antiquated positions that no longer exist or have evolved, and striking provisions that were inserted in 2002 before the Department of Homeland Security was officially constituted in 2003.

Mr. Speaker, I am pleased to note that during the Homeland Security Committee's November 4 markup of H.R. 3859, members favorably and unanimously reported this bill.

I acknowledge Mr. PERRY for his leadership on these issues as well as the collaboration we have on this committee. With this in mind, I commend this bill for House consideration.

Mr. Speaker, I reserve the balance of my time.

Mr. PERRY. Mr. Speaker, I reserve the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, I yield 5 minutes to the gentlewoman from California (Ms. SPEIER).

Ms. SPEIER. I thank the gentlewoman for yielding.

Mr. Speaker, the gentlewoman just referred to H.R. 3859 as a unanimous bill that came out of Homeland Security. She spoke about how this measure is going to get rid of reporting requirements and antiquated elements regarding homeland security.

Meanwhile, Members, we have a travesty on our hands, and we are doing nothing about it. We just witnessed the 353rd mass shooting of the year in this country. We are all concerned about homegrown terrorists. We had a homegrown terrorist who annihilated 14 people and injured many more just last week.

We have a huge loophole in the law that allows persons who are on the no-fly list to purchase guns in this country. If we believe that they should not

have the right to fly, why should they have the right to own a gun? People like Faisal Shahzad was already on the no-fly list when he attempted to bomb Times Square on May 1, 2010. If he had decided to walk into a gun store that day and purchase a gun, he would have been able to do so. This makes no sense.

It is time for us to engage in common sense. It is time for the Homeland Security Committee to come together in a unanimous fashion and pass H.R. 1076. There is a discharge petition on the floor. This bill should come before the full House. Vote however you want to, but give each and every Member of this House the opportunity to be recorded on whether or not one wants people who are on suspected terrorist lists to be able to buy a gun.

□ 1430

For those who may be on that list for purposes that are wrong or in error, so they have to wait 3 days before they get the gun. Better to have safety in this country for all Americans, better to have persons who do not belong in a position of owning a gun, but belong on the list not to fly, to not be able to buy a gun.

MOTION TO ADJOURN

Ms. SPEIER. Mr. Speaker, I move that the House do now adjourn.

The SPEAKER pro tempore. The question is on the motion to adjourn offered by the gentlewoman from California (Ms. SPEIER).

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Ms. SPEIER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 4, nays 394, answered ''present'' 2, not voting 33, as follows:

[Roll No. 677]

YEAS—4

DeFazio
Harris
Johnson, E. B.
Peterson

NAYS—394

Abraham
Adams
Aderholt
Allen
Amash
Ashford
Babin
Barletta
Barr
Barton
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Clark (MA)
Clarke (NY)
Clawson (FL)
Cleaver
Clyburn
Coffman
Cole
Collins (GA)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Rodney
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Diaz-Balart
Doggett
Dold
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Farenthold
Farr
Fattah
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Graves (GA)
Graves (LA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Hahn
Hanna
Hardy
Harper
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Jolly
Jones
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lee
Levin
Lieu, Ted
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Massie
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Meng
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perry
Peters
Pingree
Pitts
Pocan
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schweikert
Scott (VA)
Scott, Austin
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (IA)
Young (IN)
Zeldin
Zinke

ANSWERED ''PRESENT''—2

Cohen
Lipinski

NOT VOTING—33

Aguilar
Amodei
Bass
Bishop (MI)
Cicilline
Clay
Collins (NY)
Costa
Davis, Danny
Deutch
Dingell
Donovan
Edwards
Granger
Grijalva
Gutiérrez
Hartzler
Huffman
Jeffries
Johnson, Sam
Lewis
Lummis
Mooney (WV)
Murphy (PA)
Perlmutter
Pittenger
Rush
Russell
Schrader
Scott, David
Takai
Titus
Young (AK)

□ 1452

Messrs. MEEHAN, POMPEO, ELLISON, and BABIN changed their vote from ''yea'' to ''nay.''

So the motion to adjourn was rejected.

The result of the vote was announced as above recorded.

PERSONAL EXPLANATION

Mrs. HARTZLER. Mr. Speaker, on Tuesday, December 8, 2015, I was unable to vote. Had I been present, I would have voted as follows: on rollcall No. 675, ''nay,'' on rollcall No. 677, ''nay.''

HSA TECHNICAL CORRECTIONS ACT

The SPEAKER pro tempore (Mr. YOUNG of Iowa). The Chair recognizes the gentleman from Pennsylvania.

Mr. PERRY. Mr. Speaker, I would like to say thank you to the gentlewoman from Texas (Ms. JACKSON LEE) and the gentlewoman from New Jersey (Mrs. WATSON COLEMAN), my good friend, for the fine work they did on this bipartisan, noncontroversial bill that is common sense and does the right thing. But, unfortunately, it has been hijacked, Mr. Speaker.

It has been hijacked for this ruse. They set it aside. They said: Well, we have got this discharge petition. We want to get this bill on the floor.

Mr. Speaker, they don't have the names to get the bill on the floor. Furthermore, I contend they don't even want to vote for it. They don't want to vote on it. They just want to talk about this. These are the folks who tell everybody that they are here to protect your rights.

Mr. Speaker, they talk about they want the people on the no-fly list to have their right to firearms taken away from them, understanding—hopefully, they understand—they have no idea what it takes to get on the no-fly list. These people on the no-fly list have no idea half the time that they are on it.

Furthermore, the no-fly list is maintained by bureaucrats, the same administration that persecutes its citizens and has them audited by the IRS

for their beliefs and what they say at a prayer breakfast.

With that, Mr. Speaker, I yield 3 minutes to the distinguished gentleman from Texas (Mr. GOHMERT).

Mr. GOHMERT. Mr. Speaker, I want to congratulate the gentleman from Pennsylvania (Mr. PERRY), my friend, and the gentlewoman from Texas (Ms. JACKSON LEE), my friend, for having a bill that would actually clean up some problems within Homeland Security.

But, as I listen to the debate, including the last gentlewoman who moved for adjournment, I wonder if people who speak on this floor, Mr. Speaker, sometimes listen to themselves. As the gentlewoman pointed out—we could have the words read back, but she actually said that the Times Square bomber, the guy that was trying to blow up people with a bomb in Times Square, could have gone in and bought a gun. Obviously, he wasn't using a gun.

We also know that, as our friends across the aisle have proposed more stringent background checks and more extensive gun control laws, that not one of the proposals of this administration would have stopped the killings in Colorado, in Oregon at the community college, or at San Bernardino. This body ought to be about doing things that make a difference, not doing things for show.

As far as the no-fly list, when we have a process that is conducted behind closed doors, a process that was not formulated and voted on by the elected Members of Congress, that puts people on a no-fly list, my friends who support that idea are telling people around the country, including the 200,000 people buying guns in the last month, that we want an arbitrary process by a President, who a Muslim Brotherhood publication in Egypt says is advised by six of their top Muslim brothers, to formulate a list—it is not my words. That is the Egyptian publication back in December of 2012. They want that President formulating behind closed doors a list of Americans who can never buy a gun. This is the same administration that has gone after conservative organizations with the IRS.

Let me also point out that, before you try to clean out the homes of honest, law-abiding Americans, including a general who is a constituent who keeps ending up on the no-fly list, why don't you get rid of the 72 Department of Homeland Security employees who were on the no-fly list before you try to take guns away from law-abiding Americans.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. GOHMERT. May I have 30 more seconds?

Mr. PERRY. No. I need to keep moving. I reserve the balance of my time.

□ 1500

Ms. JACKSON LEE. Mr. Speaker, I yield myself such time as I may consume.

Let me just say this: I am not sure if the gentleman from Texas, a dear friend, was asking us to get rid of the no-fly list or the watch list.

Our point today, Mr. Speaker, is very narrow. We are just asking that terrorists not be able to walk into a gun shop and buy a gun. This is a loophole that is most glaring. Eighty percent of the American people believe that this is impossible; it must not be true. We are trying to prevent suspected terrorists from walking into a gun store and buying a deadly weapon.

The investigation, tragically, in California is not yet finished, so we don't have the final answer as to what would have prevented that. But it is astonishing that the loophole has allowed more than 2,000 suspects on the FBI terrorist watch list to buy guns in the U.S. over the past 11 years.

When I started this debate, I was happy that we had come to the floor to deal with Homeland Security bills. The American people want the homeland safe and secure. They don't want demagoguery. They want safety and security.

Legislation blocking terrorists from getting guns makes America no more safer and secure than apple pie. This is a time when more than 90 percent of all suspected terrorists who tried to buy guns in America walked away and bought them. They got the weapon they wanted. This is not criminals, gangs, or others. We are dealing with those individuals who are terrorists. They have the right to get a gun.

Can we do something this week, Mr. Speaker? Can we add to the safety and security of the American people? As we pass this bill, H.R. 3859, which I applaud its correcting technicalities, can we join together and can we pass closing the gun loophole that allows terrorists to go and buy a gun to terrorize innocent Americans? I think we can do better.

Mr. Speaker, I reserve the balance of my time.

Mr. PERRY. Mr. Speaker, I yield 3 minutes to the distinguished gentleman from South Carolina (Mr. DUNCAN).

Mr. DUNCAN of South Carolina. Mr. Speaker, I thank the chairman for yielding.

We have talked a lot in the last couple of weeks about the visa waiver program, visas in general, and Syrian refugees. Let me remind this body and the American people that 49 percent of all illegals in this country didn't cross our southern border; they came here with a permission slip in their hand, known as a visa. And they chose to overstay that visa. Now they are categorized as visa overstays. These overstays are people that we trusted by giving them a permission slip to come into our great country.

There are six words that ought to be brought up as we talk about this issue: secure the border, enforce the laws. That is how you keep America safe.

I want to tell you, national security is at stake here. Americans are concerned. I won't say Americans are afraid, but they are concerned. They expect us to do our job to secure this great Nation. They expect us to look into the visa waiver program. They expect us to look into the refugees and the vetting process. They expect us to keep them safe.

We ought to talk about securing the border and enforcing the laws. We are not chasing footprints in the desert with regard to the visa overstays. We know who these people are. They have had an interview at a consulate or embassy. We probably have a thumbprint, a picture, a name. We probably have an address of where they are going.

Let's keep our eye on the ball here. Americans expect us to keep them safe, and that is by reviewing the visa waiver program, that is considering the vetting process, and that is enforcing the law. Let's secure our Nation.

Ms. JACKSON LEE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I started by saying that the American people are looking to us to secure the homeland.

As we look at these series of bills that we have on the floor, H.R. 3859 is a technical corrections bill. This is a bill that should be passed. Americans expect clarity from this body. Clarity from this body means that at the same time as we pass H.R. 3859, we should also be concerned about making sure that we close gun show loopholes so as to avoid having terrorists buy guns.

I believe that that is the appropriate and direct way to handle this question of securing the Nation. Do the obvious to secure the Nation: stop terrorists from getting guns.

Mr. Speaker, I yield back the balance of my time.

Mr. PERRY. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I, once again, urge my colleagues to support H.R. 3859, which is really the issue at hand.

Regarding the other issue that is being discussed here, this is an issue of failure of foreign policy: an open border and a visa waiver program that allows terrorists to come into our Nation unfettered. Other than the issue at hand, that is the issue that we are really talking about.

Mr. Speaker, I ask my colleagues to support H.R. 3859, the HSA Technical Corrections Act. Again, it is important, commonsense legislation. It amends the Homeland Security Act of 2002 by updating obsolete language and striking outdated offices and reporting requirements.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore (Mr. COLLINS of New York). The question is on the motion offered by the gentleman from Pennsylvania (Mr. PERRY) that the House suspend the rules and pass the bill, H.R. 3859, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

MOTION TO ADJOURN

Mrs. CAPPS. Mr. Speaker, I move that the House do now adjourn.

The SPEAKER pro tempore. The question is on the motion to adjourn offered by the gentlewoman from California (Mrs. CAPPS).

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mrs. CAPPS. Mr. Speaker, on that, I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 7, nays 398, answered ''present'' 4, not voting 24, as follows:

[Roll No. 678]

YEAS—7

DeFazio
Farr
Harris
Johnson, E. B.
Labrador
Massie
Peterson

NAYS—398

Abraham
Adams
Aderholt
Allen
Amash
Ashford
Babin
Barletta
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Coffman
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Doggett
Dold
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Farenthold
Fattah
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Gutiérrez
Hahn
Hanna
Hardy
Harper
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Jolly
Jones
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
LaHood
LaMalfa
Lamborn
Lance
Langevin
Larson (CT)
Latta
Lawrence
Lee
Levin
Lieu, Ted
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Meng
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Moore
Moulton
Mullin
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perry
Peters
Pingree
Pittenger
Pitts
Pocan
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schweikert
Scott (VA)
Scott, Austin
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (IA)
Young (IN)
Zeldin
Zinke

ANSWERED ''PRESENT''—4

Cohen
Lipinski
Richmond
Young (AK)

NOT VOTING—24

Aguilar
Amodei
Bishop (MI)
Bishop (UT)
Cárdenas
Cole
Dingell
Donovan
Garamendi
Grijalva
Johnson, Sam
Larsen (WA)
Lewis
Lummis
Mooney (WV)
Mulvaney
Perlmutter
Roskam
Rush
Russell
Schrader
Scott, David
Simpson
Takai

□ 1535

Mr. GRAVES of Georgia changed his vote from ''yea'' to ''nay.''

Mr. MASSIE changed his vote from ''nay'' to ''yea.''

So the motion to adjourn was rejected.

The result of the vote was announced as above recorded.

VISA WAIVER PROGRAM IMPROVEMENT AND TERRORIST TRAVEL PREVENTION ACT OF 2015

Mr. GOODLATTE. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 158) to clarify the grounds for ineligibility for travel to the United States regarding terrorism risk, to expand the criteria by which a country may be removed from the Visa Waiver Program, to require the Secretary of Homeland Security to submit a report on strengthening the Electronic System for Travel Authorization to better secure the international borders of the United States and prevent terrorists and instruments of terrorism from entering the United States, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 158

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Visa Waiver Program Improvement and Terrorist Travel Prevention Act of 2015''.

SEC. 2. ELECTRONIC PASSPORT REQUIREMENT.

(a) REQUIREMENT FOR ALIEN TO POSSESS ELECTRONIC PASSPORT.—Section 217(a)(3) of the Immigration and Nationality Act (8 U.S.C. 1187(a)(3)) is amended to read as follows:

''(3) PASSPORT REQUIREMENTS.—The alien, at the time of application for admission, is in possession of a valid unexpired passport that satisfies the following:

''(A) MACHINE READABLE.—The passport is a machine-readable passport that is tamper-resistant, incorporates document authentication identifiers, and otherwise satisfies the internationally accepted standard for machine readability.

''(B) ELECTRONIC.—Beginning on April 1, 2016, the passport is an electronic passport that is fraud-resistant, contains relevant biographic and biometric information (as determined by the Secretary of Homeland Security), and otherwise satisfies internationally accepted standards for electronic passports.''.

(b) REQUIREMENT FOR PROGRAM COUNTRY TO VALIDATE PASSPORTS.—Section 217(c)(2)(B) of the Immigration and Nationality Act (8 U.S.C. 1187(c)(2)(B)) is amended to read as follows:

''(B) PASSPORT PROGRAM.—

''(i) ISSUANCE OF PASSPORTS.—The government of the country certifies that it issues to its citizens passports described in subparagraph (A) of subsection (a)(3), and on or after April 1, 2016, passports described in subparagraph (B) of subsection (a)(3).

''(ii) VALIDATION OF PASSPORTS.—Not later than October 1, 2016, the government of the country certifies that it has in place mechanisms to validate passports described in subparagraphs (A) and (B) of subsection (a)(3) at each key port of entry into that country. This requirement shall not apply to travel between countries which fall within the Schengen Zone.''.

(c) CONFORMING AMENDMENT.—Section 303(c) of the Enhanced Border Security and Visa Entry Reform Act of 2002 is repealed (8 U.S.C. 1732(c)).

SEC. 3. RESTRICTION ON USE OF VISA WAIVER PROGRAM FOR ALIENS WHO TRAVEL TO CERTAIN COUNTRIES.

Section 217(a) of the Immigration and Nationality Act (8 U.S.C. 1187(a)), as amended by this Act, is further amended by adding at the end the following:

''(12) NOT PRESENT IN IRAQ, SYRIA, OR ANY OTHER COUNTRY OR AREA OF CONCERN.—

''(A) IN GENERAL.—Except as provided in subparagraphs (B) and (C)—

''(i) the alien has not been present, at any time on or after March 1, 2011—

''(I) in Iraq or Syria;

''(II) in a country that is designated by the Secretary of State under section 6(j) of the Export Administration Act of 1979 (50 U.S.C. 2405) (as continued in effect under the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.)), section 40 of the Arms Export Control Act (22 U.S.C. 2780), section 620A of the Foreign Assistance Act of 1961 (22 U.S.C. 2371), or any other provision of law, as a country, the government of which has repeatedly provided support of acts of international terrorism; or

''(III) in any other country or area of concern designated by the Secretary of Homeland Security under subparagraph (D); and

''(ii) regardless of whether the alien is a national of a program country, the alien is not a national of—

''(I) Iraq or Syria;

''(II) a country that is designated, at the time the alien applies for admission, by the Secretary of State under section 6(j) of the Export Administration Act of 1979 (50 U.S.C. 2405) (as continued in effect under the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.)), section 40 of the Arms Export Control Act (22 U.S.C. 2780), section 620A of the Foreign Assistance Act of 1961 (22 U.S.C. 2371), or any other provision of law, as a country, the government of which has repeatedly provided support of acts of international terrorism; or

''(III) any other country that is designated, at the time the alien applies for admission, by the Secretary of Homeland Security under subparagraph (D).

''(B) CERTAIN MILITARY PERSONNEL AND GOVERNMENT EMPLOYEES.—Subparagraph (A)(i) shall not apply in the case of an alien if the Secretary of Homeland Security determines that the alien was present—

''(i) in order to perform military service in the armed forces of a program country; or

''(ii) in order to carry out official duties as a full time employee of the government of a program country.

''(C) WAIVER.—The Secretary of Homeland Security may waive the application of subparagraph (A) to an alien if the Secretary determines that such a waiver is in the law enforcement or national security interests of the United States.

''(D) COUNTRIES OR AREAS OF CONCERN.—

''(i) IN GENERAL.—Not later than 60 days after the date of the enactment of this paragraph, the Secretary of Homeland Security, in consultation with the Secretary of State and the Director of National Intelligence, shall determine whether the requirement under subparagraph (A) shall apply to any other country or area.

''(ii) CRITERIA.—In making a determination under clause (i), the Secretary shall consider—

''(I) whether the presence of an alien in the country or area increases the likelihood that the alien is a credible threat to the national security of the United States;

''(II) whether a foreign terrorist organization has a significant presence in the country or area; and

''(III) whether the country or area is a safe haven for terrorists.

''(iii) ANNUAL REVIEW.—The Secretary shall conduct a review, on an annual basis, of any determination made under clause (i).

''(E) REPORT.—Beginning not later than one year after the date of the enactment of this paragraph, and annually thereafter, the Secretary of Homeland Security shall submit to the Committee on Homeland Security, the Committee on Foreign Affairs, the Permanent Select Committee on Intelligence, and the Committee on the Judiciary of the House of Representatives, and the Committee on Homeland Security and Governmental Affairs, the Committee on Foreign Relations, the Select Committee on Intelligence, and the Committee on the Judiciary of the Senate a report on each instance in which the Secretary exercised the waiver authority under subparagraph (C) during the previous year.''.

SEC. 4. DESIGNATION REQUIREMENTS FOR PROGRAM COUNTRIES.

(a) REPORTING LOST AND STOLEN PASSPORTS.—Section 217(c)(2)(D) of the Immigration and Nationality Act (8 U.S.C. 1187(c)(2)(D)), as amended by this Act, is further amended by striking ''within a strict time limit'' and inserting ''not later than 24 hours after becoming aware of the theft or loss''.

(b) INTERPOL SCREENING.—Section 217(c)(2) of the Immigration and Nationality Act (8 U.S.C. 1187(c)(2)), as amended by this Act, is further amended by adding at the end the following:

''(G) INTERPOL SCREENING.—Not later than 270 days after the date of the enactment of this subparagraph, except in the case of a country in which there is not an international airport, the government of the country certifies to the Secretary of Homeland Security that, to the maximum extent allowed under the laws of the country, it is screening, for unlawful activity, each person who is not a citizen or national of that country who is admitted to or departs that country, by using relevant databases and notices maintained by Interpol, or other means designated by the Secretary of Homeland Security. This requirement shall not apply to travel between countries which fall within the Schengen Zone.''.

(c) IMPLEMENTATION OF PASSENGER INFORMATION EXCHANGE AGREEMENT.—Section 217(c)(2)(F) of the Immigration and Nationality Act (8 U.S.C. 1187(c)(2)(F)), as amended by this Act, is further amended by inserting before the period at the end the following: '', and fully implements such agreement''.

(d) TERMINATION OF DESIGNATION.—Section 217(f) of the Immigration and Nationality Act (8 U.S.C. 1187(f)) is amended by adding at the end the following:

''(6) FAILURE TO SHARE INFORMATION.—

''(A) IN GENERAL.—If the Secretary of Homeland Security and the Secretary of State jointly determine that the program country is not sharing information, as required by subsection (c)(2)(F), the Secretary of Homeland Security shall terminate the designation of the country as a program country.

''(B) REDESIGNATION.—In the case of a termination under this paragraph, the Secretary of Homeland Security shall redesignate the country as a program country, without regard to paragraph (2) or (3) of subsection (c) or paragraphs (1) through (4), when the Secretary of Homeland Security, in consultation with the Secretary of State, determines that the country is sharing information, as required by subsection (c)(2)(F).

''(7) FAILURE TO SCREEN.—

''(A) IN GENERAL.—Beginning on the date that is 270 days after the date of the enactment of this paragraph, if the Secretary of Homeland Security and the Secretary of State jointly determine that the program country is not conducting the screening required by subsection (c)(2)(G), the Secretary of Homeland Security shall terminate the designation of the country as a program country.

''(B) REDESIGNATION.—In the case of a termination under this paragraph, the Secretary of Homeland Security shall redesignate the country as a program country, without regard to paragraph (2) or (3) of subsection (c) or paragraphs (1) through (4), when the Secretary of Homeland Security, in consultation with the Secretary of State, determines that the country is conducting the screening required by subsection (c)(2)(G).''.

SEC. 5. REPORTING REQUIREMENTS.

(a) IN GENERAL.—Section 217(c) of the Immigration and Nationality Act (8 U.S.C. 1187(c)), as amended by this Act, is further amended—

(1) in paragraph (2)(C)(iii)—

(A) by striking ''and the Committee on International Relations'' and inserting '', the Committee on Foreign Affairs, and the Committee on Homeland Security''; and

(B) by striking ''and the Committee on Foreign Relations'' and inserting '', the Committee on Foreign Relations, and the Committee on Homeland Security and Governmental Affairs''; and

(2) in paragraph (5)(A)(i)—

(A) in subclause (III)—

(i) by inserting after ''the Committee on Foreign Affairs,'' the following: ''the Permanent Select Committee on Intelligence,'';

(ii) by inserting after ''the Committee on Foreign Relations,'' the following: ''the Select Committee on Intelligence''; and

(iii) by striking ''and'' at the end;

(B) in subclause (IV), by striking the period at the end and inserting the following: ''; and''; and

(C) by adding at the end the following:

''(V) shall submit to the committees described in subclause (III), a report that includes an assessment of the threat to the national security of the United States of the designation of each country designated as a program country, including the compliance of the government of each such country with the requirements under subparagraphs (D) and (F) of paragraph (2), as well as each such government's capacity to comply with such requirements.''.

(b) DATE OF SUBMISSION OF FIRST REPORT.—The Secretary of Homeland Security shall submit the first report described in subclause (V) of section 217(c)(5)(A)(i) of the Immigration and Nationality Act (8 U.S.C. (c)(5)(A)(i)), as added by subsection (a), not later than 90 days after the date of the enactment of this Act.

SEC. 6. HIGH RISK PROGRAM COUNTRIES.

Section 217(c) of the Immigration and Nationality Act (8 U.S.C. 1187(c)), as amended by this Act, is further amended by adding at the end the following:

''(12) DESIGNATION OF HIGH RISK PROGRAM COUNTRIES.—

''(A) IN GENERAL.—The Secretary of Homeland Security, in consultation with the Director of National Intelligence and the Secretary of State, shall evaluate program countries on an annual basis based on the criteria described in subparagraph (B) and shall identify any program country, the admission of nationals from which under the visa waiver program under this section, the Secretary determines presents a high risk to the national security of the United States.

''(B) CRITERIA.—In evaluating program countries under subparagraph (A), the Secretary of Homeland Security, in consultation with the Director of National Intelligence and the Secretary of State, shall consider the following criteria:

''(i) The number of nationals of the country determined to be ineligible to travel to the United States under the program during the previous year.

''(ii) The number of nationals of the country who were identified in United States Government databases related to the identities of known or suspected terrorists during the previous year.

''(iii) The estimated number of nationals of the country who have traveled to Iraq or Syria at any time on or after March 1, 2011 to engage in terrorism.

''(iv) The capacity of the country to combat passport fraud.

''(v) The level of cooperation of the country with the counter-terrorism efforts of the United States.

''(vi) The adequacy of the border and immigration control of the country.

''(vii) Any other criteria the Secretary of Homeland Security determines to be appropriate.

''(C) SUSPENSION OF DESIGNATION.—The Secretary of Homeland Security, in consultation with the Secretary of State, may suspend the designation of a program country based on a determination that the country presents a high risk to the national security of the United States under subparagraph (A) until such time as the Secretary determines that the country no longer presents such a risk.

''(D) REPORT.—Not later than 60 days after the date of the enactment of this paragraph, and annually thereafter, the Secretary of Homeland Security, in consultation with the Director of National Intelligence and the Secretary of State, shall submit to the Committee on Homeland Security, the Committee on Foreign Affairs, the Permanent Select Committee on Intelligence, and the Committee on the Judiciary of the House of Representatives, and the Committee on Homeland Security and Governmental Affairs, the Committee on Foreign Relations, the Select Committee on Intelligence, and the Committee on the Judiciary of the Senate a report, which includes an evaluation and threat assessment of each country determined to present a high risk to the national security of the United States under subparagraph (A).''.

SEC. 7. ENHANCEMENTS TO THE ELECTRONIC SYSTEM FOR TRAVEL AUTHORIZATION.

(a) IN GENERAL.—Section 217(h)(3) of the Immigration and Nationality Act (8 U.S.C. 1187(h)(3)) is amended—

(1) in subparagraph (C)(i), by inserting after ''any such determination'' the following: ''or shorten the period of eligibility under any such determination'';

(2) by striking subparagraph (D) and inserting the following:

''(D) FRAUD DETECTION.—The Secretary of Homeland Security shall research opportunities to incorporate into the System technology that will detect and prevent fraud and deception in the System.

''(E) ADDITIONAL AND PREVIOUS COUNTRIES OF CITIZENSHIP.—The Secretary of Homeland Security shall collect from an applicant for admission pursuant to this section information on any additional or previous countries of citizenship of that applicant. The Secretary shall take any information so collected into account when making determinations as to the eligibility of the alien for admission pursuant to this section.

''(F) REPORT ON CERTAIN LIMITATIONS ON TRAVEL.—Not later than 30 days after the date of the enactment of this subparagraph and annually thereafter, the Secretary of Homeland Security, in consultation with the Secretary of State, shall submit to the Committee on Homeland Security, the Committee on the Judiciary, and the Committee on Foreign Affairs of the House of Representatives, and the Committee on Homeland Security and Governmental Affairs, the Committee on the Judiciary, and the Committee on Foreign Relations of the Senate a report on the number of individuals who were denied eligibility to travel under the program, or whose eligibility for such travel was revoked during the previous year, and the number of such individuals determined, in accordance with subsection (a)(6), to represent a threat to the national security of the United States, and shall include the country or countries of citizenship of each such individual.''.

(b) REPORT.—Not later than 30 days after the date of the enactment of this Act, the Secretary of Homeland Security, in consultation with the Secretary of State, shall submit to the Committee on Homeland Security, the Committee on the Judiciary, and the Committee on Foreign Affairs of the House of Representatives, and the Committee on Homeland Security and Governmental Affairs, the Committee on the Judiciary, and the Committee on Foreign Relations of the Senate a report on steps to strengthen the electronic system for travel authorization authorized under section 217(h)(3) of the Immigration and Nationality Act (8 U.S.C. 1187(h)(3))) in order to better secure the international borders of the United States and prevent terrorists and instruments of terrorism from entering the United States.

SEC. 8. PROVISION OF ASSISTANCE TO NON-PROGRAM COUNTRIES.

The Secretary of Homeland Security, in consultation with the Secretary of State, shall provide assistance in a risk-based manner to countries that do not participate in the visa waiver program under section 217 of the Immigration and Nationality Act (8 U.S.C. 1187) to assist those countries in—

(1) submitting to Interpol information about the theft or loss of passports of citizens or nationals of such a country; and

(2) issuing, and validating at the ports of entry of such a country, electronic passports that are fraud-resistant, contain relevant biographic and biometric information (as determined by the Secretary of Homeland Security), and otherwise satisfy internationally accepted standards for electronic passports.

SEC. 9. CLERICAL AMENDMENTS.

(a) SECRETARY OF HOMELAND SECURITY.—Section 217 of the Immigration and Nationality Act (8 U.S.C. 1187), as amended by this Act, is further amended by striking ''Attorney General'' each place such term appears (except in subsection (c)(11)(B)) and inserting ''Secretary of Homeland Security''.

(b) ELECTRONIC SYSTEM FOR TRAVEL AUTHORIZATION.—Section 217 of the Immigration and Nationality Act (8 U.S.C. 1187), as amended this Act, is further amended—

(1) by striking ''electronic travel authorization system'' each place it appears and inserting ''electronic system for travel authorization'';

(2) in the heading in subsection (a)(11), by striking ''ELECTRONIC TRAVEL AUTHORIZATION SYSTEM'' and inserting ''ELECTRONIC SYSTEM FOR TRAVEL AUTHORIZATION''; and

(3) in the heading in subsection (h)(3), by striking ''ELECTRONIC TRAVEL AUTHORIZATION SYSTEM'' and inserting ''ELECTRONIC SYSTEM FOR TRAVEL AUTHORIZATION''.

SEC. 10. SENSE OF CONGRESS.

It is the sense of Congress that the International Civil Aviation Organization, the specialized agency of the United Nations responsible for establishing international standards, specifications, and best practices related to the administration and governance of border controls and inspection formalities, should establish standards for the introduction of electronic passports (referred to in this section as ''e-passports''), and obligate member countries to utilize such e-passports as soon as possible. Such e-passports should be a combined paper and electronic passport that contains biographic and biometric information that can be used to authenticate the identity of travelers through an embedded chip.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Virginia (Mr. GOODLATTE) and the gentlewoman from California (Ms. LOFGREN) each will control 20 minutes.

The Chair recognizes the gentleman from Virginia.

□ 1530

GENERAL LEAVE

Mr. GOODLATTE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous materials on H.R. 158 currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. GOODLATTE. Mr. Speaker, I ask unanimous consent that debate on this motion be extended by 10 minutes on each side.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. GOODLATTE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I support H.R. 158, the Visa Waiver Program Improvement and Terrorist Travel Prevention Act of 2015.

The Visa Waiver Program allows nationals of 38 countries to travel to the United States for a maximum of 90 days for business or tourism purposes without obtaining a visa. The travelers must present a valid machine-readable passport and meet certain other immigration and security requirements.

In order to be designated a VWP country, a nation must offer reciprocal visa-free travel to U.S. citizens, agree to share security-related information such as whether citizens of that country traveling to the U.S. represent a threat to U.S. security or welfare, agree to timely report lost and stolen passports, and have less than a 3 percent visa refusal rate in the year prior to designation years, among other requirements.

The VWP was created in 1986 as a way to promote and facilitate travel and tourism to the United States. It has done just that, with hundreds of millions of foreign nationals traveling to the U.S. since the program's implementation. So the positive effects of the VWP on the U.S. economy should not be understated.

Yet no amount of economic stimulation is worth risking the lives of our constituents, and recent events around the world necessitate changes to the VWP in order to help ensure its safety. Of particular concern is the rise of ISIS in the Middle East and the large number of Europeans and other nationalities who have gone to Syria, Iraq, and other countries of concern in order to train and fight alongside ISIS and the radical Islamist terrorists.

With their VWP country passports, those terrorists can board a plane

bound for the U.S. and can reach U.S. shores with relative ease. In VWP cases, there is no in-person interview with a U.S. consular officer, and there is no pretravel enhanced screening. So we must help make sure that the VWP is as secure as possible.

H.R. 158 takes constructive steps in this direction with provisions preventing dual nationals of, or those who have recently traveled to, Iraq, Syria, or other countries of concern, from visa-free travel to the U.S. Among other security enhancements, the bill requires VWP countries to issue e-Passports to their nationals and continuously share terrorism and foreign traveler data with us.

The VWP is only one part of the national discussion that we should be having. There are Islamist terrorists looking at all aspects of our immigration policy to find any way possible to exploit it. We learned that lesson on 9/11, and we learned that lesson last week in San Bernardino.

Mr. Speaker, I hope this body continues to address deficiencies in U.S. immigration policy by taking up and passing additional House Judiciary Committee bills, including those reported out of the Judiciary Committee to reform the U.S. asylum process, to change the way unaccompanied alien minors are treated when they cross the U.S. border so that there is no longer an incentive to run across the border, and to finally prevent the interior immigration enforcement switch from being turned off at the whim of whoever resides at 1600 Pennsylvania Avenue.

Mr. Speaker, I thank the gentlewoman from Michigan (Mrs. MILLER) and the chairman of the Homeland Security Committee, as well as their staff members, for their work on the bill.

Much more needs to be done to prevent exploitation of U.S. immigration policy by terrorists, but H.R. 158 is another good step in helping to ensure the safety of Americans, and I support it.

Mr. Speaker, I reserve the balance of my time.

Ms. LOFGREN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, today we come together to address vulnerabilities in our Visa Waiver Program to make our country safer.

What is the Visa Waiver Program? It was established long before 9/11. In order for a country to be admitted to the Visa Waiver Program, fewer than 3 percent of its applicants for a visitor visa can be denied. Often, the denial of a visitor's visa has nothing to do with security. Rather, it is frequently based on a judgment of whether the applicant is likely to return to his home country.

It is fair to say that persons who are poor are often judged to be less likely to return to their home country than a more affluent applicant with extensive financial ties to his or her home. That is the reason why there are no impoverished countries in the Visa Waiver Program.

Most of Europe, Japan, Singapore, Australia, South Korea, and the like are in the program—38 countries in all. The 38 countries agree to share security information with the United States.

The Visa Waiver Program also is reciprocal, allowing Americans to travel to these 38 countries without getting a visitor's visa. For these 38 countries, visitors fill out a form in advance that is then checked against databases. An ePassport is required for travel, but no visa. However, at the point of entry, an intending visitor from a visa waiver country can be turned away if he is not found admissible under immigration law. For example, a visa waiver visitor who reveals he intends to study in the United States or to marry and remain in the U.S. will be denied entry at the airport by a Customs and Border Protection officer.

Mr. Speaker, people who do not reside in these 38 countries can still visit the United States, but they have to obtain a visitor's visa to do so, and this is exactly the same for those who are ineligible for the Visa Waiver Program under this bill.

The Visa Waiver Program enables millions of tourists and business travelers to come to the U.S. every year for short trips that altogether bring over $190 billion a year in business and tax revenue. This program is important to our economy and the country.

At the same time, Mr. Speaker, in the wake of the November 13 terrorist attacks, we must review this program to make sure it meets our present-day security needs since it was designed prior to 9/11. This bipartisan bill incorporates simple changes to enhance security in the Visa Waiver Program.

The most important parts of the legislation provide for specific, concrete changes to ensure better information sharing among intelligence and law enforcement agencies.

□ 1545

It requires screening of all travelers against INTERPOL databases. It makes it harder to falsify identity by requiring fraud-resistant e-Passports that contain biometric information. It compels U.S. security agencies to conduct more frequent threat assessments of visa waiver countries, something not currently part of the law.

For those who have traveled to or are nationals of certain high-threat countries, a visa interview, rather than visa-free travel, will be required. These individuals are not barred from traveling to the United States.

We know that thousands of European citizens have traveled to Syria. Some are there on humanitarian missions, like Doctors Without Borders, and we thank them. Some went to fight with ISIS. The visa interview, conducted by a U.S. consular official, will establish the circumstances of the visit. If you are a German citizen who visited Syria last year, you will have the same visa process that every Israeli, every Pole, every Ethiopian, and every Mexican has. None of us has said it is unreasonable that people in Thailand, India, or Brazil undergo interviews for visitor visas. And this change in the Visa Waiver Program is not unreasonable either.

This visa waiver legislation stands in stark contrast to the Republican-led refugee bill that was rushed to the floor 3 weeks ago. That ineffective and mean-spirited bill would shut down the U.S. refugee program for Syrians and Iraqis fleeing civil war and the brutality of ISIS. And it does so notwithstanding the fact that refugees are subject to 18 to 24 months of thorough screening before ever setting foot on U.S. soil, a more rigorous process than any other immigrant or traveler to the United States is subject to.

The refugee bill does absolutely nothing to make us safer, and it is a betrayal of our values. It would have us turn our back on refugee women and children and on our proud history as a country that provides safe haven to the world's most vulnerable. I will continue to do everything in my power to see that it never becomes law.

While the refugee bill showed our country and this body at its worst, today's bill makes sensible improvements to the security of the Visa Waiver Program. I thank my colleagues for working with me and the Department of Homeland Security, the State Department, and the White House to craft this targeted legislation. I strongly urge its support.

I reserve the balance of my time.

Mr. GOODLATTE. Mr. Speaker, I yield 5 minutes to the gentlewoman from Michigan (Mrs. MILLER), the chief sponsor of this legislation, who is also the chairman of the House Administration Committee.

Mrs. MILLER of Michigan. Mr. Speaker, I thank the gentleman for yielding.

Mr. Speaker, the 9/11 Commission said that ''For terrorists, travel documents are as important as weapons.'' And I couldn't agree more. We simply cannot give people from other countries special access to our country if we don't have all of the information that we absolutely need to ensure that they are not a threat to our national security.

I believe that the bill that we are considering today is the first of many, quite frankly, aimed at improving our security protocols. We need to have a comprehensive, complete review of all of our visa programs, including K1 visas, the so-called ''fiance visa,'' which was used by the female terrorist in the San Bernardino attack to enter the United States. As well, the issue of visa overstays also needs to be addressed.

Today, the House is taking a very important step forward by considering this bill, which is focused on those traveling to the U.S. without a visa.

As was said, the Visa Waiver Program actually was established back in

the eighties to expedite tourism and trade as well, and it has worked very, very well economically for our country. Today there are 38 companies that participate; and their citizens, although they are required to have a passport, are not required to go to a U.S. Embassy or to a consulate to obtain a visa.

Obviously, the world is a much different place today, and our security measures must evolve to meet any and all threats, which is why I introduced this bill.

This bill has gone through regular order. As chairman of the Border and Maritime Security Subcommittee, I have held two hearings on this. It actually passed out of the full Homeland Security Committee as well on a unanimous vote, every Republican, every Democrat. Because before we are anything else, we are all Americans first, and we all recognize the vulnerabilities of our current program.

Information sharing, especially with our European allies, is vital, absolutely vital to help combat the threat of foreign fighters bound for the United States. There is absolutely no second for having good information. We need to be certain that participating countries are giving us all of the information that we need from either their own terror watch list or travel manifests, and that all of the information protocols are being shared.

As we know, sometimes it is not until after the fact that some of the participating countries actually provide us the names of individuals who they knew were a terror threat. That is unacceptable.

This bill will change that because what this bill does is it gives the authority to the Secretary of Homeland Security to either suspend or terminate a country's participation in this program if we don't feel confident that we are getting all the critical information that we need to stop terrorists from exploiting this program to travel into the U.S.

So, at this time, we still have an information sharing problem with some of our closest allies. And as the 9/11 Commission also accurately noted, we need to move from the mindset of the need-to-know information to the need-to-share information.

Information sharing must happen, and this bill gives America the leverage that it needs to make sure that the information critical to our homeland security is being shared appropriately.

It will also disqualify anyone who has traveled to Syria, Iraq, Sudan, and Iran within the past 5 years from participating in this program. In an abundance of caution, we will now require those individuals to apply for a visa and go through the formal visa screening process.

It will also give the Secretary of Homeland Security the discretion to designate other countries that have significant terror concerns, or become terror safe havens in the future.

Additionally, we will be requiring all participating countries to adopt e-Passports, like we have here in the United States, so that we are able to eliminate passport fraud.

Mr. Speaker, as Americans, we live in a free and open society, and enemies of freedom are looking to use our freedoms against us. This bill will stop the enemies' ability to move internationally by strengthening the Visa Waiver Program. It is a critical component of keeping our homeland safe.

I want to thank the House leadership for ensuring prompt consideration of this bill on the floor. I certainly want to thank Chairman MCCAUL and Chairman GOODLATTE for working as well. And I also want to give a special thanks as well to Representative KATKO from New York, who is the chairman of the Foreign Fighter Task Force, which really helped make this bill a much stronger product.

It is my hope that a very strong, bipartisan vote on this bill today will send a message to terrorists that America is prepared to take any and all measures to protect our homeland.

Ms. LOFGREN. Mr. Speaker, I yield such time as he may consume to the gentleman from Michigan (Mr. CONYERS), the ranking member of the full committee.

Mr. CONYERS. Mr. Speaker, Members of the House, as much as any Member in this body, I appreciate the unique situation our Nation is in as we struggle to effectively combat terrorism, while adhering to our Nation's commitment to freedom and liberty.

I fully recognize and appreciate that the bill before us today represents an effort to craft a more bipartisan response to recent terrorist incidents, particularly when compared to the seriously flawed refugee bill that this body voted on only several weeks ago.

I commend the office for including many commonsense improvements to the Visa Waiver Program that will improve the system in a neutral and nondiscriminatory manner. However, I believe that provisions in the legislation restricting the use of the Visa Waiver Program to individuals who have traveled to Syria or Iraq or are dual nationals of these or other covered nations are discriminatory. I understand that these individuals are not banned from traveling to our Nation and are simply subject to increased questioning and scrutiny before they can travel here.

However, history has shown us that arbitrary across-the-board judgments based on broad characteristics such as these do nothing to enhance our security and only cast a cloud of suspicion over entire communities here in our country.

Equally problematic is the provision's overbreadth. It contains no exceptions for journalists, researchers, human rights investigators, or other professionals. This will make it harder, not easier, to document and respond to human rights violations and other abuses. I also believe the provision should have included a sunset date so that we can assess its efficacy. I am further concerned that the new requirement will result in our partner nations placing new limits on travel by United States citizens to their own countries.

It is because of these problems that numerous civil rights and civil liberties groups have expressed serious concerns or outright opposition to the overall legislation, including the American Civil Liberties Union, the Leadership Conference on Civil and Human Rights, the NAACP, the American-Arab Anti-Discrimination Committee, the American Immigration Lawyers Association, the Council on American-Islamic Relations, the Arab-American Civil Rights League, Human Rights Watch, and the League of United Latin American Citizens, among others.

Mr. Speaker, I include in the RECORD letters from those groups.

DECEMBER 8, 2015.

Re: Visa Waiver Improvement and Terrorism Travel Prevention Act of 2015, H.R. 158

U.S. SENATE,

HOUSE OF REPRESENTATIVES.

DEAR LEGISLATOR: The Arab-American Civil Rights League (''ACRL'') writes with grave concern regarding H.R. 158, the Visa Waiver Improvement and Terrorism Travel Prevention Act of 2015 (''HR 158''). HR 158 would amend the Visa Waiver Program by mandating that individuals who have traveled to Syria or Iraq in the past five years be barred from participation in the Visa Waiver Program. The ACRL strongly opposes such legislation on the grounds that it is both discriminatory and ineffective—an ill-conceived legislative backlash to recent tragedies.

HR 158's blanket ban upon persons who have visited the countries of Iraq and Syria in the past five years will only harm those who have legitimate reasons to visit the United States, and will not effectively deter or prevent terrorists and criminals from seeking to enter this country and do us harm. Simply put, nefarious individuals seeking to enter the United States to commit illegal acts of terror, will not be dissuaded by federal law. It is nothing less than absurd to think that an individual trying to enter the United States to commit acts of terror will abide by our laws.

On the other hand, HR 158 will ban individuals who have visited Syria and Iraq for legitimate reasons in the last five years, for no other reason than their physical presence in said countries. Consider the types of individuals that would be banned: journalists, members of the clergy, family visitors, and myriad others. HR 158 targets and punishes entire swathes of people who have done nothing wrong, while failing to effectively target those who seek to harm this country. In all essence, HR 158 presumes that there are no reasons for people to visit Syria and Iraq, and that anyone who has been to those two countries should be suspected of terrorism.

Far from enhancing our safety and security, HR 158 will only further isolate and alienate people of Arab, Middle Eastern, and South Asian descent. In this sense, HR 158 is a victory for the terrorists, whose true goal is to disrupt our society through acts of shocking violence and barbarism. Far from playing into their hands, we should reaffirm our national commitment to liberty, and continue to embrace pluralism. At our core, we remain a nation of many cultures,

ethnicities, and faiths, and are far stronger when we defend our core values and refuse to act in fear. Federal policy must be carefully drafted and deliberated given its wide-ranging scope and effect. As we have seen in the past with other pieces of national security legislation, such legislative acts can lead to slippery slopes. We at the ACRL urge you to oppose HR 158, and specifically its mandatory exclusion provisions, because they are ineffective, ill-conceived, and un-American.

Respectfully submitted,

ARAB-AMERICAN CIVIL RIGHTS LEAGUE (ACRL).

AILA: CONGRESS SHOULD REJECT H.R. 158 UNTIL ITS VISA WAIVER PROGRAM CHANGES ARE MORE CAREFULLY WEIGHED

WASHINGTON, DC.—The American Immigration Lawyers Association (AILA) expressed concerns regarding the Visa Waiver Program Improvement and Terrorist Prevention Act, H.R. 158, and recommended Congress vote ''NO'' on the bill unless modifications and clarifications are made.

''Protecting our nation from terrorists is absolutely essential, and AILA understands and supports efforts to strengthen the Visa Waiver Program, but Congress must consider any legislative proposal carefully, and this bill is getting rushed to the House floor without ever being reviewed in Committee. In fact, the bill was not even made public until just a day or two ago,'' said AILA President Victor Nieblas Pradis.

''AILA has serious concerns that H.R. 158 would broadly target descendants of Syrian or Iraqi nationals, or those from other countries alleged to be supporting terrorism, who may have little or no connection to those countries except by parentage,'' Mr. Nieblas continued, referring to the bill's blanket termination of participation in the Visa Waiver Program (VWP) for anyone who is a ''national'' of Iraq or Syria, or other designated countries. ''As written, the bill could result in discrimination that will exclude people without consideration of legitimate risk factors. For instance, a child who has never been to Syria, but was born in France to Syrian parents, would be ineligible for the VWP.''

H.R. 158 also excludes from the program anyone who travelled to countries alleged to be supporting terrorism within the past five years, without sufficient authority to waive revocation for those who clearly pose no threat. ''This per se ban will hurt humanitarian workers and journalists who are traveling to Iraq and Syria or other designated countries to do life-saving work or to report on international events. The bill's waiver will not help any of these people who have visited for legitimate, even compelling reasons,'' Mr. Nieblas noted, referring to a provision that allows the Secretary of Homeland Security to waive the exclusion if the waiver is in the interest of law enforcement or national security, but makes no mention of humanitarian or other grounds.

''History has shown overbroad programs that target people based on nationality, race, ethnic origin or religion are not effective at combatting terrorism. After 9/11, our government forced thousands of people from Middle-Eastern countries, and countries with predominantly Arab and Muslim populations, to undergo special processes to register themselves with the federal immigration authorities,'' Mr. Nieblas said, referring to the 2002 special-registration program under National Security Entry-Exit Registration System (NSEERS). The U.S. government described special-registration as an ''inconvenience'' in the same way some are now justifying H.R. 158's exclusion from VWP. He continued, ''Not a single known terrorism-related conviction ever came out of NSEERS. NSEERS is a stain on our nation's history that we should never repeat.''

H.R. 158 would also establish additional reporting requirements to Congress regarding use of the program, additional eligibility requirements for VWP countries, and enhancements to the Electronic System for Travel Authorization (ESTA). The agencies involved in the VWP have sought to continually improve and adapt the program as circumstances change. As Congress aims to enhance the program, it is essential that any changes are both workable and effective.

''Standing by our founding principles of freedom and liberty is what keeps us strong. AILA urges Congress to show leadership by ensuring any legislation it passes is consistent with our values as a nation, and is crafted in a way that is workable, sensible, and based on good policy, not political expediency,'' Mr. Nieblas concluded.

THE LEADERSHIP CONFERENCE ON CIVIL AND HUMAN RIGHTS,
Washington, DC, December 8, 2015.

Oppose H.R. 158, the Visa Waiver Program Improvement Act of 2015

DEAR REPRESENTATIVE: On behalf of The Leadership Conference on Civil and Human Rights, a coalition of more than 200 national civil and human rights advocacy organizations, we urge you to oppose H.R. 158, the Visa Waiver Program Improvement Act of 2015. Section 3 of H.R. 158 would open the door to the use of profiling on the basis of national origin, while doing little, if anything, to promote national security.

While H.R. 158 calls for a number of bipartisan improvements to the visa waiver program (VWP), Section 3 would make two significant and unhelpful changes. First, it would bar travelers from utilizing the process if they are dual nationals of a VWP country and also of Iraq, Syria, or other countries that are named as state sponsors of terrorism. Its overly-broad language would apply to nationals of those countries even if they have never set foot there, and are only dual citizens because of the nationality of their parents.

Second, it would exclude visitors from the VWP if they have traveled to Iraq, Syria, or other designated countries, even if they did so to provide medical or humanitarian assistance or many other legitimate purposes. The effect of this on national security is negligible at best, because it would only affect people who entered those countries through legitimate channels and accurately reported their travels—not those who snuck in through the poorly-secured borders in those countries to work with terrorist groups. In other words, it would simply penalize travelers for being honest.

While Iraqi or Syrian dual nationals, or people who have visited those countries, could still apply at a U.S. consulate for a nonimmigrant visa, they would be subjected to a process that raises concerns about ethnic and national origin profiling and other arbitrary practices. Under current procedures, consular decisions are not reviewable, which raises the likelihood that low-risk individuals would be barred from traveling to the United States altogether, while high-risk individuals would simply find other ways of doing harm.

We would support amendments to Section 3 that add due process protections for affected travelers. Because the bill is coming up on the suspension calendar, however, no such amendments will be allowed. We recognize that Congress is highly motivated to enact greater national security protections in the wake of the Paris and San Bernadino terrorist attacks, but we hope that you will reject this bill in its current form and demand that it be improved.

Thank you for your consideration. If you have any questions, please contact either of us or Rob Randhava, Senior Counsel.

Sincerely,

WADE HENDERSON,
President & CEO.
NANCY ZIRKIN,
Executive Vice President.

DECEMBER 7, 2015.

Re ACLU Concerns With the ''Visa Waiver Program Improvement and Terrorist Travel Prevention Act of 2015'' (H.R. 158)

DEAR REPRESENTATIVE: On behalf of the American Civil Liberties Union (ACLU), we urge you to amend the ''Visa Waiver Program Improvement and Terrorist Travel Prevention Act of 2015'' (H.R. 158).

I. H.R. 158 ARBITRARILY DISCRIMINATES AGAINST NATIONALS OF IRAQ, SYRIA, IRAN, OR SUDAN WHO ARE CITIZENS OF VISA WAIVER PROGRAM (''VWP'') COUNTRIES—BASED ON THEIR NATIONALITY AND PARENTAGE.

The VWP is a long-established program that permits nationals of certain countries to enter the U.S. as visitors (tourists or business) without a visa, for up to 90 days. H.R. 158 terminates travel privileges for all citizens of VWP countries who are dual nationals of Iraq, Syria, Iran, or Sudan. This revocation of VWP privileges would apply to all nationals of Iraq, Syria, Iran, or Sudan even if they have never resided in or traveled to Iraq or Syria. By singling out these four nationalities to the exclusion of other dual nationals in VWP countries, H.R. 158 amounts to blanket discrimination based on nationality and national origin without a rational basis.

There is no sufficient reason to justify the differential treatment of VWP citizens who are nationals of Iraq, Syria, Iran, or Sudan. There is no evidence to support assertion that citizens of VWP countries, who are dual nationals of these four are more likely to engage in terrorist acts against the U.S.

Not only is H.R. 158 discriminatory, it is arbitrary. Unlike the U.S. which grants citizenship to all children born on U.S. soil, birth within Syria does not automatically confer citizenship. Rather Syrian citizenship is conferred by naturalization or descent. With respect to descent, Syrian citizenship is conferred to children ''born of a Syrian father, regardless of the child's country of birth'' or children ''born of a Syrian mother and an unknown or stateless father.'' The proposal would yield the untenable result of folding such gender-based distinctions into U.S. law.

Therefore, if H.R. 158 were to become law, the following types of travelers would automatically lose their VWP privileges, even if they have never been to Iraq or Syria:

Dual-national French citizen (born to Syrian father) traveling to U.S. for business conferences and meetings;

Dual-national German citizen (born to Syrian father) traveling to U.S. with vacation tour group;

Dual-national Austrian citizen (born to Syrian father) traveling to the U.S. to take care of grandchild.

It is wrong and un-American to punish groups without reason solely based on their nationality, national origin, religion, gender, or other protected grounds.

II. H.R. 158 WOULD END VWP PRIVILEGES FOR ALL RECENT TRAVELERS TO IRAQ OR SYRIA, INCLUDING THOSE WHO TRAVELED THERE FOR PROFESSIONAL PURPOSES

H.R. 158 would terminate VWP travel privileges for all who have been present in Iraq or Syria at any time on or after March 1, 2011. This broad travel restriction contains a very

narrow exception for certain military personnel and government officials. All other travelers would automatically lose their VWP privileges. Affected travelers would include journalists, scholars, refugee caseworkers, humanitarian aid workers, human rights investigators, and many others.

Under H.R. 158, the following types of travelers would automatically lose their VWP privileges based on their travel to Syria or Iraq since March 2011:

British citizen, working as a reporter for the London-based Daily Telegraph who traveled to Syria to cover the civil war;

Swiss citizen, working as a social worker in a Kurdish refugee camp in northern Iraq;

Belgian citizen, working as a human rights investigator to document abuses committed by ISIL against Syrians.

Many of these VWP travelers have gone to Syria or Iraq for professional purposes and are producing reports and providing services that the U.S., indeed the whole world, depends upon, now more than ever. They should not lose their VWP travel privileges for their work in Syria or Iraq.

III. CONGRESS MUST PLACE A TIME LIMIT ON MEASURES TO REVOKE VWP TRAVEL PRIVILEGES

When Congress created the VWP years ago, Congress authorized the Attorney General, in consultation with the Secretary of State, to designate certain countries as VWP countries. Congress has never codified any nationality-based prohibitions for VWP program designation. If the House passes this bill, it will be enshrining into statute that VWP citizens, who happen to be Iraqi or Syrian nationals, are categorically ineligible for VWP travel privileges even if they have never been to Iraq or Syria.

In view of this extraordinary discriminatory measure, Congress should limit the duration of this VWP restriction and place a two-year sunset on this travel restriction. A sunset provision would require Congress to reassess in two years whether nationals of Iraq and Syria warrant such selective targeting for VWP travel restriction purposes.

IV. CONCLUSION

While the ACLU recognizes the importance of a Congressional response to the increase in recent terrorist attacks, we urge Congress to exercise caution and to avoid passing legislation that would broadly scapegoat groups based on nationality, and would fan the flames of discriminatory exclusion, both here and abroad. We, therefore, urge the House to amend H.R. 158 by: (1) Deleting the langpge that categorically strips VWP privileges from all Iraqi and Syrian nationals; (2) Expanding the exemption to include journalists, researchers, human rights investigators, and other professionals; and (3) Inserting a two-year sunset date to the travel restrictions on the use of VWP.

In the absence of such changes, we have grave reservations about this proposal.

For more information, please contact ACLU Legislative Counsel Joanne Lin or Policy Counsel Chris Rickerd.

Sincerely,

KARIN JOHANSON,
Director; Washington Legislative Office.
JOANNE LIN,
Legislative Counsel.
CHRIS RICKERD,
Policy Counsel.

HOUSE OF REPRESENTATIVES,
December 7, 2015.

Re Visa Waiver Program Improvement and Terrorist Travel Prevention Act, H.R. 158.

DEAR REPRESENTATIVE: On behalf of the American-Arab Anti-Discrimination Committee (ADC), I write to strongly urge you to Vote No on the Visa Waiver Program Improvement and Terrorist Travel Prevention Act, H.R. 158. We have serious concerns on the application and enforcement of this bill if it were to become law, specifically Section 3 which 1) imposes a mandatory and categorically bar to the Visa Waiver Program (VWP) on any individual who is a dual citizen of Syria, Iraq, Sudan, and Iran; and 2) prohibits any person whom has traveled to Syria, Iraq, Iran, and Sudan since March 1, 2011.

We understand that the U.S. House of Representatives may push forward H.R. 158 through the omnibus appropriations bill, and strongly request you to Vote No to H.R. 158 and/or its inclusion in an omnibus bill because H.R. 158 is: 1) ineffective to actually secure safety; and 2) intentionally discriminates and profiles persons based on their national origin.

Section 3's blanket exclusion of visitors to Iraq and Syria would not be an effective security measure as it relies on self-reporting accurate tracking of who visits those countries that could be circumvented by someone intending to do harm—the persons who are intent on engaging in terror activities are not getting their passports stamped, they are sneaking into Syria and Iraq. The provision is more likely to screen out health and aid workers, clergymen, journalists, teachers, military personnel, translators, family visitors and others who are helping protect Americans or have legitimate or completely innocent reasons to visit Syria or Iraq—essentially penalizing them for their honesty and performing humanitarian work.

It is not black and white, nor simple to suggest that H.R. 158 just requires individuals to get a visa. H.R. 158 is not just a visa requirement, H.R. 158 is discriminatory. Section 3 imposes a mandatory bar to all persons whom are dual citizens of Syria, Iraq, Sudan, and Iran is blatant profiling on its face. Only nationals of particular countries regardless of whether they have traveled to a terrorist support country or not, have to meet additional requirements they would not otherwise have to go through if they were not Arab. It is premised on the unreliable assumption that Arabs are more prone to terrorism and to commit terrorist acts, and further perpetuates stereotypes that Arabs are terrorists. There is no separate assessment and/or security review is done that determines that specific person on a case by case basis is a security threat, non-related to their identity, place of birth, or country of national origin.

The fact is that terrorism is not limited to one particular race, country of national origin, or religion, nor bound by country borders. However, this bill paints Arabs as the enemy, and makes VWP Arab nationals second class citizens in their own country—they are not afforded the same benefits as their fellow nationals. Many VWP nationals will be arbitrarily denied entry by Customs and Border Patrol with little to no notice of change in VWP requirements and no review if that person actually presents a threat to national security. Currently, Arabs face enormous scrutiny and security checks to enter the U.S. and many have been denied entry even with valid non-immigrant and immigrant visas, based on no other reason but their national origin. You should not support the further arbitrary exclusion of a group of people based on nothing but that person's national origin.

Historically programs with sweeping powers to exclude people based on nationality, race, ethnic origin or religion have proven to be ineffective. In 2002, the U.S. government established the special-registration program under National Security Entry-Exit Registration System (NSEERS) requiring heightened registration and scrutiny of people in the U.S. who came from mostly Arab and Muslim countries. NSEERS was initially portrayed as an anti-terrorism measure which required male visitors to the U.S. from 25 Arab and Muslim countries to be fingerprinted, photographed, and questioned by immigration officers. Many whom complied with registration were arbitrarily detained and deported. NSEERS proved to be an ineffective counter-terrorism tool, and has not resulted in a single known terrorism-related conviction. We also should not forget the detrimental ramifications of blanket immigration exclusion and discrimination against Asians with the Chinese Exclusion Act.

Rather than imposing an ineffective ban from VWP on people who set foot in Syria and Iraq and excluding groups of people based on their national origin, Congress should consider other security measures that would more effectively enhance the Department of Homeland Security's screening process overall. We must also be weary of how VWP countries will treat Americans of Arab and Middle Eastern background, and may single out and exclude our citizens from entry in their respective immigration processes.

ADC strongly urges you to Vote No to H.R. 158 and stand up against profiling. The automatic exclusion of dual citizens of VWP countries and the designated Arab countries, and recent visitors to Iraq and Syria is discriminatory. The reactionary government actions following the Pearl Harbor attack—Japanese Internment camps and 9/11—arbitrary detention and surveillance of Arabs—are cautionary tales that we must heed to now and remember that we cannot let fear erode respect and protection of civil and human rights.

Respectfully Submitted,

SAMER KHALAF, ESQ.;
ADC National President.

HOUSE OF REPRESENTATIVES,
December 4, 2015.

Re Visa Waiver Program Security Enhancement Act, S. 2337.

DEAR REPRESENTATIVE: The undersigned organizations write to express our concern regarding the Visa Waiver Program Security Enhancement Act, S. 2337, specifically Section 2 of the bill which imposes a mandatory and categorical bar to the Visa Waiver Program (VWP) on any individual who has traveled to Syria or Iraq within the previous five years. We understand that the House of Representatives may look to S. 2337 as it related to pushing forward on H.R. 158, the Visa Waiver Program Improvement Act. In any discussions regarding reforms to the VWP, including the omnibus appropriations bill, we urge you to remove provisions that specifically target people who visit or are from Syria or Iraq.

The bill's blanket exclusion of visitors to Iraq and Syria would not be an effective security measure as it relies on self-reporting accurate tracking of who visits those countries that could be circumvented by someone intending to do harm—the persons who are intent on engaging in tenor activities are not getting their passports stamped, they are sneaking into Syria and Iraq. The provision is more likely to screen out health and aid workers, clergymen, journalists, military personnel, translators, family visitors and others who are helping protect Americans or have legitimate or completely innocent reasons to visit Syria or Iraq essentially penalizing them for their honesty.

The provision is premised on the unreliable assumption that people from those countries are more likely to commit terrorist acts, and

it makes anyone who visits those countries automatically suspect of terrorism. While the draft legislation on its face applies to all persons who have traveled to Syria or Iraq, in reality the legislation will have a disparate impact on people of Syrian and Iraqi descent. Historically programs with sweeping powers to exclude people based on nationality, race, ethnic origin or religion have proven to be ineffective. In 2002, the U.S government established the special-registration program under National Security Entry-Exit Registration System (NSEERS) requiring heightened registration and scrutiny of people in the U.S. who came from mostly Arab and Muslim countries. NSEERS proved to be an ineffective counter-terrorism tool, and has not resulted in a single known terrorism-related conviction. Department of Homeland Security (DHS) suspended NSEERS in 2011.

Rather than imposing an ineffective ban from VWP on people who set foot in Syria and Iraq, Congress should consider other security measures that would more effectively enhance the Department of Homeland Security's ability to identify and screen out terrorists and dangerous individuals who pose threats to our nation.

The automatic exclusion of recent visitors to Iraq and Syria is discriminatory and will alienate Americans of Arab, Muslim, Middle Eastern and South Asian descent. The better way to combat terrorism in the U.S. is to ensure strong relations with these communities. With respect to Syrian refugees, former Sec. of State Madeleine Albright said ''Our enemies have a plan. They want to divide the world between Muslims and non-Muslims, and between the defenders and attackers of Islam. In the aftermath of recent terrorist attacks, America must show its leadership by ensuring we remain an open society that welcomes people of all nationalities, faiths and backgrounds.

Respectfully Submitted,

American-Arab Anti-Discrimination Committee (ADC), American Immigration Lawyers Association (AILA), Asian Americans Advancing Justice (AAJC), Asian Law Caucus, Council on American-Islamic Relations (CAIR), Human Rights Watch, Iraq Veterans Against the War, Just Foreign Policy, League of United Latin American Citizens (LULAC), The Leadership Conference on Civil and Human Rights, NAACP, National Immigration Law Center, National Network for Arab American Communities, Student-Led Movement to End Mass Atrocities (STAND), SustainUS.

Mr. CONYERS. Mr. Speaker, while there are many positive aspects to the legislation, I believe, in the end, we cannot countenance anything in our laws that judges individuals based on their nationality rather than their character.

Mr. GOODLATTE. Mr. Speaker, I yield 3 minutes to the gentleman from Texas (Mr. MCCAUL), the chairman of the Homeland Security Committee.

Mr. MCCAUL. Mr. Speaker, I want to thank Chairman GOODLATTE and Chairman MILLER for their leadership.

I rise in support of this bill, the Visa Waiver Program Improvement and Terrorist Travel Prevention Act.

Our Nation faces the highest terror threat environment since 9/11, and we must do everything possible to shut down terrorist pathways into this country. We are working hard to do just that with this bill. Last month, the House voted overwhelmingly to pass bipartisan legislation I drafted to prevent terrorists from entering the United States posing as refugees.

They have already done this to attack Paris. And this year, the Office of the Director of National Intelligence warned me that the National Counterterrorism Center has identified individuals with ties to terrorist groups in Syria attempting to gain entry to the U.S. through the U.S. refugee program.

I am concerned that terrorists are attempting to exploit the U.S. refugee program to enter our country and that we currently lack the ability to confidently vet Syria refugees to weed out individuals with potential terrorist ties. Top law enforcement and intelligence officials have testified before my Committee that terrorist groups have expressed a desire to infiltrate refugee programs to enter the United States and Europe, and ISIS has said in their own words that they intend to do so. In Paris, we saw them follow through on those pledges, sneaking at least two operatives into Europe posing as refugees. It also appears that individuals with extremist links have already tried to gain entry to our country as refugees. This year the Office of the Director of National Intelligence informed me in writing that the National Counterterrorism Center has identified ''. . . individuals with ties to terrorist groups in Syria attempting to gain entry to the U.S. through the U.S. refugee program.'' This is deeply troubling. At this time, I am concerned that serious intelligence gaps preclude us from conducting comprehensive screening to detect all Syrian refugees with terrorist ties, and as a result I have proposed adding additional national security checks to the process before the United States approves any further admissions. Naturally, the States are concerned that the refugees being resettled in their communities may not have been effectively screened—especially given the volume of refugees the Administration has committed to accepting. Refugee resettlement is within the purview of the federal government. However, the Administration must be transparent in sharing information with the States about the people being resettled within their borders. The Refugee Act of 1980 requires that the federal government ''shall consult regularly'' with state and local governments and private nonprofit voluntary agencies concerning the intended distribution of refugees. In Texas, it appears the federal government has not fully held-up its end of the bargain.

But we must go further. More than 30,000 individuals from 100 countries have gone to Syria to join jihadist groups, and 5,000 of them have Western passports. This includes several of the Paris attackers, who could have traveled to the United States without a visa.

That is why this legislation is so important before us here today. It will close security gaps in the Visa Waiver Program to keep terrorists from entering our country undetected. It also includes several recommendations from the bipartisan Task Force on Combating Terrorist and Foreign Fighter Travel, which I created earlier this year.

This Member-led panel uncovered gaping security weaknesses overseas, including the fact that some countries are not sharing intelligence on terrorists, many are not screening travelers against critical counterterrorism databases, and too few of them are cracking down on passport fraud.

This bill would help close those security gaps to keep terrorists from crossing borders. And it would implement several of the task force's top recommendations to ensure Visa Waiver Program countries are living up to their obligations and ramping up security.

With that, Mr. Speaker, I want to thank the chairman of the Judiciary Committee. I also want to thank those on the other side of the aisle for working in a bipartisan spirit, in a cooperative nature on what I consider to be one of the biggest security gaps we have facing this country after the Paris attacks and after San Bernardino. And I want to thank our colleagues on the other side of the aisle.

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Ms. LOFGREN. Mr. Speaker, I yield 3 minutes to the gentlewoman from Texas (Ms. JACKSON LEE), a member of the Judiciary Committee as well as of the Homeland Security Committee.

Ms. JACKSON LEE. Let me thank the gentlewoman for her leadership. As well, I thank the gentleman from Mississippi (Mr. THOMPSON), the chairman of the Border and Maritime Security Subcommittee, of which I am a member—Chairman MILLER—and Messrs. MCCAUL and GOODLATTE.

Mr. Speaker, as I have indicated, in my having been on the floor today, America is looking for the homeland to be secure, and they are looking for it to be done in a thoughtful manner.

Just a week ago, I did not vote for a bill that would have stopped innocent refugees who had been in camps for 2 years or more—mothers and fathers and seniors and children—because I knew there was a 21-list vetting system that would ensure that those refugees who had languished in refugee camps and who had been suffering would be a small number—an infinitesimal number—coming into the United States.

We heard debate earlier today about another loophole that could be ended, and that is to stop terrorists from getting guns—a thoughtful proposal. Most Americans didn't realize the loophole existed.

Now we come to a program that is, likewise, a thoughtful program. It has nothing to do with refugees. It has nothing to do with ending the Visa Waiver Program of 38 nations. What it has to do with is, if you have been in the areas where the caliphate is, where the fight has been taken to, Syria and Iraq, we just ask for an added interview. I might imagine that, in the course of that, there will be human rights activists and journalists. I would imagine, as well, that our officials who will be doing the interviews will be sensitive to the fact of legitimate journalists who have gone to do their reporting.

I think it is very important that the American people know that we are working to craft a thoughtful approach. This is a thoughtful approach. It simply asks for individuals to go for an interview who are part of the Visa Waiver Program in the countries that they have them or who are dual nationals.

Likewise, I have introduced legislation, H.R. 48, No Fly for Foreign Fighters, that asks for an added vetting for the terrorist watch list to make sure that no one on that list who is coming from overseas gets on an airplane. This will protect the American people.

In the course of trying to be constructive, I think the hearings that we had in Homeland Security indicated another layer, another level, of just making sure that those who are trying to use the Visa Waiver Program are not abusing the Visa Waiver Program. That is our effort here today, that they not abuse it and, by some ill fate, allow someone who comes to this Nation to do us harm. Homeland security, protecting the national security, is a layer that is constructive and constitutional. This is constructive, and it is constitutional.

I ask my colleagues to support the underlying legislation.

Mr. Speaker, this has been a stressful year in our country and our world with past senseless gun violence and terroristic acts against Americans and citizens the world over.

I rise in support of H.R. 158—the Visa Waiver Program Improvement and Terrorist Travel Prevention Act'' because it facilitates a rigorous vetting of tourists seeking to enter into our country.

In addition to the steps laid out by the President, I also believe there are additional steps the Congress should take, including bringing to the floor for debate and vote H.R. 48, the ''No Fly for Foreign Fighters Act,'' that I introduced earlier this year.

My legislation would require the TSA to check the Terrorist Screening Database and the terrorist watch list used in determining whether to permit a passenger to board a U.S.-bound or domestic flight and to take appropriate steps to ensure that those who pose a threat to aviation safety or national security are included in the Terrorism Database.

From San Bernardino to Paris, to Nigeria, to Mali, to Beirut, the carnage of violence has been perpetrated on the human family by those who should never be in possession of violent weapons or power.

But we cannot allow these atrocities to dissuade us from interacting with and welcoming those interested in traveling to and learning more about our country.

Mr. Speaker, as a Member of Congress and senior member on the homeland security and ranking member on the Judiciary subcommittee on Crime, Terrorism and Homeland, my top priority is the safety of the American people.

In times of conflict and stress and trauma, our natural inclination is to point fingers and seek to cast blame as we have seen Mr. Donald Trump do.

But we all know that deep down, this does us no good and that it runs afoul of our American ideals.

What we must do is focus our efforts on the most likely security threats to our homeland and not scapegoat the thoroughly screened individuals who seek to come to the U.S. through the Waiver Program.

We cannot throw a net of suspicion over an entire nation, even as the United States accepts more refugees—including Syrians.

Our system facilitates the most rigorous screening and security vetting of ANY category of traveler or immigrant to the United States before the refugee sets foot on U.S. soil.

Indeed, the Republican bill, H.R. 4038, that passed the House in November would immediately shut down refugee resettlement from the Syria and Iraq region and severely handicap refugee resettlement in the future.

To date, there is no reliable evidence that the individuals who committed the heinous attacks in Paris on November 13th were refugees.

Currently, the Visa Waiver Program allows citizens from 38 countries from around the world, including the United Kingdom, France, Belgium and Japan, to enter the United States without a visa.

One of the main intents of the Visa Waiver Program is to stimulate the U.S.' economy by encouraging tourism, cultural exchange, business, and job growth between the United States and our international partners.

The travel industry estimates that the VWP contributed $190 billion to our economy in 2014.

It should be noted that Visa waiver travelers cannot simply grab their passports and hop on the next flight to the United States.

Rather, under current law, citizens from participating Visa Waiver Program countries are required to complete a U.S government online security screening form prior to their admission to the United States.

These participants also undergo an additional level of screening at the port of entry by a Customs and Border Patrol official.

This bipartisan bill provides for specific, concrete changes that will ensure better information-sharing among intelligence and law enforcement agencies.

The Program requires screening of all travelers against INTERPOL databases to identify high-risk travelers.

The Program makes it challenging for extremists to falsify their identities by requiring fraud-resistant e-passports that contain biometric information.

The Program compels U.S. security agencies to conduct more frequent threat assessments of VWP countries.

The bill also requires nationals of Iraq, Syria, and other designated countries, or those who have visited such countries, to have an in-person interview with a U.S. Department of State Consular official and undergo more lengthy screenings prior to travel to the United States.

This bill employs intelligent measures to enhance the security of the American people by improving information sharing between VWP country partners and the United States, including a requirement that WP countries report theft/loss of their citizens' passports to the United States within 24 hrs.

This bill is a more appropriate response than the Republican drafted the ''American SAFE Act of 2015.''

It deserves a vote in the House.

Mr. GOODLATTE. Mr. Speaker, I yield 2 minutes to the gentleman from Louisiana (Mr. SCALISE), the majority whip.

Mr. SCALISE. I thank my colleague from Virginia for yielding.

Mr. Speaker, I rise in strong support of this important legislation by the gentlewoman from Michigan (Mrs. MILLER).

To defeat ISIS, it is going to take strong leadership, and it is going to take a strong strategy. I think it is clear that the President's approach isn't working. In fact, our intelligence officials tell us that ISIS is not only not being contained, but now we are seeing that they are coming to America, that they are attacking America, and that has been their stated goal. It is incumbent upon us to do everything we can. Frankly, the American people deserve to know that their government is doing everything in its power to protect them from the threat of terrorists. These are very real threats.

In the House, we have been taking decisive action. We have already passed a bill to address the problems of the lack of vetting in the refugee program, a program that ISIS, itself, has said it plans to exploit in order to bring terrorists into America. The FBI Director has even confirmed those concerns that we have expressed, and we have passed legislation to address that.

Today, Mr. Speaker, we are bringing forth strong, bipartisan legislation to reform the troubled Visa Waiver Program. We have seen that thousands of people with Western passports, including from the Visa Waiver Program nations, have been going to some of the troubled regions, like Syria, like Iraq, like other countries. There ought to be a higher level of scrutiny. This bill requires the Department of Homeland Security to work with those nations in order to have a higher level of scrutiny so as to ultimately lead to a more secure United States of America.

I encourage all of my colleagues to pass this legislation. Let's continue to do what we need to do in the House of Representatives to protect the American people from the real threat that ISIS poses.

Ms. LOFGREN. Mr. Speaker, I yield 3 minutes to the gentleman from Mississippi (Mr. THOMPSON), the ranking member of the Homeland Security Committee.

Mr. THOMPSON of Mississippi. I thank the gentlewoman from California for yielding the time.

Mr. Speaker, I rise today in support of H.R. 158, the Visa Waiver Program Improvement and Terrorist Travel Prevention Act of 2015.

This bipartisan legislation will help better secure the Visa Waiver Program, which facilitates travel to the U.S. for 20 million visitors from 38 participating countries for both business and pleasure.

While the program provides important security benefits through information-sharing agreements between participating countries and significant

economic benefits from tourism, the potential security vulnerabilities of this program have been a concern.

I was a primary author of provisions in the Implementing Recommendations of the 9/11 Commission Act of 2007, which bolstered the security of the Visa Waiver Program by requiring an Electronic System for Travel Authorization, called ESTA. Through the ESTA program, Visa Waiver travelers are vetted prior to their departure to the U.S.

I applaud the Department of Homeland Security for its recent efforts to make further enhancements to the ESTA program. These improvements will better secure the Visa Waiver Program, but Congress needs to do its part. That is why I am pleased to support H.R. 158. The bill was reported unanimously by voice vote from the Committee on Homeland Security earlier this year, and additional security-related provisions were added on a bipartisan basis in recent days.

H.R. 158 would strengthen passport requirements for Visa Waiver travelers and require Visa Waiver participants to report lost or stolen passports within 24 hours. Enhanced information-sharing requirements would also be in place for Visa Waiver countries. In addition to that, it would mandate that Visa Waiver countries screen arriving and departing noncitizens against INTERPOL databases. Mr. Speaker, this is a good bill. Its time has come.

I thank Mrs. MILLER of Michigan for her diligence in bringing it before our committee, and I thank Ms. LOFGREN for her work in this effort. I look forward to the passage of this bill.

Mr. GOODLATTE. Mr. Speaker, I yield 2 minutes to the gentleman from Texas (Mr. POE), a member of the Judiciary Committee.

Mr. POE of Texas. Mr. Speaker, we all know that ISIS is not contained. ISIS, in fact, is expanding its reign of terror. Its fighters hold passports from different countries around the world. We know they are embedded in Western countries, are able to travel freely, and are hard to track down—and they want to do us harm.

Under the current Visa Waiver Program, individuals from 38 countries are exempt from the standard vetting process to get a visa and come to America. Hold a passport from one of these 38 countries, and you can just jump on a plane and come here. Those 38 countries are supposed to share their watch lists with us, but some of them don't. That makes it easier for the bad guys to fly to America.

So this bill fixes that real loophole in the current system. Those 38 countries will now be required to share their watch lists with us. If they don't, they are prohibited from being in the Visa Waiver Program. Foreign citizens who have recently traveled to Iraq and Syria will also be required to go through additional screening.

Mr. Speaker, terrorist fighters have America in their hateful, evil sights. We must do all we can to stop them from coming here, and the status quo just won't keep us safe. As chairman of the Terrorism, Nonproliferation, and Trade Subcommittee of the House Foreign Affairs Committee, I totally support this commonsense legislation.

And that is just the way it is.

Ms. LOFGREN. Mr. Speaker, I yield 3 minutes to the gentleman from Maryland (Mr. HOYER), our whip.

Mr. HOYER. I thank the gentlewoman for yielding.

Mr. Speaker, I rise in support of this legislation.

I want to thank Ranking Member BENNIE THOMPSON, Ms. LOFGREN, who worked very hard on this, and Democrats on the Homeland Security Committee and on the immigration policy and enforcement Judiciary subcommittee for their hard work to ensure that this bill will protect Americans from the threat of terror while we remain true to our highest principles and ideals.

House Democrats and House Republicans have no greater priority than keeping Americans safe. That is neither a partisan issue nor is it a partisan difference.

Many Americans are frustrated with the pace of progress against ISIS in Iraq and Syria. I want to see the administration and Congress working together to protect our Nation. The reforms in this bill are an excellent start. What we have before us today, Mr. Speaker, is an example of what we can achieve when both sides work together to craft responsible reforms in a spirit of unity and common purpose, which is: in the face of the threats we challenge, we ought to summons.

I want to thank the majority leader, Mr. MCCARTHY, for working with me and our side of the aisle, and I want to thank those on the Republican side of the aisle for working together to get this bill done.

The Visa Waiver Program has long been a tool to promote business ties and tourism, both of which are vital to our economy. We cannot—nor should we—simply shut our doors to the world if we want to continue to lead the world. This legislation will make it easier for law enforcement to vet those visitors who are coming from Visa Waiver countries, such as in Europe, to ensure that we are not admitting those who have traveled to places like Iraq and Syria and link up with ISIS.

This is now the third major bipartisan piece of legislation to come to the floor in the past 2 weeks after the highway bill, which included a provision to reopen the Export-Import Bank, and the Elementary and Secondary Education Reauthorization Act. I hope—and I think the American people would expect—again, in light of the challenges that confront us, that we can build on this progress and complete a bipartisan agreement to keep government open before the week is done.

I want to thank, once more, Ranking Member ZOE LOFGREN, who knows so much about this issue and who has been so faithful in her attention to both our values and the protection of the American people. I thank BENNIE THOMPSON as well, the ranking member of the Homeland Security Committee, on our side of the aisle. I also want to thank the chairman of the Judiciary Committee for his leadership on this issue as well as all of those who have worked on a number of issues.

This will not be the last word, but it is a good word, and I urge my colleagues to support it.

Mr. GOODLATTE. Mr. Speaker, I yield 1 minute to the gentleman from New Jersey (Mr. LANCE).

Mr. LANCE. Mr. Speaker, I rise today in strong support of the Visa Waiver Program Improvement and Terrorist Travel Prevention Act, which will strengthen the Visa Waiver Program in order to help prevent foreign terrorists from entering the United States.

This legislation comes at a critical time. The heinous acts of terror and mass murder perpetrated in Paris and San Bernardino demonstrate the alarming strength and reach of ISIS and its allies.

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This threat is certainly not contained, and our fight against radical jihadists at home and abroad must be the Nation's most pressing issue.

Passing H.R. 158 will close a dangerous loophole that we know terrorists will exploit to carry out acts of terror here in the United States. Terrorists such as the September the 11th so-called 20th hijacker, Zacarias Moussaoui, and the shoe bomber, Richard Reid, both used a Visa Waiver Program to enter the United States.

We must be ever vigilant in the face of these great threats. I urge a ''yes'' vote on H.R. 158.

Ms. LOFGREN. Mr. Speaker, I yield 2 minutes to the gentleman from California (Mr. SCHIFF), the ranking member of the Intelligence Committee.

Mr. SCHIFF. Mr. Speaker, I rise in support of H.R. 158, the Visa Waiver Program Improvement and Terrorist Travel Prevention Act.

The Visa Waiver Program is overall an excellent program that facilitates the travel of more than 20 million people to the United States each year, travelers who encourage cultural exchange and contribute significantly to our economy through tourism and job growth.

The overwhelming majority of travelers who utilize the program are not a threat in any way. However, even a small number of individuals can do us grave harm. Among those of greatest concern are European citizens who return to countries like France and Belgium after traveling to Iraq and Syria to train with terror forces.

It is incumbent upon us to take every precaution to ensure these individuals cannot exploit the Visa Waiver Program to enter the United States.

The reforms we are voting on today are reasonable, and they are appropriately targeted improvements to this important program. Specifically, they will require that nationals of Iraq and Syria as well as other designated countries and those who have traveled to these countries since 2011 undergo an in-person interview with a U.S. official and more rigorous security screening processes prior to traveling to the United States. It will also require DHS to strengthen its background check procedures and ensure improved information sharing among intelligence and law enforcement agencies.

In the wake of the recent terror attacks, we must continue to review our existing security efforts to ensure we are doing all we can to protect the country. Rather than focus on the refugee resettlement program, which is the most heavily screened and lengthy process to enter the United States, Congress should focus our energy on closing known vulnerabilities that could allow those who mean us harm to enter the United States quickly and with little scrutiny. This bill does just that.

I urge my colleagues to vote in favor of this legislation.

Mr. GOODLATTE. Mr. Speaker, I yield 3 minutes to the gentleman from Iowa (Mr. KING), a member of the Judiciary Committee.

Mr. KING of Iowa. Mr. Speaker, I thank the chairman for working together with others to bring this bill forward.

I rise in full support of H.R. 158, which is the Visa Waiver Program Improvement and Terrorist Travel Prevention Act of 2015.

We all know that it takes a lot of pieces of legislation to fill some of the holes that exist, but I am pleased that this bipartisan effort has come to the floor of the House of Representatives, Mr. Speaker.

I will say that, as I look at the language that is in here and the pieces of it, to recognize that as the tighter scrutiny to the Visa Waiver Program, which I have had some concern about over the years, 38 countries enjoy the relationship with the United States of a Visa Waiver Program.

The way it functions is, if an individual of one of the participating countries has a valid passport from their own country and they sit down in front of the Internet, they can input that information and essentially clear themselves to be able to travel to the United States without further bureaucracy.

That is a good thing on balance, but a bad thing when we have people that have dual nationalities or people who give indicators, such as having traveled back and forth to some of the countries that we have concerns about as being those countries where terrorists are, let's say, radicalized or sponsored.

I am a little concerned that our list isn't a little longer than this. The countries that are covered with this bill are Iraq, Syria, and, by definition, Sudan and Iran. I am hopeful that the Secretary of Homeland Security will take a look at some other countries to tighten this up a little bit more.

I just returned from that part of the world, Mr. Speaker, probably about a month ago, perhaps a little less. I traveled into Turkey, into Iraq, into the Kurdish region, Erbil, and then west as far as I could go up towards the ISIS lines.

I visited a refugee camp there and then back into Turkey, up to Hungary, down to Serbia, into Croatia, back out of there again, and then determined to skip Germany and Austria this time, but traveled up to Sweden to look at the other end of this.

There I sat with a briefing of our State Department. Some of that in that room is confidential, but we are working with these countries to tighten up our security. We are offering the expertise that we have developed here because we deal with a lot more people and a lot more travel than they do. I am hopeful that we will be able to share more of our intelligence also with the countries that are participating in a Visa Waiver Program.

This will help tighten it up. Mr. Speaker, it will identify those who have traveled to some of these terrorist-sponsoring countries, and it will also require that they exchange information with us so that we can monitor them more closely.

If someone travels and essentially lies about their travel—if they have, say, traveled to Iran, traveled to Iraq, maybe Sudan or Syria, and they apply for a visa waiver—we will either have a software program that will kick that out because it shows up on their passport or we will catch up with that and cancel their visa waiver. In any case, it is heightened scrutiny and heightened security for us. We need to do a lot of things to tighten this up, and this is one.

It is one also that respects our relationship with the visa waiver countries, those 38. It is prudent. It is careful. It puts authority into the hands of the Secretary of Homeland Security. It is the right bill. It is bipartisan. I urge its adoption.

Ms. LOFGREN. Mr. Speaker, I yield 2 minutes to my good friend from Minnesota (Mr. ELLISON).

Mr. ELLISON. Mr. Speaker, I do support the fact that we are looking at the Visa Waiver Program. However, after scrutinizing this bill, I think that it is not the right bill and I don't plan on supporting it.

It is not that I can't support any part of it. There are key things that I cannot abide, but I urge the parties to keep on working on it because I think the effort is proper.

Here is what I think is specifically wrong with this. If it were to change, I might reconsider my position. The categorical stripping of the Visa Waiver Program privileges from all Iraqi and Syrian nationals I think is problematic. I think it is overbroad. I don't think it is necessary.

Number two, I think there should be exemptions for people who do clearly recognized legitimate work, such as journalists, researchers, human rights investigators, and other such professionals.

Number three, I think the 5-year sunset is too long. I think it should be shorter. I do think 3 years would work just fine.

I just want to say that the Visa Waiver Program Improvement and Terrorist Travel Prevention Act of 2015 does contain, as we stand here, discriminatory elements, which I don't believe will effectively stop terrorism. In fact, I think it sends a wrong message to dual nationals and Iraqi and Syrian tourists.

This bill bars people who are dual nationals from Syria, Iraq, Iran, and Sudan from participating in the Visa Waiver Program even if there is no evidence that they are a security risk. I think our focus should be on behavior, not just country of origin.

This bill would also end visa waiver eligibility for people who traveled to Iraq or Syria in the last 5 years. For example, this bill would make an elderly French citizen who is a dual national of Syria go through an often lengthy visa approval process simply because she wanted to travel to the U.S. to attend a wedding or a birthday or something. What does this provision mean for a Swiss doctor who traveled to Iraq to work in a refugee camp providing medical care, but wants to come to the U.S. for a conference or something like that?

While this bill does not restrict entry to the U.S., it creates additional barriers. It should be worked on a little more to fix these problems. I do thank the parties for working in a bipartisan way to bring greater safety to our country.

Mr. GOODLATTE. Mr. Speaker, I yield 2 minutes to the gentlewoman from Arizona (Ms. MCSALLY), the chairman of the Subcommittee on Emergency Preparedness, Response, and Communications of the Homeland Security Committee.

Ms. MCSALLY. Mr. Speaker, I want to thank Chairwoman MILLER for this thoughtful legislation. I rise today in support of H.R. 159.

I was a proud member of the Committee on Homeland Security's task force on combatting terrorists and foreign fighter travel. The task force bipartisan report, which was a culmination of 6 months of investigative activities, contained many troubling findings related to the ease with which foreign fighters from Visa Waiver Program-participating countries could seek entry into the United States.

Of the estimated 30,000 foreign fighters that we are aware of, at least 4,500 hold western passports. This is made even more alarming by the fact that 30 of the 38 Visa Waiver Programs are in Europe.

I am pleased that this legislation that we are considering today takes

steps to address many of the task force's findings related to this program. The bill prohibits individuals that travel to Iraq and Syria from using the program. It requires termination of a participating country for failing to screen against INTERPOL's criminal and terrorism databases. It authorizes the Secretary of Homeland Security to suspend participating countries when it is determined that they pose a high risk to the national security of the United States.

ISIS has better resources and is more brutal and more organized than any terrorist organization to date. We must use all the tools at our disposal to defeat them. I am particularly pleased that this bill recognizes the need to continually update and secure the Electronic System for Travel Authorization, or ESTA, a key task force recommendation.

As part of this effort, we must leverage new and innovative technologies. The bill requires the Secretary of Homeland Security to explore opportunities to incorporate technology into ESTA that will detect deception and fraud.

A number of promising deception detection technologies have been developed, including one developed at the University of Arizona in my district. Deception can be difficult to detect when you are interviewing an individual face to face. It is even more difficult to detect the deception in online forums like ESTA uses.

The technology developed at the University of Arizona called Neuro-Screen identifies typing, scrawling, and other computer-use patterns to capture motor nervous system signals associated with deceptive and suspicious behavior. We must leverage technology, such as Neuro-Screen, to enhance screening programs like ESTA.

Mr. Speaker, we all want to ensure that people from around the world can travel here to experience all the wonders and the freedoms of the United States. As we welcome travelers here, we must do so in a way that keeps us safe.

That is why I support H.R. 1158. I urge all our Members to support this thoughtful bipartisan legislation.

Ms. LOFGREN. Mr. Speaker, I yield 2½ minutes to the gentlewoman from Nevada (Ms. TITUS).

Ms. TITUS. Mr. Speaker, as the Representative from Las Vegas, one of the world's greatest tourist and business travel destinations, I, too, rise in favor of H.R. 158.

This bill strengthens the Visa Waiver Program to help ensure that potential terrorists are not able to abuse it to bypass security checks and come to the U.S. to do us harm.

We must remain cognizant, however, of the fact that the VWP program is not only a significant aspect of our Homeland Security, but it is also critical to expediting and welcoming tourists and business travelers to the United States.

In 2014, more than 20.4 million visitors arrived in the U.S. through the VWP, representing almost 60 percent of all overseas visitors. These travelers stayed an average of 18 nights and spent $4,400 per visit, generating $190 billion, which supported nearly 1 million jobs. In Las Vegas, 20 percent of our visitors come from foreign countries, many of whom use this program.

So, in short, yes, we must be cautious. We cannot afford to unnecessarily crush the growing tourism industry or risk retaliatory measures by other countries, which would make it difficult for Americans to travel abroad for business or a holiday.

I believe H.R. 158 strikes the right balance between security and accommodation. I urge my colleagues to support it. I also caution against carrying xenophobia too far.

Mr. GOODLATTE: Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. ROYCE), the chairman of the Foreign Relations Committee.

□ 1630

Mr. ROYCE. Mr. Speaker, I am recently back from London, where I had an opportunity to speak to British authorities about the challenge that Europeans find themselves in at this point in time. There are literally 5,000 Europeans who have gone to fight in Syria and in Iraq and have come back. Part of the problem here is a manpower problem of managing to be able to have a handle on that.

Now, we cannot have people automatically coming to the United States without being vetted. They should not be allowed to just get on a plane and fly here. This bill is going to bolster our defenses because what it is going to do is to ensure that those who have traveled to a terror hotspot, like Syria, and then come back into Europe or another Visa Waiver country will get that thorough investigation before they are being cleared to travel. That will allow our authorities to prevent that travel.

It is going to give our law enforcement a new tool as well in terms of detecting fraud and stolen passports. You also saw the story in Honduras of five Syrians with stolen passports trying to get into the United States.

So the Visa Waiver Program is good for America's economy and good for our leadership overseas. We can strengthen it. Let's urge our colleagues in the Senate to get this soon to the President's desk.

Ms. LOFGREN. Mr. Speaker, may I inquire how much time remains.

The SPEAKER pro tempore. The gentlewoman from California has 6½ minutes remaining.

Ms. LOFGREN. Mr. Speaker, I yield 1½ minutes to the gentleman from Illinois (Mr. QUIGLEY), a former member of the Committee on the Judiciary.

Mr. QUIGLEY. Mr. Speaker, the Visa Waiver Program plays an absolutely essential role in growing the American economy. If we don't have foreign travel, it is just going to be Michigan competing against Wisconsin, Las Vegas competing against Orlando; and while Chicago has no peer, we are really not being productive. Also, over the last decade, we have successfully used the incentives of this program to require participating countries to implement the strictest security standards and increase vital intelligence sharing with U.S. law enforcement.

As a member of the House Permanent Select Committee on Intelligence, I can't stress enough the value of intelligence we gather from the 38 Visa Waiver countries in thwarting terror plots and preventing attacks on our homeland. That is why I have been a longtime supporter of the Visa Waiver Program and for including important allies like Poland. But I have also led the effort to strengthen the security requirements of the program to respond to the evolving threats we face.

The bipartisan JOLT Act, sponsored by myself and Mr. HECK, includes many of the security programs and reforms included in this bill we are debating today. It will also strengthen the security of the program and reduce fraud and also provide the U.S. with greater intelligence capacity.

As policymakers, we must continuously reevaluate the reforms that are necessary to respond to keep America safe. The bill before us provides that proper balance by making the Visa Waiver Program even more secure and reaffirming our commitment to the program for the future.

Mr. GOODLATTE. Mr. Speaker, I yield 2 minutes to the gentleman from New York (Mr. KATKO), the chairman of our Foreign Fighter Task Force.

Mr. KATKO. Mr. Speaker, I rise today in support of H.R. 158, the Visa Waiver Program Improvement and Terrorist Travel Prevention Act of 2015.

This bill, which I cosponsored, will close a critical gap in our Nation's security that is vulnerable to exploitation by terrorists and other nefarious actors seeking to do us harm. This bill strengthens the security of the Visa Waiver Program by requiring participating nations to increase counterterrorism information sharing, screen travelers against INTERPOL's databases, and enhance passport security features.

As chair of the Committee on Homeland Security's Foreign Fighter Task Force, I spent countless hours with my colleagues examining weaknesses in our Nation's defenses against the threat posed by foreign fighters. The provisions in this bill address several of the key findings in that report. I thank Mrs. MILLER for her leadership on this important issue.

I also want to thank and note the continuing bipartisan cooperation that is part of the Committee on Homeland Security. I commend my colleagues on the other side of the aisle for their continuing good work on that committee.

In closing, I would like to urge my colleagues to support this important legislation.

Ms. LOFGREN. Mr. Speaker, I yield 1½ minutes to the gentleman from California (Mr. SHERMAN).

Mr. SHERMAN. Mr. Speaker, there are some 6 billion people in the world who aren't from one of the 38 favored countries and have to go through an in-person interview to visit the United States. It is not unfair for us to impose the same requirement on those Europeans who have visited ISIS-infested areas.

This bill will do some good, but it is mostly evadable. Most ISIS foreign fighters go to Turkey. Their passport is stamped in Turkey, and then they walk into Syria. ISIS does not stamp their passport, and so they are free to say that they never went to Iraq or Syria. This bill will make sense only if it applies to those who visited Turkey.

Even if they did get their passport stamped, say they flew to Baghdad, got it stamped by the Iraqi Government, all they have to do is go back to Europe and say, ''I want a new passport. My hair style has changed, I want a different picture.'' They get a new passport. Their old passport, holes are punched in it. It is returned to them, and so there is no record that they ever visited Iraq.

Most of our European friends don't have a list of which of their citizens have visited Syria, Iraq, or Iran. If they did have such a list, they wouldn't share it with us because they have privacy laws. Now, they will cooperate with us on individual suspects, but not a list of tens of thousands of people who have visited Iraq, Syria, or Iran, and certainly not the millions who have visited Turkey. So they don't have a list. They won't share a list.

Looking at a passport only tells you that somebody got a new passport. Seeing that it was stamped only in Turkey but not stamped in Syria just shows you that they walked into Syria and ISIS didn't stamp their passport.

I look forward to passing this bill, and then getting serious on a bill that will accomplish its purposes.

Mr. GOODLATTE. Mr. Speaker, I yield 2 minutes to the gentlewoman from Indiana (Mrs. WALORSKI).

Mrs. WALORSKI. Mr. Speaker, I rise in support of H.R. 158. In order to protect our national security and the safety of Americans, we must also adapt our policies to prevent terrorists from entering U.S. soil.

As we have heard earlier, approximately 5,000 Europeans have traveled to Syria and Iraq to join ISIS, many of whom are from countries that participate in the Visa Waiver Program. Many of these countries fail to provide the U.S. intelligence community with critical information needed to ensure those traveling under the program are not a threat to the U.S. Today's legislation addresses and helps fix the vulnerabilities of this program.

Before an individual is permitted to enter the United States, additional vetting is required. This includes enhanced screening of individuals who have visited or are citizens of Iraq, Syria, and terrorist hotspots like Iran and Sudan, or other nations that have seen a rise in significant terrorist activities.

It strengthens intelligence and information sharing with our allies. It cracks down on passport fraud by requiring Visa Waiver countries to upgrade to biometrics and electronic passports and forces Visa Waiver countries to ramp up counterterrorism screenings of travelers.

As our enemies continue to evolve, we must do the same to protect the American people from the risks posed by this threat. I thank Congresswoman MILLER for her hard work on this important piece of legislation.

Ms. LOFGREN. Mr. Speaker, I yield 1 minute to the gentlewoman from Arizona (Ms. SINEMA).

Ms. SINEMA. Mr. Speaker, I thank Chairwoman MILLER for introducing this legislation to address the serious security gaps in the Visa Waiver Program, and I thank Congresswoman LOFGREN for putting our country's security over partisanship to advance this commonsense measure.

I am a cosponsor of this legislation because it makes sensible, bipartisan changes to address the security gaps in the Visa Waiver Program and prevent Islamic State and other terrorist networks from using the program to gain access to the United States.

The Islamic State is one of the world's most violent and dangerous terrorist groups. To keep our country safe, we must be one step ahead of them, preventing them from entering the United States and stopping their efforts.

The Visa Waiver Program allows travelers from approved countries to visit the United States for up to 90 days without a visa. This program is an important tool that grows our economy and supports ease of travel for American citizens.

The reasonable changes included in this bill strengthen the Visa Waiver Program. This bill requires partner nations to issue electronic passports, strengthening the screening process of program participants.

It also addresses the concerns raised by my bill, H.R. 4122, introduced with Congressman MATT SALMON, to suspend the Visa Waiver Program for individuals who have traveled in the last 5 years to Syria and Iraq, to countries that are state sponsors of terrorism, or to countries with active terrorist networks. I thank Chairman MILLER for including this important provision. I thank Congresswomen MILLER and LOFGREN for advancing this important legislation.

Mr. GOODLATTE. Mr. Speaker, may I inquire how much time is remaining on each side.

The SPEAKER pro tempore. The gentleman from Virginia has 5½ minutes remaining. The gentlewoman from California has 2½ minutes remaining.

Mr. GOODLATTE. Mr. Speaker, I yield 2 minutes to the gentleman from South Carolina (Mr. DUNCAN).

Mr. DUNCAN of South Carolina. Mr. Speaker, this legislation is a step in the right direction. The changes that I like particularly to the Visa Waiver Program are a requirement to share counterterrorism information with the United States and that all visa waiver countries must submit lost and stolen passport information to INTERPOL's database within 24 hours.

In May of 2014, a foreign fighter, radicalized on the battlefield in Syria after 1 year, traveled back to Europe. He traveled through Turkey and through Germany. It is believed that Germany had information on this individual, but it failed to share that information with its neighbors France and Belgium. He arrived in Brussels. In a 90-second attack with an automatic weapon on a Jewish museum, he killed 4 people before fleeing to France, making it all the way to the south of France, to the city of Marseille, where he hoped to cross the Mediterranean and disappear into the African continent.

Why do I tell you this story? It is because of the freedom of travel in the Schengen region, or the open borders region in Europe, the radicalization of foreign fighters joining ISIS on the battlefield and having the ability to travel back to Europe and possibly, being undetected, travel to the United States under the Visa Waiver Program if the countries don't share the information.

In addition, in the last 30 days, we have seen numerous instances where stolen or fraudulent passports have been used by migrants and terrorists to travel throughout Europe as well as across Latin America.

Just recently, five Syrians traveled through the tri-border region, which is Argentina, Brazil, and Paraguay. It is a region in the northern area of Argentina. They traveled there from Syria on stolen Israeli passports, and then they purchased, in the tri-border region, Greek passports and were able to transit Latin America into Honduras, where they were stopped with those false passports.

These are real examples of real issues, and it is why I support what we are trying to do today.

Ms. LOFGREN. Mr. Speaker, may I inquire if the gentleman has additional speakers.

Mr. GOODLATTE. I am the only remaining speaker.

Ms. LOFGREN. Then I will close on our side.

Mr. Speaker, I yield myself such time as I may consume.

A lot of things have been said today that will be very helpful, but I think clarifying some of these issues might be useful for Members.

It has been said that there is discrimination in this bill. It is important to note that the Visa Waiver Program discriminates on the basis of nationality. That is why there is only one country, Chile, in Latin America that is in the Visa Waiver Program. Everybody else has to go in for a visa interview.

There are no countries in Africa that are eligible for the Visa Waiver Program. Everybody in Africa has to go in for an interview to get a visitor's visa.

There are only four sites—Singapore, Taiwan, Japan, and South Korea—in Asia that are eligible. Everybody else has to go in for a visa interview.

So a visa interview is not a terrible thing. It helps us understand what people are about.

I include for the RECORD a letter from the U.S. Travel Association in favor of this bill. It is signed by a large number of groups, including the Asian American Hotel Owners Association and The Travel Technology Association.

U.S. TRAVEL ASSOCIATION,
Washington, DC, December 8, 2015.

DEAR MEMBERS OF THE HOUSE OF REPRESENTATIVES: On behalf of the 14.6 million American workers whose livelihood depends on safe international travel to the United States, we are writing in support of H.R. 158, legislation to strengthen homeland security in the wake of the recent terrorist attacks.

The horrific attacks in Paris underscore the need for every possible measure to protect public safety. And no one advocates for security precautions more vigorously than travel professionals. Without public confidence in air security, worldwide commerce will be crippled. The Visa Waiver Program (VWP), originally created to facilitate travel, today is one of our most effective tools against global terror. Because of VWP, governments around the world now are working cooperatively at the highest levels of law enforcement to identify risky travelers—both before boarding flights and upon arrival in the United States.

For the 38 countries that are currently VWP members, the U.S. has unparalleled authority to inspect their counter-terrorism, border control, aviation and travel document security methods and facilities. VWP protocols require participating nations to issue machine-readable passports that are difficult to forge; promptly enter data on all lost and stolen passports into a central INTERPOL database; and collaborate with the United States law enforcement under essential information-sharing agreements. Since this system was established in 2008, we have denied entry to over 4,300 would-be travelers known or suspected of posing a threat. For the many nations that hope to someday become a VWP member, just that aspiration offers a strong incentive to raise security standards unilaterally, even in advance of their admission. The VWP is a rare, exemplary government program that delivers both security and economic benefits.

Even successful programs such as VWP can be improved. In our view, the battery of reforms proposed in H.R. 158 will help make us all safer. We support its provisions to add additional layers of protection, including by increasing preclearance and immigration advisory programs, working with other governments to strengthen their watch lists and vetting systems; and expanding Global Entry to enroll more rigorously screened, trusted travelers. These are thoughtful, effective reforms—and we especially commend bipartisan House leaders for working together toward enacting H.R. 158. As this bill makes its way through the legislative process, we will continue to work constructively with its sponsors.

This is a moment when the United States and our allies can send a global message about the seriousness of our air security protocols and our capacity for bipartisan consensus on matters of national security. Thank you in advance and please call on us if we can serve as a resource for your deliberations.

Sincerely,
U.S. Travel Association,
Airlines for America,
American Gaming Association,
American Hotel & Lodging Association,
American Resort Development Association,
American Society of Travel Agents,
Asian American Hotel Owners Association,
Atlanta Convention & Visitors Bureau,
Dallas Convention & Visitors Bureau,
Destination DC,
Destination Marketing Association International,
Expedia, Inc.,
Hilton Worldwide,
International Association of Amusement Parks and Attractions,
Los Angeles Tourism & Convention Board,
Las Vegas Convention & Visitors Authority,
Loews Hotels and Resorts,
Marriott International, Inc.,
National Retail Federation,
National Tour Association,
PSAV®,
Sabre Corporation,
The San Diego Tourism Authority,
Starwood Hotels and Resorts Worldwide, Inc.,
The Travel Technology Association,
U.S. Tour Operators Association.

Ms. LOFGREN. Why? Because it is important for our country that this program, this Visa Waiver Program, be tightened up, that we are assured that it is being operated in a safe and secure manner.

□ 1645

I am happy that we can work together on a bipartisan basis to do this, because we are at a time in our country when reckless and racist things are being said about some of our fellow Americans—people who are saying that if you are of the Muslim faith, somehow you are a threat to the United States. That is not true. And it is important for us to stand up against that rhetoric, to stand up for all Americans and people of all faiths, but also to work together on sensible, modest reforms to the VW Program.

I am glad that we will, hopefully, stand together in the face of outrageous racist rhetoric and that we will also stand together supporting this modest reform to the program.

I would note also the suggestion that the bill does not solve all the problems. As I said in my opening statement, the most important part of this program is the database provisions. If countries do not want to share their data, they can't be in the Visa Waiver Program. I think that, as we move forward, more and more countries will understand we need to collaborate together, and I urge support for the bill.

Mr. Speaker, I yield back the balance of my time.

Mr. GOODLATTE. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, this is a good bill. I want to thank everybody on both sides of the aisle who have worked together to bring us to the point where we can pass this bill through the House. I hope it is taken up and passed in the Senate. I hope it is signed into law soon.

It will do some good in stopping people who have ill intent from being able to abuse our immigration system and enter our country. But this bill is just one of many, many things with regard to our immigration system that need to be examined. Other legislation that has already passed out of the Homeland Security Committee and the Judiciary Committee needs to be brought to the floor of the House for consideration.

We also need to examine our visa programs and the interview process, which may be called into question following the tragedy in San Bernardino. We also need to make sure that our borders—particularly our southern border, but all of our borders—are secure. People are crossing into our country undetected, and they are not just from South American and Central American countries. They are from all over the world, including from the country that we have been talking about here today.

We need to make sure that our asylum program is not as rampant with fraud as it is today. We need to pass legislation introduced by Congressman CHAFFETZ of Utah that addresses that problem.

We need to make sure that when people cross into our country illegally, no matter where they are from, they are apprehended and that they are not released into the interior of the country with the hope that they will someday reappear for a hearing. Congressman JOHN CARTER has legislation that addresses that problem.

We need to make sure that when people enter the United States, for whatever purpose, they do so lawfully, and they not take jobs away from law-abiding American citizens. We need to make sure that our electronic verification of employment program is made mandatory, as legislation introduced and passed out of the committee, introduced by Congressman LAMAR SMITH, would do.

We need to make sure that we are utilizing all of our law enforcement resources across our entire Nation to keep this country safe, including better cooperation between the Federal Government and our State and local governments on law enforcement issues and on immigration enforcement issues. I hear from judges and sheriffs and other law enforcement officials in my district about the messed up way that our current program is working. We need to have a clear, statutory role for State and local governments to participate in the enforcement of these laws.

All of these things need to be brought to the floor of this House to make sure that our immigration programs are working properly, are working fairly, and are making this country safer than it is today. I urge my colleagues to support this legislation, which is a very good step in the right direction.

I commend the gentlewoman from Michigan (Mrs. MILLER), who is leaving

at the end of this Congress. This is a good note to end this debate upon. I thank her for her good work in making sure that we are keeping this country safe by improving the Visa Waiver Program. I urge my colleagues to support this legislation.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. GOODLATTE) that the House suspend the rules and pass the bill, H.R. 158, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. GOODLATTE. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H.R. 2130, RED RIVER PRIVATE PROPERTY PROTECTION ACT, AND PROVIDING FOR CONSIDERATION OF MOTIONS TO SUSPEND THE RULES

Mr. NEWHOUSE, from the Committee on Rules, submitted a privileged report (Rept. No. 114–375) on the resolution (H. Res. 556) providing for consideration of the bill (H.R. 2130) to provide legal certainty to property owners along the Red River in Texas, and for other purposes, and providing for consideration of motions to suspend the rules, which was referred to the House Calendar and ordered to be printed.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, proceedings will resume on motions to suspend the rules previously postponed.

Votes will be taken in the following order:

H.R. 158, by the yeas and nays;

H.R. 3842 by the yeas and nays.

The first electronic vote will be conducted as a 15-minute vote. The remaining electronic vote will be conducted as a 5-minute vote.

VISA WAIVER PROGRAM IMPROVEMENT AND TERRORIST TRAVEL PREVENTION ACT OF 2015

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 158) to clarify the grounds for ineligibility for travel to the United States regarding terrorism risk, to expand the criteria by which a country may be removed from the Visa Waiver Program, to require the Secretary of Homeland Security to submit a report on strengthening the Electronic System for Travel Authorization to better secure the international borders of the United States and prevent terrorists and instruments of terrorism from entering the United States, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. GOODLATTE) that the House suspend the rules and pass the bill, as amended.

The vote was taken by electronic device, and there were—yeas 407, nays 19, not voting 7, as follows:

[Roll No. 679]

YEAS—407

Abraham
Adams
Aderholt
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clawson (FL)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Doggett
Dold
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Farenthold
Fattah
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Gutiérrez
Hahn
Hanna
Hardy
Harper
Harris
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, E. B.
Jolly
Jones
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Levin
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Massie
Matsui
McCarthy
McCaul
McClintock
McCollum
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Meng
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perry
Peters
Peterson
Pingree
Pittenger
Pitts
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Russell
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takai
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—19

Bass
Clarke (NY)
Conyers
Dingell
Ellison
Farr
Grijalva
Honda
Johnson (GA)
Kildee
Lawrence
Lee
McDermott
Pocan
Schakowsky
Takano
Waters, Maxine
Watson Coleman
Wilson (FL)

NOT VOTING—7

Aguilar
Bishop (MI)
Donovan
Johnson, Sam
Lewis
Perlmutter
Rush

□ 1718

Ms. LEE, Mrs. WATSON COLEMAN, Ms. WILSON of Florida, and Mr. GRIJALVA changed their vote from ''yea'' to ''nay.''

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

The title of the bill was amended so as to read: ''A bill to amend the Immigration and Nationality Act to provide enhanced security measures for the

visa waiver program, and for other purposes.''.

A motion to reconsider was laid on the table.

Stated for:

Mr. SAM JOHNSON of Texas. Mr. Speaker, on rollcall No. 679, I was unable to vote due to the death of my wife Shirley. Had I been present, I would have voted "yes."

Mr. BLUM. Mr. Speaker, on rollcall No. 679, I was unavoidably detained and would have voted "yea."

LEGISLATIVE PROGRAM

(Mr. MCCARTHY asked and was given permission to address the House for 1 minute.)

Mr. MCCARTHY. Mr. Speaker, Members are advised that votes are expected in the House on Friday. Members are further advised that additional votes are possible through the weekend and as well on Monday.

All Members are encouraged to keep their schedules flexible. I will provide more detailed timing information as soon as possible so that you may make necessary travel arrangements.

FEDERAL LAW ENFORCEMENT TRAINING CENTERS REFORM AND IMPROVEMENT ACT OF 2015

The SPEAKER pro tempore. Without objection, 5-minute voting will continue.

There was no objection.

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 3842) to improve homeland security, including domestic preparedness and response to terrorism, by reforming Federal Law Enforcement Training Centers to provide training to first responders, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Georgia (Mr. CARTER) that the House suspend the rules and pass the bill, as amended.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 420, nays 2, not voting 11, as follows:

[Roll No. 680]

YEAS—420

Abraham
Adams
Aderholt
Allen
Amodei
Ashford
Babin
Barletta
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Farenthold
Farr
Fattah
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffith
Grijalva
Grothman
Guinta
Guthrie
Gutiérrez
Hahn
Hanna
Hardy
Harper
Harris
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Jolly
Jones
Jordan
Joyce
Kaptur
Katko
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lee
Levin
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Meng
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perry
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Russell
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—2

Amash
Massie

NOT VOTING—11

Aguilar
Bishop (MI)
Donovan
Johnson, Sam
Keating
Lewis
Lieu, Ted
Lowenthal
Perlmutter
Rush
Velázquez

□ 1729

Mr. MASSIE changed his vote from ''yea'' to ''nay.''

Mrs. DINGELL changed her vote from ''nay'' to ''yea.''

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERMISSION TO FILE CONFERENCE REPORT ON H.R. 644, TRADE FACILITATION AND TRADE ENFORCEMENT ACT OF 2015

Mr. TIBERI. Madam Speaker, I ask unanimous consent that the managers on the part of the House have until midnight tonight, December 8, to file the conference report to accompany H.R. 644.

The SPEAKER pro tempore (Mrs. MIMI WALTERS of California). Is there objection to the request of the gentleman from Ohio?

There was no objection.

PROVIDING FOR THE EXTENSION OF THE ENFORCEMENT INSTRUCTION ON SUPERVISION REQUIREMENTS FOR OUTPATIENT THERAPEUTIC SERVICES IN CRITICAL ACCESS AND SMALL RURAL HOSPITALS

Mr. BURGESS. Madam Speaker, I ask unanimous consent that the Committee on Energy and Commerce and the Committee on Ways and Means be discharged from further consideration of the bill (S. 1461) to provide for the extension of the enforcement instruction on supervision requirements for outpatient therapeutic services in critical access and small rural hospitals through 2015, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

The text of the bill is as follows:

S. 1461

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. EXTENSION OF ENFORCEMENT INSTRUCTION ON SUPERVISION REQUIREMENTS FOR OUTPATIENT THERAPEUTIC SERVICES IN CRITICAL ACCESS AND SMALL RURAL HOSPITALS THROUGH 2015.

Section 1 of Public Law 113–198 is amended—

(1) in the section heading, by inserting ''**AND 2015**'' after ''**2014**''; and

(2) by striking ''calendar year 2014'' and inserting ''calendar years 2014 and 2015''.

The bill was ordered to be read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

PHYLLIS E. GALANTI ARBORETUM

Mr. MILLER of Florida. Madam Speaker, I ask unanimous consent that the Committee on Veterans' Affairs be discharged from further consideration of the bill (H.R. 2693) to designate the arboretum at the Hunter Holmes McGuire VA Medical Center in Richmond, Virginia, as the ''Phyllis E. Galanti Arboretum'', and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Florida?

There was no objection.

The text of the bill is as follows:

H.R. 2693

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. FINDINGS.

Congress makes the following findings:

(1) Phyllis Eason Galanti, a tireless advocate for the rights of prisoners of war from the United States during the Vietnam War and a beloved member of the Richmond, Virginia, community, died on April 23, 2014.

(2) Ms. Eason graduated from the College of William and Mary in 1963 and shortly afterward was married to Paul Edward Galanti, a pilot with the United States Navy, at the Chapel of the Centurion in Fort Monroe, Virginia.

(3) In June 1966, when Mr. Galanti was shot down over North Vietnam, captured, and held prisoner, Phyllis E. Galanti became active in the National League of Families of American Prisoners and Missing in Southeast Asia, soon becoming chair of the organization.

(4) Mrs. Galanti spearheaded the Let's Bring Paul Galanti Home project as part of the national Write Hanoi campaign—

(A) to raise awareness;

(B) to secure the return of more than 600 soldiers from the United States who were missing in action or held as prisoners of war in Vietnam; and

(C) to ensure that prisoners of war were treated in accordance with the Geneva Conventions.

(5) The efforts of Mrs. Galanti under the Let's Bring Paul Galanti Home project, the most successful of many such campaigns, resulted in more than 1,000,000 letters that were personally delivered to the North Vietnamese embassy in Stockholm, Sweden, in 1971.

(6) Mrs. Galanti became known as ''Fearless Phyllis'', traveling to Versailles, France, seeking an audience with North Vietnamese leaders, and giving hundreds of presentations to policy leaders in the United States, including President Richard Nixon, National Security Advisor Henry Kissinger, and Virginia Governor Mills E. Godwin, Jr., who said of her in 1975, ''One dedicated woman and a handful of others had more influence on the communist world than legions of armies and diplomats.''.

(7) After more than seven years apart, Mrs. Galanti was reunited with her husband Paul Galanti at the Naval Air Station in Norfolk, Virginia, on February 15, 1973.

(8) Mrs. Galanti spent decades confronting the issue of prisoners and hostages from the United States, not only in Vietnam but also in the Soviet Union and Iran.

(9) Mrs. Galanti actively supported the Virginia Home, Theatre IV, and the Virginia Repertory Theatre, visited schools, and continued to meet with lawmakers until she died on April 23, 2014, at age 73, from complications with leukemia.

(10) The work of Mrs. Galanti earned her the American Legion Service Medal, and the Paul and Phyllis Galanti Education Center at the Virginia War Memorial was named in honor of her and her husband.

(11) The leadership at the Hunter Holmes McGuire VA Medical Center in Richmond, Virginia, including Director John Brandecker, seeks to recognize Mrs. Galanti by naming the arboretum at Hunter Holmes McGuire VA Medical Center in her honor.

(12) It is a fitting tribute that Congress name the arboretum after such an outstanding advocate for members of the Armed Forces of the United States and veterans.

SEC. 2. PHYLLIS E. GALANTI ARBORETUM AT HUNTER HOLMES MCGUIRE VA MEDICAL CENTER IN RICHMOND, VIRGINIA.

(a) DESIGNATION.—The arboretum at the Hunter Holmes McGuire VA Medical Center in Richmond, Virginia, shall after the date of the enactment of this Act be known and designated as the ''Phyllis E. Galanti Arboretum''.

(b) REFERENCES.—Any reference in any law, regulation, map, document, paper, or other record of the United States to the arboretum referred to in subsection (a) shall be considered to be a reference to the Phyllis E. Galanti Arboretum.

The bill was ordered to be engrossed and read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on the additional motions to suspend the rules on which a recorded vote or the yeas and nays are ordered, or on which the vote incurs objection under clause 6 of rule XX.

Any record vote on the postponed question will be taken later.

FOREIGN AID TRANSPARENCY AND ACCOUNTABILITY ACT OF 2015

Mr. POE of Texas. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 3766) to direct the President to establish guidelines for United States foreign development and economic assistance programs, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 3766

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Foreign Aid Transparency and Accountability Act of 2015''.

SEC. 2. GUIDELINES FOR UNITED STATES FOREIGN DEVELOPMENT AND ECONOMIC ASSISTANCE PROGRAMS.

(a) PURPOSE.—The purpose of this section is to evaluate the performance of United States foreign development and economic assistance and its contribution to the policies, strategies, projects, program goals, and priorities undertaken by the Federal Government, to foster and promote innovative programs to improve effectiveness, and to coordinate the monitoring and evaluation processes of Federal departments and agencies that administer United States foreign development and economic assistance.

(b) ESTABLISHMENT OF GUIDELINES.—Not later than 18 months after the date of the enactment of this Act, the President shall set forth guidelines for the establishment of measurable goals, performance metrics, and monitoring and evaluation plans that can be applied with reasonable consistency to United States foreign development and economic assistance. Such guidelines shall be established according to best practices of monitoring and evaluation studies and analyses.

(c) OBJECTIVES OF GUIDELINES.—

(1) IN GENERAL.—The guidelines established under subsection (b) shall provide direction to Federal departments and agencies that administer United States foreign development and economic assistance on monitoring the use of resources, evaluating the outcomes and impacts of United States foreign development and economic assistance projects and programs, and applying the findings and conclusions of such evaluations to proposed project and program design.

(2) OBJECTIVES.—Specifically, the guidelines established under subsection (b) shall require Federal departments and agencies that administer United States foreign development and economic assistance to take the following actions:

(A) Establish annual monitoring and evaluation agendas and objectives to plan and manage the process of monitoring, evaluating, analyzing progress, and applying learning toward achieving results.

(B) Develop specific project monitoring and evaluation plans, to include measurable goals and performance metrics, and identify the resources necessary to conduct such evaluations, which should be covered by program costs, during project design.

(C) Apply rigorous monitoring and evaluation methodologies to such programs, including through the use of impact evaluations, ex-post evaluations, or other methods as appropriate, that clearly define program logic, inputs, outputs, intermediate outcomes, and end outcomes.

(D) Disseminate guidelines for the development and implementation of monitoring and evaluation programs to all personnel, especially in the field, who are responsible for the design, implementation, and management of United States foreign development and economic assistance programs.

(E) Establish methodologies for the collection of data, including baseline data to serve

as a reference point against which progress can be measured.

(F) Evaluate at least once in their lifetime all programs whose dollar value equals or exceeds the median program size for the relevant office or bureau or an equivalent calculation to ensure the majority of program resources are evaluated.

(G) Conduct impact evaluations on all pilot programs before replicating wherever possible, or provide a written justification for not conducting an impact evaluation where such an evaluation was deemed inappropriate or impossible.

(H) Develop a clearinghouse capacity for the collection and dissemination of knowledge and lessons learned that serve as benchmarks to guide future programs for United States development professionals, implementing partners, the donor community, and aid recipient governments, and as a repository of knowledge on lessons learned.

(I) Distribute evaluation reports internally.

(J) Publicly report each evaluation, including an executive summary, a description of the evaluation methodology, key findings, appropriate context (including quantitative and qualitative data when available), and recommendations made in the evaluation within 90 days after the completion of the evaluation.

(K) Undertake collaborative partnerships and coordinate efforts with the academic community, implementing partners, and national and international institutions that have expertise in program monitoring, evaluation, and analysis when such partnerships provide needed expertise or significantly improve the evaluation and analysis.

(L) Ensure verifiable, valid, credible, precise, reliable, and timely data are available to monitoring and evaluation personnel to permit the objective evaluation of the effectiveness of United States foreign development and economic assistance programs, including an assessment of assumptions and limitations in such evaluations.

(M) Ensure that standards of professional evaluation organizations for monitoring and evaluation efforts are employed, including ensuring the integrity and independence of evaluations, permitting and encouraging the exercise of professional judgment, and providing for quality control and assurance in the monitoring and evaluation process.

(d) PRESIDENTIAL REPORT.—Not later than 18 months after the date of the enactment of this Act, the President shall submit to the appropriate congressional committees a report that contains a detailed description of the guidelines established under subsection (b). The report shall be submitted in unclassified form, but it may contain a classified annex.

(e) COMPTROLLER GENERAL REPORT.—The Comptroller General of the United States shall, not later than 1 year after the report required by subsection (d) is submitted to Congress, submit to the appropriate congressional committees a report that analyzes—

(1) the guidelines established pursuant to subsection (b); and

(2) a side-by-side comparison of the President's budget request for that fiscal year of every operational unit that carries out United States foreign development and economic assistance and the performance of such units during the prior fiscal year.

SEC. 3. INFORMATION ON UNITED STATES FOREIGN DEVELOPMENT AND ECONOMIC ASSISTANCE PROGRAMS.

(a) PUBLICATION OF INFORMATION.—

(1) UPDATE OF EXISTING WEB SITE.—Not later than 90 days after the date of the enactment of this Act, the Secretary of State shall update the Department of State's Internet Web site, ''ForeignAssistance.gov'', to make publicly available comprehensive, timely, and comparable information on United States foreign development and economic assistance programs, including all information required pursuant to subsection (b) of this section that is then available to the Secretary of State.

(2) INFORMATION SHARING.—The head of each Federal department or agency that administers United States foreign development and economic assistance shall, not later than 2 years after the date of the enactment of this Act, and on a quarterly basis thereafter, provide to the Secretary of State comprehensive information about the United States foreign development and economic assistance programs carried out by such department or agency.

(3) UPDATES TO WEB SITE.—Not later than 2 years after the date of the enactment of this Act, the Secretary of State shall publish, through the ''ForeignAssistance.gov'' Web site or a successor online publication, the information provided under subsection (b) of this section and shall update such information on a quarterly basis.

(b) MATTERS TO BE INCLUDED.—

(1) IN GENERAL.—The information described in subsection (a) shall be published on a detailed award-by-award and country-by-country basis unless assistance is provided on a regional level, in which case the information shall be published on an award-by-award and region-by-region basis.

(2) TYPES OF INFORMATION.—

(A) IN GENERAL.—To ensure transparency, accountability, and effectiveness of United States foreign development and economic assistance programs, the information described in subsection (a) shall include—

(i) links to all regional, country, and sector assistance strategies, annual budget documents, congressional budget justifications, evaluations and summaries of evaluations as required under section 2(c)(2)(J);

(ii) basic descriptive summaries for United States foreign development and economic assistance programs and awards under such programs; and

(iii) obligations and expenditures under such programs.

Each type of information described in this paragraph shall be published or updated on the Internet Web site not later than 90 days after the date of issuance of the information.

(B) RULE OF CONSTRUCTION.—Nothing in subparagraph (A) shall be construed to require a Federal department or agency that administers United States foreign development and economic assistance to provide any information that does not relate to or is not otherwise required by the United States foreign development and economic assistance programs carried out by such department or agency.

(3) REPORT IN LIEU OF INCLUSION.—

(A) HEALTH OR SECURITY OF IMPLEMENTING PARTNERS.—If the head of a Federal department or agency, in consultation with the Secretary of State, makes a determination that the inclusion of a required item of information online would jeopardize the health or security of an implementing partner or program beneficiary or would require the release of proprietary information of an implementing partner or program beneficiary, the head of the Federal department or agency shall provide such determination in writing to the appropriate congressional committees, including the basis for such determination and shall—

(i) provide a briefing to the appropriate congressional committees on such information; or

(ii) submit to the appropriate congressional committees such information in a written report.

(B) NATIONAL INTERESTS OF THE UNITED STATES.—If the Secretary of State makes a determination that the inclusion of a required item of information online would be detrimental to the national interests of the United States, the Secretary of State shall provide such determination in writing to the appropriate congressional committees, including the basis for such determination and shall—

(i) provide a briefing to the appropriate congressional committees on such information; or

(ii) submit to the appropriate congressional committees the item of information in a written report.

(C) FORM.—Any briefing or item of information provided under this paragraph may be provided in classified form, as appropriate.

(4) FAILURE TO COMPLY.—If a Federal department or agency fails to comply with the requirements of subsection (a), paragraph (1) or (2) of this subsection, or subsection (c) with respect to providing information described in subsection (a), and the information is not subject to a determination under subparagraph (A) or (B) of paragraph (3) of this subsection not to make the information publically available, the Director of the Office of Management and Budget, in consultation with the head of such department or agency, shall submit to the appropriate congressional committees not later than September 1, 2016, a consolidated report describing, with respect to each required item of information not made publicly available—

(A) a detailed explanation of the reason for not making such information publicly available; and

(B) the department's or agency's plan and timeline for immediately making such information publicly available, and for ensuring that information is made publically available in following years.

(c) SCOPE OF INFORMATION.—The online publication required by subsection (a) shall, at a minimum, provide the information required by subsection (b)—

(1) in each fiscal year from 2016 through 2019, such information for fiscal years 2012 through the current fiscal year; and

(2) for fiscal year 2020 and each fiscal year thereafter, such information for the immediately preceding five fiscal years in a fully searchable form.

SEC. 4. DEFINITIONS.

In this Act:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Foreign Relations and the Committee on Appropriations of the Senate; and

(B) the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives.

(2) EVALUATION.—The term ''evaluation'' means, with respect to a United States foreign development and economic assistance program, the systematic collection and analysis of information about the characteristics and outcomes of the program, including projects conducted under such program, as a basis for making judgments and evaluations regarding the program, to improve program effectiveness, and to inform decisions about current and future programming.

(3) UNITED STATES FOREIGN DEVELOPMENT AND ECONOMIC ASSISTANCE.—The term ''United States foreign development and economic assistance'' means assistance provided primarily for the purposes of foreign development and economic support, including assistance authorized under—

(A) part I of the Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.), other than—

(i) title IV of chapter 2 of such part (relating to the Overseas Private Investment Corporation);

(ii) chapter 3 of such part (relating to International Organizations and Programs); and

(iii) chapter 8 of such part (relating to International Narcotics Control);

(B) chapter 4 of part II of the Foreign Assistance Act of 1961 (22 U.S.C. 2346 et seq.; relating to Economic Support Fund);

(C) the Millennium Challenge Act of 2003 (22 U.S.C. 7701 et seq.); and

(D) the Food for Peace Act (7 U.S.C. 1721 et seq.).

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Texas (Mr. POE) and the gentleman from New York (Mr. ENGEL) each will control 20 minutes.

The Chair recognizes the gentleman from Texas.

GENERAL LEAVE

Mr. POE of Texas. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and include extraneous material on the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. POE of Texas. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I want to thank Chairman ROYCE and the ranking member, my cosponsor on this legislation, Mr. CONNOLLY from Virginia, for this legislation being brought to the House floor tonight.

The Foreign Aid Authorization Act first passed Congress in 1961. If you mention foreign aid to many Americans, Madam Speaker, it raises their blood pressure. Members of our communities often are concerned about foreign aid to other countries because they are just not quite sure where that aid is going and what that aid is accomplishing.

It is important that we, as Members of the House of Representatives, legislatively communicate to America how America's money is being spent in foreign countries. It is important that we are accountable and that that money, that aid, is accountable to the taxpayers.

It may shock you, Madam Speaker—maybe it won't—but Congress has never passed a law requiring transparency and accountability of foreign aid. I will use a different phrase. We have never audited our foreign aid to see if it is working and to see what it is doing so people can see whether it is successful or not.

The American public is uninformed about how much we spend and why we spend that money. A recent Publish What You Fund study rated half of U.S. agencies in the ''poor'' category when it came to transparency of aid. Transparency is important because it sheds light on where the money is spent. It is a lot harder to steal money if everybody knows where the money went and what it was for.

The American people have a right to know what we are doing with their money. There are a lot of success stories, but many Americans don't know about them. So it is important that we post that information and that the agencies that help in foreign aid assistance post that information on the Web so we know who is getting the money and what they are doing with that money.

Transparency will help foreign aid. It will make it harder for bad actors to steal that aid. It will make those who implement our programs work more vigilantly knowing the information will also be posted online. It will educate the American public about all the ways our country is helping other people around the world. As I said, Madam Speaker, there are a lot of success stories where people are better off because America is helping them.

Transparency by itself, however, won't save all of foreign aid's problems, but without transparency, those problems will not be solved. We also need to evaluate our foreign aid program so we know what works.

The key portions of this bill are transparency of the aid and evaluation of the aid: evaluate that aid to see if it is working, and if it is working may continue to do that aid; evaluate aid—if it is not working, then we cut it off and do something else.

We have all heard about the boondoggles of foreign aid. Big infrastructure projects are especially prone to waste and mismanagement. That is why it is so critically important that, as part of this bill being implemented, licensed engineers who know how to do these infrastructure projects are more involved with their expert input and operational skills.

Let me give you some examples of where foreign aid has been mismanaged. Schools are being built by Americans overseas, but some of those schools never had a student attend them. The Special Inspector for Iraq Reconstruction found out that at least $8 billion in American taxpayer dollars was lost to fraud, waste, and abuse. $44 million was spent on a residential camp to house international police trainers. The camp included an Olympic-sized swimming pool. The problem is, swimming pool and all, it was never used.

The $43 million natural gas station in Afghanistan was built by the Department of Defense when it built the same kind of gas station for $500,000 in Pakistan. Let me explain that again. American taxpayers built a $43 million natural gas station. Besides the enormous, outrageous cost, nobody ever used the gas station in Afghanistan.

So rigorous evaluations of our foreign aid are important because they can tell us whether or not we are really making a lasting impact. We have a long way to go, and the State Department really doesn't have a system in place to keep track of the dollars spent on evaluation of those projects.

The State Department can only tell how much it plans to spend in the future, but as soon as it spends that money on evaluations, it has no way of tracking where the money went. So the State Department can't even tell how many evaluations were even done last year on the aid that we are already spending. Even in its policy, the State Department is moving in the wrong direction. Its new evaluation policy lowers the amount of evaluations that must be done.

USAID has some troubling signs as well. USAID spent less money on evaluations in 2014 than it did in 2013. To solve some of these problems with transparency and with accountability of our foreign aid, Representative CONNOLLY and myself have introduced H.R. 3766, the Foreign Aid Transparency and Accountability Act. This bill requires the President to issue guidelines requiring tough evaluations. And on transparency, it codifies what is already being done and increases the amount of information required to be posted online, including actual expenditures and evaluations so everyone knows what we are doing and whether it is working or not.

We need to be reporting on more foreign aid in a more understandable way. The American people want to know where their aid is going, what it is for, and if that aid is effective.

Transparency and accountability for our foreign aid: this is a commonsense bill, and it doesn't cost any money, Madam Speaker.

I reserve the balance of my time.

Mr. ENGEL. Madam Speaker, I yield myself such time as I may consume.

I rise in support of this measure.

First of all, I want to thank Congressman POE and Congressman CONNOLLY for all their hard work on this bill. Enhancing transparency and accountability in our foreign assistance spending is something with which we can all agree. And it is important that we get our foreign assistance right. Our foreign aid represents just a tiny sliver of the Federal Government's annual budget—less than 1 percent. But if it is put to the right use, it is an investment that pays huge dividends.

Why is that? Because when we support the construction of a water treatment facility in an overcrowded city or train teachers in a rural village, we are doing more than just directly helping those affected. We are helping to bring stability and prosperity to entire communities and populations. And when we have stronger partners around the world, it helps enhance our own security and advance our own interests.

So, as I like to say, foreign assistance is the right thing to do for those who are in desperate need, and it is also the smart thing to do in terms of American foreign policy and national security. But it is important that we are spending our limited foreign assistance dollars efficiently and effectively.

The Obama administration is taking important steps to enhance the monitoring and evaluation of our foreign assistance programs. When she was Secretary of State, Hillary Clinton was at the forefront of those efforts.

This legislation, the Foreign Aid Transparency and Accountability Act, would build on the great progress already made by the administration. It would write into law many of the steps they have already taken, making these efforts permanent for future administrations.

This will help ensure that our investments are as effective as possible by requiring measurable goals and plans for monitoring and evaluation.

Madam Speaker, this important legislating will help all of us to better understand how our foreign assistance programs help promote stability, prosperity, and democracy around the world, and how these investments advance our own security interests.

I am for accountability, so I strongly support this bill. I urge my colleagues to do the same.

I reserve the balance of my time.

Mr. POE of Texas. Madam Speaker, I yield 2 minutes to the gentleman from Texas (Mr. BABIN).

Mr. BABIN. Madam Speaker, I rise today with strong concerns over President Obama attempting to unilaterally bypass Congress once again and enter the United States into the so-called ''Paris Protocol'' on global warming.

As the proud Representative of the 36th Congressional District in the State of Texas, I can tell you that my constituents want nothing to do with this expensive, ineffective, and unnecessary proposal.

According to the American Coalition for Clean Coal Electricity, the Paris Protocol will reduce U.S. gross domestic product by an average of 9.1 percent, or $5 trillion per year. And consistent with this, NERA Economic Consulting states this will cost U.S. taxpayers approximately more than $30 billion per year.

Aside from the constitutional issues of the President bypassing the Senate and not submitting this proposal as a treaty, and the outrageous costs, these negotiations will not even accomplish their end goal of substantial climate benefits.

A U.S. pledge to the U.N. is estimated to prevent only one-fiftieth of 1 degree Celsius temperature rise over the next 85 years.

□ 1745

Simply put, our planet will see no measurable benefit at all, but our economy will be wrecked by this accord.

This is just another example of the terrible leadership that we have seen from this administration and of the important role that Congress must play in standing up and fighting back on behalf of the American people.

Mr. ENGEL. Madam Speaker, I yield myself such time as I may consume.

I thought we were debating Mr. POE's and Mr. CONNOLLY's bill. I didn't realize that climate change was on the agenda. Let me say that today, Secretary Kerry met with a bunch of businesspeople and led a meeting, and they talked about climate change because climate change is real.

Madam Speaker, I yield 5 minutes to the gentleman from Virginia (Mr. CONNOLLY), a valued member of the Foreign Affairs Committee and an author of this legislation.

Mr. CONNOLLY. Madam Speaker, I thank my dear friend from New York, the distinguished ranking member of the House Foreign Affairs Committee, for his great leadership and for always being supportive of all of our work.

I also want to thank my dear friend from Texas, TED POE. He has been a wonderful partner and initiator of reform and of thoughtful legislation on our committee. It has been my privilege to cosponsor a lot of legislation with Mr. POE to try to make things better.

Today, I rise in support of another such example, the Foreign Aid Transparency and Accountability Act of 2015.

Madam Speaker, this bill is a project I have worked on with Judge POE for a number of years now. In the 112th Congress, a previous iteration of the bill passed this body by a unanimous vote. We hope for a similar outcome in this Congress and for quick Senate consideration and passage.

The bill directs the President to establish monitoring and evaluation guidelines for the 22 Federal agencies that are charged with implementing some piece of development and economic assistance.

The guidelines will require M&E plans as part of the project development process, and agencies will be encouraged to incorporate the findings of evaluations and impact studies into subsequent foreign assistance programs. This feedback loop will include measurable goals, performance metrics, and a clearinghouse for lessons learned on U.S.-led aid projects, something long overdue after 60-plus years of foreign aid. Additionally, the legislation requires that the documents and reports created under this M&E regime be made available to the public on foreignassistance.gov.

This administration has developed an encouraging record on foreign aid transparency. The Foreign Assistance Dashboard, which was created in 2010, is a great example of demonstrating a promising inclination toward disclosure that we hope to enshrine in this law. This measure will strengthen and codify those transparency best practices to ensure that they exist as agency policy under future administrations that might not be as accommodating of the aid community's demand for this information.

Aid programs that are held accountable for their performance and results can be made more effective, and their impact on communities and countries abroad can be more easily demonstrated. Perhaps, with more information, we can dispel the commonly held belief that 26 percent of our budget goes to foreign aid, when, as my friend Judge POE pointed out, it is actually less than 1 percent.

The U.S. foreign assistance operation does not lack passion. The men and women who put themselves in harm's way overseas and who take their families to remote areas of the world, often dangerous, in the interest of helping vulnerable populations, are certainly not seeking fame, glory, or fortune. They do it because they can envision a path to prosperity in even the most poverty-stricken areas of the world, and they see the promise of democracy in the face of the most repressive and authoritarian regimes.

While our passion is well-defined, our mission and metrics are not.

Regarding our mission, I was a staffer on the Senate Foreign Relations Committee the last time Congress actually passed a foreign aid authorization bill in 1986. The original Foreign Assistance Act of 1961, which Judge POE cited, listed five principal goals for foreign aid. Today, we have more than 260. Some are competing and some are redundant.

What is our core mission today?

Until January 2014, USAID's mission statement read as follows: ''USAID accelerates human progress in developing countries by reducing poverty, advancing democracy, building market economies, promoting security, responding to crises, and improving quality of life. Working with governments, institutions, and civil society, we assist individuals to build their own futures by mobilizing the full range of America's public and private resources through our expert presence overseas.''

That is not a clear mission statement. I am hopeful this bill will help us focus on the foreign assistance operations.

While I think we have some distance to travel in streamlining the legislative construct for foreign assistance and clearly articulating our mission, we have an opportunity today to make immense progress toward establishing badly needed metrics for aid programs with the passage of this bill. It is time to apply a data-driven approach to constructing an assistance operation that has the support of both this Congress and of a well-informed public.

I urge my colleagues to support this bill.

Again, I particularly thank my friend, Judge POE, for his leadership, for his initiative, and for his vision with respect to this subject. I know it is going to actually make U.S. foreign assistance investments in the future a lot more effective and a lot more accountable.

Mr. POE of Texas. Madam Speaker, I yield myself such time as I may consume.

I thank the gentleman from Virginia for his comments. A couple of things that he mentioned are worth mentioning again, I believe.

This very bill that we have been working on for a long time passed unanimously in this House of Representatives 4 years ago in December. Why didn't it become law? Because, in the Senate's rules, one Senator was able to block the legislation from even being voted on in the Senate. So here we are again, 4 years later, trying to get this legislation passed.

My friend mentioned USAID and their mission statement. Nothing in the definition of ''assistance'' in this bill precludes USAID from reporting on data fields that it currently reports on for the Green Book and for OECD. So, if they are already making reports, this legislation, to be very clear, does not prohibit them from also making those other reports, but they will comply with the legislation in this bill.

I reserve the balance of my time.

Mr. ENGEL. Madam Speaker, I yield 2 minutes to the gentleman from Rhode Island (Mr. CICILLINE), a valued member of the House Foreign Affairs Committee.

Mr. CICILLINE. I thank the distinguished gentleman from New York for yielding time.

Madam Speaker, I rise in strong support of H.R. 3766, the Foreign Aid Transparency and Accountability Act.

I want to begin by recognizing my colleagues, the distinguished gentleman from Virginia (Mr. CONNOLLY) and the distinguished gentleman from Texas (Mr. POE), for all of the work that they have done to get this important bill to the floor and to thank them for working, as they always do, in a bipartisan way on behalf of the members of our committee.

I also thank Chairman ROYCE and Ranking Member ENGEL for their leadership on this bill and for their creating an environment on the Foreign Affairs Committee, where we work together in a bipartisan way, and this legislation is a product of that work.

Madam Speaker, the Foreign Aid Transparency and Accountability Act will enhance the transparency and effectiveness of U.S. foreign assistance by requiring a framework for monitoring and evaluating foreign development and economic programs and for publicly disclosing the data and results.

The United States carries out a wide variety of assistance programs overseas, and it is important that there is a clearly articulated strategy and monitoring apparatus for our assistance. It is just as important that the American people have access to the information about what activities their tax dollars are funding. This is critical to sustaining public understanding and support for our diplomatic work and our foreign assistance.

I also want to take a moment to commend the Obama administration for making much of this information publicly available online on their Foreign Assistance Dashboard.

I hope that my colleagues support this legislation so that we can continue to increase efficiency and accountability in our foreign assistance programs. The American people deserve this, and it will make our foreign assistance better understood and more impactful. I urge my colleagues to support this excellent legislation.

Mr. POE of Texas. Madam Speaker, as I have no further requests for time, I reserve the balance of my time.

Mr. ENGEL. Madam Speaker, I yield myself such time as I may consume.

In closing, let me, again, thank Chairman ROYCE for bringing this bill forward and thank Representatives POE and CONNOLLY for their hard work.

Our foreign assistance helps improve the lives of countless people around the world, and it helps advance American interests and American values. Foreign assistance deserves the continued support of Congress. At the same time, we need to know that our foreign assistance dollars are being put to the best use possible, that we are getting the biggest bang for our buck. The American people expect no less when it comes to their tax dollars, and they are right.

So let's stand up for foreign assistance and for transparency and accountability by passing this bill. I urge a ''yes'' vote.

I congratulate Judge POE and Mr. CONNOLLY.

Madam Speaker, I yield back the balance of my time.

Mr. POE of Texas. Madam Speaker, I yield myself the balance of my time.

I want to thank Chairman ROYCE, Ranking Member ENGEL, and, of course, my friend, Mr. CONNOLLY from Virginia, for their support on this bill.

Madam Speaker, the Foreign Affairs Committee is probably more bipartisan than any committee in the House of Representatives. Almost everything that we do and the legislation we bring to the floor, the vast majority of Members support. Sometimes every Member supports the legislation. This is another one of those pieces of legislation that is good for the country and is really good for the whole world.

Transparency and evaluation is what this bill is about. As I started out in my comments, many Americans don't know what we do with their money. Let me just give a few examples:

Because of American aid, there are now millions of girls in other parts of the world who are getting an education. Because of Americans and their interest, half of the AIDS epidemic in Africa has been cut. It has been cut in half, the epidemic of AIDS in Africa. The life expectancy of people in Afghanistan, because of American aid, has grown 20 years. When it comes to the youth, many children throughout the world are dying because they have dirty water. It is not clean. Because of USAID and their help, that number has been cut in half. The children are now living because they are getting clean water.

Those are just a few things that are being done. We should be proud of those accomplishments.

We also want to make sure that those accomplishments and what we are doing with American money is transparent. We want to continue to evaluate it to see if it is working. If it is working, let's continue it, and if it is not working, then let's do something else.

I do want to thank those involved for their support, especially the chairman and the ranking member.

H.R. 3766 will give us the tools to make foreign aid programs efficient and effective, two words that sometimes aren't used with ''government.'' I strongly support this legislation.

And that is just the way it is.

Madam Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. POE) that the House suspend the rules and pass the bill, H.R. 3766, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

LASALLE LANCERS DID IT AGAIN

(Mr. CHABOT asked and was given permission to address the House for 1 minute.)

Mr. CHABOT. Madam Speaker, they did it again.

The LaSalle Lancers won the Ohio Division II State football championship for the second year in a row, and they won it convincingly, as they did last year, 42–0, this time over Massillon Perry.

One reason LaSalle was ready to compete and prevail for the State championship was they were challenged throughout the season by other great Cincinnati high school football programs. There is a saying, what doesn't kill you makes you stronger. Having to play Cincinnati powerhouse teams like Colerain, Elder, St. X, and Moeller didn't kill LaSalle, but it certainly made them stronger.

I am proud to say that LaSalle has been an important part of my life. I got my start in politics there by getting elected to the student council, and I played football, starting on the defensive line. Ten years later, my younger brother, Dave, also played defensive back for LaSalle. Of course, there is another saying, the older I get, the better I was.

So congratulations to LaSalle's players, coaches, students, teachers, parents, and supporters. Well done.

Lancers, roll deep. Congratulations.

□ 1800

IMPORTANCE OF ABUNDANT ENERGY

The SPEAKER pro tempore (Mr. COSTELLO of Pennsylvania). Under the Speaker's announced policy of January 6, 2015, the gentleman from Pennsylvania (Mr. ROTHFUS) is recognized for

60 minutes as the designee of the majority leader.

GENERAL LEAVE

Mr. ROTHFUS. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous materials on the topic of my Special Order.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Pennsylvania?

There was no objection.

Mr. ROTHFUS. I want to take a little time this evening to take a different look at American energy, Mr. Speaker. As many of you know, one of my core convictions is the importance of upholding the dignity of human life. Our task here in Washington should be to promote ideas and policies that allow people to live longer, healthier, and more rewarding lives.

It is in that spirit that I have joined with my fellow Pennsylvanian, Representative KELLY, and like-minded colleagues to host tonight's Special Order.

Starting last week, world elites gathered in Paris to negotiate climate change commitments and promises that, if enacted, could undo generations of human progress, progress that has provided us with the affordable and reliable energy necessary for humans to truly flourish.

I am here tonight to tell another side of the story, one that abandons the dogma of scarcity put forward by elites in Paris and climate change zealots in Washington. I want to shift this debate to focus on the remarkable story of human abundance. Affordable, reliable energy has been responsible for helping to improve and prolong the lives of billions of people around the world.

Energy powers our businesses. It keeps the lights on in our homes. It allows us to have fresh food and clean water. It powers our schools and our hospitals. Energy is in many respects a life or death matter. It is a moral issue, and it deserves more careful consideration than it has been given by the President.

I would like to highlight a little bit, just taking a look at some charts. In taking a look at what has been happening with the use of energy, a lot of the energy we get is carbon-based fossil fuel energy, whether it is coal, oil, natural gas. Yes, it has increased in recent history.

What also has happened in recent history? As CO_2 emissions have gone up, so has the wealth of this world and of this country. As the population has gone up, so has energy use. What is really striking, Mr. Speaker, is taking a look at how the increase in life expectancy has coincided with this energy revolution as well. As you can see, for much of human history, our lives were short, miserable, and lacking in fulfillment.

Consider that, until the industrial revolution, people lived 27 years, on average, earned little money, and faced limited opportunities. Again, though CO_2 has increased, so has incredible wealth, lifting billions of people out of poverty and life expectancy.

The point now is, in the United States, the average life expectancy is near 80 years old. As people learned to access the bounty of energy available, we turned it to our advantage. As we got better at it, incomes and populations soared.

This is another interesting chart, Mr. Speaker. As we look at the use of world energy, just going back over the last 30 years, the bottom line is energy use. The top line is the world GDP, the increase in wealth that we have seen coinciding with this increase in energy. You could take a look at some specific countries and see how energy has benefited them.

In China and India, both of which have industrialized and increased energy use over the last generation, life expectancy has increased by more than a decade. Infant mortality has plummeted by 70 and 58 percent, respectively, in China and India. This is all correlated with increased energy use and the availability of affordable energy resources.

As Alex Epstein argues in ''The Moral Case for Fossil Fuels,'' hundreds of millions of people have gotten their first light bulb, their first refrigerator, their first decent-paying job.

With all of our world problems, affordable energy has helped make this the brightest, most abundant time in human history. Some disparage the story as one of unseemly consumption and excess. I see it as a tremendous triumph of human ingenuity and a victory for those who put human well-being as our top priority.

We can tell the same story about Western Pennsylvania, where, once again, we are witnessing increasing prosperity attracted by affordable and reliable energy. This entails better opportunities for Pennsylvania's youth and a better quality of life. That is why I am so troubled by the President's actions at home and in Paris.

In negotiating a global compact, which will likely entail further restrictions on our access to energy, the President is unknowingly endangering our future well-being. By not taking his plans to Congress for approval, as should be the case with a treaty, the President is ignoring the will of the American people.

This is not a trivial point. The American people will be denied the opportunity to weigh in on something that will drastically impact their daily lives. Remember, the President said when he was a candidate in 2008 that electricity rates will necessarily skyrocket under his plan.

All of this comes in addition to heavy burdens that the American people are already grappling with. The so-called Clean Power Plan is an example. By forcing more power plant closures and placing stricter requirements on those that remain, the President's plan will raise energy prices by $289 billion through 2030, hurting American families and businesses large and small.

Research suggests that we will see 224,000 fewer American jobs being created each year because of this rule. We will also see reduced disposable income and weaker economic growth.

Minority communities will be especially hard-hit. A study from the National Black Chamber of Commerce found that the Clean Power Plan would increase poverty among African Americans by 23 percent and Hispanics by 26 percent. This is unacceptable, and it is immoral.

Real people will be hurt by these actions. Yet, few in Washington seem to be caring about these real human costs. That is why I have introduced a bill called the Fair Burdens Act. This bill would prevent the burden from endangering our prosperity and well-being until the EPA can verify that a sufficient number of countries have enacted similarly stringent policies.

In other words, the Fair Burdens Act would ensure that Americans aren't made to needlessly suffer and that our jobs aren't forced overseas, as the President unilaterally slows the American economy.

We can't just rely on legislation. We need to change the narrative and educate the public. Affordable, reliable energy is a vital ingredient for human prosperity and well-being. Ignoring this fact and taking ill-conceived policy actions as a result condemns millions of Americans and billions around the world to dimmer futures, higher energy costs, and less prosperity. We owe it to our constituents to defend their ability to live fulfilling, prosperous lives.

I want to thank my colleagues who have joined me here tonight to do just that. I yield to the gentleman from Pennsylvania (Mr. KELLY).

Mr. KELLY of Pennsylvania. Mr. Speaker, I think tonight is a great night for us all to get together. While we are very concerned about the cost to American taxpayers and the fact that we will be going away from our fossil fuels, which are so abundant, so accessible and so affordable, there is another issue that takes place at the same time.

In the Paris protocol, we have heard the President say very clearly—and he has used this many times before—that things aren't getting done at the pace that he would like and that he has a phone and he has a pen and, if Congress can't act, he will act.

Well, I would like to suggest to the President, in fact, it is kind of shocking and stunning that a former professor of constitutional law would have a total disregard for the Constitution. I would like to tell the President that the Constitution is not a suggestion. It is who we are. It is what makes us an exceptional Nation.

Now, the United Nations' Framework Convention on Climate Change is taking place right now in Paris. It is stunning that the legacy of one man would

overshadow what is good for not only our country, but the world.

Decisions made by this President and the commitments made by this President, he looks at it as an executive decision, not as a treaty, a treaty that requires him returning to the House and to the Senate. Particularly treating this as a treaty, it would take two-thirds of the Senate to concur with whatever it is that we are proposing. Again, as I said, this is a former professor of constitutional law. Yet, he continually defies it. He makes the House irrelevant.

This is not, by the way, a Republican or Democrat issue. This is an American issue. This goes to the very framework and the very foundation of who we are as a Nation. So when you look at this, it is really hard to believe that there is such disregard.

I would just say to the President that, if you go to article II, section 2, clause 2, it is very clearly stated: ''The President . . . shall have Power, by and with the Advice and Consent of the Senate, to make Treaties, provided two thirds of the Senators present concur . . .''

Again, this is an overreach by an executive. It doesn't matter if it is a Republican sitting in the White House or a Democrat sitting in the White House or an Independent or a Libertarian sitting in the White House. It clearly is defined in our Constitution how these powers work.

Mr. ROTHFUS. I wonder, Mr. Speaker, if one were to ask a question of some high school students in a civics class—if you have an agreement, let's say, between two countries or three countries or four countries and those countries are agreeing to do things that are going to bind their respective citizens, you would ask those students, I would think, Mr. Speaker: What would you call that type of agreement?

I think every one of those students in a civics class might say a treaty. If it looks like a treaty, if it smells like a treaty and it works like a treaty, it is a treaty.

To just highlight what my colleague here has been saying, we have a process in our Constitution for when it is a treaty. It needs to get submitted to the Senate with a two-thirds vote.

I yield to the gentleman from Pennsylvania (Mr. KELLY).

Mr. KELLY of Pennsylvania. Mr. Speaker, I thank the gentleman for his contribution.

I mean, it really does come down to, well, tonight we are talking about energy and we are talking about setting targets and timetables that will be very expensive for hardworking American taxpayers' money. I would like to remind the President that the money he is talking about committing is not his. It belongs to hardworking American taxpayers.

This insane idea that somehow there is an endless amount of money to be thrown around the world for whatever reason possible and knowing that, really, the Paris protocol is nothing more than a conversation taking place in Paris.

There is no commitment from these countries to do all these things. There is an ask for these countries to do these things. What they are asking is: If we do comply with these suggestions, these targets, these timetables, will we be subsidized by the United States of America?

The President has been unbelievable to make the commitments that he continues to make. He does not have that power. Our Constitution clearly defines the separation of powers. It is clearly structured so that no one body can run roughshod over the other body. This has been a concern forever. Yet, this President consistently time after time disregards the House and the Senate.

□ 1815

As I said earlier, this is not about Republicans or Democrats. This is about America and America's future. In this case, it is about energy. But as we go forward, what other overreaches will this Executive take? What other things will he do because it is about his legacy and not about the well-being of our country and our people. It is shocking. It is stunning that he would continue on this path.

What is even more stunning to me is that the American people sit idly by and watch this happen day after day, week after week, month after month. In 7 years of watching this, they sit back and say: I am not sure that he doesn't have the power to do this. Well, let me tell you, it is clearly defined in our Constitution that this President does not have this authority. In fact, no President, no Executive has the authority to do what this President is continuing to do.

As we meet here in America's House and we look at what can you do, because people back home tell me all the time, ''Look, I agree with you, but what can you do about it?'' and I know that for myself and my colleagues, we refuse to sit by idly and watch our Nation be given away and watch our Constitution be run over roughshod because of one man's legacy. This is not what is good for America. This is what is good for this administration and this President. That is not only shameful, it is unconstitutional and cannot be tolerated.

That is why, with Senator LEE in the Senate and myself, we have come up with H. Con. Res. 97 that states any commitment of funds, hardworking American taxpayer funds, has got to come before the Senate for its advice and consent.

As I said earlier, we can debate and we can talk and we can amend, but what we cannot condone is an Executive who has a total disregard for this House and for the Senate. As I said earlier, we need colleagues on both sides. This is not a Republican issue or a Democrat issue. This comes down to the very foundation of who we are as a country.

If we turn our back on this, what will be next? The continual disregard for the Constitution is not only of grave concern to me, to my colleagues, but every single American, regardless of how you vote or how you register. That is not the issue, my friends.

The issue is, when do the American people in America's House, with the Senate, stand up and say there will be no commitment of hardworking American taxpayer dollars unless it comes before the Senate as a treaty and gets the advice and consent of the Senate, two-thirds of which are required to pass this?

I know we are coming to an end in Paris, and I know there is great concern of getting to Paris to find out exactly what the Paris Protocol is structured with, but I would just say this: Before you pack your bags and leave, take a copy of your Constitution with you.

For those folks sitting back home and watching this happen, please, get out your Constitutions and look. For our schools, please start to preach and teach the Constitution, of which too many Americans are woefully uninformed.

Mr. ROTHFUS. It struck me as my colleague from Pennsylvania was talking about the Constitution. What he was getting at, Mr. Speaker, was a simple concept of authority and whether the President has authority to do what he is doing in Paris. The President is allowed to negotiate certainly. He can conduct foreign affairs. It is pretty clear in the Constitution that he has that authority to do so. But the President, on his own, does not have the authority to obligate American taxpayers to pay into any kind of fund. It is the House and the Senate that do the appropriations.

I am mindful that my colleague came out of the auto business, where he sold cars. I can imagine a situation where you might have a customer coming in, let's say a 15-year-old, who wants to go in and buy a car. Of course my colleague might welcome this individual to the showroom, and this individual, a 15-year-old kid, might make an offer, but I think he is going to be asking: Well, does this person have the authority at the age of 15 to make an offer? Maybe the kid will say: Well, I am doing it for my mom and my dad. Well, you are going to want to see what authority he has. I am mindful that our Constitution gives the authority to spend money to the Congress, which would then be signed by the President.

I yield to my colleague if he wants to close.

Mr. KELLY of Pennsylvania. I would tell you this, and I think if there is anything more telling of the view that this administration has, all you have to do is go back in time to March of 2015 this year when Josh Earnest, who represents the White House in all the briefings, was asked by a reporter in regard to the Paris Protocol and in regard to the climate control conference that would be taking place.

This is so typical of this administration. The reporter looks to Mr. Earnest and says to him: Is this the kind of agreement that Congress should have the ability to sign off on?

Now, you would think that somebody who works for a former constitutional law professor would have a little bit of an idea when it comes to speaking; and even while they may feel in their heart that they have a total disregard for this body, I don't think that they would be encouraged to speak out the way Josh Earnest did that day. Let me read what Josh Earnest said when the reporter asked him: Is this the kind of agreement that Congress should have the ability to sign off on?

He looks him right in the eye and says: I think it is hard to take seriously from some Members of Congress who deny the fact that climate change exists that they should have some opportunity to render judgment about a climate change agreement.

Is that not stunning? And not only stunning, but chilling that, coming out of the White House, the spokesman for the President of the United States again consistently expresses the attitude of this President in that: Are you kidding me? We are actually going to have the people's House, the people's Representatives weigh in on a climate change initiative? They are not qualified. They only represent the people. No. We will make that decision. And he again totally trashes the House of Representatives.

By the way, for my friends who don't speak up when this happens to them, you got trashed, too, my friends. I have watched you stand and applaud a President who says consistently that: I do not need the House of Representatives to effect change. I will use my phone and I will use my pen, and I am tired of waiting for these people.

Well, Mr. President, once again I say to you that the Constitution is not a suggestion. It is who we are as a nation. It is what makes us great. It is what allows the people to decide how they will be governed, not the government to decide how the people will be governed. This is such upside-down thinking.

While I am concerned, as you are, with the abandonment of our fossil fuels and turning our economic revival upside down, I am more concerned with an administration that consistently turns upside down our Constitution, runs roughshod over the House of Representatives, disregards the Senate, and then sits back and says: This is the way it is going to be because I am the President of the United States.

I tell you, Mr. President, you are the President of the United States. You take the same oath all of us take. If for some reason you can't remember what it is, please take a look at it and remind yourself who you are, what you are, and whom you represent.

The SPEAKER pro tempore. Members are reminded not to engage in personalities toward the President, and Members are reminded to address the Chair and not a perceived viewing audience or other Members in the second person.

Mr. ROTHFUS. I thank my colleague from Pennsylvania for his observations about our Constitution and what it requires.

I yield the floor to my colleague from Missouri (Mrs. HARTZLER), who has been a very strong advocate for her constituents and for the energy policy that we need to have in this country.

Mrs. HARTZLER. Mr. Speaker, I appreciate the opportunity to join with Representatives ROTHFUS and KELLY and all my colleagues here tonight expressing concern about the reports coming from the Conference of the Parties, or COP 21, talks in France of a planned end-around of the Senate.

It is unacceptable to me that this administration is negotiating a major international agreement, promising vast sums of taxpayer dollars, with no intention of allowing the people's representatives to weigh in on a final agreement. While the President's team is in Paris trying to finalize a deal, we have been here listening to our constituents. That should be our goal: to listen to Americans and to fight to lower their electricity costs, not obligating taxpayers to send billions of their hard-earned dollars overseas to implement climate change schemes.

Nor should we continue down this path of forcing rate increases on the hardworking families in America, yet that has been the President's plan all along, Mr. Speaker. In 2008, President Obama proudly announced his vision for energy costs in our country. He said: ''Under my plan of a cap-and-trade system, electricity rates would necessarily skyrocket . . . coal . . . natural gas . . . you name it . . . whatever the plants were, whatever the industry was, they would have to retrofit their operations. That will cost money, and they will pass that money on to consumers.''

His plan: make them pay more. Even though his cap-and-trade legislation failed in Congress, the administration has not given up and continues to ignore the voices of the American people by passing rules that implement them, despite the law, and by traveling to Paris to work a deal to inflict more mandates on the American people.

Even now, with little support here at home, negotiators are working every angle to make sure a deal is secured, no matter how onerous it is to senior citizens and low-income families living paycheck to paycheck and for whom a rate increase will hurt the most.

This agenda has been a hallmark of the administration when it finalized the EPA's recent Clean Power Plan rules on existing and new power plants, which amount to a disguised cap-and-trade program.

But we are listening to the American people. Upon the start of the Paris talks, both Chambers of Congress passed joint resolutions against the EPA's Clean Power Plan rules for new and existing power plants to nullify the rules put in place which were done by ignoring the will of the people.

Twenty-seven States have also taken the EPA to court over these two rules. It is important that we do this. Missourians rely on affordable energy. Americans everywhere rely on affordable energy, and to ignore their needs and wishes is irresponsible.

We do not need extreme, arbitrary mandates that will cost hundreds of billions of dollars over the next 15 years, close power plants across the Nation, eliminate jobs, and close off access to reliable, affordable energy for the most vulnerable in our society.

We need to promote policies that increase access to affordable energy, tap into the abundant energy supply, and create a reliable infrastructure supported by American labor and ingenuity.

We need to make sure that Americans' voices are heard, which is why I proudly stand with my colleagues in support of Congressman KELLY's concurrent resolution requiring the President to send any agreement stemming from these talks in Paris to the Senate as a treaty for advice and consent from those sent here by the people to represent them.

We need American energy policy that works for the American people, not against it. They deserve a fair process that upholds the constitutional authority of checks and balances envisioned by our forefathers.

I urge my colleagues to stand up for the American people and support this resolution so the people's voices will be heard.

Mr. ROTHFUS. Mr. Speaker, those who disagree with us and our colleagues point to the wisdom of the experts on the potential impacts of climate change, but we know that many of the so-called experts have historically been wrong, often significantly wrong.

In 1986, John Holdren, a senior adviser to President Obama on science and technology issues, predicted: ''carbon dioxide, climate-induced famines could kill as many as a billion people before the year 2020.''

Since then, we have added almost 2½ billion people to the planet, an increase of almost 50 percent, and we aren't seeing a billion people dying from famine. We continue to make significant progress with improved technology, and we are feeding more people than ever, and people are living healthier and longer. We could not have done this without accessing abundant, affordable, and consistent energy.

Paul Ehrlich, another so-called expert on this issue, predicted in 1970, that: ''By the year 2000, the United Kingdom will be simply a small group of impoverished islands, inhabited by some 70 million hungry people . . . If I were a gambler, I would take even more money that England will not exist in the year 2000.'' Well, England

still exists, and it is doing better than ever.

□ 1830

England's Chancellor of the Exchequer was recently published in The Wall Street Journal bragging about the nation's turnaround under conservative leadership: ''How Britain Got Its Mojo Back.''

To paraphrase Mark Twain, the report of Britain's death is greatly exaggerated, to say the least. If we had listened to the inaccurate and dire predictions of these experts and chicken littles and curtailed energy usage, our world would certainly look differently than it does. It would be poorer, less well fed, and billions of people would be generally worse off.

I yield to the gentleman from Alabama (Mr. PALMER).

Mr. PALMER. Mr. Speaker, I want to thank my colleague from Pennsylvania (Mr. ROTHFUS), and I want to commend my colleague and friend, the gentleman from Pennsylvania (Mr. KELLY), for his eloquent and passionate defense of constitutional government.

It is not just the administration's efforts here to ratify something and bypass Congress without any input from us, but they are also making laws through agencies, such as the EPA. We are engaged right now in a debate over the Clean Power Plan, which is a reiteration of cap-and-trade. It is all about regulating greenhouse gases. They have started this process because in 2007, the Supreme Court, in a 5–4 decision, said that the Clean Air Act gave the EPA the authority to regulate greenhouse emissions. Not everyone agrees with that.

As you see here on the easel, I have a quote from former Representative John Dingell. This is what he had to say about the Supreme Court's decision in EPA v. Massachusetts. He said:

''Like most members of this committee, I think the Supreme Court came up with a very much erroneous decision on whether the Clean Air Act covers greenhouse gases. Like many of the members of this committee I was present when we wrote that legislation. We thought it was clear enough that we didn't clarify it, thinking that even the Supreme Court was not stupid enough to make that finding.''

I want to state for the record, Mr. Speaker, that I am in no way making personal references to the members of the Court, particularly the five who voted for that decision. That is Mr. Dingell's opinion. But I think it is clear that it was never Congress' intent to allow the EPA to do this.

The point here is that we have had a debate over regulating greenhouse gases. We did that in 2010 in the form of the cap-and-trade bill. And Congress, with Democrat majorities in both Houses, said ''no.'' Yet the President is intent on making the United States a party to a legally-binding agreement to reduce greenhouse gas emissions that will have almost no measurable impact on global temperatures. The EPA has admitted that in testimony before the Science Committee.

This is basically a public relations effort to encourage other nations to reduce their greenhouse gas emissions. As Mr. ROTHFUS has pointed out, the cost on the American economy, and particularly on low-income families, will be enormous. Also, on single-income households and senior citizens.

Even the former lead author of the International Panel on Climate Change, Philip Lloyd, asserted in a new paper that there is strong likelihood that the major portion of observed warming is due to natural variation. If it is due to natural variation, there is little to nothing that we can do about it.

Congress has been bypassed by the EPA and other Federal agencies for too long. Is time to stand up and reassert ourselves as the sole body empowered to make law under the Constitution.

The debate over greenhouse gases and climate change is not the central issue. This is really about the EPA and this administration usurping the authority of Congress to make a law.

As my friend from Pennsylvania (Mr. KELLY) explained, the issue is that the authority of Congress, and consequently the right of American citizens to representation and the making of our Nation's laws is being seriously diminished.

Under our Constitution, Congress makes the law and is held accountable by the people through elections. The effort to restrain the EPA is more than a policy position on an issue, but a matter of fidelity to the Constitution and the clear separation of powers doctrine that is essential to the successful functioning of our government.

As the people's elected Representatives, and I want to emphasize it is elected Representatives, not elected bystanders, it should be one of our top priorities to reassert Congress as the originator of law and reestablish congressional accountability for the regulations issued by Federal agencies, by requiring a vote on the regulations that have a significant impact on the economy. This would have a devastating impact on the economy. By doing so, not only will the economy benefit, but the Representative and accountable government will be restored in the process.

I urge all my colleagues to support my friend from Pennsylvania's resolution to require that the President submit any agreement reached in Paris to the Senate for their advice and consent.

Mr. ROTHFUS. I thank my colleague for his comments.

Let's take a look at where we are at in this debate over energy use and what has been going on in Paris. Again, it always seems to be a one-sided conversation about all the negatives and all the dire consequences. I highlighted a few of the examples before of what some of the advocates have been saying, and how their dire predictions did not come to pass.

Too often, Mr. Speaker, we take for granted how easy it is to live with constant access to reliable sources of energy. Our health, indeed our lives, and the lives of those who we love, often depend on our access to reliable energy available to us at every hour, every day. People in the developing world cannot yet say the same.

There is a powerful story of an unborn child who suffocated in utero in Gambia comes to mind. This tiny, three-pound little girl could not be saved, because the hospital did not have access to a reliable source of energy. Her mother required an emergency C-section, but the surgery could not begin until a generator was powered on. Precious minutes were lost, so precious life was lost. Without a reliable, consistent form of energy, the hospital did not even own an incubator, which would have also been necessary to save this baby's life.

We cannot forget how important affordable, reliable energy is for every human person, and how attacks on these sources of energy are attacks on life itself.

I yield to my colleague from Texas (Mr. WEBER).

Mr. WEBER of Texas. Mr. Speaker, I rise today to condemn the President's actions to regulate our power plants and his efforts to commit the United States to such onerous regulations through the United Nations. At no other time in our history has a President been more wrong more times on so may issues that this country is facing today than President Obama, Mr. Speaker.

At a time when our country is being attacked from inside our borders and radical Islamists are gaining ground all over the world, this administration is obsessed with climate change? And, he refuses to admit the radical Islam is our enemy? It makes me wonder if he thinks that Syed Farook in English means ''global warming.''

It is clear that he is intent on regulating our Nation's economy and hurting its citizens instead of focusing on the immediate threat. You can't make this stuff up, Mr. Speaker. I guess you could say the threat he should be focused on is global swarming. He just doesn't seem to get it, Mr. Speaker.

The sad fact, Mr. Speaker, is even if every country abided by its greenhouse gas emissions reduction commitments, temperatures would continue increasing 2.7 to 3.7 degrees Celsius. Without these reductions, temperatures would increase 3.0 to 4.0 degrees Celsius. The difference is miniscule.

Mr. Speaker, there are no positive economic or environmental benefits to the President's unlawful regulatory actions. Instead, the administration's pledge to the U.N. threatens job creation and economic growth right here in the United States of America.

According to one independent analysis, the economic cost to Americans

will be approximately $29 to $39 billion each year. Electricity prices for consumers in 40 States could increase by at least 10 percent, or more. He has already been quoted during his campaign saying that under his administration, electricity prices would, by necessity, skyrocket. These are his words, not mine.

This represents nothing less than a war, Mr. Speaker, on low-income families, and would further increase economic inequality.

Mr. Speaker, our country is in a crisis. Instead of its foolhardy and unconstitutional plan to regulate our climate, this administration should be focusing on the livelihood and safety of this Nation and Americans.

It is no secret that there are people around the world who hate the United States and wish to see its demise. There are attacks being planned and plotted even as we speak, Mr. Speaker. Yet this administration claims that that threat is contained and global warming is our main threat. Tell that to the 14 people who were tragically murdered while celebrating Christmas in San Bernardino.

That is how I see it here in America, Mr. Speaker.

Mr. ROTHFUS. I thank my colleague.

I yield to the gentleman from Florida (Mr. YOHO).

Mr. YOHO. Mr. Speaker, I thank my colleague for doing this very important Special Order. I commend Mr. ROTHFUS and Mr. KELLY for doing this.

I have got several things I would like to talk about. The first thing is that 190 countries are meeting in Paris to negotiate a new international agreement on climate change at the 21st session of the Conference of Parties.

According to the U.S. Special Envoy for Climate Change, President Obama intends to commit the U.S. to giving tens of billions of dollars per year to finance green energy initiatives in developing countries to reduce emissions by 26 to 28 percent below levels by 2025.

America, wake up. These tens of billions of dollars are coming out of your money. We have seniors that can't buy health insurance or pay their rent or insurance. We have seniors and other families that are suffering here in America. But yet, the President wants to commit tens of billions of our hardworking American taxpayers' money, and mine, too, to these other countries.

The Obama administration has indicated that the President does not intend to submit the Paris agreement to the Senate for its advice and consent as an article II treaty. This is a clear violation of the constitutional laws and ideals of America, and it will not be tolerated. We will hold him accountable.

The lack of progress becomes even more apparent when you start looking at the country level. China, for its part, offered to reach peak carbon dioxide emissions around 2030, while reducing emissions per unit of Gross Domestic Product by 60 to 65 percent by that time from its 2005 levels. But the U.S. Government's Lawrence Berkeley National Laboratory has already predicted China's emissions would peak on their own around 2030, even without climate change initiatives. So they don't have any skin in the game.

A Bloomberg analysis found that China's 60 to 65 percent target is less ambitious than the level it would reach by continuing business as usual. All this came before the country admitted it was burning 17 percent more coal than previously estimated. That is more coal than the entire country of Germany.

So, our government, our President, and this administration want to bind America to a United Nations treaty.

And let's look at the facts. America has been blessed with an abundance of energy sources. We should utilize all those sources to the best of our ability—from coal, petroleum, natural gas, solar, wind, hydro electric, and even manmade nuclear energy. We should use those to the best of our and society's advantage.

□ 1845

We should not cripple the American power companies that supply energy to the manufacturers of America that employ the American citizens at the whim of an administration's green agenda and is paid for on the backs of hardworking American citizens in the way of lost jobs that go overseas because of higher regulations and energy costs, decreased wages because of a decrease in competition in the job market, higher energy costs felt by all of our citizens, but more on the lower end, as has been mentioned here, on the economic income scale because a higher percentage of their money goes to pay their utility bills.

Look at the facts. Geologists think the world may be frozen up again, 1895.

Disappearing glaciers—disappearing glaciers—slowly with a persistence that means there is going to be complete annihilation. That is in 1902.

Professor Schmidt warns us of an encroaching new ice age, 1912.

Scientists say Arctic ice will wipe out Canada, 1923.

The discoveries of changes in the Sun's heat and the southward advances of glaciers in recent years have given rise to the conjectures of the possible advent of a new ice age, 1923 again.

Most geologists think the world is growing warmer and that it will continue to get warmer, 1929.

The point of this is the consensus of scientists has been wrong over the course of the years. If you look at recent facts, that 2-degree Centigrade benchmark that the scientific community says we can't get warmer than 2 degrees or life on Earth is going to stop to exist as we know it, that is not a scientific number. That is an arbitrary number. I did the research on it.

That number comes from an economist in 1970 that the environmental community has gravitated to. They have used that as a benchmark, and it is a fallacy.

The Earth's temperature has increased approximately one-half of a degree Centigrade over the past 20 to 30 years. This comes from the NASA Web site. I encourage the American people that are watching this to go to the NASA Web site. Look at the facts.

Also look at that half-a-degree Centigrade increase in our temperature in the world. It partly is attributed to the new way they are measuring things today. They are more accurate than they were 20 or 30 years ago. So that is a variation.

The other thing is they predict and they estimate that over 50 percent of that half-a-degree Centigrade increase—over 50 percent of that—comes from solar activity, not manmade or anthropogenic causes.

So what does that mean? That means do we just not really even look at the causes of these? No. Not at all.

Let's look at the facts. Even in left-leaning publications—in fact, I brought one here. I don't want to call them left-leaning, but the article in The Economist has a 14-page ''Clear thinking needed'' on climate change.

Even in this article they had some fallacies. One of them was saying the warming in the world is 100 percent by human activity. That is a fallacy. That is false reporting.

The other thing is they go in there and they say that, with all the wind power that we have put into the world, around the globe, and all the solar activity around the globe, and the massive government programs to supplement these, it has failed to make a dent in the so-called manmade CO_2 output on a global scale, and it is not reliable.

All those other forms of energy, the renewables, they are not reliable for baseline production, which is needed for national security.

As I close, I just want to say this: As I said, America has been blessed with an abundance of energy sources. So let us, as leaders of this great Nation, make energy policies that are common sense in nature and don't entangle us, as a Nation, with other nations that cripple us as a Nation not just economically, but they weaken our national security, and they are going to be paid for by all Americans and, again, felt mostly by those that can't afford it.

This treaty is a bad deal, and the President owes the respect to the American people to go through the people's House and the Senate to have any agreement binding.

I thank my colleague from Pennsylvania, and I ask him to continue the good work.

Mr. ROTHFUS. I thank the gentleman from Florida for his remarks.

Again, Mr. Speaker, I would like to just talk about this word denial that we hear thrown around a lot in this debate. There has been no denial, Mr.

Speaker, of the benefits that humanity has enjoyed because of fossil fuel use over the last decades.

Again, I am going to pull up this chart here. The benefits are clear. The lower left graph is GDP per person in the world. It has skyrocketed, coincidentally, with the increase of energy use.

But life expectancy has skyrocketed over the last 200 years, again, coincident with increased energy use, access to reliable, clean energy.

It is no wonder. You consider how energy is deployed. Take water, for example. The tremendous progress that we have made with clean water and pumping stations and ways to pull water in and to clean it, that is all done using fossil fuel-based energy, whether it is coal, gas, oil. There has been a tremendous success over the last 200 years as humanity has looked for energy and used fossil fuels-based energy products.

Mr. Speaker, if President Obama and the unelected Federal bureaucrats at EPA had installed today's regulatory regime in the 19th century, my district and this country would look vastly different.

Access to reliable, affordable energy has improved the quality of life of people wherever it is available, which is why the Clean Power Plan is so deeply misguided.

It will also raise energy prices again by $289 billion through 2030, fulfilling a promise that the President made in 2008 when he said electricity rates would necessarily skyrocket.

But minority communities will be especially hard-hit. Again, a study from the National Black Chamber of Commerce found that the Clean Power Plan would increase poverty among African Americans by 22 percent and Hispanics by 26 percent. This is not acceptable.

In addition, the President's energy agenda constrains our energy mix and distorts the market to benefit certain politically favored technologies, regulations that reduce Americans' access to reliable, affordable energy sources, endangers our grid stability, putting millions at risk of losing power during times of peak demand.

Meanwhile, the Clean Power Plan will avert only two one-hundredths of a degree Celsius of warming over the next 85 years. That is less than 2 percent of 1 degree Celsius. It is not a fair tradeoff.

American energy policy should promote economic growth and prosperity so that we can tackle our debt. This is such an important point, Mr. Speaker.

When we have these debates and conversations about whether it is going on in Paris, whether it is going on in Congress, and we talk about American energy and coal and gas, nuclear, other forms, it is not all pain, the pain that those who are running around and saying the sky is falling, the sky is falling. Time and again, their predictions have been proved false.

It is undeniable, Mr. Speaker, that access to affordable, reliable energy has greatly advanced humanity. And humanity can figure it out. We have made tremendous, tremendous progress with the environment over the last 50, 60 years.

Certainly we have seen that in Western Pennsylvania, and that progress is going to continue. It continues, in part, because we have access to great, reliable, abundant, cheap electricity. Fossil fuels have enabled that progress and will continue to enable that progress.

As we meet the challenges of a changing climate, Mr. Speaker, it is human ingenuity that is going to pull us through, human beings, persons, empowered to live lives freely.

Look what Holland has been able to do with the sea over the last 400 years. Before the advent of all the huge machines that can move dirt around, they have been holding back the sea and building levees and dikes. It has been remarkable what the people of Holland have been able to do, even more so now that we have access to the technologies that we have.

Mr. Speaker, we should be leading the world in heavy technology, as we address concerns with rising sea levels.

There is no reason, Mr. Speaker, to doubt the capacity of the human person and human ingenuity to overcome these challenges that may face us. But we can't be in denial about the fact that fossil fuel energy has been a tremendous boon to humanity.

In closing, Mr. Speaker, we have tremendous challenges—tremendous challenges—ahead in the coming years. We are $18 trillion in debt as a Nation, and we have tens of trillions of dollars in unfunded liability.

We need to be growing like you have never seen before. With access to cheap, reliable energy, we will be able to pull ourselves out of debt. We will begin to have that renaissance in our economy.

We have to meet those challenges we have. But if we expect to meet those challenges, if we expect to meet the commitments we have made on Social Security for Grandma and Medicare and meet the commitments we have made to our veterans, tens of thousands who have sustained life-changing injuries over the last 14 years, we need to be growing again.

A key access to that growth is to have access to abundant, reliable, cheap energy. We know what it has done historically: increasing incomes, lifting people out of poverty, increasing life expectancy, increasing food production, increasing water purity.

Mr. Speaker, this is a success story that needs to be told.

I yield back the balance of my time.

OUR FIRST OPPORTUNITY TO MOVE TO PROTECT AMERICANS

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from California (Mr. GARAMENDI) is recognized for 60 minutes as the designee of the minority leader.

Mr. GARAMENDI. Mr. Speaker, I don't propose to take an hour, but I do propose to bring a very important issue before the House and before the American people. Today we had our first opportunity to really move to protect Americans.

Presently, if you are on the no-fly list, which is not easy to get on—there has to be some very specific reason why you could be a threat to American citizens, to the airplane on which you might be traveling, or you might be entering this country for some nefarious reason, like terrorism.

But if you are on the no-fly list and you do happen to be in America, you can go to a gun store or to perhaps any fairground where there is a gun show and you can buy a weapon, virtually any gun, an assault weapon, a handgun, a shotgun.

And the question arises: If you are too dangerous to fly, are you not too dangerous to buy a gun?

But, under American law today, you can, indeed, be too dangerous to fly. You could be a threat to the other passengers or to a tower, to an airplane. But, apparently, you are not a threat to buy a gun.

In fact, there are some 16,000 people, a very small portion of the American citizenry, that are on the no-fly list. Since 9/11 in 2001, more than 2,000 men, probably women, who are too dangerous to fly on the no-fly list have been able to purchase guns here in the United States.

So let's see if we get this straight. You have been designated by the Department of Homeland Security and the various Federal Government agencies—TSA, FBI, quite possibly the CIA, and others—as being a threat to the security and safety of America and Americans, and you are put on a no-fly list, meaning you can't get on an airplane.

□ 1900

You are not able to buy a ticket, you are not able to travel, and yet you find some way to go down to the local gun store in those States that do not have background checks or maybe a gun show where there are no background checks, you present yourself and say: ''Oh, that is a pretty good-looking AR–14. I'd like to have it.''

''Sure, you got the money?''

''I got the money.''

''Here is the gun.''

This makes no sense whatsoever. Somehow I think the American public gets this. If you are too dangerous to fly, then you are too dangerous to be able to buy a gun in America. It is that simple. There ought to be a law, but there is no law.

Here in the House of Representatives, many of us have been trying for, actually, several years to deal with this crazy loophole in our gun safety laws; yet we have been unable to have a bill come to the House floor where 435 of us

that represent all of the American citizens will have an opportunity to vote on whether we believe that, if you are too dangerous to fly, you are too dangerous to buy a gun.

So today my fellow Democratic representatives and I—about 135 of us thus far—have signed what is known as a discharge petition so that a bipartisan piece of legislation introduced by Representative KING of New York, who is a Republican, could be brought to the floor and all of us face the responsibility of selecting whose side do we stand on. Do we stand for the safety of Americans and prevent people that are too dangerous to fly from being able to buy a gun, or do we stand with those on the no-fly list that are presumably dangerous and say: ''Oh, yeah, you ought to be able to buy a gun even though you are too dangerous to fly''?

Now, for my American friends out there, all of you, voters and nonvoters, don't you think it is time for your Representatives, 435 of us, to stand before you in this House and say: ''We agree that if you are too dangerous to fly, then you are too dangerous to buy a gun, and you cannot buy a gun,'' or stand here before all the American public and say: ''No, no, no. If you are too dangerous to fly, go ahead and buy a gun''?

So, Mr. Speaker, that is what a discharge petition will do. It will take our Republican friend's bill, Mr. KING of New York, bring it to the floor and put the issue before your Representatives, before the representatives of the American people, and cause us to make a choice for your safety or for the presumed right of a person who is too dangerous to fly to be able to buy a gun. It is pretty simple stuff. We will see what happens.

That issue is now bubbling around here on the floor. Today there were four motions to adjourn, which is a way of disrupting the normal procedures of the House—which are terribly abnormal to begin with—and causing the attention of the membership of the House and the press from the press box, or wherever they happen to be, to focus on this one—one—issue: whether those 16,000 or so people that are on the no-fly list can also go out and buy a gun. Two thousand already have.

By the way, Mr. Speaker, we ought to quickly discuss this issue of, well, there is a constitutional issue here, an issue in which these people are on a list but they have no ability to get off—no. Not so. Not so. When the no-fly list was first put together following 9/11, the issue was raised of the constitutionality of it by the American Civil Liberties Organization. It went to a Federal court, and the Federal court said: No, we disagree with you. We believe this is a constitutionally authorized protection of the American public, and there is a procedure for an individual to petition to get off the list. So this issue of constitutionality was decided some years ago by a Federal court.

So, Mr. Speaker, the arguments that you will undoubtedly hear here about this being, oh, an infringement of the constitutional right for an individual to buy a gun, no. This issue has already been resolved. If you are on the no-fly list and you think you shouldn't be there, you have got a procedure, a program underway and available to you to remove yourself from the no-fly list, and the court said it meets constitutional muster.

So, taking it a step further, we know a lot of Americans of certain classes that cannot buy a gun: criminals, convicted felons, people that in some States have been involved in domestic violence, and people that have exhibited mental health issues. Those people are barred in many cases from not being able to buy a gun. So we would add to that category people that our law enforcement agencies have deemed to be dangerous, quite possibly terrorists, or abiding and assisting terrorist organizations. If you can't fly, we just simply say that you can't buy a gun also—pretty simple.

My Republican colleague, Mr. KING, is correct. The issue is not resolved. The issue will be back before us tomorrow, the 9th day of December, for those of us that believe that if you are too dangerous to fly, you are too dangerous to buy a gun. Those of us that believe this to be the right policy will continue to push this issue for the safety of Americans.

Mr. Speaker, 16,000 people may not be able to buy a gun if this becomes law, and that is a good thing, because we know already 2,000 people that are on that no-fly list—actually, more than 2,000—have been able to buy a gun. What did they do with it? Well, maybe they went out and shot quail, or maybe—we pray not, but we don't know, do we?

So, Mr. Speaker, the issue is before us, as are many, many important issues, but I don't think there is any issue more important than the safety of the American people. We know that if somebody is thought to be dangerous, then they ought not have a gun.

Mr. Speaker, I hope that this House will see the wisdom of taking a small step and denying some 16,000 people, many of whom are probably not even American citizens, the opportunity to buy a gun.

Mr. Speaker, I yield back the balance of my time.

TERRORISM AND OUR RIGHT TO BEAR ARMS

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the Chair recognizes the gentleman from Texas (Mr. GOHMERT) for 30 minutes.

Mr. GOHMERT. Mr. Speaker, there has been so much in the news, and our friends here on the floor have been raising questions about responsible, reasonable gun control. We want gun control that does not violate the Second Amendment of the Constitution, the purpose of which is to allow citizens to protect themselves. It is not just for hunting, but to allow citizens to protect themselves.

The thing that I noticed, Mr. Speaker, in my decade as a judge, the criminals that came before me for crimes involving a gun, I can't remember any of them—I think I handled around 6,000 felony cases that went through our court. I can't remember any where they went down to a gun store and bought a gun. They stole them or they bought them from other criminals. With the 100 million guns that I understand have been purchased in recent years, it doesn't look like there will be any chance to remove guns from anyone except law-abiding citizens.

Mr. Speaker, it has been interesting. We inquired, my Republican friends, my colleagues here, we inquired over and over, and still 7 years after President Obama took office, we know that shortly thereafter there was a scheme hatched within his administration to sell guns to criminals that would get to Mexico and fall into the hands of drug cartels. They didn't adequately monitor them. There was nothing put on the guns so they could be traced exactly where they were going. We know one of them was used to kill one of our own government agents. So whether it was intentional, reckless disregard for an American Government agent's life who was working for the President to have one of the President's subsidiaries or employees provide guns in such a way that they would end up killing one American agent and, apparently, hundreds of Mexicans—and we don't even know the full extent because we can't get answers from this administration.

Eric Holder intentionally withheld evidence. He refused to provide information. I felt like he should have been impeached and thrown out of office. We never got answers about Fast and Furious, but we did see emails where, within this administration, even after they got caught, that this administration had facilitated weapons being provided and sold to people who would take them to the drug cartels of Mexico. Even after they got caught, they were still wondering if it might be possible to use the fact that these guns were being used to create violence to justify attacks on the Second Amendment and taking away Americans' gun rights.

Apparently, November was a huge month for the sale of guns; and apparently, Black Friday, in the past week, has been a record for—not a record, but just a massive number of guns being sold. I believe I saw there were 185,000 requests for gun purchases on Friday after Thanksgiving. Regardless of what the number was—that is not completely accurate—it is staggering. How many people are now in fear for themselves and their families because of the policies of this administration?

Now, because of Fast and Furious and how there were people in the administration that were contemplating the

sale of guns to drug cartels that this administration facilitated as a reason to have more gun control, it does make you question the motivation of some of the administration's policies. We know that, especially in the last 5 years of George W. Bush's Presidency, his administration was vigorously prosecuting gun violations. But in 7 years, this administration has never prosecuted as vigorously as the Bush administration did in those times. Then we find out that not only were they not prosecuting as vigorously as they did in those last 5 years of the Bush administration, but in recent years, they have been cutting back on the prosecution of gun violations.

So we find out that, in 2013, gun violation prosecutions by this administration diminished. Then we find out that in 2014, they diminished even further by this administration. Then we find out that in 2015, this administration set a record for the last 7 years of prosecuting fewer gun violation crimes than any administration—well, this was the lowest year, this year, any of his last 7 years.

So, Mr. Speaker, the administration, as they have increased the demand for more gun control to take guns away from law-abiding citizens, they have been decreasing the number of gun violations they have prosecuted. In the wake of this administration's involvement in Fast and Furious and trying to use it to promote more gun control on law-abiding citizens, it makes you wonder what is the reason this administration continues to prosecute fewer and fewer gun crimes?

□ 1915

It is as if this administration—and I am not saying, Mr. Parliamentarian, through the Speaker, I am not saying a specific person or the President. I am not violating the House rules. But I am saying this administration in bulk, which doesn't violate the House rules, somehow has had this policy of prosecuting fewer and fewer gun crimes at the same time they are increasing rhetoric to have more gun control. It is as if—and I am not alleging; I am just saying. It is as if they wanted gun violence to increase so that they could get more gun control, as it appears their motivation was in using what happened with gun violence as a result of the 2,000 weapons they forced gun dealers to sell to people they shouldn't have.

Well, when I first heard the proposal, gee, nobody who is on the no-fly list, can't even fly on a plane, should be able to go buy a gun, seemed reasonable. I was talking to my friend, TOM PRICE from Georgia, back here earlier, Mr. Speaker, and he said the same thing, well, that seems reasonable, until you start considering how one gets on the no-fly list, who has been on the no-fly list, the massive abuses of individual constitutional rights by this administration, the abuses of the IRS of law-abiding citizens that Richard Nixon could have only dreamed of abusing the way this administration has.

But the trouble is there is no due process for someone to be adjudicated to put on the no-fly list. There is no due process to get off the no-fly list. And, in fact, one of the men I respect as much as anybody I know—he is a constituent; he is an Army veteran; he is a retired general, lives in east Texas—we have had to help him a number of times, once again, to get off the no-fly list.

And, unfortunately, we never can find out why he is ever put on the no-fly list in the first place. The only thing I know, he is a devout Christian. He is a supporter of mine. He would never knowingly violate the law of the United States.

So, I don't know. Is it because he is a supporter of mine? I mean, a year ago, I was trying to fly back from London and an official there in London airport with their security said: Sir, I understand you are very sorry, but your homeland security says you are somebody that has to be personally, physically searched along with everything that you have.

Gee, maybe somebody didn't like the way I cross-examined them in the judiciary hearing.

But when you know that this administration has abused its power repeatedly and you find out that actually the no-fly list is so obscure, it is like something from a Kafka novel. I never really enjoyed his novels. But the trial, it makes you think of, wow, you mean this obscure government entity can charge you with something, but you can't—just like in a trial, you can't find out what you are charged with. You can't find out why you are on the no-fly list. You can't find out if it is part of an enemies list. You can't find out what is the best way to convince the government to get you off.

Are there mistakes made? Well, gee, Mr. Speaker, could it be that a mistake was made when one of my constituent families from Lufkin was going to take their dream vacation to Disney World? They felt like the kids were old enough to enjoy it now. And when they tried to check their bags, they couldn't because, of their five children, their middle child was on the no-fly list. He was a potential terrorist.

Now, I come from a family of four kids, and if I was going to pick one of my siblings, including me, to be a terrorist, I would say it is probably the young one. Well, this child was 5 years old. He was the middle child, not the youngest. They pulled him aside thinking: Well, gee, his name is on the no-fly list. He must be a terrorist.

Well, thankfully, in Houston, they had some common sense and quickly figured out this is not a terrorist; this 5-year-old kid. He is not. Not so when they tried to leave Orlando to fly back home. He was pulled aside, the 5-year-old. He was separated from his parents. His parents were fit to be tied. They were threatened. They were not allowed to be with their child.

They take him off to interrogate him, a 5-year-old child; but he is on the no-fly list, and they couldn't figure this out. They think he is a terrorist. They ask him his date of birth. He is freaking out. He is separated from his parents and his other siblings. He knows the month and day. He can't tell them the year. So now they think he is withholding information.

They endured a lot of counseling and nightmares because of the abuses of this administration's policies. And yes, mistakes are made like that; and sometimes when people's names get put on the no-fly list, you don't know what it is for.

Here is an article, and I sure don't read from these folks very often, but the Los Angeles Times says:

''It seems simple enough: If the Federal Government, based on intelligence or policing, puts a person on its watch list of suspected terrorists or decrees that he or she is too dangerous to be allowed on an airplane, then surely it would also be foolish to let that person buy a firearm in the United States. Makes sense, doesn't it?''

That was the thrust of a proposed law by Senator DIANNE FEINSTEIN.

It goes on down:

''One problem is that the people on the no-fly list, as well as the broader terror watch list from which it is drawn, have not been convicted of doing anything wrong. They are merely suspected of having terror connections.''

I thought it was outrageous that Senator Ted Kennedy was on the no-fly list. I don't know. Maybe Homeland Security knew something the rest of America didn't know, but it seemed silly to me. Senator Ted Stevens, the late Senator's wife, Catherine Stevens, her name was on the no-fly list. She had those problems.

So it could be that you are guilty of only having a name similar to somebody that was put on the list for who knows why. But that is not a good way to take people's guns away, to say: Yes, we want to pass a law so that this administration, behind closed doors, with the lowest learners of this administration, can put people's name on the list that can never buy a gun, can never fly on a plane. That is a scary proposition.

And how about the 72 Department of Homeland Security employees that are on the no-fly list? And then we find out also, thanks to Senator JEFF SESSIONS, that we have had two—two—refugees in this country who, this year, have been either charged or convicted of terrorist activities. One worked around O'Hare airport and another one worked around here, I believe, as a cab driver working around Reagan airport. How about we take care of the people that we know for sure are a threat to America?

Anyway, the article from The Washington Times says: ''According to the technology website TechDirt.com, 40 percent of those on the FBI's watch

list—about 280,000 people—are considered to have no affiliation with recognized terrorist groups. All it takes is for the government to declare it has 'reasonable suspicion' that someone could be a terrorist. There is no hard evidence required, and the standard is notoriously vague and elastic.''

An article from Adam Kredo, from Free Beacon, about the 72 employees. A tip of the hat to Congressman STEPHEN LYNCH for finding that information.

This article from Neil Munro, Breitbart, ''California Shooting Shows Jihad Risk From Muslim Migrants' U.S.-Born Children'':

''The San Bernardino shooter who killed 14 Americans is yet another name on the growing list of U.S.-born children of Muslim migrants who grew up to embrace violent jihad.''

It seems like somebody has talked about that before.

''Before Syed Rizwan Farook, the most notorious example was Anwar al Awlaki, born in New Mexico in 1971 to accomplished, professional-class Yemeni parents. He subsequently embraced the violent commandments of Islam, complete with its many calls for attacks on kaffirs, or non-Muslims. His career as a jihadi adviser, recruiter cheerleader ended when he was killed by a U.S. missile strike in Yemen in September 2011.

''Another example is Nidal Malik Hasan, the Virginia-born son of Arab migrants, who murdered 13 Americans in Fort Hood, Texas, in 2009. That attack was downplayed by Federal officials as 'workplace violence,' even though Hasan had described himself as a 'Soldier of Allah' on his U.S. Army business cards . . . The problem is worse among Muslims, because Muslim culture and religion is hostile to integration, Spencer says. 'Islamic law announces itself as a superior model for society and government so you've got no community-driven reason for Muslims to integrate or adopt American values, because their way is better,' he said.''

Now, that is what Spencer says.

But I do know Muslims here in the United States that don't believe that they should adopt sharia law. I have got Muslim friends in Afghanistan and all over North Africa and the Middle East. They don't want radical Islam. And, in fact, in Egypt—so proud of the people of Egypt—they rose up and said: We don't want radical Islam. Of course, this President, this administration, wants to punish them for throwing out the Muslim Brother president.

But this article—back to Neil Munro's article—he says:

''In August 2015, the FBI arrested the U.S.-born son of a supposedly moderate Imam as he began his journey to join ISIS in Syria. Mohammad Oda Dakhlalla was accompanied by his young, university-educated American wife, who was a convert to Islam. 'That is the quintessential example of the risks involved because the father is supposed to be a moderate and we're supposed to think the son subscribes to a violent Islam completely different from the father . . . but there is no evidence of a rift between father and son,' Spencer said.

''In October 2014, two U.S.-born teenage girls were nabbed by the FBI as they began their journey to Syria.

''The left-wing Southern Poverty Law Center lists at least five additional U.S.-born jihadis, or would-be jihadis, at its site, including James Elshafay who tried to detonate a bomb in 2004, Ehsanul Sadequee, Tarek Mehanna, Walli Mujahidh—his family name comes from the Arab term for 'Holy Warrior'—and Naser Jason Abdo, who planned to attack Fort Hood in 2011.''

So I also would like a tip of the hat, Mr. Speaker, to Secretary Jeh Johnson that went back out to the All Dulles Area Muslim Society, ADAMS for short. I am sure John Adams appreciates that very much. I don't know if the President's friend, Imam Magid—oh, wait. Let's see. Well, this article mentions him.

''One of the 'most meaningful discussions' on his 'tour' ''—talking about Jeh Johnson—''he called it, was in June with the ADAMS Center imam, which began with a Boy Scout Troop leading meeting participants in the Pledge of Allegiance. That imam, Mohamed Magid, is a past president of the Islamic Society of North America, an organization linked to the Holy Land Foundation in its terror-financing trial and to the Muslim Brotherhood.''

And, by the way, it was listed as a co-conspirator in the Holy Land Foundation trial for supporting terrorism. And once they got the convictions of the five main people being prosecuted, ISNA, CAIR, and some other folks tried to get their names withdrawn from the pleadings being specifically named as co-conspirators in support of terrorism. But the Federal district judge and also the U.S. Federal Court of Appeals, Fifth Circuit, said: No, there is plenty of evidence to support that you are co-conspirators in supporting terrorism.

□ 1930

I was told by a lawyer that the plan was, once they got those first five convictions, they would go after ISNA, Imam Magid, and all of these other people. Fortunately, for Imam Magid and ISNA and CAIR and all of these groups, President Obama got elected, and Eric Holder immediately made clear that nobody was going to prosecute the rest of those named co-conspirators in supporting terrorism.

There was also a headline in the news today from The Washington Times that reads: ''Huma Abedin taunts Donald Trump: 'I'm a proud Muslim.' ''

''Huma Abedin, the longtime confident to Democratic Presidential front runner Hillary Clinton, took aim at Donald Trump's proposal to ban Muslims from entering the United States in an email with the subject line: 'I'm a proud Muslim.'

'' 'Donald Trump is leading in every national poll to be the Republican nominee for President; and earlier today, he released his latest policy proposal: to ban all Muslims from entering our country,' wrote Ms. Abedin—''or Ms. Weiner, anyway ''—in an email Monday evening to Mrs. Clinton's supporters. 'I'm a proud Muslim, but you don't have to share my faith to share my disgust. Trump wants to literally write racism into our law books. His Islamophobia doesn't reflect our Nation's values.' ''

Here is an article from July 27, 2012, by Andrew McCarthy in which he talks about Senator JOHN MCCAIN's claim that concerns about Huma Abedin are smear-based on a few unspecified, unsubstantiated associations.

Actually, Michele Bachmann and I and three others signed letters in which we just said, Here are some things we know. Would you do an investigation to see the extent of the Muslim Brotherhood's influence in your department? There were five different departments that had five different specific letters, and there were not any vague allegations. We just said, We know these things are true. Would you investigate?

We come to find out a lot in this article, which reads:

''The letter averred that Abedin 'has three family members: her late father, her mother, and her brother, connected to Muslim Brotherhood operatives and/or organizations.'

''It turns out, however, that Abedin, herself, is directly connected to Abdullah Omar Naseef, a major Muslim Brotherhood figure.''

By the way, Mr. Speaker, the Muslim Brotherhood has been named as a terrorist organization by both Egypt and the UAE. They have asked officials in both of those countries when I have been over there: Why do you not recognize that the Muslim Brotherhood has been at war with you since 1979? You keep helping them. You have got people advising the President. They are all Muslim Brothers. Why do you keep doing that? I don't have an answer for them.

The article goes on:

''It turns out Abedin, herself, is directly connected to Abdullah Omar Naseef, a major Muslim Brotherhood figure involved in the financing of al Qaeda. Abedin worked for a number of years at the Institute for Muslim Minority Affairs as assistant editor of its journal. The IMMA was founded by Naseef, who remained active in it for decades, overlapping for several years with Abedin. Naseef was also secretary general of the Muslim World League in Saudi Arabia, perhaps the most significant Muslim Brotherhood organization in the world. In that connection, he founded the Rabita Trust, which is formally designated as a foreign terrorist organization under American law due to its support of al Qaeda.

''You ought to be able to stop right there,'' but he doesn't. It goes on. Further down, it reads:

''In this instance, however, before you even start probing the extensive, disturbing Brotherhood ties of her family members, Huma Abedin should have been ineligible for any significant government position based on her own personal and longstanding connection to Naseef's organization.

''Specifically, Ms. Abedin was affiliated with the Institute of Muslim Minority Affairs, where she was assistant editor of the Journal of Muslim Minority Affairs. The journal was the IMMA's raison d'etre. Abedin held the position of assistant editor from 1996 through 2008, from when she began working as an intern in the Clinton White House until shortly before she took her current position as Secretary of State Hillary Clinton's Deputy Chief of Staff.''

Again, this article was written in 2012.

''The IMMA was founded in the late 1970s by Abdullah Omar Naseef, who was then the vice president of the prestigious King Abdulaziz University in Saudi Arabia.''

It goes on to talk about all of his ties with civilization jihad and with the Muslim World League, over which he presided and with whom Huma Abedin had this relationship in this publication for all of those years that she worked with Hillary Clinton.

''The Muslim World League manages the 'civilization jihad'—the Brotherhood's commitment to destroy the West from within and to 'conquer' it by sharia proselytism, or dawa, as Sheikh Yusuf Qaradawi, the Brotherhood's top sharia jurist, puts it.

''Nevertheless, the Muslim World League has a long history of deep involvement in violent jihad as well.''

Then we have this article today: '''Spinning up as we speak': Email shows Pentagon was ready to roll as Benghazi attack occurred.''

We still don't know who stopped the military. The email shows they were ready to go help our people in Benghazi. Somebody stopped them. Was that advice Huma Abedin gave to Secretary Clinton? We don't know. Was this advice that reached the President? We don't know. We don't know whether he went to bed and said, ''You take care of it,'' or whether he went next-door, like was reported, until Osama bin Laden was taken out. He went in the next room and didn't watch and played cards. We don't know what they were doing.

This report from Robert Windrem: ''The ISIS Trail of Death'' goes on to point out all that ISIS is doing. We know there are 1,000 cases being investigated right here.

Look, I am not advocating we get rid of all Muslims in the United States, we have got Muslim friends here in the House, but we do need to take a look to see whether people want to replace our U.S. Constitution with sharia law. We need to take a harder look at who we allow to come into this country and have a child who they will take back to Yemen, or wherever, to teach their child to hate America.

People can make fun of me still, but we know Americans have died because we have allowed this to happen. They come back as American citizens whenever they want, and it gets so bad that even President Obama has to take out an American citizen, who was born here, to parents who trained him to hate America after they went back to Yemen.

Mr. Speaker, I yield back the balance of my time.

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. MOONEY of West Virginia (at the request of Mr. MCCARTHY) for today until 4:30 p.m. on account of medical reasons.

Mr. LEWIS (at the request of Ms. PELOSI) for today.

ADJOURNMENT

Mr. GOHMERT. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 7 o'clock and 37 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, December 9, 2015, at 10 a.m. for morning-hour debate.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

3694. A letter from the General Counsel, Pension Benefit Guaranty Corporation, transmitting the Corporation's final rule — Benefits Payable in Terminated Single-Employer Plans; Interest Assumptions for Paying Benefits received December 7, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Education and the Workforce.

3695. A letter from the Director, Regulations Policy and Management Staff, Department of Health and Human Services, transmitting the Department's Major final rule — Current Good Manufacturing Practice, Hazard Analysis, and Risk-Based Preventive Controls for Human Food; Clarification of Compliance Date for Certain Food Establishments [Docket No.: FDA-2011-N-0920] (RIN: 0910-AG36) received December 4, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

3696. A letter from the Director, Regulations Policy and Management Staff, Department of Health and Human Services, transmitting the Department's Major final rule — Accreditation of Third-Party Certification Bodies To Conduct Food Safety Audits and To Issue Certifications [Docket No.: FDA-2011-N-0146] (RIN: 0910-AG66) received December 7, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

3697. A letter from the Director, Regulations Policy and Management Staff, Department of Health and Human Services, transmitting the Department's Major final rule — Foreign Supplier Verification Programs for Importers of Food for Humans and Animals [Docket No.: FDA-2011-N-0143] (RIN: 0910-AG64) received December 7, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

3698. A letter from the Director, Regulations Policy and Management Staff, Department of Health and Human Services, transmitting the Department's Major final rule — Standards for the Growing, Harvesting, Packing, and Holding of Produce for Human Consumption [Docket No.: FDA-2011-N-0921] (RIN: 0910-AG35) received December 7, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

3699. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Air Plan Approval and Air Quality Designation; SC; Redesignation of the Charlotte-Rock Hill, 2008 8-Hour Ozone Nonattainment Area to Attainment [EPA-RO4-OAR-2015-0298; FRL-9939-66-Region 4] received December 4, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

3700. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's direct final rule — Air Plan Approval; Minnesota; Transportation Conformity Procedures [EPA-R05-2015-0563; FRL-9939-80-Region 5] received December 4, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

3701. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Air Plan Approval; Wisconsin; Wisconsin State Board Requirements [EPA-R05-OAR-2015-0464; FRL-9939-78-Region 5] received December 4, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

3702. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Polyamide ester polymers; Tolerance Exemption [EPA-HQ-OPP-2015-0451; FRL-9939-28] received December 4, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

3703. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's Major final rule — Renewable Fuel Standard Program: Standards for 2014, 2015, and 2016 and Biomass-Based Diesel Volume for 2017 [EPA-HQ-OAR-2015-0111; FRL-9939-72-OAR] (RIN: 2060-AS22) received December 4, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

3704. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Wisconsin; Disapproval of Infrastructure SIP with respect to oxides of nitrogen as a precursor to ozone provisions for the 2006 PM2.5 NAAQS [EPA-R05-OAR-2009-0805; FRL-9939-77-Region 5] received December 4, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

3705. A letter from the Director, Defense Security Cooperation Agency, transmitting a notice of Proposed Issuance of Letter of Offer and Acceptance to the Government of

Turkey, Transmittal No. 14-01, pursuant to Sec. 36(b)(1) of the Arms Export Control Act, as amended, and certification, pursuant to 22 U.S.C. 2373(d); Public Law 87-195, Sec. 620C(d); (92 Stat. 739); to the Committee on Foreign Affairs.

3706. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting a certification, Transmittal No.: DDTC 15-092, pursuant to 22 U.S.C. 2776(c)(2)(C); Public Law 90-629, Sec. 36(c) (as added by Public Law 94-329, Sec. 211(a)); (82 Stat. 1326); to the Committee on Foreign Affairs.

3707. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting a certification, Transmittal No.: DDTC 15-106, pursuant to 22 U.S.C. 2776(c)(2)(A); Public Law 90-629, Sec. 36(c) (as added by Public Law 104-164, Sec. 141(c)); (110 Stat. 1431); to the Committee on Foreign Affairs.

3708. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting a certification, Transmittal No.: DDTC 15-060, pursuant to 22 U.S.C. 2776(c)(2)(C); Public Law 90-629, Sec. 36(c) (as added by Public Law 94-329, Sec. 211(a)); (82 Stat. 1326); to the Committee on Foreign Affairs.

3709. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting a certification, Transmittal No.: DDTC 15-049, pursuant to 22 U.S.C. 2776(c)(2)(C); Public Law 90-629, Sec. 36(c) (as added by Public Law 94-329, Sec. 211(a)); (82 Stat. 1326); to the Committee on Foreign Affairs.

3710. A letter from the Assistant Legal Advisor, Office of Treaty Affairs, Department of State, transmitting agreements prepared by the Department of State concerning international agreements other than treaties entered into by the United States, to be transmitted to the Congress within the sixty-day period specified in the Case-Zablocki Act, pursuant to 1 U.S.C. 112b(d) Public Law 92-403, Sec. 1; (86 Stat. 619); to the Committee on Foreign Affairs.

3711. A letter from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting the Department's correcting amendments — Wassenaar Arrangement 2014 Plenary Agreements Implementation and Country Policy Amendments; Correction [Docket No.: 150304217-5727-02] (RIN: 0694-AG44) received December 3, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Foreign Affairs.

3712. A letter from the Director, Defense Security Cooperation Agency, transmitting a notice of Proposed Issuance of Letter of Offer and Acceptance to India, Transmittal No. 0B-16, pursuant to Sec. 36(b)(5)(C) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3713. A letter from the Acting Administrator, Agency for International Development, transmitting the Agency's Semiannual Report to the Congress for the period ending September 30, 2015, pursuant to 5 U.S.C. app. (Insp. Gen. Act) Sec. 5(b); Public Law 95-452, Sec. 5(b); (92 Stat. 1103); to the Committee on Oversight and Government Reform.

3714. A letter from the Federal Co-Chair, Appalachian Regional Commission, transmitting the Commission's semiannual report for the period April 1, 2015, through September 30, 2015, pursuant to 5 U.S.C. app. (Insp. Gen. Act) Sec. 5(b); Public Law 95-452, Sec. 5(b); (92 Stat. 1103); to the Committee on Oversight and Government Reform.

3715. A letter from the Secretary, Department of Education, transmitting the Department's Semiannual Report to Congress on Audit Follow-up for the period ending September 30, 2015, pursuant to µ5 U.S.C. app. (Insp. Gen. Act) Sec. 5(b); Public Law 95-452, Sec. 5(b); (92 Stat. 1103); to the Committee on Oversight and Government Reform.

3716. A letter from the Assistant Director, Senior Executive Management Office, Department of the Army, transmitting a notification of a federal vacancy, pursuant to 5 U.S.C. 3349(a); Public Law 105-277, 151(b); (112 Stat. 2681-614); to the Committee on Oversight and Government Reform.

3717. A letter from the Assistant Director, Senior Executive Management Office, Department of the Army, transmitting a notification of a federal vacancy, pursuant to 5 U.S.C. 3349(a); Public Law 105-277, 151(b); (112 Stat. 2681-614); to the Committee on Oversight and Government Reform.

3718. A letter from the Director, Federal Housing Finance Agency, transmitting the Agency's Semiannual Report to Congress for the period ending September 30, 2015, pursuant to 5 U.S.C. app. (Insp. Gen. Act) Sec. 5(b); Public Law 95-452, Sec. 5(b); (92 Stat. 1103); to the Committee on Oversight and Government Reform.

3719. A letter from the Chairman and General Counsel, National Labor Relations Board, transmitting the Board's Semiannual Report for the period April 1, 2015, to September 30, 2015, pursuant to 5 U.S.C. app. (Insp. Gen. Act) Sec. 5(b); Public Law 95-452, Sec. 5(b); (92 Stat. 1103); to the Committee on Oversight and Government Reform.

3720. A letter from the Labor Member and Management Member, Railroad Retirement Board, transmitting the Board's Performance and Accountability Report for Fiscal Year 2015, pursuant to 31 U.S.C. 3515(a); Public Law 101-576, Sec. 303(a); (104 Stat. 2849); to the Committee on Oversight and Government Reform.

3721. A letter from the Assistant Attorney General, Department of Justice, transmitting the Department's sixth annual report regarding compliance of federal departments and agencies with providing relevant information to the National Instant Criminal Background Check System, pursuant to 18 U.S.C. 922 note; Public Law 103-159, Sec. 103(e)(1)(E) (as added by Public Law 110-180, Sec. 101(a)); (121 Stat. 2561) (121 Stat. 2561); to the Committee on the Judiciary.

3722. A letter from the Assistant Attorney General, Department of Justice, transmitting the Department's 2014 Annual Report of the National Institute of Justice, pursuant to Public Law 90-351 and Public Law 107-296; to the Committee on the Judiciary.

3723. A letter from the Secretary, Department of Transportation, transmitting the Department's Letter Report to Congress on the 2015 Fundamental Properties of Asphalts and Modified Asphalts — III, pursuant to Public Law 102-240, Sec. 6016(e); (105 Stat. 2183); to the Committee on Transportation and Infrastructure.

3724. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — IFR Altitudes; Miscellaneous Amendments [Docket No.: 31048; Amdt. No.: 523] received November 30, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

3725. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Pratt & Whitney Division Turbofan Engines [Docket No.: FAA-2015-0787; Directorate Identifier 2015-NE-10-AD; Amendment 39-18307; AD 2015-22-03] (RIN: 2120-AA64) received December 4, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

3726. A letter from the Assistant Administrator for Procurement, Office of Procurement, National Aeronautics and Space Administration, transmitting the Administration's final rule — NASA Federal Acquisition Regulation Supplement: NASA Capitalization Threshold (NFS Case 2015-N004) (RIN: 2700-AE23) received December 7, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Science, Space, and Technology.

3727. A letter from the Chief Impact Analyst, Regulation Policy and Management, Office of the General Counsel (02REG), Department of Veterans Affairs, transmitting the Department's final rule — Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards; Updating References (RIN: 2900-AP03) received December 3, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Veterans' Affairs.

3728. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — Applicable Federal Rates — December 2015 (Rev. Rule. 2015-25) received December 4, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

3729. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — 2016 Section 1274A CPI Adjustments (Rev. Rul. 2015-24) received December 3, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

3730. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — Safe harbor method of accounting for retail establishments and restaurants (Rev. Proc. 2015-56) received December 4, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

3731. A letter from the Deputy Director, ODRM, Department of Health and Human Services, transmitting the Department's Major final rule — Medicaid Program; Mechanized Claims Processing and Information Retrieval Systems (90/10) [CMS-2392-F] (RIN: 0938-AS53) received December 3, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); jointly to the Committees on Energy and Commerce and Ways and Means.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. MCCAUL: Committee on Homeland Security. H.R. 3578. A bill to amend the Homeland Security Act of 2002 to strengthen and make improvements to the Directorate of Science and Technology of the Department of Homeland Security, and for other purposes; with an amendment (Rept. 114–372). Referred to the Committee of the Whole House on the state of the Union.

Mr. BISHOP of Utah: Committee on Natural Resources. H.R. 974. A bill to direct the Secretary of the Interior to promulgate regulations to allow the use of hand-propelled vessels on certain rivers and streams that flow in and through certain Federal lands in Yellowstone National Park, Grand Teton National Park, the John D. Rockefeller, Jr. Memorial Parkway, and for other purposes;

with an amendment (Rept. 114–373). Referred to the Committee of the Whole House on the state of the Union.

Mr. BISHOP of Utah: Committee on Natural Resources. H.R. 1452. A bill to authorize Escambia County, Florida, to convey certain property that was formerly part of Santa Rosa Island National Monument and that was conveyed to Escambia County subject to restrictions on use and reconveyance (Rept. 114–374). Referred to the Committee of the Whole House on the state of the Union.

Mr. NEWHOUSE: Committee on Rules. House Resolution 556. Resolution providing for consideration of the bill (H.R. 2130) to provide legal certainty to property owners along the Red River in Texas, and for other purposes, and providing for consideration of motions to suspend the rules (Rept. 114–375). Referred to the House Calendar.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. TOM PRICE of Georgia (for himself, Mrs. MCMORRIS RODGERS, Mrs. BLACKBURN, Ms. DUCKWORTH, Mr. LOEBSACK, Mr. RYAN of Ohio, Mr. ROE of Tennessee, Mrs. NOEM, Mr. KING of New York, Mr. ZINKE, Mr. TIPTON, Mr. BLUM, Mr. CRAMER, Mr. MCCLINTOCK, Mr. KEATING, Mr. DUNCAN of Tennessee, Mrs. ELLMERS of North Carolina, Mr. HARPER, and Mr. AUSTIN SCOTT of Georgia):

H.R. 4185. A bill to make adjustments, including by amending title XVIII of the Social Security Act, relating to competitive bidding program and durable medical equipment under the Medicare program, to amend such title to establish a DMEPOS market pricing program demonstration project, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. DENT (for himself and Mr. ASHFORD):

H.R. 4186. A bill to add support of a foreign terrorist organization to the list of acts for which United States nationals would lose their nationality, and for other purposes; to the Committee on the Judiciary.

By Ms. SCHAKOWSKY (for herself, Mr. PALLONE, Mr. RUSH, Mr. TONKO, Mr. WELCH, Mr. KENNEDY, Mr. SARBANES, and Mr. BUTTERFIELD):

H.R. 4187. A bill to require certain entities who collect and maintain personal information of individuals to secure such information and to provide notice to such individuals in the case of a breach of security involving such information, and for other purposes; to the Committee on Energy and Commerce.

By Mr. HUNTER (for himself, Mr. GARAMENDI, Mr. SHUSTER, and Mr. DEFAZIO):

H.R. 4188. A bill to authorize appropriations for the Coast Guard for fiscal years 2016 and 2017, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. FINCHER (for himself and Mr. LUETKEMEYER):

H.R. 4189. A bill to amend the Foreign Assistance Act of 1961 to require congressional approval of rescissions of determinations of countries as state sponsors of terrorism and waivers of prohibitions on assistance to state sponsors of terrorism under that Act; to the Committee on Foreign Affairs, and in addition to the Committee on Rules, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. MATSUI:

H.R. 4190. A bill to promote innovation, investment, and economic growth by accelerating spectrum efficiency through a challenge prize competition; to the Committee on Energy and Commerce.

By Ms. PLASKETT:

H.R. 4191. A bill to establish a program that enables college-bound residents of the United States Virgin Islands to have greater choices among institutions of higher education, and for other purposes; to the Committee on Education and the Workforce.

By Mr. TIBERI (for himself, Mr. RANGEL, Mr. YOUNG of Indiana, Mr. LARSON of Connecticut, Mr. NEAL, and Mr. PAULSEN):

H.R. 4192. A bill to amend the Internal Revenue Code of 1986 to clarify the valuation rule applicable to the early termination of certain charitable remainder unitrusts; to the Committee on Ways and Means.

By Mr. YOUNG of Alaska:

H.R. 4193. A bill to authorize the expansion of an existing hydroelectric project; to the Committee on Natural Resources.

By Ms. FOXX:

H. Res. 555. A resolution electing a Member to a certain standing committee of the House of Representatives; considered and agreed to.

By Mr. LARSON of Connecticut (for himself and Mr. COLE):

H. Res. 557. A resolution recognizing the establishment of the Congressional Patriot Award and congratulating the first award recipients, Sam Johnson and John Lewis, for their patriotism and selfless service to the country; to the Committee on House Administration.

By Ms. DEGETTE (for herself, Ms. ADAMS, Mr. ASHFORD, Ms. BASS, Mrs. BEATTY, Mr. BECERRA, Mr. BERA, Mr. BEYER, Mr. BISHOP of Georgia, Mr. BLUMENAUER, Ms. BONAMICI, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. BRADY of Pennsylvania, Ms. BROWN of Florida, Ms. BROWNLEY of California, Mrs. BUSTOS, Mr. BUTTERFIELD, Mrs. CAPPS, Mr. CAPUANO, Mr. CÁRDENAS, Mr. CARTWRIGHT, Ms. CASTOR of Florida, Ms. JUDY CHU of California, Mr. CICILLINE, Ms. CLARK of Massachusetts, Ms. CLARKE of New York, Mr. CLEAVER, Mr. CLYBURN, Mr. COHEN, Mr. CONNOLLY, Mr. CONYERS, Mr. CROWLEY, Mr. CUMMINGS, Mrs. DAVIS of California, Mr. DANNY K. DAVIS of Illinois, Mr. DELANEY, Ms. DELAURO, Ms. DELBENE, Mr. DESAULNIER, Mr. DEUTCH, Mrs. DINGELL, Mr. DOGGETT, Mr. MICHAEL F. DOYLE of Pennsylvania, Ms. DUCKWORTH, Ms. EDWARDS, Mr. ELLISON, Mr. ENGEL, Ms. ESHOO, Ms. ESTY, Mr. FARR, Mr. FATTAH, Mr. FOSTER, Ms. FRANKEL of Florida, Ms. FUDGE, Mr. GALLEGO, Mr. GARAMENDI, Ms. GRAHAM, Mr. GRIJALVA, Mr. GUTIÉRREZ, Ms. HAHN, Mr. HASTINGS, Mr. HECK of Washington, Mr. HINOJOSA, Mr. HONDA, Mr. HUFFMAN, Mr. ISRAEL, Ms. JACKSON LEE, Mr. JEFFRIES, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. JOHNSON of Georgia, Ms. KAPTUR, Mr. KEATING, Ms. KELLY of Illinois, Mr. KENNEDY, Mr. KILDEE, Mr. KILMER, Mr. KIND, Mrs. KIRKPATRICK, Ms. KUSTER, Mr. LARSEN of Washington, Mr. LARSON of Connecticut, Mrs. LAWRENCE, Ms. LEE, Mr. LEVIN, Mr. LEWIS, Mr. TED LIEU of California, Mr. LOEBSACK, Ms. LOFGREN, Mr. LOWENTHAL, Mrs. LOWEY, Mr. BEN RAY LUJÁN of New Mexico, Ms. MICHELLE LUJAN GRISHAM of New Mexico, Mrs. CAROLYN B. MALONEY of New York, Mr. SEAN PATRICK MALONEY of New York, Ms. MATSUI, Ms. MCCOLLUM, Mr. MCDERMOTT, Mr. MCGOVERN, Mr. MCNERNEY, Ms. MENG, Ms. MOORE, Mr. MOULTON, Mr. MURPHY of Florida, Mr. NADLER, Mrs. NAPOLITANO, Mr. NEAL, Mr. NORCROSS, Ms. NORTON, Mr. PALLONE, Mr. PAYNE, Ms. PELOSI, Mr. PERLMUTTER, Mr. PETERS, Ms. PINGREE, Mr. POCAN, Mr. POLIS, Mr. PRICE of North Carolina, Mr. QUIGLEY, Mr. RANGEL, Miss RICE of New York, Mr. RICHMOND, Ms. ROYBAL-ALLARD, Mr. RUIZ, Mr. RUPPERSBERGER, Mr. RYAN of Ohio, Ms. LORETTA SANCHEZ of California, Ms. LINDA T. SÁNCHEZ of California, Mr. SARBANES, Ms. SCHAKOWSKY, Mr. SCHIFF, Mr. SCOTT of Virginia, Ms. SEWELL of Alabama, Mr. SHERMAN, Ms. SINEMA, Mr. SIRES, Ms. SLAUGHTER, Mr. SMITH of Washington, Ms. SPEIER, Mr. SWALWELL of California, Mr. TAKAI, Mr. TAKANO, Mr. THOMPSON of California, Mr. THOMPSON of Mississippi, Ms. TITUS, Mr. TONKO, Ms. TSONGAS, Mr. VAN HOLLEN, Mr. VARGAS, Mr. VEASEY, Ms. VELÁZQUEZ, Mr. WALZ, Ms. WASSERMAN SCHULTZ, Mrs. WATSON COLEMAN, Mr. WELCH, Ms. WILSON of Florida, Mr. YARMUTH, Mr. GENE GREEN of Texas, Mr. CASTRO of Texas, Mr. CARSON of Indiana, Mr. COURTNEY, Mr. HOYER, Mr. LYNCH, Mr. O'ROURKE, Mr. HANNA, Mr. SCHRADER, Mr. DAVID SCOTT of Georgia, Mr. SERRANO, and Mr. COSTA):

H. Res. 558. A resolution condemning violence that targets healthcare for women; to the Committee on the Judiciary.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. TOM PRICE of Georgia:

H.R. 4185.

Congress has the power to enact this legislation pursuant to the following:

Consistent with the understanding and interpretation of the Commerce Clause, Congress has the authority to enact this legislation in accordance with Clause 3 of Section 8, Article 1 of the U.S. Constitution.

By Mr. DENT:

H.R. 4186.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution.

By Ms. SCHAKOWSKY:

H.R. 4187.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section VIII.

By Mr. HUNTER:

H.R. 4188.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution, specifically Clause 3 (to regulate Commerce with foreign Nations, and

among the several States, and with Indian Tribes) and Clause 14 (to make Rules for the Government and Regulation of the land and naval Forces).

By Mr. FINCHER:

H.R. 4189.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8—To regulate Commerce with foreign Nations . . .

By Ms. MATSUI:

H.R. 4190.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution

By Ms. PLASKETT:

H.R. 4191.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 1 (General Welfare Clause)

Article 1, Section 8, Clause 18 (Necessary and Proper Clause)

By Mr. TIBERI:

H.R. 4192.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 of Section 8 of Article I

By Mr. YOUNG of Alaska:

H.R. 4193.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3 and Article 1, Section 8, Clause 1.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 27: Mr. CARTER of Georgia.

H.R. 158: Mr. ROYCE, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. WOODALL, and Mr. GRAVES of Louisiana.

H.R. 213: Mr. NADLER.

H.R. 224: Mr. CAPUANO, Mr. SARBANES, Ms. CASTOR of Florida, Mr. MURPHY of Florida, Mr. LARSEN of Washington, and Mr. HIMES.

H.R. 225: Ms. BONAMICI.

H.R. 226: Ms. SCHAKOWSKY and Mr. KEATING.

H.R. 250: Mr. MOULTON.

H.R. 353: Mr. DEFAZIO.

H.R. 358: Mr. DEFAZIO.

H.R. 393: Mr. ZELDIN.

H.R. 472: Mr. COOK.

H.R. 512: Mr. SENSENBRENNER.

H.R. 539: Mr. CARSON of Indiana, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. YARMUTH, and Ms. PLASKETT.

H.R. 546: Mr. LARSEN of Washington.

H.R. 565: Mr. FOSTER.

H.R. 592: Mr. MCNERNEY, Ms. SEWELL of Alabama, and Mr. BARTON.

H.R. 699: Mr. JODY B. HICE of Georgia.

H.R. 731: Mr. CUMMINGS, Mr. DESJARLAIS, Mr. JOHNSON of Georgia, Mrs. WATSON COLEMAN, and Mr. SMITH of Washington.

H.R. 759: Mr. TED LIEU of California.

H.R. 793: Ms. SLAUGHTER and Ms. SEWELL of Alabama.

H.R. 879: Ms. JENKINS of Kansas, Mr. CRAMER, and Mrs. HARTZLER.

H.R. 911: Mr. RYAN of Ohio and Mrs. LUMMIS.

H.R. 920: Mr. MCGOVERN.

H.R. 921: Mrs. BROOKS of Indiana and Mr. COFFMAN.

H.R. 973: Mr. KATKO.

H.R. 1002: Ms. ROS-LEHTINEN and Mr. CARTWRIGHT.

H.R. 1076: Ms. MENG, Ms. BROWNLEY of California, Ms. SINEMA, Mrs. CAPPS, Ms. CLARK of Massachusetts, Mr. SEAN PATRICK MALONEY of New York, Ms. KAPTUR, Mr. POLIS, Mr. SIRES, Mr. WELCH, Mr. BRADY of Pennsylvania, Ms. ESHOO, Mr. YARMUTH, Mr. SWALWELL of California, Mr. AGUILAR, Ms. FRANKEL of Florida, Ms. TSONGAS, Mrs. TORRES, Ms. HAHN, Mr. LYNCH, Ms. ADAMS, Mr. VISCLOSKY, Mr. VARGAS, Ms. LEE, Mr. LOEBSACK, Mr. SHERMAN, Mr. JEFFRIES, Mr. CÁRDENAS, Ms. JACKSON LEE, and Mr. ASHFORD.

H.R. 1116: Mr. HUIZENGA of Michigan, Mr. YODER, Mr. COSTELLO of Pennsylvania, and Mrs. MILLER of Michigan.

H.R. 1197: Mr. KINZINGER of Illinois.

H.R. 1283: Ms. LINDA T. SÁNCHEZ of California.

H.R. 1453: Mr. WALDEN.

H.R. 1457: Ms. LINDA T. SÁNCHEZ of California.

H.R. 1475: Mr. MICA.

H.R. 1505: Mr. FORTENBERRY.

H.R. 1559: Mr. ASHFORD.

H.R. 1571: Mr. PRICE of North Carolina, Mr. JOHNSON of Georgia, and Mrs. KIRKPATRICK.

H.R. 1586: Ms. ESTY.

H.R. 1608: Mr. WILLIAMS, Mr. TONKO, Mr. WALDEN, and Mr. TAKAI.

H.R. 1655: Mr. CUELLAR and Mr. KENNEDY.

H.R. 1713: Mr. LOWENTHAL.

H.R. 1733: Ms. LINDA T. SÁNCHEZ of California.

H.R. 1769: Ms. ESHOO.

H.R. 1786: Mr. NEWHOUSE, Mrs. WALORSKI, Mr. REICHERT, Mr. YOUNG of Alaska, and Mr. LUCAS.

H.R. 1814: Mr. DOGGETT.

H.R. 1818: Mr. BOUSTANY.

H.R. 1854: Mr. CURBELO of Florida and Mr. KATKO.

H.R. 1893: Mr. LATTA.

H.R. 1901: Mr. SESSIONS and Mr. BABIN.

H.R. 2046: Mr. GRIFFITH.

H.R. 2050: Mr. LAHOOD.

H.R. 2191: Ms. LOFGREN.

H.R. 2241: Ms. MCCOLLUM.

H.R. 2264: Mr. CARNEY and Ms. JENKINS of Kansas.

H.R. 2287: Mr. MCHENRY.

H.R. 2311: Mr. LOEBSACK.

H.R. 2315: Mr. YOUNG of Iowa.

H.R. 2380: Mr. CROWLEY.

H.R. 2449: Ms. ESTY, Mr. MCNERNEY, Mrs. KIRKPATRICK, Mr. NORCROSS, Mr. CAPUANO, and Mr. WELCH.

H.R. 2513: Mr. POMPEO.

H.R. 2515: Mr. MCNERNEY, Mr. DOGGETT, Mr. FITZPATRICK, Mr. BEN RAY LUJÁN of New Mexico, Ms. MCCOLLUM, and Mr. CONNOLLY.

H.R. 2521: Mr. SMITH of Washington.

H.R. 2536: Mr. MCKINLEY.

H.R. 2540: Mr. ROE of Tennessee.

H.R. 2566: Mr. LAMALFA.

H.R. 2646: Mr. BRADY of Pennsylvania and Mr. LAHOOD.

H.R. 2649: Mr. MARCHANT.

H.R. 2680: Mr. RYAN of Ohio and Mr. GARAMENDI.

H.R. 2698: Mr. SMITH of Nebraska.

H.R. 2799: Mr. RUIZ and Ms. ESHOO.

H.R. 2818: Mrs. BROOKS of Indiana.

H.R. 2847: Mrs. BROOKS of Indiana.

H.R. 2858: Mr. GUTIÉRREZ.

H.R. 2880: Mr. SMITH of Washington and Ms. TITUS.

H.R. 2894: Mr. DEFAZIO.

H.R. 2896: Mr. SENSENBRENNER.

H.R. 2903: Mr. CLAY, Mrs. DINGELL, and Ms. TSONGAS.

H.R. 2908: Mrs. LAWRENCE, Ms. SCHAKOWSKY, and Mr. KIND.

H.R. 3036: Mr. MEEHAN, Mr. HANNA, Mr. LANCE, Ms. SLAUGHTER, and Mr. STIVERS.

H.R. 3051: Mr. TED LIEU of California, Ms. BROWNLEY of California, Mr. RUPPERSBERGER, and Ms. ESHOO.

H.R. 3099: Mrs. NAPOLITANO and Mr. BEN RAY LUJÁN of New Mexico.

H.R. 3110: Mr. BYRNE.

H.R. 3119: Mr. COHEN.

H.R. 3164: Mr. CAPUANO.

H.R. 3193: Ms. ESHOO.

H.R. 3222: Mr. WEBER of Texas, Mr. PALAZZO, and Mr. KELLY of Mississippi.

H.R. 3229: Ms. MCCOLLUM, Mr. FITZPATRICK, Mr. BLUM, Mr. VALADAO, Mr. AMODEI, Mr. SCHWEIKERT, Mr. LANCE, Mr. CROWLEY, and Mr. KING of Iowa.

H.R. 3237: Mr. GRIJALVA.

H.R. 3326: Mr. KENNEDY.

H.R. 3359: Miss RICE of New York.

H.R. 3406: Mr. CURBELO of Florida.

H.R. 3441: Mrs. HARTZLER.

H.R. 3445: Mr. HONDA.

H.R. 3455: Mr. CROWLEY and Mr. DOLD.

H.R. 3463: Mr. COLLINS of New York.

H.R. 3516: Mr. BISHOP of Utah, Mr. GRIFFITH, Mr. PETERSON, and Mr. THORNBERRY.

H.R. 3532: Mr. ROKITA and Mr. WALBERG.

H.R. 3551: Mr. GRAYSON.

H.R. 3556: Mrs. CAPPS.

H.R. 3565: Mr. SWALWELL of California.

H.R. 3654: Mr. HIGGINS, Mr. KEATING, Mr. ROSS, Ms. FRANKEL of Florida, and Mr. BERA.

H.R. 3683: Ms. TSONGAS.

H.R. 3687: Ms. DUCKWORTH.

H.R. 3706: Mr. DENT, Ms. LOFGREN, Mr. SMITH of Texas, and Ms. ESHOO.

H.R. 3734: Mr. BOST.

H.R. 3742: Mr. RIGELL, Mr. GOODLATTE, Mr. FORBES, Mr. LANCE, and Mr. CARTWRIGHT.

H.R. 3750: Ms. JACKSON LEE.

H.R. 3760: Ms. TSONGAS.

H.R. 3766: Mr. SMITH of Washington, Mrs. BROOKS of Indiana, and Mr. ROYCE.

H.R. 3770: Ms. LOFGREN.

H.R. 3785: Ms. DELAURO and Ms. KAPTUR.

H.R. 3790: Mr. HONDA.

H.R. 3795: Mr. HONDA.

H.R. 3852: Mr. CARTWRIGHT.

H.R. 3861: Mr. CRAWFORD.

H.R. 3872: Ms. LEE, Mr. BUTTERFIELD, and Ms. FUDGE.

H.R. 3917: Mr. KINZINGER of Illinois, Mr. SIRES, Mr. ROSS, and Mr. COSTA.

H.R. 3940: Mr. VISCLOSKY, Mr. ALLEN, Mr. LATTA, and Mr. BROOKS of Alabama.

H.R. 3943: Mr. BUTTERFIELD.

H.R. 3944: Mr. POCAN and Mr. BUTTERFIELD.

H.R. 3946: Mrs. LOVE.

H.R. 3978: Ms. KUSTER.

H.R. 4000: Mrs. BROOKS of Indiana.

H.R. 4007: Mr. LOUDERMILK.

H.R. 4008: Ms. KAPTUR.

H.R. 4016: Mr. MCHENRY.

H.R. 4019: Ms. DELBENE.

H.R. 4029: Mr. ASHFORD and Mr. FORTENBERRY.

H.R. 4032: Mr. YODER.

H.R. 4055: Mr. RANGEL.

H.R. 4063: Mr. POCAN, Mr. RIBBLE, Mr. SENSENBRENNER, and Mr. ASHFORD.

H.R. 4065: Mr. CRENSHAW.

H.R. 4073: Mr. SENSENBRENNER.

H.R. 4076: Mr. LYNCH.

H.R. 4084: Mr. POSEY.

H.R. 4085: Mr. RENACCI.

H.R. 4087: Mrs. DINGELL and Mr. BISHOP of Utah.

H.R. 4100: Mr. LUETKEMEYER.

H.R. 4113: Ms. LOFGREN and Mr. CARTWRIGHT.

H.R. 4122: Mr. PETERSON.

H.R. 4135: Mr. LARSEN of Washington, Ms. FRANKEL of Florida, Mr. CARNEY, and Mr. HONDA.

H.R. 4141: Mrs. NOEM.

H.R. 4144: Mr. LANGEVIN, Ms. DELAURO, Ms. KAPTUR, Mr. HASTINGS, Ms. MATSUI, Ms. TSONGAS, Ms. SLAUGHTER, and Mrs. KIRKPATRICK.

H.R. 4148: Ms. MCCOLLUM.

H.R. 4154: Mr. CONNOLLY.

H.R. 4171: Ms. SCHAKOWSKY, Ms. DUCKWORTH, and Ms. MENG.

H.R. 4180: Mr. MULVANEY.

H.J. Res. 33: Mr. BYRNE.

H.J. Res. 47: Mr. LOEBSACK, Mr. MOULTON, and Mr. KENNEDY.

H.J. Res. 50: Mr. BRAT.

H. Con. Res. 97: Mr. LUCAS, Mrs. HARTZLER, and Mr. PALAZZO.

H. Con. Res. 98: Ms. FUDGE.

H. Con. Res. 99: Mr. ADERHOLT and Mr. BOUSTANY.

H. Res. 54: Mr. BISHOP of Michigan.

H. Res. 265: Mrs. BEATTY, Mr. POCAN, Mrs. DINGELL, Mr. PAYNE, and Mr. COSTELLO of Pennsylvania.

H. Res. 289: Mr. FATTAH.

H. Res. 346: Mr. PITTENGER and Mr. MEADOWS.

H. Res. 383: Ms. KAPTUR.

H. Res. 469: Mr. SENSENBRENNER and Mr. NUGENT.

H. Res. 536: Mr. BILIRAKIS, Mr. HIGGINS, Mr. YOHO, Mr. CLAWSON of Florida, and Mr. CASTRO of Texas.

H. Res. 541: Mr. KEATING.

H. Res. 549: Mr. MCGOVERN, Mr. MEEKS, Mr. PETERS, Ms. JACKSON LEE, Mr. QUIGLEY, Mr. ELLISON, Mr. CARNEY, and Mrs. NAPOLITANO.

H. Res. 551: Mr. DEUTCH and Mrs. WAGNER.

CONGRESSIONAL EARMARKS, LIMITED TAX BENEFITS, OR LIMITED TARIFF BENEFITS

Under clause 9 of rule XXI, lists or statements on congressional earmarks, limited tax benefits, or limited tariff benefits were submitted as follows:

OFFERED BY MR. BISHOP OF UTAH

The amendment filed to H.R. 2130 by me does not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of House rule XXI.

United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE *114th* CONGRESS, FIRST SESSION

Vol. 161 WASHINGTON, TUESDAY, DECEMBER 8, 2015 *No. 177*

Senate

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. HATCH).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

O Lord, our Lord, the majesty of Your Name fills the Earth. We see Your handiwork in the beauty of the sunrise and the majesty of the sunset.

As the world listens to the American political rhetoric and history waits to judge us, guide our lawmakers. Lord, make this upper Chamber of the legislative branch a truly deliberative body. Learning from the lessons of history, may our Senators strive to defend our Constitution against all foreign and domestic enemies. Grant that this defense will involve looking before leaping. May our Senators make decisions that will not seem foolish in the cool light of retrospection.

Arise, O Lord. Remind the nations that they are merely human.

We pray in Your sovereign Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER (Mr. COTTON). The majority leader is recognized.

EVERY STUDENT SUCCEEDS BILL

Mr. MCCONNELL. Mr. President, both parties have long agreed that No Child Left Behind is broken and needs to be fixed. The House of Representatives passed reformist replacements for this law over the past few Congresses, but the Senate didn't consider legislation on the floor for years—until now.

A new majority in Congress thought it was time to finally change that dynamic. So we have demonstrated how a functioning committee process and a functioning Senate could help break through the gridlock. We showed how it could lead to important work across the aisle from a Republican like Senator ALEXANDER and a Democrat like Senator MURRAY, and in so doing, we not only proved that conservative reform was possible, we proved that it could pass by big bipartisan margins.

The version of the Every Student Succeeds Act the Senate considered this summer passed 81 to 17. The Every Student Succeeds Act before us just passed the House 359 to 64, and soon we will have the opportunity to send it to the President for his signature.

The Wall Street Journal dubbed this bill ''the largest devolution of federal control to the States in a quarter-century.'' It will stop Washington from imposing Common Core. It will strengthen the charter school program. It will substitute one-size-fits-all Federal mandates for greater State and local flexibility. In short, the Every Student Succeeds Act will put education back in the hands of those who know our kids best: parents, teachers, States, and school boards. It will help students succeed instead of helping Washington grow. That is something all of us can get behind because all of us represent different States with different children who have different needs.

I know Kentucky's newly appointed education commissioner is enthusiastic about this landmark reform. He wrote me to say that this bill would be good for Kentucky because it would do things such as ensure more flexibility, support rural schools, and help the Commonwealth provide for teacher development.

I thank the senior Senators from Tennessee and Washington for all their hard work on this bill. Some may have questioned whether Washington could ever agree on a replacement for No Child Left Behind, but today we have the Every Student Succeeds Act before us. It is a good replacement. It is a conservative reform with significant bipartisan support and one that will do right by those who matter most in the discussion: our children and our future.

Just days after the President signed an important bipartisan highway bill we passed, we soon expect to send him an important bipartisan education bill to sign as well. We might even pass it as soon as today. Passing either of these bipartisan bills after years of inaction would have represented a very big win for our country. What is more, it is notable that both could now be signed into law within such a short timeframe.

Passage of these bills follows Senate passage of many other achievements for the American people too, on issues ranging from cyber security, to trade, to energy, to entitlement reform, even combatting modern-day slavery.

Sometimes it was assumed that Washington could never come to an agreement on certain issues, but not only did we pass some long-stalled priorities for America, we often did so on a bipartisan basis. The question is, How do you achieve passage of important bills? One way is to foster an atmosphere where both parties can have more of a say on more issues, starting at the committee level. Let me give an example. Consider what the American people saw in the debate over the Education bill. They saw Senators they sent to Washington having their voices heard again, regardless of party. They saw them making meaningful contributions in committee. They saw them working across the aisle. They saw them having more opportunities to offer amendments. The American people actually saw the Senate take more

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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amendment rollcall votes on this single bill than the Senate took all of last year on all bills combined.

This is what Senator MURRAY, a Democrat, said when the Senate first passed this bill in July: ''I am very proud of the bipartisan work we have done on the Senate floor—debating amendments, taking votes, and making this good bill even better.'' I know her Republican counterpart, Senator ALEXANDER, feels exactly the same way, just like Senator INHOFE, a Republican, agrees with Senator BOXER, a Democrat, when she refers to the highway bill as ''a major accomplishment.''

ORDER FOR RECESS

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate recess from 12:30 p.m. until 2:15 p.m. today for the weekly conference meetings and that if cloture is invoked on the conference report to accompany S. 1177, the time during the recess count toward the postcloture time.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

PLATFORM OF THE REPUBLICAN PARTY

Mr. REID. Mr. President, Donald Trump is standing on the platform of hate—I am sorry to say hate that the Republican Party has built for him.

It was just last week that I came to the floor of the Senate and said the Republican Party is running on a platform of hate. Yesterday Donald Trump provided the strongest evidence yet that it is true. Trump's proposal to bar Muslims from entering this country is hateful, despicable, and really vile. We are a country founded on religious liberty, not a country that imposes religious tests. Trump's statement is a slap in the face to the millions of peace-loving Muslims living here and to those who want to travel and live here. We welcome them all, and to them I say: Donald Trump is not America.

Sadly, however, Donald Trump has become the Republican Party, because it is just not him—many of the leading candidates for the Republican nomination have said the same hateful things, especially about Muslims. Jeb Bush and TED CRUZ proposed religious tests for refugees. You can't condemn Trump when you want to impose a religious test on women and children fleeing death and persecution. Ben Carson has called Muslims ''rabid dogs.'' Chris Christie said they should be tracked.

Today, Donald Trump offered the only true statement he has made for some time, referring to some of his fellow Republicans, those running against him for President. He said:

> They have been condemning almost everything I say and then they come to my side.

That is disturbing, but it is true. Republican candidates condemn Trump's remarks and then adopt his racist policies as their own.

We shouldn't try to fool ourselves: This sort of racism has been prevalent in Republican politics for decades. Trump is just saying out loud what other Republicans merely suggest.

Political leaders must condemn these hateful, un-American statements with their words and their actions. Silence only empowers bigots.

NOMINATIONS

Mr. REID. Mr. President, as the year draws to an end, Republicans are doing high fives and celebrating as if they hit a home run when they haven't even singled.

Republicans are seeing a distorted image of reality. All their talk of productivity and progress overlooks many facts and ignores their constitutional duty to provide advice and consent on President Obama's nominations—any President's nominations. Republicans are balking at fulfilling their constitutional role.

The job of Congress is to pass laws and to confirm nominations. By that measure, this Congress has been the least productive ever. The total number of bills passed and nominations confirmed this Congress is lower than any Congress in decades. This Republican majority has confirmed fewer nominations than any Congress in decades. Because of Republicans' obstruction, qualified nominees are prevented from serving the American people.

Yesterday the Senate skipped over the confirmation of Judge Luis Felipe Restrepo and confirmed just the 11th judge this session. There are 18 more judicial emergencies than when the Republicans took control of the Senate. What is a judicial emergency? It means they have more work than the judge can do. Instead of making progress in judicial backlogs across the Nation, we are falling even further behind and creating more emergencies. One of those judicial emergencies is Judge Restrepo. He is a talented Federal district judge from the State of Pennsylvania, and he is a talented Latino nominated for the Third Circuit.

The junior Senator from Pennsylvania—who is responsible for delaying this good man for more than 6 months in the committee—finally engaged on the nomination. On Monday the junior Senator said: I am sending a letter to Senator MCCONNELL requesting a vote on his confirmation. I don't know why he couldn't say to the Republican leader: Will you bring this up for a vote? Why the letter? Where has Senator TOOMEY been since July when this nomination was first reported out of the committee 5 months ago? Why has this nomination been pending for more than a year? I wonder if it is because election time is here. Senate Democrats have waited months to confirm this good man. He should be confirmed now, today. Sadly, though, Republicans are blocking every Latino judicial nominee currently being considered.

Here is a partial list: Judge Restrepo—I already talked about him; Armando Bonilla, who is the first Latino ever nominated to the Court of Federal Claims; John Michael Vazquez, nominated to the District of New Jersey; Dax Eric Lopez, nominated to the Northern District of Georgia, who would make history as the first Hispanic appointed Federal judge in that State. Georgia has a large number of Hispanics in that State.

Because of this obstruction, last night the Senate skipped over Judge Restrepo—I mentioned that earlier—leaving another judicial emergency. Instead, the Senate confirmed Travis Randall McDonough as district judge for the Eastern District of Tennessee. After confirming Judge McDonough, 19 judicial nominees remain on the Executive Calendar who were all voted out of committee unanimously.

Yesterday's confirmation marks only the 11th judicial confirmation this entire Congress. At this point in 2007, Democrats worked with President Bush to confirm 36 judicial nominees—11 compared to 36. It is obvious why they are doing it; they hope Donald Trump will be elected President and Hillary Clinton will not be. Yesterday's confirmation marks the 11th judicial confirmation of this Congress. If the Republican Senate keeps up this pace, many of their recommendations—from Tennessee, Iowa, Georgia, and many other States—are at risk of not being confirmed. These are Republican selections. The American people are paying the price.

Since the Republicans took control of the Senate, the number of judicial emergencies around the country has more than doubled. During this session of Congress, we have only confirmed one circuit judge. Because of the Republicans slow-walking, the Senate is currently on pace to confirm the lowest number of judges in a comparable session in half a century.

As William Gladstone said, ''Justice delayed is justice denied.'' That is true. More than 30,000 people across the country have been waiting for more than 3 years for a resolution to their court case.

Judge Lawrence O'Neill, who was nominated by President George W. Bush to the Eastern District of California, is fed up with the staggering delays in his court. Here is what he said:

> Over the years I've received several letters from people indicating, ''Even if I win this case now, my business has failed because of the delay. How is this justice?'' And the simple answer, which I cannot give them, is this: It is not justice. We know it.

The judge is right. What is happening with our judiciary is damaging our

country and the litigants depending on a way to get to court to go to trial.

The Republican leader has the power to alter the destructive path Senate Republicans have charted. Before we leave for the holidays, the Senate should act to schedule votes on the dozens of judges who have been denied a vote. Where we have the judicial emergencies, the criminal cases are allowed to go forward but not the civil cases, involving people's businesses. They can't have their day in court. There are too few judges who have to take care of all of the criminal cases first. The civil cases wait—damaging to our economy and certainly damaging to people's lives. Thousands of Americans waiting for years deserve their day in court without further delay by Republicans, which is outrageous.

Mr. President, I see no one on the floor. Will the Presiding Officer announce to the Senate the work of the day.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

STUDENT SUCCESS ACT—CONFERENCE REPORT

The PRESIDING OFFICER. Under the previous order, the Senate will resume consideration of the conference report to accompany S. 1177, which the clerk will report.

The senior assistant legislative clerk read as follows:

Conference report to accompany S. 1177, a bill to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves.

Mr. REID. Is the time divided equally on quorums?

The PRESIDING OFFICER. There is no order for division of time.

Mr. REID. I ask unanimous consent that during all quorum calls this morning, the time be equally divided between the two sides.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. REID. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. DURBIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. DURBIN. Mr. President, I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

RELIGIOUS FREEDOM

Mr. DURBIN. Mr. President, the Founding Fathers took great care when it came to the issue of religion in our Constitution. Many of the people who had come to the United States and became its earliest White settlers came for religious freedom. They had witnessed discrimination. They had witnessed government religion. They had witnessed the type of conduct which not only offended their conscience but motivated them to come to this great Nation. So when the Founding Fathers sat down to craft our Constitution, they made three hard-and-fast rules when it came to religion in this United States of America. The first was our freedom to believe as we choose or not to believe, a personal freedom when it came to religion embodied in the civil rights. The second was prohibition against any Government of the United States establishing a state or government religion. Third, the prohibition of any litmus test before anyone could run for public office when it came to religion.

For over 200 years now, those fundamental principles have guided the United States and have kept us away from some of the terrible conflicts which have occurred in other nations across history when it came to the clash of religious belief. It is hard to imagine that in this 21st century, more than 200 years after the Constitution was written, that in the midst of this Presidential campaign, we would once again be reflecting on religion in America, but we are.

Statements that were made over the last several months, and especially a statement made yesterday by a Republican candidate for President, have called into question again the policy and values of the United States when it comes to the practice of religion. Mr. Donald Trump, Republican candidate for President, has proposed excluding people of the Muslim religion from the United States. He said we need to do that until our government figures out what to do with terrorism. Mr. Trump's statements have been condemned, roundly condemned by most of the other Republican Presidential nominees, as well as former Vice President Richard Cheney. It is an indication that he has gone too far. I hope it is an indication that we in America will reaffirm fundamental values, when it comes to religious beliefs, that have guided this Nation for more than two centuries. I might add, this is just the latest chapter in this story.

REFUGEES

Mr. President, it was only a few weeks ago when there was a conscious effort promoted by the Republican Presidential candidates to exclude Syrian refugees from the United States. They called it a pause. They said we needed to assess whether or not we ought to change our system for refugees coming to this country, and, in so doing, they required the certification by the heads of our national security agencies of each individual refugee before they could come to the United States.

Each year, the United States allows about 70,000 refugees to come to our shores from all across the world. They come from far-flung nations. The largest contributor last year was Burma—those who were escaping persecution in Burma. The second largest group was those coming from Iraq. They included, incidentally, those Iraqis who had served and helped the United States and its military during our period of occupation. Many of them risked their lives for our soldiers, and now they are worried about retribution and have asked for asylum refuge in the United States.

The proposal was made by the Republican side that we should limit—in fact, should delay and then limit—Syrian and Iraqi refugees. One has to wonder whether or not it has anything to do with the fact that the vast majority of people living in those two countries are of the Muslim faith.

I have met some of these refugees in the city of Chicago. Some of them waited up to 2 years after they were being investigated and interviewed and fingerprinted—up to 2 years—before they could come to the United States. Their stories of what they and their families have been through are tragic. They come here simply to start a new life in a safe place and to raise their children. It truly is what has motivated people across the span of history to come to this great Nation, and these refugees are no different.

The fact that the Republicans would start by excluding refugees—and now, Mr. Trump takes it to the extreme of excluding people of a religious faith, the Muslim religion—is an indication of a conversation in American politics that needs to stop. We need to reflect once again on the fundamental principles of this country and the fundamental values of this country as well. I hope this is the beginning of a reevaluation.

It wasn't but 2 weeks ago that the House of Representatives passed the measure, the so-called pause in accepting refugees. It is interesting what has happened since. More than half of Democrats who voted for this—47 of them—have said they don't want to include this measure in any final appropriations bill considered by Congress. They are obviously having second thoughts about their votes. At least one Republican Congressman from the State of Oklahoma said he made a mistake; he never should have voted for this policy when it came to Syrian refugees. So perhaps, as tempers cool and as we reflect on who we are as a Nation and what we want to be, we will have second thoughts about this question of refugees.

GUN VIOLENCE

Mr. President, there was another vote last week which I noted on the floor yesterday and which I still find hard to believe. A measure was offered by Senator FEINSTEIN of California. What it basically said is: If you are on a no-fly list—if you have been identified by our government as a suspected

terrorist—you cannot purchase firearms. That, to me, is not a radical suggestion. It is a commonsense suggestion. The two killers in San Bernardino had AR–15s, weapons that can be used to fire many rounds in a hurry. The net result: 14 people died and another 18 or so were seriously injured. So when someone is put on the no-fly list, the suspected terrorist list, I don't think it is unreasonable to say: You can't purchase a firearm as long as you are on that list.

Senator FEINSTEIN addressed the question raised by the Republican Senator from Texas: What if the government is wrong? What if your name should not be on the list? She included in her bill a process to challenge any name on the list and to do it in an orderly way with due process. Apparently, Republicans felt that wasn't enough.

Overwhelmingly, Republicans voted against the Feinstein amendment. Overwhelmingly, they voted against a proposal to ban suspected terrorists from buying firearms in America.

Now, I know there are many people who are skeptical—maybe even cynical—when it comes to the role of our government. But if we are not going to take the government's information and advice when it comes to suspected terrorists, where will we be?

Our government—through our military, our intelligence agency, the FBI, and law enforcement—gathers information about individuals and warns us if those individuals could be a danger to our families and to our communities. The vote by the Republicans rejected that warning and said: We will err on the side of giving people firearms even if they are suspected terrorists. That makes no sense whatsoever. It shows you the extremes you can reach when you listen closely to the gun lobby and not to the vast majority of Americans who simply want to live in a safe country. It shows what happens when your opposition to this President and this government has reached the point where you question even the basic conclusion that someone has been engaged in suspicious, if not outright, terrorist activity. That vote was defeated. The amendment by Senator FEINSTEIN was defeated.

She also offered an amendment originally penned by Senator Lautenberg—the late Senator Lautenberg of New Jersey—related to terrorists, but the Senate also considered an amendment that related to background checks for those who want to purchase firearms. That amendment came to the floor under the sponsorship of Senator MANCHIN, a Democrat from West Virginia, and Senator TOOMEY, a Republican from Pennsylvania. What it said is very basic: If we are going to sell firearms in America, we are going to make every reasonable effort not to sell them to convicted felons or people who are mentally unstable. That makes sense. In fact, it should be a standard we all accept. The vast majority of gun owners accept that standard. They don't want guns in the hands of people who would use them in crime or people who are mentally unstable and can't manage a firearm. That amendment came to the floor; again, it was defeated by the Republicans in the Senate. That is unfortunate.

In the State of Illinois, too many crime guns cross the border from northwest Indiana into the city of Chicago, coming into that city where they are traced to gun shows in Indiana where there are no background checks, where people can fill up the trunks of their cars with firearms and ammunition, cross the border into Illinois and into Chicago, and engage in deadly, violent contact. We should have that come to an end.

The people who own and use guns responsibly and legally have no fear. But those who would buy them for criminal purposes or those who would buy them when they don't have the faculties to truly maintain a firearm or use it should be stopped.

The Republicans disagree. They are listening to the gun lobby when they should be listening to the people of this country.

FOR-PROFIT COLLEGES

Mr. President, last month, the Department of Justice, along with the Department of Education and a group of State attorneys general, announced an agreement to settle litigation against Education Management Corporation, the second largest for-profit college chain in America.

EDMC was found to have been engaged in fraud and deception when it told the Federal Government it was complying with Federal laws that prohibited incentive compensation to be paid to recruiters. For EDMC recruiters, students essentially had a bounty on their heads. The more students they signed up for their for-profit colleges, the more bonuses and perks the recruiters could receive, such as trips to places like Cancun and Las Vegas, Starbucks gift cards, expensive candies, and tickets to sporting events.

To tell the whole story, the same EDMC recruiters—as they were recruiting young people to attend these for-profit colleges—needed only to find students with a ''pulse and a Pell'' to sign up. What they are referring to, of course, is low-income students eligible for over $5,000 in Pell grants—$5,000 that would flow to this for-profit college, regardless of whether the students were getting a good education.

U.S. Attorney General Loretta Lynch referred to this school as a ''recruitment mill.'' What was the result of this recruitment mill? While these illegal practices were taking place, EDMC reportedly took in—listen to this—$11 billion in Federal funds, $11 billion in taxpayer funds. Under the settlement, the company was fined $90 million—$11 billion; $90 million.

Well, how about the executives who masterminded the scheme to sign up young people so that their Pell grants and government loans would flow to the for-profit college, regardless of whether they ever finished school or ended up with a diploma that was worth anything? What happened to these people who engineered this scheme that cost Federal taxpayers $11 billion—students almost $11 billion in debt—and a fine by the government of $90 million? So far, they are getting off scot-free.

Todd Nelson, CEO of EDMC until 2012, personally received over $25 million in total compensation during his 5 years. The settlement didn't include any accountability for him. Now Mr. NELSON is the CEO of the Career Education Corporation, another for-profit education company that is under massive State and Federal scrutiny.

What about the students who were lured by EDMC's illegal recruitment mill, pressured by the company's high-pressure, boiler-room tactics into mountains of student debt? They can't find jobs many times, and they certainly can't repay their loans.

Attorney General Lynch called EDMC's tactics a violation of the trust placed in them by the students. More than 40 State attorneys general accused the company of deception and misleading recruitment.

So let's be clear. This was not just a case of EDMC lying to the Federal Government. Students were the victims.

I encourage the Department of Education to use the evidence the Department of Justice and States attorneys general have in this case to provide Federal student loan relief to students who were harmed by Education Management Corporation. But make no mistake. If the students are spared the student debt from these fly-by-night for-profit colleges, ultimately the taxpayers will be the losers as well. We provided the money to the students that flowed to the schools, and now everyone is a loser, including the taxpayers—oh, not the officers of the company. They walked away with millions of dollars in compensation.

There is one thing I always say at this point to make my case, and I have never, ever heard a rebuttal from the for-profit colleges. For-profit colleges educate about 10 percent of all the high school graduates in America. Who are the major for-profit colleges? The biggest one is the University of Phoenix, Kaplan is another large one, and DeVry University is out of the city of Chicago. These are for-profit schools.

About 10 percent of high school grants go to these for-profit colleges. The for-profit colleges as an industry receive 20 percent of all the Federal aid to education—10 percent of the students, 20 percent of the Federal aid. Their tuition is so high that students have to go deeper into debt than if they had chosen a community college or a public university. But here is the No. 1 number: 10 percent of the students—44 percent of student loan defaults occur with students who attend for-profit colleges and universities. Almost half

of the students who end up going to these for-profit schools default on their student loans.

Don't forget that student loans, student debt is not dischargeable in bankruptcy. A 19- or 20-year-old student and their parents who sign up for these student loans have signed up for debt for life. It cannot be discharged. They will take it to the grave. When the student defaults, we actually have seen efforts to secure Social Security payments from the parents who cosigned for these loans. For 10 percent of the students in for-profit schools, there are 44 percent of the student loan defaults.

Well, the EDMC news came on the heels of a major announcement by Westwood College, one of the worst actors in the for-profit college industry. Westwood announced it would stop enrolling students in campuses nationwide, including the four that operate in the Chicago area. Praise the Lord.

Illinois Attorney General Lisa Madigan sued Westwood for engaging in deceptive practices. Madigan's suit focused specifically on Westwood's criminal justice program, one of the first that I have heard about that raised my interest in this for-profit college industry. In order to lure students into their criminal justice program, Westwood College convinced students they could get jobs with the Chicago Police Department and the Illinois State Police. What happened when the students actually graduated from Westwood College, this for-profit school, and took their degrees to the employers? The employers laughed at them. They didn't recognize the Westwood degree. In fact, it reached a point where they told the students they would be better off if they didn't include Westwood College on their resumes. Just say you didn't go to school, and you will have a better chance.

The Attorney General recently reached a settlement with Westwood under which it would forgive $15 million in private student loans for Illinois students. Now it appears the company as a whole may be on its way out. That is the trend in this industry. As students and parents across America are starting to realize these for-profit schools are bad news and State and Federal regulators are shining a light on their illegal tactics, enrollment is declining. At one point, I believe the University of Phoenix had over 500,000 students. Now they are down to less than half of that amount. Along with the decline in enrollment, stock prices on these private corporations are plummeting.

Years of bad behavior is starting to catch up with these companies, but the damage is done for these students. Many of their lives have been harmed, if not ruined, by this debt. And, of course, there has been damage to the Federal Treasury, which shells out billions—that is with a ''b''—of dollars to the for-profit colleges that the taxpayers will never get back. Yet the other party continues to come to the aid of the for-profit college industry, attempting to block any steps to ensure that for-profit colleges are following the law and held accountable. We saw it earlier this year. The junior Senator from Florida came to the aid of the disreputable Corinthian Colleges. While Corinthian was lying to students about its job-placement rates, suckering them into enrolling, and saddling them with debt, the junior Senator from Florida was writing to the Department of Education asking them to demonstrate leniency to Corinthian—leniency to a company that made misrepresentations to the students, lied to the government, and swindled taxpayers out of billions of dollars. That is the answer from the junior Senator from Florida.

If Republicans are willing to defend Corinthian, it shouldn't be a surprise that they want to shield for-profit colleges from what is known as the gainful employment rule. The Department of Education has developed responsible criteria for determining whether career education programs really do prepare students for gainful employment. That is required by law. The gainful employment rule ensures that students who graduate from a covered program of study are able to get a job that allows them to manage the student debt they take on in the process. The point is to protect students from worthless postsecondary programs that leave them saddled with debt and unable to get a good job. The point is to also protect Federal taxpayers by cutting off Federal funding to programs of study that don't really prepare students for a job. But the for-profit college industry and their friends in Congress—they hate this rule. Why? As an industry, for-profit colleges, as I mentioned earlier, enroll 10 percent of the students and account for more than 40 percent of the student loan defaults. They take in $25 billion in title IV dollars annually. If they were a Federal agency, the for-profit colleges and universities would be the ninth largest Federal agency in America.

Is this the private sector, is this the free market, or is this crony capitalism that survives on massive Federal subsidies? The for-profit colleges and universities are the most heavily subsidized private industry in America. Their business model depends on easy access to Federal funds and the ability to spend as little as possible on quality education. They spend more money on advertising than they do on teaching.

Earlier this year, the U.S. District Court for the District of Columbia dealt a devastating blow to this industry's attempt to block the gainful employment rule. The court upheld the rule in its entirety. This was the second U.S. district court to do so. Having been embarrassed in Federal court, the for-profit college industry has turned to my friends on the other side of the aisle to protect them. They attached a rider to the appropriations bills that fund education programs and are pushing to include it in the final spending bill this year to stop the Department of Education from enforcing the existing law on gainful employment.

How can we as Members of Congress block implementation of this commonsense rule in light of what just happened with Corinthian? This company was inflating its job-placement rates to lure students, defrauding the students and taxpayers, and lying to creditors and the Federal Government. When it collapsed, when Corinthian went down, more than 70,000 students were left in peril. Many were left with more debt than they could ever possibly repay and a Corinthian education that is worthless.

Now is not the time for Congress to meddle in the Department of Education's efforts to protect taxpayers, students, and their families, and to prevent another Corinthian collapse. The Department estimates that of the nearly 1,400 programs of study, 99 percent of them at for-profit colleges will fail under this basic rule. That is why the industry is in a mad dash to find political sponsors to save them from accountability. Programs have to fail the rule 2 out of 3 consecutive years to be cut out of Federal funding, so the institutions do have an opportunity to improve. If they don't, we shouldn't just continue to blindly send billions of Federal taxpayer dollars to these companies.

With all we know about the for-profit college industry and their fraudulent and deceptive practices, I can't believe my colleagues on the other side of the aisle are prepared to fight a rule that is nothing more than a way to protect students and taxpayers. But here we are facing the prospect of a policy rider, substantive legislation in a spending bill to shield for-profit colleges from being held accountable and delivering on their promises to students. Well, I am going to resist that, and I hope my colleagues will join me. It isn't just a matter of making certain that these schools follow the law; it is a matter of protecting students and families from being exploited—going in for an education and ending up with nothing other than debt—and protecting taxpayers who are sending $25 billion a year to this industry.

We have had some heated debates on the floor about people receiving food stamps—perhaps $180 a month in food stamps—and whether they are deserving or whether it is a rip-off for taxpayers, but when it comes to $25 billion for an industry that has shown over and over again that it is the source of 44 percent of student loan defaults, to the misery of the students and families who are victims of it, some of these same people who are critical of food stamp fraud turn a blind eye. They say: Oh, this is just business. Don't be afraid of making a profit.

I salute businesses that make a profit if they do it honestly, honorably, and do it with competition. This industry is taking advantage of Federal tax dollars in a way that no other industry is.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. COTTON. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mrs. FISCHER). Without objection, it is so ordered.

TERRORIST WATCH LIST

Mr. COTTON. Madam President, I will be brief. I wish to respond to what I heard earlier this morning from the Democratic leader and what we heard from the President on Sunday night.

The Democrats would have us believe that any person on a watch list can go and buy a firearm without any notice whatsoever. That is simply false. The background check system that federally licensed firearm dealers use includes a terrorist watch list, and the FBI counterterrorism division is notified when that occurs. Of course, the list is notoriously inaccurate. A Department of Justice IG report just a few years ago said half of the names on the list are incorrect. The New York Times, which continues its proselytizing for gun control, used to be strongly opposed to the use of this list. Most famously, Ted Kennedy, a U.S. Senator from America's leading political dynasty, was on the list and couldn't get off for weeks, having his flights disrupted time after time. Stephen Hayes, a well-known conservative journalist who I admit looks a little suspicious, also found himself on the list. It took him months of public commentary, and he was only removed from the list when Secretary of Homeland Security Jeh Johnson was challenged on the news about him being on the list.

If it took Ted Kennedy and Stephen Hayes weeks or months to get off that list, how long would it take the little guy in Arkansas? For that matter, how long do we think it would take patriotic Muslim Americans who are on the list—most likely because of confusion about their names with suspected terrorists—to get off that list?

Moreover, what other rights would Democrats like to deprive American citizens of without notice and due process? Their right to free speech? Their right to practice their religion? Their right to petition their government? Their right to enlist unreasonable search and seizures? Their right to a trial by jury? Their right to confront their accusers? Their right to get just compensation when their property is taken?

Democrats should quit being so politically correct. They should focus on winning the war against radical Islam. If they did, maybe fewer Americans would feel the need to buy firearms to protect themselves from terrorist attacks.

I yield the floor.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Madam President, this is a day for opportunity in the Senate. We have an opportunity today to reverse the trend of the last several years toward a national school board. We have an opportunity to make clear that in the future, the path to higher standards, better teaching, and real accountability will be through States, communities, and classrooms and not through Washington, DC.

We have an opportunity to vote in favor of what the Wall Street Journal has called ''the largest devolution of Federal control to States in a quarter century.''

We have an opportunity to inaugurate a new era of innovation and excellence in student achievement by restoring responsibility to States and classroom teachers. Tennessee, after all, was the first State that paid teachers more for teaching well. Minnesota educators created the first charter schools. The real advances in higher standards and accountability and appropriate testing have come from classroom teachers and from Governors, not from Washington, DC, and I believe that is where those advances will come from in the future.

We have an opportunity today to provide much needed stability and certainty to Federal education policy from some very important people who are counting on us: 50 million children, 3.4 million teachers, and 100,000 public schools.

Newsweek magazine recently reminded us what we already know very well: No Child Left Behind is a law everybody wants fixed. Governors, teachers, superintendents, parents, Republicans, Democrats, and students all want the law fixed. There is a consensus about that and fortunately there is a consensus about how to fix it. That consensus is this: continue the law's important measurements of academic progress of students—disaggregate and report the results of those measurements—so teachers, parents, and the community can know what is going on in the schools but restore to States, school districts, classroom teachers, and parents the responsibility for deciding what to do about those tests and about what to do about improving student achievement.

In our Senate hearings, I suppose we heard more about over-testing than any other subject. I believe this new law will result in fewer and better tests because States and classroom teachers will be deciding what to do about the results of the tests.

Building on the consensus I have just described is why the Senate—our Senate education committee—passed our bill 22 to 0 and why it passed on the floor 81 to 17. That is why conferees from the Senate and the House were able to agree 38 to 1, and that is why last Thursday the House of Representatives approved the conference report 359 to 64. That is why the National Governors Association gave our conference report its first full endorsement that the NGA has given to any legislation in nearly 20 years. That is why the Chief State School Officers, the school superintendents, the National Education Association, and the American Federation of Teachers all have supported our result.

This consensus will end the waivers through which the U.S. Department of Education has become in effect a national school board for more than 80,000 schools in 42 States. Governors have been forced to come to Washington, DC, and play ''Mother, May I'' in order for a State to put in a plan to evaluate teachers, for example, or to help a low-performing school.

Our consensus will end the Federal common core mandate. It explicitly prohibits Washington from mandating or even incentivizing common core or any other specific academic standards. That is exclusively the responsibility of the State. It moves decisions about whether schools, teachers, and students are succeeding or failing out of Washington, DC, and back to States and communities and classroom teachers where those decisions belong.

I am grateful to Senator MURRAY, who is here today, and Representatives KLINE and SCOTT, and to all of the members of our Senate education committee, for the leadership they have shown and the bipartisan way in which they have worked on this legislation. I am grateful to both the Democratic and Republican staffs in the Senate and in the House for their ingenuity and hard work. Fixing No Child Left Behind has not been easy. Everyone is an expert on education. This has been a lot like being in a football stadium with 100,000 fans, all of whom know exactly which play to call and usually each one of them says so.

Some Republicans would like even more local control of schools than our consensus provides, and I am one of them, but my Scholarship for Kids proposal, which would have given States the option to allow Federal dollars to follow children to the school their parents choose, only received 45 votes in the Senate. It needed 60.

So I have decided, as a President named Reagan once advised, that I will take 80 percent of what I want and fight for the other 20 percent on another day. Besides, if I were to vote no, I would be voting to leave in place the common core mandate—and I would be voting to leave in place the waivers that permit the U.S. Department of Education to act as a national school board for 80,000 students and 42 states—and I would be voting against the largest step toward locally-controlled schools in 25 years. Let me repeat that. Voting no today is voting to leave in place the common core mandate and the national school board and voting against the largest step toward local control of schools in 25 years.

I say to my friends, especially on the Republican side, many of whom, as I do, would like more local control: That is not the choice. The choice is whether

we want to leave in place common core, the national school board, and the largest step toward local control in 25 years. I don't want to do that.

This law expired 8 years ago. It has become unworkable. If it were strictly applied, it would label nearly every school in America a failing school. So States, teachers, and parents have been waiting 8 years for us to reauthorize this law. If this were homework, they would give Congress an F for being tardy, but I hope they will give us a good grade for the result we have today.

It is a great privilege to serve in the U.S. Senate, but there is no need for us to have that privilege if all we do is announce our different opinions or vote no if we don't get 100 percent of our way. We can do that at home or on the radio or in the newspaper or on a street corner. As U.S. Senators, after we have had our say, our job is to get a principled result. Today we have that opportunity.

I hope today will demonstrate that we understand the privilege we have as Senators and show that we cherish our children by building upon this consensus and vote yes to fix the law that everybody wants fixed and yes for the consensus that restores responsibility for our schools to States, communities, and classroom teachers.

Before Senator MURRAY speaks, I would like to do two things, briefly. The first vote—the vote we are having today at 11:30—is a vote about whether to cut off debate on fixing No Child Left Behind. I hope no Senator thinks we have not had enough debate. We have been at this for 7 years. We failed in the last two Congresses. We have been working in our committee since January. We have had innumerable hearings, more than 50 amendments in committee, more than 70 amendments were dealt with on the floor, a dozen or so amendments in the conference report. Every Senator has had this in his or her office since last Monday—at least for a week. So the question today at 11:30 is, Is it time to cut off debate and move to a final vote? I hope every Senator will vote yes.

Finally, I mentioned Senator MURRAY and her role in this, which has been indispensable in terms of our ability to come to a result. I would like to extend my deep thanks and appreciation to her staff and our staff, the committee staff, that worked on fixing No Child Left Behind. Many of them have been working on this effort for nearly 5 years. They have been ingenious. They have worked hard. They have been understanding, they have been tireless, and they have been indispensable in creating this important bipartisan, bicameral bill. That includes the staffs of Representative KLINE and Representative SCOTT in the House

On Senator MURRAY's exceptional staff I would like to thank especially Evan Schatz, Sarah Bolton, Amanda Beaumont, John Righter, Jake Cornett, Leanne Hotek, Allie Kimmel, and Aissa Canchola. All of those people were very important. For my hardworking and dedicated staff, I would especially like to thank our staff director, David Cleary, Peter Oppenheim, Lindsay Fryer, Bill Knudsen, Jordan Hynes, Hillary Knudson, Jake Baker, Lindsey Seidman, Allison Martin, Bobby McMillan, Jim Jeffries, Liz Wolgemuth, Margaret Atkinson, and Taylor Haulsee.

I yield the floor.

The PRESIDING OFFICER. The Senator from Washington.

Mrs. MURRAY. Madam President, 50 years ago, President Lyndon Johnson rushed to the old elementary school he had once attended and with him he had a piece of major legislation. At a picnic table on the lawn of the school, President Johnson signed into law the Elementary and Secondary Education Act—or ESEA. He said that with this law, he envisioned ''full educational opportunity as our first national goal.''

Our Nation has always held the ideal of education for all, but in 1965 ESEA put that idea into action. It aimed to close the education gaps between rich and poor, Black and White, kids from rural areas and kids from big cities. In doing so, ESEA took a step forward for civil rights.

Today we have a chance to reauthorize that civil rights law to continue what President Johnson called our ''first national goal.'' We have a chance to finally move away from the No Child Left Behind Act, and we have a chance to send the Every Student Succeeds Act to the President's desk to help ensure all kids have access to a quality education regardless of where they live, how they learn, or how much money their parents make.

I appreciate the tireless work of Chairman JOHN KLINE and Ranking Member BOBBY SCOTT in the House and their staffs. I especially want to thank my partner here in the Senate, the chairman of the HELP Committee and senior Senator from Tennessee, Senator LAMAR ALEXANDER. The chairman had an opportunity to go down a partisan road, but instead he committed to work with me earlier this year to get this important bill done. I was very proud to work with him and with many of our colleagues to break through the gridlock and keep this bill moving forward. Together we passed our bill through the HELP Committee with strong bipartisan support. We passed our bill in the Senate with strong bipartisan support. We got approval from our bicameral conference committee with strong bipartisan support. Last week the House passed this final legislation with strong bipartisan support. And today I hope our colleagues will approve this final bill with the same bipartisan spirit that has guided our progress this far.

Nearly everyone agrees that No Child Left Behind is badly broken. I have heard from parent after parent and teacher after teacher about how the law overemphasized testing and how oftentimes those tests are redundant or unnecessary. I have seen firsthand how this law is not working for my home State of Washington. No Child Left Behind issued one-size-fits-all mandates but failed to give the schools the resources they needed to meet those standards.

These mandates were so unworkable that the Obama administration began giving States waivers from the law's requirements. My State lost its waiver last year. Parents across the State got a letter in the mail saying their child's school was failing, and teachers were left working as hard as ever, knowing their ''failing'' label didn't reflect the reality in their classrooms.

A few months ago, I heard from a teacher in Seattle named Lyon Terry. He has taught school for more than 17 years and pours his energy into engaging with his students. He starts the morning by playing songs on his guitar, keeps his students laughing with jokes, and every day he tries to create an environment where kids want to come to school. Despite Mr. Terry and his fellow teachers' hard work, his school was labeled as failing. That is not fair to teachers like Mr. Terry, it is not fair to the parents who need confidence in the education their kids get at public schools, and it is not fair to students who should never have to bear the consequences of this broken law.

Fixing No Child Left Behind has been one of my top priorities for students, families, and communities back home in Washington State and across the country. Back in January we didn't know there would be a path to compromise on a bill to reauthorize the Nation's K–12 law, but I started out with several principles and Washington State priorities that I would be fighting for.

First, I knew we needed to ensure that schools and States provided a quality education to all our students because we already know what happens when we don't hold them accountable for every child. Inevitably, it is the kids of color or kids with disabilities or kids learning English who too often fall through the cracks. I said back in January and I will repeat that true accountability means holding up our schools to our Nation's promise of equality and justice.

I knew we had to give schools and teachers resources they need so they can help their schools reach full potential because in some schools students don't have the same opportunity to graduate ready for college and careers in the 21st-century economy like other students do.

I knew we should only pass an education bill that would help expand access to early childhood education because giving more students the chance to start kindergarten ready to learn is one of the smartest investments our country can make.

I am proud to report that our bill, the Every Student Succeeds Act, takes major strides on those priorities and

much more. The Every Student Succeeds Act will put an end to the one-size-fits-all mandates of No Child Left Behind. It will end the era of State waivers. That will give teachers and parents in my State of Washington and across the country some much needed certainty.

Our bipartisan bill will also reduce reliance on high-stakes testing so teachers and students can spend less time on test prep and more time on learning. I know that is going to be a major relief for teachers and principals, such as high school principal Lori Wyborney in Spokane, WA. She told me she wants to see some commonsense policies for testing. That is what our bill will help to do.

While the Every Student Succeeds Act gives States more flexibility, it also includes strong Federal guardrails to hold schools and States accountable. Our bill will make sure schools work to close achievement gaps that too often hurt kids from low-income backgrounds, students of color, those learning English, or those with disabilities. For schools that struggle the most to help students succeed and for high schools where more than a third of their students fail to earn a diploma, our bill will take steps to make sure they improve.

A couple of weeks ago, I met a parent named Duncan. He has a son in second grade in the Highland public schools, and Duncan is active in their PTA. Many of the kids in his school district struggle with poverty. Duncan has said he has seen firsthand how, in districts like this, ''every dollar matters.''

In the Every Student Succeeds Act, I fought hard to make sure that Federal resources go to the schools and districts that need them the most by rejecting a proposal known as portability. If enacted, portability would have siphoned off money from the schools with the highest concentration of students in poverty and sent it to more affluent schools. Our bill protects schools with students in low-income areas and upholds our responsibility to invest Federal resources where they are needed the most.

Even so, many schools and districts don't get equal access to the resources they need to help students learn, grow, and thrive. These are things such as offering AP classes, how much funding districts spend on each student, access to preschool, and many more. Our bill will require all schools to report on these issues to help shine a light on resource inequality.

Our bipartisan bill will help improve and expand access to preschool programs. Before I ever thought about running for elected office, I taught preschool in a small community in my home State of Washington. I remember that the first day with new students would always start the same way: Some kids wouldn't know how to hold a pencil or crayon or how to turn a page in a book. But over the first few months, they would start to catch on. They learned how to listen at story time. They learned how to stand in line for recess. By the time they left for kindergarten, they had those basic skills and many more, so they were ready to tackle a full curriculum in school.

I have seen firsthand the kind of transformation early learning can inspire in a child, and I am so glad that for the first time, our Nation's primary education law will invest in early childhood education. I fought hard for this because I know that investing now in preschool will payoff for years to come.

Strong Federal guardrails for accountability, shining a light on resource inequity, reducing the reliance on high-stakes testing, and increasing access to preschool are some of the great things in this bill, but almost as important is what this bill represents. Gridlock and dysfunction have come to define Congress over the past several years, but on an issue as important as education and on a law as broken as No Child Left Behind, we worked together and found a way to find common ground.

It is not the bill I would have written on my own. I know it isn't the bill Republicans would have written on their own. That is the nature of compromise. We put partisanship aside and proved that Congress can get results for the American people, and that kind of bipartisanship is what we need more of here in Congress.

With the legislative process for this bill coming to an end, I am looking ahead to the future. When all students have the chance to learn, we strengthen our workforce, our Nation grows stronger, and our economy grows from the middle out, not from the top down. We empower the next generation of Americans to lead the world.

As proud as I am that we have come this far on the Every Student Succeeds Act, we always have to keep improving educational opportunities. I am going to see to it that this bill is implemented effectively, that schools and teachers get the resources they need, and that students have access to the programs that help them succeed in the classroom and beyond. I am going to keep pushing to build on the progress we have made in this bill and make sure more students start school on a strong footing. I am going to keep fighting to make college more affordable and reduce the crushing burden of student debt. I am going to keep working every single day to make sure our government is doing everything possible to help students in Washington State and across the country. Reauthorizing ESEA isn't the finish line; for me, it is more of a milestone in an ongoing commitment to swing open more doors for Americans.

I am asking all of my colleagues here today to join me. Let's fix this No Child Left Behind law. Let's show teachers and principals that we are on their side. And let's help instill educational opportunity as our first national goal and grow our Nation stronger for generations to come.

In a few minutes, as the chairman said, we will be voting on cloture to end debate so that we can move to passage of this bill. Along with him, I thank all of our staff. When we get to the final bill, I want to name them as well. They have put in an incredible amount of time, work, and hours to help get to this agreement. Again, I thank all of our staffs on both sides of the aisle and in the House. I will say more about that later, but I truly want to thank Chairman ALEXANDER for taking the time to be thoughtful, to work with us, and to find a path forward for compromise on a law that was broken that needed to be fixed and that we are about to pass.

Thank you, Madam President.

I yield the floor.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Madam President, I have said many times but I would like to say again that at the beginning of this discussion, when the Senator from Washington and I talked about how we had been stuck for two Congresses on this, I started in one direction and she suggested a different direction. As it turned out, she gave me good advice. I took it, and as a result, we have a result. So I thank her for that, and I look forward to working with her on other important issues in the same way.

The Senator from Georgia would like to speak before we vote.

The PRESIDING OFFICER. The Senator from Georgia.

Mr. ISAKSON. Madam President, as the last surviving person who served on the committee who wrote the original No Child Left Behind Act for the Congress, I am delighted to be here on this day.

I think this Senator speaks for every superintendent, every Governor, every parent, and every child to say thank you to Senator ALEXANDER and Senator MURRAY. We knew when we wrote No Child Left Behind that if it worked, by the time the sixth year came, we would have to reauthorize it or else it would go from a net positive to a negative. We didn't reauthorize it, and AYP became a problem, good schools became needs-improvement schools, and the law worked backward. In fact, we have run education by waivers the last 6 years.

The leadership of these two great Members of Congress. Seeing this bill through in the committee is a great testimony to working together, to finding common ground, and to our collective purpose of seeing to it that our children are the best educated children in the world.

Senator ALEXANDER, thank you. Senator MURRAY, thank you for what you have done.

To the Members of Congress, the Senate will vote in a few minutes. We need a vote for cloture and a vote for final

passage to see to it that we end a chapter in education and open a new chapter—a chapter that focuses on student improvement, student achievement, leaves No Child Left Behind but also sees that every child can succeed and makes sure we disaggregate so we can focus on children as they perform within their own group and we can focus on every child in every school in America.

I am honored to have been a member of the committee that worked hard on this bill, and I am honored to serve with Senators ALEXANDER and MURRAY.

I appreciate the time to speak on behalf of not just myself but for every student, teacher, and parent in America.

Thank you.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Madam President, I thank the Senator from Georgia, and I salute him. The Senator from Georgia is a former chairman of the Georgia State Board of Education. His experience there, his work with Senator MURRAY on early childhood education, and his insistence on an amendment that gives States the right to allow parents to opt out of federally required tests all were major contributions to this legislation. I think it is fair to say that we could not have fixed No Child Left Behind without JOHNNY ISAKSON's experience and leadership, and I am deeply grateful to him for that.

We yield back all time on our side.

Mrs. MURRAY. Madam President, we yield back all our time as well.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the conference report to accompany S. 1177, an act to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves.

Mitch McConnell, Lamar Alexander, Mike Rounds, Deb Fischer, Dan Sullivan, Lisa Murkowski, Orrin G. Hatch, Shelley Moore Capito, Pat Roberts, Chuck Grassley, Richard Burr, Cory Gardner, John Hoeven, John Cornyn, David Perdue, Johnny Isakson, Daniel Coats.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the conference report to accompany S. 1177, an original bill to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from Indiana (Mr. COATS), the Senator from South Carolina (Mr. GRAHAM), and the Senator from Florida (Mr. RUBIO).

Mr. DURBIN. I announce that the Senator from Vermont (Mr. SANDERS) is necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 84, nays 12, as follows:

[Rollcall Vote No. 333 Leg.]

YEAS—84

Alexander	Fischer	Mikulski
Ayotte	Flake	Murkowski
Baldwin	Franken	Murphy
Barrasso	Gardner	Murray
Bennet	Gillibrand	Nelson
Blumenthal	Grassley	Perdue
Booker	Hatch	Peters
Boozman	Heinrich	Portman
Boxer	Heitkamp	Reed
Brown	Heller	Reid
Burr	Hirono	Roberts
Cantwell	Hoeven	Rounds
Capito	Inhofe	Schatz
Cardin	Isakson	Schumer
Carper	Johnson	Sessions
Casey	Kaine	Shaheen
Cassidy	King	Stabenow
Cochran	Kirk	Sullivan
Collins	Klobuchar	Tester
Coons	Lankford	Thune
Corker	Leahy	Tillis
Cornyn	Manchin	Toomey
Cotton	Markey	Udall
Donnelly	McCain	Warner
Durbin	McCaskill	Warren
Enzi	McConnell	Whitehouse
Ernst	Menendez	Wicker
Feinstein	Merkley	Wyden

NAYS—12

Blunt	Lee	Sasse
Crapo	Moran	Scott
Cruz	Paul	Shelby
Daines	Risch	Vitter

NOT VOTING—4

Coats	Rubio
Graham	Sanders

The PRESIDING OFFICER. On this vote, the yeas are 84, the nays are 12.

Three-fifths of the Senators duly chosen and sworn having voted in the affirmative, the motion is agreed to.

The Senator from Tennessee.

Mr. ALEXANDER. Madam President, on behalf of the Senator from Washington, Mrs. MURRAY, I ask unanimous consent that notwithstanding the provisions of rule XXII, the vote on adoption of the conference report to accompany S. 1177 occur at 10:45 a.m., on Wednesday, December 9, which is tomorrow.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. ALEXANDER. Madam President, that sets the final vote on our bill to fix No Child Left Behind tomorrow morning at 10:45 a.m. I don't think there is any doubt what the result will be. We have had a series of votes that give a pretty clear indication of where the Senate is. The vote today was 84 to 12 to cut off debate and move to the final vote. Senators who wish to speak between now and then can do that.

Senator MURRAY, in her remarks, mentioned how good this process has been, and I wish to call that to the attention of Senators as well. The Senate can operate pretty well under the rules that it has if Senators will agree to cooperate with one another. I said before that I think one reason Senator MURRAY works so well toward a result, even though she is a partisan leader in the Democratic conference, is because she used to be a preschool teacher, and in kindergarten you learn how to work well with others and that is true in her case. That is actually true with all of the members of our committee. We have as much divergence on our committee, with 22 members, as does any committee. I will not name the names of the Senators, but there is almost no one who can dispute that. Yet we went through a process, which Senator MURRAY and I agreed on at her suggestion, and this is what happened: We had 22 members in the committee vote yes to move the bill to the floor. That is every single member of the committee. Several of those members agreed to withhold amendments that might have been damaging to the bill so we could deal with them on the floor.

In the committee we considered 58 amendments and 29 were adopted. Twenty-four of the adopted amendments were offered by Democrats and five amendments were offered by Republicans. Then we went to the floor. When we moved to the floor, the vote was 81 to 17—not quite as good as today, but it was a very good vote. We had 52 Member priorities incorporated into a substitute amendment. In other words, 52 Senators made suggestions about the final bill. Forty-four of these were priorities requested by Democrats and eight were priorities requested by Republicans. On the Senate floor, 177 amendments were filed and 78 were considered—23 by rollcall vote and 65 amendments were agreed to. Forty of the adopted amendments were offered by Democrats, 25 by Republicans.

Sometimes I have heard it said that we don't have time to deal with amendments. We dealt with 177 amendments on the floor in less than a week. The practice of going around to our colleagues and talking them out of amendments takes more time than it does to actually vote on them and to give them a chance to participate. In conference 17 more amendments were filed, 10 from the House, 7 from the Senate. Of those 17 amendments, 9 were considered and 7 were agreed to—4 Democrats, 3 Republicans.

I suggest to the Senate and President that it is not a secret why we were able to succeed this year in fixing a bill that is very difficult to fix. We know that because we have tried very hard in each of the last two Congresses, working with the Secretary of Education, House Republicans and Democrats, and the Senate Republicans and Democrats. We spent a lot of hours working on a bill, but we failed.

Why did we have more success this time? I think it is because everybody had a part in the process, everybody had a chance to have their say. We had amendments in committee, we had

amendments on the floor, and we had amendments in the conference. If you are convinced that you had a chance to have your say, then it is easier to say: Ok. Let's vote. I might win or lose, but at least I had my say and we need to get a result. I would like to see more of that here. We can do that fairly easily, and the key to it is allowing amendments.

It is possible, under the Senate rules, for Senator MURRAY to offer an amendment and to try to make it pending, and I can object. If I then offer an amendment, she might object, and then the whole process collapses. So any one of us can keep the Senate functioning as it should, but in this case—an issue when there are alligators lurking in every corner of the pond that could have brought this to a halt and nearly did several times—we were able to go through the process and get a result for the benefit of 50 million children and 3.4 million teachers in 100,000 public schools.

Someone asked me earlier yesterday what it would take to have the American people have a higher opinion of the U.S. Congress. My answer is actions such as this, where we take an issue that affects real Americans in the schools they attend, the homes where they are doing their homework, and the teachers who are working every day—this affects every single one of them. This empowers them to do their job. This creates an opportunity for a new era of innovation and excellence in student achievement. When we work together to get this result, I think people think better of the process here.

As I said earlier, it is possible to just stand here and say: Here is my opinion, and if I don't get 100 percent, I will vote no. If that were all I wanted to do, I would stay home. I would stand on the street corner or get my own radio show or column, offer my opinion for about 5 minutes, and then go do something else, but I wouldn't waste my time trying to be a U.S. Senator. It is hard to get here, and then it is hard to stay here. So while you are here, you might as well amount to something, and amounting to something as a U.S. Senator is getting a principled result on issues that are important to the American people.

We have done that this year more than most people might think. Senator MURRAY has a well-known reputation in this body, not just for being a Democratic leader but for being someone who is interested in a result. Senator WYDEN is working with Senator HATCH on tax extenders and Senator UDALL worked with Senator VITTER on chemical safety. The Energy bill that came out of committee depended upon Senator CANTWELL as well as Senator MURKOWSKI. The mental health bill that came out of our committee came from Senators MURRAY and ALEXANDER. The cyber security bill that passed the Senate was the work of Senator FEINSTEIN as well as Senator BURR. The trafficking victims law came from Senators MCCASKILL and CORNYN. The terrorism risk insurance was the result of Senators BROWN and SHELBY working together. The Iran Nuclear Review Act, which is a pretty extraordinary bill, started with Senator MENENDEZ, then Senator CARDIN, along with Senator CORKER. The Veterans Suicide Prevention Act came from Senators DURBIN and MCCAIN.

I haven't even mentioned all of the important legislation that came through the Senate this year. So it is perfectly possible for us to deal with very important pieces of legislation if we work together, and both Democratic and Republican Senators have all shown they can work together.

I look forward to the vote tomorrow at 10:45 a.m.

I yield the floor.

The PRESIDING OFFICER. The Senator from New York.

Mr. SCHUMER. Madam President, I ask unanimous consent that for the next 20 minutes I be given 4 minutes, Senator SHAHEEN be given 4 minutes, Senator BLUMENTHAL be given 4 minutes, Senator FEINSTEIN be given 4 minutes, and Senator MURPHY be given 4 minutes, concluding in a unanimous consent request.

The PRESIDING OFFICER. Without objection, it is so ordered.

UNANIMOUS CONSENT REQUEST—S. 551

Mr. SCHUMER. Madam President, like so many Americans, my thoughts are with the families and friends of those affected by the terror in San Bernardino last week. Our hearts go out to the victims and their families.

As we learn more about the suspects, it is becoming clear that San Bernardino will serve as a sad—but also shocking—reminder of what needs to be done to address what has become known as the terror gap.

I rise to support that most commonsense proposal to bar individuals on the terrorist watch list from being able to legally get a gun. The GAO found that between 2004 and 2014 suspected terrorists attempted to exploit this loophole. People say: Well, this never happens. Listen to this. Those on the terror watch list tried to purchase guns 2,233 times and succeeded in 2,043 of those—or 91 percent.

It is absolute insanity that this is not already a restriction we have in place. Given what happened in San Bernardino, it is extra insanity that we are not going to move on this and that we haven't moved on this already. It makes no sense. We can't let a small group—an influential, powerful lobbying group—make America less safe. Yet many of my colleagues on the other side of the aisle are doing just that. Because the NRA says no, they say no, even though terrorism is a scourge that we have to deal with on many fronts.

I appreciate my friend from Texas. He says there are certain people on the terrorist watch list who don't belong there. There are a few, but this newly found sympathy for the civil liberties of those who might be causing trouble is surprising. We don't say abolish the criminal justice system because not every single person we convict is guilty—although 99 percent probably are or some large percentage. Why are we doing it here? Are we saying if there are two or three people on this terrorist watch list—20 or 30 who shouldn't be there and they have the right to appeal and correct it; I have done it for constituents—then we should let the other thousands who belong on that watch list and who present a danger to America buy guns? It makes no sense.

I ask my friends on the other side of the aisle: Why should terrorists like the ones who perpetrated the heinous attack in Paris or the ones who did in San Bernardino be allowed to buy a gun? No red herring argument will work. This is plain common sense at a time when we need common sense, and it should not be a partisan measure. Guess who introduced this idea originally? Not Barack H. Obama but George W. Bush in 2007.

The vast majority of gun owners may have a right to have a gun, and I would protect their right to have a gun if they are not felons or adjudicated mentally ill or spousal abusers; therefore, everyone is for it. The other side says no. So I hope now that it has become—

The PRESIDING OFFICER. The time of the Senator has expired.

Mr. SCHUMER. I ask unanimous consent for 30 additional seconds.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. SCHUMER. Now that it has become clear since our last vote that the two in San Bernardino have terrorist ties, I hope when Senator MURRAY propounds the unanimous consent request, the other side will support it.

I yield the floor.

The PRESIDING OFFICER (Mr. FLAKE). The Senator from New Hampshire.

Mrs. SHAHEEN. Mr. President, I come to the floor to join my colleagues because I also believe we should keep guns out of the hands of terrorists. I don't think that applies to law-abiding citizens, but I think it does apply to terrorists.

I have been a strong supporter of the Second Amendment. In New Hampshire, we have a rich tradition of safe and legal firearm ownership. We have a rich tradition of hunting and sportsman's activities. But like most Granite Staters, I also support pragmatic and sensible ways to keep guns out of the hands of dangerous people who would threaten this country, while also protecting the rights of law-abiding citizens. That is what we are discussing here today.

We have put forward commonsense legislation that adheres to a pretty simple principle: If you are not allowed on a plane because you are on a no-fly list, because you are suspected of threatening the country, then you should not be allowed to buy a gun.

I want to repeat what Senator SCHUMER said because I think people don't think that is real. They think: Oh, well, if you are on the no-fly list, you are not going to be able to buy a gun. But according to the Government Accountability Office, between 2004 and 2014, suspected terrorists attempted to purchase guns from American dealers at least 2,233 times that we know of. In 2,043 of those cases—2,043—91 percent of the time, those suspected terrorists succeeded. That is unacceptable, and it is time we close the loophole that allows suspected terrorists to purchase guns.

After the horrific tragedy last week that was carried out by radicalized individuals in San Bernardino, it is clear that we need to be doing more to prevent violent attacks inspired by ISIS here at home. Closing this loophole in our gun laws is a commonsense thing that we can do today.

I have heard concerns that the legislation we have proposed doesn't allow for adequate due process for those on the list, but that is just not correct. The Department of Homeland Security has a process in place for removing a name from the no-fly list. As Senator FEINSTEIN, the author of the legislation, has noted, the FBI office that handles the firearm background check system must provide a reason for a denial upon request. Individuals who are listed then have a right to correct any inaccurate records in the background check system. So there is a process in place for people who are wrongfully on that no-fly list to be able to remove their names.

I would ask those who oppose this bill: If the no-fly list is not good enough for keeping guns out of the hands of terrorists, why is it worthwhile for protecting commercial airline flights from terrorists? The reasoning is inconsistent.

The PRESIDING OFFICER. The time of the Senator has expired.

Mrs. SHAHEEN. Mr. President, it is time to come together in the interests of national security to pass this bill to close this loophole in our Nation's gun laws.

The PRESIDING OFFICER. The Senator from Connecticut.

Mr. BLUMENTHAL. Mr. President, we talk in this Chamber every day about the threat of terrorism and many associated terrorist threats with airplanes and explosives, but we have seen in recent horrifying events in Paris and in San Bernardino how much tragic carnage can be wrought by a small number of people using firearms designed for war. They are using assault weapons that have the purpose to kill and maim human beings—no other purpose. For me and for the American people, common sense says a person too dangerous to be permitted on a plane is too dangerous to be permitted a gun. No fly, no gun. No check, no gun. That ought to be the rule. It is a commonsense rule.

When I talk to people in Connecticut and they say to me ''Why didn't the Senate approve that rule?'' there is no commonsense explanation. The reason given by colleagues on the other side that there is some due process violation is nonsense. I hesitate to say it is that frivolous, but it is because, No. 1, there is a right to challenge the designation on the no-fly list through the Department of Homeland Security, which has to provide reasons and an opportunity to challenge it. Also, under Senator FEINSTEIN's bill, there is an additional safeguard to constitutional rights because it can be challenged through the Department of Justice, which is required to establish an administrative process and then an appeal—a right of appeal to the Federal courts. Anybody denied permission to buy a gun has a right of appeal. So the rule no-fly, no gun is based on common sense and legal, constitutional rights.

No right, in fact, is absolute. Whether it is the First Amendment or any other right, there is the guarantee in the Constitution that there will be reasonable restrictions, when necessary, to protect the public interests, and here is a case of the public interests clearly deserving this protection. If there are problems with any individual being on the list, challenge it, but clearly having to wait 72 hours for that check and for the denial of permission to go forward is unreasonable.

I urge that we move forward with this commonsense protection for the public. I am hard-pressed to think of a more clear and staggering example of the gun lobby's influence than the defeat of this bill.

Plainly, the vote last week showed that the gun lobby unfortunately still has a staggering stranglehold on this process. When it comes to law enforcement, they are on our side.

I urge our colleagues to heed this reasonable request: No fly, no gun. If you are on that no-fly list, if you are too dangerous to fly and to board a plane, the Constitution says this reasonable restriction should be adopted.

The PRESIDING OFFICER. The time of the Senator has expired.

The Senator from Minnesota.

Ms. KLOBUCHAR. Mr. President, I ask unanimous consent to speak for 7 minutes. I understand that wasn't in the original request.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. KLOBUCHAR. Mr. President, when I was a prosecutor, we had one straightforward goal: Convict the guilty and protect the innocent. To me, that simple mission still holds true. We must make our world safer by rooting out evil in our midst, while still protecting the rights of people who mean no harm. Those 14 people in San Bernardino, that American aid worker killed in Mali, those innocent families whose plane exploded over Egypt, and those young people killed and maimed in Paris deserve nothing less.

That means, of course, taking out evil at its roots, increasing our efforts, and leading an international coalition against ISIS, and it means keeping our homeland safe. Part of that is tightening the Visa Waiver Program, and some of it is the work that must be done on encryption. But there is one commonsense way to get at this terror that I join my colleagues in supporting today—commonsense action to close a dangerous loophole that allows suspected terrorists to illegally buy guns in the United States.

Incredibly, current U.S. law does not prevent individuals who are on terror watch lists from purchasing guns. A total of 2,233 people on the watch list tried to buy guns in our country between 2004 and 2014, and more than 2,000—or 91 percent of them—cleared a background check according to the information from the Government Accountability Office.

I am a cosponsor—and have been before these tragic events of the last few weeks—of Senator FEINSTEIN's bill to close this loophole. During last week's budget debate, I joined 25 of my Senate colleagues in offering an amendment that would also have stopped these dangerous individuals from buying firearms and explosives.

Passing legislation to ensure that suspected terrorists cannot buy guns has bipartisan support in the House of Representatives, where Republican Congressman PETER KING of New York has long advocated for this change.

As we work to fight terrorists abroad, as we work to stop the recruitment in our own country—which I know well from my own State of Minnesota, where we have over a dozen cases and indictments against those who were trying to go to fight with ISIS and others who were going to fight with al-Shabaab—we have been very aggressive in going after those cases as well as working to prevent recruitment from occurring in the first place.

This is all a piece of a very difficult puzzle, but to close our eyes and say that people on a terror watch list can go out and buy a gun is wrong. We need to do everything we can to ensure that those suspected of terrorist activities cannot buy guns in the United States. I am hopeful the Senate can come together to advance this commonsense national security measure to keep lethal weapons out of the wrong hands.

Thank you, Mr. President.

I yield the floor.

The PRESIDING OFFICER. The Senator from Connecticut.

Mr. MURPHY. Mr. President, I am here to join my colleagues in our call to bring for debate and vote on the Senate floor a measure that is supported, I would argue, by probably 95 to 99 percent of my constituents, and that is the simple idea that if you are on a terrorist watch list, if you are suspected of being involved in terrorist activities, you shouldn't be able to purchase a gun. I will be asking for a unanimous consent agreement in order to move this debate to the floor.

Here is why it matters. What we know right now is that over the last 12

months ISIS has lost about 25 percent of their territory in Iraq and Syria. That is not good enough, and hopefully we will be able to join together to put even more pressure on the so-called caliphate, to shrink it down eventually to elimination. But the growth of ISIS is dependent on two narratives. One is a narrative that the so-called caliphate is growing, and second, the narrative that the East is at war with the West, that the Muslim world is at war with the Christian world. As the first narrative becomes less powerful, the second one becomes even more important. So, as shocking as Paris was, as shocking as San Bernardino was, it is not surprising in the respect that these attacks outside of Syria and Iraq are now becoming more important, more necessary to this terror organization in order to perpetuate this second set of mythology around the Islamic world being at war with the Christian world.

Now is the moment that Republicans and Democrats have to come together around hardening our country from potential attackers and potential attacks and recognize that because these attacks may be more important than ever before to the future expansion of ISIS, we have to take steps to make sure they don't occur. One of the simplest ways we can do that is embodied in Senator FEINSTEIN's piece of legislation. Let's just say together that those who are on the terrorist watch list—and this is a list you get on if you have reason for the FBI or other law enforcement to believe you are affiliated in some way, shape, or form with a terrorist organization. You may not have committed a crime yet, but you have had communications or affiliations with terrorist organizations. Let's just agree that people on that list should by default be prohibited from buying guns.

Importantly, the bill has in it provisions that would allow for those individuals to get off that list, to be able to say that they were put on it mistakenly. But let's say as a default premise that if you are on a terrorist watch list, you shouldn't be able to purchase a gun.

Recent polling tells us that the vast overwhelming majority of Americans support this law. In addition, the vast overwhelming majority of American gun owners support this law, in part because they have seen statistics. It bears repeating. My colleagues have talked about these numbers, but they really are stunning.

Over the last 10 years, someone on the terrorist watch list has attempted to purchase a weapon 2,223 times. In 2,043 of those instances, they were successful in purchasing the weapon, taking it home. That is a 91-percent success rate. It may be that 1 or 2 of those 2,000 shouldn't have been on that list, but this legislation gives them the power to contest that and to get off that list eventually, as it should. But let's not live in a fantasy world in which the majority of people on that list shouldn't be there. The list isn't foolproof, but the vast majority—95 percent, 99 percent—of those on the terrorist watch list are there with reason, and they shouldn't be able to walk out of a store with a weapon. That is why three-quarters of gun owners and 90 percent of Americans support this legislation.

While today it has become partisan—Republicans are standing almost in lockstep against a bill that stops terrorists from getting guns—historically this has been bipartisan. This was initially proposed by President Bush and then-Attorney General Alberto Gonzales. Let's make it bipartisan again. Today on the floor of the Senate, let's decide that we are going to have a debate on this and that we are going to bring it for a vote because that is where the majority of our constituents are. They want us to take steps together to stop terrorists from getting guns.

The PRESIDING OFFICER. The Senator's time has expired.

Mr. MURPHY. Mr. President, I ask unanimous consent that the Judiciary Committee be discharged from further consideration of S. 551 and the Senate proceed to its immediate consideration; I further ask that the bill be read a third time and passed and the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Is there objection?

The majority whip.

Mr. CORNYN. Mr. President, reserving the right to object, would the Senator modify the request to include the Cornyn substitute amendment which is at the desk?

The PRESIDING OFFICER. Does the Senator so modify his request?

Mr. MURPHY. Mr. President, reserving the right to object, it is my understanding that this substitute would require the Federal Government to go to court in order to stop someone on the terrorist watch list from purchasing a weapon. As a default, we should all agree that if you are on the terrorist watch list, you can't walk out of a gun store with a gun and that it simply shouldn't be incumbent on the Federal Government to go through a court process in order to stop you from doing that. If you shouldn't be on the list, there are ways you can get off the list. But there is absolutely no reason to delay the process of stopping one of these would-be terrorists from getting a gun by requiring a complicated court process every time someone on the terrorist watch list walks into a gun store. For that reason, Mr. President, I object to the motion to modify.

The PRESIDING OFFICER. The majority whip.

Mr. CORNYN. Mr. President, I am astonished by the proposition of our friend the Senator from Connecticut that you can be on a secret watch list by the Federal Government, and just by virtue of this secret listing of an individual on a government watch list, you can be denied some of your core constitutional rights without any necessity of the government establishing probable cause or producing any evidence that would justify the denial of a core constitutional right. I guess if it is good enough to take the government's word by this list without proof or showing of probable cause to deny a citizen their constitutional rights under the Second Amendment, then I guess that is good enough to deny a citizen's right to worship according to the dictates of their conscience, freedom of speech, freedom of association, and all of the other rights enumerated in the Constitution. It is an outrageous proposition.

I would say to my friend, if these people on this government watch list are truly dangerous, why isn't the Obama administration and the Obama Justice Department indicting them, taking them to court, trying them, and convicting them of crimes? Instead, you have this secret watch list, without any proof, without any evidence.

I would just say that the Senator has mischaracterized the amendment which I proposed last week and which I have now offered by unanimous consent.

What would happen is, if an individual on the watch list goes in to purchase a gun, there would be the National Instant Criminal Background Check System, which would then access the watch list. If the Department of Justice was worried, based on that notice, that somebody was attempting to buy a gun, they could intervene for 72 hours to stop the individual from purchasing the gun. If they were further worried about this individual, they could go to court and, before a Federal judge, produce evidence to justify the detention of that individual to take them off the street. This is a complete response to the concerns raised by our friends across the aisle.

But I will tell you what is really motivating all of this. First of all, the Feinstein amendment which was offered last week was a complete substitute to the ObamaCare repeal bill that we voted on and passed last week. As such, this was a surreptitious means to try to defeat our ability to repeal the abomination known as ObamaCare, which has only a 37-percent approval rating, and our colleagues across the aisle knew that. Under the Senate procedures, a complete substitute to the reconciliation bill that we passed last week would have been accomplished if the Feinstein amendment had been agreed to.

But they went even further and are trying to distract the American people from the fact that the President of the United States and Commander in Chief has absolutely no strategy to deal with the threat of ISIS here in the United States. I presume the immediate motivation was what happened in San Bernardino, the terrible tragedy, but our colleagues across the aisle are trying to capitalize on that particular

tragedy in order to justify this unconstitutional attempt to deny American citizens their core constitutional rights without any proof and without any evidence.

I would just add that if our friends across the aisle think this watch list is so perfect and so infallible, they ought to read an editorial that was produced by the New York Times in 2014 where the American Civil Liberties Union and others objected to the watch list as being a secret government list without any evidence or any proof. They cited a 2007 audit of the 71,000 people on the government watch list and noted that half of those 71,000 were erroneously included in the watch list.

So we all understand what is going on here. This isn't about finding solutions to real problems; this is about trying to change the subject and to distract the American people from the fact that the President and this administration have absolutely no strategy to deal with the threat of ISIS and the President tells us merely to stay the course. So I understand what is going on.

I also would say that the other main purpose of our friends across the aisle, other than to defeat our ability to repeal ObamaCare, which we successfully did in the Senate last week, is to create a ''gotcha'' moment for Senators and candidates who are running in 2016. Already, the Senator from Connecticut has appeared on national news shows, the President of the United States in his weekly speech to the Nation, and the Senate Democratic leader have already misrepresented what was in the Cornyn substitute to the Feinstein amendment last week to suggest that people who voted against the Feinstein amendment really, really wanted to make sure that terrorists got guns. That is an outrageous accusation, and it is as false as it is outrageous.

So I think it is pretty obvious what is going on here. This is an effort to undermine our ability to repeal ObamaCare. It is an effort to distract from the fact that the President of the United States, the Commander in Chief, has no strategy to defeat ISIS. In fact, the Democratic leader said yesterday that really what we need is an ISIS czar. An ISIS czar? I thought that is the job of the Commander in Chief, the President of the United States, to fight and win the Nation's wars and to keep us safe here at home. Give me a break. Then this foolish idea that we ought to simply take the Federal Government's word without any proof or any necessity of producing evidence in a court of law and meeting some basic minimal legal standard before we deny American citizens their core constitutional rights is just outrageous.

So, Mr. President, I think it is pretty obvious what is going on here, and I am happy to have the American people render their judgment. For that reason, I object.

The PRESIDING OFFICER. Objection is heard.

The Senator from Connecticut.

Mr. MURPHY. Mr. President, I ask unanimous consent to speak for 5 minutes.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. MURPHY. Thank you, Mr. President.

The Senator is correct that last week Senate Democrats thought that it was more important to talk about terrorism than it was to talk about the repeal of the Affordable Care Act for the 16th time in the U.S. Senate, 55, 60 times in the House of Representatives. We did think it was more important last week to talk about stopping terrorists from getting weapons. I am sorry we didn't find that bipartisan consensus last week.

What we are talking about here today is a different threat than we have ever seen before, and what we want to do is to stop terrorism before it happens.

The Senator from Texas is right that many of the individuals on the terrorist watch list have not committed a crime, but in order to get on the terrorist watch list, you have to have been in communication with those who are trying to create radical jihad here in the United States. By denying those individuals from getting a weapon, you are serving to prevent a terrorist attack from happening.

Why would we wait until after the terrorist attack has occurred in order to stop that individual from buying a gun? It is too late at that point.

This bill includes provisions to get off that list if you are not on it, so it is perfectly observant of our tradition of supporting the rights of law-abiding citizens to buy and purchase a weapon. But to suggest that the only pathway to stopping an individual from buying a weapon is a criminal prosecution when we know there are people right now in the United States who are in contact with radical ideologies and may be contemplating attacks against the United States misunderstands the way in which we are going to prevent future terrorist attacks from happening in this country.

This notion that those of us who want to change the law in order to better protect Americans are capitalizing on a tragedy is ridiculous and it is insulting, frankly. There are a lot of people who say: Well, when it comes to guns, you can't talk about policy changes right after a mass shooting.

On average, there has been a mass shooting every single day in this country. If you had to wait 24 hours or 48 hours to talk about strategies—such as preventing terrorists from buying guns—that would keep this country safe after a mass shooting, then you would never talk about ways to keep this country safe because every day there are mass shootings separate and aside from the 80 people who die each day from the drip, drip, drip of gun violence all across this country.

I don't think any of us mean to suggest, as the Senator from Texas said, that those who oppose this bill, which is supported by three-quarters of American gun owners and 90 percent of Americans, are rooting for terrorists to get guns. That is not what I am saying. What I am saying is that those who oppose this are more concerned with protecting the rights of potential terrorists than they are with protecting this country. That is what we are talking about.

We are worried about the rights of people on the terrorist watch list more than we are about taking steps to protect this country. What we are talking about is a temporary inconvenience. If somebody is on this watch list who shouldn't be—and it is a very small number—then through this legislation they have a means to get off that list. They have to wait a couple of days, maybe a couple of weeks, in order to buy a weapon. A tiny number of people who are inconvenienced is the cost; protecting the country from a potential terrorist attack is the benefit. That is a trade that my constituents would take in a heartbeat.

I am sorry that we aren't able to proceed with debate on this bill, but I think I can speak for my colleagues that we will be back on the floor in the days, the weeks, and the months to come to continue to ask for a vote on simple legislation to make sure that potential terrorists cannot get their hands on dangerous life-ending weapons.

I yield the floor.

RECESS

The PRESIDING OFFICER. The Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 12:48 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. PORTMAN).

STUDENT SUCCESS ACT—CONFERENCE REPORT—Continued

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. REED. Mr. President, I rise to support the passage of the bipartisan Every Student Succeeds Act. I commend Chairman ALEXANDER, Ranking Member MURRAY, and their counterparts in the House, Chairman KLINE and Ranking Member SCOTT, for their commitment to finding common ground and a path forward on this critical legislation.

When President Johnson signed the Elementary and Secondary Education Act into law 50 years ago, he noted that ''from our very beginnings as a nation, we have felt a fierce commitment to the ideal of education for everyone. It fixed itself into our democratic creed.''

Yet many communities today across the Nation, including my home State of Rhode Island, are still wrestling with how to address large achievement

gaps based on wealth, race, ethnicity, and disability status. Underlying the achievement gaps we see are gaps in opportunity. We need to ensure our students have access to critical resources for learning, strong teachers, counselors, and principals, a well-balanced program of study that includes arts, humanities, and environmental education, and safe, healthy schools equipped with libraries, technology, and science labs. We also need to support and promote greater parental engagement. These are the issues I have focused on for many years, and I am very pleased that the Every Student Succeeds Act makes important improvements in all of these areas.

This legislation will replace the badly flawed and increasingly unworkable No Child Left Behind Act with a new framework—one that stays true to the transparency and focus on closing achievement gaps that were the hallmarks of No Child Left Behind while eliminating the one-size-fits-all approach to school improvement and allowing States to develop more holistic and robust accountability systems that move beyond test scores as the sole measure of school success.

Increasing accountability for resource equity was the goal of the first bill I introduced this Congress—the Core Opportunity Resources for Equity and Excellence Act. I worked with Senators BALDWIN, BROWN, and KIRK to push for its provisions on the Senate floor, and I am pleased the conference report includes stronger measures to require that school districts address resource inequities in schools identified for comprehensive support and improvement than were even in the bill we passed initially in the Senate.

The original Elementary and Secondary Education Act recognized the vital role school libraries play in supporting student success, and this is an area I have worked on during several of the past reauthorizations of this law. Senator COCHRAN and I introduced the Strengthening Kids' Interest in Learning and Libraries—or SKILLS—Act to ensure that Federal resources continue to support student access to effective school library programs. The Every Student Succeeds Act includes key provisions from our legislation, including authorizing grants for high-need school districts to support effective school library programs and including support for such programs in school district level title I and professional development plans.

In addition to school libraries, children need to have access to books in their homes from a very early age. Senator GRASSLEY and I introduced the Prescribe A Book Act to help address this issue, and I am glad key provisions of that legislation are included here.

We know teachers and principals are two of the most important in-school factors related to student achievement. It is essential that teachers, principals, and other educators have a comprehensive system that supports their professional growth and development, starting on day one and continuing throughout their careers. Senator CASEY and I introduced the Better Education Support and Training Act to create such a system. Again, I am pleased that the Every Student Succeeds Act includes many of the provisions of our legislation, particularly the focus on equitable access to experienced and effective educators.

However, I remain concerned that the failure in this legislation to define ''inexperienced teacher'' could mask inequities and limit the usefulness of the reporting and that some of the provisions related to educator preparation could lower standards in our highest need schools. Soon I will be introducing legislation to strengthen educator preparation and ensure that teachers in our high-need schools are profession-ready.

The Every Student Succeeds Act also supports access for all children to a well-rounded education, including environmental literacy, as I proposed in the No Child Left Inside Act. Family engagement is another critical area this bill addresses. This legislation will support more meaningful, evidence-based family engagement, encourage school districts to dedicate more resources to these activities, and provide a statewide system of technical assistance for family engagement—similar to the Family Engagement in Education Act I introduced with Senators COONS and WHITEHOUSE.

Chairman ALEXANDER and Senator MURRAY have demonstrated extraordinary leadership in crafting this legislation and steering it through an open and inclusive process. This bill is an important step forward, and I encourage all my colleagues to support it. Moreover, I hope this spirit of bipartisanship and compromise will also translate to the appropriations process and result in robust resources to implement the new and vastly improved law.

Mr. President, I also thank Senator COLLINS for graciously letting me go ahead.

I yield the floor.

The PRESIDING OFFICER. The Senator from Maine.

Ms. COLLINS. Mr. President, I rise in support of the bipartisan Every Student Succeeds Act. This is landmark legislation that would reform and reauthorize the Elementary and Secondary Education Act, also known as No Child Left Behind. As a member of the Health, Education, Labor, and Pensions Committee, and as a member of the conference committee that resolved the differences between the two bodies' versions of their education reform bills, I want to particularly applaud the leadership of Chairman ALEXANDER and Ranking Member MURRAY for doing a truly extraordinary job in putting together the bipartisan, bicameral reform bill that is before us today.

Congressional action to fix the serious flaws with No Child Left Behind, while preserving the valuable parts of the law, is long overdue, but that day has finally arrived. NCLB was well-intentioned, and its focus on the education of every child and greater transparency in the performance of our schools were welcomed reforms, but some of the law's provisions were simply unachievable and thus discouraging to teachers, parents, administrators, and students alike.

The current system of unattainable standards and a patchwork of State waivers has led to confusion about Federal requirements. High-stakes testing and unrealistic 100 percent proficiency goals do not raise aspirations; instead, they dispirit those who are committed to a high-quality education for our students.

The Every Student Succeeds Act returns much needed flexibility to the State departments of education and to local school districts. The bill would remove the high-stakes accountability system that was simply proven to be unworkable under No Child Left Behind. Instead, the bill would empower States to set the goals for their schools and students and design ways to improve student achievement. The bill would also eliminate the burdensome, overly prescriptive parts of No Child Left Behind, such as the definition of a ''highly qualified teacher,'' which is a perfect example of something that sounds great but in fact proved unworkable in many of the small and rural schools in my State where teachers are called upon to teach a wide range of subjects.

The Every Student Succeeds Act would also reauthorize the Rural Education Achievement Program, known as REAP. I coauthored this law with former Senator Kent Conrad back in 2002. Students in rural America should have the same access to Federal grant dollars as those who attend schools in larger urban and suburban communities. Most Federal competitive grant programs, however, favor larger school districts because they are the ones that have the ability to hire grant writers to apply for those grants, even though that extra money may be needed more by a small rural school. As a result, rural school districts often had to forgo funding because they simply lacked the capacity to apply for the grants. That is the problem the Rural Education Achievement Program Act was intended to solve, and it has provided financial assistance to both schools and districts to help them address their unique local needs.

This program has helped to support new technology in classrooms, distance learning opportunities, and professional development programs, as well as an array of other activities that benefit students and teachers in rural schools. Since the law was enacted in 2002, at least 120 Maine school districts have collectively received more than $42 million from the REAP program. When I talk to those small Maine school districts, they have been enormously creative in using REAP money

to improve the education of their students. They have told me that without the law that Senator Kent Conrad and I authored back in 2002, in many cases they would not have been able to introduce technology into the classroom, to further professional development for their teachers or to provide special enrichment activities for their students. That law has been a real success, and I am delighted that this bill reauthorizes it.

I also want to highlight that the final version retains a Senate provision authorizing a pilot program that I worked on with several of my colleagues to require the Secretary of Education to allow seven States to designate alternative assessment systems based on student proficiency and not just on traditional tests. Such systems can give teachers, parents, and students a much fuller understanding of each student's abilities and better prepares them for the college or career path of their choice. The Federal Government should cooperate with States and school districts that are designing brand new assessment systems, and this pilot program is an important step in that direction.

Providing a good education for every child must remain a national priority so each child fulfills his or her full potential, has a wide range of opportunities, and can succeed in an increasingly competitive economy.

From having visited more than 200 schools in my State, I know this legislation will be welcomed indeed. The Every Student Succeeds Act honors these guiding principles while returning greater control and flexibility to States and local school districts, where it belongs. I urge all of my colleagues to support this landmark legislation.

Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. FLAKE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

WASTEFUL SPENDING

Mr. FLAKE. Mr. President in the opening scene of ''Star Wars: Return of the Jedi,'' Darth Vader pays an unexpected visit to the construction site of the new Death Star. Of course it was behind schedule and probably overbudget. The commander in charge first claimed that there was no delay, and then he said to Darth Vader that it would be impossible to meet the schedule without more resources. Darth Vader warned the commander that the emperor was ''much displeased'' with the apparent lack of progress, noting that ''the emperor is not as forgiving as I am.''

Government projects being overbudget and behind schedule or just out of this world are not just a problem for the emperor in that galaxy far, far away; they are a problem right here on Earth.

Our own space agency, NASA, can no longer even launch astronauts into orbit, yet NASA is spending $1.2 million to study the impact of microgravity on sheep. NASA is also spending $280,000 to develop plans to build a cloud city on Venus. It is strikingly similar to the cloud city that was featured in ''Star Wars: The Emperor Strikes Back'' where Han Solo was captured in carbonite.

The National Science Foundation is spending $2.6 million in part to design sculptures that would raise awareness of drought and harvest dew, much like the moisture vaporizers on Luke Skywalker's home planet of Tatooine.

The Pentagon is spending $2 million to teach robots how to play jazz and $2.5 million in part to create a robot lobby greeter. These are not the droids taxpayers were looking for.

These are just a few of the examples of projects featured in ''Wastebook: The Farce Awakens,'' which I will release today. This is a spoiler alert, so if you don't want the plot to be ruined, you may want to tune out right now.

Let's walk through some of these other ''Wastebook'' entries. They include $1 million to put monkeys in hamster balls on a treadmill. A couple of years ago, Senator Tom Coburn famously found the example of the study of shrimp on treadmills underwater, but I think this outdoes it. Now we have monkeys not only on a treadmill but monkeys in a hamster ball on a treadmill—$1 million for that study.

We are spending $5 million to throw parties for hipsters. These parties for hipsters are an attempt—and how we define a hipster is quite a work of art as well—to try to keep them from smoking. They admit that it didn't succeed very well, so they ended up just giving out cash to try to induce hipsters to stop smoking. Good work if you can get it, I guess.

Another $43 million went to build a single gas station in Afghanistan that dispenses a type of fuel—natural gas in this case—that very few automobiles in the country can even run on.

Despite all of the public ballyhooing over budget austerity, Washington didn't come up short on outlandish ways to spend and waste money in 2015. All of the examples in the ''Wastebook'' we have here had to have money spent during 2015.

Unfortunately, there is a lot of talk about the gridlock in Washington, but no matter how bad the gridlock gets or how bad it appears, there is always one area of agreement here between the parties, and that is to spend more money. For example, at the end of October Congress passed a budget deal that cut $3 billion in taxpayer-funded subsidies to private insurance companies that service Federal crop insurance policies. That deal was sold, in part, on the savings generated through the spending cut. Last week, this body voted overwhelmingly to restore all $3 billion of those crop insurance subsidies, which, again, only go to private insurance companies. This was part of the highway bill that came to the floor. So spending that we had cut just a month ago in the budget deal was reversed 36 days later in an agreement that passed even before we passed the original bill to obliterate these savings. So it took Congress only 36 days to go back on these cuts. I am not sure that the Millennium Falcon can pull a 360 with that kind of ease.

Washington equates caring with the amount of dollars spent, but no amount of dollars and cents can make up for the lack of common sense in how millions of dollars of taxpayer money is being spent.

Consider this: We outline in the ''Wastebook'' more than $2 million spent this year by the Agency for International Development, USAID, to promote tourism in Lebanon. Lebanon is the same country that our State Department has warned American tourists not to go to. We are spending $2 million in one agency to promote tourism to a country that another agency, the State Department, says: Please don't go there for tourism. What kind of sense does that make? Suicide bombers have killed more than 60 people and injured hundreds more in the last 2 years there. It is no wonder the State Department is saying don't go, but the Agency for International Development is spending $2 million to say: Please go there for tourism.

The Department of Homeland Security spent $3 million on party buses and luxury coaches to go to the playground of the rich and famous. Taxpayer money is being spent on buses and luxury coaches to go to the playground of the rich and famous by the Department of Homeland Security. How does that make sense?

This one puzzles me. The Department of Housing and Urban Development is spending more than $104 million a year subsidizing the rent of the well-off, including those who make better than six-figure incomes and have millions of dollars in assets, while 300,000 low-income families are on waiting lists for housing assistance. So we are spending $104 million to subsidize those with six-figure incomes to live in public housing while 300,000 people who are truly low income wait on a waiting list. Somebody at one of the local housing authorities was asked why we don't just kick out the people who have incomes far too high to qualify. The answer was revealing. He said: We can't do that because they serve as role models for those who are truly low income in those facilities. Think about that. Those who are fleecing the taxpayers are role models for those in public housing who actually have low income.

As I mentioned before, the Pentagon is spending $2 million to teach robots how to play jazz music. The Department of Agriculture spent $68,000 in foreign food aid to send a group to the Great American Beer Festival to promote beer in Vietnam. So we spent

$68,000 in foreign food aid to have a bunch of people go to the Great American Beer Festival.

The National Institutes of Health spent about $1 million, as I mentioned, on the monkey-on-a-treadmill study. The purpose of this research was to determine if other studies could be conducted of monkeys on treadmills. I think everybody will have to agree that this is totally bananas. I mean, we can't continue to spend money like this.

Many other taxpayer-funded science projects sounded like they were concocted in a frat house rather than a government research agency, like the next example. The National Science Foundation spent $103 million to study if koozies really keep a cool drink in a can cool or if it is just wishful thinking. I think we have had plenty of studies on evaporation and condensation to know what really happens, but these studies were conducted with a koozie in somebody's bathroom or laundry room somewhere. It doesn't really qualify as serious science. Yet we spent $1.3 million on a grant to do just that. You have to watch the video. You have to see it.

The National Institute for Drug Abuse spent nearly $1 million to prove that pizza is as addictive as crack. The result of the study will be a surprise to no one.

The NSF is spending over $1 million on dating studies, including why attractive people date those who are not attractive and what makes those looking for love online ''swipe right'' and pursue a romantic relationship. Why in the world we are allowing the NSF to spend money on dating studies in order to find out why people, like my wife, would date somebody less attractive, like me—I mean, some of these things we will just have to let go and not spend taxpayer money on them.

These price tags are pocket change to the big spenders in Washington who collectively burn through $7 million a minute, as we all know. Nobody can really keep track of how or why some of this money is spent. The purpose for ''Wastebook'' this year—it was created to do our best to hold those accountable who are spending this money.

In his farewell address a year ago, Senator Tom Coburn, who created ''Wastebook,'' challenged every Member of Congress to produce their own ''Wastebook'' and start a real debate about national spending and budget priorities. While it is impossible to emulate or replace Dr. Coburn, he has given us a great example to follow.

As a longtime admirer, former colleague, and friend of Dr. Coburn, I feel it is a great and heavy responsibility to join others, like Senator JAMES LANKFORD and JOHN MCCAIN, in carrying forward the Coburn legacy of stopping wasteful Washington spending and bringing some kind of oversight to this. Colleagues can find the full list of 100 ''Wastebook'' entries on my Web site as well.

As you glance through it, ask yourself if the Federal Government is really being as frugal and as underfunded as it claims to be. Ask yourself: Are we really cutting to the bone? Is there no more fat left to cut? We hear that continually. Sequester-level spending has brought us to the brink so there is just nowhere else to cut.

It is my hope—my only hope—that this report gives Congress something to Chewie on—and the end of bad puns, too, I hope—before debt- and deficit-saddled taxpayers finally strike back at this lunacy.

I commend this ''Wastebook'' to all who will read it. As I mentioned, you can reach it on our Web site as well.

With that, Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Virginia.

Mr. KAINE. Mr. President, I rise in support of the Every Student Succeeds Act. I know we have had one vote on this today already, and we will have another vote tomorrow.

I will begin by applauding Senators MURRAY and ALEXANDER and Congressmen KLEIN and SCOTT for reaching across the aisle and working with their committee colleagues and the Members of both bodies to fixing a long expired and broken law. I think we all understand that education is key to both individual success and to our economic success.

ESSA gives parents, school districts, and States flexibility to close the achievement gaps that the No Child Left Behind helped us explore. ESSA maintains critical assessment requirements, but it also requires schools to track the progress of every child while also allowing States and school districts to set their own goals for improvement and determine what interventions are best when these achievement gaps persist. It invests in early childhood education, it permanently authorizes the Preschool Development Grant Program, and Virginia was one of the first States to receive a challenge grant. The bill recognizes there are factors other than test scores that describe students' success, and that is a significant advance past No Child Left Behind.

I rise particularly because I am proud that a number of provisions that I worked on and that the Presiding Officer worked on were included in the final bill. Let me talk about two of them: Teach safe relationships and career and technical education.

Senator MCCASKILL and I introduced a bill called the Teach Safe Relationships Act that came out of a conversation that I had with students a year ago at the University of Virginia. These students were members of a student organization called One Less, which advocates for survivors of campus rape and sexual assault.

There had been a story in the Rolling Stone magazine about the scourge of campus sexual assault. Many of the statistics were correct, but the story was controversial because it focused on a particular allegation of sexual assault that was later discredited, and Rolling Stone retracted the article.

I sat down with a group of about 30 students—no press, no faculty, no administrators—to talk about the problem of campus sexual assault. It has been a long time since I was a college student, and I wanted to hear them talk about the challenges they face. It was a robust discussion. These students didn't all agree with each other about various points. But the goal was to get a sense from them about what we in Congress could do that would be helpful and what were things that we might want to do that would make us feel good but that wouldn't be helpful.

Many great ideas came out of that discussion, but there was one in particular that grabbed my attention. Students talked about the fact that they wished when they came to college, living away from home for the first time in their lives, that they knew more about issues such as coercion or consent to intimate behavior or especially where to go for help or what to do if you felt like somebody was pressuring you. I kind of naively said to the students: Well, don't you have an orientation about sexual assault? And they said: We do. Here is what it is. It is 15 minutes about campus sexual assault, and it is 15 minutes about not getting too many credit cards, and it is 15 minutes about not drinking too much. Basically, we are new on campus, and it is just not enough.

Then I asked a follow up question: Don't you learn about this in sex ed classes in high school? One of the young ladies in the room said: We get a sex ed curriculum in high school, but it is about reproductive biology, not about behaviors and relationships and strategies and sort of the right and wrong issues. I thought that was really interesting.

So I came back after hearing from them—and, again, I honor these students, because from the idea to the passage, hopefully tomorrow, it has been a year from hearing from them, and now, because of them, there is going to be an important advance in public safety.

What the students basically forced me to do was to come back and analyze the problem of sexual assault. We have been dealing with it in the military. We deal with it on college campuses. We deal with it in the society at large. We can either have strategies that are specific to the military or college campuses or the workplace or society, or we can actually acknowledge campus sexual assault.

Instead of focusing on where it happens, let's focus on when it happens. If you are a young person—let me put it differently. The most likely time in your life when you will be a victim of a sexual assault is age 16 to 24. It doesn't make a difference whether you are in the military or on a college campus or anywhere else. It is at a time in your life when you are kind of new to

adult sexuality issues and kind of grappling with it that you are most likely to be a victim of sexual assaults, and also many perpetrators of sexual assaults are in the same age range.

The students said: What if we had better education in the K–12 space. In February, Senator MCCASKILL and I introduced a bill taking the campus sexual assault problem and trying to do something about it during the K–12 educational timeframe, and we called it the Teach Safe Relationships Act. The bill was rolled into the Senate version of the rewrite of the Elementary and Secondary Education Act, and the final compromise conference report includes it. Provisions are included so that title IV Federal educational funding can now be used specifically for instruction and training on safe relationship behavior among students, and this should help us deal with the issue of sexual assault.

I want to thank the conference committee for including it in the bill. It is my hope that school systems will now take advantage of this title IV funding—most school systems receive it—to prevent sexual assault not just on college campuses but for anybody in that age 16 to 24 age range that is vulnerable.

Second, the Presiding Officer, Senator BALDWIN, and I introduced a number of pieces of legislation dealing with career and technical education that have been included in the bill. The provisions include encouragement to States to use more career readiness indicators in their accountability systems to define what educational success is. This gives the States the opportunity to recognize schools that are successfully preparing students for postsecondary education and workforce tools such as technical skills and college credits. It shouldn't be just about performance on multiple choice tests. If you are getting a validated industry certificate or other measure of success, that should count.

We encourage States and school districts to support the development of a specialized teacher core to help teachers integrate career and technical education into their normal academic subjects. We allow schools to use title IV funds for career counseling, programming, and training on local workforce needs, and for options for postsecondary and career pathways.

Finally, we include CTE in the definition of a well-rounded education. Traditionally, under No Child Left Behind, it was just math, English, social studies, and science. Career and technical education and some other subjects ought to be included in the definition of a well-rounded education.

CTE is an important pathway for students to prepare for the workforce by integrating practical, applied purposes with work-based knowledge and hands-on learning experiences. I am the son of an iron worker and welder. I ran a school in Honduras that taught kids to be carpenters and welders. I believe deeply in the power of CTE. In fact, I see it every day across the Commonwealth of Virginia, just as I know the Presiding Officer sees it every day in the State of Ohio. Carroll County in rural, southern Virginia, right on the border with North Carolina, has a state-of-the-art agriculture CTE program, which I visited this summer, set up with Virginia Tech, as good as any college campus. It not only helps students who want to be farmers, but those students who want to be farmers suddenly find that when they are studying soil chemistry in a CTE lab, their chemistry grades go up as well.

In Ashburn I saw a robotics program in Loudoun County that was successful. In Virginia Beach a CTE program helps students learn how to build houses, training them for construction careers, and the houses they build are pretty impressive.

In closing, this year marks the 50th anniversary that President Johnson signed the Elementary and Secondary Education Act into law. Our Nation's prosperity is dependent upon students' educational success, and this rewrite is incredibly important. I am excited about the reauthorization and these provisions.

Again, I thank Senators MURRAY and ALEXANDER and their staffs, and let me extend thanks to my staff, two of whom are here. Let me extend thanks to my wife, who is the Secretary of Education in Virginia. She sat down with the committee staffs in the Senate to share some Virginia experiences that then factored into the rewrite of the ultimate bill.

It is my hope that this is going to pass with a big bipartisan margin tomorrow. This is a tough, complicated area that was 8 years overdue to be reauthorized because it is so controversial. Yet we found a path forward that is bipartisan, and that tells me we can do it not only on this issue but on other issues as well.

With that, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. CORNYN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

SENATE ACCOMPLISHMENTS

Mr. CORNYN. Mr. President, yesterday I spent a few minutes talking about the accomplishments of the 114th Congress, and what I have discovered is that if we don't talk about them, nobody else does. People have become so cynical about Washington and very distressed in so many ways—and I can certainly understand why—that it is important for us to point out a few of the simple facts. It is not that we have completely turned this battleship around, but we have made this incremental progress under the leadership the American people put in charge last November—the Republican leadership in the House and in the Senate, obviously, with a President of the opposite party.

Under the Constitution, the President still has a vote, he has a veto pen, and he is not irrelevant. But notwithstanding the fact that we have some well-publicized differences with the President, and even among Republicans and Democrats, I think in fairness we have to acknowledge that we have had a pretty good run in the last 11 months or so. I don't want to make this a partisan issue because frankly you can't get anything done in the U.S. Senate or in the U.S. Congress or in the U.S. Government without bipartisan cooperation.

So on the bill we are working on today, the fix for No Child Left Behind, there is the ranking member of the Senate Health, Education, Labor, and Pensions Committee, Senator MURRAY, who has worked hand-in-glove with the chairman, Senator ALEXANDER. We also had the pleasure of working with Senator MURRAY on trade promotion authority and on the first human trafficking reform we have seen in about a quarter of a century. Those are all important pieces of legislation.

I think about the Intelligence Committee and the work that has been done in this Congress on cyber attacks and cyber protection by Senator FEINSTEIN from California, the ranking member, working hand-in-glove with the chairman, Senator BURR from North Carolina.

On the first multiyear highway bill we have had in 10 years, that would not have happened without the leadership of Chairman INHOFE and Chairman HATCH on the Finance Committee but also, I would say, BARBARA BOXER, the Senator from California, and RON WYDEN, the ranking member on the Finance Committee.

We worked together on a number of other things that have not yet gone to the President's desk, such as criminal justice reform. I was invited to come to the White House, along with an ideological spectrum of Senators from the right to the left, to talk about criminal justice reform and how we can find consensus to deal with our criminal justice system and make our prison system no longer just a warehouse for human beings but, rather, a place where, if people want the chance, want the opportunity to turn their lives around, they can begin that by participating in programs that will help them learn a skill, perhaps deal with their drug or alcohol addiction or otherwise prepare them for reentry into civilized society.

So while leadership is important, and this agenda of trade promotion authority, anti-human trafficking, cyber security, the highway bill, criminal justice reform, and now education reform—none of this would have necessarily been on the agenda if our friends across the aisle had been in charge. The fact is, leadership is important, and thanks to the majority

leader and the leadership he has provided, he has set the agenda. But, again, nothing happens here in Washington on cyber security, on human trafficking, on trade promotion authority, on education, on highways or criminal justice reform without working together to find bipartisan consensus.

So it is important that we acknowledge—and in fairness—what has been accomplished. That is not to say we are breaking our arm by patting ourselves on the back or that we think we have solved all the problems. Certainly many of the major differences that existed last year still exist, and we, frankly, have big disagreements with some of our friends across the aisle and with this President on things such as national security, on the effectiveness—or I should say ineffectiveness of the war to destroy ISIS and to deal with the terror threat both abroad and back home. But we also ought to pause and say that where we can find common ground, we are trying to do this on behalf of the American people.

So tomorrow at about 10:45 a.m. we will be voting on an impressive piece of legislation that will bring effective education reform to help our Nation's children, their parents, and teachers. But it is not just about education; as we frequently like to say, it is about an investment in the future of our country because we are talking about equipping the next generation with what they need to succeed in an ever-changing and ever-challenging world.

Back home in Texas, I have repeatedly seen how schools have created groundbreaking, innovative programs for their students to thrive and benefit everyone involved. I know I mentioned some of these programs before, like a camp for middle school students that focuses on science, technology, engineering, and math—what we frequently refer to as the STEM fields—and it included building robots. In other words, learning science can be fun too. I actually think that is what the best teachers do—they make learning fun.

I saw a cutting-edge program at the United High School in Laredo, TX, which took advantage of the proximity of Laredo to the shale gas plays in South Texas. Actually, ninth grade students who were taking science courses were learning the basics of petroleum geology so they would be equipped after they graduated from high school to get jobs in that field, jobs that pay far more than minimum wage. They do that by starting their education and by exposing them to this field in high school and through internships and other training programs.

These programs are good examples of how the local community and some of the differences in the local economy—for example, the proximity of Laredo to the Eagle Ford Shale—can shape education in a way that benefits students and the community, our States, and our country. The important thing to realize is that not all good ideas emanate from Washington, DC. In fact, the contrary is true.

Louis Brandeis, in an often-quoted statement, once called the States the ''laboratories of democracy.'' The fact is, that is true. The States are the place where innovation can occur. You can succeed or fail, as the case may be, and from that we can learn as a nation what the best practices are in education and a whole raft of subjects.

Actually, the work we are doing in criminal justice reform is based on successful reform done in places such as Texas and other States around the country. To my mind, that is the way we ought to legislate in Washington. We ought to try people's ideas out at the State and local level, and if they work, great. Then we may decide they may need to be scaled up and applied more broadly.

What we have seen and the mistake we have seen in the current administration is to make experiments nationwide with a one-size-fits-all. We have seen that in ObamaCare, for example, where all of a sudden the majority and the administration decided to transform one-sixth of the American economy, of course making extravagant promises on what would work, only to find that it couldn't work and didn't work, and thus those promises and selling points ended up not being true.

Again, on the topic of education, many of the things we realize do work have been created with the help of local teachers, leaders, and parents. These communities were able to create programs that flourished because they weren't operating under a Federal Government mandate. In fact, they were freed of Federal interference in developing that curriculum and coming up with something that works.

The bottom line is that this local ingenuity and response to educational needs can often trump ideas coming out of Washington, DC. Frankly, the ideas emanating from here prove to be impractical or ideological in nature. The bureaucracy in Washington, despite even their best intentions, cannot meet the local educational needs of millions of children across a vast and diverse country such as ours.

Our country is simply too big and too diverse to have a one-size-fits-all approach to anything, including education. That is why I am grateful to Chairman ALEXANDER, Ranking Member MURRAY, and everybody who has participated in producing this conference report to a bill that passed the Senate this summer with more than 80 votes. It is called the Every Student Succeeds Act and returns control of education decisions to States and local communities and to parents and to teachers. It does a pretty good job—not a perfect job but a pretty good job—of keeping the Federal Government out of the way.

I would add parenthetically that I think it is important to make the points I am trying to make in these remarks today because I happen to have a social media habit on Twitter and elsewhere, and I see a lot of information being spread that simply is not true about this legislation and other things. That is why I think it is important to stick with the facts and explain to the American people and my constituents back home why I intend to enthusiastically support this legislation.

First of all, this bill allows States to decide the academic standards and curriculum for their own children. This bill ends Federal test-based accountability. It kills the national school board. It keeps the opinions of the bureaucrats—even the well-meaning opinions that are misguided—out of our children's classrooms. Common core has proved to be a very controversial topic. This legislation ends common core and affirms that the States have the responsibility to decide what academic standards they want to adopt and how to measure success.

By giving responsibility back to local communities and the States and parents and teachers, the Every Student Succeeds Act will allow each State and their school districts the flexibility they need to design and implement their own programs and systems according to the needs of their students and to innovate and to help us and the rest of the country learn from their experience.

States such as Texas can decide how to use federally mandated test results to understand how a student performs. This not only relieves the phenomenon known as teaching to the test, but it gives States the added freedom to provide their students with the well-rounded education they need to compete in an increasingly competitive and globalized world.

Put simply, with this legislation, States can decide for themselves what standards, what curriculum, and what accountability measures they want to adopt. I think we will see, as Justice Brandeis said, how those laboratories of democracy work. I daresay those States, school districts, and students who prosper and do well will raise the bar for everyone else because they will have demonstrated what is possible given the freedom and the flexibility to innovate.

Another important element of this bill is that it rightfully limits the power of the Secretary of Education. With this legislation, a Secretary of Education cannot mandate, cannot direct, and cannot control a State or local education agency or require them to change what they teach in the classroom. That is up to the States and up to local school districts, parents, and teachers.

This bill will replace a law in need of reform, it will stop Washington from imposing common core on our classrooms, and it will let those closest to our country's greatest asset—our children—decide how best to provide for their education.

This bill passed the House of Representatives last week with a tremendous bipartisan vote. I hope to see a similar level of bipartisan enthusiasm here in the Senate as well when we vote to pass this conference report tomorrow morning, and I suspect we will.

As I said, this is the product of a lot of hard work by the chairman of the Health, Education, Labor and Pensions Committee—better known as the HELP Committee—here in the Senate. Senator ALEXANDER, the senior Senator from Tennessee, has been the navigator and leader in this legislation, working closely, as I said earlier, with Senator MURRAY from Washington in a bipartisan way to find consensus on an often contentious subject. I know he looks forward to passage of this legislation tomorrow, as I do too, and to having the President sign it shortly thereafter.

As I said at the beginning, you can't do anything here in Congress or in Washington without bipartisan cooperation, but leadership does matter because leaders set the agenda, they set the tone, and they hold people accountable. I would say that under the leadership of Senator MCCONNELL, the senior Senator from Kentucky, the Senate has been able to begin the process once again of solving real problems for the American people, from dealing with human trafficking, to our children's education. I look forward to continuing this progress for the rest of the week and for the rest of the year as well.

I yield the floor.

Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. LANKFORD). The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. HATCH. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. HATCH. Mr. President, I am grateful for this opportunity to offer a few remarks on the Every Student Succeeds Act.

To be honest, I wasn't sure we would ever reach this point, given the often contentious and sensitive nature of the educational debate, but it is only fitting that we have spent so much time and energy trying to get the best bill we can. After all, the future of our Nation depends on it, our States depend on it, our schools depend on it, and our families and children depend on it.

I credit the success of this bill to the diligent work of the chairman and ranking member of the Senate HELP Committee, as well as the chairman and ranking member of the House Education and the Workforce Committee. As a former chairman of this committee myself, I know how difficult it can be to strike a deal that is agreeable to both sides, but our committee leaders have done an outstanding job. I wish to thank them for helping us to reach out and reach a compromise. That is exactly what this bill is, a compromise. While neither side considers it perfect, both parties can agree that this bipartisan legislation will significantly improve the quality of education in our country.

I have met with a wide variety of local education leaders in Utah, and each one I have spoken to supports this bill. This legislation helps fix a broken system that is failing our students. Once we have passed this reauthorization, our work will be far from over, but we will once again be moving in the right direction.

For the past several years, my home State of Utah has sought relief from unworkable provisions in No Child Left Behind through the waiver process, but the waiver process is dysfunctional. It forces States to appeal to the Federal Government to fix a problem created by the Federal Government. As our State superintendent in Utah said, ''Results of the waiver process have not been salutary for education, for developments in administrative law, or for the health of our republic. Reforming and revising this deeply flawed statute has and must be the primary work of our federal delegates with respect to education.'' Today we are answering his plea and the plea of many State and local leaders throughout the country.

I am grateful for the opportunity I have had to work on this bill. I am also grateful for the opportunity I have had to help write many of its provisions, including the Education Innovation and Research Program, which will allow schools, districts, nonprofits, and small businesses to develop proposals based on specific local needs. Funding for this program will be awarded based on demonstrated, successful outcomes flowing from the project. This initiative will help us find other incubators of success. It will also remove limitations on flexibility in exchange for demonstrated outcomes. Money should not be tied to what the Senate or the Federal Department of Energy thinks are good, prescriptive ideas. It should be tied to local innovation and tangible results.

Through this bill, I have also worked to expand technology usage in the classrooms and to equip our teachers with the professional development they need to use technology successfully. Too many of our schools are using outdated or ineffective technological methods and models that are missing critical components of teacher participation and support. Educational technology allows us to personalize learning for students, target where students are struggling, and provide real-time, valuable feedback to teachers so they may adapt their instruction most effectively. I hope we can provide every child access to the same tools and resources and create the individualized learning experiences that we know are critical to success. This bill equips both educators and students with resources they need to succeed.

As the president and CEO of the Salt Lake Chamber of Commerce said, ''This bill empowers willing states to achieve [through] improved early learning and high quality preschool experiences. It also invests in our hardworking teachers with more preparation programs, including those designed to improve literacy, civics education, and STEM education.''

This legislation is a victory both for Utah and for our Nation. The sooner we send this bill to the President and the sooner we can empower our States to help our students achieve their full potential, the better off we are all going to be. I have to say that I think this would be a major watershed bill. Hopefully, we will pass it tomorrow and our elementary and secondary education will greatly benefit from it.

Again, I particularly compliment the distinguished chairman and ranking member for the work they have done on this bill—the hard and effective work they have done on this bill. I am grateful to have the privilege of working with them on the Health, Education, Labor, and Pensions Committee.

I wish to thank everybody who has played a role on this difficult bill. It is difficult for me to see why anybody would vote against this bill because it repairs what has been a very pitiful system under No Child Left Behind.

Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. LEE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. LEE. Mr. President, tomorrow the Senate will vote on the Every Student Succeeds Act—a bill that reauthorizes the Elementary and Secondary Education Act, or ESEA, which is the legislation governing Federal K–12 education policy.

By all accounts, the Senate is expected to pass this bill with a bipartisan majority, and President Obama is of course expected to sign it into law. This would be a serious setback for America's schools, teachers, and students, one that will have sweeping consequences for decades to come, because when we get educational policy wrong, as this bill does and as we have done at the Federal level for so many years, it affects not just the quality of education students receive as children but the quality of life that will be available to them as adults down the road.

The problem is not just the particular provisions of this particular bill but the dysfunctional and outdated model of education on which it is built—a model that concentrates authority over education decisions in the hands of politicians and bureaucrats, instead of in the hands of parents, teachers, principals, local school boards, and State officials.

For the past 50 years, this model has defined and guided the reauthorization of the Elementary and Secondary Education Act, and the bill before us today is unfortunately no exception. Not coincidentally, this central planning model has also failed to produce any meaningful improvements in academic achievement, especially for students from low-income communities. In fact, since 1969, test scores in reading and math have hardly budged for public school students of all ages, even while per-pupil spending has nearly doubled and school staff has increased by more than 80 percent. Yet here we are once again on the verge of passing another ESEA reauthorization bill built on the same K–12 education model that has trapped so many kids across America in failing schools and confined America's education system to a state of stagnant mediocrity for half a century. This is not simply a failure of policy, it is a failure of imagination.

Our 1960s-era, top-down model of elementary and secondary schooling has endured, essentially unchanged and unchallenged, for so many decades that the education establishment has come to take it for granted. For many policymakers and education officials in Washington and in State capitals around this great country, the status quo isn't just seen as the best way but is seen as the only way to design a K–12 education policy today. Even the most creative policy thinking is confined within the narrow boundaries of the centrally planned status quo. The only reform proposals that are given the time of day are those that seek to standardize America's classrooms, enforce uniformity across school districts, and systematize the way teachers teach and the way their students learn in the classroom at every step along the way. So we insist that the most important teaching decisions—about what to teach, when to teach it, and how to assess learning—are made by individuals outside of the classroom and are uniformly applied and reapplied regardless of the particular character and composition of a class in question.

We expect students of the same age to progress through their curriculum and master each subject at exactly the same pace. We assign students to their school according to their ZIP Codes. We allocate public education funds to education agencies and schools—never directly to parents—and manage their use through bureaucratic restrictions and mandates. We evaluate teachers and determine their compensation not on the basis of job performance in the classroom but according to standards that can be quantified, such as the number of years on the job. Student learning is assessed in much the same way, using standardized tests and age-based benchmarks. We never let stagnant educational outcomes or a persistent achievement gap shake our faith in the ability of central planners to engineer and superintend the education of tens of millions of students in America.

These are the fundamental pillars of the status quo model for elementary and secondary education, and the Every Student Succeeds Act leaves them wholly, entirely intact, but schools are not factories, education can't be systematized, and learning can't be centrally planned. Good teachers are successful not because they are following some magic formula concocted by experts in Washington, DC, but because they do what good teachers everywhere have always done in order to advance the learning of their students: They work harder than just about anyone, and they know their class material—the material they teach their students—inside and out. They communicate early and often with each student's parents so they and their students can be held accountable. They observe and they listen to their students in order to understand their unique learning needs and goals and tailor each day's lesson plans accordingly. They evaluate students honestly and comprehensively, assessing whether they have mastered the material, not just figured out how to take a test.

So instead of imposing an obsolete conformity on an invariably varied environment, we should be empowering teachers and parents with the tools they need to meet the unique educational needs of their students and children. Instead of continuing to standardize and systematize education across the entire country, we should be trying to customize and personalize education for every single student.

The good news is, we don't need to start from scratch. We know local control over K–12 and even pre-K education is more effective than the prescriptive, heavy-handed approach of Washington, DC, because we have seen it work in communities all over the country.

For years education entrepreneurs in the States—including my home State of Utah—have been implementing and refining policies that put parents, teachers, principals, and school boards back in charge of education policy, back in charge of curriculum, and back in charge of teaching and testing standards. Perhaps the most popular State-initiated reform is the movement toward school choice, which overturns the embarrassingly outdated and manifestly unfair practice of assigning schools rigidly based on ZIP Codes.

We know a good education starting at a young age is an essential ingredient for economic opportunity and democratic citizenship later in life for each child. We also know America has always aspired to be a place to where the condition of your birth doesn't determine your path in life. So why on Earth would we want to prohibit parents from choosing the school that is best for their children, especially if, as is far too common, their local school is underperforming at the moment.

School choice is one of the most important, locally driven reforms aimed at resolving this fundamental injustice that our current assignment by ZIP Code system has attached to it, but it is not the only one. There are also education savings accounts—or ESAs—which give parents control over the per-pupil education dollars that would have been spent on their child by the school system. There is the recent innovation of course choice, pioneered within my home State of Utah, which brings the same kind of education customization and a la carte choice that have spread on college campuses to elementary and secondary schools. Of course, there is the distinctively American notion that parents, principals, school districts, and State officials have the right and should have the ability to opt out of the most onerous, restrictive, and misguided Federal commands. Whether it is parents who don't want their children wasting dozens of hours each year taking standardized tests or State policymakers who develop local education reforms that are more effective and less expensive than the Federal one-size-fits-all policies, we should support the rights of all Americans to have a say in the education of their children.

The point isn't that there is a better way to improve America's schools, but it is rather that there are 50 better ways or even thousands of better ways. In our increasingly decentralized world, in our increasingly decentralized and complex American economy, there are as many ideal education policies as there are children and teachers, communities and schools. But Washington is standing in the way, inherently, if irrationally, distrustful of any alternative to the top-down education status quo. Under the Every Student Succeeds Act, Washington's outdated, conformist policies will continue to be in the way, which is why I urge all of my colleagues to join me in voting against this bill.

Even if most Senators vote in favor of the failed status quo, I am confident I have the majority of moms and dads in America on my side. I often hear from Utah parents, calling or writing my office to express their support for local control over education. I recently received an email from Kierston, a proud mother of four and the PTA president at her local school, who urged me to vote against this ESEA reauthorization. I thought I would let her have the last word today.

Based on years of experience with the public schools in her community, Kierston warns that maintaining Washington, DC's, monopoly over America's public schools will ''force my three incredibly different children who learn in very different ways into a box where my daughter will be forced to learn things she isn't ready to learn . . . my oldest who is ahead of his peers will be forced to slow down or help teach his peers in a way they don't understand . . . and my third will constantly be in trouble for not sitting still and pestering his peers because he understands quickly and is bored.''

''We need standards, we need benchmarks,'' Kierston wrote, ''but we also need to allow children to learn at their own pace. . . . We need child centered education where children have the ability to go as fast or as slow as they need. . . . Please think about the children of Utah. Vote against [the ESEA reauthorization]. Allow our kids the freedom to learn.''

I yield the floor.

The PRESIDING OFFICER. The Senator from Minnesota.

Mr. FRANKEN. Mr. President, we have been living under No Child Left Behind, or NCLB, for 13 years, and during that time we have learned what about NCLB works and a lot more about what doesn't work. Students, teachers, and parents across the country have been waiting for a long time for us to fix this law. As a member of the ESEA conference committee, I am proud to work on the legislation before us today, the Every Student Succeeds Act, and to have helped to get it this far. I thank Representatives JOHN KLINE and BOBBY SCOTT and Senators LAMAR ALEXANDER and PATTY MURRAY for building the bipartisan foundation that got this bill done and will help to reform our national education system.

The bill, of course, is not perfect, but it is a huge improvement over NCLB. Over the last 13 years, we learned that the one-size-fits-all approach to fixing failing schools just wasn't working. That is why this bill is designed to find a balance between giving States more flexibility while at the same time still making sure States intervene and fix schools where students are not learning.

Over the last several years, starting when I got here, I have met with principals, teachers, students, parents, school superintendents, and other school administrators in Minnesota. These conversations have helped me to develop my education priorities to help improve our schools, our communities, and our Nation's future because that is what this is about. I worked with colleagues on both sides of the aisle to find common ground.

I am pleased that many of my priorities to improve student outcomes and close the achievement gap are reflected in the legislation that is before us today. These priorities include things such as strengthening STEM education, expanding student mental health services, increasing access to courses that help high school students earn college credit, and improving the preparation and recruitment of principals for high-need schools.

I also successfully fought to renew the 21st Century Community Learning Centers Program, which provides critical afterschool learning activities for students.

Another one of my priorities helps increase the number of counselors and social workers in our schools.

My provision to allow States to use computer adaptive tests will go a long way toward improving the quality of assessments used in our schools, will give teachers and parents more accurate and timely information on their students' progress, and will measure their growth instead of what NCLB did. In the beginning, NCLB just measured the percentage of kids who exceeded a certain arbitrary line of proficiency. This will measure every kid and how far they have come because I always thought that a sixth grade teacher who takes a kid from a third grade level of reading to a fifth grade level of reading is a hero and not a goat, as that teacher was in No Child Left Behind.

I was also able to include a new Native language immersion program because I believe language is critical to maintaining cultural heritage and helping Native American students succeed.

In addition, I wrote a provision to provide foster children who get new foster parents to stay in their same school district, when that is in their best interest, and not have to move to another school because very often the one essential and stable thing in their lives as foster children is their friends and teachers at school.

I am very pleased that these priorities have been included in the legislation we are considering today, and I thank my colleagues for working with me on them. These provisions will help hundreds of thousands of students in Minnesota and millions of students across the country reach their full potential.

At the same time, I do have to express my deep disappointment that my measure to help protect LGBT students from bullying and discrimination was not included in the final bill. I will keep fighting to get this critical measure passed into law because I think it is our responsibility here in the Senate, as adults, to protect children.

Finally, I want to note that the Every Student Succeeds Act makes critical investments in early childhood education, which has been a priority of mine for a long time. A quality early childhood education doesn't just start kids off on the right foot, it is also good for our budget. Study after study has shown that for every $1 we spend, we get up to $16 back in the long run. A kid who has had a quality early childhood education is less likely to be in special education, less likely to be left back a grade, and has better health outcomes. The girls are less likely to get pregnant and more likely to graduate from high school, go to college, and get a good job so they can pay taxes, and are much less likely to go to prison. That is why it is such a great investment. It is also a great investment because a 3-year-old child is a beautiful thing.

After working on a bill to replace NCLB for years, I am very pleased that we have gotten this reform effort finished. I thank my dedicated staff, both present and past, who has worked hard to move education priorities forward—Sherry Lachman, Amanda Beaumont, Gohar Sedighi.

Thanks, Gohar.

Once the President signs the Every Student Succeeds Act into law, I look forward to making sure the new law is implemented in a way that will benefit students, teachers, and parents in Minnesota.

I thank the Presiding Officer.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. ENZI. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. ENZI. Mr. President, I rise today to express my strong support for S. 1177, the Every Student Succeeds Act. This legislation sends the responsibility of educating our Nation's students back to where it belongs—with States and local communities.

I wish to commend Chairman ALEXANDER and Ranking Member MURRAY for their work to advance this legislation through a very ideologically diverse HELP Committee, which they did with a unanimous vote. The full Senate then had a vote. That vote was 81 to 17. Then we had a conference committee. We haven't had many conference committees. It was there that we met with the House of Representatives to iron out differences between the two bills, and that passed by a vote of 38 to 1.

It has been a long time since we have had numbers like that record. In fact, it has been a long time since bills went to committee and had the opportunity to be amended in committee, and then went to the floor of the Senate and had the opportunity to be amended on the floor. Of course, it is even more unusual to have a conference committee—because it passed both Chambers—and come up with a 38-to-1 approval of the conference report, which is what is now before us. This is one of those instances where we get to vote for it or we get to vote against it. I am hoping that almost everybody votes for it, just as in these previous votes.

We in Wyoming are very proud of our school system. We are proud of the way we support our students. We are proud of the way we support our educators. We are proud of the way we support our staff. In fact, the Constitution of Wyoming says there will be equal education for every child. We carry that to an extreme. In Wyoming, that means there has to be equal buildings, as well as opportunities, facilities, and teachers. That is run through the courts every once in a while just to make sure it is observed, and it is, and we are proud of our students, our buildings, and the education we provide. We are very proud of the way it helps to prepare our students for what is next and ensures they have the tools necessary to succeed in a rapidly evolving society.

This bill, the Every Student Succeeds Act, ensures that Wyoming teachers and school leaders have the power to

tailor education to meet the needs of all students, even in the most rural and remote communities. Wyoming is the least populated State in the Nation, and we have probably some of the smallest schools. We believe kids shouldn't have to ride a bus to or from school for more than an hour, and as a result, we have some schools that have one student or two students or three students. That is a little different kind of school than most of the Nation has.

For too long now, I have heard stories from teachers, from students, and from parents across Wyoming about the harm inflicted by the prep-for-the-test system that has been in place. That ends with the signing of this bill.

Our Nation's students deserve the opportunity to learn in innovative and creative ways that will stimulate their minds and open their eyes to the countless opportunities we have in this great country. Our Nation's teachers and school leaders deserve the highest levels of support and training to help our students recognize those opportunities and help prepare the next generation. Our Nation's parents deserve the option to choose what educational opportunities are best for their child. This act ensures that all of that can occur by empowering States and local communities to make the decisions they think are best. This is a diverse country. There are a lot of differences among our States. We have some common policies, we have some common laws, but there are still differences.

I am always a little riled when we are compared with some of the other countries around the world on how our students are doing. I have been the Chairman of the Health, Education, Labor, and Pensions Committee before and I did some research into that; I visited some countries to see what their education was like. One of the ways they get better scores on their tests is they kick kids out of school. In India, they guarantee a sixth grade education. They say they guarantee a sixth grade education. They do a cleansing of the schools in fourth grade. They say ''These kids are not participating in their education enough,'' and they kick them out of school. Those kids will make brooms by day and sweep streets at night, and they will earn $1 a day for the rest of their lives. That is it—no opportunity for any advancement. That is in fourth grade, even though they are guaranteed a sixth grade education.

In sixth grade, they have another purge. In fact, those kids will wind up in jobs where they make $2 a day for the rest of their lives, with no opportunity for change. They allow only 7 percent of the kids to go to college. There is tremendous competition that probably makes some difference in their scores. But weeding out kids makes a difference. Thank goodness in this country we don't believe in that. We believe every kid should have an opportunity, and we give them an opportunity as long as we can.

Local school boards are a terrific example of democracy at its finest. In those meetings, individuals in the community can come together to discuss and debate issues related to the education of their youth. It is in those meetings that students can voice their opinions and have a say in their own educational experiences. It is in those meetings that teachers and student leaders can put forth what they think is the best course of action to teach the content in a way that best meets the needs of that community. It is in those meetings that all of those parties can decide how they want to spend educational funds within the budget that the members of that community voted on.

The Every Student Succeeds Act that we will vote on tomorrow gives that power back to the local school boards. It allows issues to be debated and decisions to be made in a room of parents, students, teachers, school leaders, and community members who know best what works for the students. It is one of the purest forms of democracy I can think of, and certainly it is something I think our Founders had in mind in their idea of America and, in particular, their idea of educating our students.

I know there are some people who are going to vote against this bill, and I have asked why. The most common answer is it doesn't go far enough. It goes further than anything that has been done in this Chamber since the Department of Education was founded. This reverses things back to States' rights.

I work around here under the 80-percent rule. I have found that we can talk civilly about 80 percent of the issues. If we stick to that 80 percent, we can be productive. If we go to the other 20 percent—it is 10 percent on each side, Republicans and Democrats—we both have certain things that we would like to see and that we think are right, and we have been fighting over them for decades. But if we stick to that 80 percent, we can be productive. We can find something that we can have some common ground on. I have found that we usually only have 80 percent common ground on any of the issues because, again, there is that 10 percent that each side feels is right and that we would like to do. So the best way to get some legislation done is to leave out some of those things and go ahead and get what we can. This bill does that.

I think it goes beyond 80 percent, incidentally, but we can get the whole 100 percent. The way to do it is to get both sides together and keep them out of the weeds long enough—the old rhetoric they have been arguing about, where they hear a key word and know the answer to it immediately and don't have to listen. If you can get them to sit down and listen and think of a new way to do it, we would get 100 percent because when we come up with that new idea that both sides can grab on to, they both claim it is their idea, and we move on. We are not at that point yet on education.

I commend the Chairman of the committee, Senator ALEXANDER, and the Ranking Member, Senator MURRAY, for coming together on 80 percent of what can get done and working to get it done. The alternative is to get nothing done. We need to get something done. People have been complaining that this law has been unauthorized for years. This is the first chance we have had to actually move forward with education, to move it back to the States where it will be most effective, where those diverse States can make up their minds on what will work best with their students.

Incidentally, most of our States are as big as any of those countries we compete with, with the exception of China, Russia, and India. They are making decisions for their State when they are making their education decisions. That is what this bill will do.

There aren't any perfect bills. I particularly don't like comprehensive bills. ObamaCare was a comprehensive bill. But my idea of a comprehensive bill is that it is so big that people can't understand it, and it is so big that stuff can get shoved in there that nobody will even notice when it is being done. This is one of those bills that has been worked on for a long time. It has been taken carefully in steps and put together so that we can move forward with it.

The question is, Will it work? Yes, it will work. Will it do everything that everybody wants? Hardly anything ever does. This bill will come as close to doing something—as I said, I believe it is the most progress we have had since we got a Department of Education, which is a whole other debate.

I have been proud to support this legislation from its very early stages, and I will continue to support it tomorrow. The responsibility of the education of our Nation's students belongs to States and local communities. The Every Student Succeeds Act ensures that responsibility is given to those entities.

I urge my colleagues to support this legislation, an improvement in education.

Mr. President, I yield the floor.

Mr. ALEXANDER. Mr. President, the conference agreement to replace No Child Left Behind, the Every Student Succeeds Act, takes unprecedented steps to rein in the Secretary of Education and put the power for education decisions back in the hands of parents and State and local officials. By passing this legislation, it clearly becomes Congress' intent that States be solely responsible for the development and implementation of, and decisions regarding, all aspects of their State accountability systems. This is an intentional and deliberate act to eliminate the ability of the Secretary of Education to use regulatory power or guidance to add new requirements or conditions to State systems that are outside of the specific language in statute.

The legislation prevents the Secretary from influencing, forcing, or coercing a State to adopt specific standards in many ways, including the following:

First, officers and employees of the Federal Government—including the Secretary of Education—are prohibited from conditioning the receipt of any funds, through grants, contracts, or agreements on the adoption of any academic standards, including Common Core.

Second, States do not have to submit their standards to the Secretary for review or approval.

Third, the Secretary is prohibited from exercising any direction or supervision over a State's academic standards.

The Secretary is also prevented from using executive authority to create terms and conditions that should be done through the legislative process, including the following:

First, the Secretary is prohibited from adding new requirements through regulations.

Second, the Secretary is prohibited from adding new requirements as a condition of approval of a State plan.

Third, the Secretary is prohibited from dictating what should happen in early education.

Fourth, the Secretary is prohibited from creating new policies through redefining terms or phrases in the law.

Furthermore, the legislation protects States' rights to control their education system by ensuring the Secretary is prohibited from: coercing a State to adopt any particular curriculum or program of instruction; prescribing the long-term goals or measurements of interim progress, or the weights of State-determined indicators, or the methodology for identifying low-performing schools, in the State's accountability system; requiring any specific assessments be used by a State; dictating any particular school support or improvement strategies or interventions; or requiring any measures of teacher, principal, or other school leader effectiveness.

Section 1111(e) clearly states the Secretary may not add any requirements or criteria outside the scope of this act and further says the Secretary may not take any action that would ''be in excess of statutory authority given to the Secretary.'' This section goes on to lay out specific terms the Secretary cannot prescribe, sets clear limits on the guidance the Secretary may offer, and also clearly states that the Secretary is prohibited from defining terms that are inconsistent with or outside the scope of this Act.

There are also provisions in titles I and VIII that ensure standards and curriculum are left to the discretion of States without Federal control or mandates, and the same is true for assessments.

The legislation also clearly lays out congressional intent by including a sense of Congress that States and local educational agencies retain the right and responsibility of determining educational curriculum, programs of instruction, and assessments.

The legislation makes it clear the Secretary is not to put any undue limits on the ability of States to determine their accountability systems, their standards, or what tests they give their students. The clear intent of this legislation restores responsibility for the authority over education decisions back to the States and severely limits the Secretary's ability to interfere in any way.

Ensuring a limited role for the U.S. Secretary of Education was a critically important priority throughout the reauthorization process and this legislation meets that priority. For example, the Secretary may not limit the ability of States to determine how the measures of student performance are weighted within State accountability systems. The legislation does not authorize the Secretary to issue regulations that specify a specific weight or a range of weights that any indicator must fall within when States setting up their system. Any weights or ranges of weight of each indicator will be determined by the State. The Secretary also cannot prescribe school support or improvement strategies, any aspect of a State's teacher evaluation system, or the methodology used to differentiate schools in a State.

Also, the Secretary may not create new policy and requirements by creatively defining terms in the law. Definitively, this new law reins in the Secretary and ensures it is State and local education officials making decisions about their schools.

Under current law, the current Secretary and previous Education officials have exceeded their authority by placing conditions on waivers to States and local educational agencies outside the scope of the legislative language or congressional intent. This legislation prevents the Secretary from applying any new conditions on waivers or the State plans required in the law. The language clearly states the Secretary may not add any new conditions for the approval of waivers or State plans that are outside the scope of the law. This means if the law does not give the Secretary the authority to require something, then the Secretary may not unilaterally create an ability to do that through regulation, approval or disapproval of State plans, binding guidance, or any other means of enforcement.

Finally, this legislation sets up a more inclusive and transparent negotiated rulemaking process, particularly for any regulations related to standards, assessments, or supplement, not supplant requirements in the law. All regulations, if any, issued on these items must adhere to agreements reached by negotiators in negotiated rulemaking. The Secretary may not ignore agreements reached. The legislation also requires an alternative process for regulations if consensus is not reached through negotiated rulemaking, including a review of the time, costs, and paperwork burden of any proposed regulations. Congress will also be given an opportunity to review any proposed regulations for 15 days prior to submission to the Federal Register. Additionally, the public will have 60 days to comment on any proposed regulations. The purpose of these new requirements is for the Department of Education to be more transparent in what burden new regulations will place on States, school districts, and schools. Additionally, by giving Congress and the public the opportunity to explicitly weigh in on proposed regulations, the intent is that the Department will listen to thoughts from people on the ground regarding how they will be impacted.

Mr. LEAHY. Mr. President, tomorrow the Senate will approve landmark legislation to reauthorize the Elementary and Secondary Education Act of 1965.

Since 2001, the failed policies of No Child Left Behind have unfairly burdened students, families, educators, and administrators by holding students accountable for snap-shot academic progress. The overwhelming support in Congress for these reforms will reverse the one-size-fits-all approach to education that did not work for Vermont and so many schools across the Nation. This bill gives States more flexibility to ensure that schools are supporting every student, while maintaining the Federal Government's responsibility to ensure that students everywhere have access to the resources they need for lasting academic success.

Since 2001, I have heard from parents, teachers, students, policymakers, and administrators about the negative impacts of No Child Left Behind. I voted against the legislation as I did not agree—and still do not agree—with a one-size-fits-all approach to education. I was also disappointed with the bill's rigid Federal accountability measures, as I truly believe States and local education agencies deserve flexibility when it comes to how schools operate.

The conference report we will consider today reflects the positive changes to the law that the Senate overwhelmingly supported in July. The agreement restores educational flexibility to the States, while safeguarding student access to resources, regardless of race, gender, financial status, and learning level. I am pleased that the bill takes into account the greater needs of students in rural areas, increases funding for early childhood education programs, and improves school safety measures.

I am especially pleased with the bill's innovative assessment and accountability demonstration authority provision, which will allow Vermont to adopt competency and performance-based assessments that prove far more than how well a student can perform on a test on one given day. And while

States will design their own system to improve struggling schools, the conference agreement also includes Federal safeguards to protect civil rights and to provide resources for students at the greatest risk.

We are 8 years overdue for a rewrite of No Child Left Behind. I am pleased that we have come together, Members on both sides of the aisle, to support the Every Student Succeeds Act. This bill truly reflects the needs of all students, educators, parents, and administrators; and I urge all Senators to support its passage.

Mr. MCCAIN. Mr. President, today I come to the floor to express my strong support for the Every Student Succeeds Act. This legislation is a major step forward in taking the responsibility of educating our children back from Washington and giving it to the States. Senator ALEXANDER and the Republican majorities in Congress have been successful working in with parents, teachers, and school districts in putting together a bipartisan elementary education reform bill that would restore the role of States in creating accountability standards, testing requirements, and other education policies that best fit the needs of students in local public and charter schools.

One of the most important pieces of this bill is that it would effectively end Common Core once and for all by allowing States to develop their own education standards. For far too long, Federal bureaucrats in Washington have tied the hands of States and parents by mandating one-size-fits-all education policies such as Common Core that have failed America's students. Let me be clear: I strongly support education standards that make Arizona students prepared to compete in this global economy. But these standards should be developed by Arizona's State and local education officials in consultation with parents of Arizona schoolchildren. This bill would do just that.

The Every Student Succeeds Act would also end the Federal test-based accountability system that was established by the No Child Left Behind Act. No longer would these required Federal tests be the sole measure of educational success. States will now be allowed to use testing along with other measures of accountability such as attendance, teacher performance, and other student achievement and school performance metrics when developing accountability systems.

In addition to helping take control of elementary education back from Washington, this bill includes provisions that would strengthen charter schools. I am proud of the fact that Arizona is home to some of the best charter schools in the Nation. According to the Arizona Charter School Association, over 190,000 Arizona students have access to more than 600 charter schools, giving Arizona parents more educational choices for their children. I am also proud of the fact that BASIS Charter Schools in Scottsdale and Tucson are the first and third-ranked charter schools in America, according to U.S. News & World Report.

I am also pleased that the Every Student Succeeds Act includes language I offered on the Senate floor in July that would enhance educational choice and expand access to high-performing schools for student in Arizona and across the nation.

Specifically, this provision would let Arizona and other States propose how they could use limited Federal education funds to replicate and expand access to high-performing charter, magnet, and traditional public schools for low-income students—in other words, education options that are proven to provide the best-quality learning environments for Arizona children.

Right now, public funds meant to help low-income students are largely reserved for poor-performing schools, failing the children who are most in need. We must give Arizona and other States the ability to direct these funds to develop high-performing charter, magnet and traditional public schools which have been proven to be successful.

The provisions I offered give Arizona the ability to show how they can do just that, while paving the way to give parents the freedom to choose which schools are best for their kids.

The Every Student Succeeds Act also includes measures that would offer additional support for rural schools in Arizona by providing more flexible use of Federal funding and maintaining the authorization of the Small, Rural School Achievement Program, SRSA, and the Rural and Low Income School, RLIS, program. The bill also helps States support English learners by providing resources to establish strong English proficiency programs to enable these students to meet high education standards.

I am proud of the strong progress that Arizona students are making in the classroom. According to the most recent National Assessment of Educational Progress, NAEP, Arizona students are making significant progress compared to students in other States. In a recent op-ed in the Arizona Republic, former Arizona Superintendent Lisa Graham Keegan and the Foundation for Excellence in Education's Matthew Lander wrote, ''[w]hile the national NAEP news this week was grim, with flat scores in fourth grade reading and declining scores in all three subjects, Arizona students bucked that trend by notching gains in three of the four tests.'' They went on to highlight Arizona's success, stating ''Arizona's charter-school students . . . matched the scores for the highest-scoring states on the 2015 NAEP. On eighth grade mathematics, for instance, Arizona charter students scored in a statistical dead heat with Massachusetts, the highest scoring of the 50 states.''

I am extremely proud of the success we are seeing in Arizona elementary education, but more needs to be done to ensure our students have the best opportunities by increasing educational choice and enabling States and school districts to expand and replicate high-performing schools. Every American has an obligation to help prepare the next generation for the future, and this bill is a step in the right direction. I encourage all of my colleagues to support this bill.

Ms. MIKULSKI. Mr. President, today I wish to talk about the Every Student Succeeds Act.

I want to thank Chairmen KLINE and ALEXANDER and Ranking Members SCOTT and MURRAY for their work in putting together a bipartisan, bicameral framework to reauthorize the Elementary and Secondary Education Act, ESEA. I know that it was not easy, especially in this political climate, but politics were put aside; and children, teachers, and schools were put first.

I am really pleased how this process played out—it was truly a bipartisan effort. I have always believed that one of the pathways to success is restoring regular order, and they did just that. While this bill is not perfect—it is not one that Democrats nor Republicans would have written—it is a step in the right direction towards overhauling and improving the failed tenets of No Child Left Behind.

ESEA was passed 50 years ago to ensure that kids living in poverty would receive the extra help they needed in order to succeed. It was a part of President Lyndon B. Johnson's War on Poverty. It was the first time that the Federal Government really got involved in education. Before then, education was considered a local responsibility, not something for the Feds to meddle in; but President Johnson's vision changed that. He wanted to lift kids out of poverty and give them their fair shot to excel.

Since then, we passed the bipartisan No Child Left Behind Act of 2001, NCLB. While done with the best of intentions, it was deeply flawed. With NCLB, instead of us ''racing to the top,'' we ended up with ''racing to the test'' and excessive testing. NCLB is also bad because it gave us a one-size-fits-all approach out of Washington, despite whether you lived in a big city like Baltimore or in a rural county like Somerset County on the Eastern Shore.

We wanted to get rid of ''race to the test,'' understanding that one size does not fit all, and implement a system that understands we must have Federal guidelines with local solutions and initiatives; then we needed to back up our guidelines with money because school districts were struggling to meet their bottom line.

So I went to work on a bipartisan basis to try and deal with that. My first rule was: do no harm. That is why I beat back the Southern strategy that was going to change the title I formula for funding. Maryland would have lost $40 million—that means every single

school district in Maryland would have lost money. I couldn't let that happen, so I put together a coalition of other Senators to beat that back, and we did just that. Maryland will keep its $40 million. For Baltimore City, they won't lose $6 million. For Baltimore County, they won't lose $6 million. For places like Prince George's County, they won't lose $7 million.

The bill before us—the Every Student Succeeds Act—is good for all of Maryland's 874,514 students. It supports at-risk populations; empowers high quality choice for parents; and strengthens critical programs such as science, technology, engineering, and mathematics, STEM, education, accelerated learning, and afterschool programming.

The Every Student Succeeds Act is good for all of Maryland's 59,315 teachers. Our teachers have to deal with children who have so many problems—whether suffering from a peanut allergy or asthma—and need so much help. That is why I fought to make sure that Federal funds can be used to provide for the coordination of integrated services like vision and hearing screenings and other support services to help improve student academic achievement.

The Every Student Succeeds Act helps all of 1,446 Maryland public schools. While we maintain annual statewide assessments in reading and math, we allow States to develop and implement other mechanisms that reduces overtesting and ''racing to the test.''

In addition to supporting the large-scale changes in the Every Student Succeeds Act, I am especially proud to see that this compromise includes other provisions I fought for. This bill ensures that States continue to measure how students are performing at each level of achievement. This bill will make sure that States find ways to assist school districts in addressing the needs of gifted and talented students. It will also make sure that teachers get the professional development they need and deserve in order to better identify gifted kids.

I am pleased that the bill before us also recognizes the vital role that school nurses play. They truly are a valuable member of a school's education team and should be recognized as such. Because of this bill, schools nurses will now be eligible to receive ESEA professional development funds.

This bill, the Every Student Succeeds Act, ensures that at-risk kids get the support they need in order to succeed. It supports teachers and principals in providing high quality instruction. It supports States and school districts in turning around low-performing schools and closing achievement gaps. This bill is a down payment on our children's future and on our Nation's future.

I urge my colleagues to support the bipartisan progress that has been made here and vote to send a strong bill to the President's desk that will improve our schools and put all of our children on a path to success.

ASSESSMENT SECURITY

Mr. HATCH. Mr. President, I wish to engage in a colloquy with the chairman of the Health, Education, Labor, and Pensions Committee, Senator ALEXANDER, to clarify questions that have arisen since S. 1177 was introduced.

Under the Every Student Succeeds Act, pursuant to section 1201, we authorized Federal funding to provide grant opportunities for States to administer academic assessments and to carry out activities that ensure ''the continued validity and reliability of state assessments.'' Furthermore, under the same provision, we authorized funds to allow States to collaborate with organizations to provide services that will ''improve the quality, reliability, validity, and reliability of State academic assessments.''

I ask the chairman, is it your understanding that the references in section 1201 to activities and services that ensure and improve the ''validity and reliability of state assessments'' were intended to allow funds to be used for test security activities and services designed and utilized to prevent, detect, and respond to testing irregularities and incidents that threaten the validity of assessment results?

Mr. ALEXANDER. Mr. President, the Senator is correct. Student assessments must be designed and administered with a high degree of quality assurance. State assessment results can be used as the basis for critical decisions affecting the lives of students and the funding and operation of schools, and given the significant taxpayer investment for statewide assessments, we must provide States with the flexibility to use funds to preserve and maintain the integrity and validity of these important assessments.

The PRESIDING OFFICER. The Senator from Alaska.

SENATE ACCOMPLISHMENT

Ms. MURKOWSKI. Mr. President, I would like to take a few moments this afternoon to talk about where we are at the end of this year, 2015. There has been a lot of talk about wrap-up, a lot of talk about how we knitted together the outstanding issues before us as a Congress. There is much yet to be done, but I do think it is significant to recognize that there has been good work, there has been substantial and substantive work that has come out of the U.S. Senate this year as the Republicans have led the Senate in the majority.

As we think back at year-end on a series of accomplishments, I think it is important to recognize that the business of the Congress has been productive. Sometimes we get so busy around here that we don't stop to even recall what we did yesterday, much less last week or the week before.

Today we have had an opportunity to almost bring to a close the education reform measure that Senator ALEXANDER from Tennessee and Senator MURRAY from Washington have been working so hard on over this past year. As a member of the HELP Committee, I have been very pleased to work with them as we have attempted to advance meaningful and long-overdue education reforms.

Before I speak specifically to the Every Student Succeeds Act, I would like to rattle off a few of the measures.

Of course we recognize that it was just last week that the highway reauthorization bill moved successfully not only through the Senate but through the House, through the full bodies ready to be signed into law by the President. The 5-year highway reauthorization bill is the longest highway reauthorization bill we have seen in 17 years. That is significant. For a State such as mine that is looking for some level of certainty for projects around the State, that is considerable, and that is a good accomplishment to look back to as a marker of success.

The vote we had last week would roll back some of the many harmful effects of the Affordable Care Act—the Not-So-Affordable Care Act, as I mentioned on the floor last week, saying that for far too many Alaskans, the Affordable Care Act was simply not affordable.

There have been other measures we can look to and acknowledge that we are doing the work of the Congress—moving forward the national defense authorization bill, which the President chose not to deal with the first time around but signed it the second time around.

We were able to move forward several measures related to the regulatory environment we are dealing with, whether it was the Clean Power Plan or the waters of the United States, being able to push back on those very burdensome regulations that I think we recognized—the goals for clean air and clean water are something we all want. We need to make sure that we move in this direction in a way that doesn't burden or weigh down our economy.

The first appropriations stand-alone bill that we have seen move through the Senate in 5 years when we advanced the MILCON appropriations measure—that was also significant.

The committees have been doing great work. In our energy committee, we moved forward an energy reform bill that would help to modernize our energy grid, access to all areas of energy, not only by night but our renewable resources as well. That was an effort which was very bipartisan and enjoyed good, strong support within the committee. We moved it out 18 to 4 and hope to have an energy reform bill before the Senate for consideration early in this next calendar year. We haven't seen energy modernization or an energy reform bill since 2007. Again, it is long overdue but is now teed up.

We have a sportsmen's bill that we moved through committee. The Environment and Public Works Committee is working to advance their portion of those very significant measures that will allow for greater access to our sports men and women and our families

who seek to recreate on our public lands.

These are good things that we are seeing coming out of committees and coming to the floor and moving forward. This is a level of governance that has been good for the body and, even better, will be good for the country.

Mr. President, I would like to speak very briefly about the Every Student Succeeds Act. I know several of my colleagues have come down to the floor. Just a couple minutes ago, the Senator from Wyoming came to talk about the good things we have seen in this education reform bill and celebrate how it ends the national school board by putting more control of our schools in our States' and locals' hands. I think that is worthy of note. For the schools, administrators, teachers, and the parents, that is worthy of celebration.

I am more than pleased that the Every Student Succeeds Act will finally allow our States to judge our schools by more than just the test results and allow our teachers to do what they want to do to teach our kids and engage them in the art and love of learning and not just prepare for tests. We all know our children are more than what can be described in some of these fill-in-the-bubble exercise tests, and our teachers are certainly more than robots that stand in front of a class and follow a script that has been orchestrated from elsewhere.

I tell many Alaskans that I got my political start, if you will, as the president of my son's PTA, our parent teacher association in our local neighborhood school. I came to understand firsthand and in a very upfront and personal way what No Child Left Behind meant not only for my son's school but for the schools across Alaska, an area where you have a lot of geography and not a lot of numbers in terms of population.

NCLB did not work for us as a very rural State. The one-size-fits-all did not work. My son's public school was deemed a failing school in the first year that adequate yearly progress was the standard of measurement. We were dubbed a failing school because we had one subcategory of students where the numbers were so small, but we didn't have enough students show up to take the test on that day. So we all know there were 31 different ways to fail AYP, and little Government Hill Elementary in Anchorage, AK, failed that first year. That is tough as a neighborhood. They were saying: What is wrong with our school? What is wrong with our neighborhood?

Really, there was nothing wrong with our school. There was nothing wrong with our neighborhood. What we had was a directive that came out of Washington, DC—some 4,000 miles away—and it didn't work for us.

I am more than pleased to join with superintendents, principals, and school board members who celebrate Federal bureaucrats being prohibited from dictating standards, assessments, and school ability plans. No more Federal control. No more waivers with strings. No more one-size-fits-all education mandates that never ever fit us in Alaska.

I also place a high value on the fact that this bill recognizes the rights of our American Indian, Alaskan Native, and Native Hawaiian peoples throughout the country. It makes sure they have a greater say in how public schools will serve their children. Also, this bill will support the revitalization of Native languages by supporting Native language immersion schools. This has always been one of my priorities, and I am pleased we see this in the Every Student Succeeds Act.

I am grateful for the support of colleagues on both sides of the aisle. Senator BOXER worked with me on this to make sure we maintained Federal support for afterschool programs that allow parents to remain at work if they need to after the school day ends, knowing their children are going to be safe and engaged in good, enriching activities that help them learn in a fun way. Making sure we had that critical piece in the bill was important.

I am also grateful for the support for the number of Alaska-specific provisions that will ensure that this bill, unlike the No Child Left Behind Act, will truly fit Alaska's needs. I appreciate a great deal the work Senator ALEXANDER put into working through some of these issues with us, understanding the Alaska piece, recognizing that sometimes we have entities that are different from what you have in the lower 48. How you translate that when you are drafting language to make sure it works is key. His staff worked with mine to make sure we didn't drop the ball in these areas.

Those of us who are parents realize that this legislation will give us a stronger voice in our children's education and encourage parents to take the lead in helping our schools communicate better with parents rather than the other way around. Again, coming into the politics of schools, knowing that your parents have a voice in what is happening at the school is critically important.

Over the years, we have all met with teachers, school board members, parents, principals, superintendents, and students from our States who were so discouraged, very discouraged, sometimes just plain old fed up with the No Child Left Behind top-down control over every decision. The Every Student Succeeds Act guarantees that our parents, teachers, tribes, community leaders, and principals have a seat at the table to design how our schools serve our children. It even guarantees our Governors a voice while drastically reducing the role of the Secretary of Education here in Washington, DC.

I want to acknowledge the good work of the members of the Senate HELP Committee and their staffs. We all know their staffs put in amazing hours to get the bill to this point, working together, compromising, negotiating, making their case for the priorities of their constituents.

This bill is one of the great examples—a poster child, if you will—of how Congress should be working around here. It is hard work, but it requires compromise. It requires an open amendment process in committee, which we absolutely had. We had days of process on the committee and then here on the floor but also within the conference committee. We had a real, live, old-fashioned conference committee, and it was an absolute pleasure to be part of a process where you could go in with your colleagues from the House on the other side of the table and go back and forth in further perfecting a bill.

In just a few days, the baton on education reform will be handed off to the people of our States. I look forward to this. I am encouraging folks back home to get involved, be aware, know what is going on. It will be a responsibility every one of our constituents must take seriously. No matter what role they play in a student's life, what happens next in each of our States will be determined by the people who show up, who share their perspectives with their States, with their departments of education, with their school boards. And I believe that coming together in this way at the local and State level—together it will be a good job for Alaska's children and for all of our Nation's children.

With that, Mr. President, I thank you.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mrs. MURRAY. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Ms. AYOTTE). Without objection, it is so ordered.

Mrs. MURRAY. Madam President, I am so pleased that the Senate is taking the last few legislative steps to reauthorize the Elementary and Secondary Education Act or ESEA.

Our bipartisan bill, the Every Student Succeeds Act, will end the one-size-fits-all mandates of No Child Left Behind. It will reduce reliance on high-stakes testing, and it will help ensure that all students have access to a quality education regardless of where they live, how they learn or how much money their parents make. One of the best ways to help students succeed in school is by offering high-quality early learning opportunities for kids.

I am proud our bipartisan bill will also improve and expand access to preschool programs for more of our Nation's youngest learners. Preschool is actually how I got my start in politics in the mid-1980s. At the time I wasn't thinking about running for the U.S. Senate or even the State legislature in

Washington. I just had one specific goal in mind. The State legislature at the time was going to close down preschools in my small community because of budget cuts. I knew the impact that would have on my own kids and on the kids I saw in the classroom, but when I went to talk to State legislators about it with my kids, they wouldn't listen. They didn't think our voices mattered, and they didn't think preschool should be a priority.

So I picked up the phone and started calling other parents. We held rallies, we wrote letters, and when it was all said and done, we won. The legislature reinstated the funding for the preschool program and more kids in my State were able to finally start school ready to learn.

I still believe early childhood education is one of the best investments we can make in our country. It is why I fought so hard to improve and expand the preschool program throughout this process to fix No Child Left Behind. It is why I worked across the aisle with Senator ISAKSON and many other colleagues in the HELP Committee to design a preschool program in our bipartisan Senate bill, and it is one of the reasons this final legislation that we will vote on tomorrow will be such a strong step for students in the years to come.

I hope our colleagues join me and everyone in passing the Every Student Succeeds Act for students, for parents, for teachers, and for communities across the country. Early childhood education is so important for our children's future and for the future of our country. Let's go through the research.

Before children ever set foot in kindergarten, studies show they have already developed a foundation that will determine all of the learning, health, and behavior that follows. High-quality early learning programs can strengthen that foundation. Preschool is especially important for kids from low-income backgrounds. By the time an average child growing up in poverty turns 3 years old, she will have heard 30 million fewer words compared to a child from a middle-income or high-income family, according to researchers at the University of Kansas. That is a serious disadvantage.

By the time she starts kindergarten a few years later, the deck will already be stacked against her and her future success. Many families across the country don't have the option of sending their youngest learners to preschool. Today, in fact, just 14 percent of 3-year-olds in America are enrolled in federally or State-funded preschool programs and 41 percent of our 4-year-olds are enrolled.

If we are serious about closing the achievement gap in elementary and secondary education and if we are truly committed to making sure every student has the chance to succeed, we have to invest in quality early childhood education.

On the Senate floor in January, I said we should only pass a bill to reauthorize the ESEA if it expands access to preschool programs. I am very pleased our bill follows through on that commitment. The Every Student Succeeds Act will mark the first time that the Nation's primary, elementary, and secondary education law includes dedicated funding to make sure kids start kindergarten ready to learn. It does so by establishing a competitive grant program for States that proposes to improve coordination, quality, and access to early childhood education for kids from low-income and disadvantaged families. Those grants will help States such as Washington build on the progress it has already made to improve quality and increase access to high-quality preschool programs.

I am very proud of the bipartisan bill we have on the floor and all it does to improve and expand access to preschool, but we still have work to do. I will continue to work to do even more for kids and families in Washington State and across the country. I will continue fighting hard to make sure that if a family wants to send their child to a quality preschool program, there will be an open slot for them, because when all students have the chance to learn, we strengthen our future workforce, our Nation grows strong, our economy grows from the middle out, not the top down, and we empower the next generation of Americans to lead the world.

As a former preschool teacher myself, I saw firsthand the kind of transformation that early learning can inspire in a child. It is something I have never forgotten. On my very last day of teaching preschool, before I left to serve in our Washington State Senate, my students gave me this great big, large, blue quilt. Each square was decorated by a student in my preschool class and that quilt now hangs in my U.S. Senate office. It reminds me every single day that investing in young children is one of the most important things we can do to help them succeed.

Tomorrow the Senate will have the chance to vote in favor of helping more kids start school on a strong footing. We have the chance to fix No Child Left Behind with a bill that recognizes the importance of early learning, and we have a chance to make sure one of the smartest investments we can make in our Nation's youngest learners has begun.

I urge my colleagues to pass this bill for their future and the future of our Nation.

I yield the floor.

The PRESIDING OFFICER. The Senator from New Jersey.

IRAN

Mr. MENENDEZ. Madam President, I rise to talk about an issue that while we are riveted in our attention, yes, about a good education bill—which I intend to support—and about the challenge of ISIL and terrorism both abroad and at home, I am concerned that in the midst of all of those challenges, Iran is well on its way to once again defy the international community in a way that I think is incredibly dangerous.

We are told that Iran is to be considered a trustworthy member of the international community and that we should be able to count on it to abide by the international commitments they have made and by U.N. Security Council resolutions.

On October 11 of this year, Iran tested a precision-guided, long-range ballistic missile in violation of U.N. Security Council resolutions, and now Iran has carried out a new medium-range ballistic missile test in breach of two U.N. Security Council resolutions. We are told by Western intelligence that test was held November 21. The first one was October 11; now a second one on November 21 near Chabahar, a port city in southeast Iran's Sistan and Baluchestan Province near the border with Pakistan. The launch took place from a known missile test site along the Gulf of Oman. The missile, which is known as a Ghadr-110, has a range of anywhere between 1,800 and 2,000 kilometers or about 1,200 miles and is capable of carrying a nuclear warhead.

The missile fired in November is an improved version of the Shahab-3 and is similar to the precision-guided missile tested by Iran on October 10, which elicited strong condemnation by members of the U.N. Security Council, but those condemnations were in word but not in actions—because what has happened as a result of Iran violating the U.N. Security Council resolutions as it relates to missile testing? Absolutely nothing.

At the Security Council we are still debating how to respond to Iran's last test in October, and I truly believe actions speak louder than words. American and U.N. actions demonstrate to me that with no activity that is visible to anyone as it relates to finding some consequence for Iran violating U.N. Security Council resolutions, Iran can support terror, Iran can develop its nuclear program, Iran can foment sectarian conflict across the Middle East, it can support Assad in its deadly regime against its people, it can test ballistic missiles, it can tell Iraq not to accept U.S. special forces in our fight against ISIL, and yet it will be rewarded with a multimillion-dollar sanctions relief this coming year. Something is wrong because the silence is so deafening.

In October of this year after Iran launched its first missile test in violation of Security Council resolutions, I wrote to the Secretary of State. I wish to read excerpts of that letter because they are still more poignant today in view of the second test that has taken place against international will.

I said:

Dear Mr. Secretary,

The recent test launch of a precision-guided, long-range ballistic missile by Iran was a violation of the United Nations Security Council Resolution (UNSCR) 1929. . . . As we discussed during your July 23 appearance before the Senate Foreign Relations Committee, [that resolution] stipulates that Iran

cannot presently engage in activities related to ballistic missiles.

But, with the October 11 launch, Iran has done so—on several levels—whether it is through research, development, planning, concealing or launching this reportedly new technology. And as some of my colleagues on the Senate Foreign Relations Committee have pointed out in separate correspondence to you, Iran's violations of UNSCR 1929 have become common. The Iranian regime is drawing a line in the sand that demonstrates [I believe] with malice that it will only selectively meet its obligations with respect to internationally sanctioned weapons programs. What meaningful steps will the Administration take to respond to the latest Iranian provocations?

As Iran is prone to do, [I view] this is a test of American commitment and resolve, which, I believe, must be met with a decisive response in the language that Iran understands—for every action there is a consequence.

I went on in that letter to say:

I write to recommend to you that you use the Administration's discretionary authority to tighten the full range of sanctions available to you to penalize Iran for violating UNSCR 1929. From your responses at the July 23 [Senate Foreign Relations Committee] hearing, I understand that tightening sanctions for non-nuclear related infractions would not violate the terms of the Iran Nuclear Agreement, even if it were presently in its full implementation phase.

Which it is not.

The Administration should also encourage P5+1 partners to respond with similar measures. Does the Administration plan to use its current authority to tighten available sanctions against Iran?

Iran is not only testing the Administration, it is also testing our international partners. The launch, coordinated on the same day that Iran's Parliament approved the general outline of the Iran Nuclear Agreement should send a clear signal to the United States, the P5+1, and the United Nations Security Council that Iran's nuclear program and its weapons programs are linked—and that the Iranian regime has every intention of maintaining this status quo. The Administration should lead the P5+1 and the UNSC to respond swiftly, decisively, and unapologetically.

The series of test launches of Iranian ballistic missiles that have led us to this point are part of a larger weapons development program, that when taken together with Iran's history of deception, its opaque nuclear capabilities, past violations of the Nuclear Non Proliferation Treaty, its fiery rhetoric, destabilizing activities throughout the region, and well-documented malign intent, requires a strong international response.

And particularly, I note: The time to act was then and now again—certainly now—before Iran can exploit U.N. Security Council resolution 2231 because that particular resolution failed to incorporate the same mandatory language that U.N. Security Council resolution 1929 has.

In 1929, the world said: You cannot conduct ballistic missile tests and work on the development of ballistic missiles. When we struck the deal with Iran, we went through a different language where we strongly called upon Iran not to do so for the next 8 years. But strongly calling upon a country—from the Security Council—not to do something is not prohibiting those threatening activities.

We do have sanctions that are in place and a Security Council resolution that is in place, because the deal has not gone into full effect until implementation takes place, where Iran is already violating the international will as expressed by those Security Council resolutions.

I would argue that in addition to the fact that they are defying the will of the international community as it relates to their missile weapons program—which can carry a nuclear warhead—I think they are testing the will of the international community when it comes to the question of how serious we will be about violations of the nuclear agreement. And the sooner that we are stronger in our response to their violations of the Security Council resolutions on missile technology and the missile weapons systems, the sooner they will understand we will not allow them to ultimately violate the agreement we struck with them as it relates to their nuclear program, and if they do, there are serious consequences.

Iran has tested the world. I have followed Iran since I first was in the House of Representatives and it came to my knowledge that the United States was sending voluntary contributions to the International Atomic Energy Agency above and beyond our membership dues. When I inquired as to what it was for, it ended up that it was to help the IAEA, help Iran create operational capacity at the Bushehr nuclear facility. Well, that wasn't in the national interests of the United States and certainly not in the national and security interests of our ally the State of Israel. I led a successful drive to stop those voluntary contributions in the House.

From that day, in the beginning of my House career, I followed Iran, because I said: Why does a country that has such huge—I think it is the fourth largest—oil reserves—and right up there as relates to gas reserves—need nuclear power for domestic energy consumption? It doesn't. I have followed Iran since then, and I have seen that by testing the international community's will at every step of the way, they advanced their nuclear program to where it came to the point—almost like our too-big-to-fail banks—well, this was too big to stop, so we tried to manage it. Now they are testing the world as it relates to their missile technology and missile weapons program. Again, we see a lack of response.

My letter to the Secretary of State on October 19—also, separate from that, there was a series of letters from other colleagues about the same issue—has not been responded to. We are going on 2 months since this action took place, and there is silence. As a matter of fact, the only things I have read are press reports about the latest violation, but I haven't seen the administration say a word about it.

So as the Iranians get the sense that they can go ahead and violate the international will as expressed through Security Council resolutions and face no consequence as a result thereof, then based upon history we are going to face an Iran that is going to test the international community as it relates to its commitments in the Iran nuclear program. If we do not send a strong message now, we are only inviting attempts to violate that agreement.

I am very much of the belief that once you violate international agreements, you have to have a consequence just on that basis. When we were having the great debate about the Iran deal, we were told that this is just about the nuclear program; that human rights violations, weapons violations, and violations in terms of their activities to destabilize the region and their hegemonic interests—that we are going to push back on all of those things. Well, I haven't seen that. I haven't seen that. And that, to me, invites a great risk.

So I urge the administration to act decisively, to pursue both in the Security Council and apart from the Security Council, with our P5+1 allies, sanctionable items that can be outside of the nuclear portfolio, that can send a very strong message to Iran that ''Don't think you can get away with these types of actions and have no consequence.''

Secondly, I seriously believe this is another example of why the Iran sanctions act, which I helped author and which was passed overwhelmingly in the Senate and expires this coming year, needs to be reauthorized, because if there is a belief that there will be no sanctions in place as a result of any violations that take place, what are we snapping back to? What are we snapping back to? I believe there is nothing wrong with at least having those sanctions reauthorized and the Iranians having an understanding that if they violate the agreement, there are sanctions to snap back to.

What they are doing in their violations of the Security Council resolutions as it relates to missile weapons programs is already a bellwether of what I believe their actions will be if we cannot ultimately meet the test of their challenge. And they are testing us. This is the same Iran that I saw for years test the international will, being told they cannot advance their nuclear program, to the point that it got to such an extent that we struck a deal. That is the risk we face here.

So I look forward to pursuing a robust response to Iran. For all of my colleagues who supported the agreement, this is actually something we should be in chorus together on to ensure that Iran has a very clear message that ''We intend to push back on you. You cannot violate the international law.'' By doing so, hopefully we will see the performance of an agreement that is supposed to control their nuclear program in a way that does not risk the world security. That is what is at stake in this regard.

I will close by simply saying that if you pass by the Archives Building, over its portal there is this statement: ''What is past is prologue.'' I hope that statement isn't a reality as we face the challenge of an Iran that feels strongly within the region, that creates greater instability through its support of Hezbollah, that supports Assad and continues a civil war in which thousands and thousands are dying, creating the rise of ISIS at the end of the day by a state that is virtually a failed state at this point in time and putting undue influence on its neighbor, Iraq, a country for which we have shed so many lives and national treasure. Something is wrong in that equation, and I hope my colleagues will wake up to it and will join us in an effort to try to make sure we push back in a way that is not only appropriate and within the international order but necessary if we truly do not want Iran to achieve nuclear power for nuclear weapons.

Madam President, I yield the floor.

The PRESIDING OFFICER. The Senator from Michigan.

Ms. STABENOW. Madam President, I thank my colleague who just spoke for his vigilance in reminding us how we have to pay attention every single day to what is happening in Iran and to be smart and strategic and let them know we are very serious about pushing back.

RELIGIOUS FREEDOM

Madam President, in this country one of our core values is that you can come here and build a better life for yourself and for your family. That is the American dream. Our Nation was founded by people who had that dream, people who dreamt of religious freedom. Many of our ancestors followed that dream to these shores, from the early Puritans and Quakers, Irish and German immigrants, Italian and Jewish immigrants, and so many others. Life was not easy for them. They faced discrimination and even violence by those who were suspicious of them, who saw them as different, who challenged their right to have the American dream. But those Americans worked very hard and built a life for themselves. They raised families and became successful. They opened small businesses and large businesses. They became doctors and lawyers. They served in our armed services. They served as police officers and firefighters. They ran for office. They made amazing contributions to our Nation's economy and culture. They helped make America great.

That core value, our American dream, is being challenged today. Donald Trump, who is running for President of the United States of America, has suggested that we ban all Muslims from coming into our country based purely on their faith, on their religion. As someone who represents the most densely populated Muslim population in America, I find this suggestion, this statement, to be outrageous and absolutely un-American because I know the rich history that people of Muslim faith have created in my State and the contributions they make every single day to our economy, to our wonderfully diverse culture, and the quality of life in our communities.

Hundreds of thousands of people from Muslim countries came to southeastern Michigan in the early part of the last century, like so many others from the South and around the country and the world, after Henry Ford offered a $5-a-day wage to work in America's first automobile factories. Those Muslim Americans were still working in those plants during World War II, building the so-called arsenal of democracy—the planes, the ships, the tanks that won the war and defeated the enemies of democracy.

Many thousands of Muslim Americans have served our Nation during times of war, and many thousands are serving our country right now, at this very moment. They are putting their lives on the line right now for the freedoms we all hold dear. Take a walk through Arlington National Cemetery, and you will see many graves bearing the crescent and star. How can anyone question the patriotism of those Americans who made the ultimate sacrifice for our country? They helped make America great. Those men and women who defended us in the Armed Forces loved America, and they died for America because America is their home, their family's home. So of course they see ISIS as the enemy, just as every non-Muslim American does as well. Their families are the ones who are on the front lines of the violence in the Middle East. Their families have lost their homes, their businesses, and in many cases their lives because of the brutality and violence of ISIS. Their families are the ones fleeing the violence to save their children. Muslim Americans understand that ISIS does not represent Islam.

Within every religion, there are violent individuals who twist the meaning of sacred texts and symbols to justify acts of violence and murder—every religion. The KKK used blessed symbols of Christianity while terrorizing and murdering African Americans. Just as the Ku Klux Klan does not speak for Christians, ISIS does not speak for Muslims.

Furthermore, we must recognize that our culture of inclusion and our tradition of welcoming people of different faiths since the beginning of our country are our greatest weapons in defeating ISIS.

What ISIS desires more than anything else is to see our country discriminate against Muslim Americans so they can use that as a recruiting tool all over social media, which we know they are very effective at doing. They want Muslim Americans to believe that America is not their home, that we do not value their leadership and contributions in our communities, that America does not welcome their faith, and that America hates them. They want that. That cannot be who we are. That is not who we are.

All of us were shaken by the violence in Paris and San Bernardino, but we know that fear cannot be our guide in America. President Franklin Roosevelt understood that fear makes America weak. America is great when America is united and not pitting neighbor against neighbor, which is happening in too many places in my State and across the country. When we are united and dedicated to our principals of freedom and liberty, we are great. The first liberty of our Constitution's First Amendment is the freedom of worship.

When I think about the Muslim American children in Michigan who were afraid to go to school today because of what might happen to them after hearing what Donald Trump was saying about them and their families, it makes me sick to my stomach. I want those children to know that his words are not what America stands for. It is not what makes America great. It is not. It is those children—Muslim and Christian and Jewish—all of whom are full of hope and promise for the future who will make America great again, and I stand with them.

I thank the Presiding Officer.

The PRESIDING OFFICER. The Senator from South Dakota.

SENATE ACCOMPLISHMENTS

Mr. THUNE. Madam President, just a few days ago on the Senate floor, the Senate Democratic leader said:

> One of the newspapers here has a Pinocchio check, and they look at the facts and analyze them and then they can give up to four Pinocchios meaning people simply didn't tell the truth. . . . So, this is the most unproductive Senate in the history of the country, and there are facts and figures to show that.

That was said by the Senate Democratic leader on December 2 on the floor of the Senate. Well, unfortunately for him, the Washington Post, which runs the fact checker, fact checked his statement and it came back with three Pinocchios. The most you can get is four Pinocchios, and they gave him three Pinocchios. There are degrees of falsehood, and I think three Pinocchios denotes a pretty big whopper. The Senate Democratic leader, by suggesting that this is one of the most unproductive Senates in the history of the country, was busted by the fact checker with three Pinocchios for making what was a false statement.

The truth of the matter is, contrary to the assertions of the Senate Democratic leader, it has been a very busy year here in the Senate—from voting to repeal ObamaCare to passing the first long-term Transportation bill in a decade and, I might add, the first balanced budget bill in 14 years. Republicans have been working hard to fulfill our promise to get Washington working again for American families.

If you listen to the media, sometimes they would have you believe that nothing ever gets done in Washington, but the truth is that we have been able to make progress on a number of important issues this year. One accomplishment I am particularly proud of is the

long-term Transportation bill that Congress passed this last week. It is the first long-term Transportation bill in a decade.

Over the past several years, Congress has made a habit of passing numerous short-term funding extensions for Federal transportation programs. In fact, I think prior to the passage last week of this long-term highway bill, there have been no fewer than 37 short-term extensions. That is an incredibly inefficient way to manage our Nation's infrastructure needs, and it wasted an incredible amount of money. It also put a lot of transportation jobs in jeopardy. Hundreds of thousands of jobs around the country depend on the funding contained in Transportation bills. When Congress fails to provide certainty about the way transportation funding will be allocated, States and local governments are left without the certainty they need to authorize projects or to make long-term plans for addressing various transportation infrastructure needs. That means essential construction projects get deferred, necessary repairs may not get made, and jobs that depend upon transportation get put in jeopardy.

The Transportation bill we passed last week changes all of that. It reauthorizes transportation programs for the long term and provides 5 years of guaranteed funding. That means States and local governments will have the certainty they need to invest in big transportation projects and the jobs that they create, and that in turn means a stronger economy and a more reliable, safe, and effective transportation system.

This new Transportation bill will also provide much needed accountability and transparency about where taxpayer dollars are spent. As chairman of the commerce committee, I spent a lot of time working with committee members on both sides of the aisle to develop the bill's safety provisions.

One portion of the bill includes a host of important safety improvements, including enhancements to the notification process to ensure consumers are informed of auto-related recalls and important reforms of the government agency responsible for overseeing safety in our Nation's cars and trucks.

Another important bill we passed this year is the Cybersecurity Information Sharing Act. Cyber attacks are increasing, and it seems that every week we hear of a new breach putting Americans' private information at risk. According to the security firm Symantec, last year alone more than 300 million new types of malicious software or computer viruses were introduced on the Web. That is nearly 1 million new threats every single day.

In October, the Senate passed the Cybersecurity Information Sharing Act, which will help keep Americans' data safe from hackers by increasing the exchange of cyber threat information between the public and private sectors.

As Members of Congress, we have a responsibility to ensure we are meeting the needs of our men and women in uniform and of our Nation's veterans. This year, under the new Republican majority and the leadership of Chairman ISAKSON, the Senate has worked in a bipartisan manner to advance numerous bills to serve our veterans. We passed the Clay Hunt Suicide Prevention for American Veterans Act, which provides additional resources to help combat the tragedy of veteran suicides.

We have improved the Veterans Choice Act to better realize the intent of Congress, and that was to make sure veterans don't have to face significant wait times or travel distances over 40 miles to receive the care they need. We expanded eligibility to permit more veterans to seek care close to home and increase the number of non-VA providers in our communities that can deliver that care.

Congress also continues to examine the issue of VA accountability to make sure our veterans never again have to suffer delays in treatment, as we saw with the national embarrassment of falsified wait times that the VA revealed last year. I believe this oversight by Congress is an important first step in making sure the VA works for our veterans and not for the VA bureaucracy.

Congress also passed the Defense authorization bill this year, which incorporated a number of critical reforms that will expand the resources available to our military men and women and strengthen our national security.

The National Defense Authorization Act for 2016 tackles waste and inefficiency at the Department of Defense and focuses funding on our war fighters rather than on the Pentagon bureaucracy. This bill also overhauls our military retirement system. Before this bill, the system limited retirement benefits to soldiers who had served for 20 years or more, which means there were huge numbers of soldiers, including many veterans of the wars in Iraq and Afghanistan, who retired after years of service without having accrued any retirement benefits. The National Defense Authorization Act replaces this system with a new retirement system that would ensure the majority of our Nation's soldiers receive retirement benefits for their years of service to our country, even if they have not reached the 20-year mark.

One thing Republicans were determined to do this year as well was to send legislation repealing ObamaCare to the President's desk. Five and a half years after the so-called Affordable Care Act was signed into law, it has become abundantly clear that the law is not working. It is not lowering premiums. Premiums are going up. It is not reducing health care costs. Health care costs are going up dramatically. It costs $4,000 for the average family. It is not protecting access to doctors or to hospitals. In fact, for some Americans, ObamaCare has driven up the cost of health care to unimaginable levels. I heard from 1 constituent in Hill City, SD, whose family's 2016 health care bill will be $25,653—$25,653. In the words of this constituent: How can a yearly bill of $25,653 be affordable to a retired couple? The answer, of course, is that it can't be; $25,653 or $2,137 a month is approximately double the average family's monthly mortgage payment. People are paying twice as much for their health insurance as they are paying for their mortgage.

The ObamaCare repeal bill that the Senate passed last week starts the process of moving away from ObamaCare and toward the kind of real health care reform that Americans are looking for—an affordable, accountable, patient-focused system that gives individuals control of their health care decisions.

I am also pleased that the ObamaCare repeal bill protects unborn Americans by redirecting funding for Planned Parenthood, an organization that performs well over a quarter million abortions each year. It shifts that funding to organizations like community health centers, which provide affordable, essential health services to women across the country, and funding them is a far better use of taxpayer dollars.

In my State of South Dakota, these centers are in more than two dozen rural communities and in towns where there is no Planned Parenthood, so redirecting these funds makes it easier for women across my State to have access to affordable, essential health care services.

While all Americans agree that we should protect our air and water and use our natural resources responsibly, under President Obama the Environmental Protection Agency has run amok. During the course of the Obama administration, this Agency has implemented one damaging rule after another, from a massive national backdoor energy tax that would hurt poor and working families the most to a new rule that would subject ponds and puddles in America's backyards to a complex array of expensive and burdensome regulatory requirements. Containing this out-of-control government bureaucracy is a priority for Republicans, and we have taken up multiple pieces of legislation this year to check the EPA's overreach. While the President may have blocked our efforts for now, we are going to keep working to protect Americans from damaging rules like the waters of the United States rule and the national energy tax.

Over the course of the Obama administration, our national debt has gone from $10.6 trillion to a staggering $18.8 trillion. Meanwhile, entitlement programs like Medicare and Social Security are heading rapidly toward bankruptcy. If action isn't taken soon, our financial situation could end up crippling our economy.

While there is a lot more work left to do, this year's Senate Republicans took steps toward improving our Nation's fiscal health. In the spring, we passed a balanced budget—the first joint House-Senate balanced budget in 14 years. Every American family has to stick to a budget and Congress should be no different. This year's balanced budget needs to be the first of many going forward.

Entitlement reform is also essential if we want to protect Americans' entitlement security. This year we began the process of putting both Social Security and Medicare on a more stable financial footing so these programs will continue to be available to current and future generations of Americans.

I could go on and talk about the Education bill that we are considering right now that will return power to States and local school boards or the legislation that we passed to give law enforcement new tools to fight human trafficking and expand the resources available to victims or the bill that we passed to expand opportunities for American workers and open new markets for goods marked ''Made in the USA.''

I want to stop here and say, while Republicans are proud of what we have accomplished this year, we know there is a lot left to do. Wages are still stagnant, our economy is still sluggish, and too many families are still struggling under huge health care bills.

In addition to the challenges facing Americans at home, we face a number of challenges abroad, foremost among them the threat posed by ISIS, which is responsible for the deadly attacks in Paris last month, as well as a campaign of havoc and bloodshed throughout the Middle East. Even here at home we received a grim reminder of the global influence of ISIS's twisted ideology last week with what appears to be a terrorist-inspired attack that took 14 American lives in San Bernardino. Our thoughts and prayers go out to the victims and the families.

While the President should be playing the leading role in building a coalition to destroy this terrorist organization, unfortunately his speech Sunday night demonstrated that he has little to offer beyond the same failed strategy that has helped us end up where we are right now—with an emboldened terrorist organization carrying out and inspiring mass casualty attacks far beyond Iraq and Syria.

We are at a tipping point in the fight against ISIS, and if we don't come up with an effective political military response in the very near future, we will be facing the prospect of even greater bloodshed in the Middle East and more terrorist attacks here in the homeland.

While we succeeded in having a number of bills become law this year, unfortunately many others were stopped by the President. Still others, such as our efforts to protect unborn children capable of feeling pain from being killed by abortion, were stopped by Democrats in the Senate. While we have temporarily lost some of these battles, the debate will continue. Republicans will not give up. Whether it is protecting families from the President's national energy tax or repealing ObamaCare, we will redouble our efforts to make sure Washington is meeting the needs of American families and addressing the American people's priorities.

We plan to spend the second year of the 114th Congress the way we spent the first: fighting to make our economy stronger, our government more efficient and more accountable, and our Nation and our world safer and more secure.

Madam President, I yield the floor.

The PRESIDING OFFICER. The Senator from Oregon.

PARIS CLIMATE CHANGE TALKS

Mr. MERKLEY. Madam President, I rise to share a little bit of details about the climate talks that are going on in Paris at this very moment. A number of us in the Senate were able to go to Paris last weekend and to be engaged in that dialogue.

What I was terrifically struck by was that 150 heads of state had come together to kick off these climate talks. That is the largest gathering of heads of state in human history. Why did that landmark event occur? It occurred because the challenge of global warming is the most grave concern facing human civilization on this planet, so heads of state wanted to be there to acknowledge the fact that we must come together as a community of nations across this globe and work together to take this on for the good of our stewardship of this planet. A larger number of nations have put forward pledges on the efforts they are going to make to reduce global warming gases, and 186 nations have put forward those pledges.

One of the issues that is embedded in these climate talks is how ambitious the international community should be. There is this broad goal of limiting global warming to 2 degrees centigrade over the course of this century. We have already gone up to 0.9. We are almost halfway to that level that has been identified by scientists as a catastrophic level, but the pledges that are being made in Paris are not sufficient to keep us to 2 degrees. So that is one of the points of discussion—how can the community of nations be more ambitious.

One of the points being made is that we should come back together every 5 years to keep redoubling our efforts; that we know the pledges being made in Paris will not be enough, so we have to keep coming back to this challenge.

We also have observed how dramatically the amount of information has changed over the last 5 years. We know that in another 25 years we will have a lot more information about what is occurring in the world and how successful the initial efforts have been.

Then there is a group that is saying we need to go even further and work to reduce the amount of damage that could be done, and that means limiting global warming to 1.5 degrees, which would take an even faster transition from a fossil fuel energy economy to a renewable energy economy. So that is an area of conversation—how ambitious can we be as an international community at this point and how can we improve on the efforts being put forward in Paris in the years to come.

A second point is that there is a profound need for working together between developed nations and developing nations, between richer nations and poorer nations. Poorer nations are saying: We have a lot of folks who have never had access to electricity, and we need to provide the cheapest pathway to provide that electricity. Often, that is coal. Well, then, how do we make renewable, clean energy as inexpensive as coal energy so that nations can bypass establishing that utility-scale fossil fuel infrastructure. So that is a key piece of conversation.

A third point is about reporting requirements. In order for us to have good policy now and in the future, we have to have good numbers on what is happening around the world, nation to nation. Nations feel a little sensitive about this idea of having an international community kind of working to double check the way they evaluate what is going on at home, but we need to convey the notion that these numbers—good numbers coming from each nation—are essential for nations to be able to participate in this international effort that will lead to success in curbing runaway global warming.

I think it is enormously clear that Paris is a tremendous step forward. The number of heads of state that have attended, the number of nations that have put forward pledges, the intensity of the conversation at this very moment—people are recognizing that we are the first generation that has been impacted by global warming, and we are the last that can do something significant about it because, unfortunately, as we go forward a generation from now, we have not succeeded in curbing global warming gases. The carbon dioxide and methane gas will have such a profound feedback mechanism that it will be much harder to address this issue.

I am pleased the administration has taken this so seriously and that nations throughout the world are taking it so seriously.

H.R. 1599

Also, Madam President, I want to turn to the budget and spending negotiations underway right now. I came to the floor last week to note that there were conversations occurring about possibly taking away States' rights to be able to pass laws labeling food that is GE or GMO food; that is, genetically engineered or genetically modified food. To do so would simply be wrong—wrong in the absence of a cohesive, coherent, easy-to-use system of labeling at the Federal level, which we do not

have. It would be an intrusion on States' rights in one of the most sensitive areas to citizens, and that is the food they put in their mouth.

This act of taking away States' rights and citizens' rights to know what is in their food is known as the DARK Act, the Deny Americans the Right to Know Act—the acronym DARK. Isn't it ironic that there are legislators here who are not only pursuing the DARK Act, but they are pursuing it in the dark of night. They are afraid to have a conversation in the relevant policy committee to address it. Whenever legislators fear public reaction, fear addressing the pros and cons in a public forum, you can bet there is something wrong with what they are up to. So that is why we must all be vigilant in these coming days to make sure this DARK Act is not inserted into the must-pass spending bill in the dark of night.

EMBRACING ALL RELIGIONS

Madam President, I want to close, to follow up on the comments I made yesterday about the proposal from Donald Trump to bar Muslims from entering our country under any avenue—not as refugees, not as business men and women, not as tourists, not as students—and again say how absolutely wrong it would be. This is the single worst idea I have heard from a Presidential candidate, ever.

We should all recognize that right now our men and women in uniform of every religion—Christian and Protestant and Catholic and Jewish and Muslim and Buddhist and who knows what other religions—they are working together to take on the terrorist threat known as ISIS. Islam is not our enemy. ISIS is our enemy. Right now we are working in partnership with nations that are Islamic nations, and those leaders are Islamic. We are saying to them: We will work in partnership with you because Islam is not our enemy. ISIS is our enemy.

I can tell my colleagues that ISIS has a strategy. Their strategy has been to create their mission as the United States against Islam, and the comments of Donald Trump played right into the playbook of the terrorists, making our Nation less safe, increasing the radicalization of folks around the world who have been listening to the message from ISIS and now have some reason to believe it might have some foundation—that America is against Islam. We are not, and we have been hearing that from Democratic voices and we have been hearing that from Republican voices. We have been hearing it from Senators and from House Members across Capitol Hill. We have been hearing it from legislators and we have been hearing it from citizens, Americans standing up and saying that Donald Trump is wrong. That is certainly something to be applauded. I praise my colleagues of both parties. I praise our citizens of both parties who have stood up to say we stand shoulder to shoulder with all patriotic Americans regardless of their religion, and we are united in taking on ISIS.

Thank you, Madam President.

The PRESIDING OFFICER (Mr. GARDNER). The Senator from Pennsylvania.

Mr. TOOMEY. Mr. President, I rise today to speak about the education reform conference report that we will be voting on tomorrow, which I think is a good bill for two big reasons. First, it restores a significant level of decision-making power to the States and local school districts, which is where decisions about things like curriculum should occur. It diminishes the ability of the administration to pressure school districts and States into adopting the Common Core curriculum, for instance, leaving it to the discretion of the States and school districts to decide exactly what their curriculum will be. I think that is a sensible and appropriate approach.

There is another big reason I think this education reform bill is an important bipartisan victory for kids, and that is for the first time I am aware of, the Congress is acting to protect our kids from pedophiles who infiltrate our schools and who have sexually abused children in the classroom.

I know you are actively supportive of this effort, as many of our colleagues are, and I am delighted we were able to make it through the entire process, as painful and slow as it was. This important provision survived this process, and we will be voting tomorrow on the overall bill.

I want to talk about this a little bit, but let me make it clear right up front that I understand—as I assume we all do—that the vast, overwhelming majority of teachers and school employees would never harm children in their care. They would never hurt them. They would never do it. They care deeply about the kids, and that is probably a big part of the reason they pursued a career in education. But it is also a fact that schools are where the children are and pedophiles in our midst are very aware of that, and they are attracted to schools for exactly that reason. The number of pedophiles who are succeeding in abusing children in schools is absolutely shocking; it is to me. Last year there were 459 school employees, mostly teachers—not all teachers but employees in schools—arrested for sexual misconduct with the children they are supposed to be taking care of. That is more than one a day, and unfortunately 26 of them were in Pennsylvania.

So far, 2015 is almost over. We have already exceeded the number from 2014. We are on a path to have well over 460 teachers and other school employees arrested for sexual misconduct with kids. Let's be honest; an arrest occurs only when there is sufficient evidence to press charges, to make a criminal case in a court of law. How many more cases are occurring where we haven't had sufficient evidence to prosecute?

The story that put this need on my radar is the absolutely horrendous story of a child named Jeremy Bell. This story begins in Delaware County, PA. One of the schoolteachers was molesting young boys. In time, the school administrators discovered what was going on. The local district attorney didn't feel there was enough evidence to actually prosecute a case. You know, it is hard to fire a teacher, so what the school did is it sat the teacher down and said: Here's the deal. You need to leave, but don't worry. We will give you a letter of recommendation so you can get a job somewhere else. That is exactly what happened.

This monster went to West Virginia, got hired as a teacher, and eventually became a principal. Of course along the way he continued to abuse children. In the end he raped and murdered a 12-year-old boy named Jeremy Bell. Justice finally caught up with this monster. He is serving a life sentence in prison as we speak, but it was too late for Jeremy Bell.

As a father of three young children, I find this whole idea so appalling that it is hard to talk about it and hard to think about it. We would all like to think that a story like the story of Jeremy Bell is a freak occurrence, a once-in-a-million-years kind of thing, but that is not the case. It is just not true. In fact, it has happened so frequently that it has its own name. It is called passing the trash. The people who spend their lives serving and helping the victims of these horrendous crimes to cope with them know about this phenomenon all too well.

I will give you more recent examples. Just this year, WUSA News 9 reported that the school district of Montgomery County, MD, had a record of passing the trash. An elementary school teacher named Daniel Picca abused children for 17 years. The Maryland school district knew what was going on. What did they do? The teacher's punishment was to be moved from school to school to school, reassigning him every time a problem emerged, as though the problem was the school and not the pedophile. For 17 years they were passing a known child molester from one group of victims to another.

Consider a case of the Las Vegas, NV, kindergarten teacher who was recently arrested for kidnapping a 16-year-old girl and infecting her with a sexually transmitted disease in the course of abusing her. That same teacher had molested six children—all fourth and fifth grade children—just a few years before when he was working in the Los Angeles school district. The Los Angeles school district knew about the allegations, but when the Nevada school specifically asked if there were any criminal concerns regarding this teacher when he was applying for a job there, the Los Angeles school district not only hid the truth, it provided three references for the teacher—so strong was their interest in making him become someone else's problem.

These are examples that are all the more disturbing when you consider

that, according to a study by the GAO—Government Accountability Office—the average pedophile working at a school victimizes 73 children over the course of a lifetime.

We have an opportunity tomorrow to say enough is enough. This is enough. This has been way too much—no more children falling prey to these monsters who have been able to infiltrate our classrooms, no more childhoods shattered, no more families devastated with grief, no more Jeremy Bells.

The amendment itself is just common sense—really just common decency. It simply holds that if a State accepts Federal education funds, it has to have a law that bans the practice of knowingly recommending a pedophile to another school. Is there anybody in Pennsylvania or Colorado who thinks that is unreasonable? I don't think so.

I am delighted that we have gotten to this point. There are a lot of people I would like to thank for their help. I have to start with Senator JOE MANCHIN of West Virginia, who joined me at the very beginning. We introduced this legislation over 2 years ago as a freestanding bill. In addition to banning passing the trash, it would require thorough and rigorous background checks for any school worker who has unsupervised access to children. That part was not included in this. I am not giving up on that. We will have that fight again. The part that bans passing the trash did succeed and demonstrates that with perseverance the right outcome can occur.

I would like to thank the other cosponsors of this legislation, Senators MCCONNELL, ALEXANDER, CAPITO, COTTON, GARDNER, HELLER, INHOFE, JOHNSON, MCCAIN, ROBERTS, VITTER, and WICKER. I would particularly like to thank the chairman of the HELP Committee, Senator ALEXANDER, and Senator MURRAY, the ranking member. We talked about how we could make this work mechanically and make sure that we have legislation that will in fact achieve the desired outcome.

I also need to send out a huge thankyou to all the child advocates and the law enforcement folks around the country, especially in Pennsylvania, who worked so hard to make this legislation happen. They were invaluable. I hope they realize how much of a difference they made in helping to persuade our colleagues to get this done.

I thank Terri Miller and John Seryak of S.E.S.A.M.E., who have been fighting to protect children in the classroom for decades. I also thank the National Children's Alliance and the many child advocacy centers across Pennsylvania, most of which I have been able to visit, for the wonderful work they do for kids who need it badly; the Pennsylvania Coalition Against Rape; the National Center for Missing and Exploited Children; the Center For Children's Justice; MassKids; the American Academy of Pediatrics; the Association of Prosecuting Attorneys; the National District Attorneys Association; the Pennsylvania District Attorney's Association; the Federal Law Enforcement Officers Association; the National Sheriffs' Association; and the National Association of Police Organizations. Every one of these groups weighed in on this legislation and helped us to get this over the goal line over the course of a long, protracted series of negotiations.

Tomorrow I think we are going to have an important victory in our ongoing effort to protect children from sexual abuse. It is the first time that the U.S. Congress has acted to protect children in this way. There is more that needs to be done. I still think we need to revisit the state of the background checks that are applied. There are States that do not have an adequate background check system in place, and if they are taking Federal funding—which they are—they ought to have an adequate background check system.

The truth is that this is a big step forward, and I am delighted we were able to get here. I am grateful for the help of every Senator who helped us get to this point. For this reason, for the sake of this amendment as well as the general thrust of the legislation, which is to move decisionmaking power back to the States and school districts where it belongs, I would urge my colleagues to vote in favor of the conference report tomorrow.

I yield the floor.

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. WHITEHOUSE. Mr. President, thank you very much. I ask unanimous consent to speak for up to 15 minutes as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

PARIS CLIMATE CHANGE NEGOTIATIONS

Mr. WHITEHOUSE. Mr. President, the ranking member of the Senate Foreign Relations Committee, Senator BEN CARDIN, led a delegation of 10 Senators to Paris this past weekend. We went to support the ''high-ambition coalition'' on the international climate agreement. It was truly impressive to see so many nations represented at the meeting, active and trying to help. All of us in the codel came away from Paris with a good feeling about the prospects for a strong climate agreement.

I had the chance to speak at Oceans Day, where people were keenly aware that the effects of carbon pollution on our oceans are undeniable. You can measure the warming oceans with thermometers. You measure sea level rise with basically a yardstick. You can measure acidification of the seas with simple pH tests. You can replicate what excess CO_2 does to seawater in a basic high school science lab. That is why the big, phony climate denial apparatus the fossil fuel industry is running never talks about oceans. It is undeniable there.

I also had a chance in Paris to cheer on our bright, young negotiating team staff, who worked late hours in their windowless common workspace but were very enthusiastic and made me very proud.

The delegation also met with Todd Stern, who was leading the U.S. negotiating team, and we visited the NOAA scientists who were at the U.S. Pavilion. The U.S. presence there was great.

One thing was sad, and that is that our Senate delegation of 10 Senators was all Democrats. The last political bastian of the fossil fuel industry worldwide is now the American Republican Party. No Republican was able to come with us. The fossil fuel industry would never let them.

I will say the fossil fuel industry is behaving reprehensibly. The power it exerts over Congress is polluting American democracy. The spin and propaganda it emits through a vast array of front groups are polluting our public discourse. Of course, its carbon emissions are polluting our atmosphere and oceans.

These fossil fuel companies are sinning, and on a monumental scale. Remember what Pope Francis said in his encyclical: ''Today . . . sin is manifest in . . . attacks on nature. . . . [A] sin against ourselves and a sin against God.''

Their behavior is truly reprehensible. They have a lot to atone for.

But this is not exactly the American Republican party's finest hour, either. It is the world's only major political party so in tow to the fossil fuel industry that it cannot face up to the realities of carbon pollution and climate change. Some ''city on a hill'' that leaves us.

Notwithstanding all the Republican intransigence, we were able to tell the world that we would have the President's back, and we will. We will protect the Clean Power Plan, we will protect the Clean Air Act, and we will protect any agreement that comes out of Paris.

One nice thing in Paris was the presence of American companies, such as PG&E of California, VF Corporation of North Carolina—one of our biggest apparel manufacturers—Citigroup of New York, Kellogg of Michigan, Ben and Jerry's of Vermont, and Facebook of basically everywhere. They were there to cheer on a good deal, and so was the American Sustainable Business Council. And they have been doing this for a long while.

Some of America's leading food companies took out this ad in the Washington Post and Financial Times on October 1 urging a strong agreement in Paris. The companies that have signed it include Mars—if you like M&Ms, you know about Mars—General Mills, Nestle USA, Unilever Corporation, Kellogg Company, Stonyfield Farm, and Dannon USA. On November 24, it was updated with new signatories, including PepsiCo, Coca-Cola, and Hershey.

Quoting from the ad:

Dear US and Global Leaders:

Now is the time to meaningfully address the reality of climate change. We are asking

you to embrace the opportunity presented to you in Paris. . . . We are ready to meet the climate challenges that face our businesses. Please join us in meeting the climate challenges that face the world.

This is an ad taken out in Politico by another group of well-known apparel companies, including Levi's—if you know blue jeans, you know Levi's; Gap; Eileen Fischer, VF Corporation, which makes Timberland, North Face, and a number of other well-known brands, urging a strong agreement in Paris. This ad ran during talks on Thursday, November 3:

To US and Global Leaders:

As the world gathers in Paris this week for the 2015 United Nations Conference of the Parties, we come together, as some of the largest, best known global apparel companies, to acknowledge that climate change is harming the world in which we operate. . . . We recognize that human-produced greenhouse gas emissions are a key contributor to climate change. . . . We support a strong global deal that will accelerate the transition to a low carbon economy.

Those industries are not alone. Here is an ad from a coalition of about 70 major American corporations again urging a strong agreement in Paris. They include Coca-Cola, Adidas, Intel, Colgate Palmolive, the Hartford Insurance Company, Johnson & Johnson, Procter & Gamble, National Grid, DuPont, the Outdoor Industry Association, and others. They say:

Failure to tackle climate change could put America's economic prosperity at risk. But the right action now would create jobs and boost competitiveness. We encourage our government to . . . seek a strong and fair global climate deal in Paris.

Seventy major American corporations, every single one whose name you know, are saying: We seek a fair climate deal in Paris.

Finally, this is a financial sector statement on climate change from the financial giants: Bank of America, Citi, Goldman Sachs, JPMorgan Chase, Morgan Stanley, and Wells Fargo, again calling for a robust global agreement out of Paris. They state:

We call for leadership and cooperation among governments for commitments leading to a strong global climate agreement.

They want frameworks ''that recognize the costs of carbon.''

They say:

We are aligned on the importance of policies to address the climate challenge.

It is time people started listening.

And let's not forget the more than 150 American companies that have signed on to the White House's American Business Act on Climate Pledge, joining that call for a strong outcome on the Paris climate negotiations. Those companies on the White House American Business Act on Climate Pledge have operations in all 50 States, employ nearly 11 million people, represent more than $4.2 trillion in annual revenue, and have a combined market capitalization of over $7 trillion. Yet, if you believe some of my friends on the other side, they are all just part of a big old hoax trying to fool everybody. Really?

Unfortunately, while the world is listening to these strong corporate voices for a strong Paris agreement, these companies' own home State Republican Senators are right here in Congress trying to undercut their home State companies' work. But the world listens to the companies, not the deniers.

One of their best voices is Unilever, whose CEO Paul Polman met with our delegation to express the growing support in the corporate community for climate action and to describe Unilever's work to catalyze that support.

We met with Ban Ki-moon, Secretary General of the United Nations, and heard about a meeting scheduled for May here in Washington, DC, for corporate CEOs to come to Congress and let us know they want climate action.

The grip of the fossil fuel companies on Congress will slip, as other corporate leaders come forward to urge strong climate action. Pretty soon, there is going to be a very small island of denial and obstruction left in a rising sea of reality. Pretty soon, there will be nobody left on the shrinking Denial Island but the fossil fuel industry, the Koch brothers and their front groups, and the Republican Members of Congress—oh yes, of course, can't forget the Republican Presidential candidates who are so desperate to toady up to the fossil fuel industry that they won't acknowledge this issue. Mark my words: As the rest of corporate America stands up, the fossil fuel industry's fortress of denial and deceit will tumble down.

Paris sends a strong message of hope that echoes Pope Francis's strong encyclical on climate change. Governments, corporations, and civil society groups are a gathering force behind that message.

Vice President Gore, who has labored long in these vineyards, met with us in Paris and had a strong message of hope. Against the gloomy falsehoods the fossil fuel industry propagates, hope burns bright for this gathering force.

The Vice President observed to us that ''things take longer to happen than you think they will, and then they happen faster than you thought they could.'' From a man who has been through—uniquely—this all taking a long, his confidence in fast happenings was heartening.

So not only is it time to wake up, but the world is waking up. Corporate America is waking up outside of the narrow, selfish confines of the fossil fuel industry. Wise Republicans are starting to stir—and the sooner the better.

Mr. President, I ask unanimous consent to have printed in the RECORD materials I referred to during my remarks.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

DEAR US AND GLOBAL LEADERS:

This could be a turning point.

When you convene in Paris later this year for climate negotiations, you will have an opportunity to take action that could significantly change our world for the better.

As heads of some of the world's largest food companies, we have come together today to call out that opportunity.

Climate change is bad for farmers and for agriculture. Drought, flooding and hotter growing conditions threaten the world's food supply and contribute to food insecurity.

By 2050, it is estimated that the world's population will exceed nine billion, with two-thirds of all people living in urban areas. This increase in population and urbanization will require more water, energy and food, all of which are compromised by warming temperatures.

The challenge presented by climate change will require all of us—government, civil society and business—to do more with less. For companies like ours, that means producing more food on less land using fewer natural resources. If we don't take action now, we risk not only today's livelihoods, but also those of future generations.

We want the women and men who work to grow the food on our tables to have enough to eat themselves, and to be able to provide properly for their families.

We want the farms where crops are grown to be as productive and resilient as possible, while building the communities and protecting the water supplies around them.

We want to see only the most energy-efficient modes of transport shipping products and ingredients around the world.

We want the facilities where we make our products to be powered by renewable energy, with nothing going to waste.

As corporate leaders, we have been working hard toward these ends, but we can and must do more.

Today, we are making three commitments—to each other, to you as our political leaders, and to the world.

We will:

Re-energize our companies' continued efforts to ensure that our supply chain becomes more sustainable, based on our own specific targets;

Talk transparently about our efforts and share our best practices so that other companies and other industries are encouraged to join us in this critically important work;

Use our voices to advocate for governments to set clear, achievable, measurable and enforceable science-based targets for carbon emissions reductions.

That's where you come in.

Now is the time to meaningfully address the reality of climate change. We are asking you to embrace the opportunity presented to you in Paris, and to come back with a sound agreement, properly financed, that can affect real change.

We are ready to meet the climate challenges that face our businesses. Please join us in meeting the climate challenges that face the world.

Signed,

Grant Reid (President & CEO; Mars, Incorporated), Kendall J. Powell (Chairman of the Board & CEO; General Mills, Inc.), Muhtar Kent (Chairman & CEO; The Coca-Cola Company), Paul Polman (Chief Executive; Unilever), Mariano Lozano (President & CEO Dannon & Regional VP; Danone Dairy North America), John P. Bilbrey (Chairman of the Board, President & CEO; The Hershey Company), Jostein Solheim (CEO; Ben & Jerry's), John Bryant (Chief Executive Officer; Kellogg Company), Indra K. Nooyi (Chairman & CEO; PepsiCo), Paul Grimwood (Chairman & CEO; Nestle USA), Kimberly Jordan (Cofounder & CEO; New Belgium Brewing Company), Irwin D. Simon (Founder, President,

CEO & Chairman of the Board; The Hain Celestial Group, Inc.), Esteve Torrens (President & CEO; Stonyfield Farm, Inc.), Kevin Cleary (CEO; Clif Bar).

TO US AND GLOBAL LEADERS

As the world gathers in Paris this week for the 2015 United Nations Conference of the Parties, we come together, as some of the largest, best known global apparel companies, to acknowledge that climate change is harming the world in which we operate.

From the farmers in cotton fields to the workers in garment factories, we know that people in some of the least climate-resilient regions are being negatively impacted by a warming world. Drought, changing temperatures and extreme weather will make the production of apparel more difficult and costly.

We recognize that human-produced greenhouse gas emissions are a key contributor to climate change. Climate change mitigation and technological innovation are vital to the health and well being of those who make and use our products, as well as to the future supply of materials needed to make those products.

Therefore . . .

We call upon you to reach a global agreement that provides the certainty businesses need and the ambition that climate science demands.

We support a strong global deal that will accelerate the transition to a low carbon economy and that includes:

A global goal of net zero greenhouse gas emissions well before the end of the century.

National carbon emission mitigation commitments that are strengthened every five years starting in 2020 with a clear timetable for new commitments in 5–year blocks from 2030 onwards.

Adaptation funding to build climate-resilient economies and communities.

Today we pledge to:

I. Continue to reduce our emissions while increasing the purchase of renewable energy and pursuing energy efficiency in our operations.

II. Advocate for climate and energy policies that meaningfully address climate change at the global, national and state/regional levels.

III. Engage our respective trade associations in thoughtful discussions on meaningful climate and energy policy and advocacy that promotes the long-term growth and prosperity of our sector and the health of the global economy.

We are prepared to be held accountable to our pledge.

We are ready to meet the climate challenges that face our businesses. Please join us in meeting the climate challenges that face our world.

Eric Wiseman (Chairman & CEO; VF Corporation), Herbert Hainer (CEO; Adidas Group), Jake Burton Carpenter & Donna Carpenter (Founders; Burton Snowboards), Eileen Fisher (Founder & Chairwoman; Eileen Fisher), Chip Bergh (President & CEO; Levi Strauss & Co.), Art Peck (Chief Executive Officer; Gap Inc.), Karl-Johan Persson (CEO; H&M).

[lowcarbonusa.org]

PAID ADVERTISEMENT

BUSINESS BACKS LOW-CARBON USA

We are some of the businesses that will help create the future economy of the United States.

We want this economy to be energy efficient and low carbon. We believe there are cost-effective and innovative solutions that can help us achieve that objective. Failure to tackle climate change could put America's economic prosperity at risk. But the right action now would create jobs and boost competitiveness.

We encourage our government to

1. seek a strong and fair global climate deal in Paris that provides long-term direction and periodic strengthening to keep global temperature rise below 2 °C

2. support action to reduce U.S. emissions that achieves or exceeds national commitments and increases ambition in the future

3. support investment in a low-carbon economy at home and abroad, giving industry clarity and boosting the confidence of investors

We pledge to continue efforts to ensure a just transition to a low-carbon, energy efficient U.S. economy and look forward to enabling strong ambition in the U.S. and at the Paris climate change conference.

Autodesk, Inc.; The Coca-Cola Company; Unilever; Adidas Group; Johnson Controls, Inc.; Clif Bar & Company; Intel; Kingspan Insulated Panels; Microsoft; Qualcomm; Sprint; Colgate-Palmolive Company; Smartwool; The Hartford; Volvo, Volvo Group North America; Burton; Snowbird; eBay; Seventh Generation; Johnson & Johnson Family of Companies; Vail Resorts; Levi Strauss & Co.; EMC; New Belgium Brewing Company; Squaw Valley Alpine Meadows; Annie's; Alta; General Mills; Dignity Health; BNY Mellon; Jupiter Oxygen Corporation; Hewlett Packard Enterprise; Outdoor Industry Association; Procter & Gamble; Ben & Jerry's; Schneider Electric; Xanterra; Nike; The North Face; Symantec; JLL; Powdr Corporation; Gap Inc.; Owens Corning; EnerNOC; Hilton Worldwide; VF Corporation; Guggenheim; Timberland; L'Oreal; IKEA; Aspen Snowmass, Aspen Skiing Company; Vulcan; Eileen Fisher; DuPont; CA Technologies; Nestle; Pacific Gas and Electric Company; Catalyst; Sealed Air; National Grid; Saunders Hotel Group; Hewlett Packard; Kellogg's; Teton Gravity Research; Dell; Mars, Incorporated; NRG; Ingersoll Rand.

IN SUPPORT OF PROSPERITY AND GROWTH: FINANCIAL SECTOR STATEMENT ON CLIMATE CHANGE

Scientific research finds that an increasing concentration of greenhouse gases in our atmosphere is warming the planet, posing significant risks to the prosperity and growth of the global economy. As major financial institutions, working with clients and customers around the globe, we have the business opportunity to build a more sustainable, low-carbon economy and the ability to help manage and mitigate these climate-related risks.

Our institutions are committing significant resources toward financing climate solutions. These actions alone, however, are not sufficient to meet global climate challenges. Expanded deployment of capital is critical, and clear, stable and long-term policy frameworks are needed to accelerate and further scale investments.

We call for leadership and cooperation among governments for commitments leading to a strong global climate agreement. Policy frameworks that recognize the costs of carbon are among many important instruments needed to provide greater market certainty, accelerate investment, drive innovation in low carbon energy, and create jobs. Over the next 15 years, an estimated $90 trillion will need to be invested in urban infrastructure and energy. The right policy frameworks can help unlock the incremental public and private capital needed to ensure this infrastructure is sustainable and resilient.

While we may compete in the marketplace, we are aligned on the importance of policies to address the climate challenge. In partnership with our clients and customers, we will provide the financing required for value creation and the vision necessary for a strong and prosperous economy for generations to come.

Bank of America; Citi; Goldman Sachs; JPMorgan Chase; Morgan Stanley; Wells Fargo.

Mr. WHITEHOUSE. I yield the floor.

The PRESIDING OFFICER. The majority leader.

MORNING BUSINESS

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMBAT ISIS AND PROTECT AND SECURE THE UNITED STATES ACT OF 2015

Mr. LEAHY. Mr. President, Senate Democrats are proposing important legislation to help combat the threat of ISIS and to keep Americans safe. It would strengthen the security of the Visa Waiver Program and close the terrorist gun loophole. I am a cosponsor of these efforts. We need to respond to the threat of ISIS—wherever it exists—and we need to work with our international partners to combat this barbaric terrorist group.

The President has adopted a limited and necessary military response. We stand here, elected by our constituents to give weight to their voices in our democracy. I hear from Vermonters every week concerned about the threat of ISIS. I also hear their concerns about further expanding what has been an unending war.

It is time for Congress to weigh in with more than just talking points and heated rhetoric. Congress has a duty to debate what further military role the United States should take in combating ISIS. Before we send our men and women into harm's way, Congress should vote on a new, limited authorization for the use of military force. We should sunset any new authorization of military force and require Congress to renew and reauthorize its authority.

The ill-fated war in Iraq cost thousands of lives and trillions of dollars and has left the region no more safe and secure than when it started more than a decade ago. Congress can't make that mistake again. I support strategic, authorized military efforts to dismantle ISIS, but just as I opposed the war in Iraq, I will not support a blank check that perpetuates unending war.

TRIBUTE TO SPECIALIST SKYLAR ANDERSON

Mr. LEAHY. Mr. President, last week, a distinct honor was bestowed upon Vermont Army National Guard

Specialist Skylar Anderson and, by extension, the Vermont National Guard. I want to recognize this milestone.

After graduating from a rigorous program at the 164th Regimental Training Institute in North Dakota, Specialist Anderson became the first female soldier in the country to be awarded a military occupation specialty as a combat engineer. In this position, she will enrich the capabilities of our Guard, bringing new skills and expertise to her work. While this is an impressive honor on its own, she did this while managing a full workload. While serving in the Vermont National Guard, she is a student at the University of Vermont. Specialist Anderson has clearly earned this recognition through her hard work and dedication.

Opportunities to serve in our military, whether soldier or sailor, airman, or marine, should be available to the best and brightest, regardless of gender, and Specialist Anderson has shown young women around the country that gender integration in the military is very real. Just last week, the Secretary of Defense declared all positions in the U.S. armed services open to females, removing artificial restrictions so that the United States can have the very best serving, like Specialist Anderson.

As a Vermonter, I am especially proud of her achievements, and I am also appreciative of the members of the Vermont National Guard who supported her throughout the process.

I ask unanimous consent that an article about Specialist Skylar Anderson published by National Guard Online be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the National Guard Online, Nov. 27, 2015]

VERMONT GUARD MEMBER BECOMES USA'S FIRST FEMALE COMBAT ENGINEER

COLCHESTER, VT.—Spc. Skylar Anderson, a member of the Vermont Army National Guard, became the first female Soldier in the nation to be awarded the 12B Military Occupation Specialty (MOS) code as a combat engineer.

Anderson was previously a Multiple Launch Rocket System Operations/Fire Direction Specialist (13P) prior to re-classing to a combat engineer.

She graduated Aug. 31 from the 164th Regimental Training Institute (RTI) in Devils Lake, North Dakota.

Goarmy.com says that combat engineers primarily supervise, serve or assist as a member of a team when they are tackling rough terrain in combat situations. They provide their expertise in areas such as mobility, counter-mobility, survivability and general engineering. They construct fighting positions, fixed/floating bridges, obstacles and defensive positions, place and detonate explosives, conduct operations that include route clearance of obstacles and rivers, prepare and install firing systems for demolition and explosives, and detect mines visually or with mine detectors.

''I knew that I would be one of the first females to go, but not the first to graduate,'' Anderson said. ''I knew that the MOS had just opened up a few months ago and having previously been field artillery, I wanted to do it.''

Originally enlisting in the New Hampshire National Guard, Anderson interstate transferred to the Vermont Army National Guard (VTARNG) in February of 2014, while pursuing a degree at the University of Vermont. Currently a junior, she is studying Animal Science, Equine Studies, in the pre-Veterinary program.

''I was floating around for a bit in Vermont,'' Anderson said in reference to how she became interested in becoming a 12B. Since the VTARNG didn't have 13Ps, Anderson briefly thought about joining the military police or working in supply. It wasn't until annual training this summer that she found out that the 12B MOS had opened up to women and decided that's what she wanted to do.

''Vermont is incredibly proud of Spc. Anderson and her accomplishments and achievements,'' said Maj. Gen. Steven A. Cray, the adjutant general, Vermont National Guard. ''This is an important milestone not only for Spc. Anderson, but for all women in the integration of females into combat roles.''

According to the 164th Regiment RTIs website, the 12B10 Combat Engineer MOS-T course provides reclassification training for military personnel with prior military experience, so that they may obtain the skills necessary to perform as a Combat Engineer.

There, Soldiers are provided technical training in basic demolitions, wire obstacles, explosive hazards, fixed bridging and urban operations.

''Spc. Anderson displayed tremendous personal courage in seeking out MOS reclassification to a specialty previously closed to women,'' said Capt. Eugene Enriquez, Commander, Headquarters, Headquarters Company, 86th Brigade Special Troop Battalion, 86th Infantry Brigade Combat Team (Mountain).

''The training at the school was awesome,'' Anderson said. ''By the third day we were out in the field and at the range, using TNT, dynamite and det cord, blowing stuff up! This class was really hands on and that's what I loved about it.''

ELECTIONS IN VENEZUELA

Mr. MENENDEZ. Mr. President, I want to express my outrage and horror at the out-of-control electoral situation in Venezuela—at the intimidation, violence, manipulation, and corruption by the Maduro government to manipulate election results in their favor.

For weeks, President Maduro has said that his party will do whatever it takes to stay in power, and I have no doubt that he will do everything he can to stay in power. In recent days, Maduro said: ''If on December 6th the political-right wins, prepare to see a country in chaos, in violence. I will not turn over nor will I betray the revolution''—a clear statement of what's to come, but the world is watching.

In October, he gave a public speech in which he said that if the opposition wins, the country would enter into one of its ''most turbulent periods'' because he will not turn over the revolution, and if necessary, he would rule through what he called ''a civic military union.'' Maduro's cronies have also made alarming, ominous statements in recent weeks warning the public that the ruling party will not lose control. The government has already denied international election observers, so, clearly, we know what is about to happen.

Maduro's term is not yet up, but it is only a matter of time, and this election will be a demonstration of his complete failure. The fact is numbers don't lie, and the crushing poll numbers coming out are further proof the country is ready for fundamental change from a failed economic model that has run its course and needs to be done away with. All of this against a backdrop of continued deceit, repression, and violence.

Last week, in broad daylight, armed supporters of the government assassinated Luiz Manuel Diaz, the state-level head of the Acción Democrática, or Democratic Action Party, at an open-air rally in the state of Guarico—clearly a politically targeted assassination designed to terrorize opposition parties and their supporters. Luiz Manuel Diaz was standing 6 feet away from Lilian Tintori, whom I have met several times, the wife of the high-profile political prisoner, Leopoldo Lopez.

This level of unacceptable, blatant violence is appalling and has been condemned by OAS Secretary General Luis Almagro, the U.N. High Commissioner for Human Rights, Zeid Ra'ad Al Hussein, and by countless human rights organizations. Again, the world is clearly watching and demanding that the rule of law in Venezuela be reestablished.

The fact is the government is engaged in clear election manipulation. The government-controlled National Electoral Council has disqualified seven leading opposition figures from participating in the elections—disqualifications without justification and without a process to appeal. The disqualifications have targeted only members of the opposition: Maria Corina Machado, the diputada—assembly member—that received the single highest number of votes in the 2010 elections; Manuel Rosales, the former governor of Zulia state and a former Presidential candidate for the opposition; Leopoldo Lopez, currently being held in a military prison, the most high-profile political prisoner in the Americas.

The government has also fabricated a border crisis with neighboring Colombia as a pretext to declare a state of emergency, in 23 municipalities in 3 states along the Colombian-Venezuelan border. This allows the government to arbitrarily suspend the fundamental rights of citizens in these municipalities to a right to assembly, right to peaceful demonstrations—and, guess what, it just so happens that these municipalities are either swing districts or ones where the opposition won handily in the 2010 legislative elections. In these same three states, the opposition won 18 of the 27 seats contested. The government is even resorting to political tricks.

In one district, in the city of Maracay, the leading opposition candidate is named Ismael Garcia, a lifelong political veteran. The government

managed to find a 28-year-old parking attendant named Ismael Garcia, who is running under a party name similar to the opposition candidate, with a logo nearly identical.

In another area in the capital of Caracas, the National Statistics Institute and National Electoral Council have determined that, by the end of the year, 128,000 voters are scheduled to move out of a district largely supportive of the opposition to a district supportive of the government. This move is large enough to decrease by one the number of deputies that the opposition district will elect and enough to increase by one the number of deputies that the pro-government district will elect.

The National Statistics Institute and National Electoral Council acknowledge that 134,000 votes will move back to the pro-opposition district by the middle of next year, which means 130,000 people are moving for a period of 6 to 9 months.

The Maduro government can't believe they can hide from these obvious tactics of political tricks to rob the people of Venezuela of their right to a free and fair election. They can't be so naíve to think that these ridiculous tactics are going unnoticed. We are not blind to it. We are watching. And I come to the floor of the Senate to send a clear message that makes it clear that the world is watching and waiting for the results of the election and the aftermath.

Against this backdrop of violence, intimidation, corruption, and election fraud, the Venezuelan Government has routinely denied the presence of credible international election observers. If the Venezuelan Government was interested in guaranteeing the transparency, objectivity, and credibility of the elections, it would have invited the OAS—the region's preeminent multilateral body—to observe the elections.

Since 1989, the OAS has conducted more than 160 election observation missions in 24 countries. The OAS Secretary General has repeatedly offered to observe, but Maduro has turned him down. The EU has also offered to observe—also rejected by the government. Instead, the Venezuelan Government has opted for a mission from Union de Naciones Suramericanas, UNASUR, which conducts ''electoral accompaniment'' rather than ''election observation.'' The technical rigor of the UNASUR mission has been called into question by many members of the international community. Brazil's Supreme Electoral Court banned Brazil's participation in the UNASUR mission. Chile and Uruguay also will not participate in the UNASUR mission. As a Washington Post headline put it this week, ''Venezuela [is heading] to a pivotal election; without a referee.''

As Venezuela heads into this election, nationwide polls are showing a strong and sustained trend in favor of the opposition. National polling shows opposition candidates leading by 28 points. This growing advantage is the result of an increasingly dire outlook that reflects the state of the nation. The people of Venezuela have and are suffering economic hardship. They are subjected to increased societal violence. They have seen more and more evidence that senior government officials are personally and deeply involved in drug trafficking, deeply involved in money laundering. In fact, his own family members have been arrested for drug trafficking.

And, to make matters worse, as President Maduro, a former bus driver, has driven his country's economy off a cliff, there have been shortages of beef and milk, chicken and eggs, rice and pasta; there have been shortages of soap for bathing and diapers for small children. And this trend will likely get worse. This year, the IMF predicts that Venezuela's GDP will contract by 10 percent—the single largest economic contraction in the world this year. The country is also suffering from the highest levels of inflation in the entire world, more than 150 percent in 2015 according to the IMF, and expected to surpass 200 percent in 2016.

As economic hardship grows, it shouldn't be a complete surprise that criminality in the country has worsened—the murder rate more than doubling over the past decade. According to the Venezuela Violence Observatory, the per capita murder rate in Venezuela was 37 per 100,000 in 2005, 54 per 100,000 in 2010, and 82 per 100,000 in 2014. And things are even worse in the capital Caracas, where the per capita murder rate is approaching 125 per 100,000 residents. This puts Caracas among the top five most violent cities in the world and on par with the carnage generally seen only in war zones.

On top of this widespread societal violence, in 2014, the world bore witness to Venezuelan security forces violently deployed on the streets to suppress peaceful protests occurring throughout the country that has left 43 people dead on both sides of the political divide, more than 50 documented cases of torture of opposition activists, and thousands of arrests. Throughout this violence, respected international human rights organization Human Rights Watch found that human rights abuses were a ''systematic practice'' committed by Venezuelan security forces.

To make matters worse, a darker and more sinister narrative has emerged from Venezuela in 2015. In March of this year, the Treasury Department's Financial Crimes Enforcement Network—known as FinCEN—announced the Private Bank of Andorra is a ''foreign financial institution of primary money laundering concern.'' Among other concerns, FinCEN found that the bank had been involved in a scheme that siphoned off roughly $2 billion from Venezuelan state oil company PDVSA, a scheme that surely included widespread involvement and knowledge of Venezuelan Government officials. The world is watching.

In May of this year, in a Wall Street Journal exclusive, the world was informed that the Department of Justice, the Drug Enforcement Agency, and several Federal prosecutors' offices are investigating Diosdado Cabello for involvement in drug trafficking, a man who serves as the head of Venezuela's National Assembly and someone generally regarded as the second most powerful figure in the government's coalition. And now he is apparently wanted for turning Venezuela into a global cocaine hub.

And in October, in another incredibly well-documented piece, the Wall Street Journal revealed how money laundering and embezzlement inside Venezuelan state oil giant Venezuela was directed from the highest levels, including by former PDVSA president Rafael Ramirez. These two incidents are part of a long and troubling series of disturbing revelations about how the highest levels of the power are directly responsible for the Venezuelan state becoming penetrated by drug trafficking and criminality.

With such sinister trends becoming commonplace in Venezuela, it is important to recognize that a sea change of opinion is taking place in Latin America, and increasingly, key political leaders are speaking out forcefully against what they are seeing in Venezuela.

In September of this year, 34 former Presidents and heads of state from across Latin America and the Caribbean met in Bogota and issued a declaration calling for international election observation, greater safeguards for Venezuelan voters, and the release of political prisoners in the country.

Last month, the secretary general of the OAS Luis Almagro released a scathing letter to the head of Venezuela's National Electoral Council, laying out all of his concerns with the process running up to the December 6 elections and calling for an immediate course correction.

Also, last month, I was proud to join with 17 of my colleagues here in the U.S. Senate, 32 Brazilian senators, 57 Colombian senators, 12 Chilean senators, 26 Costa Rica Assembly members, and 13 Peruvian members of Congress—more than 150 legislators from across the Americas—in an unprecedented showing of unity to call for election observation, speak out against the disqualification of opposition candidates, and call for the release of political prisoners. And just last week, it was important to see Argentina's President-elect Mauricio Macri calling for the South American trade block Mercosur to review whether Venezuela should be suspended from the block for violating its democracy clause and failing to uphold human rights.

The question then remains, what can we do? What can the United States do? As elections are held in Venezuela this weekend, it is imperative that we all remain clear-eyed about the challenges at hand in the country. For 15 years,

we have watched as President Maduro and former-President Chavez have systematically dismantled democracy in the country. They have removed checks on the executive. They have corrupted the judiciary and the rule of law. They have usurped the powers of the legislature. They have politicized the military. And they have suppressed freedom of the press.

No one should be surprised that 15 years of democratic deterioration has led to economic ruin, to rampant criminality, and to an increasingly dangerous political polarization. But the first step to correct course and help Venezuelans back from the brink of being a failed state is the exercise this weekend of that most fundamental democratic right with a huge voter turnout that could help move the country back toward democracy and the rule of law.

We should take note that Latin America is speaking out forcefully about the situation in Venezuela, but we in the United States should be preparing our own response. Last week, the Washington Post Editorial Board noted that should the vote be disrupted in Venezuela, the ''U.S. should be ready to respond with censure and sanctions.'' I couldn't agree more.

In December of 2014, the U.S. Congress, with the unanimous consent of both Chambers, approved the Venezuela Defense of Human Rights and Civil Society Act—legislation which I authored and introduced with Senators Nelson, Rubio, Kirk, and McCain. This bipartisan bill called for mandatory sanctions against violations of human rights and fundamental freedoms and provided the administration with the authorities it needs. The administration has used these sanctions once, but we should be prepared, if necessary, to use them again.

We know what is happening in Venezuela: subversion of democracy through state-sponsored violence; repression; hundreds of thousands of Venezuelans in the streets earlier this year protesting alarming levels of violence and crime; sky-high inflation rates; the scarcity of food and basic consumer goods. That is today's Venezuela. The question is: Can we make tomorrow better for the people of Venezuela?

The world watched as President Maduro and his government responded to protests with a brutal display of force not seen in our hemisphere in over a decade. The results: more than 40 deaths, more than 50 documented cases of torture, and thousands of unlawful detentions. In May, Human Rights Watch released a devastating report that said Venezuelan human rights violations ''were part of a systematic practice by Venezuelan security forces'' and that these abuses were intended to ''punish people for their political views.''

As I have said repeatedly and as is the case today, not one Venezuelan Government official or member of the security forces has been held accountable for their role in beating, shooting, jailing, or torturing peaceful protesters—not one. Now they threaten to highjack the electoral process, and they must know that the world is watching and that there will be consequences to their actions.

TRIBUTE TO ROBERT DICK DOUGLAS, JR.

Mr. BURR. Mr. President, I ask my colleagues to join me in honoring my constituent Robert Dick Douglas, Jr. Mr. Douglas earned Eagle Scout rank 90 years ago today, making him the longest serving Eagle alive.

The Boy Scouts of America recently highlighted Mr. Douglas' life in their magazine, which I think would impress anyone who reads it. I am pleased to highlight some of the points in the article.

A native of Greensboro, Mr. Douglas eagerly joined the Boy Scouts the very same day that he celebrated his 12th birthday. After earning his Eagle Scout award on December 8, 1925, Mr. Douglas was one of three scouts selected for an African safari with famed photographers and adventurers Martin and Osa Johnson. Upon his return from this journey, Douglas coauthored the best selling documentary ''Three Boy Scouts in Africa,'' which went on to sell 125,000 copies in its first year of publication. The book afforded Douglas the opportunity to tour the Nation speaking with the likes of Amelia Earhart at school and civic assemblies.

The publisher was evidently so impressed with Douglas' work that he sent the young Eagle Scout to Alaska to write another adventure book titled ''A Boy Scout in the Grizzly Country.'' From that experience, Douglas became an advocate of land and wildlife conservation and, when he returned home, began sharing his newfound knowledge with the Nation through public appearances.

Douglas' successes continued well into adulthood, going on to graduate from law school at Georgetown University and to become a labor and employment law attorney at his father's legal practice. Mr. Douglas served as a lawyer for over 70 years and managed to make his way before the Supreme Court. Douglas also served in the FBI, where he had the chance to work under J. Edgar Hoover for a time. Mr. Douglas retired at the age of 96.

In recognition of his longevity and commitment to scouting and his community, the 103-year-old Douglas was presented with the Distinguished Eagle Scout Award on September 24, 2015. During the ceremony, Mr. Douglas extolled scouting as a significant influence on his life. He insists to this day that scouting taught him that he could do just about anything that he wanted to undertake. It is with great pleasure that I pay tribute to Robert Dick Douglas, Jr., today on his 90th anniversary of attaining Eagle Scout.

RECOGNIZING MURDOCK ELEMENTARY SCHOOL

Mr. DONNELLY. Mr. President, today I wish to applaud Murdock Elementary School of Lafayette, IN, for being recognized as a 2015 National Blue Ribbon School by the U.S. Department of Education.

Established in 1982, the National Blue Ribbon Schools Program has recognized over 7,500 public and nonpublic schools that have demonstrated a vision of educational excellence for all students, regardless of their social or economic background. Since its inception, this program has offered the opportunity for schools in every State to gain recognition for educational accomplishments in closing the achievement gaps among student groups.

Murdock Elementary School continues to be one of the best performing schools in the State of Indiana. It has been named an Indiana Four Star School for 4 consecutive years.

In 2014, Murdock Elementary School's ISTEP+ pass rate for English/Language Arts scores reached 97.7 percent. Mathematics scores exceeded 95 percent, and the overall score for the school hit 94.3 percent.

Murdock Elementary School's effectiveness can be found in its holistic approach and dedication to student achievement. Murdock staff, students, and students' families work together to teach and instill values that develop strong character and demonstrate that every kid matters: honesty, effort, caring, respect, and teamwork. With some of the highest English and mathematics scores in Indiana, Murdock Elementary School is a stellar example of the benefits that result from dedication, motivation, collaboration, and family partnership in education.

I would like to acknowledge Murdock Elementary School principal, Janell Uerkwitz, the entire staff, the student body, and their families. The effort, dedication, and value you put into education led not only to this prestigious recognition, but will benefit you and our communities well into the future.

On behalf of the citizens of Indiana, I congratulate Murdock Elementary School, and I wish the students and staff continued success in the future.

RECOGNIZING NORTH ELEMENTARY SCHOOL

Mr. DONNELLY. Mr. President, today I wish to applaud North Elementary School of Poseyville, IN, for being recognized as a 2015 National Blue Ribbon School by the U.S. Department of Education.

Established in 1982, the National Blue Ribbon Schools Program has recognized over 7,500 public and nonpublic schools that have demonstrated a vision of educational excellence for all students, regardless of their social or economic background. Since its inception, this program has offered the opportunity for schools in every State to

gain recognition for educational accomplishments in closing the achievement gaps among student groups.

North Elementary School continues to be one of the best performing schools in the State of Indiana. It has been named an Indiana Four Star School several times.

In 2014, North Elementary School's ISTEP+ pass rate for English/Language Arts scores increased by over 7 percent to a 94.8 percent. Mathematics scores increased to 97.2 percent combined for third through fifth grades.

North Elementary School's effectiveness can be found in its holistic approach and dedication to student achievement. North Elementary staff, students, and students' families work together to teach and instill values that develop strong character including integrity, responsibility, effort, and kindness. With some of the highest English and mathematics scores in Indiana, North Elementary School is a stellar example of the benefits that result from dedication, motivation, collaboration, and family partnership in education.

I would like to recognize North Elementary School principal, Terri Waugaman, the entire staff, the student body, and their families. The effort, dedication, and value you put into education led not only to this prestigious recognition, but will benefit you and our communities well into the future.

On behalf of the citizens of Indiana, I congratulate North Elementary School, and I wish the students and staff continued success in the future.

RECOGNIZING OAK TRACE ELEMENTARY SCHOOL

Mr. DONNELLY. Mr. President, today I wish to applaud Oak Trace Elementary School of Westfield, IN, for being recognized as a 2015 National Blue Ribbon School by the U.S. Department of Education.

Established in 1982, the National Blue Ribbon Schools Program has recognized over 7,500 public and nonpublic schools that have demonstrated a vision of educational excellence for all students, regardless of their social or economic background. Since its inception, this program has offered the opportunity for schools in every State to gain recognition for educational accomplishments in closing the achievement gaps among student groups.

Oak Trace Elementary School continues to be one of the best performing schools in the State of Indiana. It has been named an Indiana Four Star School several times.

In 2014, Oak Trace Elementary School's ISTEP+ pass rate for English/Language Arts scores increased by over 2 percent to a full 100 percent. Mathematics scores increased to 98.7 percent combined for third through fourth grades.

Oak Trace Elementary School's effectiveness can be found in its holistic approach and dedication to student achievement. Oak Trace staff, students, and students' families work together to teach and instill values that develop strong character including integrity, responsibility, effort, and kindness. With some of the highest English and mathematics scores in Indiana, Oak Trace Elementary School is a stellar example of the benefits that result from dedication, motivation, collaboration, and family partnership in education.

I would like to acknowledge Oak Trace Elementary School principal, Robin Lynch, the entire staff, the student body, and their families. The effort, dedication, and value you put into education led not only to this prestigious recognition, but will benefit you and our communities well into the future.

On behalf of the citizens of Indiana, I congratulate Oak Trace Elementary School, and I wish the students and staff continued success in the future.

ADDITIONAL STATEMENTS

RECOGNIZING THE 100TH ANNUAL NEWPORT WINTER CARNIVAL

● Ms. AYOTTE. Mr. President, today I wish to celebrate the 100th annual Winter Carnival held in Newport, NH.

The maiden Newport Winter Carnival was held in 1916, making it the oldest continuous winter carnival in the country and the largest annual event in Newport. For over a week in early February, Newport will be transformed into a winter wonderland. Families, friends, and visitors will gather for this yearly celebration and participate in events that include the ice fishing derby, hockey games, Main Street 1 Mile Run, horseback riding demos, horse show tournament, and countless gatherings, dinners, and historic remembrances, capped off by fireworks to light up the winter sky.

The Newport Winter Carnival is one of New Hampshire's longest and most exciting winter events. The people of Newport are justifiably proud of this unique and treasured tradition. The carnival epitomizes the spirit of the Granite State and celebrates New Hampshire's beautiful landscape and snow-covered season. Providing wintertime fun for the residents of and visitors to our State, Newport's Winter Carnival brings warmth and cheer throughout the frosty month of February.

On behalf of the people of New Hampshire, I join with the residents of Newport in celebrating the 100th anniversary of the Winter Carnival. I commend the people of Newport for this great New Hampshire tradition and wish the town of Newport continued success for generations to come.●

TRIBUTE TO JIM SMITH

● Mr. THUNE. Mr. President, today I wish to recognize the distinguished career of a great South Dakotan, Mr. Jim Smith.

Jim was born in Aberdeen, SD, in 1930, and was raised in Pierre. He received his Bachelor of Science degree from the South Dakota School of Mines and Technology in 1952 before attending law school at George Washington University. While still in law school, Jim worked as an elevator operator in the U.S. Capitol until he became a legislative assistant to South Dakota Senator Karl Mundt. He eventually served as minority counsel to the U.S. Senate Subcommittee on Intergovernmental Relations. Upon graduation from law school, Jim became the associate Federal legislative counsel at the American Bankers Association from 1963 to 1968.

From 1969 to 1973, Jim headed the Treasury Department's Office of Congressional Relations, completing his tenure as Deputy Undersecretary of the Department under three separate Secretaries. In 1971, Jim was awarded the Alexander Hamilton Award, the highest honor bestowed by the Treasury Department. He was appointed by President Nixon as the 23rd U.S. Comptroller of the Currency in 1973, where he served until the end of the Ford Administration. Jim returned to the Midwest in 1977 to serve as the Executive Vice President of the First Chicago Corporation.

In 1980, Jim reconnected with his old friend, Charls E. Walker, from their days at the American Bankers Association. Jim joined Mr. Walker's consulting firm, Charls Walker Associates, later renamed Walker/Free Associates, until he formed The Smith-Free Group with Jim Free in 1995. For the past 35 years, Jim has advocated for a diverse range of issues before the Federal Government, including pro bono efforts on behalf of victims of Bernie Madoff's Ponzi scheme.

Jim came to Washington during President Eisenhower's administration, and his career has spanned 10 subsequent Presidents. His reputation as a modest, soft-spoken, and principled man is a testament to his South Dakota roots. He embodies the strong-willed, hard-working, and good-natured characteristics that all South Dakotans share; and his life story proves the continued resilience of the American Dream.

Jim is retiring to spend more time with his wife of 37 years, Karen, along with his children, grandchildren, and great-grandchildren. I would like to thank him for his service to both South Dakota and the country and congratulate him on a well-deserved retirement.●

MESSAGE FROM THE PRESIDENT

A message from the President of the United States was communicated to the Senate by Mr. Williams, one of his secretaries.

EXECUTIVE MESSAGE REFERRED

As in executive session the Presiding Officer laid before the Senate a message from the President of the United States submitting a treaty which was referred to the Committee on Foreign Relations.

(The message received today is printed at the end of the Senate proceedings.)

MESSAGE FROM THE HOUSE

At 11:26 a.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the House has passed the following bill, without amendment:

S. 614. An act to provide access to and use of information by Federal agencies in order to reduce improper payments, and for other purposes.

The message also announced that the House has passed the following bill, in which it requests the concurrence of the Senate:

H.R. 1321. An act to amend the Federal Food, Drug, and Cosmetic Act to prohibit the manufacture and introduction or delivery for introduction into interstate commerce of rinse-off cosmetics intentionally-added plastic microbeads.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–3678. A communication from the Associate Administrator of the Fruit and Vegetable Programs, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Oranges and Grapefruit Grown in Lower Rio Grande Valley in Texas; Decreased Assessment Rate'' (Docket No. AMS–FV–15–0035) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–3679. A communication from the Associate Administrator of the Cotton and Tobacco Programs, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Defining Bona Fide Cotton Spot Markets for the World Cotton Futures Contract'' ((RIN0581–AD38) (Docket No. AMS–CN–14–0050)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–3680. A communication from the Associate Administrator of the Livestock, Poultry, and Seed Program, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Soybean Promotion and Research: Amend the Order to Adjust Representation on the United Soybean Board'' (Docket No. AMS–LPS–15–0016) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–3681. A communication from the Associate Administrator of the Fruit and Vegetable Programs, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Domestic Dates Produced or Packed in Riverside County, California; Deceased Assessment Rate'' (Docket No. AMS–FV–15–0034) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–3682. A communication from the Associate Administrator of the Fruit and Vegetable Programs, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Tart Cherries Grown in the States of Michigan, et al.; Revision of Exemption Requirements'' (Docket No. AMS–FV–15–0046) received during adjournment of the Senate in the Office of the President of the Senate on November 20, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–3683. A communication from the Associate Administrator of the Fruit and Vegetable Programs, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Grapes Grown in a Designated Area of Southeastern California and Imported Table Grapes; Relaxation of Handling Requirements'' (Docket No. AMS–FV–14–0031) received during adjournment of the Senate in the Office of the President of the Senate on November 20, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–3684. A communication from the Associate Administrator of the Specialty Crops Program, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Hardwood Lumber and Hardwood Plywood Promotion, Research, and Information Order: Termination of Rulemaking Proceeding'' (Docket No. AMS–FV–11–0074) received during adjournment of the Senate in the Office of the President of the Senate on November 20, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–3685. A communication from the Under Secretary of Defense (Comptroller), transmitting, pursuant to law, a report relative to a violation of the Antideficiency Act that involved fiscal year 2011 Procurement, Marine Corps and Operation and Maintenance, Marine Corps, funds, and was assigned Navy case number 14–01; to the Committee on Appropriations.

EC–3686. A communication from the Assistant Director, Senior Executive Management Office, Department of Defense, transmitting, three (3) reports relative to vacancies in the Department of Defense, received in the Office of the President of the Senate on November 19, 2015; to the Committee on Armed Services.

EC–3687. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency with respect to the stabilization of Iraq that was declared in Executive Order 13303 of May 22, 2003; to the Committee on Banking, Housing, and Urban Affairs.

EC–3688. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency with respect to Burma that was declared in Executive Order 13047 of May 20, 1997; to the Committee on Banking, Housing, and Urban Affairs.

EC–3689. A communication from the Associate General Counsel for Legislation and Regulations, Office of Community Planning and Development, Department of Housing and Urban Development, transmitting, pursuant to law, the report of a rule entitled ''Changes to Accounting Requirements for the Community Development Block Grant (CDBG) Program'' (RIN2506–AC39) received during adjournment of the Senate in the Office of the President of the Senate on November 23, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–3690. A communication from the President of the United States, transmitting, pursuant to law, a report relative to the issuance of an Executive Order declaring a national emergency with respect to the unusual and extraordinary threat to the national security and foreign policy of the United States posed by the situation in Burundi; to the Committee on Banking, Housing, and Urban Affairs.

EC–3691. A communication from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Amendment to the Export Administration Regulations to Add XBS Epoxy System to the List of 0Y521 Series; Technical Amendment to Update Other 0Y521 Items.'' (RIN0694–AG70) received in the Office of the President of the Senate on December 2, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–3692. A communication from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Wassenaar Arrangement 2014 Plenary Agreements Implementation and Country Policy Amendments; Correction'' (RIN0694–AG44) received in the Office of the President of the Senate on December 2, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–3693. A communication from the Associate Administrator of the Fruit and Vegetable Programs, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Walnuts Grown in California; Increased Assessment Rate'' (Docket No. AMS–FV–15–0026) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–3694. A communication from the General Counsel, Federal Energy Regulatory Commission, transmitting, pursuant to law, the report of a rule entitled ''Refinements to Policies and Procedures for Market-Based Rates for Wholesale Sales of Electric Energy, Capacity and Ancillary Services by Public Utilities'' ((RIN1902–AE85) (Docket No. RM14–14)) received during adjournment of the Senate in the Office of the President of the Senate on November 23, 2015; to the Committee on Energy and Natural Resources.

EC–3695. A communication from the Director of Congressional Affairs, Nuclear Regulatory Commission, transmitting, pursuant to law, the report of a rule entitled ''Cyber Security Event Notifications'' (Regulatory Guide 5.83) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Environment and Public Works.

EC–3696. A communication from the Admiral, Naval Reactors, transmitting, pursuant to law, reports relative to the Naval Nuclear Propulsion Program's reports on environmental monitoring and radioactive waste disposal, radiation exposure, and occupational safety and health; to the Committee on Environment and Public Works.

EC–3697. A communication from the Deputy Director, Centers for Medicare and Medicaid Services, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Medicare Program; Contract Year 2016 Policy and Technical Changes to the Medicare Advantage and the Medicare Prescription Drug Benefit Programs'' (RIN0938–AS20) received

during adjournment of the Senate in the Office of the President of the Senate on November 24, 2015; to the Committee on Finance.

EC–3698. A communication from the Director of Regulations and Policy Management Staff, Food and Drug Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Current Good Manufacturing Practice, Hazard Analysis, and Risk-Based Preventive Controls for Human Food; Clarification of Compliance Date for Certain Food Establishments'' ((RIN0910–AG36) (Docket No. FDA–2011–N–0920)) received during adjournment of the Senate in the Office of the President of the Senate on November 23, 2015; to the Committee on Health, Education, Labor, and Pensions.

EC–3699. A communication from the Director of Regulations and Policy Management Staff, Food and Drug Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Artificially Sweetened Fruit Jelly and Artificially Sweetened Fruit Preserves and Jams; Revocation of Standards of Identity'' (Docket No. FDA–1997–P–0007, formerly Docket No. 1997P–0142) received during adjournment of the Senate in the Office of the President of the Senate on November 23, 2015; to the Committee on Health, Education, Labor, and Pensions.

EC–3700. A communication from the Deputy Director, Centers for Disease Control and Prevention, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Occupational Safety and Health Research and Related Activities: Removal of Regulations Regarding Administrative Functions, Practices, and Procedures'' (RIN0920–AA55) received during adjournment of the Senate in the Office of the President of the Senate on November 24, 2015; to the Committee on Health, Education, Labor, and Pensions.

EC–3701. A communication from the Acting Assistant General Counsel for Regulatory Services, Office of Postsecondary Education, Department of Education, transmitting, pursuant to law, the report of a rule entitled ''Student Assistance General Provisions, Federal Family Education Loan Program, and William D. Ford Federal Direct Loan Program'' (RIN1840–AD18) received during adjournment of the Senate in the Office of the President of the Senate on November 20, 2015; to the Committee on Health, Education, Labor, and Pensions.

EC–3702. A communication from the Acting Assistant General Counsel for Regulatory Services, Office of Postsecondary Education, Department of Education, transmitting, pursuant to law, the report of a rule entitled ''Program Integrity and Improvement'' (RIN1840–AD14) received during adjournment of the Senate in the Office of the President of the Senate on November 20, 2015; to the Committee on Health, Education, Labor, and Pensions.

EC–3703. A communication from the Special Counsel, United States Office of the Special Counsel, transmitting, pursuant to law, the Office of the Special Counsel's Performance and Accountability Report for fiscal year 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3704. A communication from the Treasurer, National Gallery of Art, transmitting, pursuant to law, the Gallery's Performance and Accountability Report for the year ended September 30, 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3705. A communication from the Chair, Securities and Exchange Commission, transmitting, pursuant to law, the Commission's Agency Financial Report for fiscal year 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3706. A communication from the Chairman, Merit Systems Protection Board, transmitting, pursuant to law, the Board's Agency Financial Report for fiscal year 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3707. A communication from the Chairwoman, U.S. Election Assistance Commission, transmitting, pursuant to law, the Commission's Semiannual Report of the Inspector General for the period from April 1, 2015 through September 30, 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3708. A communication from the Acting Chairman of the National Endowment for the Arts, transmitting, pursuant to law, the Semiannual Report of the Inspector General and the Chairman's Semiannual Report on Final Action Resulting from Audit Reports, Inspection Reports, and Evaluation Reports for the period from April 1, 2015 through September 30, 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3709. A communication from the Secretary of Veterans Affairs, transmitting, pursuant to law, the Department of Veterans Affairs' Semiannual Report of the Inspector General for the period from April 1, 2015 through September 30, 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3710. A communication from the President, African Development Foundation, transmitting, pursuant to law, the Annual Report of the Inspector General for the period from October 1, 2014 through September 30, 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3711. A communication from the Chairman, Occupational Safety and Health Review Commission, transmitting, pursuant to law, the Commission's Performance and Accountability Report for fiscal year 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3712. A communication from the Administrator, Saint Lawrence Seaway Development Corporation, Department of Transportation, transmitting, pursuant to law, the Corporation's annual financial audit and management report for the fiscal year ending September 30, 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3713. A communication from the Acting Deputy Commissioner for Budget, Finance, Quality, and Management, Social Security Administration, transmitting, pursuant to law, the Uniform Resource Locator (URL) for the Administration's Federal Activities Inventory Reform Act Inventory for fiscal years 2012 and 2013; to the Committee on Homeland Security and Governmental Affairs.

EC–3714. A communication from the Secretary of Energy, transmitting, pursuant to law, the Department of Energy's Agency Financial Report for fiscal year 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3715. A joint communication from the Chairman and the General Counsel, National Labor Relations Board, transmitting, pursuant to law, the Office of Inspector General Semiannual Report for the period of April 1, 2015 through September 30, 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3716. A communication from the Chairwoman of the Federal Trade Commission, transmitting, pursuant to law, the Commission's fiscal year 2015 Agency Financial Report; to the Committee on Homeland Security and Governmental Affairs.

EC–3717. A communication from the Chief Financial Officer and the Chief Operating Officer of the National Tropical Botanical Garden, transmitting, pursuant to law, a report relative to an audit of the Garden for the period from January 1, 2014, through December 31, 2014; to the Committee on the Judiciary.

EC–3718. A communication from the Chief Impact Analyst, Veterans Health Administration, Department of Veterans Affairs, transmitting, pursuant to law, the report of a rule entitled ''Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards; Updating References'' (RIN2900–AP03) received in the Office of the President of the Senate on December 2, 2015; to the Committee on Veterans' Affairs.

EC–3719. A communication from the Chief Impact Analyst, Veterans Health Administration, Department of Veterans Affairs, transmitting, pursuant to law, the report of a rule entitled ''Expanded Access to Non-VA Care through the Veterans Choice Program'' (RIN2900–AP60) received in the Office of the President of the Senate on December 2, 2015; to the Committee on Veterans' Affairs.

EC–3720. A communication from the Deputy Inspector General, Office of Inspector General, Department of the Interior, transmitting, pursuant to law, the Department's Semiannual Report of the Inspector General for the period from April 1, 2015 through September 30, 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3721. A communication from the Assistant Administrator for Procurement, National Aeronautics and Space Administration, transmitting, pursuant to law, the report of a rule entitled ''NASA FAR Supplement: Safety and Health Measures and Mishap Reporting'' (RIN2700–AE16) received in the Office of the President of the Senate on December 2, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3722. A communication from the Program Analyst, Office of Managing Director, Federal Communications Commission, transmitting, pursuant to law, the report of a rule entitled ''Assessment and Collection of Regulatory Fees for Fiscal Year 2014; Assessment and Collection of Regulatory Fees for Fiscal Year 2013; Procedures for Assessment and Collection of Regulatory Fees'' ((FCC 14–88) (MD Docket No. 14–92; MD Docket No. 13–140; MD Docket No. 12–201)) received during adjournment of the Senate in the Office of the President of the Senate on November 20, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3723. A communication from the Chief of Staff, Media Bureau, Federal Communications Commission, transmitting, pursuant to law, the report of a rule entitled ''Accessibility of User Interfaces, and Video Programming Guides and Menus'' ((FCC 15–156) (MB Docket No. 12–108)) received in the Office of the President of the Senate on December 2, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3724. A communication from the Ombudsman, Federal Motor Carrier Safety Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Prohibiting Coercion of Commercial Motor Vehicle Drivers'' (RIN2126–AB57) received in the Office of the President of the Senate on December 2, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3725. A communication from the Program Analyst, National Highway Traffic Safety Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''List of Nonconforming Vehicles Decided to be Eligible for Importation'' (Docket No . NHTSA–2015–0087) received in the Office of the President of the Senate on December 2, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3726. A communication from the Program Analyst, National Highway Traffic Safety Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Federal Motor Vehicle Safety Standards; Electronic Stability Control Systems for Heavy Vehicles'' (RIN2127–AK97) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3727. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments.'' ((RIN2120–AA66) (Docket No. FAA–2015–0783)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3728. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Extension of the Prohibition Against Certain Flights in the Simferopol (UKFV) and Dnipropetrovsk (UKDV) Flight Information Regions'' ((RIN2120–AK78) (Docket No. FAA–2014–0225)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3729. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''IFR Altitudes; Miscellaneous Amendments'' ((RIN2120–AA63) (Docket No. 31048)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3730. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Placida, FL'' ((RIN2120–AA66) (Docket No. FAA–2015–2890)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3731. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Class D and Class E Airspace; Van Nuys, CA'' ((RIN2120–AA66) (Docket No. FAA–2015–1138)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3732. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Revocation of Class E Airspace; Burbank, CA'' ((RIN2120–AA66) (Docket No. FAA–2015–1140)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3733. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Agusta S.p.A. Helicopters'' ((RIN2120–AA64) (Docket No. FAA–2015–3969)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3734. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Pacific Aerospace Limited Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2015–3620)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3735. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Sikorsky Aircraft Corporation (Type Certificate Previously Held by Schweizer Aircraft Corporation) Helicopters'' ((RIN2120–AA64) (Docket No. FAA–2015–1008)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3736. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Bell Helicopter Textron Canada Limited'' ((RIN2120–AA64) (Docket No. FAA–2015–4345)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3737. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; GA 8 Airvan (Pty) Ltd Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2014–1123)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3738. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Airbus Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2015–3877)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3739. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; The Boeing Company Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2014–0128)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3740. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Airbus Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2015–0574)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3741. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Airbus Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2015–0244)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3742. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Airbus Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2015–4211)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3743. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Lockheed Martin Corporation/Lockheed Martin Aeronautics Company Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2015–1425)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3744. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Fiberglas-Technik Rudolf Lindner GmbH and Co. KG Gliders'' ((RIN2120–AA64) (Docket No. FAA–2015–3300)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3745. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Schempp-Hirth Flugzeugbau GmbH Gliders'' ((RIN2120–AA64) (Docket No. FAA–2015–3224)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3746. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Pratt and Whitney Division Turboprop Engines'' ((RIN2120–AA64) (Docket No. FAA–2015–0787)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3747. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; General Electric Company Turbofan Engines'' ((RIN2120–AA64) (Docket No. FAA–2015–1658)) received in the Office of the President of the Senate on November 30, 2015; to the Committee on Commerce, Science, and Transportation.

PETITIONS AND MEMORIALS

The following petitions and memorials were laid before the Senate and were referred or ordered to lie on the table as indicated:

POM–109. A resolution adopted by the Senate of the State of Michigan urging the United States Congress to enact legislation for the purpose of enhancing hunting, fishing, recreational shooting, and other outdoor recreational opportunities, as well as strengthen conservation efforts nationwide; to the Committee on Environment and Public Works.

SENATE RESOLUTION NO. 109

Whereas, To this day, conservation is funded primarily by sportsmen and women. This

American System of Conservation Funding is a user pays-public benefits approach that includes excise taxes on hunting, fishing, and boating equipment. This strategy is widely recognized as the most successful model of fish and wildlife management funding in the world; and

Whereas, Through the pursuit of their outdoor passions, sportsmen and women support hundreds of thousands of jobs and contribute billions to our economy annually through salaries, wages, and product purchases; and

Whereas, The United States Congress has worked on several pieces of legislation over the years to boost a number of key conservation priorities that are supported by millions in the outdoor recreational community; and

Whereas, Currently pending legislation in both the U.S. House and Senate would create or renew several important programs that are vital to the continued conservation of our natural resources, the health of America's local economies, and the enhancement and protection of our time-honored outdoor pastimes. Known as the Sportsmen's Heritage and Recreational Enhancement (SHARE) Act (H.R. 2406) and the Bipartisan Sportsmen's Act (S. 405), these bills contain a broad array of bipartisan measures, including the Recreational Fishing and Hunting Opportunities Act; the Hunting, Fishing, and Recreational Shooting Protection Act; the Target Practice and Marksmanship & Training Support Act; and the Recreational Lands Self-Defense Act; and

Whereas, A complementary piece of prosportsmen legislation also exists in the U.S. House, called the Sportsmen's Conservation and Outdoor Recreation Enhancement (SCORE) Act (H.R. 3173). It shares several similar titles with the SHARE Act and Bipartisan Sportsmen's Act. Provisions in the SCORE Act include: the National Fish Habitat Initiative Sense of Congress, the Federal Lands Transaction Facilitation Act reauthorization, the North American Wetlands Conservation Act reauthorization, the National Fish and Wildlife Foundation reauthorization, the Neotropical Migratory Bird Conservation Act reauthorization, the Partners for Fish and Wildlife Program Act reauthorization, and the Making Public Lands Public authorization; and

Whereas, By renewing or creating these programs, these bills will enhance opportunities for hunters, anglers, recreational shooters, and other outdoor recreation enthusiasts, improve access to public lands, and help boost the outdoor recreation economy. Conserving our fish and wildlife resources and their habitats and ensuring that future generations have access to public lands and continued recreational opportunities are of great importance and are bipartisan issues: Now, therefore, be it

Resolved by the Senate, That we urge the United States Congress to enact legislation for the purpose of enhancing hunting, fishing, recreational shooting, and other outdoor recreational opportunities, as well as strengthen conservation efforts nationwide; and be it further

Resolved, That copies of this resolution be transmitted to the President of the United States Senate, the Speaker of the United States House of Representatives, and the members of the Michigan congressional delegation.

POM–110. A resolution adopted by the House of Representatives of the State of Michigan urging the President of the United States and the United States Congress to support the National Breast Cancer Coalition's goal of knowing how to end breast cancer by 2020; to the Committee on Health, Education, Labor, and Pensions.

HOUSE RESOLUTION NO. 144

Whereas, Michigan Breast Cancer Coalition and breast cancer prevention advocates across the country are joining their collective voices in the call for an end to breast cancer. State level advocates in conjunction with the National Breast Cancer Coalition (NBCC) are undertaking the challenge referred to as Breast Cancer Deadline 2020; and

Whereas, Breast Cancer Deadline 2020, created by the NBCC has set the goal and developed a strategic plan to know how to end breast cancer by January 1, 2020. NBCC developed a blueprint that involves research, access and influence. This includes leveraging financial resources, ensuring individuals at risk have access to information and medical care; and harnessing the influence of leaders in government and industry; and

Whereas, Breast cancer is the most commonly diagnosed non-skin cancer in women in the United States. Michigan counties have some of the highest incidences of breast cancer in the country. This disease affects women of all ages, claimin 'yes of thousands each year; and

Whereas, The advancement of the NBCC strategic plan for eradicating this disease is imperative. This plan focuses on prevention, including how to prevent the often fatal metastasis of cancer once it is detected. All elements of the NBCC strate ic plan are necessary to find an end to this disease: Now, therefore, be it

Resolved by the House of Representatives, That we urge the President and the Congress of the United States to support the National Breast Cancer Coalition's goal of knowing how to end breast cancer by 2020; and be it further

Resolved, That copies of this resolution be transmitted to the President of the United States, the President of the United States Senate, the Speaker of the United States House of Representatives, and the members of the Michigan congressional delegation.

POM–111. A resolution adopted by the Senate of the State of Michigan encouraging the United States Forest Service to issue the owners of privately held hunting camps on leased acres within the Ottawa National Forest special use authorization under the Recreation Residence Program; to the Committee on Agriculture, Nutrition, and Forestry.

SENATE RESOLUTION NO. 79

Whereas, Starting in the late 1950s, Michigan residents were offered an opportunity to lease privately-owned land from the Upper Peninsula Power Company (UPPCO) to build recreational hunting camps. In 1991, the UPPCO announced intentions to sell the land currently under lease to an intermediary who would simultaneously sell the land to the United States Forest Service (USFS). Existing leaseholders were offered an option to sign a 25-year, nonrenewable lease on the land that was to be sold or to immediately vacate the property. The leases were signed in March of 1992 and the United States Forest Service (USFS) took control of the land in June 1992. The land currently under private lease accounts for less than 1,100 acres in the Ottawa National Forest; and

Whereas, Hundreds of people have experienced the wonders of Michigan's great outdoors at these hunting camps. The Ottawa National Forest is almost one million acres of rolling hills, lakes, rivers, waterfalls, and abundant wildlife. Those who lease land in the forest have built outdoor recreational traditions with their families. The hunting camps allow them to experience the seclusion and isolated environment of the Ottawa National Forest while engaging in varied recreational activities, including hunting, fishing, canoeing, and snowshoeing; and

Whereas, The USFS has informed leaseholders that leases will not be renewed at the end of 2016 because it is national policy not to lease national forest land to individuals. The holders of the active leases will have 90 days after the leases expire to remove the hunting cabins and return the land to its natural state; and

Whereas, The expiration of the leases will hurt local economies in Ontonagon and Gogebic Counties. It will result in over $35,000 in lost lease fee revenue to the townships and almost $10,000 in tax revenue to the counties. Even a greater loss will be realized by local businesses, including gas stations, grocery stores, hardware stores, and restaurants that benefit from the patronage of the camp families; and

Whereas, The expiration of the leases will eliminate refuge for people from the occasionally harsh and unexpected shifts in weather conditions. The Ottawa National Forest covers a large area in the western Upper Peninsula. Camp owners often leave their cabins or outbuildings unlocked to the relief of individuals stranded in the woods who have sought shelter. A Boy Scout troop once sheltered at the Twin Pines camp after being caught in a storm, and a group of snowmobilers is known to regularly rest at one of the camps; and

Whereas, The USFS Recreation Residence Program provides private citizens an opportunity to own single-family cabins in designated areas of national forests. Currently, 15,570 recreation residences occupy national forest system lands throughout the country; and

Whereas, Although the National Forest Service placed a moratorium on the establishment of new tracts under the Recreation Residence program in 1968, the authority to issue special use authorization under the Recreation Residence program remains in federal regulations (36 CFR Part 251). Therefore, lifting that moratorium for the limited purpose of establishing a Recreation Residence tract in the Ottawa National Forest and issuing special use authorization permits is possible and would allow the many families currently leasing in the Ottawa National Forest an opportunity that is provided to thousands of people elsewhere in the country; and

Whereas, Converting to the Recreation Residence Program would maintain a tax base for local governments, provide continuing support for the local economy, and and ensure that hunting and recreational traditions held so dear by Michigan residents continue to be experienced in the Ottawa National Forest: Now therefore, be it

Resolved by the Senate, That we encourage the United States Forest Service to issue the owners of privately-held camps on leased acres within the Ottawa National Forest special use authorization under the Recreation Residence Program; and be it further

Resolved, That copies of this resolution be transmitted to the Chief of the United States Forest Service and the members of the Michigan congressional delegation.

POM–112. A resolution adopted by the Senate of the State of Michigan urging the United States Senate to concur with the United States House of Representatives and repeal the country-of-origin labeling regulations; to the Committee on Agriculture, Nutrition, and Forestry.

SENATE RESOLUTION NO. 87

Whereas, The United States and Canada have the largest trading relationship in the world, with bilateral trade valued at $759 billion in 2014, an association that benefits the

economies of both countries. Michigan's merchandise exports to Canada in 2014 were valued at $25.4 billion, and 259,000 Michigan jobs depend on trade and investment with Canada; and

Whereas, The U.S. has implemented mandatory country-of-origin labeling (COOL) rules requiring meats sold at retail stores to be labeled with information on the source of the meat. The World Trade Organization (WTO) has repeatedly ruled that COOL discriminates against imported livestock and is not compliant with international trade obligations. Due to the WTO rulings, the U.S. may be subject to $3.6 billion in retaliatory tariffs sought by Canada and Mexico; and

Whereas, COOL regulations also jeopardize the viability of the U.S. packing and feeding industries. The additional $500 million in annual compliance costs could lead to significant job losses and plant closures with potentially devastating impacts to local and state economies. All this for an issue the United States Department of Agriculture has clearly indicated is not about food safety; and

Whereas, The U.S. House of Representatives passed H.R. 2393 to repeal the mandatory labeling for certain meats in June 2015 with 300 votes, showing a strong recognition across party lines, as well as regionally, that COOL must be repealed. However, the U.S. Senate appears less inclined to repeal the COOL requirement, risking the American economy to billions of dollars in retaliatory tariffs: Now, therefore, be it

Resolved by the Senate, That we urge the United States Senate to concur with the United States House of Representatives and repeal the country-of-origin labeling regulations; and be it further

Resolved, That copies of this resolution be transmitted to the President of the United States Senate and the members of the Michigan congressional delegation.

POM–113. A joint resolution adopted by the Legislature of the State of California urging the President of the United States and the United States Congress to support legislation which will provide a comprehensive solution to allow banks and credit unions to perform financial services for cannabis businesses without federal retribution; to the Committee on Banking, Housing, and Urban Affairs.

ASSEMBLY JOINT RESOLUTION NO. 25

Whereas, Cannabis use for medical purposes is legal in 23 states and is legal for recreational purpose in four states and in the District of Columbia. The expansion of cannabis businesses across the United States requires action from Congress and the federal government; and

Whereas, While many states have laws permitting various degrees of commercial activity using cannabis, it remains illegal under federal law. The conflict between federal and state laws has left financial institutions serving cannabis-related businesses on uncertain legal ground. Banks and credit unions are concerned that providing financial services for businesses selling a product that is illegal under federal law exposes them to possible charges of money laundering and drug trafficking; and

Whereas, Federal laws, including the Controlled Substances Act, the Bank Secrecy Act, and the Annunzio-Wylie Anti-Money Laundering Act, prohibit financial institutions from providing financial services to cannabis and hemp businesses. Directives from federal regulatory agencies such as the Federal Reserve, the Federal Deposit Insurance Corporation, the National Credit Union Administration, and the Office of the Comptroller of the Currency also prohibit bankers from accepting deposits from cannabis or hemp businesses; and

Whereas, In February 2014, the United States Treasury's Financial Crimes Enforcement Network, or FinCEN, in coordination with the United States Department of Justice, also issued a memo outlining expectations for compliance with the Bank Secrecy Act. Despite this progress, remaining uncertainties under current federal as still prevent banks and credit unions from accepting cannabis-based businesses as customers; and

Whereas, The medical, retail, and hemp agricultural businesses are unable to accept credit or debit cards from customers because electronic payments are handled through the banking system. Therefore, transactions must be conducted in cash. Further, these businesses cannot deposit cash from sales into financial institutions. This is a major problem in California as many businesses now have hundreds of thousands of dollars in cash at their locations, which poses a public safety risk to businesses, employees, and customers; and

Whereas, The lack of financial services makes paying taxes to local governments and the California State Board of Equalization a challenge because tax payments must be made in cash by cannabis-related businesses, leading to hundreds of thousands of dollars in cash being brought directly into government offices. It is difficult for the State Board of Equalization to audit cash-based businesses, especially when records of wholesale transactions are not available; and

Whereas, Cannabis businesses cannot easily comply with California tax laws, which has led to a significant underpayment of revenue owed the state. In response, the State Board of Equalization launched the Cannabis Compliance Pilot Project in January 2015 to help determine both the degree of noncompliance with state tax law and the amount of lost tax revenue. However, state efforts alone cannot solve the problem: Now, therefore, be it

Resolved by the Assembly and the Senate of the State of California, jointly, That the Legislature respectfully urges the President and Congress to support legislation which will provide a comprehensive solution to allow banks and credit unions to perform financial services for cannabis businesses without federal retribution. The current system that requires cash-based transactions poses a risk to public safety and leads to reduced collection of taxes; and be it further

Resolved, That the Chief Clerk of the Assembly transmit copies of this resolution to the President and the Vice President of the United States, to the Speaker of the House of Representatives, to the Minority Leader of the House of Representatives, to the Majority Leader of the Senate, to the Minority Leader of the Senate, and to each Senator and Representative from California in the Congress of the United States.

POM–114. A joint resolution adopted by the Legislature of the State of California urging the United States Congress to permanently reauthorize and fully fund the Land and Water Conservation Fund; to the Committee on Environment and Public Works.

ASSEMBLY JOINT RESOLUTION NO. 27

Whereas, The Land and Water Conservation Fund (LWCF) was created by Congress in 1965 as a bipartisan commitment for protection of natural areas, water resources, cultural heritage, and outdoor recreational opportunities throughout the country; and

Whereas, Over the 50 years since the LWCF was created, billions of dollars in funding have been provided to protect valuable land and water resources, including, but not limited to, parks, forests, rivers, lakes, wildlife habitat, and recreational opportunities. These investments have resulted in the permanent protection of nearly five million acres of public lands and working landscapes; and

Whereas, Despite being chronically underfunded, the LWCF has had several positive conservation and recreation impacts throughout the country, has protected lands in each state, and has supported over 41,000 state and local park projects; and

Whereas, Since its inception, the LWCF has delivered over $2 billion to California, and has provided hundreds of millions of dollars more for projects through its matching fund program; and

Whereas, The LWCF has helped conserve some of California's most treasured and iconic natural resources in each region of the state, including, but not limited to, Lake Tahoe, the Mojave Desert, Point Reyes National Seashore, the Headwaters Forest Reserve, the San Diego and Don Edwards San Francisco Bay National Wildlife Refuges, working forests in the Sierra Nevada, and Central Valley wetlands; and

Whereas, The LWCF has provided funding for outdoor recreational and park programs benefitting underserved youth and others in urban and rural communities throughout the state, and has established a critical federal partnership with state and local parks and communities; and,

Whereas, Forest Legacy Program grants are also funded through the LWCF to protect working forests, which support jobs and sustainable forest operations and enhance wildlife habitat, water quality, and recreation. The Forest Legacy Program grants have provided $12 million in federal funds, which along with matching funds have provided a total of $62 million in investments in California forests; and

Whereas, The LWCF is critical to the quality of life in California. The LWCF protects watersheds and drinking water supplies; provides sustainable jobs in urban and rural communities; protects the economic asset that federal, state, and local public lands represent; conserves natural areas, wildlife habitats, and open space from urban parks to large landscapes; improves access for sportsmen, sportswomen, and recreationists to natural lands; stimulates local economies and jobs that support tourism and outdoor recreation sectors; preserves wetlands, forests, and watersheds; and provides state and local grants to support healthy communities; and

Whereas, According to the Outdoor Industry Association, active outdoor recreation supports $85.4 billion of consumer spending and 723,000 jobs in California, which annually generates $27 billion in wages and salaries and $6.7 billion in state and local tax revenue; and

Whereas, The United States Census Bureau reports that each year 7.4 million people engage in outdoor recreation in California, which contributes over $8 billion of wildlife-related recreation spending to the state economy; and

Whereas, Despite the LWCF's successes, many more lands and resources remain vulnerable and in critical need of investment, and many urban and rural populations remain underserved; and

Whereas, The LWCF will expire if not reauthorized by Congress before September 30, 2015: Now, therefore, be it

Resolved by the Assembly and the Senate of the State of California, jointly, That the Legislature urges Congress to permanently reauthorize and fully fund the Land and Water Conservation Fund; and be it further

Resolved, That the Chief Clerk of the Assembly transmit copies of this resolution to the President and Vice President of the United States, to the Speaker of the House of Representatives, to the Majority Leader of

the Senate, to each Senator and Representative from California in the Congress of the United States, and to the author for appropriate distribution.

POM–115. A resolution adopted by the Senate of the State of Michigan urging the United States Congress to restore Great Lakes Restoration Initiative funding to $300 million for fiscal year 2016; to the Committee on Environment and Public Works.

SENATE RESOLUTION NO. 42

Whereas, The Great Lakes are a critical resource for our nation, supporting the economy and a way of life in Michigan and the other seven states within the Great Lakes region. The Great Lakes hold 20 percent of the world's surface freshwater and 95 percent of the United States' surface freshwater. This globally significant freshwater resource provides drinking water for more than 30 million people and is an economic driver that supports jobs, commerce, agriculture, transportation, and tourism throughout the region; and

Whereas, The Great Lakes Restoration Initiative (GLRI) provides essential funding to restore and protect the Great Lakes. This funding has supported long overdue efforts to clean up toxic pollution, reduce runoff from cities and farms, combat invasive species like the Asian carp, and restore fish and wildlife habitat. Since 2010, the federal government has invested nearly $2 billion in more than 2,000 projects through the GLRI. Over its first five years, the GLRI has provided more than $280 million for 580 projects in Michigan alone; and

Whereas, GLRI projects are making a significant difference. They have restored more than 115,000 acres of fish and wildlife habitat; opened up fish access to more than 3,400 miles of rivers; helped implement conservation programs on more than 1 million acres of farmland; and accelerated the cleanup of toxic hotspots. In Michigan, GLRI funding has been instrumental in removing contaminated sediments from Muskegon Lake, the River Raisin, and the St. Mary's River; restoring habitat along the St. Clair River, Cass River, Boardman River, and the Keweenaw Peninsula; and developing improved methods for sea lamprey control; and

Whereas, While this is a significant investment, there is still more work to be done with numerous ready-to-go projects that need funding. Toxic algal blooms, beach closings, fish consumption advisories, and the presence of contaminated sediments continue to limit the recreational and commercial use of the Great Lakes. The 2014 shutdown of the city of Toledo's drinking water system due to a toxic algal bloom, forcing more than a half million people to find another source of drinking water, is just one example of how much still needs to be done; and

Whereas, Proposed cuts to GLRI funding would jeopardize the momentum from a decade of unprecedented regional and bipartisan cooperation. The FY 2016 executive budget recommends a $50 million cut in federal funding to $250 million. This cut would be a shortsighted, cost-saving measure with long-term implications. Restoration efforts will only become more expensive and more difficult if they are not addressed in the coming years: Now, therefore, be it

Resolved by the Senate, That we urge the Congress of the United States to restore Great Lakes Restoration Initiative funding to $300 million for fiscal year 2016; and be it further

Resolved, That copies of this resolution be transmitted to the President of the United States Senate, the Speaker of the United States House of Representatives, and the members of the Michigan congressional delegation.

POM–16. A joint resolution adopted by the Legislature of the State of California urging the President of the United States to encourage the Secretary of Health and Human Services to adopt policies to repeal the current and upcoming discriminatory donor suitability policies of the United States Food and Drug Administration (FDA) regarding blood donations; to the Committee on Health, Education, Labor, and Pensions.

ASSEMBLY JOINT RESOLUTION NO. 16

Whereas, Since 1983, the United States Food and Drug Administration (FDA), an agency under the United States Department of Health and Human Services (HHS), has prohibited the donation of blood by any man who has had sex with another man (MSM) at any time since 1977; and

Whereas, in December 2014, based on recommendation from the HHS Advisory Committee on Blood and Tissue Safety and Availability, the FDA announced its intent to promulgate regulations to allow an MSM to donate blood only if he has not been sexually active for the past 12 months. Despite these recent steps toward a policy change, a double standard would still exist under the policy as it is proposed to be revised because it would still treat gay and bisexual men differently from heterosexual men; and

Whereas, California law prohibits discrimination against individuals on the basis of actual or perceived sex, sexual orientation, gender identity. and gender-related appearance and behavior, and

Whereas, Spain, Italy, Russia, Mexico, and Portugal have adopted blood donor policies that measure risk against a set of behaviors sexual and otherwise, rather than the sex of a person's sexual partner or partners; and

Whereas, The FDA does not allow gay and bisexual men in committed relationships to donate blood because, while one partner may be monogamous, that individual cannot guarantee that the other partner is monogamous. The FDA does not apply this same logic to heterosexual relationships, which in effect discriminates against gay and bisexual men; and

Whereas, a 12-month deferral policy for gay and bisexual men to donate blood is overly stringent given the scientific evidence, advanced testing methods, and the safety and quality control measures in place within the different FDA-qualified blood donating centers. The techniques can identify within 7 to 10 days with 99.9 percent accuracy whether or not a blood sample is HIV-positive, and the chance of the blood test being inaccurate within the 10-day window is about 1 in 2,000,000; and

Whereas, The General Social Survey conducted by NORC by NORC at the University of Chicago estimates that 8.5 percent of men in the United States have had at least one male sexual partner since 18 years of age, 4.1 percent of men report at least one male sex partner in the last 5 years, and 3.8 percent report a male sex partner in the last 12 months; and

Whereas, An estimated 45.4 percent of men (54 million) in the United States are eligible to donate blood, but only 8.7 percent of eligible men actually do. There are 15.7 million donations of blood per year made by 9.2 million donors, yielding approximately 1.7 donations per donor; and

Whereas, The Williams Institute of the University of California at Los Angeles School of Law estimates that, based on the population of eligible and likely donors among the MSM community, lifting the federal lifetime deferral policy on blood donation by an MSM would result in 4.2 million newly eligible male donors, of which 360,600 would likely donate, generating 615,300 additional pints of blood. Applying national estimates to the California population, the Institute further estimates that lifting the ban on MSM blood donations would add an additional 510,000 eligible men to the current blood donor pool, of which 43,917 would likely donate, resulting in an additional 74,945 donated pints in California: Now, therefore, be it

Resolved by the Assembly and the Senate of the State of California, jointly, That the California State Legislature calls upon the President of the United States to encourage the Secretary of the United States Department of Health and Human Services to adopt policies to repeal the current and upcoming discriminatory donor suitability policies of the United States Food and Drug Administration (FDA) regarding blood donations by men who have had sex with another man and, instead, direct the FDA to develop science-based policies such as criteria based on risky behavior in lieu of sexual orientation; and be it further

Resolved, That the Chief Clerk of the Assembly transmit copies of this resolution to the President and Vice President of the United States, to the Secretary of the United States Department of Health and Human Services, to the Speaker of the House of Representatives, to the Majority Leader of the Senate, and to each Senator and Representative from California in the Congress of the United States.

POM–117. A resolution adopted by the Senate of the State of Michigan urging the United States Congress to enact legislation that requires uniform and science-based food labeling nationwide; to the Committee on Health, Education, Labor, and Pensions.

SENATE RESOLUTION NO. 59

Whereas, In the absence of a federal genetically modified organism (GMO) labeling standard, some states and localities have developed a patchwork of labeling proposals that can be confusing and misleading to consumers. Multiple local regulations increase agriculture and food production costs, requiring food companies operating in Michigan to create separate supply chains to be developed for each state; and

Whereas, GMOs are found in 70 to 80 percent of the foods we eat and play a vital role in maintaining Michigan's agriculture, food processing, and other industries. In 2014, 100 percent of all sugar beets, 93 percent of all corn, and 91 percent of all soybeans grown in Michigan were genetically modified; and

Whereas, A maze of regulations would cripple interstate commerce throughout the food supply and distribution chain and ultimately increase grocery prices for consumers by hundreds of dollars each year. A Cornell University study found that a patchwork of state labeling laws would increase food costs for a family by an average of $500 per year; and

Whereas, On July 23, 2015, the U.S. House of Representatives passed bipartisan legislation—the Safe and Accurate Food Labeling Act (H.R. 1599)—to avoid this patchwork of regulations and the costly challenges it creates; and

Whereas, Senate passage of the Safe and Accurate Food Labeling Act will allow consumers to have access to accurate and consistent information on products that contain CMOs by ensuring that labeling is national, uniform, and science-based. The bill also establishes a United States Department of Agriculture (USDA)-administered certification and labeling program, modeled after the USDA National Organic Program for non-GMO, organic foods: Now, therefore, be it

Resolved by the Senate, That we urge the United States Congress to enact legislation that requires uniform and science-based food labeling nationwide; and be it further

Resolved, That copies of this resolution be transmitted to the President of the United States Senate, the Speaker of the United States House of Representatives, and the members of the Michigan congressional delegation.

POM–118. A joint resolution adopted by the Legislature of the State of California urging the President of the United States and the United States Congress to take steps to reform the outdated and inadequate Official Poverty Measure to better reflect poverty and the unmet needs demonstrated by the Supplemental Poverty Measure; to the Committee on Homeland Security and Governmental Affairs.

ASSEMBLY JOINT RESOLUTION NO. 22

Whereas, The Official Poverty Measure is determined by the United States Census Bureau and is instrumental in determining an individual's eligibility for a number of government programs, including the Supplemental Nutrition Assistance Program; Medicaid; School Lunch Program; Women, Infants, and Children Program; Housing Assistance; and others; and

Whereas, The method we use today was developed in 1964 by Mollie Orshansky of the Social Security Administration; and

Whereas, Orshansky's method used beforetax cash income to deterimine a family's resources, which was then compared to a poverty threshold; and

Whereas, In determining this poverty threshold, Orshansky used a food plan developed by the federal Department of Agriculture that was designed for ''temporary or emergency use when funds are low,'' and then multiplied the cost of the plan by three because, at the time, a family typically used about a third of their income on food; and

Whereas, Other than minor changes, the method has remained the same over time, despite significant economic and governmental changes, including the introduction of Medicare and Medicaid, the shift from a manufacturing to a service economy, welfare reform of the 1990s, and the general stagnation of wages; and

Whereas, The Official Poverty Measure is a one-size-fits-all policy that leads to a distorted perception of poverty and an inefficient allocation of resources to fight poverty; and

Whereas, The Official Poverty Measure has failed to accurately measure poverty because it has not kept up with the changes to our economy and social science research; and

Whereas, The Official Poverty Measure does not take into account that families no longer spend one-third of their income on food; they currently spend between 5 to 10 percent; and

Whereas, The Official Poverty Measure does not account for noncash transfers, such as the Supplemental Nutrition Assistance Program or Medicaid, as income; and

Whereas, The Official Poverty Measure does not account for variations in cost of living in different regions of our country; and

Whereas, Low-income working families in California are especially disadvantaged by the Official Poverty Measure due to our state's high cost of living, which results in the denial of federally funded assistance to families living above the federal poverty line, but who are unable to meet their basic needs; and

Whereas, The Official Poverty Measure does not account for the increase in child care expenses due to the rise in the workforce participation of both parents; and

Whereas, The Official Poverty Measure does not account for variations in health care coverage and out-of-pocket medical costs; and

Whereas, Historically, there has been widespread agreement among analysts, advocates, and policymakers that the Official Poverty Measure is inadequate, leading to a 1990 Congressional appropriation that was made for an independent scientific study on a new calculation method; and

Whereas, This study was performed by The National Academy of Sciences, which established the Panel on Poverty and Family Assistance. The panel released a report in 1995 entitled ''Measuring Poverty: A New Approach'' which established guidelines for creating a new method; and

Whereas, Fifteen years later, in 2010, the Interagency Technical Working Group on Developing a Supplemental Poverty Measure and the Census Bureau and the Bureau of Labor developed an alternative poverty measure known as the Supplemental Poverty Measure; and

Whereas, The Supplemental Poverty Measure was designed to take into account changes in the United States economy over time, cost-of-living variations in different parts of the country, and the changing role of government; and

Whereas, The Supplemental Poverty Measure more accurately measures poverty by using a basic set of goods that includes food, clothing, shelter, and utilities, adjusted to reflect the needs of different family types and to account for geographic differences in living costs to establish what is known as a poverty threshold; and

Whereas, The Supplemental Poverty Measure defines family resources as the value of cash income from all sources, plus the value of noncash benefits, including nutrition assistance, subsidized housing, home energy assistance, tax credits, and other benefits that are available to buy the basic bundle of goods, minus the necessary expenses for critical goods and services not included in the thresholds; and

Whereas, Necessary expenses include income taxes, Social Security payroll taxes, childcare and other work-related expenses, child support payments, and contributions toward the cost of medical care and health insurance premiums or out-of-pocket medical costs; and

Whereas, The Supplemental Poverty Measure offers a more accurate measure of poverty than the general Official Poverty Measure; and

Whereas, The use of the Official Poverty Measure can have a detrimental effect on policies to combat poverty because it results in less efficient and less accurately targeted policies and expenditures; and

Whereas, It is vital that we implement a fair poverty measure that allows us to efficiently allocate resources and focus on regions and populations that need help the most; and

Whereas, Given the numerous inadequacies of the Official Poverty Measure as a tool to accurately target and efficiently allocate antipoverty resources, the Supplemental Poverty Measure should guide the reform and updating of the Official Poverty Measure for administrative purposes in determining financial eligibility for programs intended to reduce poverty: Now, therefore, be it

Resolved by the Assembly and the Senate of the State of California jointly, That the Legislature of California urges the President and the Congress of the United States to take steps to reform the outdated and inadequate Official Poverty Measure to better reflect poverty and the unmet needs demonstrated by the Supplemental Poverty Measure; and be it further

Resolved, That the Chief Clerk of the Assembly transmit copies' of this resolution to the President and the Vice President of the United States, to the Speaker of the House of Representatives, to the Majority Leader of the Senate, and to each Senator and Representative from California in the Congress of the United States, to the Governor of California, and to the author of this resolution.

POM–119. A joint resolution adopted by the Legislature of the State of California memorializing August 6, 2015, as the 50th anniversary of the signing of the Voting Rights Act of 1965, and urging the United States Congress and the President of the United States to continue to secure citizens right to vote and remedy any racial discrimination in voting; to the Committee on the Judiciary.

ASSEMBLY JOINT RESOLUTION NO. 13

Whereas, Signed into law on August 6, 1965, by President Lyndon B. Johnson, the Voting Rights Act of 1965 is a landmark piece of federal legislation in the United States; and

Whereas, One hundred and forty-five years ago, in 1870, Congress ratified the 15th Amendment, which declared that the right to vote shall not be denied or abridged on the basis of race, color, or previous condition of servitude; and

Whereas, By 1910, violence and intimidation resulted in nearly all black citizens being disenfranchised and removed from the voter rolls in the former Confederate States, undermining the promise of equal protection under the law; and

Whereas, Native American, Latino, and Asian American/Pacific Islander communities experienced similar attempts to disenfranchise citizens in their communities throughout the United States; and

Whereas, Between 1870 and 1965, voters faced, ''first-generation barriers,'' such as poll taxes, literacy tests, vouchers of ''good character,'' disqualification for ''crimes of moral turpitude'', and other tactics intended to keep African Americans from the polls on Election Day; and

Whereas, During the 1920s, African Americans in Selma, Alabama formed the Dallas County Voters League (DCVL). During the 1960s in partnership with organizers from the Student Nonviolent Coordinating Committee, the DCVL held registration drives and classes to help African Americans in Dallas County pass the literacy tests required to register to vote. On March 7th, 1965, the first march from Selma to Montgomery took place. The march, nicknamed ''Bloody Sunday'' for the horrific attack on unarmed marchers by armed police, was broadcast nationwide and led to a national outcry for the passage of the Voting Rights Act, and

Whereas, Often regarded as one of the most effective civil rights laws, the Voting Rights Act was passed with the intent to ban discriminatory voting policies at all levels of government; and

Whereas, The Voting Rights Act is credited for the enfranchisement of millions of minority voters as well as the diversification of the electorate and legislative bodies throughout all levels of government; and

Whereas, Before Section 203 of the Voting Rights Act was added in 1975, language minorities were disenfranchised from the electoral process. Section 203 required certain jurisdictions to provide registration or voting notices, forms, instructions, assistance, or other materials and information regarding the electoral process in the language of the applicable minority group; and

Whereas, In June of 2013, the Supreme Court struck down key sections of the Voting Rights Act that were designed to prevent discriminatory voting policies that can disenfranchise minority voters; and

Whereas, Despite 50 years of progress, racial minorities continue to face voting barriers in jurisdictions with a history of discrimination; and

Whereas, To build a stronger and more cohesive state and nation, we must continue to help advance the cause of voter equality and equal access to the political process for all people in order to protect the rights of every American and

Whereas, We must continue to educate the next generation about the importance of civic engagement in our communities: Now, therefore, be it

Resolved by the Assembly and the Senate of the State of California, jointly, That the Legislature recognizes August 6, 2015, as the 50th Anniversary of the signing of the Voting Rights Act of 1965, and recognizes the significant progress made by the Voting Rights Act to protect every citizen's right to vote; and be it further

Resolved, That the Legislature honors and remembers those who struggled and died for this freedom; and be it further

Resolved, That the Legislature urges the Congress and the President of the United States to continue to secure citizens' right to vote and remedy any racial discrimination in voting; and be it further

Resolved, That the Chief Clerk of the Assembly transmit, copies of this resolution to the President and Vice President of the United States, to the Speaker of the House of Representatives, to the Majority leader of the United States Senate, and to each Senator and Representative from California in the Congress of the United States.

POM–120. A joint resolution adopted by the Legislature of the State of California memorializing the United States Congress to ban the sale or display of any Confederate flag, including the Confederate Battle Flag, on federal property and encourage states to ban the use of Confederate States of America symbolism from state flags, seals, and symbols, and would encourage the donation of Confederate artifacts to museums; to the Committee on the Judiciary.

ASSEMBLY JOINT RESOLUTION NO. 26

Whereas, According to the 1860 United States Census, the United States population was 31,443,321. The total number of slaves in the Lower South was 2,312,352, comprising 47 percent of the total population, and the total number of slaves in the Upper South was 1,208,758, comprising 29 percent of the total population; and

Whereas, South Carolina had a clear Black majority from about 1708 through most of the 18th century. By 1720, there were approximately 18,000 people living in South Carolina and 65 percent of those were African American slaves. South Carolina's slave population grew to match the success of its rice culture. Whereas in 1790, there were slightly more Whites than Blacks, with 140,178 Whites and 108,806 Blacks living in South Carolina. By 1860, the Black population had grown, with 291,300 Whites and 412,320 Blacks, to nearly double the White population; and

Whereas, The Southern United States, including the States of Alabama, Arkansas, Florida, Georgia, Louisiana, Mississippi, North Carolina, Texas, West Virginia, Virginia, and South Carolina, seceded, from the greater union in 1860 to join the Confederate States of America under President Jefferson Davis and General Robert E. Lee; and

Whereas, The symbolism of the Confederate flag when the states seceded in 1860 represented, in its personification, secession and treason; and

Whereas, The first official national flag of the Confederacy, often called the Stars and Bars, was flown from March 4, 1861, to May 1, 1863, inclusive. The Stars and Bars flag was adopted March 4, 1861, in the first temporary national capital of Montgomery, Alabama, and was raised over the dome of that first Confederate Capitol; and

Whereas, At the First Battle of Manassas, the first battle of the Civil War, the similarity between the Stars and Bars and the Stars and Stripes caused confusion and military problems. Regiments carried flags to help commanders observe and assess battles in the warfare of the era. At a distance, the two national flags were hard to tell apart. In addition, Confederate regiments carried many other flags, which added to the possibility of confusion; and

Whereas, After the battle, General Pierre Gustave Toutant Beauregard, a prominent general of the Confederate States Army during the Civil War, wrote that he was resolved then to have the Confederate flag changed if possible, or to adopt for his command a ''battle flag,'' the Stars and Bars, that would be entirely different from any state or federal flag. His aide William Porcher Miles, the former chair of the Committee on the Flag and Seal, described his rejected national flag design to Beauregard. Miles also told the Committee on the Flag and Seal about the general's complaints and request for the national flag to be changed. The committee rejected this idea by a four to one vote, after which Beauregard proposed the idea of having two flags. He described the idea in a letter to his commander General Joseph E. Johnston: ''How would it do for us to address the War Dept. on the subject for a supply of Regimental or badge flags made of red with two blue bars crossing each other diagonally on which shall be introduced the stars, . . . We would then on the field of battle know our friends from our enemies''; and

Whereas, Although the soldiers of the Confederacy were never tried by the United States government after the Civil War, Jefferson Davis and General Robert E. Lee were indicted and later acquitted of all charges by President Andrew Johnson as he left office in 1869; and

Whereas, After the Civil War ended, groups such as the Ku Klux Klan were formed to promote White supremacy and racial hatred. The Ku Klux Klan, perhaps the most infamous, was one of the first groups to continue using the Confederate flag after the war. The Ku Klux Klan rallied others still vexed after the war to instill fear and spout hate against freed African Americans; and

Whereas, The flag was later resurrected in the 1950s to rally resistance to the Civil Rights movement and support the South's desire to maintain segregation and further the policies of Jim Crow; and

Whereas, In South Carolina the Confederate flag was moved to the top of their State Capitol building in 1962, after President John F. Kennedy called on the Congress of the United States to end poll taxes and literacy tests for voting, and the United States Supreme Court struck down segregation in public transportation; and

Whereas, According to the Southern Poverty Law Center, there are 788 ''hate groups'' in the United States. Of these, 57 are located in the State of California, which is the highest of any state. There are a total of 283 of these hate groups in the former Confederate states. Nineteen of these hate groups reside in South Carolina. Of these 19 hate groups, 16 use the Confederate flag as one of their symbols. These hate groups include the Ku Klux Klan, Neo-Nazis, and Neo-Confederates; and

Whereas, African Americans make up 15.6 percent of the population of the United States, or 45 million people, but in 2013, they were victims of one-third of all hate crimes in the United States, which is the highest number of any group in America; and

Whereas, On June 17, 2015, Dylann Roof went to Emanuel AME Church in Charleston, South Carolina, and opened fire during a Wednesday Bible study, killing nine of the church's attendees; and

Whereas, Over the last five years, friends of Dylann Roof had seen him become increasingly aligned with White supremacist ideologies. They observed his behavior becoming more fanatical than that of the most notorious hate groups in his native South Carolina. Dylann Roof believed that it was up to him to do the work that other hate groups were failing to do. Dylann Roof believed that African Americans were ''stupid and violent'' people and viewed Hispanics and Latinos as the ''enemy''; and

Whereas, Dylann Roof has been photographed on various occasions with the same Confederate flag that many of these hate groups proudly display; and

Whereas, Sixty-nine percent of those surveyed by Public Policy Polling believe that the shooting attack at Emanuel AME Church in Charleston, South Carolina, was a hate crime and 34 percent surveyed believe it was a form of terrorism; and

Whereas, Since the end of the Civil War, private and official use of the Confederacy's flags, and of flags with derivative designs, has continued and generated philosophical, political, cultural, and racial controversy in the United States. These include flags displayed in states, cities, towns, counties, schools, colleges, or universities, or by private organizations, associations, or by individuals; and

Whereas, In some American states the Confederate flag is given the same protection from burning and desecration as the United States flag. It is protected from being publicly mutilated, defiled, or otherwise cast in contempt by the laws of five states: Florida, Georgia, Louisiana, Mississippi, and South Carolina. However, laws banning the desecration of any flag, even if technically remaining in effect, were ruled unconstitutional in 1989 by the United States Supreme Court in Texas v. Johnson and are not enforceable; and

Whereas, In 2000, South Carolina passed a bill to remove the Confederate flag from the top of the state house dome. It had been placed there since the early 1960s by an all-White South Carolina Legislature to mark the 100th anniversary of the Civil War. The flaw was moved to the north end of the state house as part of a compromise. However, to this day, there have been protests to have the flag removed from there as well; and

Whereas, To many groups, especially African Americans, the Confederate flag is a symbol of hate, racism, exclusion, oppression, and violence. Its symbolism and history are directly linked to the enslavement, torture, and murder of millions of African Americans; and

Whereas, Today, as in the past, public display of the Confederate flag is believed to instill fear, intimidation, and a direct threat of violence towards others, though a minute number of groups disagree, claiming that the Confederate flag commemorates Southern heritage; and

Whereas, In 2014, the State of California, through the enactment of Assembly Bill 2444, became the first state to ban the state sale and display of the Confederate flag. The State of California may not sell or display the Battle Flag of the Confederacy, also referred to as the Stars and Bars, or any similar image, or tangible personal property inscribed with that image unless the image appears in a book, digital medium, or state museum that serves an educational or historical purpose; and

Whereas, On June 22, 2015, Governor Nikki Haley of South Carolina called upon her

state to remove the Confederate flag from the capitol grounds in the wake of the Emanuel AME Church shooting: Now, therefore, be it

Resolved by the Assembly and the Senate of the State of California, jointly, That the Legislature of California encourages the United States Congress to identify the states that have a Confederate symbol embedded into their state's flag; and be it further

Resolved, That the Legislature memorializes the United States Congress to encourage states to ban the use of the former Confederate States of America symbolism and seals from all state flags, seals, and symbols; and be it further

Resolved, That the Legislature memorializes the United States Congress to ban the sale and display of any Confederate flag, including the Confederate Battle Flag, on federally owned properties and buildings and to urge those states that sell or display the flag at their capitols to have the flag removed; and be it further

Resolved, That the Legislature encourages the United States Congress to encourage businesses to urge their states to take down any Confederate flag, including the Confederate Battle Flag, from their capitols; and be it further

Resolved, That the Legislature encourages the donation of any effects representing the former Confederate States of America to local, state, and national museums; and be it further

Resolved, That the Chief Clerk of the Assembly transmit copies of this resolution to the President and Vice President of the United States, to the Speaker of the House of Representatives, to the Minority Leader of the House of Representatives, to the Majority Leader of the Senate, to the Minority Leader of the Senate, to each Senator and Representative from California, and to the governors of the southern states including Alabama, Arkansas, Florida, Georgia, Louisiana, Mississippi, North Carolina, South Carolina, Tennessee, Texas, and Virginia.

POM–121. A resolution adopted by the Senate of the State of Michigan opposing the United States Environmental Protection Agency's efforts to study or commission a study that, if consistent with the agency's past practices, many fear will serve as the first step towards the regulation of grills and barbecues; to the Committee on Environment and Public Works.

SENATE RESOLUTION NO. 56

Whereas, Barbecues are an American tradition enjoyed by families from all walks of life across the country. Whether tailgating for a football game, hosting a backyard gettogether, or just grilling a summer meal, barbecues are a quintessentially American experience and an opportunity to eat and socialize with family and friends; and

Whereas, Cooking outdoors on a grill during the summer saves electricity. Using a grill prevents the release of heat into the kitchen and other living spaces, while cooking indoors heats up a kitchen, forcing cooling systems, such as the refrigerator and air conditioner, to work harder and use more energy; and

Whereas, The United States Environmental Protection Agency (EPA), our nation's environmental regulatory agency, has funded a University of California-Riverside student project to develop preventative technology to reduce emissions from residential barbecues. By funding this project, the EPA is apparently intent on finding a solution to a problem that does not exist and demonstrating an unnecessary interest and concern over the impact of backyard barbecues on public health; and

Whereas, Based on the EPA's past practices, today's study, no matter how small, is a concern to Michiganders and Americans, as it is inevitably the first step towards tomorrow's regulation of this American pastime. To fulfill its mission to protect human health and the environment, the EPA's primary tool has been, and continues to be, regulatory mandates that time and again ignore the financial, economic, and social burdens to the state and the country. The regulation of barbecues would be the latest, egregious example of overreach by the EPA; and

Whereas, Funding such a study is a poor use of taxpayer dollars. In the face of record national debts, annual budget deficits, and other profound problems the country is facing, surely the federal government can better use our resources than on a study of grills and backyard barbecues: Now, therefore, be it

Resolved by the Senate, That we oppose the United States Environmental Protection Agency's efforts to study or commission a study that, if consistent with the agency's past practices, many fear will serve as the first step towards the regulation of grills and barbecues; and be it further

Resolved, That copies of this resolution be transmitted to Administrator of the United States Environmental Protection Agency and the members of the Michigan congressional delegation.

POM–122. A resolution passed by the City Council of San Jose, California, urging the United States Congress to pass H.R. 2140, the ''Vietnam Human Rights Act of 2015'', to hold individuals who commit egregious human rights violations accountable by imposing financial and travel sanctions upon those citizens of the Socialist Republic of Vietnam, and their family members, who are complicit in human rights abuse committed in Vietnam; to the Committee on Foreign Relations.

POM–123. A resolution passed by the City Council of Sebastopol, California urging passage of meaningful, common sense gun control measures; to the Committee on the Judiciary.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. JOHNSON, from the Committee on Homeland Security and Governmental Affairs, without amendment:

S. 1616. A bill to provide for the identification and prevention of improper payments and the identification of strategic sourcing opportunities by reviewing and analyzing the use of Federal agency charge cards (Rept. No. 114–174).

By Mr. THUNE, from the Committee on Commerce, Science, and Transportation, with an amendment in the nature of a substitute:

S. 2044. A bill to prohibit the use of certain clauses in form contracts that restrict the ability of a consumer to communicate regarding the goods or services offered in interstate commerce that were the subject of the contract, and for other purposes (Rept. No. 114–175).

By Mr. CORKER, from the Committee on Foreign Relations:

Report to accompany S. 2152, a bill to establish a comprehensive United States Government policy to encourage the efforts of countries in sub-Saharan Africa to develop an appropriate mix of power solutions, including renewable energy, for more broadly distributed electricity access in order to support poverty reduction, promote development outcomes, and drive economic growth, and for other purposes (Rept. No. 114–176).

By Mr. HATCH, from the Committee on Finance, without amendment:

S. 2368. An original bill to amend title XVIII of the Social Security Act to improve the efficiency of the Medicare appeals process, and for other purposes (Rept. No. 114–177).

EXECUTIVE REPORTS OF COMMITTEE

The following executive reports of nominations were submitted:

By Mr. CORKER for the Committee on Foreign Relations.

*Catherine Ebert-Gray, of Virginia, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Independent State of Papua New Guinea, and to serve concurrently and without additional compensation as Ambassador Extraordinary and Plenipotentiary of the United States of America to the Solomon Islands and Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Vanuatu.

Nominee: Catherine Ebert-Gray.

Post: Papua New Guinea.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: None.

2. Spouse: Ian S. Gray: None.

3. Children: Thomas F. Gray: None; Claire E. Gray: None.

4. Parents: William A. & Myrna Ebert: $50.00, 5/2011, Republican National Committee; $25.00, 8/2011, Republican National Committee; $25.00, 9/2011, Republican Senate Committee; $35.00, 10/2011, Republican Nat'l Congress Committee; $25.00, 1/2012, Republican Senate Committee; $20.00, 3/2012, Republican National Committee; $25.00, 7/2012, Mitt Romney; $20.00, 8/2012, Mitt Romney; $20.00, 8/2012, Republican National Committee; $25.00, 8/2012, Paul Ryan; $25.00, 9/2012, Mitt Romney; $100.00, 9/2012, Mitt Romney; $25.00, 1/2013, Tea Party; $25.00, 2/2013, Republican National Committee; $20.00, 2/2013, Republican Nat'l Congress Committee; $25.00, 3/2013, Republican National Committee; $20.00, 3/2013, Republican Nat'l Congress Committee; $25.00, 3/2013, Conservative Majority Fund; $20.00, 4/2013, Republican National Committee; $25.00, 5/2013, Republican Nat'l Congress Committee; $25.00, 5/2013, Republican Nat'l Congress Committee; $30.00, 6/2013, Republican National Committee; $20.00, 6/2013, Tea Party; $25.00, 8/2013, Republican National Committee; $25.00, 10/2013, Republican National Committee; $25.00, 10/2013, Republican Nat'l Congress Committee; $20.00, 10/2013, Republican Nat'l Congress Committee; $20.00, –11/2013, Republican Nat'l Congress Committee; $20.00, 11/2013, Tea Party; $20.00, 12/2013, Republican Nat'l Congress Committee; $25.00, 1/2014, Republican National Committee; $20.00, 2/2014, Republican Nat'l Congress Committee; $20.00, 2/2014, Tea Party; $25.00, 3/2014, Draft Ben Carson; $50.00, 3/2014, Draft Ben Carson; $20.00, 4/2014, Tea Party; $25.00, 5/2014, Draft Ben Carson; $25.00, 5/2014, Draft Ben Carson; $25.00, 5/2014, Republican Senate Committee; $20.00, 6/2014, Tea Party; $20.00, 6/2014, Tea Party (2 checks); $20.00, 6/2014, Republican National Committee; $25.00, 6/2014, Republican National Committee; $25.00, 6/2014, Republican Party of Wisconsin; $20.00, 7/2014, Republican National Committee; $20.00, 7/2014, Tea Party; $35.00, 7/2014,

Draft Ben Carson; $20.00, 8/2014, Tea Party; $20.00, 8/2014, Republican Senate Committee; $20.00, 9/2014, Tea Party.

5. Grandparents: Deceased.

6. Brothers and Spouses: James A. Ebert & Jennifer Gealy: None; Fred M. & Maralee Ebert: None; Robert H. & Cynthia Ebert: $10.00, 1/2010, Diggs Brown for Congress (US H Can.); $25.00, 4/2010, Republican National Committee; $50.00, 9/2010, Buck for Colorado (US Senate Cand); $50.00, 9/2010, Friends of Sharron Angle (US Sen Can); $100.00, 10/2010, Republican National Committee; $50.00, 10/2010, RNC Victory; $50.00, 10/2010, Buck for Colorado (US Sen Candidate); $50.00, 10/2010, Republican National Committee; $10.00, 12/2010, Friends of Sharron Angle (US Sen Can); $15.00, 3/2011, Tea Party Patriots; $25.00, 7/2011, Tea Party Patriots; $100.00, 8/2012, Mitt Romney; $46.50, 8/2012, Mitt Romney; $250.00, 8/2012, Vote Tipton (CO Rep to U.S. House); $50.00, 8/2012, Republican National Committee; $50.00, 8/2012, Republican National Committee; $30.00, 8/2012, Tea Party Patriots; $250.00, 10/2012, Romney/Ryan Romney for President; $250.00, 10/2012, Romney Victory Inc.; $100.00, 10/2012, Mitt Romney; $50.00, 10/2012, Vote Tipton (CO Rep to U.S. House); $25.00, 7/2013, Tea Party Patriots; $25.00, 11/2013, TPP Citizens Tea Party Patriots.

7. Sisters and Spouses: Susan F. Ebert-Stone & Henry J. Stone: None; Christine A. Ebert-Santos & Roque Santos: $200, 2014, U.S. Senator Mark Udall.

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*G. Kathleen Hill, of Colorado, a Career Member of the Senior Foreign Service, Class of Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Malta.

Nominee: Glenna Kathleen Hill.

Post: U.S. Ambassador to Malta.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: None.

2. Spouse.

3. Children and Spouses.

4. Parents: Mary Ann Hill, none; Curtis Ray Hill—deceased.

5. Grandparents: Mabel Ann Girod—deceased; Herschel Curgus Girod—deceased; Johnny Mitchell Hill—deceased; Mamie Elisabeth Hill—deceased.

6. Brothers and Spouses.

7. Sisters and Spouses: Susan Renea Livingstone, none; William Neil Livingstone, none.

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*John D. Feeley, of the District of Columbia, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Panama.

Nominee: John D. Feeley.

Post: Chief of Mission—Panama.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: $250.00, October 2012, Sen. Tim Kaine.

2. Spouse: Annette P. Feeley: None.

3. Children and Spouses: Nicholas J. Feeley: None; Julie Defossez (daughter in law): None; John P. Feeley: None.

4. Parents: David T. Feeley: None; Susan F. Feeley: None.

5. Grandparents: Deceased: N/A.

6. Brothers and Spouses: N/A.

7. Sisters and Spouses: Elizabeth Feeley (sister): None; Catherine Agnew (sister): None; Michael Agnew (brother in law): None.

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*Eric Seth Rubin, of New York, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Bulgaria.

Nominee: Eric Seth Rubin

Post: Bulgaria

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: $1,000, 8/13/2011, Mark Takano; $500, 9/10/2011, Mark Takano.

2. Spouse: Nicole S. Simmons: $1,000, 09/19/2011, Mark Takano Victory Fund; $1,000, 10/23/2012, Calif. Dem Party; $1,000, 1/24/2012, Mark Takano; $500, 3/31/2012, Mark Takano; $1,000, 10/22/2012, Mark Takano; $500, 9/29/2013, Mark Takano; $500, 3/12/2014, Mark Takano.

3. Children and Spouses: Rachel R. Rubin, child: None; Liana S. Rubin, child: None.

4. Parents: Richard L. Simmons, M.D., none. Myrna L. Rubin and Robert H. Rubin: none.

5. Grandparents: deceased.

6. Brothers and Spouses: Jonathan D. Rubin and Jamie Seidner: none.

7. Sisters and Spouses: Janine M. Simmons and Sean Jones: none.

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*Kyle R. Scott, of Arizona, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Serbia.

Nominee: Kyle R. Scott.

Post: German Marshall Fund of the U.S. Nominated Serbia.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, donee, amount, date:

1. Self: None.

2. Spouse: Nevenka F Scott: None.

3. Children and Spouses: Mark F Scott, none; Kristian R. Scott, none.

4. Parents: Jacqueline H. Scott, none; Robert L. Scott Jr.—deceased.

5. Grandparents: Robert L. Scott Sr.—deceased; Mary Scott—deceased; Katherine Hause—deceased.

6. Brothers and Spouses: Robert L. Scott III, none; LeAnn Scott, none; Theodore R. Scott, none; Joan Weber, only for state offices in CA, as follows: $250 each, 2014, Judges Ronald Prager, Lisa Schall, Jacqueline Stern and Michael Popkins; $150, 2012, Commissioner Terrie Roberts; $250 each, 2010, Judges Joel Wohlfeil, Robert Longstreth, Lantz Lewis and Deann Salcido.

7. Sisters and Spouses: None.

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*Todd C. Chapman, of Texas, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Ecuador.

Nominee: Todd C. Chapman.

Post: U.S. Ambassador to Ecuador.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: None.

2. Spouse: Janetta Boyd Chapman: None.

3. Children and Spouses: Joshua Boyd Chapman: None; Kristina Loving Chapman: None; Jason Chapman: None.

4. Parents: Bob Chapman—deceased; Marilyn Chapman: None.

5. Brothers and Spouses: N/A.

6. Sisters and Spouses: Ava Michelle Chapman: None reported; Bonnie Neighbour: None reported; Shawn French: None reported; Jerry French: None reported.

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*David McKean, of Massachusetts, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to Luxembourg.

Nominee: David McKean.

Post: Ambassador to the Grand Duchy of Luxembourg.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: $8,500, 2011, Obama for President; $250.00, 11/09/2011, Setti Warren for Senate.

2. Spouse: Kathleen Kaye: none.

3. Children and Spouses: Shaw Forbes McKean: none. Christian Kallin McKean: none. Kaye Thayer McKean: none.

4. Parents: Katherine Winthrop McKean—deceased; Quincy Shaw McKean—deceased.

5. Grandparents: Henry Pratt McKean—deceased; Marion Shaw Houghton—deceased; Frederick Winthrop—deceased; Sarah Thayer Winthrop—deceased.

6. Brothers and Spouses: John Winthrop McKean: $2,500, 9/29/2011, Obama for President; $1,000, 8/27/2014; Kay Hagen for Senate. Thomas McKean: $1,000, 9/29/2011, Obama for President; $250, 9/25/12, Elizabeth Warren for Senate. Dr. Sylvia Wyman McKean (Spouse): none. Robert Winthrop McKean: $500, 7/11/2011, Obama for President. Sandra McKean (Spouse): none.

7. Sisters and Spouses: Names.

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*Jean Elizabeth Manes, of Florida, a Career Member of the Senior Foreign Service, Class of Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of El Salvador.

Nominee: Jean Elizabeth Manes.

Post: Chief of Mission—El Salvador.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: none.

2. Spouse: Hector Cerpa: none.

3. Children and Spouses: Constanza Cerpa:none, Candela Cerpa: none.

4. Parents: Roger and Betty Manes: none.

5. Grandparents: Walter Masters—deceased; Alice Masters—none; Louise Manes—deceased; William Manes—deceased.

6. Brothers and Spouses: Roger Manes Jr., none.

7. Sisters and Spouses: Shannon Horsley, none; Michael Horsley, none.

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*Linda Swartz Taglialatela, of New York, a Career Member of the Senior Executive Service, to be Ambassador Extraordinary and

Plenipotentiary of the United States of America to Barbados, and to serve concurrently and without additional compensation as Ambassador Extraordinary and Plenipotentiary of the United States of America to the Federation of St. Kitts and Nevis, Saint Lucia, Antigua and Barbuda, the Commonwealth of Dominica, Grenada, and Saint Vincent and the Grenadines.

Nominee: Linda Swartz Taglialatela.

Post: Bridgetown (Barbados).

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions; amount; date; and donee.

1. Self: None.

2. Spouse: none.

3. Children and Spouses: none.

4. Parents: Leon E. Swartz—Deceased; Anne V. Swartz—Deceased.

5. Grandparents: Antonio Cimaono—Deceased; Constance Cimaomo—Deceased; Mabel Swartz Barnes—Deceased; Leon Swartz—Deceased; Harold Barnes—Deceased.

6. Brothers and Spouses: Leon D. Swartz: None; Jean Swartz: None; James C. Swartz: None; Karen Swartz: None.

7. Sisters and Spouses: Susan M. Swartz: None; Michael J. Toursignant: None.

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*Carlos J. Torres, of Virginia, to be Deputy Director of the Peace Corps.

Mr. CORKER. Mr. President, for the Committee on Foreign Relations I report favorably the following nomination lists which were printed in the RECORDs on the dates indicated, and ask unanimous consent, to save the expense of reprinting on the Executive Calendar that these nominations lie at the Secretary's desk for the information of Senators.

The PRESIDING OFFICER. Without objection, it is so ordered.

*Foreign Service nomination of Daniel Sylvester Cronin.

*Foreign Service nomination of Derell Kennedo.

*Foreign Service nominations beginning with Steven Carl Aaberg and ending with Sandra M. Zuniga Guzman, which nominations were received by the Senate and appeared in the Congressional Record on November 10, 2015.

*Foreign Service nominations beginning with James F. Entwistle and ending with Daniel R. Russel, which nominations were received by the Senate and appeared in the Congressional Record on November 19, 2015. (minus 1 nominee: Richard Gustave Olson, Jr.)

*Foreign Service nominations beginning with Christopher Volciak and ending with Edward L. Robinson III, which nominations were received by the Senate and appeared in the Congressional Record on November 19, 2015.

*Nomination was reported with recommendation that it be confirmed subject to the nominee's commitment to respond to requests to appear and testify before any duly constituted committee of the Senate.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. CRUZ:

S. 2363. A bill to amend the Immigration and Nationality Act to permit the Governor of a State to reject the resettlement of a refugee in that State unless there is adequate assurance that the alien does not present a security risk and for other purposes; to the Committee on the Judiciary.

By Mr. CARDIN (for himself and Mr. HELLER):

S. 2364. A bill to permit occupational therapists to conduct the initial assessment visit under a Medicare home health plan of care for certain rehabilitation cases; to the Committee on Finance.

By Mr. NELSON (for himself and Mr. SESSIONS):

S. 2365. A bill to amend the Immigration and Nationality Act to protect American jobs, and for other purposes; to the Committee on the Judiciary.

By Mr. UDALL:

S. 2366. A bill to promote innovation, investment, and economic growth by accelerating spectrum efficiency through a challenge prize competition; to the Committee on Commerce, Science, and Transportation.

By Mr. MCCAIN:

S. 2367. A bill to provide for hardship duty pay for border patrol agents and customs and border protection officers assigned to highly-trafficked rural areas; to the Committee on Homeland Security and Governmental Affairs.

By Mr. HATCH:

S. 2368. An original bill to amend title XVIII of the Social Security Act to improve the efficiency of the Medicare appeals process, and for other purposes; from the Committee on Finance; placed on the calendar.

By Mr. CARPER:

S. 2369. A bill to amend the Homeland Security Act of 2002 to establish an Office for Community Partnerships; to the Committee on Homeland Security and Governmental Affairs.

By Mr. ROBERTS:

S. 2370. A bill to prohibit the Internal Revenue Service from modifying or amending the standards and regulations governing the substantiation of charitable contributions; to the Committee on Finance.

By Mr. ISAKSON:

S. 2371. A bill to amend the Internal Revenue Code of 1986 to clarify the treatment of locum tenens physicians as independent contractors to help alleviate physician shortages in underserved areas; to the Committee on Finance.

By Mrs. FEINSTEIN (for herself and Mr. BURR):

S. 2372. A bill to require reporting of terrorist activities and the unlawful distribution of information relating to explosives, and for other purposes; to the Committee on the Judiciary.

By Ms. CANTWELL (for herself, Mr. GRASSLEY, Mr. KIRK, and Mr. SCHUMER):

S. 2373. A bill to amend title XVIII of the Social Security Act to provide for Medicare coverage of certain lymphedema compression treatment items as items of durable medical equipment; to the Committee on Finance.

By Mr. MARKEY (for himself and Ms. WARREN):

S. 2374. A bill to amend the Defense Base Act to require death benefits to be paid to a deceased employee's designated beneficiary or next of kin in the case of death resulting from a war-risk hazard or act of terrorism occurring on or after September 11, 2001; to the Committee on Health, Education, Labor, and Pensions.

By Mr. JOHNSON (for himself, Mr. WARNER, Mr. BLUNT, Mr. PORTMAN, and Mr. LANKFORD):

S. 2375. A bill to decrease the deficit by consolidating and selling excess Federal tangible property, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Ms. COLLINS (for herself and Mr. KING):

S. Res. 331. A resolution designating December 12, 2015, as ''Wreaths Across America Day''; considered and agreed to.

ADDITIONAL COSPONSORS

S. 71

At the request of Mr. VITTER, the names of the Senator from Kansas (Mr. ROBERTS) and the Senator from Colorado (Mr. GARDNER) were added as cosponsors of S. 71, a bill to preserve open competition and Federal Government neutrality towards the labor relations of Federal Government contractors on Federal and federally funded construction projects.

S. 142

At the request of Mr. NELSON, the name of the Senator from North Dakota (Mr. HOEVEN) was added as a cosponsor of S. 142, a bill to require the Consumer Product Safety Commission to promulgate a rule to require child safety packaging for liquid nicotine containers, and for other purposes.

S. 150

At the request of Mr. ISAKSON, the name of the Senator from Delaware (Mr. CARPER) was added as a cosponsor of S. 150, a bill to provide for a biennial budget process and a biennial appropriations process and to enhance oversight and the performance of the Federal Government.

S. 334

At the request of Mr. PORTMAN, the name of the Senator from Alaska (Mr. SULLIVAN) was added as a cosponsor of S. 334, a bill to amend title 31, United States Code, to provide for automatic continuing resolutions.

S. 429

At the request of Ms. BALDWIN, the name of the Senator from Minnesota (Ms. KLOBUCHAR) was added as a cosponsor of S. 429, a bill to amend title XIX of the Social Security Act to provide a standard definition of therapeutic foster care services in Medicaid.

S. 849

At the request of Mr. ISAKSON, the name of the Senator from Alaska (Ms. MURKOWSKI) was added as a cosponsor of S. 849, a bill to amend the Public Health Service Act to provide for systematic data collection and analysis and epidemiological research regarding Multiple Sclerosis (MS), Parkinson's disease, and other neurological diseases.

S. 961

At the request of Mr. CARPER, the name of the Senator from Delaware

(Mr. COONS) was added as a cosponsor of S. 961, a bill to protect information relating to consumers, to require notice of security breaches, and for other purposes.

S. 979

At the request of Mr. NELSON, the name of the Senator from Colorado (Mr. BENNET) was added as a cosponsor of S. 979, a bill to amend title 10, United States Code, to repeal the requirement for reduction of survivor annuities under the Survivor Benefit Plan by veterans' dependency and indemnity compensation, and for other purposes.

S. 1085

At the request of Mrs. MURRAY, the name of the Senator from Hawaii (Ms. HIRONO) was added as a cosponsor of S. 1085, a bill to expand eligibility for the program of comprehensive assistance for family caregivers of the Department of Veterans Affairs, to expand benefits available to participants under such program, to enhance special compensation for members of the uniformed services who require assistance in everyday life, and for other purposes.

S. 1133

At the request of Mr. FRANKEN, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of S. 1133, a bill to amend title 9 of the United States Code with respect to arbitration.

S. 1152

At the request of Mr. WHITEHOUSE, the names of the Senator from Minnesota (Mr. FRANKEN), the Senator from Minnesota (Ms. KLOBUCHAR) and the Senator from Massachusetts (Ms. WARREN) were added as cosponsors of S. 1152, a bill to make permanent the extended period of protections for members of uniformed services relating to mortgages, mortgage foreclosure, and eviction, and for other purposes.

S. 1214

At the request of Mr. MENENDEZ, the name of the Senator from New Hampshire (Ms. AYOTTE) was added as a cosponsor of S. 1214, a bill to prevent human health threats posed by the consumption of equines raised in the United States.

S. 1538

At the request of Mr. DURBIN, the name of the Senator from Colorado (Mr. BENNET) was added as a cosponsor of S. 1538, a bill to reform the financing of Senate elections, and for other purposes.

S. 1726

At the request of Mr. MERKLEY, the name of the Senator from Nevada (Mr. HELLER) was added as a cosponsor of S. 1726, a bill to create protections for depository institutions that provide financial services to marijuana-related businesses, and for other purposes.

S. 1792

At the request of Mr. SCHUMER, the name of the Senator from Maryland (Ms. MIKULSKI) was added as a cosponsor of S. 1792, a bill to amend the Internal Revenue Code of 1986 to equalize the exclusion from gross income of parking and transportation fringe benefits and to provide for a common cost-of-living adjustment, and for other purposes.

S. 1890

At the request of Mr. HATCH, the name of the Senator from Minnesota (Mr. FRANKEN) was added as a cosponsor of S. 1890, a bill to amend chapter 90 of title 18, United States Code, to provide Federal jurisdiction for the theft of trade secrets, and for other purposes.

S. 2102

At the request of Mr. LEE, the name of the Senator from West Virginia (Mrs. CAPITO) was added as a cosponsor of S. 2102, a bill to amend the Clayton Act and the Federal Trade Commission Act to provide that the Federal Trade Commission shall exercise authority with respect to mergers only under the Clayton Act and only in the same procedural manner as the Attorney General exercises such authority.

S. 2200

At the request of Mrs. FISCHER, the name of the Senator from South Carolina (Mr. SCOTT) was added as a cosponsor of S. 2200, a bill to amend the Fair Labor Standards Act of 1938 to strengthen equal pay requirements.

S. 2263

At the request of Mr. BLUNT, the name of the Senator from Alaska (Mr. SULLIVAN) was added as a cosponsor of S. 2263, a bill to encourage effective, voluntary private sector investments to recruit, employ, and retain men and women who have served in the United States military with annual Federal awards to private sector employers recognizing such investments, and for other purposes.

S. 2292

At the request of Mr. TESTER, the name of the Senator from Missouri (Mr. BLUNT) was added as a cosponsor of S. 2292, a bill to reform laws relating to small public housing agencies, and for other purposes.

S. 2312

At the request of Mr. THUNE, the name of the Senator from Montana (Mr. DAINES) was added as a cosponsor of S. 2312, a bill to amend titles XVIII and XIX of the Social Security Act to make improvements to payments for durable medical equipment under the Medicare and Medicaid programs.

S. 2323

At the request of Mr. DURBIN, the name of the Senator from California (Mrs. BOXER) was added as a cosponsor of S. 2323, a bill to clarify the definition of nonimmigrant for purposes of chapter 44 of title 18, United States Code.

S. 2344

At the request of Mr. COTTON, the name of the Senator from Idaho (Mr. RISCH) was added as a cosponsor of S. 2344, a bill to provide authority for access to certain business records collected under the Foreign Intelligence Surveillance Act of 1978 prior to November 29, 2015, to make the authority for roving surveillance, the authority to treat individual terrorists as agents of foreign powers, and title VII of the Foreign Intelligence Surveillance Act of 1978 permanent, and to modify the certification requirements for access to telephone toll and transactional records by the Federal Bureau of Investigation, and for other purposes.

S. 2353

At the request of Mr. GRASSLEY, the name of the Senator from New Mexico (Mr. HEINRICH) was added as a cosponsor of S. 2353, a bill to amend the Internal Revenue Code of 1986 to extend and modify the incentives for biodiesel.

S. 2354

At the request of Mrs. FISCHER, the name of the Senator from New Hampshire (Ms. AYOTTE) was added as a cosponsor of S. 2354, a bill to amend the Internal Revenue Code of 1986 to provide a credit to employers who provide paid family and medical leave, and for other purposes.

S. 2357

At the request of Mr. WHITEHOUSE, the names of the Senator from Minnesota (Mr. FRANKEN) and the Senator from Minnesota (Ms. KLOBUCHAR) were added as cosponsors of S. 2357, a bill to extend temporarily the extended period of protection for members of uniformed services relating to mortgages, mortgage foreclosure, and eviction, and for other purposes.

S. 2362

At the request of Mr. JOHNSON, the name of the Senator from Missouri (Mr. BLUNT) was added as a cosponsor of S. 2362, a bill to amend the Immigration and Nationality Act to provide enhanced security measures for the Visa Waiver Program, and for other purposes.

S. RES. 148

At the request of Mr. KIRK, the names of the Senator from Pennsylvania (Mr. TOOMEY), the Senator from Georgia (Mr. PERDUE) and the Senator from Kansas (Mr. MORAN) were added as cosponsors of S. Res. 148, a resolution condemning the Government of Iran's state-sponsored persecution of its Baha'i minority and its continued violation of the International Covenants on Human Rights.

S. RES. 320

At the request of Mr. MCCAIN, the name of the Senator from Florida (Mr. RUBIO) was added as a cosponsor of S. Res. 320, a resolution congratulating the people of Burma on their commitment to peaceful elections.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. CARDIN (for himself and Mr. HELLER):

S. 2364. A bill to permit occupational therapists to conduct the initial assessment visit under a Medicare home

health plan of care for certain rehabilitation cases; to the Committee on Finance.

Mr. CARDIN. Mr. President, I rise in support of the Medicare Home Health Flexibility Act of 2015, which I am introducing today with my colleague Senator HELLER. This bipartisan, no-cost legislation would allow occupational therapists to perform the initial home health assessment in cases in which occupational therapy is ordered by the physician, along with speech language pathology and/or physical therapy services, and skilled nursing care is not required, ensuring that Medicare beneficiaries receive timely access to essential home health therapy services.

Occupational therapy is frequently ordered as part of a physician's plan of care for patients requiring home health services, and, under certain circumstances, an occupational therapist is allowed to perform the comprehensive assessment to determine a Medicare beneficiary's continuing need for home health therapy services. However, under current Medicare law, occupational therapists are not permitted to conduct the initial assessment for home health cases, even when occupational therapy is included in the physician's order and when the case is exclusively related to rehabilitation therapy.

By permitting occupational therapists to perform initial home health assessments in limited circumstances, the Medicare Home Health Flexibility Act can help prevent delays in Medicare beneficiaries receiving essential home health therapy services, especially in areas where access to physical therapists and speech language pathologists may be limited. It is important to note that this legislation would apply only to rehabilitation therapy cases in which skilled nursing care is not required. Nurses would still be required to conduct the initial assessment for all home health cases in which skilled nursing care is ordered by the physician. Also, although the Medicare Home Health Flexibility Act would allow occupational therapists to conduct initial home health assessments, it would not alter the existing criteria for establishing eligibility for the Medicare home health benefit.

I urge my colleagues to join me and Senator HELLER in supporting the Medicare Home Health Flexibility Act, which will help ensure timely access to essential home health therapy services for Medicare beneficiaries.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 2364

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Medicare Home Health Flexibility Act of 2015''.

SEC. 2. PERMITTING OCCUPATIONAL THERAPISTS TO CONDUCT THE INITIAL ASSESSMENT VISIT UNDER A MEDICARE HOME HEALTH PLAN OF CARE FOR CERTAIN REHABILITATION CASES.

(a) IN GENERAL.—Notwithstanding section 484.55(a)(2) of title 42, Code of Federal Regulations, or any other provision of law, an occupational therapist may conduct the initial assessment visit for an individual who is eligible for home health services under title XVIII of the Social Security Act if the referral order by the physician—

(1) does not include skilled nursing care;

(2) includes occupation therapy; and

(3) includes physical therapy or speech language pathology.

(b) RULE OF CONSTRUCTION.—Nothing in subsection (a) shall be construed to provide for initial eligibility for coverage of home health services under title XVIII of the Social Security Act solely on the basis of a need for occupational therapy.

By Mr. HATCH:

S. 2368. An original bill to amend title XVIII of the Social Security Act to improve the efficiency of the Medicare appeals process, and for other purposes; from the Committee on Finance; placed on the calendar.

Mr. HATCH. Mr. President, today Senator WYDEN and I have officially introduced the Audit and Appeal Fairness, Integrity, and Reforms in Medicare, or AFIRM, Act of 2015, a bipartisan bill developed earlier this year in the Senate Finance Committee. The AFIRM Act was actually ordered reported out of the committee in June, passing by voice vote with no recorded opposition.

This legislation, comes mainly in response to the concerns many have expressed with regard to program integrity and the overall solvency of the Medicare Trust Fund.

A recent report from the Government Accountability Office found that, in fiscal year 2014 alone, Medicare covered health services for approximately 54 million elderly and disabled beneficiaries at a cost of $603 billion in Federal funds. And, according to GAO, of that figure, approximately 10 percent of the funds were improperly paid.

That is nearly $60 billion in improper payments—either errors or fraud—in a single fiscal year. That is an astronomical figure, and about 33 percent higher than the number we saw the year before.

This unacceptably high level of improper Medicare payments has led to an increased number of audits to identify and recapture those funds. While officials at the Centers for Medicare & Medicaid Services have been reasonably successful in their mission to conduct audits on the more than one billion claims submitted to Medicare every year, they face an uphill battle in their efforts to recover improper payments.

In 2014, for example, CMS recovery audit contractors recovered over $2.57 billion. While this may sound like a large number, that is less than of the 2014 Medicare improper payments estimate of $45.8 billion, hardly a figure anyone should be proud of.

Coming on the heels of this massive loss in taxpayer funds and our Government's utter failure to retrieve them is an equally massive unintended consequence.

Due to the increasing number of audits, there has been a predictable, yet dramatic, increase in the number of Medicare appeals. Currently, there are so many appeals being filed in response to these audits that the Office of Medicare Hearings and Appeals can't even docket them for 20 to 24 weeks after they are filed.

In fact, within the last month, the total backlog of Medicare appeals eclipsed 900,000. You heard that right: There are more than 900,000 appeals currently pending at the Office of Medicare Hearings and Appeals.

In fiscal year 2009, the majority of Medicare appeals were processed within 94 days. Now, 6 years later, it takes, on average, 547 days—or roughly a year and a half—to process an appeal. This is an incredibly frustrating amount of time, not only for physicians and other health care providers, but for Medicare beneficiaries as well.

Think about that for a second. It takes, on average, a year and a half for Medicare beneficiaries—many of whom live on fixed incomes—filing an appeal to find out whether their services will be covered in the end. It takes a year and a half for doctors—an increasing number of whom are already opting to not accept Medicare patients—to find out if they will be paid.

Contributing to this problem is the fact that large portions of the initial payment determinations are reversed on appeal. The Department of Health and Human Services Office of Inspector General reported that, of the 41,000 appeals made to Administrative Law Judges, or ALJs, in fiscal year 2012, over 60 percent were partially or fully favorable to the defendant.

Such a high rate of reversals raises questions about the quality of initial determinations and whether providers and beneficiaries are facing undue burdens up front.

In order to protect beneficiaries, provide certainty for doctors, and take steps to at least partially shore up the Medicare Trust Fund, we need to address these issues now. That is why Senator WYDEN and I introduced the AFIRM Act.

If enacted, our bill will improve oversight of the Medicare audits and appeals process, effectively addressing the staggering Medicare appeals backlog. It will make the most fundamental changes to the appeals process since Medicare began. It will lay the groundwork for a more level playing field, reducing the burden on providers and suppliers, while giving auditors the tools necessary to better protect the Medicare Trust Fund.

The AFIRM Act will address these issues in five ways.

First, it will improve the audit programs by coordinating efforts between auditors and CMS to ensure that all

parties receive adequate training on current policy, increasing transparency in the audit process, and requiring that CMS create new incentives to improve auditor accuracy.

Second, the bill will make reforms to the Medicare appeals process to address the appeals backlog without sacrificing quality. Part of this will be done by raising the amount in controversy for review by an ALJ to match the amount for review required by a District Court. For cases with lower costs, a new Medicare Magistrate program will be created to allow senior attorneys with expertise in Medicare law and policies to decide cases in the same way as ALJs. This will allow more cases to be heard more quickly, while still providing ALJs full focus on the more complex cases.

Third, the bill will allow for the use of sampling and extrapolation of Medicare claims, with the appellant's consent, to expedite the appeals process.

Fourth, the bill will establish voluntary alternate dispute resolution processes for multiple pending claims with similar issues to be settled as a unit, rather than as individual appeals. This will reduce administrative costs while still providing reasonable consideration to pending claims.

Finally, the bill will also require that CMS create an independent Ombudsman for Medicare Reviews and Appeals to help resolve complaints made by appellants and those considering appeal. As with any federal program, continuing oversight and good leadership are required to have any measure of success.

These are thoughtful, bipartisan improvements, agreed on by the entire Finance Committee that will address the appeals backlog while still allowing us to improve program integrity going forward. I believe it is the best approach we can take to continue our efforts to recover lost taxpayer funds without creating undue burdens for health care providers and suppliers.

Oftentimes in Congress we find ourselves shying away from bipartisan compromises like this. Some may feel that they have more to gain, politically, if they thumb their noses at the other party. Or, inversely, they have something to lose if they actually agree on an issue with members on the other side.

Let me clearly state, for the record, that we have neither the time, nor the money to play partisan games with this issue.

The average amount of time for an appeal to get processed has gone up by more than 550 percent in just 6 years. You heard me correctly—that increase is just in the time it takes to get the appeal processed, not even ruled on. If this trend continues, and absent congressional action, I think we can assume that it will continue, imagine how much more strained, expensive, and ineffective the Medicare appeals system could become.

Truly, there is no time better than now to actually do our job and stem this rising tide.

Before I finish I want to thank Senator WYDEN for working with me on this effort and for making this a truly bipartisan endeavor. I hope all of my colleagues—on both sides of the aisle—will support the AFIRM Act.

By Mrs. FEINSTEIN (for herself and Mr. BURR):

S. 2372. A bill to require reporting of terrorist activities and the unlawful distribution of information relating to explosives, and for other purposes; to the Committee on the Judiciary.

Mrs. FEINSTEIN. Mr. President, today I rise to introduce the Requiring Reporting of Online Terrorist Activity Act, which would require technology companies to inform appropriate law enforcement authorities when they become aware of terrorist activity online.

This provision is modeled after a similar requirement on technology companies under current law, which requires the companies to report instances of child pornography that they become aware of online.

This legislation passed the Intelligence Committee earlier this year by a vote of 15–0 as part of our annual Intelligence Authorization Act, but it was later dropped, along with other provisions, to try to move the broader intelligence bill through the Senate.

I have continued to believe that terrorists' use of the Internet is a problem that we need to address, and that the government can't do it alone. I have had conversations with the senior leaders and general counsels of major technology companies and unfortunately, I don't believe that they will report terrorist activity on their websites without a legal requirement to do so.

So I am reintroducing this provision as a stand-alone bill, especially in the wake of recent terrorist attacks that highlight the problem of terrorist activity on social media.

The investigation into the San Bernardino attack is ongoing, but so far, we have learned that sometime around the time of the attack, the female shooter, Tashfeen Malik, or an account connected to her, posted something on her Facebook page declaring allegiance to the Islamic State in Syria and the Levant or ''ISIL.''

Facebook has publicly confirmed that the company identified and removed the account connected to Malik because praising a terrorist attack or declaring allegiance to leaders of ISIL would violate the company's standards for use.

Facebook has said it is cooperating with law enforcement on the matter as part of the post-shooting investigation, but I would like to see technology companies notify law enforcement about terrorist activity they see online before an attack occurs.

It is important to recognize how ISIL has used social media to reinvent terrorist recruiting and plotting over the past year and a half. I believe that now is the time for Congress to pass legislation to help law enforcement better respond to the threat.

Unlike in the past when terrorists devised intricate plots years in advance, today, thousands of ISIL followers have flooded social media with a vast and persistent effort to find followers inside the United States, identify targets of opportunity, and instruct their new supporters how to conduct more small-scale, yet lethal terrorist attacks—all in a matter of days or weeks and all online without ever meeting or vetting their operative in person.

This new trend shows that terrorism has adapted to the digital age, spreading first its propaganda and then its operational reach across the globe. Its lack of coordination or complexity makes it faster and harder to thwart than ever before, and the ubiquitous use of social media gives ISIL a wider direct audience than al-Qa'ida ever enjoyed.

To respond, we must ensure that law enforcement is aware of the threat. To do this, Congress should pass this legislation immediately, which requires technology companies to inform the appropriate authorities when they become aware of terrorist activity.

This type of requirement is not new. For years, companies have been required to notify law enforcement when they become aware of online child pornography. This bill would do essentially the same thing, but for cases of terrorism. It would not require companies to monitor their customers, nor would it chill free speech protected by the Constitution. Instead, it simply requires that clear acts of terrorist plotting or illegal activity associated with terrorism be conveyed to law enforcement.

Most social media companies already devote considerable resources to remove content or suspend the accounts of individuals who post or transmit blatant terrorist-related content. But under the current system, there is no requirement that a company provide notice to law enforcement when, through the normal course of business, it becomes aware of images, posts, or other online terrorist activity. By closing that gap and requiring that companies notify law enforcement, there is a better chance the attempts by terrorist groups like ISIL to direct an individual inside the United States to conduct a violent act will be discovered and thwarted before it is too late.

When technology companies see a picture of a child being exploited, they are required to inform law enforcement. Terrorist activity should be no different.

I urge my colleagues to support this legislation.

By Mr. MARKEY (for himself and Ms. WARREN):

S. 2374. A bill to amend the Defense Base Act to require death benefits to be paid to a deceased employee's designated beneficiary or next of kin in the case of death resulting from a war-risk hazard or act of terrorism occurring on or after September 11, 2001; to the Committee on Health, Education, Labor, and Pensions.

Mr. MARKEY. Mr. President, in September 2012, an attack on the United States facilities in Benghazi, Libya, resulted in the death of Glen Anthony Doherty, a former Navy SEAL who grew up in Winchester, MA, and three others.

Mr. Doherty was killed while defending the classified annex near the U.S. Consulate in Benghazi against a terrorist attack that also caused the deaths of U.S. Ambassador J. Christopher Stevens, former Navy SEAL and C.I.A. contractor Tyrone Woods, and U.S. State Department officer Sean Smith.

Mr. Doherty was unmarried and had no dependents. It is my understanding that he activated his mandatory Defense Base Act insurance policy before deploying to Libya in 2012 believing this policy would pay benefits to his estate or next of kin in the event of his death.

After his death and despite the Doherty family's extensive efforts, they have been unable to receive financial compensation from the Central Intelligence Agency or from private insurance providers. This issue has compounded the pain the family has endured from the loss of a beloved son and brother.

No family in the CIA community should be left uncompensated if a family member falls in the line of duty.

That is why I am today introducing the Glen Anthony Doherty Overseas Security Personnel Fairness Act, which was first introduced in the House of Representatives by Congressman Steven Lynch. This legislation will remove a significant omission in federal law that currently prohibits the families of overseas contractors who are killed in the line of duty from receiving full death benefits if the deceased employee is unmarried with no children or other dependents. The bill would amend the Defense Base Act of 1941 to ensure that full death benefits are extended to the families or designated beneficiaries of Federal contractors who have died in service to our country as a result of a war-risk hazard or an act of terrorism.

Specifically, it would allow the payment of death benefits otherwise due a widow, widower, or surviving child of an individual employed at a military, air, or naval base outside of the United States who dies as a result of a war-risk hazard or act of terrorism occurring on or after September 11, 2001, when there is no person eligible for a death benefit under the Longshore and Harbor Workers' Compensation Act.

The bill requires payment in such a case to a beneficiary designated by the deceased or the next of kin or the estate of the deceased under applicable state law if there is no designated beneficiary. The bill requires benefits to be paid from the Employees' Compensation Fund.

More than merely a technical or administrative concern, this issue goes to the heart of the United States government's relationship with the families of those who are killed defending our country. I ask all Senators to support this important legislation for the families of those who have made the ultimate sacrifice for our Nation.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 331—DESIGNATING DECEMBER 12, 2015, AS ''WREATHS ACROSS AMERICA DAY''

Ms. COLLINS (for herself and Mr. KING) submitted the following resolution; which was considered and agreed to:

S. RES. 331

Whereas, 24 years before the date of adoption of this resolution, the Wreaths Across America project began with an annual tradition that occurs in December, of donating, transporting, and placing 5,000 Maine balsam fir remembrance wreaths on the graves of the fallen heroes buried at Arlington National Cemetery;

Whereas, in the 24 years preceding the date of adoption of this resolution, more than 2,416,000 wreaths have been sent to locations, including national cemeteries and veterans memorials, in every State and overseas;

Whereas the mission of the Wreaths Across America project, to ''Remember, Honor, Teach'', is carried out in part by coordinating wreath-laying ceremonies in all 50 States and overseas, including at—

(1) Arlington National Cemetery;

(2) veterans cemeteries; and

(3) other locations;

Whereas the Wreaths Across America project carries out a week-long veterans parade between Maine and Virginia, stopping along the way to spread a message about the importance of—

(1) remembering the fallen heroes of the United States;

(2) honoring those who serve; and

(3) reminding the people of the United States about the sacrifices made by veterans and their families to preserve freedoms in the United States;

Whereas, in 2014, approximately 716,000 remembrance wreaths were sent to more than 1,000 locations across the United States and overseas, an increase of more than 100 locations compared to the previous year;

Whereas, in December 2015, the tradition of escorting tractor-trailers filled with donated wreaths from Harrington, Maine, to Arlington National Cemetery will be continued by—

(1) the Patriot Guard Riders; and

(2) other patriotic escort units, including—

(A) motorcycle units;

(B) law enforcement units; and

(C) first responder units;

Whereas hundreds of thousands of individuals volunteer each December to help lay remembrance wreaths;

Whereas the trucking industry in the United States continues to support the Wreaths Across America project by providing drivers, equipment, and related services to assist in the transportation of wreaths across the United States to over 1,000 locations;

Whereas the Senate designated December 13, 2014, as ''Wreaths Across America Day''; and

Whereas, on December 12, 2015, the Wreaths Across America project will continue the proud legacy of bringing remembrance wreaths to Arlington National Cemetery: Now, therefore, be it

Resolved, That the Senate—

(1) designates December 12, 2015, as ''Wreaths Across America Day'';

(2) honors—

(A) the Wreaths Across America project;

(B) patriotic escort units, including—

(i) motorcycle units;

(ii) law enforcement units; and

(iii) first responder units;

(C) the trucking industry in the United States; and

(D) the volunteers and donors involved in this worthy tradition; and

(3) recognizes—

(A) the service of veterans and members of the Armed Forces; and

(B) the sacrifices that veterans, members of the Armed Forces, and their families have made, and continue to make, for the United States, a great Nation.

AMENDMENTS SUBMITTED AND PROPOSED

SA 2921. Mr. MCCONNELL (for Mr. CASEY) proposed an amendment to the resolution S. Res. 207, recognizing threats to freedom of the press and expression around the world and reaffirming freedom of the press as a priority in efforts of the United States Government to promote democracy and good governance.

TEXT OF AMENDMENTS

SA 2921. Mr. MCCONNELL (for Mr. CASEY) proposed an amendment to the resolution S. Res. 207, recognizing threats to freedom of the press and expression around the world and reaffirming freedom of the press as a priority in efforts of the United States Government to promote democracy and good governance; as follows:

Strike the fifteenth whereas clause, and insert the following:

Whereas, according to Reporters Without Borders, the 5 countries with the highest number of journalists in prison as of December 1, 2014, were China, Eritrea, Iran, Ethiopia, and Vietnam;

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ARMED SERVICES

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Armed Services be authorized to meet during the session of the Senate on December 8, 2015, at 9:30 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Commerce, Science, and Transportation be authorized to meet during the session of the Senate on December 8, 2015, at 3 p.m., in room SR–

253 of the Russell Senate Office Building to conduct a hearing entitled ''Data or Dogma? Promoting Open Inquiry in the Debate over the Magnitude of Human Impact on Earth's Climate.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON ENERGY AND NATURAL RESOURCES

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Energy and Natural Resources be authorized to meet during the session of the Senate on December 8, 2015, at 10 a.m., in room SD–366 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on December 8, 2015, at 10 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on December 8, 2015, at 10:15 a.m., to conduct a hearing entitled ''Millennium Challenge Corporation: Lessons Learned after a Decade and Outlook for the Future.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Health, Education, Labor, and Pensions be authorized to meet during the session of the Senate on December 8, 2015, at 10 a.m., in room SD–430 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Opioid Abuse in America: Facing the Epidemic and Examining Solutions.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on December 8, 2015, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON ANTITRUST, COMPETITION POLICY, AND CONSUMER RIGHTS

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on the Judiciary, Subcommittee on Antitrust, Competition Policy, and Consumer Rights be authorized to meet during the session of the Senate on December 8, 2015, at 10 a.m., in room SD–226 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Ensuring Competition Remains on Tap: The AB InBev/SABMiller merger and the State of Competition in the Beer Industry.''

The PRESIDING OFFICER. Without objection, it is so ordered.

PRIVILEGES OF THE FLOOR

Mrs. MURRAY. Mr. President, I ask unanimous consent that Sarah Rosenberg, a fellow with the Senate HELP Committee, and Lauren Burdette, a fellow in Senator CASEY's office, be granted floor privileges during the consideration of the Every Student Succeeds Act.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. REED. Mr. President, I ask unanimous consent that Brian Alexander, a fellow in my office, be granted privileges of the floor for the remainder of this Congress.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. FRANKEN. Mr. President, I ask unanimous consent that my education fellow, Cristina Veresan, be given floor privileges for the remainder of this Congress.

The PRESIDING OFFICER. Without objection, it is so ordered.

RAISE FAMILY CAREGIVERS ACT

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of Calendar No. 306, S. 1719.

The PRESIDING OFFICER. The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (S. 1719) to provide for the establishment and maintenance of a National Family Caregiving Strategy, and for other purposes.

There being no objection, the Senate proceeded to consider the bill, which had been reported from the Committee on Health, Education, Labor, and Pensions, with an amendment to strike all after the enacting clause and insert in lieu thereof the following:

S. 1719

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Recognize, Assist, Include, Support, and Engage Family Caregivers Act of 2015'' or the ''RAISE Family Caregivers Act''.

SEC. 2. DEFINITIONS.

In this Act:

(1) ADVISORY COUNCIL.—The term ''Advisory Council'' means the Family Caregiving Advisory Council convened under section 4.

(2) FAMILY CAREGIVER.—The term ''family caregiver'' means an adult family member or other individual who has a significant relationship with, and who provides a broad range of assistance to, an individual with a chronic or other health condition, disability, or functional limitation.

(3) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

(4) STRATEGY.—The term ''Strategy'' means the National Family Caregiving Strategy established, maintained, and updated under section 3.

SEC. 3. NATIONAL FAMILY CAREGIVING STRATEGY.

(a) IN GENERAL.—The Secretary, in consultation with the heads of other appropriate Federal agencies, shall develop, maintain, and periodically update a National Family Caregiving Strategy.

(b) CONTENTS.—The Strategy shall identify specific actions that Federal, State, and local governments, communities, health care, long-term services and supports and other providers, employers, and others can take to recognize and support family caregivers in a manner that reflects their diverse needs, including with respect to the following:

(1) Promoting greater adoption of person- and family-centered care in all health and long-term services and supports settings, with the person receiving services and supports and the family caregiver (as appropriate) at the center of care teams.

(2) Assessment and service planning (including care transitions and coordination) involving family caregivers and care recipients.

(3) Training and other supports.

(4) Information, education, referral, and care coordination, including hospice, palliative care, and advance planning services.

(5) Respite options.

(6) Financial security.

(7) Workplace policies and supports that allow family caregivers to remain in the workforce.

(c) RESPONSIBILITIES OF THE SECRETARY.—The Secretary, in carrying out this section, shall be responsible for the following:

(1) Collecting and making publicly available information, including evidence-based or promising practices and innovative models (both domestically and internationally) regarding the provision of care by family caregivers or support for family caregivers.

(2) Coordinating Federal Government programs and activities to recognize and support family caregivers while ensuring maximum effectiveness and avoiding unnecessary duplication.

(3) Providing technical assistance, such as best practices and information sharing, to State or local efforts, as appropriate, to support family caregivers.

(4) Addressing disparities in recognizing and supporting family caregivers and meeting the needs of the diverse family caregiving population.

(5) Assessing all Federal programs regarding family caregivers, including with respect to funding levels.

(d) INITIAL STRATEGY; UPDATES.—The Secretary shall—

(1) not later than 18 months after the date of enactment of this Act, develop, publish, and submit to Congress the initial Strategy incorporating the items addressed in the Advisory Council's report in section 4(d)(2) and other priority actions for recognizing and supporting family caregivers; and

(2) not less than every 2 years, update, republish, and submit to Congress the Strategy, taking into account the most recent annual report submitted under section 4(d)(1)—

(A) to reflect new developments, challenges, opportunities, and solutions; and

(B) to assess progress in implementation of the Strategy and, based on the results of such assessment, recommend priority actions for such implementation.

(e) PROCESS FOR PUBLIC INPUT.—The Secretary shall establish a process for public input to inform the development of, and updates to, the Strategy, including a process for the public to submit recommendations to the Advisory Council and an opportunity for public comment on the proposed Strategy.

(f) NO PREEMPTION.—Nothing in this Act preempts any authority of a State or local government to recognize or support family caregivers.

SEC. 4. FAMILY CAREGIVING ADVISORY COUNCIL.

(a) CONVENING.—The Secretary shall convene a Family Caregiving Advisory Council to provide advice to the Secretary on recognizing and supporting family caregivers.

(b) MEMBERSHIP.—

(1) IN GENERAL.—The members of the Advisory Council shall consist of—

(A) the appointed members under paragraph (2); and

(B) the Federal members under paragraph (3).

(2) APPOINTED MEMBERS.—In addition to the Federal members under paragraph (3), the Secretary shall appoint not more than 15 members

of the Advisory Council who are not representatives of Federal departments or agencies and who shall include at least one representative of each of the following:

(A) Family caregivers.

(B) Older adults with long-term services and supports needs, including older adults facing disparities.

(C) Individuals with disabilities.

(D) Advocates for family caregivers, older adults with long-term services and supports needs, and individuals with disabilities.

(E) Health care and social service providers.

(F) Long-term services and supports providers.

(G) Employers.

(H) Paraprofessional workers.

(I) State and local officials.

(J) Accreditation bodies.

(K) Relevant industries.

(L) Veterans.

(M) As appropriate, other experts in family caregiving.

(3) FEDERAL MEMBERS.—The Federal members of the Advisory Council, who shall be nonvoting members, shall consist of the following:

(A) The Administrator of the Centers for Medicare & Medicaid Services (or the Administrator's designee).

(B) The Administrator of the Administration for Community Living (or the Administrator's designee who has experience in both aging and disability).

(C) The Assistant Secretary for the Administration for Children and Families (or the Assistant Secretary's designee).

(D) The Secretary of Veterans Affairs (or the Secretary's designee).

(E) The Secretary of Labor (or the Secretary's designee).

(F) The Secretary of the Treasury (or the Secretary's designee).

(G) The National Coordinator for Health Information Technology (or the National Coordinator's designee).

(H) The Administrator of the Small Business Administration (or the Administrator's designee).

(I) The Chief Executive Officer of the Corporation for National and Community Service (or the Chief Executive Officer's designee).

(J) The heads of other Federal departments or agencies (or their designees), as appointed by the Secretary or the Chair of the Advisory Council.

(4) DIVERSE REPRESENTATION.—The Secretary shall ensure that the membership of the Advisory Council reflects the diversity of family caregivers and individuals receiving services and supports.

(c) MEETINGS.—The Advisory Council shall meet quarterly during the 1-year period beginning on the date of enactment of this Act and at least three times during each year thereafter. Meetings of the Advisory Council shall be open to the public.

(d) ADVISORY COUNCIL ANNUAL REPORTS.—

(1) IN GENERAL.—Not later than 12 months after the date of enactment of this Act, and annually thereafter, the Advisory Council shall submit to the Secretary and Congress a report concerning the development, maintenance, and updating of the Strategy and the implementation thereof, including a description of the outcomes of the recommendations and priorities under paragraph (2), as appropriate. Such report shall be made publicly available by the Advisory Council.

(2) INITIAL REPORT.—The Advisory Council's initial report under paragraph (1) shall include—

(A) an inventory and assessment of all federally funded efforts to recognize and support family caregivers and the outcomes of such efforts, including analyses of the extent to which federally funded efforts are reaching family caregivers and gaps in such efforts;

(B) recommendations for priority actions—

(i) to improve and better coordinate programs; and

(ii) to deliver services based on the performance, mission, and purpose of a program while eliminating redundancies and ensuring the needs of family caregivers are met;

(C) recommendations to reduce the financial impact and other challenges of caregiving on family caregivers; and

(D) an evaluation of how family caregiving impacts the Medicare program, and Medicaid program, and other Federal programs.

(e) NONAPPLICABILITY OF FACA.—The Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to the Advisory Council.

SEC. 5. SUNSET PROVISION.

The authority and obligations established by this Act shall terminate on December 31, 2025.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the committee-reported substitute amendment be agreed to; that the bill, as amended, be read a third time and passed; and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendment in the nature of a substitute was agreed to.

The bill (S. 1719), as amended, was ordered to be engrossed for a third reading, was read the third time, and passed.

RECOGNIZING THREATS TO FREEDOM OF THE PRESS AND EXPRESSION AROUND THE WORLD

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of Calendar No. 135, S. Res. 207.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 207) recognizing threats to freedom of the press and expression around the world and reaffirming freedom of the press as a priority in efforts of the United States Government to promote democracy and good governance.

There being no objection, the Senate proceeded to consider the resolution.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the resolution be agreed to; the Casey amendment to the preamble, which is at the desk, be agreed to; the preamble, as amended, be agreed to; and that the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 207) was agreed to.

The amendment (No. 2921) was agreed to, as follows:

(Purpose: To amend the preamble)

Strike the fifteenth whereas clause, and insert the following:

Whereas, according to Reporters Without Borders, the 5 countries with the highest number of journalists in prison as of December 1, 2014, were China, Eritrea, Iran, Ethiopia, and Vietnam;

The preamble, as amended, was agreed to.

The resolution, with its preamble, as amended, is as follows:

S. RES. 207

Whereas Article 19 of the United Nations Universal Declaration of Human Rights, adopted at Paris December 10, 1948, states that ''everyone has the right to freedom of opinion and expression; this right includes freedom to hold opinions without interference and to seek, receive, and impart information and ideas through any media and regardless of frontiers'';

Whereas, in 1993, the United Nations General Assembly proclaimed May 3 of each year as ''World Press Freedom Day'' to celebrate the fundamental principles of freedom of the press, to evaluate freedom of the press around the world, to defend the media from attacks on its independence, and to pay tribute to journalists who have lost their lives in the exercise of their profession;

Whereas, on December 18, 2013, the United Nations General Assembly adopted a resolution (A/RES/68/163) on the safety of journalists and the issue of impunity, which unequivocally condemns all attacks and violence against journalists and media workers, including torture, extrajudicial killings, enforced disappearances, arbitrary detention, and intimidation and harassment in both conflict and non-conflict situations;

Whereas 2015 is the 22nd anniversary of World Press Freedom Day, which focuses on the theme ''Let Journalism Thrive! Towards Better Reporting, Gender Equality, and Media Safety in the Digital Age'';

Whereas the 2015 World Press Freedom prize was awarded to Syrian journalist and human rights activist Mazen Darwish, who remains imprisoned by the Assad regime;

Whereas the Daniel Pearl Freedom of the Press Act of 2009 (Public Law 111–166; 22 U.S.C. 2151 note), which was passed by unanimous consent in the Senate and signed into law by President Barack Obama in 2010, expanded the examination of freedom of the press around the world in the annual human rights report of the Department of State;

Whereas, according to Freedom House, only approximately 14 percent of the world's inhabitants—or one in seven people—live in countries with a press ranked as ''Free'' by Freedom House;

Whereas, according to Reporters Without Borders, 69 journalists and 19 citizen journalists were killed in 2014 in connection with their collection and dissemination of news and information;

Whereas, according to the Committee to Protect Journalists, the 3 deadliest countries for journalists on assignment in 2014 were Syria, Ukraine, and Iraq;

Whereas, according to the Committee to Protect Journalists, more than 40 percent of the journalists killed in 2014 were targeted for murder and 31 percent of journalists murdered reported receiving threats first;

Whereas, according to the Committee to Protect Journalists, 650 journalists have been killed between 1992 and April 2015 without the perpetrators of such crimes facing punishment;

Whereas, according to the Committee to Protect Journalists, the 5 countries with the highest number of journalist murders that go unpunished, measured from 2004 to 2014, are Iraq, Somalia, the Philippines, Sri Lanka, and Syria;

Whereas, according to Reporters Without Borders, 853 journalists and 122 citizen journalists were arrested in 2014;

Whereas, according to the Committee to Protect Journalists, 221 journalists worldwide were in prison as of December 1, 2014;

Whereas, according to Reporters Without Borders, the 5 countries with the highest number of journalists in prison as of December 1, 2014, were China, Eritrea, Iran, Ethiopia, and Vietnam;

Whereas, according to Reporters Without Borders' 2015 World Press Freedom Index, Eritrea, North Korea, Turkmenistan, Syria, and China ranked lowest according to a range of criteria that include ''media pluralism and independence, respect for the safety and freedom of journalists, and the legislative, institutional and infrastructural environment in which the media operate'';

Whereas, according to the Committee to Protect Journalists, in 2014 Syria was the world's deadliest country for journalists for the third year in a row;

Whereas, according to the International Federation of Journalists, more than 40 journalists and media staff have been killed since January 2015;

Whereas, according to Reporters Without Borders, the Government of the Russian Federation continued to intensify its pressure on the media to bring independent news outlets under control or be throttled out of existence;

Whereas Freedom House has cited a deteriorating environment for Internet freedom around the world and ranked Iran, Syria, China, Cuba, and Ethiopia as ''Not Free'' and having the worst obstacles to access, limits on content, and violations of user rights among the 65 countries and territories rated by Freedom House in 2014;

Whereas freedom of the press is absolutely essential to the creation and maintenance of free and open societies and a key component of democratic governance, the activism of civil society, and socioeconomic development; and

Whereas freedom of the press enhances public accountability, transparency, and participation: Now, therefore, be it

Resolved, That the Senate—

(1) commemorates World Press Freedom Day by commending journalists like Mazen Darwish and others around the world for the vital role they play in supporting open and democratic societies, promoting government accountability, and strengthening civil society;

(2) expresses concern about the threats to freedom of the press and expression around the world, and pays tribute to journalists who have lost their lives carrying out their work;

(3) pays tribute to the journalists who have lost their lives carrying out their work;

(4) calls on governments abroad to implement United Nations General Assembly Resolution (A/RES/68/163), by thoroughly investigating and seeking to resolve outstanding cases of violence against journalists, including murders and kidnappings, while ensuring the protection of witnesses;

(5) condemns all actions around the world that suppress freedom of the press, including: the brutal murders of journalists by the terrorist group ISIS, violent attacks against media outlets like the French satirical magazine Charlie Hebdo, and kidnappings of journalists and media workers in eastern Ukraine by pro-Russian militant groups;

(6) reaffirms the centrality of freedom of the press to efforts by the United States Government to support democracy, mitigate conflict, and promote good governance domestically and around the world; and

(7) calls on the President and the Secretary of State—

(A) to improve the means by which the United States Government rapidly identifies, publicizes, and responds to threats against freedom of the press around the world;

(B) to urge foreign governments to transparently investigate and bring to justice the perpetrators of attacks against journalists; and

(C) to highlight the issue of threats against freedom of the press year-round.

WREATHS ACROSS AMERICA DAY

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 331, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 331) designating December 12, 2015, as ''Wreaths Across America Day.''

There being no objection, the Senate proceeded to consider the resolution.

Mr. COLLINS. Mr. President, I am pleased to have joined with my colleague, Senator ANGUS KING, in sponsoring this resolution to designate December 12, 2015, as Wreaths Across America Day. Since its inception, the Wreaths Across America project has become an annual tradition of donating, transporting, and placing Maine balsam fir remembrance wreaths on the graves of our fallen heroes buried at Arlington National Cemetery, as well as at veterans' cemeteries and memorials in every State and overseas. In the program's 24 years, more than 2.4 million wreaths have been placed in honor of those who have served our country.

The origin of Wreaths Across America is an inspiring example of that generosity and gratitude. During the Christmas season in 1992, Morrill and Karen Worcester took time during their busiest season to donate and deliver wreaths from their company in Harrington, ME, to Arlington National Cemetery to honor the heroes who lie at rest there. At first, a small group of volunteers laid the wreaths with little notice. In recent years, however, the Arlington Wreath Project has grown to become a national phenomenon. The people of Maine are proud that this important and well-deserved tradition began in our State.

This year, on December 12, thousands of volunteers in Arlington, throughout our Nation, and overseas will carry out the mission of Wreaths Across America to ''Remember, Honor, Teach.'' This will conclude a weeklong procession between Maine and Virginia, with stops along the way to pause and remember the men and women who have died to preserve our freedoms, spread the message about the importance of honoring those who serve, and remind the people of the United States about the sacrifices made by our veterans and their families. This procession helps to ensure that those sacrifices are never forgotten.

The Patriot Guard Riders, along with other dedicated escort groups, will accompany tractor-trailers filled with donated wreaths from Maine to Arlington National Cemetery. America's trucking industry has long supported Wreaths Across America by providing drivers, equipment, fuel, and related services to assist in the transportation of wreaths across the country to more than 1,000 locations.

Wreaths Across America not only honors our departed heroes, but also imparts the important message to veterans who are still with us that we honor their service. It tells our men and women in uniform today that we are grateful for their courage and devotion to duty. It tells the families of those serving our country that they are in our thoughts and prayers. And it tells the families of the fallen that we share their grief.

Throughout human history, the evergreen wreath has been offered as a tribute to heroes. On December 12, 2015, we will again offer this enduring symbol of valor and sacrifice as part of our never-ending obligation to thank those who wore the uniform of our country. In this season of giving, we will pay tribute to those who have given us the most precious gift of all, our freedom.

Mr. KING. Mr. President, today I have joined my esteemed colleague, Senator SUSAN COLLINS, in submitting a resolution designating December 12, 2015, as Wreaths Across America Day. What started as a quiet tribute to our Nation's veterans in a small town in Washington County, Maine 24 years ago, has blossomed into one of the greatest honors paid to our servicemembers coast to coast. Every December, donated balsam fir wreaths travel from Harrington, ME, to veterans' cemeteries around the country and are placed on the graves of our fallen heroes. During this season of giving, it is only fitting to recognize this wonderful tradition and the generosity of those who conceived it, and as always, to reaffirm our commitment and appreciation for those who fought to preserve our freedom.

During the 1992 holiday season, Morrill and Karen Worcester of Worcester Wreath Company found themselves with a surplus of unused wreaths. Recalling a boyhood visit to Arlington National Cemetery, Morrill was inspired to use those extra wreaths to honor American servicemembers. So, aided by then-Senator Olympia Snowe and determined to celebrate our veterans and their families, the Worcesters arranged to have the wreaths placed in one of the older sections of Arlington National Cemetery.

Building on the Worcester family's vision, other folks from around Maine stepped up to help out and give back. James Prout, the owner of a Maine trucking company, made sure the wreaths were safely transported to Arlington. The Maine State Society of Washington, D.C., a group of people from Maine living and working in the Nation's capital, helped organize the wreath laying ceremony at the cemetery.

So it went for several years—wreaths were quietly assembled and sent to Arlington National Cemetery to honor our country's veterans. Then in 2005, a photo of the wreaths in Arlington took the internet by storm, and the tradition quickly gained widespread attention. The salient image of the snow-covered wreaths resting on the graves of the fallen transformed what was

once a quiet act of kindness to a national sensation. Soon thousands of volunteers were inspired to help in Arlington or to bring the project to their hometowns throughout the country.

Last year alone, Wreaths Across America and its national network of volunteers laid over 700,000 memorial wreaths at 1,000 locations including sites in all 50 States and numerous national veteran cemeteries on foreign soil. Thanks to truckers and the Patriot Guard Riders who escort the tractor trailers on their motorcycles, the wreaths travel to Arlington and beyond as part of a Veterans Honor Parade—stopping along the way to remember, honor, and teach.

I am proud to stand with Senator COLLINS in sponsoring December 12, 2015, as Wreaths Across America Day. On this day, and every day, let us remember the brave men and women who have served our country and thank the dedicated volunteers who proudly honor their memory and sacrifice.

Mr. MCCONNELL. I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 331) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

REMOVAL OF INJUNCTION OF SECRECY—TREATY DOCUMENT NO. 114–4

Mr. MCCONNELL. Mr. President, as in executive session, I ask unanimous consent that the injunction of secrecy be removed from the following treaty transmitted to the Senate on December 8, 2015, by the President of the United States: Treaty with Jordan on Mutual Legal Assistance in Criminal Matters, Treaty Document No. 114–4. I further ask that the treaty be considered as having been read the first time; that it be referred, with accompanying papers, to the Committee on Foreign Relations and ordered to be printed; and that the President's message be printed in the RECORD.

The PRESIDING OFFICER. Without objection, it is so ordered.

The message of the President is as follows:

To the Senate of the United States:

With a view to receiving the advice and consent of the Senate to ratification, I transmit herewith the Treaty between the Government of the United States of America and the Government of the Hashemite Kingdom of Jordan on Mutual Legal Assistance in Criminal Matters, signed at Washington on October 1, 2013. I also transmit, for the information of the Senate, the report of the Department of State with respect to the Treaty.

The Treaty is one of a series of modern mutual legal assistance treaties negotiated by the United States to more effectively counter criminal activities. The Treaty should enhance our ability to investigate and prosecute a wide variety of crimes.

The Treaty provides for a broad range of cooperation in criminal matters. Under the Treaty, the Parties agree to assist each other by, among other things: producing evidence (such as testimony, documents, or items) obtained voluntarily or, where necessary, by compulsion; arranging for persons, including persons in custody, to travel to another country to provide evidence; serving documents; executing searches and seizures; locating and identifying persons or items; and freezing and forfeiting assets or property that may be the proceeds or instrumentalities of crime.

I recommend that the Senate give early and favorable consideration to the Treaty, and give its advice and consent to ratification.

BARACK OBAMA.

THE WHITE HOUSE, *December 8, 2015*.

ORDERS FOR WEDNESDAY, DECEMBER 9, 2015

Mr. MCCONNELL. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 10 a.m., Wednesday, December 9; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; further, that following leader remarks, the Senate resume consideration of the conference report to accompany S. 1177, with the time until 10:45 a.m. equally divided between the two leaders or their designees.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

ORDER FOR ADJOURNMENT

Mr. MCCONNELL. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order, following the remarks of Senator SASSE and Senator WARREN.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Nebraska.

Mr. SASSE. Mr. President, I ask unanimous consent to speak for 15 minutes as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

FREEDOMS ENSHRINED IN THE CONSTITUTION

Mr. SASSE. Mr. President, I rise to speak about San Bernardino, about the decades-long fight that our free society faces, and about our dangerous unwillingness to tell the truth about the nature of this battle—about who our enemy is.

We are at war. The American people already know this. Our enemies obviously knows this. It is only this town where our so-called leaders dawdle and bicker, pander and misprioritize. It is only this town that seems confused. Washington ignores what it cannot escape, and that is both a tragedy and a crisis, for it is impossible to win a war when one does not even admit that one is in a war.

Let's start by admitting that this war is different from most of the wars of the past. This is not about borders or territory. This is not about gold or other material goods. We typically think about state actors—about traditional governments going to war with traditional governments. In this war, however, the enemy includes many state actors, many armed groups who are developing global reach in this flatter, technologically linked world.

Our enemy is merciless and barbaric. They are willing to kill people who are not on traditional battlefields. They will kill noncombatants. They will kill women and children. They will kill at holiday parties and restaurants, at Jewish delis and sporting stadiums.

Just as sad as the evolution of our enemies, though, this war is hard for the American people to get their heads around because we have so much confusion right now—so much drift, so much orphanhood—not just about our enemies but about exactly who we are and about exactly what we are fighting to defend.

This body, the Congress, tries to do far too many things, and we do very few of them well, but when there are really important tasks that we should be tackling, well then folks seem to be unable to muster the energy or the courage or the time or the will to focus diligently on the task before us.

Today we have such a big task before us, and I will humbly suggest that before another person in this body or another member of the national media stands up to scold the American people about how they could possibly entertain voting for candidate X or Y, perhaps we should look in the mirror at why so many of our people are running to demagoguing leaders.

Do Senators really not understand what is happening? Did anyone really not see this coming? I think it is obvious why the people are doing what they are doing—because they get so little actual leadership out of this town, out of either end of Pennsylvania Avenue and out of either political party. Make no mistake, there were some genuinely dreadful things said on our national stage yesterday, but they were almost completely predictable. Did anyone really not see this coming?

Why is it that these words are so attractive to so many? Why do they find so many followers? Because they are comforting to a people who are scared. They are food to a people who are starved for leadership.

Sunday night was a desert. Monday night was a flood. Neither are what our people need or really what they, at their best, want, but don't be surprised that a people being misled by a political class that is in denial about the nature of the fight we face—don't be surprised if these people come then quickly to desire very different, much more muscular words and utopian pledges.

This town's conversations are so often so completely disconnected from the people. Do you want to know what people calling my office and stopping me in the grocery store—since Paris and now since San Bernardino—want to talk about? They want to talk about what Sharia law is and how many Muslims actually believe in it. It is a fair question for moms to ask. They want to talk about American exceptionalism. They want to know what we are for, what we are against, and what do we unite around. We should talk more about these things. For a minute tonight let's just step briefly beyond the media cycle and look at where we stand. This is a clash of civilizations. This is a fight between free people and a totalitarian movement. Let me say clearly that recognizing a clash of civilizations is not at all to want one, but recognizing one is simply the truth in this matter.

We are free and our enemies hate it. They hate that my wife leaves our house and drives. They hate that my daughters know how to read. They hate that we decided where we would go to church on Sunday. They hate us not because of any particular thing we have done by omission or by commission; they hate us because of who we are. They hate us because we have a Constitution that enshrines these freedoms, and this is the Constitution that we should be uniting around—uniting to defend. We should fight to defend the framework that has secured the freedom of speech, the freedom of religion, the freedom of the press, and the freedom of assembly for all Americans for 200 years—not initially successfully judging every man by the content of his character instead of merely the color of his skin but eventually guiding us beyond this original American sin and toward a more perfect union.

This weekend I went to San Bernardino. My wife and I laid flowers at a memorial that has popped up on a sidewalk outside the site where 35 of our neighbors bled this week; 14 of them ultimately died in this massacre. We talked to our American neighbors there in a neighborhood that should not be part of a war zone, but that neighborhood will now forever be a battlefield memorial. Some of the people grieving there wondered aloud to us: Why are our politicians so small, so mealy-mouthed? One marine asked my wife if Washington really even cares about the victims of jihadi attacks like this. One woman asked why no one in Washington seems to be a full-throated lover of America. They are wrong, of course, about the caring and the loving. There is a lot of care and love, but they can be forgiven for wondering why we are so unable to be full-throated about the big things.

We owe it to those who died this week, and to their families, to be clear and truthful about the nature of this conflict. We owe it to those 14. We owe it to their families, we owe it to the service men and women in uniform who are fighting abroad right now to defend our freedoms, some of whom will come home in caskets, and we owe it to the families of those who have not yet died—but who will—in the next jihadi attack on our homeland, for it is coming.

All adults know that the next attack is coming. You don't need to see the classified briefings that some of us see to know the future is dangerous. The San Bernardino 14 will not be the last Americans to bleed and die in our homeland because we are a free society. So we should tell the truth about the enemy we face. We should tell the truth about them, and we should dig down deep to be honest not only about them but about who we are. We should now reaffirm our core values that unite us as a people.

We are not at war with terrorism, which is just a tactic. We are not at war with some empty sociological label called radicalism or extremism, as if it has no connection to belief or ideology. We are not just at war with ISIS, though we are obviously at war with ISIS, but there will be another group that will raise the black flag of death long after ISIS has been routed out of Iraq and Syria.

This is not about workplace violence, this is not about global warming or gun shows. This is not about income inequality. This is not about some kid from a broken home somewhere in the Middle East, as tragic as broken homes are both at home and abroad. Again, against a whole load of hand-wringing mush, we need to remember that this attack, and know that our next attack, is not because of anything we have done wrong. This is about who we are. This is about the nature of freedom.

Who are we? We are a people, 320 million of us, who unite around the Constitution and the First Amendment that guarantees the freedom of speech, the freedom of religion, the freedom of the press, and the freedom of assembly to all Americans of every creed and every tradition.

I am a Christian. I am not a Muslim. I am also in this life an American, and I have taken an oath of office to the Constitution, and so, as an American, I stand and defend the rights of American Muslims to freely worship even though we differ about important theological matters.

In America we are free to believe different things and to argue about those beliefs. It matters what you think about the nature of God, about revelation, and about salvation. It matters what you think about Heaven and Hell. In fact, it matters so much and we think these things are so important that you couldn't possibly solve any of them by violence.

America is about the right to argue about our differences with our neighbors but to make those arguments free from violence. We, in this land, under the constitutional creed, come together as a community of Americans to unite around core American values: freedom of religion, speech, press, and assembly.

So now, as it is emphatically and indisputably clear, that we are not in a war with all Muslims, let us tell the truth that we most certainly are at war with militant Islam. We are at war with violent Islam. We are at war with jihadi Islam. We are at war with those who believe in killing in the name of religion.

This is, in fact, precisely what America means. It is about being free to raise your kids, free to build a corner store, and free to worship and to assemble without the fear of violence. We can argue about religion because many of us do disagree, and then we come together as Americans to protect and defend each other against religious killing.

There are many hand-wringers in Washington who refuse to name the enemy we face. They refuse to admit we are at war with militant Islam, with jihadi Islam, with violent Islam. They dance around platitudes and offer empty labels hiding behind a worry—an understandable worry—that Muslims in America could face backlash. I share this fear, and I believe that telling the truth about who is and who is not our enemy is actually the one sure way of avoiding that danger.

I think those who are refusing to tell the truth about our enemies, those who will nonsensically claim that the next jihadi attack is somehow just another random case of workplace violence are making the backlash far more likely, not less likely.

Here is how I think the backlash actually happens: The people who are supposed to be laser-focused on defending the American people—that is us—mouth silly platitudes that show we are either too weak or too confused to keep our people safe.

Then, a megalomaniac strongman steps forward and starts screaming about travel bans and deportation and offering promises to keep all of us safe, which to some—and I think actually to many more than those of us in this body seem to understand—sounds much better than not being protected at all.

You want to stop a backlash against American Muslims? Then stop lecturing Americans that they are supposedly stupid to be frightened about jihadis who actually do want to bomb their kid's sporting event and instead use your pen and your phone as Commander in Chief to start telling us what your plan is to actually find and kill those who want to do us harm. Start telling us what your actual plan

is to have a Middle Eastern map that isn't generating more failed states year over year that become the terror training camps of next year.

This country invented religious liberty. This is the most tolerant Nation the world has ever seen. Our people need a little less elite sermonizing about tolerance in our communities and a little more articulation of the shared constitutional principles around which we are united and a lot more articulating of an actual battle plan to win the war that is going to be ours for the next many decades.

If you are worried about backlash—if you are worried about the obviously over-the-top rhetoric from unserious Presidential candidates—perhaps it will be useful for those of us who have the actual job of protecting the Constitution to tell the truth. We should be clear about who we are and about the freedoms we stand for, and we should be clear about those who would try to kill us because we believe in these freedoms.

We are at war with militant or jihadi Islam, but we are not at war with people who believe in the American creed, which includes the right of people—every people, every faith tradition—to freely worship, to freely speak, to freely assemble, and to argue. We are not at war with all Muslims. We are not at war with Muslim families in Lincoln or in Dearborn who want the American dream amid our pluralistic society for their kids, but we most certainly are at war with those who want to spread a variety of Islam that aims to motivate the killing and the freedom-taking of other Americans.

This fight will be decades long, and we will win it, but we will not win it by denying that the fight exists. We will not win it by being unclear about who we are and who they are. We will win it instead by being clearer about both who they are and who we are. We will win it by reaffirming our core constitutional values. We will win it because of who we are: a people who believes in freedom and a people who is willing to fight and even to die to preserve a free society for all Americans.

Macbeth includes that aching line: ''Life is a tale, told by an idiot, full of sound and fury signifying nothing.'' The context is an aimless people, drifting from who they are, drifting toward nihilism signifying nothing.

This should not be us. This cannot be us. For America does signify something—something special. America is the belief that everyone—Christian, Jew, Muslim, Black and White, man and woman, rich and poor, fifth generation, first generation—everyone is endowed by our Creator with certain inalienable rights. Our government is our shared project to secure and safeguard those rights. Our Constitution—our shared creed—gives us a framework for that order of liberty. When politicians—whether incumbents who seem to have forgotten their oaths or candidates trying to run merely on the bluster of their personality—don't talk about the Constitution, when they don't defend first principles, when they refuse to prefer substance over sound bites, when they nonsensically say either that our enemy has nothing to do with Islam or conversely that every Muslim is to be prejudged guilty—well, then our national conversation crumbles into sound and fury. That is not us, for we are Americans.

Thank you, Mr. President.

I yield the floor.

The PRESIDING OFFICER. The Senator from Massachusetts.

EVERY STUDENT SUCCEEDS BILL

Ms. WARREN. Mr. President, I rise in support of the Every Student Succeeds Act—the bill to reauthorization the Elementary and Secondary Education Act.

We have only one goal in mind: to give all our children the best possible education. The challenge has been to figure out the right role for the Federal Government to do that.

This bill, which will replace No Child Left Behind, moves away from rigid standardized tests and respects the vital work our teachers do every day. I strongly support those changes. However, I voted against this bill when it was first approved by the Senate a few months ago because I felt it lacked even the minimum safeguards necessary to ensure that States would use Federal funds effectively to support teachers and students. I was deeply concerned that without stronger accountability, billions of dollars in taxpayer money would not actually reach those schools and those students who needed them the most.

Unlike the bill initially approved by the Senate, the proposal before us has significantly enhanced those safeguards. I argued that it was essential that billions of dollars a year of Federal funding must be accompanied by some minimum expectations for what States are going to do with that money. One of those expectations must be that States target their efforts toward schools that are most in need of improvement and resources.

That is why I am glad this final bill includes an amendment I offered with Senator CORY BOOKER to ensure that States address the 1,200 high schools in the United States, where fewer than two-thirds of students graduate every year.

When one-third of a high school's students don't graduate, we know we have a crisis on our hands. We can't just turn our backs. This provision will ensure that States can't ignore those kids, and it will ensure additional Federal resources for those schools that clearly need it the most.

This commonsense accountability provision had deep support across the board. It was supported by the Obama administration, the civil rights community, the U.S. Chamber of Commerce, and the NEA. It wasn't in the bill I voted against a few months ago, but I am glad to see it in the final bill before us today because helping schools with chronic dropout rates cannot be optional.

This bill also ensures that States cannot ignore any group of students who are consistently falling behind their peers. Let's face it. Historically, States haven't always stood up for their most vulnerable kids, and this bill makes certain that those kids will not be ignored again. That is why we have a Federal education law in the first place: to ensure that when the Federal Government gives States money to buy a good education for kids, that States have to use that money to support all of our kids—especially kids who need those resources the most. Senator MURPHY and I offered amendments to achieve this goal when the bill came before the Senate. They weren't included back then, but I am glad to see that the final bill ensures that if States want Federal dollars, they cannot turn their backs on vulnerable students.

This has been a very challenging process, but Senator MURRAY and Senator ALEXANDER kept the door open for improvement, and I am grateful for that. Many allies stood together to ensure that Federal dollars would actually be used to improve both schools and educational opportunities for children living in poverty, children of color, children with disabilities, and other groups of kids who have been underserved, mistreated or systematically denied even the most basic opportunities to get a good education.

One final note. States and communities cannot address persistent achievement gaps if they don't have good data. With this bill, parents, researchers, and educators across the country will, for the first time, be able to analyze the performance of African-American boys or Hispanic girls or low-income children with disabilities. The ability to analyze the interaction of race and gender or disabilities and income will help us better understand how our schools are serving students and identify student groups who need more help. I am very grateful to my cosponsor, Senator CORY GARDNER, the Presiding Officer this afternoon, in helping make sure this final bill includes this bipartisan data transparency amendment that we offered to achieve this goal.

When President Johnson first signed ESEA back in 1965, it was a landmark civil rights law. At the time, he said:

> I know that education is the only valid passport from poverty—the only valid passport. . . . I believe deeply no law I have signed or will ever sign means more to the future of America.

Today, the majority of our children in public school live in poverty—the majority. Think about that. This law is more important today than it has ever been. I am voting for this bill because I believe we have been successful in ensuring that it contains a minimum set

of safeguards to protect our most vulnerable kids. I still have real concerns about what States will do with the new flexibility it provides, and many of us here will be watching closely to see if the States deliver for our kids.

I am committed to keep fighting for our Nation's public schools, and that includes fighting for more Federal investment. I hope this legislation truly lives up to the promises made half a century ago to support public education fully and fairly enough to create real opportunities for all of our children.

If the changes in this law don't move us closer to providing a world-class education for every single one of our children, then we will be right back here to fix it. We owe it to our students, we owe it to our teachers, we owe it to our history, and we owe it to our future to get this right.

Thank you, Mr. President.

I yield the floor.

ADJOURNMENT UNTIL 10 A.M. TOMORROW

The PRESIDING OFFICER. The Senate stands adjourned until 10 a.m. tomorrow.

Thereupon, the Senate, at 6:26 p.m., adjourned until Wednesday, December 9, 2015, at 10 a.m.

EXTENSIONS OF REMARKS

HONORING DR. STEVE KELLEY ON THE OCCASION OF HIS RETIREMENT AFTER 32 YEARS OF SERVICE AS A TEACHER AND ADMINISTRATOR IN THE GRANITE STATE

HON. FRANK C. GUINTA

OF NEW HAMPSHIRE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. GUINTA. Mr. Speaker, I would like to express my congratulations to Dr. Steve Kelley on his retirement after 32 years working in both the Inter-Lakes School District, and as the Principal at Conway Elementary School for 6 years.

Dr. Kelley's continuous progression within the education community from his time as a teacher at Inter-Lakes Elementary School, to his most recent position as Principal of Inter-Lakes Elementary School, exemplifies his dedication and professionalism, and I know he will remain an exceptional role model for students and faculty throughout New Hampshire.

The creativity, knowledge, and experience Dr. Kelley brought to schools throughout the Granite State has been invaluable, and it's clear he leaves an example of strong leadership for others to emulate in his wake.

It is with great admiration that I congratulate Mr. Kelley on his retirement, and wish him the best on all future endeavors.

TRIBUTE TO PUEBLO EAST HIGH SCHOOL AND BAYFIELD HIGH SCHOOL FOOTBALL TEAMS

HON. SCOTT R. TIPTON

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. TIPTON. Mr. Speaker, I rise today to honor both the Pueblo East High School and Bayfield High School football teams, who are the 2015 Colorado State Football champions of the Colorado High School Athletic Association's 3A and 2A divisions, respectively.

The Pueblo East Eagles defeated the Roosevelt Rough Riders, in a 57–30 rout in front of their fans at Dutch Clark Stadium in Pueblo, Colorado. With this victory, the Eagles are now back-to-back State champions, making them the latest in what is a long line of powerhouse high school football teams from the Steel City. The season began with East losing to a team they had beaten a year before, but their resiliency in the face of adversity saw them win 12 consecutive games en route to the state title, and making the Eagles Pueblo's only high school football team to have ever won consecutive state football championships.

The Bayfield Wolverines traveled to Kersey, Colorado and capped their perfect season with a hard fought 28–20 victory over the Platte Valley High School Broncos, winning their first state championship in football since 1996. The last time Bayfield High School won a state championship in any sport was back in 2005, making this victory that much sweeter, and ensuring that the players and coaches of this season can look back and be proud of their hard work which ended the drought.

Mr. Speaker, the Pueblo East Eagles and the Bayfield Wolverines deserve a tremendous amount of recognition for their hard work. A football season in Colorado is filled with long trips over diverse terrain to play unfamiliar opponents, injuries, and the unpredictable elements that Colorado weather provides. With exceptional displays of grit and determination throughout their seasons, the Eagles and the Wolverines have brought an immense amount of pride to the Third Congressional District of Colorado. I am honored to represent these exceptional high schools and congratulate them for their recent accomplishments.

HONORING DR. GREGORY L. EASTWOOD

HON. JOHN KATKO

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. KATKO. Mr. Speaker, I rise today to honor the retirement of Dr. Gregory L. Eastwood who served as President of the State University of New York Upstate Medical University from January 1, 1993 until June 2, 2006. At the time, Dr. Eastwood's tenure was noted as one of the longest in the history of the institution and the longest of all sitting presidents of the State University of New York State Operated campuses. Dr. Eastwood kindly answered the call to return to the President's seat in October 2013 when the campus was in need of experienced and capable leadership. Dr. Eastwood will now say farewell to the presidency of Upstate Medical University as he retires this year.

Dr. Eastwood currently serves on the SUNY Upstate Medical University Foundation Board of Directors. Dr. Eastwood teaches the Ethical, Legal, and Social Issues in Medicine course and the Clinical Bioethics course in the College of Medicine at SUNY Upstate. Dr. Eastwood also teaches ethics courses for the College of Graduate Studies, College of Nursing, and College of Health Professions. Dr. Eastwood has authored over 130 articles and book chapters and has written and edited several books. Dr. Eastwood has served the Central New York community for years with distinction, holding leadership roles and partnering with many different organizations in the region.

During Dr. Eastwood's first tenure as President he advanced an aggressive vision for the Upstate Medical University Campus which has fostered the growth of the clinical enterprise through the establishment of the University Health Care Center, the Joslin Diabetes Center, and an expansion that included the Golisano Children's Hospital. He also supported the educational mission of the campus by supporting a new College of Medicine curriculum, the establishment of the Center for Bioethics and Humanities, and many other projects that supported the educational mission of the campus. During Dr. Eastwood's second tenure he revamped SUNY Upstate Medical University's relationship with SUNY Central Administration and undertook all projects with the explicit goal of leaving the institution in a better place for the next President.

Dr. Gregory L. Eastwood has had a remarkable career, serving at multiple prominent medical schools and influencing the medical community with his participation on countless organizations' boards and committees. Dr. Eastwood has served the SUNY Upstate community and the medical community honorably and he will be missed greatly. On behalf of the entire Central New York community, I would like to thank Dr. Eastwood for his passion and dedication to a community that greatly respects him and is stronger now because of his work.

HONORING PRINCIPAL STEVE HOPE FOR THE 2015 INDIANA PRINCIPAL OF THE YEAR

HON. JACKIE WALORSKI

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mrs. WALORSKI. Mr. Speaker, I rise today to recognize Principal Steve Hope of Penn High School for being named the 2015 Indiana High School Principal of the Year. His success in providing high-quality learning opportunities for students at Penn is nothing short of remarkable.

Every year, the Indiana Association of School Principals (IASP) recognizes outstanding principals who have succeeded in providing high-quality learning opportunities for students. Recipients are chosen based on their performance in showing leadership at the building level, at the district and community level, and at the state level. Every one of us depends on our teachers, and because of that, they deserve our support and appreciation.

For nearly 20 years, Principal Hope has been contributing to the betterment of Indiana education. Since he became the principal of Penn High School in 2008, Indiana's Department of Education has named Penn an A-rated school and a 4-Star Award winner. U.S. News and World Report also named Penn an Outstanding High School in 2009 and 2015. Because of leaders like Principal Hope, Hoosier classrooms are filled with future doctors, scientists, and entrepreneurs.

Principal Hope's efforts have been instrumental in advancing Indiana's education system. In 2010, he initiated the reorganization of Penn from a traditional high school to personalized approach through a $1.7 million dollar

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

federal grant. This program begins with the Freshman Academy, which helps middle school students acclimate to high school, and offers six other academies which support college and career readiness. This includes Fine Arts & Communications, Management & Business, Health and Human Services, STEM, World Languages, and the Early College Academy. Contributions like these would not be possible without the efforts of passionate educators like Principal Hope.

This smaller learning community structure is successful because of Principal Hope's dedication to both the students and the teachers. As a leader, he sees that students excel when they are taught by highly engaged and trained teachers and staff. Because of this, Principal Hope's vision also focuses on professional development for teachers. Quite simply, his work is bettering the lives of Hoosiers.

I want to take this opportunity to once again thank Principal Hope for helping students and teachers at Penn develop their talents and become our future leaders. On behalf of myself and my fellow Hoosiers, I congratulate him on receiving this prestigious award.

IN RECOGNITION OF SHEA HASSELL, PERRY ANCELL AND CODY COULTER

HON. MICHAEL C. BURGESS

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. BURGESS. Mr. Speaker, I rise today to recognize and thank three power linemen from Coserv Electric Cooperative from the 26th District of Texas for their service and sacrifice to help three communities far away from their own.

This fall, Shea Hassell, Perry Ancell and Cody Coulter traveled to Haiti where they spent three weeks volunteering to help build the country's first electric cooperative. This work was part of a rural electrification project through the NRECA International Foundation with support from the United Nations Environmental Program and USAID.

During their time in the southwestern part of the country, they built a diesel-solar hybrid electric system which now provides safe, affordable and reliable power to 1,600 consumers in three towns. Their contributions included upgrading and installing new power lines and training locally hired linemen in proper construction methods and safety practices.

In Haiti, less than 15 percent of the population has regular access to electricity. Reliable electricity is a critical element in improving the quality of life and to providing healthcare, education, access to clean water and economic opportunity.

Thanks to the contribution of these power linemen more people in Haiti will now have electricity.

HONORING THE LIFE AND LEGACY OF HOWARD COBLE

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. HUDSON. Mr. Speaker, I rise today to honor the life and legacy of my dear friend Howard Coble, who passed away on November 3, 2015. I join the countless North Carolinians who send our prayers and sincere condolences to his family and friends during this difficult time.

Howard was the embodiment of what it means to be a public servant and is a shining example for those who follow in his footsteps. He was a true Southern gentleman who genuinely cared about bettering the lives of those around him and dedicated his life to serving North Carolina. For his constituents, Howard spent every day of his 30 years in Congress ensuring their thoughts were clearly heard in Washington. What is even more impressive is that he consistently did so with the utmost honor, integrity and kindness.

Howard was known as a passionate leader who was guided by his conservative values and principles. He made it his purpose to serve his constituents with a steadfast commitment to ensuring that government works for the people and not the other way around. Furthermore, Howard was never afraid to reach across the aisle and had many strong friendships with Democrats and Republicans alike. A beloved son of North Carolina, he will be deeply missed by all who had the pleasure of knowing him, but we should find comfort in knowing Howard has found peace with our Savior.

Mr. Speaker, please join me today in remembering the life of Congressman Howard Coble and celebrating his positive legacy that will undoubtedly have a lasting impact on many generations of North Carolinians.

TRIBUTE TO RYAN MOORE

HON. SCOTT R. TIPTON

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. TIPTON. Mr. Speaker, I rise today in honor of Ryan Moore. Mr. Moore teaches science at the Liberty Point International School in Pueblo West, Colorado, where every day he engages and motivates his students through his unique high-energy teaching style that has resulted in improved achievement scores for his students. In recognition for his hard work and dedication in the classroom, Mr. Moore was recognized recently as one of only 40 educators nationwide to receive the prestigious Milken Education Award. He was the sole recipient from Colorado this year. Mr. Moore's passion for teaching not only keeps his students engaged and interested in learning, but has also consistently improved their performance over the course of his seven year tenure.

Mr. Moore's public service extends beyond teaching. He is a former United States Army Staff Sergeant, with 10 years of service that included three deployments to Iraq. Mr. Moore credits the leadership qualities he developed in the military as helping him succeed in the classroom, earning him a reputation as a well-respected educator among both students and his peers. Mr. Moore is also active in his community, volunteering his free time with the Boy Scouts of America and the Pueblo West Department of Parks and Recreation.

Mr. Speaker, Mr. Moore is an incredible individual with an exceptional history of selfless service. He has a limitless ability to inspire the students he teaches and represents the best of educators in the Third Congressional District of Colorado. I am confident that Mr. Moore will continue to be a tremendous asset to his students and the Pueblo West community. I want to thank him for his service and wish him continued success for many years to come.

INCREASING CHARITIES' ACCESS TO FUNDS

HON. PATRICK J. TIBERI

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. TIBERI. Mr. Speaker, charitable remainder trusts present an opportunity for donors to transfer assets for the benefit of charity. Lack of certainty regarding the tax consequences of early terminations of these trusts has deterred early terminations, which has deferred the transfer of substantial assets to charity. Early terminations of charitable remainder trusts should be encouraged because they permit charities to access their share of the trust's assets earlier (and, in some instances, decades earlier) than otherwise would be the case. This is particularly compelling given that, under current economic conditions, many charities have been forced to cut back on many deserving programs.

My bill provides that, on an early termination of a charitable remainder trust, the donor and the charity will apportion the value of the trust using the same methodology that was used to determine the value of the remainder interest on formation. The donor will recognize capital gain on the total value received, the charity will receive its share of the trust's assets, and the early termination will not constitute self-dealing or otherwise disqualify the charitable remainder trust.

Today, Rep. RANGEL and I are introducing this bill which clarifies the tax consequences of early terminations of charitable remainder trusts and encourages the early transfer of funds in such trusts to charities. Mr. Speaker, I urge all my colleagues to support our bill to give charities earlier access to funds for use in their worthwhile endeavors.

HUMANITARIAN ASSISTANCE FOR UKRAINE

HON. BRENDAN F. BOYLE

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. BRENDAN F. BOYLE of Pennsylvania. Mr. Speaker, as a proud representative of a vibrant Ukrainian community in my district, I rise to echo the requests of an extremely important and time-sensitive meeting with the administration where the Ukrainian community pleaded for necessary humanitarian assistance for Ukraine.

The global community continues to mourn the horrific terrorist attacks in Paris. These attacks remind us of the importance of our freedom and democracy in our turbulent world—these values must be actively safeguarded each day. Ukraine has been doing just that: fighting for its democracy and freedom each

day—denouncing Russian authoritarianism and combating Putin's aggression. Ukrainians are on the ground battling Russian separatists and thugs attempting to steal their democratic freedoms and undermine their self-governance.

As a result, Ukraine has suffered 7,883 deaths and 17,610 wounded citizens, according to OCHA's latest report. Five million Ukrainians have been affected by Russia's aggression. It is shocking that this number is hardly discussed. One million Ukrainians have fled Ukraine since 2014, and 1.5 million Ukrainians are considered Internally Displaced People. And these numbers continue to rise.

Ukraine needs more humanitarian assistance, and they need it now. Winter is fast approaching. Time is running out for winterization. Temperatures will plummet to 0 degrees and below. Eastern Ukraine has already experienced its first snowfall. We must act before it is too late.

Today, many Ukrainians have little to no access to humanitarian assistance because very few humanitarian partners have received authorization from the de facto authorities in Donetsk and Luhansk to operate. Restrictions on freedom of movement have resulted in civilians waiting 24 hours before they can cross checkpoints across the ceasefire line which will be impossible to do in the winter. Additionally, a recent assessment has discovered that 20 percent of Internally Displaced People reside in destroyed or damaged homes. These homes need rebuilding materials now as temperatures continue to drop.

These crucial humanitarian supplies need to be airlifted to Ukraine, and the United States should expand its efforts in helping to provide these supplies. It is becoming ever more critical by the day. Let's bring more humanitarian assistance to our partner in democratic freedom, Ukraine, immediately—before the death toll increases any higher.

TRIBUTE FOR KATRINA RUGGLES

HON. SCOTT R. TIPTON

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. TIPTON. Mr. Speaker, I rise today in honor of Katrina Ruggles. Ms. Ruggles is a school counselor at Center School in Center, Colorado and has recently been awarded the Colorado Secondary Counselor of the Year for 2015 by the Colorado School Counselor Association.

School counselors throughout Colorado compete for this award and the recipient must demonstrate leadership, professionalism, as well as a willingness to assist in students' ability maximize their personal, social, and academic development. Amongst these qualities, the counselor must demonstrate evidence of implementation of a comprehensive, data-driven counseling program as well as holding responsibility for further development of programs supporting students' career, personal, social and academic development.

Ms. Ruggles is an outstanding counselor, who has served in Center, Colorado schools for 14 years. Not only has she been a statewide name among professionals but she has become a successful grant writer, earning close to $300,000 in scholarships for students year after year.

Mr. Speaker, Ms. Ruggles' passion and drive to help her students succeed should not go overlooked. Students living in rural areas can often find themselves with limited resources. Ms. Ruggles' dedication to her students' success ensures that limited resources do not hinder their academic experience. Ms. Ruggles exemplifies the best qualities of academic professionals from the Third Congressional District of Colorado, and I congratulate her for her achievement and wish her continued success in the future.

IN RECOGNITION OF ART KIESEL

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Ms. SPEIER. Mr. Speaker, I rise to honor Art Kiesel for his eight years of service on the Foster City City Council, twice as Mayor and twice as Vice Mayor. Foster City is losing an outstanding public servant and advocate for well-reasoned public policy, as well as a man widely known for his kindness and sense of humor.

During his tenure, Art supported many city initiatives that were instrumental in shaping Foster City for the better for many years to come. The parks system was built out as Werder Park and Destination Park were completed this year. In 2014, the city's smoking ordinance was implemented. In recent years, the city entered into a fire management shared services model with San Mateo and Belmont, delivering operational efficiencies for residents while strengthening department performance. The city established a gatekeeper ordinance for development projects to create an early vetting process for large developments. It also added a synthetic softball/soccer field at Edgewater Park and a 15–acre site was sold and developed into the new Foster Square. Phase II of the Levee Pedway Repair project was completed in 2009 and in 2013 Phase III was finished. The city also installed a synthetic soccer/baseball field at Sea Cloud Park and a synthetic soccer field/walking track at Port Royal Park, all during Art's tenure on the council. The construction of the VIBE Teen Center, a favorite hangout for 6th–12th graders after school and on weekends, was also completed during Art's time on the council.

The city is embarking on a multi-year effort to increase the height of the levee that protects Foster City, an urgent improvement in an era of rising seas. Art Kiesel has been a strong proponent of this project and of protecting his community for decades to come.

Foster City has a reputation for outstanding financial management. Art and his colleagues on the council have delivered strong financial performance through times that were both good and bad. This stewardship earned the trust of residents, as was demonstrated when the voters approved Business License Tax Measure U and a 10% transient occupancy tax.

It is important to note that serving on a city council is essentially a volunteer job. You would not recognize it as such when reviewing Art Kiesel's additional duties as a councilmember. He served on the Association of Bay Area Governments, the Legislative Committee of C/CAG, the Airport Community Roundtable, the Council of Cities, the League of California Cities, the city's Audit Committee and Arts and Culture Committee, was a member of the Chamber of Commerce, and served as the council's liaison to the San Mateo Union High School District. Art Kiesel is basically the Eveready Energizer Bunny of city councilmembers.

Art and his wife Janis have lived in Foster City for 24 years. They have two sons, Scott and John, and two granddaughters. Art is a third generation San Franciscan and was raised in the city until he was drafted into the U.S. Army in 1965.

While Art has been a successful financial consultant for almost 30 years with some of the largest businesses in the Bay Area as his clients, he has always made it a priority to serve the community. His civic engagement began in 2000 when he served on the Information Technology Advisory Committee for four years. He continued on the Traffic Review Committee and the Planning Commission. He graduated from the Foster City Citizens Police Academy in 2002 and the Community Emergency Response Team in 2007. His community involvement has been just as extensive as he has been involved with the Lions Club, Canine Companions for Independence and San Mateo 4–H Clubs for decades.

Mr. Speaker, I ask the House of Representatives to rise with me to honor a great man, public servant and good friend. Art Kiesel stands for integrity, commitment and perseverance. He will be missed in Foster City's public life, but his contributions will make Foster City a stronger and more vibrant community for decades to come.

TO HONOR THE SERVICE OF CONCORD CITY COUNCILMAN JAMES E. ''JIM'' RAMSEUR

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. HUDSON. Mr. Speaker, I rise today to honor James E. ''Jim'' Ramseur of Concord, North Carolina, for his more than twenty years of service to our community on the Concord City Council.

Jim was first elected to the Concord City Council in 1995 and has served on the Council five consecutive terms. During this time, he served as Mayor Pro-Tem from 1997–99, 2007 and 2013. Jim is a native of Concord, graduating from Concord High School and attending the University of North Carolina at Charlotte.

Jim honorably served our nation for four years in the United States Air Force before going on to a successful business career, where he retired as CEO of Turner-Baxter, Incorporated. In a sign of things to come in his future community leadership, Jim joined the Concord Jaycees in 1973 and within the next year was appointed to the Concord Planning and Zoning Board. He eventually became President of the Concord Jaycees and received the Distinguished Service Award from the organization in 1977. Continuing to be an active member of our community, Jim has served on the Board of Directors of Concord Downtown Development Corporation, and Historic Cabarrus Association, Inc.

As anyone who knows Jim is well aware, he is seen by most folks in Concord as one of the city's foremost historians. He was the Vice Chairman of the City's very successful 1996 Bicentennial Committee and has amassed an impressive collection of historic photographs of Concord that he regularly contributes to the Concord Independent Tribune. Additionally, Jim played a large role in the final design of the new Concord City Hall, which retains many qualities from the design of the 1902 city hall, including the unique tower with the words ''City Hall'' on the glass.

Jim's steady leadership has seen Concord maintain a low tax rate while its population has more than doubled from the 42,000 people who lived in the city when he was first elected in 1995. During a time that saw our area lose thousands of textile and manufacturing jobs while still increasing in population, Jim and the rest of the City Council were instrumental in continuing infrastructure development, growing city schools and recruiting new industry to Concord. Because of his hard work and dedication, Concord's future looks brighter than ever.

Mr. Speaker, please join me today in thanking James E. ''Jim'' Ramseur for his esteemed service on the Concord City Council and wishing him well as he opens the next chapter in his storied life.

HONORING ANCIENT ORDER OF HIBERNIANS NEWTOWN DIVISION 2 25TH ANNIVERSARY

HON. MICHAEL G. FITZPATRICK

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. FITZPATRICK. Mr. Speaker, the initials AOH may tell the story best. Some say the initials stand for, ''Add One Hour''—describing the easygoing, no rush attitude of many of its members. Others believe AOH, ''America's Only Hope'' has been used to define the loyalty of the Irish to the principles of their adopted land. In either case, its members would certainly all agree, that to be Irish, is indeed, a blessing. To be a Hibernian is an Honor.

I offer my gratitude and congratulations to the Ancient Order of Hibernians, Newtown, Division 2, for 25 years of working in harmony with the doctrines of the Catholic Church and fostering a sense of loyalty to country among its members.

AOH, Newtown Division 2, proudly hosts the ''Halfway to St. Patrick's Day Kilt Tilt Run, Warrior Walk and Festival'', featuring the Annual Joe McGinnis Scholarship 5K in addition to the annual Celtic Kilt Night fundraiser for local food banks.

Past president of the Bucks County Board of the AOH and Newtown Division 2 member, ''The Irish Godfather of Bucks County,'' Joseph W. McGinnis, Jr. would be proud of the work that has continued in his name.

Once again, thank you and congratulations to AOH, Newtown Division 2 for 25 years of friendship, unity and Christian charity.

HONORING THOMAS LEE MITCHELL, SR.

HON. TODD C. YOUNG

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. YOUNG of Indiana. Mr. Speaker, today we honor Thomas Lee Mitchell, Sr. for his service to his country and to his community.

Mitchell served with the 27th Marines while in Vietnam from December 1965 through December 1968. While in the employ of his country, Mitchell and his compatriots came under fire by North Vietnamese troops in the early morning of May 5, 1968.

A firefight ensued and, after a barrage of North Vietnamese mortar rounds, an American weapons platoon tent became engulfed in flames. Mitchell stormed into the conflagration amid exploding ammunition and carried a badly wounded Marine, who was trapped in the tent, to safety.

Later that same day, Mitchell's company was ordered to begin an assault on two villages. The platoon embarked on the mission and eventually encountered an open trench—which was riddled with North Vietnamese soldiers. North Vietnamese soldiers lobbed grenades at the American troops from the trench; in response, Mitchell and two of his fellow Marines fired their weapons into the trench, killing the entire line of North Vietnamese soldiers. With the trench cleared of enemy fire, the American platoon was able to proceed with the attack on the villages.

Mitchell was awarded a Bronze Star for his actions. In addition, Mitchell also earned, among others, a Purple Heart, a Good Conduct Medal, a National Defense Service Medal, Combat Action Ribbons, and a Presidential Unit Commendation Ribbon.

Mitchell coached little league baseball from 1975 until 1985. He is currently a member of St. Michael's Catholic Church in Charlestown and the VFW.

It is a privilege to award Thomas Lee Mitchell with Congressional Commendation, and ensure his story is preserved for future generations.

PERSONAL EXPLANATION

HON. DANIEL WEBSTER

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. WEBSTER of Florida. Mr. Speaker, on roll call numbers 657, 659, 660, 661, 662, and 663, I was unavoidably detained off of the House floor. Therefore, I was unable to cast my vote. Had I been present, I would have voted NO.

IN RECOGNITION OF BARBARA PIERCE

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Ms. SPEIER. Mr. Speaker, I rise to honor Barbara Pierce for her 16 years of outstanding service on the City Council of Redwood City, including one term as Mayor and one term as Vice Mayor. Barbara is the consummate public servant, never tiring of looking for ways to improve the city and the quality of life of its residents.

During her four terms on the council, she served on many committees and represented Redwood City before many organizations—most of them as chair at one point—including the Peninsula Division of the League of California Cities, the League Housing Community Economic Development Committee, C/CAG's Congestion Management Environmental Quality Committee, the Bay Area Water Supply Conservation Agency, the Resource Management Climate Protection Committee, the Association of Bay Area Governments, the Redwood City 2020 Coordinating Council, the Grand Boulevard Task Force and the Bair Island Task Force.

Conservation and environmental protection are core values of Barbara Pierce. She is the spiritual leader of Redwood City's purple pipes project that brought recycled water to Redwood Shores long before our drought made water conservation a necessity. At first, it wasn't easy educating the public about the need to use recycled wastewater, but Barbara's persistent and earnest efforts persuaded the public to choose wisdom in the use of resources over skepticism based upon ignorance. The experiment began in 2000 but really took off in 2007 when the city expanded the pipes throughout Redwood Shores through pump stations. The recycled water project saves hundreds of millions of gallons of drinking water each year, and leaves Redwood Shores as one of the few areas of green landscaping during the current drought.

Barbara has played a significant role in just about every modern decision and process that has shaped Redwood City and made its vibrant downtown a reality. She played a leadership role in the creation of Courthouse Square, the restoration of the entry to the San Mateo County History Museum, Theatre Way and the retail cinema complex. She was also instrumental in the building of the Redwood Shores Library and the Redwood Shores Child Care Center. She worked hard to address traffic congestion, housing, climate change, water supply, and public safety issues, and to build a successful and sustainable community. Her secret to success is collaboration. She strives to work with members of the community and to find a way for everyone to win.

Her ethic of conservation is a direct consequence of her concern about future generations. In addition to her council duties, Barbara led efforts for 25 years at the Redwood City Education Foundation and saved an outdoor education program and created a music program for 3,500 students.

She has served on the board of the San Mateo County Historical Association, the Community Emergency Response Team, the Chamber of Commerce, the Downtown Business Group and ARTS RWC. She is also a long-time Girl Scout leader, classroom volunteer and site council member. Barbara has a big heart and her love of Redwood City is only secondary to her love of her family.

She was born in Baltimore, Maryland and grew up in Fair Lawn, New Jersey. She graduated with a B.A. and M.A. in Psychology from Moravian College and Catholic University of America, respectively.

Thirty-five years ago she and her husband Jerry made Redwood City their home. They have two grown daughters, Andrea Koenig and Amanda Pierce, both of whom have made them very proud.

Mr. Speaker, I ask the House of Representatives to rise with me to honor Barbara Pierce for her unwavering commitment to the residents of Redwood City. A compassionate steward of the interests of children and the environment, a stalwart supporter of strong public safety services, and a woman who dedicated tens of thousands of hours of her personal time to the interests of others, Barbara is now leaving for some well-deserved rest. It is beyond her ability, however, to simply retire, and retirement for Barbara Pierce will likely involve watching her former council colleagues on the local community access channel rather than being there in person. Barbara Pierce never earned an Emmy for her performance on the City Council, but she earned the love and respect of her community, an award that counts for much more than a statue, and an award that will echo throughout generations yet to come.

IN HONOR OF CHIEF DEPUTY SHERIFF BEN BAILEY'S SERVICE TO UNION COUNTY, NORTH CAROLINA

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. HUDSON. Mr. Speaker, I rise today to honor Union County Chief Deputy Sheriff Ben Bailey for his faithful service over the last 30 years to the citizens of Union County, located in North Carolina's 8th Congressional District. Chief Deputy Sheriff Bailey will be stepping down from his position at the Union County Sheriff's Office in order to pursue a unique career opportunity as a Federal Bureau of Investigation Fellow at the National Counter Terrorism Center in Washington, DC.

Chief Deputy Bailey has dedicated himself to serving and protecting his community throughout his 30 year career in law enforcement. Of those 30 years, he held the position of Chief Deputy Sheriff in Union County for the last 13 years, which makes him the longest serving Chief Deputy Sheriff in Union County's history. In this role, Chief Deputy Bailey served as the second-in-command to the Sheriff of Union County and was responsible for the management of a 300 member law enforcement agency.

In addition to his responsibilities within the Union County Sheriff's Office, Chief Deputy Bailey has also been actively involved in the broader law enforcement community in North Carolina. In 2011, he was given the honor to serve as the North Carolina Chapter President of the FBI National Academy Associates Executive Board. He also serves on several community college boards, such as the Cybercrime Advisory Board at both South Piedmont Community College and Stanly Community College, as well as the Alumni Executive Board of the Justice Academy's Management Development Program under the North Carolina Department of Justice. Chief Deputy Bailey also participates in the FBI's Joint Terrorism Taskforce, the U.S. Secret Service's Electronic Crime Task Force, and is a Department of Homeland Security certified instructor in Weapons of Mass Destruction awareness-level response.

Chief Deputy Bailey has been a devoted member of the Union County community, even when he is not in uniform. Chief Deputy Bailey is a state certified criminal justice instructor, using his gifts as an educator to teach students at South Piedmont Community College about the basics of law enforcement and how to effectively manage a law enforcement agency. He has also served on several local boards, including the Union County Chapter of the American Red Cross and the United Way. Our state and local community have greatly benefitted from his servant leadership, both as an officer of the law and as an extraordinary citizen.

Mr. Speaker, please join me today in thanking my friend Chief Deputy Sheriff Ben Bailey for his outstanding service to the people of Union County and wishing him well as he moves on to the next chapter of his distinguished career.

TRIBUTE TO ANNA KILLPACK

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Anna Killpack of Neola, Iowa, for her selection as the 22nd annual LIFE Group Mother Mary Vincent McDermott Award honoree. The award is sponsored by the CHI Health Life Group. Anna received this award for her commitment, compassion, and dedication to helping those with mental illness.

When Anna's son was diagnosed with schizophrenia at age 13, Anna became passionate about working and advocating for individuals with mental illnesses. Since then, she has gone above and beyond her calling to stand up for those who need it most. Anna has volunteered on a number of Iowa's mental health committees and councils as a tireless advocate.

Mr. Speaker, I commend Anna for her years of hard work and dedication. Her contributions have been invaluable to Iowa's mental health community. I ask that my colleagues in the United States House of Representatives join me in congratulating Anna for her accomplishments in advocating for mental health treatment and understanding, and I wish her nothing but continued success.

UNIVERSITY OF HOUSTON, AMERICAN ATHLETIC CONFERENCE FOOTBALL CHAMPIONS

HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. POE of Texas. Mr. Speaker, over the weekend, the Houston Cougars capped off their thrilling season with a 24–13 win against the tough Temple Owls in the American Athletic Conference Championship Game. Though Houston only won by 11, the team led from the opening gun until as Willie Nelson says "The Party was Over". With this win, the Cougars finished the regular season 12–1 and now have a matchup against the Number 9 Florida State Seminoles in the Chick-Fil-A Peach Bowl to look forward to.

What's most amazing about the Cougars' successful season is the fact that it was engineered by a rookie head coach. Tom Herman, a national championship winning offensive coordinator at Ohio State and recipient of the Broyles Award for the nation's top assistant coach, stepped in as a first-time head coach this season. Success like that in a coach's first season is hard to come by. Herman's Houston team was led by its do-it-all quarterback, Greg Ward Jr., who finished the season with 2,590 passing yards, 16 touchdowns, and only 5 interceptions. The all-conference quarterback also tacked on 1,041 rushing yards and 19 touchdown runs for good measure. The excitement of watching this team play had me reminiscing back to 1989, when Coach Jack Pardee's run-and-shoot offense led the Cougars to a 9-win season and quarterback Andre Ware took home the Heisman Trophy.

Mr. Speaker, Tom Herman and the Houston Cougars aren't finished yet. After the Cougars' New Year's Eve duel with perennial powerhouse Florida State, the team will refocus its sights on coming back strong again next year. With the Cougars locking in Coach Herman to a contract extension and returning many of its key contributors, this team will be a force next year and hopefully for years to come. As a University of Houston alum, I look forward to spending December 31st ringing in the New Year with friends, family, and another Cougars victory. Go Cougars.

And that's just the way it is.

IN RECOGNITION OF CAPTAIN FREDERICK PETERS

HON. FRANK PALLONE, JR.

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. PALLONE. Mr. Speaker, I rise today to congratulate Captain Frederick Peters of Edison, New Jersey on his 50th year of service to the Edison Police Auxiliary. Captain Peters' outstanding commitment to the organization and community will be honored at the Auxiliary's Annual Holiday Dinner on December 19, 2015 and it is my privilege to join them in recognizing this remarkable achievement.

Captain Peters joined the Edison Police Auxiliary on August 1, 1966. Throughout his 50 years as a volunteer officer, Captain Peters has distinguished himself as a leader, holding positions as Sergeant, Lieutenant and Captain. Currently Captain of Administration, Captain Peters maintains his commitment to serving the organization.

Captain Peters has dedicated his life to serving his community and nation. In addition to his service to Edison, Captain Peters is a veteran of the United States Navy. Captain Peters received an honorable discharge from the Navy after 3 years and 2 months of active duty aboard the USS *Harwood*. From his service to our country to his service to his community, Captain Peters continues to exhibit an unwavering commitment to duty.

Mr. Speaker, once again, it is my great honor to pay tribute to Captain Frederick

Peters for his 50 years of service to the Edison Police Auxiliary and I sincerely hope that my colleagues will join me in thanking Captain Peters for his honorable service to our great nation. His remarkable dedication and duty to his community and nation are truly deserving of this body's recognition.

IN RECOGNITION OF DAVID BRAUNSTEIN

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Ms. SPEIER. Mr. Speaker, I rise to honor David Braunstein for his eight years of service on the Belmont City Council, once as Mayor in 2009 and again in 2015. Mayor Braunstein leaves with a distinguished legacy of service to the residents of Belmont.

During his tenure on the council, he served as a member of the Joint Notre Dame de Namur and Belmont City Council committee, the city's audit committee, is the former chair of the library community task force, former chair of the library steering committee and former chair of the library bond committee. David Braunstein has also been a board member of the Center for Independence of the Disabled, and was a member of the city's economic development committee.

Education is a core value in Belmont. David Braunstein is deeply committed to this value as evidenced by his career as a teacher at Carlmont High School and through his related council activities. While on the council, he has served as part of the city-school district committee known as 2 + 2 which identifies ways in which the district and city may collaborate to the benefit of Belmont residents.

Belmont is a city filled with the joyful sounds of children laughing. Three of those children are Mayor Braunstein's: Isaac, Noah and Yakira. They attend Ralston Middle School and Fox Elementary School where David and his wife, Patricia, are actively involved in school life. Even though he is incredibly busy as Mayor and as a teacher, David Braunstein made time in his life to be an AYSO and Little League coach, and served as a volunteer football coach at Carlmont High School. For David Braunstein, kids count.

Community building is in Mayor Braunstein's DNA. He has served on the National Night Out Planning Committee and helped to create one of the largest National Nights Out on the Peninsula. He is a tireless advocate to make our neighborhoods better and safer places, and served on the San Mateo County Emergency Services Council.

During his time on the council, Mayor Braunstein has conducted himself in a collaborative manner, both with his council colleagues and elected officials from other cities. He is proud to have been part of purchase of Ralston Avenue Vista Point which offers incredible views. The city purchased 34 acres, sold some land, made a profit and was able to preserve open space.

David was born in San Jose. He earned his Bachelor's degree in Political Science at UCLA and his Master's in Public Policy and Management at Carnegie Mellon University. He also holds a California Teacher Credential from San Francisco State University.

After his retirement from the city council, David Braunstein is looking forward to spending more time with his family and watching his young children grow up. He is also hoping to find more time for travel, reading, cooking and photography—children's schedules permitting.

Mr. Speaker, as the people of Belmont contemplate Mayor Braunstein's contribution to their well-being, they will recognize that he possessed superior leadership skills and leaves having accomplished his objective, and having set an outstanding example for his successors. I know the House of Representatives joins me in wishing him well in his future adventures.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $18,786,830,545,682.60. We've added $8,159,953,496,769.52 to our debt in 6 years. This is over $8 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

IN HONOR OF THE VICTIMS OF THE SAN BERNARDINO ATTACK

HON. NORMA J. TORRES

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mrs. TORRES. Mr. Speaker, I rise today to commemorate the tragic shooting in San Bernardino last week and to recognize and honor the victims who lost their lives.

Despite the increasing frequency with which these kinds of events seem to occur, we never expect them to happen in our community. But this December 2nd, that is exactly what happened and tragedy hit home.

I knew the Inland Regional Center well and represented the city of San Bernardino during my time in the State Senate. And on this tragic day, five individuals who lived in cities I represent were taken from this world.

Isaac Amanios was a Fontana resident who came to this country from Eritrea looking for a better life for his children. He was described as an amazing father, brother, an amazing everything.

Sierra Clayborn, a UC Riverside graduate, previously lived in Ontario. Those who knew her say she was energetic, thoughtful, and always smiling, and she loved what she called her blooming career in public and environmental health.

Larry Daniel Kaufman, a resident of Rialto, considered himself a free spirit, loved horror movies, and talked to everyone he met.

Yvette Velasco was 27 and a Fontana resident who was full of life and loved by all who knew her. Those close to her say she embodied intelligence and ambition.

And Benetta Bettadal of Rialto was a graduate of Cal Poly Pomona, also in my district. She came to the United States fleeing Islamic extremism and the persecution of Christians following the Iranian revolution. In a horrible twist of fate, she lost her life at the hands of the same kind of extremism that brought her to this country.

Isaac, Sierra, Larry, Yvette, Benetta. These were our neighbors. They could have been our children, our loved ones, or our friends. As our community begins to heal, we owe it to them and to the other nine victims to ask ourselves how to best honor the vibrant lives that were taken from us much too soon.

Mr. Speaker, far too many communities have felt the pain that the San Bernardino and Inland Empire community is facing right now. Far too many Americans have lost loved ones in similar acts of violence. It is now up to us in Congress to use this tragedy as a catalyst for a serious, productive, and respectful dialogue on the actions we can and must take to prevent this kind of tragedy from ever happening again. Inaction is inexcusable and an affront to the lives lost on that tragic day.

IN RECOGNITION OF RAYMOND C. MILLER

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Ms. SPEIER. Mr. Speaker, I rise to honor Raymond C. Miller for his extraordinary 16 years of service on the Brisbane City Council, four terms as Mayor. Dr. Miller served from 1984–1995 and again from 2011–2015 and has made significant contributions to the city and San Mateo County.

Dr. Miller cares deeply about government transparency, accountability and responsiveness. The fiscal and environmental health of Brisbane are of utmost importance to him. This is very well reflected in the work he has done on a long list of committees, subcommittees and boards. He served on the Airport Land Use Committee, the Complete Streets Safety Committee, the City Sustainability Committee, the Open Space & Ecology Committee, the Facilities/Water Sewer Subcommittee, the Finance Subcommittee, and several others.

As a retired Political Economy and Interdisciplinary Social Science professor at San Francisco State University for 44 years, Councilman Miller has an extensive understanding of the public policy process. For example, Dr. Miller has been deeply involved in the contract negotiations for the development of the Baylands, a 600-acre site on the edge of San Francisco Bay, the evaluation of the draft Environmental Impact Report, and the development of sustainability goals.

During his last term as Mayor, Dr. Miller helped restructure the city budget to create a more user-friendly document. He worked with the council to place a business license tax for liquid storage facilities on the ballot, to approve a contract for a hotel feasibility market study for Sierra Point, and to conduct labor negotiations during tough financial times. He also spent many hours as editor of Brisbane's 50th Anniversary History Book Project.

Raymond Miller was born in Baltimore, Maryland in 1934. He graduated with a Bachelor's degree in Business Administration/Public

Administration from the University of Denver in 1955, a Master's degree in Social Science from the University of Chicago in 1958 and a Ph.D. in Social Science from Syracuse University in 1966. He served as president of the Society of International Development and the Association for Integrative Studies where he was a founding editor of Issues in Integrative Studies. He also is the author of International Political Economy: Contrasting World Views and the recipient of the Kenneth Boulding Award from the Association for Integrative Studies.

Dr. Miller married his wife of 55 years, Anja, in Helsinki. They moved to Brisbane in 1966 and she also served on the Brisbane City Council in 1970. They have a daughter, Elna, who lives in town with her twin daughters Julianne and Marissa. In his well-deserved retirement, Dr. Miller is looking forward to spending more time with his family and enjoying theater, ballet and Dixieland jazz.

Mr. Speaker, I ask the House of Representatives to rise with me to honor an exceptional scholar and public servant whose intellect and expertise have greatly benefitted the City of Brisbane. Raymond C. Miller's retirement will leave a big void on the city council, but his significant contributions will be felt for years to come.

IN RECOGNITION OF THE DANTE CLUB'S 100TH YEAR ANNIVERSARY

HON. RICHARD E. NEAL

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. NEAL. Mr. Speaker, I would like to take this opportunity to recognize the 100th year anniversary of the Dante Club in West Springfield, Massachusetts. The Dante Club has served as a place for Italians to embrace their culture, celebrate their history, and promote athleticism. Today, the Dante Club has over 900 members, a competitive racquetball league, and hosts widely attended social and cultural events throughout the year.

On November 7, 1915, a group of Italian men gathered in Springfield with the goal of creating a club promoting ''culture, good fellowship, athletics, and good American citizenship.'' They named the club after Dante Alighieri, a highly acclaimed Italian poet and constructor of the Italian language. The Dante Club originally only accepted Italian members and sons of Italians, but later eased its membership restrictions, allowing men of other ethnic groups married to Italian women. In 1935, the Dante Women's Club division was formed, and in 1963 the Club's constitution was amended, allowing non-Italians to become members.

The Dante Club purchased its first site in 1924 in West Springfield. Thirty years later, the Club received notice that its property would be taken away in order to construct the Route 5 highway, so the members purchased the old Memorial School Building in West Springfield. This remains its current home today. The Club has had numerous improvements since its founding, and now includes a kitchen, banquet hall, and health center with racquetball courts. The Dante Club hosts a successful racquetball league, which runs from September to May of every year and includes six divisions with over 100 players. The health center was opened in 1970, and has trained several notable athletes, including the Michigan State hockey coach Amo Bessone, and Gene Grazia, 1960 U.S. Hockey Team Olympic Gold Medalist.

Mr. Speaker, the Dante Club's founders have succeeded in organizing a center in America to preserve and celebrate Italian culture and values, while fostering friendships and promoting athleticism and community. I wish the Dante Cub the best in its future endeavors, and look forward to watching it prosper for years to come.

HONORING MAJOR BRYAN WHITTIER

HON. JOHN R. CARTER

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. CARTER of Texas. Mr. Speaker, I rise today to honor Major Bryan Whittier of the United States Army for his extraordinary dedication to duty and service to the Nation. After nearly four years of faithful service in the Nation's capital, Major Whittier will transition from his present assignment as an Army Liaison in the Office of the Chief Legislative Liaison to the Army's 2nd Scout Cavalry Regiment in Vilseck, Germany.

Major Whittier has demonstrated the invaluable service that Army Congressional Liaisons provide to the Congress. He enabled countless Members and staff to develop better understandings of Army policies, operations, and requirements. His first-hand knowledge of military needs, culture, and tradition was a tremendous benefit to Congressional offices. Prior to service as a Liaison, Major Whittier was assigned to my office as a Military Fellow where he quickly became an indispensable asset to our team. His performance was superb and he earned my utmost respect during his tenure on my staff. Major Whittier also completed a Master's Degree from George Washington University during his time here, demonstrating his commitment as a Warrior and a Scholar.

Major Whittier is a native of Scottsdale, Arizona; he commissioned through Norwich University ROTC in 2003. During his twelve year active duty Army career, he has excelled in numerous leadership and staff assignments as an Officer and UH–60 Blackhawk aviator. Major Whittier served as a Rear Detachment Commander and as an Assault Company Commander for 36 months in the 101st Airborne Division at Ft. Campbell, KY. From there, he deployed in support of Operation Enduring Freedom for twelve months. Prior to command, Major Whittier successfully executed duties as a Battalion Operations Officer, Battalion Adjutant, Company Executive Officer, and Platoon Leader, during which time he conducted a twelve month deployment in support of Operation Iraqi Freedom.

His dedication to excellence has not gone unnoticed. Major Whittier was awarded the Bronze Star Medal, Meritorious Service Medal, Air Medal, Afghanistan Campaign Medal, Iraqi Campaign Medal, Global War on Terrorism Service Medal, the NATO Medal, and numerous others. He has earned the Parachutist Badge, the Air Assault Badge, Army Senior Aviator Badge, Combat Action Badge and the Army Staff Badge.

Mr. Speaker, it is my distinct honor to recognize the selfless service of Major Bryan Whittier and the support and dedication of his wife Shelley and their two children, Bryley and William. I wish them the very best as they continue their service to our great nation and proceed to the next chapter in their lives.

IN RECOGNITION OF THE STATE CHAMPIONSHIP VICTORY OF PIEDMONT HIGH SCHOOL

HON. MIKE ROGERS

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. ROGERS of Alabama. Mr. Speaker, I ask for the House's attention today to congratulate the Piedmont High School football team on their state championship win in the 3A class.

The Piedmont Bulldogs defeated the Bayside Academy Admirals 44–7, on December 3 at the Bryant-Denny Stadium in Tuscaloosa, Alabama.

Taylor Hayes, Piedmont quarterback, and Darnell Jackson, running back, were the standout players of the game with a combined 124 yards on 18 carries and four touchdowns between them. Hayes also made the play of the game, with a 48-yard touchdown run in the second quarter.

Piedmont's coach Steve Smith said, ''Our kids played their best football when it mattered the most—at the end of the year.''

This victory marks the second state football title in the school's history, and set school records for wins in a season as well as points scored.

Mr. Speaker, please join me in congratulating Piedmont High School on their achievement. Go Bulldogs.

IN RECOGNITION OF WEMU 89.1'S 50TH ANNIVERSARY

HON. DEBBIE DINGELL

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mrs. DINGELL. Mr. Speaker, I rise today to congratulate WEMU 89.1 radio station on their 50th Anniversary. As a Member of Congress and a long-time listener and supporter, it is my honor and privilege to recognize their commitment to providing first class news and entertainment to our community.

Founded on December 8, 1965, WEMU 89.1 began its broadcasting service from the Quirk Building for Eastern Michigan University with the goal of delivering local news and showcasing jazz, blues, and community musicians. Since then, WEMU has grown into one of the most popular news and entertainment stations serving the Ann Arbor and Ypsilanti area. WEMU is an affiliate of National Public Radio, which allows the station to provide first rate national news and programming while continuing to maintain its focus on the community and region it calls home.

WEMU has become a part of the fabric of our southeast Michigan community. Over the course of fifty years, they have transformed themselves from a small university radio station into a go-to destination for balanced, informative news and entertainment. In an age

of media consolidation, they have maintained their commitment to meaningful local news coverage focused on the people, issues and events that make our region tick. Their dedication to fair and honest reporting of the news and promoting local music and artists has had a profound positive impact on our region, and we cannot thank them enough for their commitment to this important work.

Mr. Speaker, I ask my colleagues to join me today to honor WEMU 89.1 on their 50th Anniversary and to wish them many more years of success.

IN RECOGNITION OF JOHN ''JACK'' MATTHEWS

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Ms. SPEIER. Mr. Speaker, I rise to honor John ''Jack'' Matthews for his twelve years of service on the San Mateo City Council—two terms as Mayor—and his many contributions to our community.

Councilman Matthews served on the Housing Endowment and Regional Trust (HEART), C/CAG, the Emergency Services Council, and the Local Policy Maker Group for Caltrain Electrification and High Speed Rail. These names with obscure meanings mask organizations of enormous importance to our community. Fortune smiled on us when Jack Matthews agreed to these assignments.

Jack also served on the Grand Boulevard Initiative, the Civic Arts Committee and the homeless outreach team. One of his proudest moments was the 40th anniversary celebration of San Mateo's relationship with the 101st Airborne Division during Memorial Day Weekend in 2012 when the city also hosted its sister city Toyanaka, Japan.

During his tenure on the council, he has been a voice of reason. In subtle contrast to his otherwise quiet nature he has been insistent about the issue of equal opportunity for all. This core value of Jack Matthews is best demonstrated by the very active role he played in the development of affordable housing in San Mateo. Jack and his council colleagues have helped create Peninsula Station, an affordable development for 60 families, as well as Delaware Pacific, housing 120 low income families at the former site of the police station. Rather than wring its hands over the problem of homelessness, San Mateo, in large part through Jack's leadership, grappled with the problem and developed a solution—buying and redeveloping the Hotel Vendome. Upon opening, one new resident remarked to a reporter that she had taken her first shower in many years. Jack and his enlightened colleagues on the San Mateo City Council offered that woman more than a shower. She regained her dignity.

Jack also supported construction of an award-winning, beautiful new library, a Transit Center, the creation of Draeger's Market, a new downtown cinema, a new police station, the emergence of Bay Meadows as a regional transit and housing hub, and new transit-oriented development at the Hayward Park Caltrain station. He also supported historic changes to the organization of the fire department. Some councilmembers serve and never witness any of these types of changes. Jack helped shepherd all of them.

Mr. Matthews is an architect and has his own firm, John Matthews Architects, located in downtown San Mateo since 1986. His firm is responsible for the design and significant storefront improvements at the St. Matthew Hotel, Kaffee Haus, Tomatina, AcquaPazza Ristorante, Vault 164, M is for Mystery Bookstore and others. In 1992, he served as president of the American Institute of Architects for San Mateo County and from 1994 to 1996 he was a board member of the AIA California Council.

Community service is in Jack's DNA. A long-time volunteer with the Boy Scouts, he has additionally served on the Board of Directors of H.I.P. Housing, a non-profit providing housing to over 1,000 people.

Born in San Francisco, Jack grew up in San Carlos and attended Carlmont High School. He graduated from California State Polytechnic University in San Luis Obispo with a degree in architecture in 1972. Two years later, he and his wife of 45 years, Patricia, moved to San Mateo and raised their four children, Domenic, Anthony, Benjamin and Desiree. Today they have four grandchildren, Delphine, Tessa, Stephen and Lorenzo. After his retirement from the city council, Jack is looking forward to spending more time with his family and pursuing his passion for the outdoors including hiking, backpacking and fly fishing.

Mr. Speaker, I ask the House of Representatives to rise with me to honor my good friend and colleague Jack Matthews for his dedicated service to the residents of his city. His outstanding work has helped make San Mateo a more beautiful and livable community. He has demonstrated by personal example that San Mateo has an enormous heart. We are losing a local leader who will soon become a man with additional time for leisure. There is no doubt that Jack will, even during times of quiet repose, be dreaming big dreams for his extended family—the people of the City of San Mateo.

RECOGNIZING TED B. WAHBY

HON. SANDER M. LEVIN

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. LEVIN. Mr. Speaker, I rise today to recognize the life and accomplishments of Ted B. Wahby, who passed away on Saturday, December 5, 2015. He was a warm friend who leaves a legacy of superb public service in its best sense. He will be deeply, personally missed by so many of us privileged to work hand-in-hand, and I am honored to pay tribute to his remarkable life accomplishments.

Ted Wahby was a pillar in the City of St. Clair Shores, Macomb County and the greater region for over 50 years. He and his wife Yvonne moved to St. Clair Shores in 1964 and raised six children there. The Wahby family planted strong roots in the city as faithful members of St. Margaret of Scotland Catholic Church and the Shorewood Kiwanis. During this time Ted embarked upon a successful career working at Comerica Bank, serving in numerous high-level capacities for 31 years, including Vice President.

In addition to Ted Wahby's love of family and pride in his successful business career, he held a deep belief of the importance of giving back to the community. He first sought public office in 1979 and was elected to Lake Shore School Board. Two years later he was elected to the St. Clair Shores City Council, and two years after that as Mayor, where he provided strong, forward thinking leadership from 1983 to 1995. Ted then decided to take his local experience to the next level by serving as Treasurer of Macomb County from 1995 until his passing. Over this twenty year period Ted devoted his immense talents to serving residents in a way that focused on the human element, while using his profound management skills to place the county in a strong fiscal position.

Whatever public office he held, for him the test always was how his actions would improve the lives of others, and in our many discussions, he was most proud how as county Treasurer, he helped keep thousands of families who experienced financial stress from losing their homes to foreclosure.

His community and civic involvement was rivaled by few. The leadership he provided on so many boards locally and throughout the region is yet another testament to his strong desire to serve the public. Ted was not one to seek credit for his work, yet he was the recipient of numerous prestigious awards and recognitions from charitable and philanthropic organizations, far too many to list.

If there is one legacy of Ted Wahby's service that will be remembered and valued above all else, it is his premier leadership and advocacy for better health care. As a member of McLaren Macomb Hospital's Board of Trustees since 2000 and in the role of Chairman since 2002, Ted strategically leveraged his business and political skills to make critical advances in the health care field. Ted's mission of opening the Ted B. Wahby Cancer Center in 2004 was very personal for him and Yvonne, who both lost family members to cancer. He saw the need for compassionate, high quality care close to home, since at the time nearly 70% of Macomb cancer patients had to drive a far distance for care. He was a tireless supporter and fund-raiser from the very beginning, and worked for many years to influence local leaders to invest in the capital campaign. For his dedicated efforts, Ted earned many accolades, including the 2005 Health Care Leadership Award from the Michigan Health & Hospital Association, and the 2005 Thanks for Giving Award, presented for extraordinary volunteer service to hospitals in the Metro Detroit area.

Over these last few days since Ted's passing, there have been countless heartwarming statements made by so many, but the one that sums it up for me is that above all, Ted Wahby was a family man, as stated by his children. His love for his wife, children, nine grandchildren; and three great-grandchildren defined who he was and he set an example for these generations to follow.

Mr. Speaker, in closing, I am profoundly honored to have called Ted Wahby my friend, and thankful for the opportunity to work side-by-side during his career and witness first-hand his effective leadership and compassion. I am humbled to join with his family, friends and the community at-large in mourning his loss, while celebrating his life and honoring his accomplishments.

HONORING BERT DODDS

HON. TODD C. YOUNG

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. YOUNG of Indiana. Mr. Speaker, today we honor Bert Dodds for his service to the United States Navy and to his country.

A Hospital Corpsman, Dodds was a medical professional attached to the 1st Platoon, 2nd Combined Action Group, 3rd Marine Amphibious Force, 1st Marine Division in Vietnam from November 1967 through November 1968. During his tour of duty in Vietnam, Dodds provided medical expertise to Vietnamese orphans and various local villages. On November 4, 1967, while on patrol with his detachment, a booby trap exploded on a nearby rice paddy dike and injured Dodds' leg and head.

In spite of his injuries, Dodds continued to treat the Marines in his detachment until a medical evacuation was arranged. Dodds' heroism earned him, among other awards, a Purple Heart, a Navy Commendation, a Meritorious Unit Citation, and a Combat Action Ribbon.

Dodds' drive for selfless service continued beyond his tenure in the Navy. After his homecoming, Dodds lectured at the Officer Candidate School in Quantico, Virginia and served as a medical corpsman during a massive peace march in Washington, DC, in which hundreds of thousands of demonstrators converged on the Capitol to protest the Vietnam War.

Today, Dodds' heart for his community is reflected by his volunteerism. He visited local grade schools on Veterans Day to teach the children about proper flag etiquette. In conjunction with the Marine Corps League, he has visited numerous veterans in a VA hospital and local nursing homes.

He is an active member of the Marine Corps League Morgan County Detachment #1367 and was elected Commandant in April 2015. Earlier this year, Dodds organized a celebration of the 70th anniversary of the Battle of Iwo Jima at the American Legion in Martinsville.

It is a privilege to award Bert Dodds with Congressional Commendation, and ensure his story is preserved for future generations.

PERSONAL EXPLANATION

HON. DANIEL WEBSTER

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. WEBSTER of Florida. Mr. Speaker, on roll call no. 655, I was unavoidably detained off of the House floor. Therefore, I was unable to cast my vote on the Motion to Instruct Conferees on H.R. 644, the Trade Facilitation and Trade Enforcement Act of 2015.

Had I been present, I would have voted NO.

IN RECOGNITION OF MARGE COLAPIETRO

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Ms. SPEIER. Mr. Speaker, I rise to honor Marge Colapietro for eight years of dedicated service on the Millbrae City Council, including a term as Vice Mayor in 2011 and as Mayor in 2012. Marge's commitment to her community is unparalleled. She has logged precisely 24,274 hours of public service since she was elected to the council in 2007. This is the kind of precision and accountability that characterizes Marge's way of approaching problem solving in service to her constituents. I am proud to call her a colleague and dear friend.

During her tenure on the city council, Marge has always sought the greatest good for Millbrae's residents and businesses. She worked hard to protect safety services, helped attract businesses to the city, used prudent spending practices to control the budget during very difficult fiscal times in our nation's history, and she has always been attentive to her constituents both young and old. My staff reports that she regularly sought assistance for her constituents with federal issues, and always wanted to be kept up-to-date on whether or not a problem was resolved. Marge Colapietro's public service has been marked by thorough analysis of opportunities facing the City of Millbrae, constant interactions with an ever-changing city population, and a staunch belief that local decision making about land use and public services is a key tool in maintaining Millbrae's outstanding quality of life.

With a 37-year career in global transportation services, Marge brought invaluable experience and expertise to the table. Millbrae, in addition to being a tree-lined community of families and multiple generations, is a transportation hub resting adjacent to San Francisco International Airport. Due to its strategic location, Millbrae has wonderful prospects in its future. To bolster these prospects while preserving Millbrae's small-town character, Marge served on a long list of committees, including the Cultural Arts Committee, the Downtown Process Committee, Millbrae Community Television, the Senior Advisory Committee, the Tourism Committee, and the Youth Advisory Committee. She also played an essential role in ballot measures to save Millbrae's fire services.

Marge is passionate about bolstering the middle class and working families of her community, as well as housing and emergency preparedness. This passion is reflected in her multiple assignments through the city council. Regionally Marge represented Millbrae on the Airport Community Roundtable, the Airport Land Use Committee, C/CAG's Board of Directors, the League of California Cities Public Safety Advisory Committee, the San Mateo Council of Cities, the San Mateo County Office of Emergency Services, the San Mateo County Coalition for Safe Schools and Communities, and the San Mateo County Regional Housing Needs Allocation Policy Advisory Committee.

From this long, yet incomplete, list you can see how she arrived at more than 24,000 hours of service. Marge is the ultimate volunteer on behalf of Millbrae's best interests. She made time for the American Cancer Society, the Special Olympics, the Lions Club, Rotary, the Millbrae library, the historical society, and Millbrae's outstanding schools. In 2001 Marge was honored as Millbrae Woman of the Year. In 2004, she received the California's Park and Recreation Society District IV Volunteer Award. In 2009, she received the Lifetime Achievement Award from President Obama. RSVP, a senior volunteer organization, honored her with another Lifetime Achievement award for volunteering 4,000 hours in less than three years.

Mr. Speaker, I ask the House of Representatives to rise with me to honor one of the most dedicated and hands-on public servants our region will ever see. As a Councilmember and Mayor, Marge Colapietro's fingerprints are all over Millbrae and will be there for generations to come. If her colleagues and future members of the council learn even half of the lessons of stewardship that Marge has taught by example throughout these years, these council members will earn PhD's in public service. Marge Collapietro, the committed, energetic and completely thorough professor of stewardship is retiring from her post to become an emeritus professor of public life. We wish her all the best in her many years to come.

TRIBUTE TO 1ST AVENUE COLLECTIVE

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Sarah Reed and Sandra Geronimo on the opening of their new business 1st Avenue Collective in Winterset, Iowa.

Sarah and Sandra recently moved to Madison County and fell in love with Winterset and the old county jail building that is now home to their new business. They describe 1st Avenue Collective as an artisan collective and hope to promote arts and creativity in central Iowa.

1st Avenue Collective is home to artwork from nine local artists and 10 artists from the surrounding area. Each piece of artwork is handmade and ranges from pottery and jewelry to wood works and candles. The welcoming atmosphere and culture of Winterset is what drew Sarah and Sandra to this rural Iowa town.

Mr. Speaker, I commend Sarah and Sandra for the service they provide to the community of Winterset and their willingness to open a small business. I ask that my colleagues in the United States House of Representatives join me in congratulating them for the opening of their new business and in wishing them nothing but continued success.

HONORING EIGHTH DISTRICT PUBLIC SERVANT

HON. TAMMY DUCKWORTH

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Ms. DUCKWORTH. Mr. Speaker, I rise today to recognize a dedicated public servant

from the Eighth Congressional District of Illinois who is turning 50 years old this week.

Twenty-five years ago, Steve Tufenkjian graduated from the Illinois State Police Academy and has served the people of Illinois in several different ways ever since. In that time, he has served as everything from a K9 officer to a member of the Special Enforcement Team and from Sergeant to his current role where he oversees a team of Troopers as Platoon Commander.

In each of his roles, Mr. Tufenkjian has been recognized by the Illinois State Police for his great work. He has received several awards for his dedication and, as a member of the Special Enforcement Team, he made more than 1,000 reckless driving arrests.

Our state and our nation need more dedicated public servants like Steve Tufenkjian. I wish him and his family—his two sons Zachary and Jacob as well as his wife of 17 years Michelle, who is also a State Police officer—a happy 50th birthday and thank them for their continued public service and efforts to keep our community safe.

TO HONOR THE SERVICE OF CONCORD CITY COUNCILMAN DAVID W. PHILLIPS

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. HUDSON. Mr. Speaker, I rise today to honor David W. Phillips of Concord, North Carolina, for his more than twenty years of service to our community on the Concord City Council.

Dave was first elected to the Concord City Council in 1995 and has served on the Council five consecutive terms. During this time, he served two terms as Mayor Pro-Term. Born and raised in Concord, Dave has a history of service to our community, starting at an early age with his leadership in Boy Scouts. He graduated from Concord High School and continued on to the University of North Carolina at Charlotte where he attained a Bachelor's Degree in Business Administration. After graduating, Dave worked for a short time back in Concord at Cannon Mills before starting a long and successful career at Duke Energy.

Over the years, Dave has served his community in many different capacities. He is a member and former President of the Concord Rotary Club, a member of the UNC Charlotte Alumni Association, and serves on the Boards of Directors for Historic Cabarrus Association, Inc. and Cabarrus County Community Foundation. Additionally, he formerly served on the Board of Directors of the Union County Chamber of Commerce and the Archdale-Trinity Chamber of Commerce.

Dave's steady leadership has seen Concord maintain a low tax rate while its population has more than doubled from the 42,000 people who lived in the city when he was first elected in 1995. During a time that saw our area lose thousands of textile and manufacturing jobs while still increasing in population, Dave and the rest of the City Council were instrumental in continuing infrastructure development, growing city schools and recruiting new industry to Concord. Because of his hard work and dedication, Concord's future looks brighter than ever.

Mr. Speaker, please join me today in thanking David W. Phillips for his esteemed service on the Concord City Council and wishing him well as he opens the next chapter in his storied life.

HONORING KIRK GREGG

HON. TOM REED

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. REED. Mr. Speaker, I am proud that my Congressional district is the home of Corning Incorporated, an American company that has risen over its 164-year history to become one of the most innovative manufacturers in the world.

Today, I rise to take a moment to honor Kirk Gregg, Corning's Executive Vice President and Chief Administrative Officer, who is retiring from the company after 22 years of executive leadership. Over his tenure, Kirk has made an enormous contribution to the company's success and to the community's development. I am most grateful to Kirk for his unparalleled commitment to the community. He has had an enormously positive impact on my constituents and my extended family that live in the district.

Kirk joined Corning in 1993 and was named Chief Administrative Officer in 2002. The same year, he was appointed to serve on Corning's Management Committee, a small, very senior group of executives who lead the company. Over the last decade, Kirk has risen up the corporate ladder to become the third highest ranking executive in the company.

As Chief Administrative Officer, Kirk has built the core infrastructure that makes Corning efficient and effective. He has had global responsibility for the corporate staff, including human resources, information technology, supply management, transportation, business services, community relations, government affairs, and aviation. In total, he has managed over $1B annually in corporate infrastructure, making Coming's staff one of the top performers among its peers in the country's corporate community.

It has been Kirk's work for the community that distinguishes him among corporate leaders and for which I am most grateful. He has played a huge role in meeting the needs of New York's ''Southern Tier.''

For 17 years, he chaired the Three Rivers Development, attracting tens of millions of dollars of investment to diversify the local community and create jobs. For 15 years, he led the Corning Classic LPGA Tournaments, raising millions of dollars for area hospitals. And statewide, he served for a decade on the Board of Directors for the Business Council of New York State, two years as the Board's chairman, Last, but not least, he has been an enthusiastic supporter of local charities, cultural institutions, and human service organizations.

Every Member of Congress seeks the perspective of people with broad insight into and who contribute generously to the communities we represent. For me, Kirk is one of those rare people. He understands the people, the community, and the responsibility that corporate leaders have to support their local institutions.

At the same time, he is modest and self-effacing. Kirk is one of those people who works quietly and effectively to make our communities better.

I am very happy to call Kirk Gregg my friend. I know that I speak for the entire Corning, New York community when I thank him for his citizenship and service. We wish him and his wife Penny the very best in a well-deserved retirement. May they enjoy many more happy days entering this new chapter in their lives.

HONORING MAGNUS JOHNSON

HON. TODD C. YOUNG

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. YOUNG of Indiana. Mr. Speaker, today, we honor Magnus Johnson for his service to his country and community.

Johnson is a veteran of the United States Army and a former Green Beret, completing consecutive tours in both Afghanistan and Iraq. Johnson's record of service included work with Improvised Explosive Devices (IEDS) and Unexploded Ordinances which garnered him a Bronze Star; moreover, Johnson's service overseas earned him a Combat Medal.

Following Johnson's final tour, he was struck with grief when a close friend and fellow service member committed suicide in 2013. Johnson's personal experience with suicide led him to create ''Elder Heart,'' an organization dedicated to healing. His organization strives to repair the divide between veteran and civilian by encouraging both to engage in projects that enhance the community. Elder Heart's approach led to the creation of public art; a sculpture built by veterans and civilians in Nashville, Indiana which highlights Elder Heart's hands-on approach to a veteran's healing process.

Moreover, Johnson aims to raise awareness of veterans who commit suicide—twenty-two every day—through social media, magazine and newspaper advertisements, and other forms of media. Coined ''Mission 22,'' Johnson hopes to educate the public about the plight of some of our service members. Elder Heart is currently planning to construct a national memorial to bring attention to suicide among America's veterans.

Johnson's work has not kept him from being a loyal husband and father. He hopes his 6-year-old daughter and newborn son will come to know the sacrifice of America's veterans.

I have had the pleasure of meeting Mr. Johnson on a number of occasions and can speak without hesitation to his ethical character and his dedication to his brothers-and-sisters in arms. It is a privilege to award him with Congressional Commendation, and ensure his story is preserved for future generations.

TRIBUTE TO THE GIRLS' VARSITY SOFTBALL TEAM OF VALOR CHRISTIAN HIGH SCHOOL

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. COFFMAN. Mr. Speaker, I rise today to recognize the Girls' Varsity Softball team of Valor Christian High School in Highlands Ranch, Colorado on winning the 2015 Colorado 4A State Championship game on October 25, 2015.

The students and staff who were a part of the title winning Eagle team deserve to be honored for finishing what had already been a fantastic season by winning the State Championship for the second time in two years. Recording 15 shutouts from their 23 victories, and outscoring their opponents 285–29 helps to illustrate just how dominant the Valor Christian Eagles were this past season.

Throughout their performances in the State Championships, the girls of Valor Christian High School's softball team proved that hard work, dedication, and perseverance is the perfect recipe for champions. The team was led to the championship title through the tireless leadership of their head coach, Dave Atencio, and his commendable staff.

I also congratulate the teachers and parents of this great team. The faculty who supported the Eagles throughout the season must be recognized. No team, no matter how talented and committed, can rise to the level of State Champions without exceptional support and guidance from their teachers and parents.

It is with great pride that I join with the families of Highlands Ranch, Colorado, in congratulating the Valor Christian Eagles on their second straight State Championship.

HONORING ASSISTANT FIRE CHIEF JOHN IZAK OF THE NOTTINGHAM FIRE DEPARTMENT

HON. MICHAEL G. FITZPATRICK

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. FITZPATRICK. Mr. Speaker, I rise today to congratulate Assistant Fire Chief John Izak of the Nottingham Fire Dept. for the swift action that saved the life of a 14-year-old boy who had collapsed on the soccer field. A trained first responder, Mr. Izak, was able to do the right thing at the right time. He assessed the patient, called 911, provided CPR and helped other responders with defibrillation that restarted the heart of Trevor Newhouse.

All of these vital steps led to Trevor's quick diagnosis, treatment and recovery. The Newhouse family, and the entire 8th Congressional District, would like to thank Assistant Chief Izak for his life-saving work and dedication to our community. The greater community also acknowledges all of the first responders who helped in this incident. We appreciate your 24-7 commitment to the residents of Bucks County.

John Izak's selflessness and quick thinking saved a young life. He has set a powerful example for others to follow.

IN RECOGNITION OF MICHAEL SALAZAR

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Ms. SPEIER. Mr. Speaker, I rise to honor Michael Salazar for his six years of service on the San Bruno City Council, the last year as Vice Mayor. I came to know Michael during his first year on the council when a horrendous tragedy killed eight residents and destroyed a neighborhood in the city he represented. Michael rose to the unthinkable challenges related to the PG&E gas pipeline explosion of 2010 and helped guide the city through the aftermath.

Michael served on the council subcommittee on schools, on the subcommittee on utilities and garbage, and he represented San Bruno on the county's Peninsula Clean Energy Advisory Board. He also served on the council committee known as Project Pride. The committee's goal is to instill in San Bruno residents a feeling of pride about the community by increasing communication between ever-larger numbers of San Bruno residents. San Bruno is a wonderful community, and the city's focus on community spirit is an important objective of the council.

During his time on the council, Michael Salazar was also instrumental in establishing the guidelines for the San Bruno Community Foundation, a non-profit created by the City Council to manage a $70 million restitution fund to benefit the entire San Bruno community after the PG&E explosion. Establishing this independent non-profit allows the city to engage very large numbers of residents in setting goals and building more community benefits that will last for decades. Michael has encouraged residents to let their voices be heard before the board of the nonprofit, and to actively engage in helping to set priorities.

On every issue that came before the council, Michael showed deep understanding and commitment to the best possible outcome. Councilman Salazar works in technology, biotechnology and finance, and has done so for over two decades. The council and the residents benefited greatly from his years of experience in the private sector. He was exhaustive in his examination of the city's budgets, and encouraged city staff to explore new ways to deliver city services.

There have been many difficult issues confronted in the remarkable community of San Bruno during the time that Michael served on the council. These include but are not limited to downtown height limits, grade separating Caltrain, dealing with the aftermath of the 2010 gas pipeline explosion, reducing city expenditures during the recession, and identifying priorities and funding mechanisms for the replacement of aging public infrastructure. Michael was unfailingly respectful towards his colleagues and the public during these long conversations.

San Bruno is a city that pays special attention to children, and it has many active houses of worship. Michael coached several youth sports leagues, such as Tee Ball, Jr. Giants Baseball and AYSO Soccer. He has been very active in the schools and at Saint Robert's Catholic Church where he serves as a Eucharistic minister, helped with a children's liturgy group and served as a member of the social concerns committee. As a longtime board member of St. Robert's and chairman of the parish festival, he volunteered many hours of his time. He also regularly participates in San Bruno's Building Together projects and the annual Clean Sweep event.

Michael was born in San Francisco and holds a Bachelor's degree in Aerospace Engineering from California Polytechnic State University at San Luis Obispo and a Master of Business Administration degree from the University of Rochester, New York.

Michael and his wife, Sandra, have been married for 18 years and have two sons, Michael and Nicholas.

Mr. Speaker, I ask the House of Representatives to rise with me to honor my good friend and colleague Michael Salazar. I deeply admire and respect him for his integrity, diligence and commitment to others. As an unfailingly polite voice during times of challenge, he set the gold standard for patience when tried by circumstance. He will be missed but fondly remembered as he begins a new life of private endeavor after his distinguished years in service to his outstanding community of San Bruno.

SENSE OF CONGRESS ON ENSURING PROMPT PAYMENT OF DEPARTMENT OF TRANSPORTATION DISADVANTAGED BUSINESS ENTERPRISES

HON. GWEN MOORE

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Ms. MOORE. Mr. Speaker, small businesses owned by disadvantaged minorities (DBEs) are significantly affected when they are not promptly paid for the work that they do. Lack of prompt payment constitutes a very real barrier to the ability of DBEs to compete in the marketplace. Non-DBE small businesses are also affected by late payment problems.

That is the reason the Department issued its Prompt Payment regulation in the first place.

Under this regulation, ''Payment is required only for satisfactory completion of the subcontractor's work.'' So we are not talking about cases where the prime and subcontractor have a disagreement about the work that was done.

In a recent briefing to my office, the Department of Transportation Inspector General cited the case of a DBE from Florida that got certified as a DBE, bid and won work on an airport project, and satisfactorily completed the work. However, she didn't get paid in a timely manner and eventually was sued by her suppliers who she couldn't pay.

A prompt payment requirement for all subcontractors is a race-neutral measure that assists all subcontractors if they are complied with. However, the concern is that they are not and small disadvantaged businesses which have small margins already, are further squeezed when they aren't paid in a timely manner for work already performed.

In its recent report, the Department of Transportation's Inspector General reaffirmed that failure to promptly pay DBEs continues to be a major barrier and obstacle for these small businesses in the transportation arena.

According to that report, ''for several firms we interviewed, payment delays caused cash flow problems, prevented them from paying subcontractors and suppliers, and subjected them to costly lawsuits.''

That report further noted oversight weaknesses of prompt payment issues raised by DBEs to the FAA. This is not just an FAA issue. Those same concerns are applicable across the Department.

Despite progress in this area, major barriers impede the success of new and existing disadvantaged firms. One of those is delayed payments. If these small businesses don't get paid on time, their likelihood of remaining a viable business drastically decreases.

That is why I am grateful for the inclusion of my amendment to H.R. 22 calling on the Department of Transportation to enforce its current rules better. With that bill now law, I urge the Department to make this a priority and to strengthen efforts to make sure that these small businesses get paid on time for doing the quality work they contracted to do.

TRIBUTE TO HEATHER McKAY

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to honor and congratulate Heather McKay of Atlantic, Iowa, for being selected as the Administrator of the Year by the Iowa Press Association. This award is given to administrators for their dedication and commitment to journalism education in their schools or school districts.

Heather has a background in journalism education and understands the importance that it plays in our society today. She was an English and Journalism teacher at Atlantic High School before becoming the school principal. Throughout Heather's career she has always strived for the best from herself and especially for her students. She is devoted to helping her Atlantic High School students grow and learn so that they have the opportunity to be successful in all they pursue.

Mr. Speaker, I applaud and congratulate Heather for earning this award. She is a shining example of how hard work and dedication can affect the future of our youth. I urge my colleagues in the United States House of Representatives to join me in congratulating Heather and wishing her nothing but continued success.

MEK IN IRAQ

HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. POE of Texas. Mr. Speaker, I am very concerned that we are not doing enough to get the MEK out of Iraq. The MEK are Iranians stuck in a camp in Iraq because they oppose the Supreme Leader of Iran. The Iraqi government has capitulated time and again to the Supreme Leader by allowing armed militants to attack the MEK camp, even though the MEK voluntarily gave up their weapons and have no way to defend themselves. Dozens have died in this inexcusable brutality. The MEK has given us valuable information about Iran's nuclear program and simply wants freedom for all Iranian people. The United States State Department has been dilatory in helping protect these Iranian dissidents. We need to do more to resettle the MEK in another country besides Iraq. They are not safe there.

And that's just the way it is.

IN RECOGNITION OF JEFFREY HAY'S TENURE AS PRESIDENT OF THE BRITISH-AMERICAN BUSINESS COUNCIL

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. HUDSON. Mr. Speaker, I rise today to commemorate the successful tenure of Mr. Jeffrey Hay as President of the British-American Business Council of North Carolina (BABC–NC). For the past three years, Mr. Hay has provided exceptional leadership at the BABC–NC that has resulted in the reemergence of the BABC–NC as a premier chapter in the BABC and has strengthened the business relationship between North Carolina and the United Kingdom.

The BABC is a transatlantic business network designed to give companies and individuals access to partner organizations, both domestic and foreign, in order to strengthen and improve their own businesses. As President of the BABC–NC, Mr. Hay is responsible for ensuring North Carolina businesses and individuals reap the full rewards of being BABC members and expand their presence in North Carolina and the United Kingdom. As a result of his efforts, the BABC–NC has been able to reach more businesses in the state, greatly impacting our state's economy.

In addition to his business-related work within the BABC–NC, Mr. Hay's impact on our community can also be seen through his efforts to help our state's future business leaders. Mr. Hay was instrumental in raising the necessary funds to continue the annual British Studies Summer Program (BSSP), a program that sends a select group of students from the Charlotte area on a two-week travel and study experience to the United Kingdom. This program allows students to gain valuable educational and life experiences which will have a lasting impact on their careers. It is with this focus on enriching the lives of others, coupled with his keen legal and business insights, which made Mr. Hay so successful during his tenure as President of the BABC–NC.

Mr. Speaker, please join me in congratulating Mr. Jeffrey Hay for his successful tenure as President of the British-American Business Council of North Carolina, and thanking him for his dedication to strengthening businesses across the state of North Carolina.

HONORING THE SERVICE OF MAYOR JOHN C. ADDLEMAN

HON. TED LIEU

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. TED LIEU of California. Mr. Speaker, I rise today to honor the Mayor of Rolling Hills Estates, California, John C. Addleman, who is retiring on December 8, 2015, after 18 years of dedicated service on the City Council.

I want to commend Mayor Addleman for his commitment to our mutual constituents of Rolling Hills Estates, as well as residents of the entire Palos Verdes Peninsula and South Bay areas.

Mayor Addleman began his service to Rolling Hills Estates in 1994 by serving on the city's Planning Commission. He served three years on the Planning Commission prior to his election to the City Council in January 1997. Over the years he has served on the Budget and Audit Committee, Regional Law Enforcement Committee, Stable Concessionaire Search Committee, Economic Development Committee and Chamber Liaison, Traffic and Safety Committee Chair, L.A. County Sanitation Districts Board of Directors.

Mayor Addleman has also served on the Palos Verdes Peninsula Transit Authority as Chair, Vice Chair to the South Bay Cities Council of Governments Metro South Bay Governance Council, and as Finance Committee Chair and Executive Member to the Los Angeles County Workforce Investment Board. He has also served on the Executive Board of the California Joint Powers Insurance Authority and on the Transportation Committee of the Southern California Association of Governments.

Through his outstanding service to the community, Mayor Addleman has exemplified the best ideals of a public servant. I am proud to honor Mayor John C. Addleman of Rolling Hills Estates and thank him for his dedication to so many of the residents of the 33rd Congressional District.

PERSONAL EXPLANATION

HON. ALAN S. LOWENTHAL

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. LOWENTHAL. Mr. Speaker, I wish to clarify my position on Roll Call vote 665. On agreeing to the Conference Report to reauthorize the Elementary and Secondary Education Act (ESEA) of 1965, I voted Aye. I wish to explain further why I voted in favor of this reauthorization.

The Every Student Succeeds Act (ESSA) is a good fix to the monolithic standards of No Child Left Behind. Now we have an environment that lets teachers teach and students learn, while maintaining and enhancing the original civil rights intent of the original ESEA.

While ESSA is a significant improvement over current elementary and secondary education standards, I will not claim ESSA is a perfect bill—no bill can ever claim that title. In particular, I was disappointed that all AAPI students will continue to be categorized together as one group when student performance data is aggregated and reported. The

data on AAPI students does not reveal the intricacies of the disparate ethnic groups and at worst, it will mask the hard truth of low-performing subgroups. I am cautiously optimistic that report language included in the accompanying conference report to provide for technical assistance to states who do wish to disaggregate AAPI data will be made a reality.

With ESSA in on its way to becoming the law of the land, it is now the responsibility of the states to hold their schools accountable. I firmly believe the state of California will rise to the occasion and develop the standards which work for our state and our institutions of higher education. I look forward to successful implementation of ESSA which emphasizes equal opportunities for all students.

IN RECOGNITION OF ROBERT G. GOTTSCHALK

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Ms. SPEIER. Mr. Speaker, I rise to honor Robert G. Gottschalk, the current Mayor of Millbrae, California, for his twelve years of service on the Millbrae City Council. Mr. Gottschalk served on the council from 2001–2009 and then again from 2011–2015. He was Mayor for three terms and Vice Mayor for three terms.

Just a few years ago, Millbrae, like most cities on the San Francisco Peninsula, undertook a retrenchment involving substantial budget cuts and changes to service delivery. Although many of these changes arrived shortly before Robert Gottschalk returned to the city council, the city's residents counted on Robert and his colleagues to nurture the experiment into a success. Recently, changes occurred to Millbrae's fire department. In both instances, Robert and his colleagues worked hard to ensure that change delivered value for city residents.

Robert also worked hard to identify a sound development partner for the city in several areas near the Millbrae BART station. Surrounding properties, and BART's own property, hold great promise for residents and the city's treasury. Robert Gottschalk sought to support transit-oriented development throughout this area while also ensuring that existing Millbrae residents benefitted through additional sales tax that may support city services.

For the last three years, Mr. Gottschalk has served on the HEART Board of Directors, an affordable housing fund, that helps to relieve the hardship that too many of our neighbors suffer due to the skyrocketing housing prices in the Bay Area. The lack of affordable housing is unfortunately the defining problem of our time and the leadership of our elected officials is needed to address it.

In his duties on the council, Mayor Gottschalk served on the Finance Committee, the Loan Review Committee, the Airport Land Use Committee and the SFO Airport Community Roundtable. I've been working closely with him and other local and federal officials to solve the airport noise crisis that has become a health problem for many residents in San Mateo County. In his service on the Airport Community Roundtable, and on the council, his legal expertise is invoked to ensure that Millbrae remains as noise-free as possible, and that the community's interests are understood by airport and federal officials.

During his 12 years on the council, Councilman Gottschalk has been part of many milestones in town. He was instrumental in completing the construction of the Millbrae library and the expansion of the countywide library system. As a long-time board member of the Sister Cities Commission, he led the effort and signed friendship city agreements with Kai Ping, China in 2009 and with Hanyu, Japan in 2014. He has traveled to China five times. He has also been very active in improving county emergency services and in relieving traffic congestion.

Mr. Gottschalk brought impressive experience to the city council. He earned a BA from San Jose State University in 1968, an MBA in Finance from UC Berkeley in 1975 and a JD from UC Hastings College of the Law the same year. He has practiced law in Millbrae for 15 years. Prior to that, he had a 21-year-career in the banking industry. He served for 26 years in the military, including on an aircraft carrier in Vietnam, and retired as Captain in the U.S. Navy Reserves.

Mr. Speaker, I ask the House of Representatives to rise with me to honor Robert Gottschalk for his service to the city of Millbrae and to our country. Few are called to serve, and even fewer go willingly into the daily toil of democracy. Whether in our nation's armed forces or as a thoughtful voice of reason on a city council, Robert Gottschalk is one who has contributed greatly to his city and country. It is now time for him to turn over the reins of responsibility to another council, but he does so knowing that he not only did his best on behalf of his community, but that his service is an example of why local democracy in America is the most trusted level of government. We sincerely thank him for a job exceedingly well done.

HONORING JAMES ''LEE'' HUTCHINSON

HON. TODD C. YOUNG

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. YOUNG of Indiana. Mr. Speaker, today, we honor James ''Lee'' Hutchinson for his service to his country and to his community.

A southern Indiana native, Hutchinson served with the U.S. Army Air Corps during the final years of World War II. After attending training to become a radio operator, Hutchinson shipped out with the 490th Bombardment Group of the 8th Air Force. While serving with the ''Mighty Eighth,'' Hutchinson was aboard a B–17 Flying Fortress; he and his crew executed missions deep within Nazi Germany, and often faced anti-aircraft fire and attacks by the German Luftwaffe.

Hutchinson's numerous awards and commendations include, among others, a World War II Victory Medal, European African Middle Eastern Service Medal, and an American Theater Service Medal.

He arrived home at the age of 20 and enrolled in Indiana University with a desire to study history and journalism. He pursued further education after graduating with a Bachelor of Science degree in Education in 1949, and enjoyed a 37 year career in education in the Bedford-North Lawrence school system.

Hutchinson's experiences in World War II inspired him to author ''Through These Eyes: A World War II Eighth Air Force Combat Diary,'' which chronicled his life in the U.S. Army Air Corps. Hutchinson published three more books that detail memorable moments from his life and highlight his record of service.

An accomplished author, educator, and serviceman, Hutchinson remains involved in his home church. Moreover, he served as the president of the local Rotary Club, and is an active member of his Masonic Lodge.

It is a privilege to award James ''Lee'' Hutchinson with Congressional Commendation, and ensure his story is preserved for future generations.

PERSONAL EXPLANATION

HON. DANIEL WEBSTER

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. WEBSTER of Florida. Mr. Speaker, on Rollcall no. 665, I was unavoidably detained off of the House floor. Therefore, I was unable to cast my vote on adoption of the conference report to accompany S. 1177, the Student Success Act.

Had I been present, I would have voted YES.

A TRIBUTE TO SHIRLEY GREGORY-JOHNSON

HON. ROBERT A. BRADY

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. BRADY of Pennsylvania. Mr. Speaker, I rise to honor my dear friend and colleague, Shirley Gregory-Johnson. Shirley has served the people of Philadelphia since her early years. She was active in her Germantown neighborhood in her youth. Subsequently, the people of Logan were lucky enough to have her move into their community and to continue her public service.

Shirley has been a dynamic leader of that community for over thirty years. In 1986, 950 homes in the Logan Triangle were found to be sinking, leaving families homeless and without a future. Shirley led the efforts to rescue affected families, participating in the creation and operations of the nonprofit Logan Assistance Corporation to help relocate Logan residents. She extended her efforts to help her neighbors and constituents by serving on boards such as Albert Einstein Hospital and Bebashi, one of the nation's HIV/AIDS organizations which serves low-income people of color with HIV disease.

Mr. Speaker, Ms. Gregory-Johnson also has a distinguished record of service to this House. She worked in the office of my predecessor, Hon. Tom Foglietta for fifteen years. She was one of my first hires, when I persuaded her to join my staff as District Director in 1998. She retired from the House in January of this year, but continues her public service in various volunteer and political positions.

Shirley will be celebrating her 80th birthday on December 13. Dignitaries and residents of

Philadelphia will come together to honor that milestone and the life of this dynamic leader. I ask that all of my colleagues in the House join me in honoring her today.

This is an honor she richly deserves.

PARIS CLIMATE SUMMIT

HON. BARBARA LEE

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Ms. LEE. Mr. Speaker, I rise today in strong support of the Paris Climate Summit.

This international summit provides us with a historic opportunity to collectively tackle climate change head on.

An agreement from this summit would—for the first time—produce an ambitious, effective, and transparent international work plan.

Thanks to President Obama, our nation has already made real progress in addressing climate change.

The President has taken bold steps with the Clean Power Plan, which sets the first-ever carbon pollution standards for power plants. By 2030, this plan would prevent up to 3,600 premature deaths and 90,000 asthma attacks in children—while spurring economic growth by creating tens of thousands of jobs and saving average families nearly $85 a year in energy costs.

It's a win-win for families, public health and our planet.

Sadly, Republicans are trying to dismantle these and other limits on polluters and pollution at every turn.

Mr. Speaker, we have a moral obligation to protect our world for future generations by investing in renewable energy sources.

I am proud that my district is home to more than 70 solar companies. In the East Bay, our green energy future is rapidly being transformed into a reality.

Now, our nation and the world must join this movement. Too many people, especially in communities of color and low-income communities, are already feeling the impact of climate change on their daily lives. It's past time to address this issue. Our children and grandchildren deserve a planet worth inheriting.

PERSONAL EXPLANATION

HON. DANIEL WEBSTER

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. WEBSTER of Florida. Mr. Speaker, on roll call numbers 656, 658, and 664, I was unavoidably detained off of the House floor. Therefore, I was unable to cast my vote. Had I been present, I would have voted YES.

TRIBUTE TO THE GIRLS' VARSITY VOLLEYBALL TEAM OF CHEROKEE TRAIL HIGH SCHOOL

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. COFFMAN. Mr. Speaker, I rise today to recognize the Girls' Varsity Volleyball team of Cherokee Trail High School in Aurora, Colorado on winning the 2015 Colorado 5A State Championship game on November 14, 2015.

The students and staff who were a part of the title winning Cougar team deserve the utmost respect and commendation for winning in what has been a season full of challenges. Following the tragic death of one of their players, Celeste James, and a serious injury to another, Amazing Ashby, the Cherokee Trail Cougars showed courage in the face of true adversity to complete an amazing title winning season which honored their teammates.

In their dominant performances in the State Championships, the girls of Cherokee Trail High School's volleyball team proved that hard work, dedication, and perseverance is the perfect recipe for champions. These volleyball players were led to the championship title through the tireless leadership of their head coach, Terry Miller, and his commendable staff.

I also congratulate the educators and parents of this superb team. The faculty who supported the Cougars throughout the season must be recognized. No team, no matter how talented and committed, can rise to the level of State Champions without exceptional support and guidance from their teachers and parents.

It is with great pride that I join all of the residents of Aurora, Colorado, in congratulating the Cherokee Trail Cougars on their State Championship.

IN RECOGNITION OF ROSANNE S. FOUST

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Ms. SPEIER. Mr. Speaker, I rise to honor Rosanne S. Foust for twelve years of exemplary service on the City Council of Redwood City, including two years as Mayor and Vice Mayor. She leaves with a distinguished legacy of leadership, innovation and lasting contributions to the residents of Redwood City. I've had the great pleasure to work with Rosanne on many occasions and am fortunate to call her a good friend.

Rosanne brought decades of business experience to the council. She is the President and CEO of the San Mateo County Economic Development Association, SAMCEDA, the oldest countywide business organization on the Peninsula. Before that, Rosanne had a successful 20-year career with Alsace Development International USA, an international trade and development company.

During her time on the council, Rosanne served on the San Mateo County Transportation Authority. The transportation authority creates roads and mass transit infrastructure. Service on the board is difficult because there is never enough money to meet the needs of a booming economy. While prioritizing local projects and negotiating amongst local agencies, Rosanne Foust quickly became known for her fair and well-reasoned approach to identifying community transportation priorities. Her transportation decisions exemplified the maxim "Think globally, act locally."

Her dedication to the community is also demonstrated by her service on the city's Planning Commission, the San Francisco Bay Restoration Authority, the Bay Area Council Economic Institute and through her public service programming at Peninsula Television. She is also a long-time member of the Redwood City-San Mateo County Chamber of Commerce and the Rotary Club.

Business cannot survive without water. When the water supply for San Francisco and the Peninsula was endangered by an ill-conceived ballot measure in San Francisco, Rosanne led the local effort in the successful campaign to defeat the measure.

Rosanne Foust never loses sight of the people left behind by our booming economy. She is a champion of affordable housing and understands how skyrocketing housing prices and rents are squeezing working families out of the Bay Area. Just recently, she led the city council to increase the number of affordable housing units within a new downtown project of 2,500 housing units from the proposed 250 apartments to the final agreement—375. More than 125 additional working families will now be able to live in downtown Redwood City. This is just one of many examples of her advocacy on behalf of equal economic opportunity.

Redwood City is fortunate to have a leader in Rosanne Foust. She has served as the treasurer and board member of Casa de Redwood, a low-cost housing complex for 136 senior citizens. Rosanne was willing to take time from her family and business priorities to serve as a steward of housing for these otherwise vulnerable members of our community. In Rosanne Foust, the community has had a vocal advocate for social justice.

Her tireless efforts to benefit our community have not gone unnoticed. The San Francisco Business Times honored her as one of the "Most Influential Women in Business in the Bay Area" in 2009 and 2010 and a member of the "Forever Influential Honor Roll" for 2011, 2012 and 2013. Notre Dame de Namur University honored her as the first Alumna of Distinction in 2013. The Redwood City Chamber of Commerce named her Person of the Year in 2002 and 2013 and Athena Businesswoman of the Year in 2002.

Rosanne was born and raised in Connecticut. She earned an MA in Public Administration and a BA in International Studies and Economics. She also completed executive management programs at Stanford University and UCLA's Anderson Graduate School of Management. Rosanne is married to Jim Hartnett and they are the proud parents of Julia and Lydia Foust and Josh and Jake Hartnett.

Mr. Speaker, I ask the House of Representatives to rise with me to thank Rosanne Foust for twelve years of public service on the City Council of Redwood City. She will now relinquish to others the duties of diligent analysis and thoughtful commentary on the issues that shape her city each day. Her example sets a high standard for those who follow. Rosanne Foust led Redwood City with her heart, and its residents will forever benefit by that remarkable contribution to its future.

TRIBUTE TO BRIGADIER GENERAL JENNIFER WALTER

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Brigadier General Jennifer Walter on her retirement from the Iowa Air National Guard. In 2012, General Walter became the first female general officer in the history of the Iowa Air National Guard. She now retires with 40 years of dedicated service to the U.S. Air Force and Air National Guard.

General Walter received her first commission of Second Lieutenant in 1986 after attending Officer Training School at the Academy of Military Science. Before becoming the first female general officer of the Iowa Air National Guard in 2012, General Walter served in numerous command positions, among them as the first female Iowa Air National Guard group commander, squadron commander, and non-medical colonel. General Walter has deployed in operations around the world, including Operation Southern Watch in Al Jaber, Kuwait, and as the 755th Air Expeditionary Group Commander with the Bagram Air Base in Afghanistan.

General Walter's military awards and decorations include the Bronze Star, the Meritorious Service Medal, Air Force Commendation Medal, Air Force Achievement Medal, Meritorious Unit Award, Air Force Outstanding Unit Award, Air Reserve Forces Meritorious Service Medal, National Defense Service Medal, Afghanistan Campaign Medal, Global War On Terrorism Service Medal, Humanitarian Service Medal, Air Force Overseas Ribbon Short, Air Force Expeditionary Service Ribbon with Gold Border, Air Force Longevity Service, Armed Forces Reserve Medal with M Device (more than 37 years of service), Small Arms Expert Marksmanship Ribbon, NATO medal, and the Iowa National Guard Meritorious Service Medal.

Mr. Speaker, it is a profound honor to represent General Walter in the United States Congress, and it is with great pride that I recognize and applaud her for years of dedicated service to the United States of America. I invite my colleagues in the United States House or Representatives to join me in congratulating her on her retirement, and wishing her nothing but the best moving forward.

RECOGNIZING THE LIFE AND LEGACY OF JOY MCDUFFIE

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. HIGGINS. Mr. Speaker, I stand before you today to recognize and honor the life and legacy of Ms. Joy Wiley McDuffie, whose death on November 21st, 2015 at age 59 was a loss not only to her large and loving family and friends but to my hometown of Buffalo, New York where she was a true champion for fairness and equality in the city she loved so much.

A woman of courage and conviction, Joy McDuffie will be long remembered as a highly respected and motivated community activist dedicated to social justice, fair housing and a better future for Buffalo's children.

Born and raised in Buffalo, Joy was the third of twelve children. She personified her belief in the value of life-long education as she earned her associate's and bachelor's degrees and eventually received her master's degree in Urban and Regional Planning from the University of Buffalo at age 50. Her work ethic was indisputable as she served as a business analyst in the private sector, and put her experience and social skills to great success as the owner and operator of ''Club Joy.''

She would later use her experience as the owner of a development company that purchased and restored homes as a GIS analyst and housing counselor with the Western New York Law Center. In this capacity, Joy McDuffie brought real data and a real commitment to ensure increased opportunities and greater access for all those wanting to own their own home.

Her passion for stronger neighborhoods and no-nonsense approach to problem solving made her an ideal Chairperson for the Distressed Properties Task Force in the City of Buffalo. She was a force as, under her leadership, this committee was re-energized with a renewed focus on reducing vacant and abandoned properties in the city she fought for and helped make so much stronger.

COLONEL GLENN W. SANDERS

HON. DARRELL E. ISSA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Mr. ISSA. Mr. Speaker, I rise to pay tribute to Colonel Glenn W. Sanders for his past three years of dedicated service as a Legislative Liaison for the Army Reserve. I wish him well in his next assignment as an instructor at the U.S. Army War College, Carlisle Barracks, Pennsylvania.

Colonel Sanders is currently assigned as the Legislative Liaison for the 81st Regional Support Command at Fort Jackson, South Carolina. During the last three years, he supported Army Reserve units across the southeastern United States, meeting with Congressional staff and Federal, State and Local elected officials.

Prior to this assignment, Colonel Sanders served one year in the International Security Assistance Force Joint Command in Afghanistan, working as the Executive Officer to the Command's Operations Officer. From 2008 to 2011, he served on Capitol Hill as a Congressional Fellow and then as a Liaison in the Army House Liaison Division. His previous assignments include Mobilization Division Chief, Assistant Professor of Military Science, Battalion Operations Officer, Detachment Commander, Battery Commander, Squadron Fire Support Officer, Battery Executive Officer, Troop Fire Support Officer and Platoon Leader.

Colonel Sanders holds a Masters of Strategic Studies from the United States Army War College; a Masters of Public Administration from California State University, Northridge; a Bachelor of Arts in Political Science from the University of California, Riverside; and a Certificate in Legislative Studies from the Government Affairs Institute at Georgetown University.

He is a graduate of the Army War College, Reserve Component National Security Course, Defense Strategy Course, Command and General Staff College, and the Field Artillery Basic and Advanced Officer Courses.

His awards and decorations include the Defense Meritorious Service Medal, Meritorious Service Medal with three Oak Leaf Clusters, Afghanistan Campaign Medal, Armed Forces Service Medal, United Nations Medal, NATO Medal and Army Staff Identification Badge. He is a recipient of the Order of Saint Maurice from the National Infantry Association.

I wish Colonel Sanders, his wife Kari and his daughters Kira and Kelli well as they move to Carlisle, Pennsylvania.

IN RECOGNITION OF STEVE OKAMOTO

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 8, 2015

Ms. SPEIER. Mr. Speaker, I rise to honor Steve Okamoto for his four years of service on the Foster City City Council, and for his many significant contributions to our community.

During his term, Steve was instrumental in accomplishing many objectives that have shaped Foster City. The parks system was built out as Werder Park and Destination Park were completed this year. In 2014, the city's smoking ordinance was implemented, the implementation of the fire management shared services model with San Mateo and Belmont was completed, a gatekeeper ordinance for development projects was implemented, a synthetic softball/soccer field at Edgewater Park was completed, and a 15-acre site was sold and developed into the new Foster Square. In 2013, Phase III of the Levee Pedway Repair Project was completed, a synthetic soccer/baseball filed at Sea Cloud Park and a synthetic soccer field/walking track at Port Royal Park were completed and finally the voters approved Business License Tax Measure U.

Additionally, Steve served on the Airport Community Roundtable, the Airport Land Use Committee, the Peninsula Traffic Congestion Relief Alliance, as the liaison to the San Mateo-Foster City Elementary School District, and as the liaison to the City's Parks and Recreation Commission.

Steve's commitment to the residents and community of Foster City has been unshakable. He has been a resident for over 34 years and he and his wife Diana have raised their family there. They are the proud parents of two grown children, Brad, 32 and Katie, 31.

Steve was born in San Francisco, attended Lowell High School, and graduated from UC Berkeley with a degree in business. He had a successful career in the financial industry for almost four decades and then worked for the American Cancer Society for ten years raising tens of millions of dollars for the agency. When he was elected to the city council, he retired from the American Cancer Society so that he could devote all of his time and energy to his new responsibilities.

During his service, he's been a voice of reason and responsibility while on the city council, and a person deeply concerned about the

future of his community. I take special note of his concern about the impact of airport noise on the residents of Foster City. For several years, he has served on the San Francisco Airport Community Roundtable and worked closely with my office to reduce the number of overflights of jet aircraft approaching San Francisco International Airport. His work culminated in a recent agreement with the FAA that would, in part, have the FAA examine whether it is feasible to use a slightly different approach to the airport. If, at some point in the future, the residents of Foster City sleep better at night, they will have Steve Okamoto, in part, to thank for that outcome.

In his broader public service, Steve has for years educated our community about the civil rights tragedy that we know as the internment of Japanese American citizens at the start of World War II. He and his committee of volunteers are actively raising funds to create a memorial at the site of the Tanforan Assembly Center that was the starting point for the transportation of Japanese Americans into the heartland of America during a time when racism and a failure of political leadership allowed our fellow citizens to be incarcerated for no reasons other than fear and bigotry. Steve was himself interned in his early years. America has since apologized for this historic injustice, and when the Tanforan Memorial is constructed it will be a lasting reminder in our community that we can never let anger and bigotry trample the civil rights of our fellow Americans.

Deeply dedicated to the dignity of seniors, Steve also serves as honorary chair of Komochi, San Mateo, a community service organization that delivers services in the Japanese tradition of respect and care for the elderly.

Mr. Speaker, I ask the House of Representatives to rise with me to honor an extraordinary public servant, human being and good friend. Steve Okamoto is one of the most conscientious people I know, and he has always dedicated himself entirely to any task at hand. When Steve speaks, our community listens. When we look amongst us for an outstanding citizen, we see Steve Okamoto. We will miss him in public life, but will certainly have his guidance through private actions for years to come.

CORRECTION

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S8445–S8505

Measures Introduced: Thirteen bills and one resolution were introduced, as follows: S. 2363–2375, and S. Res. 331. **Page S8494**

Measures Reported:

S. 1616, to provide for the identification and prevention of improper payments and the identification of strategic sourcing opportunities by reviewing and analyzing the use of Federal agency charge cards. (S. Rept. No. 114–174)

S. 2044, to prohibit the use of certain clauses in form contracts that restrict the ability of a consumer to communicate regarding the goods or services offered in interstate commerce that were the subject of the contract, with an amendment in the nature of a substitute. (S. Rept. No. 114–175)

Report to accompany S. 2152, to establish a comprehensive United States Government policy to encourage the efforts of countries in sub-Saharan Africa to develop an appropriate mix of power solutions, including renewable energy, for more broadly distributed electricity access in order to support poverty reduction, promote development outcomes, and drive economic growth. (S. Rept. No. 114–176)

S. 2368, to amend title XVIII of the Social Security Act to improve the efficiency of the Medicare appeals process. (S. Rept. No. 114–177) **Page S8492**

Measures Passed:

Recognize, Assist, Include, Support, and Engage Family Caregivers Act: Senate passed S. 1719, to provide for the establishment and maintenance of a National Family Caregiving Strategy, after agreeing to the committee amendment in the nature of a substitute. **Pages S8499–S8500**

World Press Freedom Day: Senate agreed to S. Res. 207, recognizing threats to freedom of the press and expression around the world and reaffirming freedom of the press as a priority in efforts of the United States Government to promote democracy and good governance, after agreeing to the following amendment proposed thereto: **Pages S8500–01**

McConnell (for Casey) Amendment No. 2921, to amend the preamble. **Pages S8500–01**

Wreaths Across America Day: Senate agreed to S. Res. 331, designating December 12, 2015, as "Wreaths Across America Day". **Pages S8501–02**

Conference Reports:

Every Child Achieves Act—Agreement: Senate resumed consideration of the conference report to accompany S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves. **Pages S8447–79**

During consideration of this measure today, Senate also took the following action:

By 84 yeas to 12 nays (Vote No. 333), three-fifths of those Senators duly chosen and sworn, having voted in the affirmative, Senate agreed to the motion to close further debate on the conference report to accompany the bill. **Page S8453**

A unanimous-consent agreement was reached providing that notwithstanding the provisions of rule XXII, the vote on adoption of the conference report to accompany the bill occur at 10:45 a.m., on Wednesday, December 9, 2015. **Page S8453**

A unanimous-consent agreement was reached providing for further consideration of the conference report to accompany the bill at approximately 10 a.m., on Wednesday, December 9, 2015, with the time until 10:45 a.m. equally divided between the two Leaders, or their designees. **Page S8502**

Removal of Injunction of Secrecy: The injunction of secrecy was removed from the following treaty:

Treaty with Jordan on Mutual Legal Assistance in Criminal Matters (Treaty Doc. No. 114–4).

The treaty was transmitted to the Senate today, considered as having been read for the first time, and referred, with accompanying papers, to the Committee on Foreign Relations and ordered to be printed. **Page S8502**

Messages from the House: **Page S8484**

Executive Communications: **Pages S8484–86**

Petitions and Memorials: **Pages S8486–92**

Executive Reports of Committees: **Pages S8492–94**

Additional Cosponsors: **Pages S8494–95**

Statements on Introduced Bills/Resolutions: Pages S8495–98

Additional Statements: Page S8483

Amendments Submitted: Page S8498

Authorities for Committees to Meet: Pages S8498–99

Privileges of the Floor: Page S8499

Record Votes: One record vote was taken today. (Total—333) Page S8453

Adjournment: Senate convened at 10 a.m. and adjourned at 6:26 p.m., until 10 a.m. on Wednesday, December 9, 2015. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S8502.)

Committee Meetings

(Committees not listed did not meet)

PENTAGON POLICY, STRATEGY, AND PLANS

Committee on Armed Services: Committee concluded a hearing to examine improving the Pentagon's development of policy, strategy, and plans, after receiving testimony from Michèle A. Flournoy, former Under Secretary of Defense for Policy, Center for a New American Security; Michael G. Vickers, former Under Secretary of Defense for Intelligence; and Commander Jeff Eggers, USN (Ret.), former Special Assistant to the President for National Security Affairs, New America.

MAGNITUDE OF HUMAN IMPACT ON EARTH'S CLIMATE

Committee on Commerce, Science, and Transportation: Committee concluded a hearing to examine promoting open inquiry in the debate over the magnitude of human impact on earth's climate, after receiving testimony from John R. Christy, University of Alabama in Huntsville Earth System Science Center, Huntsville; Judith A. Curry, Georgia Institute of Technology School of Earth and Atmospheric Sciences, Atlanta; William Happer, Princeton University, Princeton, New Jersey; Mark Steyn, *"A Disgrace to the Profession": The World's Scientists—in Their Own Words—On Michael E Mann, His Hockey Stick, and Their Damage to Science, Volume One*, Woodsville, New Hampshire; and Rear Admiral David W. Titley, USN (Ret.), Pennsylvania State University Center for Solutions to Weather and Climate Risk, University Park.

NATIONAL PARK SERVICE CENTENNIAL ACT

Committee on Energy and Natural Resources: Committee concluded a hearing to examine S. 2257, to prepare the National Park Service for its Centennial in 2016 and for a second century of protecting our national parks' natural, historic, and cultural resources for present and future generations, after receiving testimony from Jonathan B. Jarvis, Director, National Park Service, Department of the Interior; and Will Shafroth, National Park Foundation, Derrick Crandall, National Park Hospitality Association, and Theresa Pierno, National Parks Conservation Association, all of Washington, D.C.

BUSINESS MEETING

Committee on Foreign Relations: Committee ordered favorably reported the following business items:

S. Res. 189, expressing the sense of the Senate regarding the 25th anniversary of democracy in Mongolia;

S. Res. 326, celebrating the 135th anniversary of diplomatic relations between the United States and Romania;

S. Res. 320, congratulating the people of Burma on their commitment to peaceful elections, with amendments; and

The nominations of Catherine Ebert-Gray, of Virginia, to be Ambassador to the Independent State of Papua New Guinea, and to serve concurrently and without additional compensation as Ambassador to the Solomon Islands and Ambassador to the Republic of Vanuatu, John D. Feeley, of the District of Columbia, to be Ambassador to the Republic of Panama, Linda Swartz Taglialatela, of New York, to be Ambassador to Barbados, and to serve concurrently and without additional compensation as Ambassador to the Federation of St. Kitts and Nevis, Saint Lucia, Antigua and Barbuda, the Commonwealth of Dominica, Grenada, and Saint Vincent and the Grenadines, Todd C. Chapman, of Texas, to be Ambassador to the Republic of Ecuador, Jean Elizabeth Manes, of Florida, to be Ambassador to the Republic of El Salvador, G. Kathleen Hill, of Colorado, to be Ambassador to the Republic of Malta, Eric Seth Rubin, of New York, to be Ambassador to the Republic of Bulgaria, Kyle R. Scott, of Arizona, to be Ambassador to the Republic of Serbia, David McKean, of Massachusetts, to be Ambassador to Luxembourg, and routine lists in the Foreign Service, all of the Department of State, and Carlos J. Torres, of Virginia, to be Deputy Director of the Peace Corps.

MILLENNIUM CHALLENGE CORPORATION

Committee on Foreign Relations: Committee concluded a hearing to examine the Millennium Challenge Corporation, focusing on lessons learned after a decade and outlook for the future, after receiving testimony from Dana J. Hyde, Chief Executive Officer, Millennium Challenge Corporation; Jim Kolbe, The German Marshall Fund of the United States, and Nancy Birdsall, Center for Global Development, both of Washington, D.C.; and Andrew S. Natsios, Scowcroft Institute of International Affairs and Texas A&M University George H. W. Bush School of Government and Public Service, College Station.

OPIOID ABUSE IN AMERICA

Committee on Health, Education, Labor, and Pensions: Committee concluded a hearing to examine opioid abuse in America, focusing on facing the epidemic and examining solutions, after receiving testimony from Leana Wen, Baltimore City Health Commissioner, Baltimore, Maryland; Robert J. Valuck, University of Colorado Skaggs School of Pharmacy and Pharmaceutical Science, Aurora; and Eric Spofford, The Granite House, Derry, New Hampshire.

AB INBEV/SABMILLER MERGER

Committee on the Judiciary: Subcommittee on Antitrust, Competition Policy and Consumer Rights concluded a hearing to examine the AB InBev/SABMiller merger and the state of competition in the beer industry, after receiving testimony from Carlos Brito, AB InBev, Greenwich, Connecticut; Bob Pease, Brewers Association, and Diana L. Moss, American Antitrust Institute, both of Boulder, Colorado; Craig Purser, National Beer Wholesalers Association, Alexandria, Virginia; J. Wilson, Iowa Brewers Guild, Prescott; and Mark Hunter, Molson Coors, Denver, Colorado.

INTELLIGENCE

Select Committee on Intelligence: Committee held closed hearings on intelligence matters, receiving testimony from officials of the intelligence community.

Committee recessed subject to the call.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 9 public bills, H.R. 4185–4193; and 3 resolutions, H. Res. 555, 557, 558 were introduced. **Page H9079**

Additional Cosponsors: **Pages H9080–81**

Reports Filed: Reports were filed today as follows:

H.R. 3578, to amend the Homeland Security Act of 2002 to strengthen and make improvements to the Directorate of Science and Technology of the Department of Homeland Security, and for other purposes, with an amendment (H. Rept. 114–372);

H.R. 974, to direct the Secretary of the Interior to promulgate regulations to allow the use of hand-propelled vessels on certain rivers and streams that flow in and through certain Federal lands in Yellowstone National Park, Grand Teton National Park, the John D. Rockefeller, Jr. Memorial Parkway, and for other purposes, with an amendment (H. Rept. 114–373);

H.R. 1452, to authorize Escambia County, Florida, to convey certain property that was formerly part of Santa Rosa Island National Monument and that was conveyed to Escambia County subject to restrictions on use and reconveyance (H. Rept. 114–374); and H. Res. 556, providing for consideration of the bill (H.R. 2130) to provide legal certainty to property owners along the Red River in Texas, and for other purposes, and providing for consideration of motions to suspend the rules (H. Rept. 114–375). **Pages H9078–79**

Speaker: Read a letter from the Speaker wherein he appointed Representative Jolly to act as Speaker pro tempore for today. **Page H9027**

Recess: The House recessed at 10:45 a.m. and reconvened at 12 noon. **Page H9032**

Committee Resignation: Read a letter from Representative Buchanan wherein he resigned from the Committee on the Budget. **Page H9032**

Committee Election: The House agreed to H. Res. 555, electing a Member to a certain standing committee of the House of Representatives. **Page H9032**

Motion to Adjourn: Rejected the Thompson (CA) motion to adjourn by a yea-and-nay vote with none voting ''yea'' and 399 voting ''nay'', Roll No. 674. **Pages H9036–37**

Motion to Adjourn: Rejected the Kildee motion to adjourn by a yea-and-nay vote with none voting ''yea'', 405 voting ''nay'', and 2 answering ''present'', Roll No. 675. **Pages H9040–41**

Motion to Adjourn: Rejected the Swalwell (CA) motion to adjourn by a yea-and-nay vote of 3 yeas

to 399 nays with 2 answering "present", Roll No. 676. Page H9041

Motion to Adjourn: Rejected the Speier motion to adjourn by a yea-and-nay vote of 4 yeas to 394 nays with 2 answering "present", Roll No. 677. Page H9045

Motion to Adjourn: Rejected the Capps motion to adjourn by a yea-and-nay vote of 7 yeas to 398 nays with 4 answering "present", Roll No. 678. Page H9047

Suspensions: The House agreed to suspend the rules and pass the following measures:

Federal Law Enforcement Training Centers Reform and Improvement Act of 2015: H.R. 3842, amended, to improve homeland security, including domestic preparedness and response to terrorism, by reforming Federal Law Enforcement Training Centers to provide training to first responders, by a ⅔ yea-and-nay vote of 420 yeas to 2 nays, Roll No. 680; Pages H9037–40, H9062

HSA Technical Corrections Act: H.R. 3859, amended, to make technical corrections to the Homeland Security Act of 2002; Pages H9041–47

Visa Waiver Program Improvement Act of 2015: H.R. 158, amended, to clarify the grounds for ineligibility for travel to the United States regarding terrorism risk, to expand the criteria by which a country may be removed from the Visa Waiver Program, to require the Secretary of Homeland Security to submit a report on strengthening the Electronic System for Travel Authorization to better secure the international borders of the United States and prevent terrorists and instruments of terrorism from entering the United States, by a ⅔ yea-and-nay vote of 407 yeas to 19 nays, Roll No. 679; Pages H9047–62

Agreed to amend the title so as to read: "To amend the Immigration and Nationality Act to provide enhanced security measures for the visa waiver program, and for other purposes.". Pages H9061–62

Foreign Aid Transparency and Accountability Act of 2015: H.R. 3766, amended, to direct the President to establish guidelines for United States foreign development and economic assistance programs. Pages H9063–67

Conference report filing: Agreed that the managers on the part of the House have until midnight tonight, December 8th, to file the conference report to accompany H.R. 644, to reauthorize trade facilitation and trade enforcement functions and activities. Page H9062

Providing for the extension of the enforcement instruction on supervision requirements for outpatient therapeutic services in critical access and small rural hospitals through 2015: The House agreed to discharge from committee and pass S. 1461, to provide for the extension of the enforcement instruction on supervision requirements for outpatient therapeutic services in critical access and small rural hospitals through 2015. Pages H9062–63

Designating the arboretum at the Hunter Holmes McGuire VA Medical Center in Richmond, Virginia, as the "Phyllis E. Galanti Arboretum": The House agreed to discharge from committee and pass H.R. 2693, to designate the arboretum at the Hunter Holmes McGuire VA Medical Center in Richmond, Virginia, as the "Phyllis E. Galanti Arboretum". Page H9063

Quorum Calls—Votes: Seven yea-and-nay votes developed during the proceedings of today and appear on pages H9036–37, H9040, H9041, H9045, H9047, H9061, H9062. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 7:37 p.m.

Committee Meetings

PROMPT GLOBAL STRIKE: AMERICAN AND FOREIGN DEVELOPMENTS

Committee on Armed Services: Subcommittee on Strategic Forces held a hearing entitled "Prompt Global Strike: American and Foreign Developments". Testimony was heard from public witnesses.

AN OVERDUE CHECKUP PART II: EXAMINING THE ACA'S STATE INSURANCE MARKETPLACES

Committee on Energy and Commerce: Subcommittee on Oversight and Investigations held a hearing entitled "An Overdue Checkup Part II: Examining the ACA's State Insurance Marketplaces". Testimony was heard from Andy Slavitt, Acting Administrator, Centers for Medicare and Medicaid Services.

OVERSIGHT OF THE FINANCIAL STABILITY OVERSIGHT COUNCIL

Committee on Financial Services: Full Committee held a hearing entitled "Oversight of the Financial Stability Oversight Council". Testimony was heard from Mary Jo White, Chair, Securities and Exchange Commission; Timothy G. Massad, Chairman, Commodity Futures Trading Commission; S. Roy Woodall, Jr., Independent Member with Insurance Expertise, Financial Stability Oversight Council; Debbie Matz, Chairwoman, National Credit Union Administration; Melvin L. Watt, Director, Federal Housing Finance Agency; Martin J. Gruenberg, Chairman, Federal Deposit Insurance Corporation;

Richard Cordray, Director, Bureau of Consumer Financial Protection; and Thomas J. Curry, Comptroller of the Currency, Office of the Comptroller of the Currency.

MISCELLANEOUS MEASURES

Committee on Financial Services: Full Committee began a markup on H.R. 2187, the "Fair Investment Opportunities for Professional Experts Act"; H.R. 2205, the "Data Security Act of 2015"; H.R. 2287, the "National Credit Union Administration Budget Transparency Act"; H.R. 3700, the "Housing Opportunity Through Modernization Act of 2015"; H.R. 3784, the "SEC Small Business Advocate Act of 2015"; H.R. 3791, to raise the consolidated assets threshold under the small bank holding company policy statement, and for other purposes; H.R. 4168, the "Small Business Capital Formation Enhancement Act"; and Task Force to Investigate Terrorism Financing Resolution of 2016.

CIVIL NUCLEAR COOPERATION WITH PAKISTAN: PROSPECTS AND CONSEQUENCES

Committee on Foreign Affairs: Subcommittee on Terrorism, Nonproliferation, and Trade held a hearing entitled "Civil Nuclear Cooperation with Pakistan: Prospects and Consequences". Testimony was heard from public witnesses.

DRUG RESISTANT TUBERCULOSIS: THE NEXT GLOBAL HEALTH CRISIS?

Committee on Foreign Affairs: Subcommittee on Africa, Global Health, Global Human Rights, and International Organizations held a hearing entitled "Drug Resistant Tuberculosis: The Next Global Health Crisis?". Testimony was heard from Tom Frieden, Director, Centers for Disease Control and Prevention; Ariel Pablos-Mendez, Assistant Administrator, Bureau for Global Health, U.S. Agency for International Development.

EXAMINING TSA'S GLOBAL EFFORTS TO PROTECT THE HOMELAND FROM AVIATION THREATS AND ENHANCE SECURITY AT LAST POINT OF DEPARTURE AIRPORTS

Committee on Homeland Security: Subcommittee on Transportation Security held a hearing entitled "Examining TSA's Global Efforts to Protect the Homeland from Aviation Threats and Enhance Security at Last Point of Departure Airports". Testimony was heard from Joseph P. Terrell, Deputy Assistant Administrator, Office of Global Strategies, Transportation Security Administration, Department of Homeland Security.

ENSURING CERTAINTY FOR ROYALTY PAYMENTS ON FEDERAL RESOURCE PRODUCTION

Committee on Natural Resources: Subcommittee on Energy and Mineral Resources held a hearing entitled "Ensuring Certainty for Royalty Payments on Federal Resource Production". Testimony was heard from Gregory Gould, Director, Office of Natural Resources Revenue, Department of the Interior; and public witnesses.

LEGISLATIVE MEASURE

Committee on Natural Resources: Subcommittee on Indian, Insular and Alaska Native Affairs held a hearing on H.R. 3764, the "Tribal Recognition Act of 2015" (Part II). Testimony was heard from Sean D. Reyes, Attorney General, State of Utah; Nicholas H. Mullane II, Selectman, Town of North Stonington, Connecticut; and public witnesses.

REVIEW OF THE NEW LONDON EMBASSY PROJECT

Committee on Oversight and Government Reform: Full Committee held a hearing entitled "Review of the New London Embassy Project". Testimony was heard from the following Department of State officials: Lydia Muniz, Director, Bureau of Overseas Buildings Operations; Gregory B. Starr, Assistant Secretary, Bureau of Diplomatic Security; Steve A. Linick, Inspector General, Office of the Inspector General.

EXAMINING THE STREAM PROTECTION RULE

Committee on Oversight and Government Reform: Subcommittee on the Interior; and Subcommittee on Health Care, Benefits and Administrative Rules, held a joint hearing entitled "Examining the Stream Protection Rule". Testimony was heard from Janice Schneider, Assistant Secretary for Land and Minerals Management, Department of the Interior.

MOVING AHEAD FOR PROGRESS IN THE 21ST CENTURY PROGRAM CONSOLIDATION

Committee on Oversight and Government Reform: Subcommittee on Transportation and Public Assets held a hearing entitled "Moving Ahead for Progress in the 21st Century (MAP–21) Program Consolidation". Testimony was heard from Carlos Swonke, Director, Environmental Affairs, Texas Department of Transportation; Thomas G. Echikson, Chief Counsel, Federal Highway Administration, Department of Transportation; and a public witness.

RED RIVER PRIVATE PROPERTY PROTECTION ACT

Committee on Rules: Full Committee held a hearing on H.R. 2130, the "Red River Private Property Protection Act". The committee granted, by voice vote, a structured rule for H.R. 2130. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on Natural Resources. The rule waives all points of order against consideration of the bill. The rule makes in order as original text for the purpose of amendment the amendment in the nature of a substitute recommended by the Committee on Natural Resources now printed in the bill and provides that it shall be considered as read. The rule waives all points of order against that amendment in the nature of a substitute. The rule makes in order only those further amendments printed in the Rules Committee report. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendments printed in the report. The rule provides one motion to recommit with or without instructions. In section 2, the rule provides that it shall be in order at any time through the calendar day of December 13, 2015, for the Speaker to entertain motions that the House suspend the rules and that the Speaker or his designee shall consult with the Minority Leader or her designee on the designation of any matter for consideration pursuant to this section. Testimony was heard from Representatives McClintock, Polis, and Cole.

THE FUTURE OF BIOTECHNOLOGY: SOLUTIONS FOR ENERGY, AGRICULTURE AND MANUFACTURING

Committee on Science, Space, and Technology: Subcommittee on Research and Technology held a hearing entitled "The Future of Biotechnology: Solutions for Energy, Agriculture and Manufacturing". Testimony was heard from public witnesses.

LEGISLATIVE MEASURES

Committee on Veterans' Affairs: Subcommittee on Health held a hearing on H.R. 3262, to provide for the conveyance of land of the Illiana Health Care System of the Department of Veterans Affairs in Danville, Illinois; H.R. 3484, the "Los Angeles Homeless Veterans Leasing Act of 2015"; H.R. 4056, to authorize the Secretary of Veterans Affairs to convey to the Florida Department of Veterans Affairs all right, title, and interest of the United States to the property known as "The Community Living Center" at the Lake Baldwin Veterans Affairs Outpatient Clinic, Orlando, Florida; draft of a bill to amend the Veterans' Benefits Programs Improvement Act of 1991 to authorize VA to sell Pershing Hall; and VA's legislative proposal regarding fiscal year 2016 construction projects. Testimony was heard from Representatives Shimkus; Ted Lieu of California; Mica; McNerney; and Coffman; Stella S. Fiotes, Director of the Office of Construction and Facilities Management, Office of Acquisition, Logistics, and Construction, Department of Veterans Affairs; and public witnesses.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, DECEMBER 9, 2015

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Armed Services: to hold hearings to examine the United States strategy to counter the Islamic State of Iraq and the Levant and United States policy toward Iraq and Syria, 9:30 a.m., SD–106.

Full Committee, to hold hearings to examine the nominations of Marcel John Lettre, II, of Maryland, to be Under Secretary of Defense for Intelligence, Gabriel Camarillo, of Texas, to be an Assistant Secretary of the Air Force, John E. Sparks, of Virginia, to be a Judge of the United States Court of Appeals for the Armed Forces for the term of fifteen years to expire on the date prescribed by law, and the following named officer for appointment in the United States Navy to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601: Vice Adm. Kurt W. Tidd, to be Admiral, all of the Department of Defense, 2 p.m., SD–106.

Committee on the Budget: to hold hearings to examine moving to a stronger economy with a regulatory budget, 10:30 a.m., SD–608.

Committee on Commerce, Science, and Transportation: business meeting to consider S. 571, to amend the Pilot's Bill of Rights to facilitate appeals and to apply to other certificates issued by the Federal Aviation Administration, to require the revision of the third class medical certification regulations issued by the Federal Aviation Administration, S. 2276, to amend title 49, United States Code, to provide enhanced safety in pipeline transportation, H.R. 2843, to require certain improvements in the Transportation Security Administration's PreCheck expedited screening program, S. 1886, to reauthorize the Integrated Coastal and Ocean Observation System Act of 2009, S. 1935, to require the Secretary of Commerce to undertake

certain activities to support waterfront community revitalization and resiliency, S. 2058, to require the Secretary of Commerce to maintain and operate at least one Doppler weather radar site within 55 miles of each city in the United States that has a population of more than 700,000 individuals, S. 2319, to amend the Communications Act of 1934, an original bill entitled, ''Airport Security Enhancement and Oversight Act'', the nomination of Jessica Rosenworcel, of the District of Columbia, to be a Member of the Federal Communications Commission for a term of five years from July 1, 2015 (Reappointment), and routine lists in the Coast Guard, 10 a.m., SR–253.

Committee on Foreign Relations: to hold hearings to examine United Nations peacekeeping and opportunities for reform, 9:30 a.m., SD–419.

Subcommittee on Africa and Global Health Policy, to hold hearings to examine the political and security crisis in Burundi, 2:30 p.m., SD–419.

Committee on Homeland Security and Governmental Affairs: business meeting to consider S. 2171, to reauthorize the Scholarships for Opportunity and Results Act, S. 2127, to provide appropriate protections to probationary Federal employees, to provide the Special Counsel with adequate access to information, to provide greater awareness of Federal whistleblower protections, S. 1915, to direct the Secretary of Homeland Security to make anthrax vaccines and antimicrobials available to emergency response providers, S. 1492, to direct the Administrator of General Services, on behalf of the Archivist of the United States, to convey certain Federal property located in the State of Alaska to the Municipality of Anchorage, Alaska, H.R. 1557, to amend the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 to strengthen Federal antidiscrimination laws enforced by the Equal Employment Opportunity Commission and expand accountability within the Federal government, an original bill entitled, ''Federal Asset Sale and Transfer Act'', an original bill entitled, ''Federal Real Property Management Reform Act of 2015'', and an original bill entitled, ''Administrative Leave Act of 2015'', 9:30 a.m., SD–342.

Committee on the Judiciary: to hold an oversight hearing to examine the Federal Bureau of Investigation, 10 a.m., SD–226.

Full Committee, to hold hearings to examine the nominations of Susan Paradise Baxter, Robert John Colville, and Marilyn Jean Horan, each to be a United States District Judge for the Western District of Pennsylvania, Mary S. McElroy, to be United States District Judge for the District of Rhode Island, and John Milton Younge, to be United States District Judge for the Eastern District of Pennsylvania, 2 p.m., SD–226.

Committee on Small Business and Entrepreneurship: business meeting to consider the nomination of Darryl L. DePriest, of Illinois, to be Chief Counsel for Advocacy, Small Business Administration, Time to be announced, S–216, Capitol.

Committee on Veterans' Affairs: business meeting to markup S. 290, to amend title 38, United States Code, to improve the accountability of employees of the Department of Veterans Affairs, and S. 425, to amend title 38, United States Code, to provide for a five-year extension to the homeless veterans reintegration programs and to provide clarification regarding eligibility for services under such programs, 2:30 p.m., SR–418.

Special Committee on Aging: to hold hearings to examine sudden price spikes in off-patent drugs, focusing on perspectives from the front lines, 2:30 p.m., SD–G50.

House

Committee on Agriculture, Subcommittee on General Farm Commodities and Risk Management, hearing entitled ''Commodity in Focus: Stress in Cotton Country'', 10 a.m., 1300 Longworth.

Subcommittee on Biotechnology, Horticulture, and Research, hearing on oversight of USDA's use of Census of Agriculture authority to acquire farmers' personal financial information, 2 p.m., 1302 Longworth.

Committee on Armed Services, Subcommittee on Military Personnel, hearing entitled ''Concurrent Receipt of Survivor Benefit Plan (SBP) and Dependency and Indemnity Compensation (DIC)'', 2 p.m., 2118 Rayburn.

Subcommittee on Seapower and Projection Forces, hearing entitled ''Game Changing Innovations and the Future of Surface Warfare'', 3:30 p.m., 2212 Rayburn.

Committee on Education and the Workforce, Subcommittee on Workforce Protections, hearing entitled ''How the Administration's Regulatory Onslaught is Affecting Workers and Job Creators'', 10 a.m., 2261 Rayburn.

Committee on Energy and Commerce, Subcommittee on Health, hearing entitled ''Examining Legislation to Improve Health Care and Treatment'', 10 a.m., 2322 Rayburn.

Committee on Financial Services, Full Committee, markup on H.R. 2187, the ''Fair Investment Opportunities for Professional Experts Act''; H.R. 2205, the ''Data Security Act of 2015''; H.R. 2287, the ''National Credit Union Administration Budget Transparency Act''; H.R. 3700, the ''Housing Opportunity Through Modernization Act of 2015''; H.R. 3784, the ''SEC Small Business Advocate Act of 2015''; H.R. 3791, to raise the consolidated assets threshold under the small bank holding company policy statement, and for other purposes; H.R. 4168, the ''Small Business Capital Formation Enhancement Act''; and Task Force to Investigate Terrorism Financing Resolution of 2016 (continued), time to be determined, 2128 Rayburn.

Committee on Foreign Affairs, Full Committee, markup on H.R. 1654, to authorize the direct provision of defense articles, defense services, and related training to the Kurdistan Regional Government, and for other purposes; H.R. 3654, the ''Combat Terrorist Use of Social Media Act of 2015''; H.R. 4154, the ''Taiwan Naval Support Act'', H. Res. 346, condemning the use of toxic chemicals as weapons in the Syrian Arab Republic; and H. Res. 536, supporting freedom of the press in Latin America and the Caribbean and condemning violations of press freedom and violence against journalists, bloggers, and individuals exercising their right to freedom of speech, 10 a.m., 2172 Rayburn.

Subcommittee on the Western Hemisphere, hearing entitled ''Year in Review: U.S. Policy Toward a Changing Western Hemisphere'', 2 p.m., 2200 Rayburn.

Subcommittee on Africa, Global Health, Global Human Rights, and International Organizations, hearing entitled ''Fulfilling the Humanitarian Imperative: Assisting Victims of ISIS Violence'', 2 p.m., 2255 Rayburn.

Committee on the Judiciary, Subcommittee on Immigration and Border Security, hearing entitled ''Oversight of the United States Citizenship and Immigration Services'', 1 p.m., 2141 Rayburn.

Committee on Natural Resources, Full Committee, hearing entitled ''The Department of the Interior's Role in the EPA's Animas Spill'', 10 a.m., 1324 Longworth.

Subcommittee on Federal Lands, hearing on H.R. 1838, the ''Clear Creek National Recreation Area and Conservation Act''; and H.R. 3668, the ''California Minerals, Off-Road Recreation, and Conservation Act'', 2 p.m., 1334 Longworth.

Committee on Oversight and Government Reform, Full Committee, markup on committee report entitled ''United States Secret Service: An Agency in Crisis''; H.R. 4180, to improve Federal agency financial and administrative controls and procedures to assess and mitigate fraud risks, and to improve Federal agencies' development and use of data analytics for the purpose of identifying, preventing, and responding to fraud, including improper payments; S. 1698, the ''Treatment of Certain Payments in Eugenics Compensation Act''; H.R. 1132, to designate the facility of the United States Postal Service located at 1048 West Robinhood Drive in Stockton, California, as the ''W. Ronald Coale Memorial Post Office Building''; H.R. 2458, to designate the facility of the United States Postal Service located at 5351 Lapalco Boulevard in Marrero, Louisiana, as the ''Lionel R. Collins, Sr. Post Office Building''; H.R. 3735, to designate the facility of the United States Postal Service located at 200 Town Run Lane in Winston Salem, North Carolina, as the ''Maya Angelou Memorial Post Office''; and H.R. 4046, to designate the facility of the United States Postal Service located at 220 East Oak Street, Glenwood City, Wisconsin, as the Second Lt. Ellen Ainsworth Memorial Post Office, 9 a.m., 2154 Rayburn.

Full Committee, hearing entitled ''A Casino in Every Smartphone—Law Enforcement Implications'', 1 p.m., 2154 Rayburn.

Committee on Small Business, Subcommittee on Contracting and Workforce, hearing entitled ''Supporting Success: Empowering Small Business Advocates'', 11 a.m., 2360 Rayburn.

Committee on Veterans' Affairs, Full Committee, hearing entitled ''Fact Check: An End of Year Review of Accountability at the Department of Veterans Affairs'', 10:30 a.m., 334 Cannon.

Next Meeting of the SENATE

10 a.m., Wednesday, December 9

Senate Chamber

Program for Wednesday: Senate will continue consideration of the conference report to accompany S. 1177, Every Child Achieves Act, and vote on adoption of the conference report to accompany the bill at 10:45 a.m.

Next Meeting of the HOUSE OF REPRESENTATIVES

10 a.m., Wednesday, December 9

House Chamber

Program for Wednesday: Consideration of H.R. 2130—Red River Private Property Protection Act (Subject to a Rule).

Extensions of Remarks, as inserted in this issue.

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